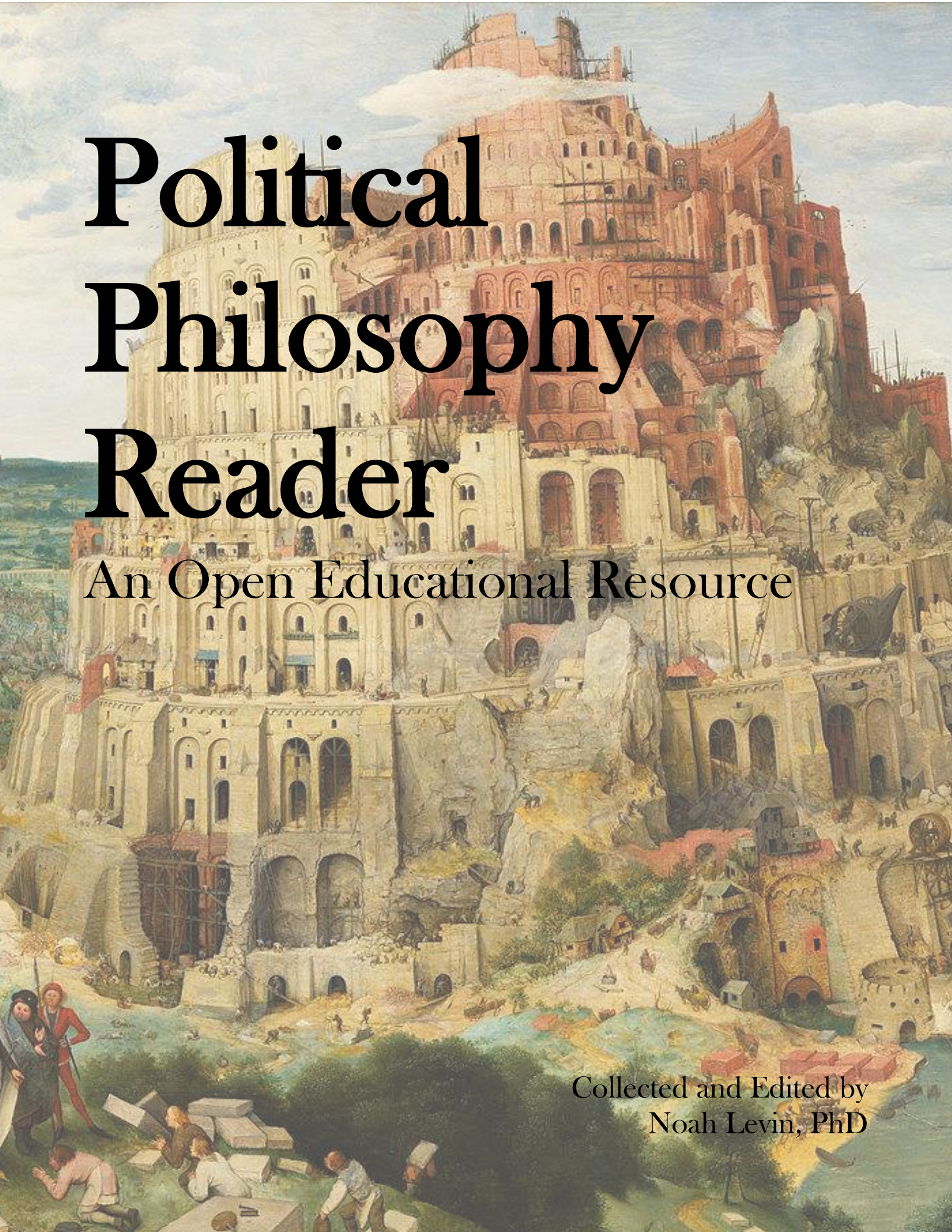




Political Philosophy Reader

An Open Educational Resource

Collected and Edited by
Noah Levin, PhD

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Political Philosophy Reader: An Open Educational Resource

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UNIT ONE: THINKING ABOUT AND JUSTIFYING THE STATE

State (polity)¹

In terms of a political entity, a **state** is any politically organized community living under a single system of government. States may or may not be sovereign. For instance, federated states are members of a federal union, and may have only partial sovereignty, but are, nonetheless, states. Some states are subject to external sovereignty or hegemony, in which ultimate sovereignty lies in another state. States that are sovereign are known as sovereign states.

The term "state" can also refer to the secular branches of government within a state, often as a manner of contrasting them with churches and civilian institutions.

Speakers of American English often use the terms *state* and *government* as synonyms, with both words referring to an organized political group that exercises authority over a particular territory.

Many human societies have been governed by states for millennia, but many have been stateless societies. Over time a variety of different forms developed, employing a variety of justifications of legitimacy for their existence (such as the divine right of kings, the theory of social contract, etc.). In the 21st century, the modern nation-state is the predominant form of state to which people are subjected.

Definition issues

There is no academic consensus on the most appropriate definition of the state. The term "state" refers to a set of different, but interrelated and often overlapping, theories about a certain range of political phenomena. The act of defining the term can be seen as part of an ideological conflict, because different definitions lead to different theories of state function, and as a result validate different political strategies. According to Jeffrey and Painter, "if we define the 'essence' of the state in one place or era, we are liable to find that in another time or space something which is also understood to be a state has different 'essential' characteristics".

The most commonly used definition is Max Weber's, which describes the state as a compulsory political organization with a centralized government that maintains a monopoly of the legitimate use of force within a certain territory. General categories of state institutions include administrative bureaucracies, legal systems, and military or religious organizations.

Another commonly accepted definition of the state is the one given at the Montevideo Convention on Rights and Duties of States in 1933. It defined state as a space that possess the following : A permanent population, a defined territory and a government that is capable of maintaining effective control over the corresponding territory and of conducting International relations with other states.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: State (polity). (2017, May 24). In Wikipedia, The Free Encyclopedia. Retrieved 20:54, June 12, 2017, from [https://en.wikipedia.org/w/index.php?title=State_\(polity\)&oldid=782036117](https://en.wikipedia.org/w/index.php?title=State_(polity)&oldid=782036117)

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According to the *Oxford English Dictionary*, a state is "**a.** an organized political community under one government; a commonwealth; a nation. **b.** such a community forming part of a federal republic, esp the United States of America".

Confounding the definition problem is that "state" and "government" are often used as synonyms in common conversation and even some academic discourse. According to this definition schema, the states are nonphysical persons of international law, governments are organizations of people. The relationship between a government and its state is one of representation and authorized agency.

Types of states

States may be classified as sovereign if they are not dependent on, or subject to any other power or state. Other states are subject to external sovereignty or hegemony where ultimate sovereignty lies in another state. Many states are federated states which participate in a federal union. A federated state is a territorial and constitutional community forming part of a federation. (Compare confederacies or confederations such as Switzerland.) Such states differ from sovereign states in that they have transferred a portion of their sovereign powers to a federal government.

One can commonly and sometimes readily (but not necessarily usefully) classify states according to their apparent make-up or focus. The concept of the nation-state, theoretically or ideally co-terminous with a "nation", became very popular by the 20th century in Europe, but occurred rarely elsewhere or at other times. In contrast, some states have sought to make a virtue of their multi-ethnic or multi-national character (Hapsburg Austria-Hungary, for example, or the Soviet Union), and have emphasised unifying characteristics such as autocracy, monarchical legitimacy, or ideology. Imperial states have sometimes promoted notions of racial superiority. Other states may bring ideas of commonality and inclusiveness to the fore: note the *res publica* of ancient Rome and the *Rzeczpospolita* of Poland-Lithuania which finds echoes in the modern-day republic. The concept of temple states centred on religious shrines occurs in some discussions of the ancient world. Relatively small city-states, once a relatively common and often successful form of polity in the days before folk worried about failed states, have become rarer and comparatively less prominent in modern times, although a number of them survive as federated states, like the present-day German city-states, or as otherwise autonomous entities with limited sovereignty, like Hong Kong, Gibraltar and Ceuta. To some extent, urban secession, the creation of a new city-state (sovereign or federated), continues to be discussed in the early 21st century in cities such as London.

The state and government

A state can be distinguished from a government. The government is the particular group of people, the administrative bureaucracy that controls the state apparatus at a given time. That is, governments are the means through which state power is employed. States are served by a continuous succession of different governments. States are immaterial and nonphysical social objects, whereas governments are groups of people with certain coercive powers.

Each successive government is composed of a specialized and privileged body of individuals, who monopolize political decision-making, and are separated by status and organization from the population as a whole. Their function is to enforce existing laws, legislate new ones, and arbitrate conflicts. In some

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societies, this group is a self-perpetuating or hereditary class. In other societies, such as democracies, the political roles remain, but there is frequent turnover of the people actually filling the positions.

States and nation-states

States can also be distinguished from the concept of a "nation", where "nation" refers to a cultural-political community of people.

The state and civil society

In the classical thought, the state was identified with both political society and civil society as a form of political community, while the modern thought distinguished the nation state as a political society from civil society as a form of economic society. Thus in the modern thought the state is contrasted with civil society.

The man versus the state

Antonio Gramsci believed that civil society is the primary locus of political activity because it is where all forms of "identity formation, ideological struggle, the activities of intellectuals, and the construction of hegemony take place." and that civil society was the nexus connecting the economic and political sphere. Arising out of the collective actions of civil society is what Gramsci calls "political society", which Gramsci differentiates from the notion of the state as a polity. He stated that politics was not a "one-way process of political management" but, rather, that the activities of civil organizations conditioned the activities of political parties and state institutions, and were conditioned by them in turn. Louis Althusser argued that civil organizations such as church, schools, and the family are part of an "ideological state apparatus" which complements the "repressive state apparatus" (such as police and military) in reproducing social relations.

Jürgen Habermas spoke of a public sphere that was distinct from both the economic and political sphere.

Given the role that many social groups have in the development of public policy, and the extensive connections between state bureaucracies and other institutions, it has become increasingly difficult to identify the boundaries of the state. Privatization, nationalization, and the creation of new regulatory bodies also change the boundaries of the state in relation to society. Often the nature of quasi-autonomous organizations is unclear, generating debate among political scientists on whether they are part of the state or civil society. Some political scientists thus prefer to speak of policy networks and decentralized governance in modern societies rather than of state bureaucracies and direct state control over policy.

Theories of state function

Most political theories of the state can roughly be classified into two categories. The first are known as "liberal" or "conservative" theories, which treat capitalism as a given, and then concentrate on the function of states in capitalist society. These theories tend to see the state as a neutral entity separated from society and the economy. Marxist theories on the other hand, see politics as intimately tied in with

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economic relations, and emphasize the relation between economic power and political power. They see the state as a partisan instrument that primarily serves the interests of the upper class.

Anarchist

Anarchism is a political philosophy which considers the state immoral, unnecessary, and harmful and instead promotes a stateless society, or anarchy.

Anarchists believe that the state is inherently an instrument of domination and repression, no matter who is in control of it. Anarchists note that the state possesses the monopoly on the legal use of violence. Unlike Marxists, anarchists believe that revolutionary seizure of state power should not be a political goal. They believe instead that the state apparatus should be completely dismantled, and an alternative set of social relations created, which are not based on state power at all.

Various Christian anarchists, such as Jacques Ellul, have identified the State and political power as the Beast in the Book of Revelation.

Marxist perspective

Marx and Engels were clear in that the communist goal was a classless society in which the state would have "withered away". Their views are scattered throughout the Marx/Engels Collected Works and address past or the then extant state forms from an analytical or tactical viewpoint, not future social forms, speculation about which is generally anathema to groups considering themselves Marxist but who, not having conquered the existing state power(s) are not in the situation of supplying the institutional form of an actual society. To the extent that it makes sense, there is no single "Marxist theory of state", but rather many different "Marxist" theories that have been developed by adherents of Marxism.

Marx's early writings portrayed the state as "parasitic", built upon the superstructure of the economy, and working against the public interest. He also wrote that the state mirrors class relations in society in general, acts as a regulator and repressor of class struggle, and acts as a tool of political power and domination for the ruling class. The *Communist Manifesto* claimed that the state is nothing more than "a committee for managing the common affairs of the *bourgeoisie*."

For Marxist theorists, the role of the non-socialist state is determined by its function in the global capitalist order. Ralph Miliband argued that the ruling class uses the state as its instrument to dominate society by virtue of the interpersonal ties between state officials and economic elites. For Miliband, the state is dominated by an elite that comes from the same background as the capitalist class. State officials therefore share the same interests as owners of capital and are linked to them through a wide array of social, economic, and political ties.

Gramsci's theories of state emphasized that the state is only one of the institutions in society that helps maintain the hegemony of the ruling class, and that state power is bolstered by the ideological domination of the institutions of civil society, such as churches, schools, and mass media.

Pluralism

Pluralists view society as a collection of individuals and groups, who are competing for political power. They then view the state as a neutral body that simply enacts the will of whichever groups dominate the electoral process. Within the pluralist tradition, Robert Dahl developed the theory of the state as a neutral arena for contending interests or its agencies as simply another set of interest groups. With power competitively arranged in society, state policy is a product of recurrent bargaining. Although pluralism recognizes the existence of inequality, it asserts that all groups have an opportunity to pressure the state. The pluralist approach suggests that the modern democratic state's actions are the result of pressures applied by a variety of organized interests. Dahl called this kind of state a polyarchy.

Pluralism has been challenged on the ground that it is not supported by empirical evidence. Citing surveys showing that the large majority of people in high leadership positions are members of the wealthy upper class, critics of pluralism claim that the state serves the interests of the upper class rather than equitably serving the interests of all social groups.

Contemporary critical perspectives

Jürgen Habermas believed that the base-superstructure framework, used by many Marxist theorists to describe the relation between the state and the economy, was overly simplistic. He felt that the modern state plays a large role in structuring the economy, by regulating economic activity and being a large-scale economic consumer/producer, and through its redistributive welfare state activities. Because of the way these activities structure the economic framework, Habermas felt that the state cannot be looked at as passively responding to economic class interests.

Michel Foucault believed that modern political theory was too state-centric, saying "Maybe, after all, the state is no more than a composite reality and a mythologized abstraction, whose importance is a lot more limited than many of us think." He thought that political theory was focusing too much on abstract institutions, and not enough on the actual practices of government. In Foucault's opinion, the state had no essence. He believed that instead of trying to understand the activities of governments by analyzing the properties of the state (a reified abstraction), political theorists should be examining changes in the practice of government to understand changes in the nature of the state.

Heavily influenced by Gramsci, Nicos Poulantzas, a Greek neo-Marxist theorist argued that capitalist states do not always act on behalf of the ruling class, and when they do, it is not necessarily the case because state officials consciously strive to do so, but because the 'structural' position of the state is configured in such a way to ensure that the long-term interests of capital are always dominant. Poulantzas' main contribution to the Marxist literature on the state was the concept of 'relative autonomy' of the state. While Poulantzas' work on 'state autonomy' has served to sharpen and specify a great deal of Marxist literature on the state, his own framework came under criticism for its 'structural functionalism'.

State autonomy (institutionalism)

State autonomy theorists believe that the state is an entity that is impervious to external social and economic influence, and has interests of its own.

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"New institutionalist" writings on the state, such as the works of Theda Skocpol, suggest that state actors are to an important degree autonomous. In other words, state personnel have interests of their own, which they can and do pursue independently of (at times in conflict with) actors in society. Since the state controls the means of coercion, and given the dependence of many groups in civil society on the state for achieving any goals they may espouse, state personnel can to some extent impose their own preferences on civil society.

Theories of state legitimacy

States generally rely on a claim to some form of political legitimacy in order to maintain domination over their subjects.

Divine right

The rise of the modern day state system was closely related to changes in political thought, especially concerning the changing understanding of legitimate state power and control. Early modern defenders of absolutism, such as Thomas Hobbes and Jean Bodin undermined the doctrine of the divine right of kings by arguing that the power of kings should be justified by reference to the people. Hobbes in particular went further to argue that political power should be justified with reference to the individual, not just to the people understood collectively. Both Hobbes and Bodin thought they were defending the power of kings, not advocating for democracy, but their arguments about the nature of sovereignty were fiercely resisted by more traditional defenders of the power of kings, such as Sir Robert Filmer in England, who thought that such defenses ultimately opened the way to more democratic claims.

Rational-legal authority

Max Weber identified three main sources of political legitimacy in his works. The first, legitimacy based on traditional grounds is derived from a belief that things should be as they have been in the past, and that those who defend these traditions have a legitimate claim to power. The second, legitimacy based on charismatic leadership is devotion to a leader or group that is viewed as exceptionally heroic or virtuous. The third is rational-legal authority, whereby legitimacy is derived from the belief that a certain group has been placed in power in a legal manner, and that their actions are justifiable according to a specific code of written laws. Weber believed that the modern state is characterized primarily by appeals to rational-legal authority.

Etymology

The word *state* and its cognates in some other European languages (*stato* in Italian, *estado* in Spanish and Portuguese, *état* in French, *Staat* in German) ultimately derive from the Latin word *status*, meaning "condition" or "status".

With the revival of the Roman law in 14th-century Europe, this Latin term came to refer to the legal standing of persons (such as the various "estates of the realm" - noble, common, and clerical), and in particular the special status of the king. The word also had associations with Roman ideas (dating back to Cicero) about the "*status rei publicae*", the "condition of public matters". In time, the word lost its reference to particular social groups and became associated with the legal order of the entire society and

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the apparatus of its enforcement. [Romans had a strong background in customs making the laws that were installed being ideal to keeping order and upholding it overall for justice].

In English, "state" came about as a contraction of the word "estate", which is similar to the old French *estat* and the modern French *état*, both of which signify that a person has status and therefore estate. The highest estates, generally those with the most wealth and social rank, were those that held power.

The early 16th-century works of Machiavelli (especially *The Prince*) played a central role in popularizing the use of the word "state" in something similar to its modern sense.

History

The earliest forms of the state emerged whenever it became possible to centralize power in a durable way. Agriculture and writing are almost everywhere associated with this process: agriculture because it allowed for the emergence of a social class of people who did not have to spend most of their time providing for their own subsistence, and writing (or an equivalent of writing, like Inca quipus) because it made possible the centralization of vital information.

The first known states were created in Ancient Egypt, Mesopotamia, India, China, Mesoamerica, the Andes, and others, but it is only in relatively modern times that states have almost completely displaced alternative "stateless" forms of political organization of societies all over the planet. Roving bands of hunter-gatherers and even fairly sizable and complex tribal societies based on herding or agriculture have existed without any full-time specialized state organization, and these "stateless" forms of political organization have in fact prevailed for all of the prehistory and much of the history of the human species and civilization.

Initially states emerged over territories built by conquest in which one culture, one set of ideals and one set of laws have been imposed by force or threat over diverse nations by a civilian and military bureaucracy. Currently, that is not always the case and there are multinational states, federated states and autonomous areas within states.

Since the late 19th century, virtually the entirety of the world's inhabitable land has been parcelled up into areas with more or less definite borders claimed by various states. Earlier, quite large land areas had been either unclaimed or uninhabited, or inhabited by nomadic peoples who were not organised as states. However, even within present-day states there are vast areas of wilderness, like the Amazon rainforest, which are uninhabited or inhabited solely or mostly by indigenous people (and some of them remain uncontacted). Also, there are states which do not hold de facto control over all of their claimed territory or where this control is challenged. Currently the international community comprises around 200 sovereign states, the vast majority of which are represented in the United Nations.

Pre-historic stateless societies

For most of human history, people have lived in stateless societies, characterized by a lack of concentrated authority, and the absence of large inequalities in economic and political power.

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The anthropologist Tim Ingold writes:

It is not enough to observe, in a now rather dated anthropological idiom, that hunter gatherers live in 'stateless societies', as though their social lives were somehow lacking or unfinished, waiting to be completed by the evolutionary development of a state apparatus. Rather, the principal of their sociality, as Pierre Clastres has put it, is fundamentally *against* the state.

The Neolithic period

During the Neolithic period, human societies underwent major cultural and economic changes, including the development of agriculture, the formation of sedentary societies and fixed settlements, increasing population densities, and the use of pottery and more complex tools.

Sedentary agriculture led to the development of property rights, domestication of plants and animals, and larger family sizes. It also provided the basis for the centralized state form by producing a large surplus of food, which created a more complex division of labor by enabling people to specialize in tasks other than food production. Early states were characterized by highly stratified societies, with a privileged and wealthy ruling class that was subordinate to a monarch. The ruling classes began to differentiate themselves through forms of architecture and other cultural practices that were different from those of the subordinate laboring classes.

In the past, it was suggested that the centralized state was developed to administer large public works systems (such as irrigation systems) and to regulate complex economies. However, modern archaeological and anthropological evidence does not support this thesis, pointing to the existence of several non-stratified and politically decentralized complex societies.

The state in ancient Eurasia

Mesopotamia is generally considered to be the location of the earliest civilization or complex society, meaning that it contained cities, full-time division of labor, social concentration of wealth into capital, unequal distribution of wealth, ruling classes, community ties based on residency rather than kinship, long distance trade, monumental architecture, standardized forms of art and culture, writing, and mathematics and science. It was the world's first literate civilization, and formed the first sets of written laws.

The state in classical antiquity

Although state-forms existed before the rise of the Ancient Greek empire, the Greeks were the first people known to have explicitly formulated a political philosophy of the state, and to have rationally analyzed political institutions. Prior to this, states were described and justified in terms of religious myths.

Several important political innovations of classical antiquity came from the Greek city-states and the Roman Republic. The Greek city-states before the 4th century granted citizenship rights to their free population, and in Athens these rights were combined with a directly democratic form of government that was to have a long afterlife in political thought and history.

The feudal state

During Medieval times in Europe, the state was organized on the principle of feudalism, and the relationship between lord and vassal became central to social organization. Feudalism led to the development of greater social hierarchies.

The formalization of the struggles over taxation between the monarch and other elements of society (especially the nobility and the cities) gave rise to what is now called the Standestaat, or the state of Estates, characterized by parliaments in which key social groups negotiated with the king about legal and economic matters. These estates of the realm sometimes evolved in the direction of fully-fledged parliaments, but sometimes lost out in their struggles with the monarch, leading to greater centralization of lawmaking and military power in his hands. Beginning in the 15th century, this centralizing process gives rise to the absolutist state.

The modern state

Cultural and national homogenization figured prominently in the rise of the modern state system. Since the absolutist period, states have largely been organized on a national basis. The concept of a national state, however, is not synonymous with nation state. Even in the most ethnically homogeneous societies there is not always a complete correspondence between state and nation, hence the active role often taken by the state to promote nationalism through emphasis on shared symbols and national identity.

Weak states and late state formation

Some states are often labeled as weak or failed. In David Samuels's words "...a failed state occurs when sovereignty over claimed territory has collapsed or was never effectively at all". Authors like Samuels and Joel S. Migdal have explored the emergence of weak states, how they are different from Western "strong" states and its consequences to the economic development of developing countries.

Early state formation

To understand the formation of weak states, Samuels compares the formation of European states in the 1600 with the conditions under which more recent states were formed in the twentieth century. In this line of argumentation, the state allows to resolve a collective action problem, in which citizens recognize the authority of the state and this exercise the power of coercion over them. This kind of social organization required a decline in legitimacy of traditional forms of ruling (like religious authorities) and replaced them with an increase in the legitimacy of depersonalized rule; an increase in the central government's sovereignty; and an increase in the organizational complexity of the central government (bureaucracy).

The transition to this modern state was possible in Europe around 1600 thanks to the confluence of factors like the technological developments in warfare, which generated strong incentives to tax and consolidate central structures of governance to respond to external threats. This was complemented by the increasing on the production of food (as a result of productivity improvements), which allowed to

sustain a larger population and so increased the complexity and centralization of states. Finally, cultural changes challenged the authority of monarchies and paved the way to the emergence of modern states.

Late state formation

The conditions that enabled the emergence of modern states in Europe were different for other countries that started this process later. As a result, many of these states lack effective capabilities to tax and extract revenue from their citizens, which derives in problems like corruption, tax evasion and low economic growth. Unlike the European case, late state formation occurred in a context of limited international conflict that diminished the incentives to tax and increase military spending. Also, many of these states emerged from colonization in a state of poverty and with institutions designed to extract natural resources, which have made more difficult to form states. European colonization also defined many arbitrary borders that mixed different cultural groups under the same national identities, which has made difficult to build states with legitimacy among all the population, since some states have to compete for it with other forms of political identity.

As a complement of this argument, Migdal gives a historical account on how sudden social changes in the Third World during the Industrial Revolution contributed to the formation of weak states. The expansion of international trade that started around 1850, brought profound changes in Africa, Asia and Latin America that were introduced with the objective of assure the availability of raw materials for the European market. These changes consisted in: i) reforms to landownership laws with the objective of integrate more lands to the international economy, ii) increase in the taxation of peasants and little landowners, as well as collecting of these taxes in cash instead of in kind as was usual up to that moment and iii) the introduction of new and less costly modes of transportation, mainly railroads. As a result, the traditional forms of social control became obsolete, deteriorating the existing institutions and opening the way to the creation of new ones, that not necessarily lead these countries to build strong states. This fragmentation of the social order induced a political logic in which these states were captured to some extent by "strongmen", who were capable to take advantage of the above-mentioned changes and that challenge the sovereignty of the state. As a result, these decentralization of social control impedes to consolidate strong states.

1 Introduction to Political Philosophy and The Allegory of the Cave

Political Philosophy¹

Political philosophy, or **political theory**, is the study of topics such as politics, liberty, justice, property, rights, law, and the enforcement of a legal code by authority: what they are, why (or even if) they are needed, what, if anything, makes a government legitimate, what rights and freedoms it should protect and why, what form it should take and why, what the law is, and what duties citizens owe to a legitimate government, if any, and when it may be legitimately overthrown, if ever.

In a vernacular sense, the term "political philosophy" often refers to a general view, or specific ethic, political belief or attitude, about politics, synonymous to the term "political ideology".

Political philosophy is considered by some to be a sub-discipline of political science; however, the name generally attributed to this form of political enquiry is political theory, a discipline which has a closer methodology to the theoretical fields in the social sciences (like economic theory) than to philosophical argumentation (like that of moral philosophy or aesthetics).

The Allegory of the Cave²

(The following discussion takes place between Socrates and Glaucon)

And now, I said, let me show in a figure how far our nature is enlightened or unenlightened: --Behold! human beings living in a underground den, which has a mouth open towards the light and reaching all along the den; here they have been from their childhood, and have their legs and necks chained so that they cannot move, and can only see before them, being prevented by the chains from turning round their heads. Above and behind them a fire is blazing at a distance, and between the fire and the prisoners there is a raised way; and you will see, if you look, a low wall built along the way, like the screen which marionette players have in front of them, over which they show the puppets.

I see.

And do you see, I said, men passing along the wall carrying all sorts of vessels, and statues and figures of animals made of wood and stone and various materials, which appear over the wall? Some of them are talking, others silent.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Political philosophy. (2017, August 8). In Wikipedia, The Free Encyclopedia. Retrieved 19:20, August 13, 2017, from https://en.wikipedia.org/w/index.php?title=Political_philosophy&oldid=794435703

² From *The Republic* by Plato, 360 BCE, translated by Benjamin Jowett, 1910.

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You have shown me a strange image, and they are strange prisoners.

Like ourselves, I replied; and they see only their own shadows, or the shadows of one another, which the fire throws on the opposite wall of the cave?

True, he said; how could they see anything but the shadows if they were never allowed to move their heads?

And of the objects which are being carried in like manner they would only see the shadows?

Yes, he said.

And if they were able to converse with one another, would they not suppose that they were naming what was actually before them?

Very true.

And suppose further that the prison had an echo which came from the other side, would they not be sure to fancy when one of the passers-by spoke that the voice which they heard came from the passing shadow?

No question, he replied.

To them, I said, the truth would be literally nothing but the shadows of the images.

That is certain.

And now look again, and see what will naturally follow if the prisoners are released and disabused of their error. At first, when any of them is liberated and compelled suddenly to stand up and turn his neck round and walk and look towards the light, he will suffer sharp pains; the glare will distress him, and he will be unable to see the realities of which in his former state he had seen the shadows; and then conceive some one saying to him, that what he saw before was an illusion, but that now, when he is approaching nearer to being and his eye is turned towards more real existence, he has a clearer vision, - what will be his reply? And you may further imagine that his instructor is pointing to the objects as they pass and requiring him to name them, - will he not be perplexed? Will he not fancy that the shadows which he formerly saw are truer than the objects which are now shown to him?

Far truer.

And if he is compelled to look straight at the light, will he not have a pain in his eyes which will make him turn away to take and take in the objects of vision which he can see, and which he will conceive to be in reality clearer than the things which are now being shown to him?

True, he now

And suppose once more, that he is reluctantly dragged up a steep and rugged ascent, and held fast until he 's forced into the presence of the sun himself, is he not likely to be pained and irritated? When he approaches the light his eyes will be dazzled, and he will not be able to see anything at all of what are now called realities.

Not all in a moment, he said.

He will require to grow accustomed to the sight of the upper world. And first he will see the shadows best, next the reflections of men and other objects in the water, and then the objects themselves; then he

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will gaze upon the light of the moon and the stars and the spangled heaven; and he will see the sky and the stars by night better than the sun or the light of the sun by day?

Certainly.

Last of he will be able to see the sun, and not mere reflections of him in the water, but he will see him in his own proper place, and not in another; and he will contemplate him as he is.

Certainly.

He will then proceed to argue that this is he who gives the season and the years, and is the guardian of all that is in the visible world, and in a certain way the cause of all things which he and his fellows have been accustomed to behold?

Clearly, he said, he would first see the sun and then reason about him.

And when he remembered his old habitation, and the wisdom of the den and his fellow-prisoners, do you not suppose that he would felicitate himself on the change, and pity them?

Certainly, he would.

And if they were in the habit of conferring honours among themselves on those who were quickest to observe the passing shadows and to remark which of them went before, and which followed after, and which were together; and who were therefore best able to draw conclusions as to the future, do you think that he would care for such honours and glories, or envy the possessors of them? Would he not say with Homer,

Better to be the poor servant of a poor master, and to endure anything, rather than think as they do and live after their manner?

Yes, he said, I think that he would rather suffer anything than entertain these false notions and live in this miserable manner.

Imagine once more, I said, such an one coming suddenly out of the sun to be replaced in his old situation; would he not be certain to have his eyes full of darkness?

To be sure, he said.

And if there were a contest, and he had to compete in measuring the shadows with the prisoners who had never moved out of the den, while his sight was still weak, and before his eyes had become steady (and the time which would be needed to acquire this new habit of sight might be very considerable) would he not be ridiculous? Men would say of him that up he went and down he came without his eyes; and that it was better not even to think of ascending; and if any one tried to loose another and lead him up to the light, let them only catch the offender, and they would put him to death.

No question, he said.

This entire allegory, I said, you may now append, dear Glaucon, to the previous argument; the prison-house is the world of sight, the light of the fire is the sun, and you will not misapprehend me if you interpret the journey upwards to be the ascent of the soul into the intellectual world according to my poor belief, which, at your desire, I have expressed whether rightly or wrongly God knows. But, whether

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true or false, my opinion is that in the world of knowledge the idea of good appears last of all, and is seen only with an effort; and, when seen, is also inferred to be the universal author of all things beautiful and right, parent of light and of the lord of light in this visible world, and the immediate source of reason and truth in the intellectual; and that this is the power upon which he who would act rationally, either in public or private life must have his eye fixed.

I agree, he said, as far as I am able to understand you.

Moreover, I said, you must not wonder that those who attain to this beatific vision are unwilling to descend to human affairs; for their souls are ever hastening into the upper world where they desire to dwell; which desire of theirs is very natural, if our allegory may be trusted.

Yes, very natural.

And is there anything surprising in one who passes from divine contemplations to the evil state of man, misbehaving himself in a ridiculous manner; if, while his eyes are blinking and before he has become accustomed to the surrounding darkness, he is compelled to fight in courts of law, or in other places, about the images or the shadows of images of justice, and is endeavouring to meet the conceptions of those who have never yet seen absolute justice?

Anything but surprising, he replied.

Any one who has common sense will remember that the bewilderments of the eyes are of two kinds, and arise from two causes, either from coming out of the light or from going into the light, which is true of the mind's eye, quite as much as of the bodily eye; and he who remembers this when he sees any one whose vision is perplexed and weak, will not be too ready to laugh; he will first ask whether that soul of man has come out of the brighter light, and is unable to see because unaccustomed to the dark, or having turned from darkness to the day is dazzled by excess of light. And he will count the one happy in his condition and state of being, and he will pity the other; or, if he have a mind to laugh at the soul which comes from below into the light, there will be more reason in this than in the laugh which greets him who returns from above out of the light into the den.

That, he said, is a very just distinction.

But then, if I am right, certain professors of education must be wrong when they say that they can put a knowledge into the soul which was not there before, like sight into blind eyes.

They undoubtedly say this, he replied.

Whereas, our argument shows that the power and capacity of learning exists in the soul already; and that just as the eye was unable to turn from darkness to light without the whole body, so too the instrument of knowledge can only by the movement of the whole soul be turned from the world of becoming into that of being, and learn by degrees to endure the sight of being, and of the brightest and best of being, or in other words, of the good.

Very true.

And must there not be some art which will effect conversion in the easiest and quickest manner; not implanting the faculty of sight, for that exists already, but has been turned in the wrong direction, and is looking away from the truth?

Yes, he said, such an art may be presumed.

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And whereas the other so-called virtues of the soul seem to be akin to bodily qualities, for even when they are not originally innate they can be implanted later by habit and exercise, the of wisdom more than anything else contains a divine element which always remains, and by this conversion is rendered useful and profitable; or, on the other hand, hurtful and useless. Did you never observe the narrow intelligence flashing from the keen eye of a clever rogue --how eager he is, how clearly his paltry soul sees the way to his end; he is the reverse of blind, but his keen eyesight is forced into the service of evil, and he is mischievous in proportion to his cleverness.

Very true, he said.

But what if there had been a circumcision of such natures in the days of their youth; and they had been severed from those sensual pleasures, such as eating and drinking, which, like leaden weights, were attached to them at their birth, and which drag them down and turn the vision of their souls upon the things that are below --if, I say, they had been released from these impediments and turned in the opposite direction, the very same faculty in them would have seen the truth as keenly as they see what their eyes are turned to now.

Very likely.

Yes, I said; and there is another thing which is likely. or rather a necessary inference from what has preceded, that neither the uneducated and uninformed of the truth, nor yet those who never make an end of their education, will be able ministers of State; not the former, because they have no single aim of duty which is the rule of all their actions, private as well as public; nor the latter, because they will not act at all except upon compulsion, fancying that they are already dwelling apart in the islands of the blest.

Very true, he replied.

Then, I said, the business of us who are the founders of the State will be to compel the best minds to attain that knowledge which we have already shown to be the greatest of all--they must continue to ascend until they arrive at the good; but when they have ascended and seen enough we must not allow them to do as they do now.

What do you mean?

I mean that they remain in the upper world: but this must not be allowed; they must be made to descend again among the prisoners in the den, and partake of their labours and honours, whether they are worth having or not.

But is not this unjust? he said; ought we to give them a worse life, when they might have a better?

You have again forgotten, my friend, I said, the intention of the legislator, who did not aim at making any one class in the State happy above the rest; the happiness was to be in the whole State, and he held the citizens together by persuasion and necessity, making them benefactors of the State, and therefore benefactors of one another; to this end he created them, not to please themselves, but to be his instruments in binding up the State.

True, he said, I had forgotten.

Observe, Glaucon, that there will be no injustice in compelling our philosophers to have a care and providence of others; we shall explain to them that in other States, men of their class are not obliged to

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share in the toils of politics: and this is reasonable, for they grow up at their own sweet will, and the government would rather not have them. Being self-taught, they cannot be expected to show any gratitude for a culture which they have never received. But we have brought you into the world to be rulers of the hive, kings of yourselves and of the other citizens, and have educated you far better and more perfectly than they have been educated, and you are better able to share in the double duty. Wherefore each of you, when his turn comes, must go down to the general underground abode, and get the habit of seeing in the dark. When you have acquired the habit, you will see ten thousand times better than the inhabitants of the den, and you will know what the several images are, and what they represent, because you have seen the beautiful and just and good in their truth. And thus our State which is also yours will be a reality, and not a dream only, and will be administered in a spirit unlike that of other States, in which men fight with one another about shadows only and are distracted in the struggle for power, which in their eyes is a great good. Whereas the truth is that the State in which the rulers are most reluctant to govern is always the best and most quietly governed, and the State in which they are most eager, the worst.

Quite true, he replied.

And will our pupils, when they hear this, refuse to take their turn at the toils of State, when they are allowed to spend the greater part of their time with one another in the heavenly light?

Impossible, he answered; for they are just men, and the commands which we impose upon them are just; there can be no doubt that every one of them will take office as a stern necessity, and not after the fashion of our present rulers of State.

Yes, my friend, I said; and there lies the point. You must contrive for your future rulers another and a better life than that of a ruler, and then you may have a well-ordered State; for only in the State which offers this, will they rule who are truly rich, not in silver and gold, but in virtue and wisdom, which are the true blessings of life. Whereas if they go to the administration of public affairs, poor and hungering after the' own private advantage, thinking that hence they are to snatch the chief good, order there can never be; for they will be fighting about office, and the civil and domestic broils which thus arise will be the ruin of the rulers themselves and of the whole State.

Most true, he replied.

And the only life which looks down upon the life of political ambition is that of true philosophy. Do you know of any other?

Indeed, I do not, he said.

And those who govern ought not to be lovers of the task? For, if they are, there will be rival lovers, and they will fight.

2 John Rawls' "Veil of Ignorance"

John Rawls¹

John Bordley Rawls (/rɔːlz/; February 21, 1921 – November 24, 2002) was an American moral and political philosopher. He held the James Bryant Conant University Professorship at Harvard University and the Fulbright Fellowship at the University of Oxford. Rawls received both the Schock Prize for Logic and Philosophy and the National Humanities Medal in 1999, the latter presented by President Bill Clinton, in recognition of how Rawls's work "helped a whole generation of learned Americans revive their faith in democracy itself."

His *magnum opus*, *A Theory of Justice* (1971), was said at the time of its publication to be "the most important work in moral philosophy since the end of World War II" and is now regarded as "one of the primary texts in political philosophy". His work in political philosophy, dubbed Rawlsianism, takes as its starting point the argument that "the most reasonable principles of justice are those everyone would accept and agree to from a fair position". Rawls attempts to determine the principles of social justice by employing a number of thought experiments such as the famous original position in which everyone is impartially situated as equals behind a veil of ignorance. He is one of the major thinkers in the tradition of liberal political philosophy. According to English philosopher Jonathan Wolff, John Rawls was the most important political philosopher of the 20th century.

"Veil of Ignorance"²

The "**veil of ignorance**" is a method of determining the morality of political issues proposed in 1971 by American philosopher John Rawls in his "original position" political philosophy. It is based upon the following thought experiment: people making political decisions imagine that they know nothing about the particular talents, abilities, tastes, social class, and positions they will have within a social order. When such parties are selecting the principles for distribution of rights, positions, and resources in the society in which they will live, this "veil of ignorance" prevents them from knowing who will receive a given distribution of rights, positions, and resources in that society. For example, for a proposed society in which 50% of the population is kept in slavery, it follows that on entering the new society there is a 50% likelihood that the participant would be a slave. The idea is that parties subject to the veil of ignorance will make choices based upon moral considerations, since they will not be able to make choices based on their own self- or class-interest.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: John Rawls. (2017, August 7). In Wikipedia, The Free Encyclopedia. Retrieved 19:32, August 13, 2017, from https://en.wikipedia.org/w/index.php?title=John_Rawls&oldid=794409264

² This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Veil of ignorance. (2017, April 22). In Wikipedia, The Free Encyclopedia. Retrieved 19:27, August 13, 2017, from https://en.wikipedia.org/w/index.php?title=Veil_of_ignorance&oldid=776623332

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As Rawls put it, "no one knows his place in society, his class position or social status; nor does he know his fortune in the distribution of natural assets and abilities, his intelligence and strength, and the like". The idea of the thought experiment is to render obsolete those personal considerations that are morally irrelevant to the justice or injustice of principles meant to allocate the benefits of social cooperation. The veil of ignorance is part of a long tradition of thinking in terms of a social contract that includes the writings of Immanuel Kant, Thomas Hobbes, John Locke, Jean Jacques Rousseau, and Thomas Jefferson.

Spencer J. Maxcy outlines the concept as follows:

Imagine that you have set for yourself the task of developing a totally new social contract for today's society. How could you do so fairly? Although you could never actually eliminate all of your personal biases and prejudices, you would need to take steps at least to minimize them. Rawls suggests that you imagine yourself in an original position behind a veil of ignorance. Behind this veil, you know nothing of yourself and your natural abilities, or your position in society. You know nothing of your sex, race, nationality, or individual tastes. Behind such a veil of ignorance all individuals are simply specified as rational, free, and morally equal beings. You do know that in the "real world", however, there will be a wide variety in the natural distribution of natural assets and abilities, and that there will be differences of sex, race, and culture that will distinguish groups of people from each other.

It has been argued that such a concept can have grand effects if it were to be practiced both in the present and in the past. Referring again to the example of slavery, if the slave-owners were forced through the veil of ignorance to imagine that they themselves may be slaves, then suddenly slavery may no longer seem justifiable. Perhaps the entire practice would have been abolished without the need for a war to settle things. A grander example would be if each individual in society were to base their practices off the fact that they could be the least advantaged member of society. In this scenario, freedom and equality could possibly coexist in a way that has been the ideal of many philosophers. For example, in the imaginary society, one might or might not be intelligent, rich, or born into a preferred class. Since one may occupy any position in the society once the veil is lifted, the device forces the parties to consider society from the perspective of all members, including the worst-off and best-off members.

Applications

Applications of veil of ignorance include policy formulation and implementation. In administration to reduce corruption and improve efficiency.

History

The concept of the veil of ignorance has been in use by other names for centuries by philosophers such as John Stuart Mill and Immanuel Kant whose work discussed the concept of the social contract. John Harsanyi helped to formalize the concept in economics. The modern usage was developed by John Rawls in his 1971 book *A Theory of Justice*.

3 Crito (Plato)

Plato³ (/ˈpleɪtoʊ/; Greek: Πλάτων *Plátōn*, pronounced [plá.tɔːn] in Classical Attic; 428/427 or 424/423 – 348/347 BC) was a philosopher in Classical Greece and the founder of the Academy in Athens, the first institution of higher learning in the Western world. He is widely considered the most pivotal figure in the development of philosophy, especially the Western tradition. Unlike nearly all of his philosophical contemporaries, Plato's entire work is believed to have survived intact for over 2,400 years. Others believe that the oldest extant manuscript dates to around AD 895, 1100 years after Plato's death. This makes it difficult to know exactly what Plato wrote.

Along with his teacher, Socrates, and his most famous student, Aristotle, Plato laid the very foundations of Western philosophy and science. Alfred North Whitehead once noted: "the safest general characterization of the European philosophical tradition is that it consists of a series of footnotes to Plato." In addition to being a foundational figure for Western science, philosophy, and mathematics, Plato has also often been cited as one of the founders of Western religion and spirituality. Plato's influence on Christianity is often thought to be mediated by his major influence on Saint Augustine of Hippo, one of the most important philosophers and theologians in the foundation of the Western thought. In the 19th century, the philosopher Nietzsche called Christianity "Platonism for the people". Numenius of Apamea viewed this differently, he called Plato the Hellenic Moses. This would justify the superiority of Christianity over Hellenism because Moses predates Plato—thus the original source of this wisdom is the root of Christianity and not Hellenistic culture.

Plato was the innovator of the written dialogue and dialectic forms in philosophy. Plato appears to have been the founder of Western political philosophy, with his *Republic*, and *Laws* among other dialogues, providing some of the earliest extant treatments of political questions from a philosophical perspective. Plato's own most decisive philosophical influences are usually thought to have been Socrates, Parmenides, Heraclitus and Pythagoras, although few of his predecessors' works remain extant and much of what we know about these figures today derives from Plato himself.

The *Stanford Encyclopedia of Philosophy* describes Plato as "...one of the most dazzling writers in the Western literary tradition and one of the most penetrating, wide-ranging, and influential authors in the history of philosophy. ... He was not the first thinker or writer to whom the word "philosopher" should be applied. But he was so self-conscious about how philosophy should be conceived, and what its scope and ambitions properly are, and he so transformed the intellectual currents with which he grappled, that the subject of philosophy, as it is often conceived—a rigorous and systematic examination of ethical, political, metaphysical, and epistemological issues, armed with a distinctive method—can be called his invention. Few other authors in the history of Western philosophy approximate him in depth and range: perhaps only Aristotle (who studied with him), Aquinas and Kant would be generally agreed to be of the same rank."

³ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Plato. (2017, August 15). In Wikipedia, The Free Encyclopedia. Retrieved 17:20, August 15, 2017, from <https://en.wikipedia.org/w/index.php?title=Plato&oldid=795632169>

*Crito*⁴

INTRODUCTION

The *Crito* seems intended to exhibit the character of Socrates in one light only, not as the philosopher, fulfilling a divine mission and trusting in the will of heaven, but simply as the good citizen, who having been unjustly condemned is willing to give up his life in obedience to the laws of the state . . .

The days of Socrates are drawing to a close; the fatal ship has been seen off Sunium, as he is informed by his aged friend and contemporary Crito, who visits him before the dawn has broken; he himself has been warned in a dream that on the third day he must depart. Time is precious, and Crito has come early in order to gain his consent to a plan of escape. This can be easily accomplished by his friends, who will incur no danger in making the attempt to save him, but will be disgraced for ever if they allow him to perish. He should think of his duty to his children, and not play into the hands of his enemies. Money is already provided by Crito as well as by Simmias and others, and he will have no difficulty in finding friends in Thessaly and other places.

Socrates is afraid that Crito is but pressing upon him the opinions of the many; whereas, all his life long he has followed the dictates of reason only and the opinion of the one wise or skilled man. There was a time when Crito himself had allowed the propriety of this. And although someone will say ‘the many can kill us,’ that makes no difference; but a good life, in other words, a just and honourable life, is alone to be valued. All considerations of loss of reputation or injury to his children should be dismissed: the only question is whether he would be right in attempting to escape. Crito, who is a disinterested person not having the fear of death before his eyes, shall answer this for him. Before he was condemned they had often held discussions, in which they agreed that no man should either do evil, or return evil for evil, or betray the right. Are these principles to be altered because the circumstances of Socrates are altered? Crito admits that they remain the same. Then is his escape consistent with the maintenance of them? To this Crito is unable or unwilling to reply.

Socrates proceeds:—Suppose the Laws of Athens to come and remonstrate with him: they will ask, ‘Why does he seek to overturn them?’ and if he replies, ‘They have injured him,’ will not the Laws answer, ‘Yes, but was that the agreement? Has he any objection to make to them which would justify him in overturning them? Was he not brought into the world and educated by their help, and are they not his parents? He might have left Athens and gone where he pleased, but he has lived there for seventy years more constantly than any other citizen.’ Thus he has clearly shown that he acknowledged the agreement, which he cannot now break without dishonour to himself and danger to his friends. Even in the course of the trial he might have proposed exile as the penalty, but then he declared that he preferred death to exile. And whither will he direct his footsteps? In any well-ordered state the Laws will consider him as an enemy. Possibly in a land of misrule like Thessaly he may be welcomed at first, and the unseemly narrative of his escape will be regarded by the inhabitants as an amusing tale. But if he offends them he will have to learn another sort of lesson. Will he continue to give lectures in virtue? That would hardly be decent. And how will his children be the gainers if he takes them into Thessaly, and deprives them of Athenian citizenship? Or if he leaves them behind, does he expect that they will be

⁴ Plato, 360 BCE, translated and Introduction by Benjamin Jowett, 1910.

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better taken care of by his friends because he is in Thessaly? Will not true friends care for them equally whether he is alive or dead?

Finally, they exhort him to think of justice first, and of life and children afterwards. He may now depart in peace and innocence, a sufferer and not a doer of evil. But if he breaks agreements, and returns evil for evil, they will be angry with him while he lives; and their brethren the Laws of the world below will receive him as an enemy. Such is the mystic voice which is always murmuring in his ears.

That Socrates was not a good citizen was a charge made against him during his lifetime, which has been often repeated in later ages. The crimes of Alcibiades, Critias, and Charmides, who had been his pupils, were still recent in the memory of the now restored democracy. The fact that he had been neutral in the death-struggle of Athens was not likely to conciliate popular good-will. Plato, writing probably in the next generation, undertakes the defence of his friend and master in this particular, not to the Athenians of his day, but to posterity and the world at large.

Whether such an incident ever really occurred as the visit of Crito and the proposal of escape is uncertain; Plato could easily have invented far more than that; and in the selection of Crito, the aged friend, as the fittest person to make the proposal to Socrates, we seem to recognize the hand of the artist. Whether anyone who has been subjected by the laws of his country to an unjust judgment is right in attempting to escape, is a thesis about which casuists might disagree. Shelley is of opinion that Socrates 'did well to die,' but not for the 'sophistical' reasons which Plato has put into his mouth. And there would be no difficulty in arguing that Socrates should have lived and preferred to a glorious death the good which he might still be able to perform. 'A rhetorician would have had much to say upon that point.' It may be observed however that Plato never intended to answer the question of casuistry, but only to exhibit the ideal of patient virtue which refuses to do the least evil in order to avoid the greatest, and to show his master maintaining in death the opinions which he had professed in his life. Not 'the world,' but the 'one wise man,' is still the paradox of Socrates in his last hours. He must be guided by reason, although her conclusions may be fatal to him. The remarkable sentiment that the wicked can do neither good nor evil is true, if taken in the sense, which he means, of moral evil; in his own words, 'they cannot make a man wise or foolish.'

This little dialogue is a perfect piece of dialectic, in which granting the 'common principle,' there is no escaping from the conclusion. It is anticipated at the beginning by the dream of Socrates and the parody of Homer. The personification of the Laws, and of their brethren the Laws in the world below, is one of the noblest and boldest figures of speech which occur in Plato.

CRITO

PERSONS OF THE DIALOGUE:
Socrates, Crito.

SCENE: *The Prison of Socrates.*

SOCRATES: Why have you come at this hour, Crito? it must be quite early?

CRITO: Yes, certainly.

SOCRATES: What is the exact time?

CRITO: The dawn is breaking.

SOCRATES: I wonder that the keeper of the prison would let you in.

CRITO: He knows me, because I often come, Socrates; moreover, I have done him a kindness.

SOCRATES: And are you only just arrived?

CRITO: No, I came some time ago.

SOCRATES: Then why did you sit and say nothing, instead of at once awakening me?

CRITO: I should not have liked myself, Socrates, to be in such great trouble and unrest as you are—indeed I should not: I have been watching with amazement your peaceful slumbers; and for that reason I did not awake you, because I wished to minimize the pain. I have always thought you to be of a happy disposition; but never did I see anything like the easy, tranquil manner in which you bear this calamity.

SOCRATES: Why, Crito, when a man has reached my age he ought not to be repining at the approach of death.

CRITO: And yet other old men find themselves in similar misfortunes, and age does not prevent them from repining.

SOCRATES: That is true. But you have not told me why you come at this early hour.

CRITO: I come to bring you a message which is sad and painful; not, as I believe, to yourself, but to all of us who are your friends, and saddest of all to me.

SOCRATES: What? Has the ship come from Delos, on the arrival of which I am to die?

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CRITO: No, the ship has not actually arrived, but she will probably be here to-day, as persons who have come from Sunium tell me that they have left her there; and therefore to-morrow, Socrates, will be the last day of your life.

SOCRATES: Very well, Crito; if such is the will of God, I am willing; but my belief is that there will be a delay of a day.

CRITO: Why do you think so?

SOCRATES: I will tell you. I am to die on the day after the arrival of the ship?

CRITO: Yes; that is what the authorities say.

SOCRATES: But I do not think that the ship will be here until to-morrow; this I infer from a vision which I had last night, or rather only just now, when you fortunately allowed me to sleep.

CRITO: And what was the nature of the vision?

SOCRATES: There appeared to me the likeness of a woman, fair and comely, clothed in bright raiment, who called to me and said: O Socrates,

‘The third day hence to fertile Phthia shalt thou go.’

CRITO: What a singular dream, Socrates!

SOCRATES: There can be no doubt about the meaning, Crito, I think.

CRITO: Yes; the meaning is only too clear. But, oh! my beloved Socrates, let me entreat you once more to take my advice and escape. For if you die I shall not only lose a friend who can never be replaced, but there is another evil: people who do not know you and me will believe that I might have saved you if I had been willing to give money, but that I did not care. Now, can there be a worse disgrace than this—that I should be thought to value money more than the life of a friend? For the many will not be persuaded that I wanted you to escape, and that you refused.

SOCRATES: But why, my dear Crito, should we care about the opinion of the many? Good men, and they are the only persons who are worth considering, will think of these things truly as they occurred.

CRITO: But you see, Socrates, that the opinion of the many must be regarded, for what is now happening shows that they can do the greatest evil to anyone who has lost their good opinion.

SOCRATES: I only wish it were so, Crito; and that the many could do the greatest evil; for then they would also be able to do the greatest good—and what a fine thing this would be! But in reality they can do neither; for they cannot make a man either wise or foolish; and whatever they do is the result of chance.

CRITO: Well, I will not dispute with you; but please to tell me, Socrates, whether you are not acting out of regard to me and your other friends: are you not afraid that if you escape from prison we may get into trouble with the informers for having stolen you away, and lose either the whole or a great part of our property; or that even a worse evil may happen to us? Now, if you fear on our account, be at ease; for in order to save you, we ought surely to run this, or even a greater risk; be persuaded, then, and do as I say.

SOCRATES: Yes, Crito, that is one fear which you mention, but by no means the only one.

CRITO: Fear not—there are persons who are willing to get you out of prison at no great cost; and as for the informers, they are far from being exorbitant in their demands—a little money will satisfy them. My means, which are certainly ample, are at your service, and if you have a scruple about spending all mine, here are strangers who will give you the use of theirs; and one of them, Simmias the Theban, has brought a large sum of money for this very purpose; and Cebes and many others are prepared to spend their money in helping you to escape. I say, therefore, do not hesitate on our account, and do not say, as you did in the court that you will have a difficulty in knowing what to do with yourself anywhere else. For men will love you in other places to which you may go, and not in Athens only; there are friends of mine in Thessaly, if you like to go to them, who will value and protect you, and no Thessalian will give you any trouble. Nor can I think that you are at all justified, Socrates, in betraying your own life when you might be saved; in acting thus you are playing into the hands of your enemies, who are hurrying on your destruction. And further I should say that you are deserting your own children; for you might bring them up and educate them; instead of which you go away and leave them, and they will have to take their chance; and if they do not meet with the usual fate of orphans, there will be small thanks to you. No man should bring children into the world who is unwilling to persevere to the end in their nurture and education. But you appear to be choosing the easier part, not the better and manlier, which would have been more becoming in one who professes to care for virtue in all his actions, like yourself. And indeed, I am ashamed not only of you, but of us who are your friends, when I reflect that the whole business will be attributed entirely to our want of courage. The trial need never have come on, or might have been managed differently; and this last act, or crowning folly, will seem to have occurred through our negligence and cowardice, who might have saved you, if we had been good for anything; and you might have saved yourself, for there was no difficulty at all. See now, Socrates, how sad and discreditable are the consequences, both to us and you. Make up your mind then, or rather have your mind already made up, for the time of deliberation is over, and there is only one thing to be done, which must be done this very night, and, if we delay at all, will be no longer practicable or possible; I beseech you therefore, Socrates, be persuaded by me, and do as I say.

SOCRATES: Dear Crito, your zeal is invaluable, if a right one; but if wrong, the greater the zeal the greater the danger; and therefore we ought to consider whether I shall or shall not do as you say. For I am and always have been one of those natures who must be guided by reason, whatever the reason may be which upon reflection appears to me to be the best; and now that this chance has befallen me, I cannot repudiate my own words: the principles which I have hitherto honoured and revered I still honour, and unless we can at once find other and better principles, I am certain not to agree with you; no, not even if the power of the multitude could inflict many more imprisonments, confiscations, deaths, frightening us like children with hobgoblin terrors. What will be the fairest way of considering the question? Shall I return to your old argument about the opinions of men?—we were saying that some of them are to be regarded, and others not. Now were we right in maintaining this before I was condemned? And has the argument which was once good now proved to be talk for the sake of talking—

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mere childish nonsense? That is what I want to consider with your help, Crito:—whether, under my present circumstances, the argument appears to be in any way different or not; and is to be allowed by me or disallowed. That argument, which, as I believe, is maintained by many persons of authority, was to the effect, as I was saying, that the opinions of some men are to be regarded, and of other men not to be regarded. Now you, Crito, are not going to die to-morrow—at least, there is no human probability of this—and therefore you are disinterested and not liable to be deceived by the circumstances in which you are placed. Tell me then, whether I am right in saying that some opinions, and the opinions of some men only, are to be valued, and that other opinions, and the opinions of other men, are not to be valued. I ask you whether I was right in maintaining this?

CRITO: Certainly.

SOCRATES: The good are to be regarded, and not the bad?

CRITO: Yes.

SOCRATES: And the opinions of the wise are good, and the opinions of the unwise are evil?

CRITO: Certainly.

SOCRATES: And what was said about another matter? Is the pupil who devotes himself to the practice of gymnastics supposed to attend to the praise and blame and opinion of every man, or of one man only—his physician or trainer, whoever he may be?

CRITO: Of one man only.

SOCRATES: And he ought to fear the censure and welcome the praise of that one only, and not of the many?

CRITO: Clearly so.

SOCRATES: And he ought to act and train, and eat and drink in the way which seems good to his single master who has understanding, rather than according to the opinion of all other men put together?

CRITO: True.

SOCRATES: And if he disobeys and disregards the opinion and approval of the one, and regards the opinion of the many who have no understanding, will he not suffer evil?

CRITO: Certainly he will.

SOCRATES: And what will the evil be, whither tending and what affecting, in the disobedient person?

CRITO: Clearly, affecting the body; that is what is destroyed by the evil.

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SOCRATES: Very good; and is not this true, Crito, of other things which we need not separately enumerate? In questions of just and unjust, fair and foul, good and evil, which are the subjects of our present consultation, ought we to follow the opinion of the many and to fear them; or the opinion of the one man who has understanding? ought we not to fear and reverence him more than all the rest of the world: and if we desert him shall we not destroy and injure that principle in us which may be assumed to be improved by justice and deteriorated by injustice—there is such a principle?

CRITO: Certainly there is, Socrates.

SOCRATES: Take a parallel instance:—if, acting under the advice of those who have no understanding, we destroy that which is improved by health and is deteriorated by disease, would life be worth having? And that which has been destroyed is—the body?

CRITO: Yes.

SOCRATES: Could we live, having an evil and corrupted body?

CRITO: Certainly not.

SOCRATES: And will life be worth having, if that higher part of man be destroyed, which is improved by justice and depraved by injustice? Do we suppose that principle, whatever it may be in man, which has to do with justice and injustice, to be inferior to the body?

CRITO: Certainly not.

SOCRATES: More honourable than the body?

CRITO: Far more.

SOCRATES: Then, my friend, we must not regard what the many say of us; but what he, the one man who has understanding of just and unjust, will say, and what the truth will say. And therefore you begin in error when you advise that we should regard the opinion of the many about just and unjust, good and evil, honourable and dishonourable.—‘Well,’ someone will say, ‘but the many can kill us.’

CRITO: Yes, Socrates; that will clearly be the answer.

SOCRATES: And it is true; but still I find with surprise that the old argument is unshaken as ever. And I should like to know whether I may say the same of another proposition—that not life, but a good life, is to be chiefly valued?

CRITO: Yes, that also remains unshaken.

SOCRATES: And a good life is equivalent to a just and honourable one—that holds also?

CRITO: Yes, it does.

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SOCRATES: From these premises I proceed to argue the question whether I ought or ought not to try and escape without the consent of the Athenians: and if I am clearly right in escaping, then I will make the attempt; but if not, I will abstain. The other considerations which you mention, of money and loss of character and the duty of educating one's children, are, I fear, only the doctrines of the multitude, who would be as ready to restore people to life, if they were able, as they are to put them to death—and with as little reason. But now, since the argument has thus far prevailed, the only question which remains to be considered is whether we shall do rightly either in escaping or in suffering others to aid in our escape and paying them in money and thanks, or whether in reality we shall not do rightly; and if the latter, then death or any other calamity which may ensue on my remaining here must not be allowed to enter into the calculation.

CRITO: I think that you are right, Socrates; how then shall we proceed?

SOCRATES: Let us consider the matter together, and do you either refute me if you can, and I will be convinced; or else cease, my dear friend, from repeating to me that I ought to escape against the wishes of the Athenians: for I highly value your attempts to persuade me to do so, but I may not be persuaded against my own better judgment. And now please to consider my first position, and try how you can best answer me.

CRITO: I will.

SOCRATES: Are we to say that we are never intentionally to do wrong, or that in one way we ought and in another way we ought not to do wrong, or is doing wrong always evil and dishonourable, as I was just now saying, and as has been already acknowledged by us? Are all our former admissions which were made within a few days to be thrown away? And have we, at our age, been earnestly discoursing with one another all our life long only to discover that we are no better than children? Or, in spite of the opinion of the many, and in spite of consequences whether better or worse, shall we insist on the truth of what was then said, that injustice is always an evil and dishonour to him who acts unjustly? Shall we say so or not?

CRITO: Yes.

SOCRATES: Then we must do no wrong?

CRITO: Certainly not.

SOCRATES: Nor, when injured, injure in return, as the many imagine; for we must injure no one at all?

CRITO: Clearly not.

SOCRATES: Again, Crito, may we do evil?

CRITO: Surely not, Socrates.

SOCRATES: And what of doing evil in return for evil, which is the morality of the many—is that just or not?

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CRITO: Not just.

SOCRATES: For doing evil to another is the same as injuring him?

CRITO: Very true.

SOCRATES: Then we ought not to retaliate or render evil for evil to anyone, whatever evil we may have suffered from him. But I would have you consider, Crito, whether you really mean what you are saying. For this opinion has never been held, and never will be held, by any considerable number of persons; and those who are agreed and those who are not agreed upon this point have no common ground, and can only despise one another when they see how widely they differ. Tell me, then, whether you agree with and assent to my first principle, that neither injury nor retaliation nor warding off evil by evil is ever right. And shall that be the premise of our argument? Or do you decline and dissent from this? For so I have ever thought, and continue to think; but, if you are of another opinion, let me hear what you have to say. If, however, you remain of the same mind as formerly, I will proceed to the next step.

CRITO: You may proceed, for I have not changed my mind.

SOCRATES: Then I will go on to the next point, which may be put in the form of a question:—Ought a man to do what he admits to be right, or ought he to betray the right?

CRITO: He ought to do what he thinks right.

SOCRATES: But if this is true, what is the application? In leaving the prison against the will of the Athenians, do I wrong any? or rather do I not wrong those whom I ought least to wrong? Do I not desert the principles which were acknowledged by us to be just—what do you say?

CRITO: I cannot tell, Socrates; for I do not know.

SOCRATES: Then consider the matter in this way:—Imagine that I am about to play truant (you may call the proceeding by any name which you like), and the laws and the government come and interrogate me: ‘Tell us, Socrates,’ they say; ‘what are you about? are you not going by an act of yours to overturn us—the laws, and the whole state, as far as in you lies? Do you imagine that a state can subsist and not be overthrown, in which the decisions of law have no power, but are set aside and trampled upon by individuals?’ What will be our answer, Crito, to these and the like words? Anyone, and especially a rhetorician, will have a good deal to say on behalf of the law which requires a sentence to be carried out. He will argue that this law should not be set aside; and shall we reply, ‘Yes; but the state has injured us and given an unjust sentence.’ Suppose I say that?

CRITO: Very good, Socrates.

SOCRATES: ‘And was that our agreement with you?’ the law would answer; ‘or were you to abide by the sentence of the state?’ And if I were to express my astonishment at their words, the law would probably add: ‘Answer, Socrates, instead of opening your eyes—you are in the habit of asking and answering questions. Tell us,—What complaint have you to make against us which justifies you in

attempting to destroy us and the state? In the first place did we not bring you into existence? Your father married your mother by our aid and begat you. Say whether you have any objection to urge against those of us who regulate marriage?' None, I should reply. 'Or against those of us who after birth regulate the nurture and education of children, in which you also were trained? Were not the laws, which have the charge of education, right in commanding your father to train you in music and gymnastic?' Right, I should reply. 'Well then, since you were brought into the world and nurtured and educated by us, can you deny in the first place that you are our child and slave, as your fathers were before you? And if this is true you are not on equal terms with us; nor can you think that you have a right to do to us what we are doing to you. Would you have any right to strike or revile or do any other evil to your father or your master, if you had one, because you have been struck or reviled by him, or received some other evil at his hands? You would not say this. And because we think right to destroy you, do you think that you have any right to destroy us in return, and your country as far as in you lies? Will you, O professor of true virtue, pretend that you are justified in this? Has a philosopher like you failed to discover that our country is more to be valued and higher and holier far than mother or father or any ancestor, and more to be regarded in the eyes of the gods and of men of understanding? also to be soothed, and gently and reverently entreated when angry, even more than a father, and either to be persuaded, or if not persuaded, to be obeyed? And when we are punished by her, whether with imprisonment or stripes, the punishment is to be endured in silence; and if she lead us to wounds or death in battle, thither we follow as is right; neither may anyone yield or retreat or leave his rank, but whether in battle or in a court of law, or in any other place, he must do what his city and his country order him; or he must change their view of what is just: and if he may do no violence to his father or mother, much less may he do violence to his country.' What answer shall we make to this, Crito? Do the laws speak truly, or do they not?

CRITO: I think that they do.

SOCRATES: Then the laws will say: 'Consider, Socrates, if we are speaking truly that in your present attempt you are going to do us an injury. For, having brought you into the world, and nurtured and educated you, and given you and every other citizen a share in every good which we had to give, we further proclaim to any Athenian by the liberty which we allow him, that if he does not like us when he has become of age and has seen the ways of the city, and made our acquaintance, he may go where he pleases and take his goods with him. None of us laws will forbid him or interfere with him. Anyone who does not like us and the city, and who wants to emigrate to a colony or to any other city, may go where he likes, retaining his property. But he who has experience of the manner in which we order justice and administer the state, and still remains, has entered into an implied contract that he will do as we command him. And he who disobeys us is, as we maintain, thrice wrong; first, because in disobeying us he is disobeying his parents; secondly, because we are the authors of his education; thirdly, because he has made an agreement with us that he will duly obey our commands; and he neither obeys them nor convinces us that our commands are unjust; and we do not rudely impose them, but give him the alternative of obeying or convincing us;—that is what we offer, and he does neither. These are the sort of accusations to which, as we were saying, you, Socrates, will be exposed if you accomplish your intentions; you, above all other Athenians.'

Suppose now I ask, why I rather than anybody else? they will justly retort upon me that I above all other men have acknowledged the agreement. 'There is clear proof,' they will say, 'Socrates, that we and the city were not displeasing to you. Of all Athenians you have been the most constant resident in the city, which, as you never leave, you may be supposed to love. For you never went out of the city either to see

the games, except once when you went to the Isthmus, or to any other place unless when you were on military service; nor did you travel as other men do. Nor had you any curiosity to know other states or their laws: your affections did not go beyond us and our state; we were your especial favourites, and you acquiesced in our government of you; and here in this city you begat your children, which is a proof of your satisfaction. Moreover, you might in the course of the trial, if you had liked, have fixed the penalty at banishment; the state which refuses to let you go now would have let you go then. But you pretended that you preferred death to exile, and that you were not unwilling to die. And now you have forgotten these fine sentiments, and pay no respect to us the laws, of whom you are the destroyer; and are doing what only a miserable slave would do, running away and turning your back upon the compacts and agreements which you made as a citizen. And first of all answer this very question: Are we right in saying that you agreed to be governed according to us in deed, and not in word only? Is that true or not? How shall we answer, Crito? Must we not assent?

CRITO: We cannot help it, Socrates.

SOCRATES: Then will they not say: 'You, Socrates, are breaking the covenants and agreements which you made with us at your leisure, not in any haste or under any compulsion or deception, but after you have had seventy years to think of them, during which time you were at liberty to leave the city, if we were not to your mind, or if our covenants appeared to you to be unfair. You had your choice, and might have gone either to Lacedaemon or Crete, both which states are often praised by you for their good government, or to some other Hellenic or foreign state. Whereas you, above all other Athenians, seemed to be so fond of the state, or, in other words, of us, her laws (and who would care about a state which has no laws?), that you never stirred out of her; the halt, the blind, the maimed were not more stationary in her than you were. And now you run away and forsake your agreements. Not so, Socrates, if you will take our advice; do not make yourself ridiculous by escaping out of the city.

'For just consider, if you transgress and err in this sort of way, what good will you do either to yourself or to your friends? That your friends will be driven into exile and deprived of citizenship, or will lose their property, is tolerably certain; and you yourself, if you fly to one of the neighbouring cities, as, for example, Thebes or Megara, both of which are well governed, will come to them as an enemy, Socrates, and their government will be against you, and all patriotic citizens will cast an evil eye upon you as a subverter of the laws, and you will confirm in the minds of the judges the justice of their own condemnation of you. For he who is a corrupter of the laws is more than likely to be a corrupter of the young and foolish portion of mankind. Will you then flee from well-ordered cities and virtuous men? and is existence worth having on these terms? Or will you go to them without shame, and talk to them, Socrates? And what will you say to them? What you say here about virtue and justice and institutions and laws being the best things among men? Would that be decent of you? Surely not. But if you go away from well-governed states to Crito's friends in Thessaly, where there is great disorder and licence, they will be charmed to hear the tale of your escape from prison, set off with ludicrous particulars of the manner in which you were wrapped in a goatskin or some other disguise, and metamorphosed as the manner is of runaways; but will there be no one to remind you that in your old age you were not ashamed to violate the most sacred laws from a miserable desire of a little more life? Perhaps not, if you keep them in a good temper; but if they are out of temper you will hear many degrading things; you will live, but how?—as the flatterer of all men, and the servant of all men; and doing what?—eating and drinking in Thessaly, having gone abroad in order that you may get a dinner. And where will be your fine sentiments about justice and virtue? Say that you wish to live for the sake of your children—you

want to bring them up and educate them—will you take them into Thessaly and deprive them of Athenian citizenship? Is this the benefit which you will confer upon them? Or are you under the impression that they will be better cared for and educated here if you are still alive, although absent from them; for your friends will take care of them? Do you fancy that if you are an inhabitant of Thessaly they will take care of them, and if you are an inhabitant of the other world that they will not take care of them? Nay; but if they who call themselves friends are good for anything, they will—to be sure they will.

‘Listen, then, Socrates, to us who have brought you up. Think not of life and children first, and of justice afterwards, but of justice first, that you may be justified before the princes of the world below. For neither will you nor any that belong to you be happier or holier or juster in this life, or happier in another, if you do as Crito bids. Now you depart in innocence, a sufferer and not a doer of evil; a victim, not of the laws, but of men. But if you go forth, returning evil for evil, and injury for injury, breaking the covenants and agreements which you have made with us, and wronging those whom you ought least of all to wrong, that is to say, yourself, your friends, your country, and us, we shall be angry with you while you live, and our brethren, the laws in the world below, will receive you as an enemy; for they will know that you have done your best to destroy us. Listen, then, to us and not to Crito.’

This, dear Crito, is the voice which I seem to hear murmuring in my ears, like the sound of the flute in the ears of the mystic; that voice, I say, is humming in my ears, and prevents me from hearing any other. And I know that anything more which you may say will be vain. Yet speak, if you have anything to say.

CRITO: I have nothing to say, Socrates.

SOCRATES: Leave me then, Crito, to fulfil the will of God, and to follow whither he leads.

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1. See *Phaedrus*
 2. See *Prose Works*
 3. Homer, *Iliad*, IX
 4. Cp. *Apology*
 5. Cp. *Apology*
 6. Cp. *Republic*
 7. Cp. *Phaedrus*
 8. Cp. *Apology*

4 Politics, Books I & II (Aristotle)

Aristotle¹ (/ˈærɪˌstɒtəl/; Greek: Ἀριστοτέλης, pronounced [aristotélɛːs], *Aristotélēs*; 384–322 BC) was an ancient Greek philosopher and scientist born in the city of Stagira, Chalkidice, on the northern periphery of Classical Greece. His father, Nicomachus, died when Aristotle was a child, whereafter Proxenus of Atarneus became his guardian. At seventeen or eighteen years of age, he joined Plato's Academy in Athens and remained there until the age of thirty-seven (c. 347 BC). His writings cover many subjects – including physics, biology, zoology, metaphysics, logic, ethics, aesthetics, poetry, theater, music, rhetoric, linguistics, politics and government – and constitute the first comprehensive system of Western philosophy. Shortly after Plato died, Aristotle left Athens and, at the request of Philip II of Macedon, tutored Alexander the Great beginning in 343 BC.

Teaching Alexander the Great gave Aristotle many opportunities and an abundance of supplies. He established a library in the Lyceum which aided in the production of many of his hundreds of books, which were written on papyrus scrolls. The fact that Aristotle was a pupil of Plato contributed to his former views of Platonism, but, following Plato's death, Aristotle immersed himself in empirical studies and shifted from Platonism to empiricism. He believed all peoples' concepts and all of their knowledge was ultimately based on perception. Aristotle's views on natural sciences represent the groundwork underlying many of his works.

Aristotle's views on physical science profoundly shaped medieval scholarship. Their influence extended from Late Antiquity and the Early Middle Ages into the Renaissance, and were not replaced systematically until the Enlightenment and theories such as classical mechanics. Some of Aristotle's zoological observations, such as on the hectocotyl (reproductive) arm of the octopus, were not confirmed or refuted until the 19th century. His works contain the earliest known formal study of logic, which was incorporated in the late 19th century into modern formal logic.

In metaphysics, Aristotelianism profoundly influenced Jewish and Islamic philosophical and theological thought during the Middle Ages and continues to influence Christian theology, especially the Neoplatonism of the Early Church and the scholastic tradition of the Roman Catholic Church. Aristotle was well known among medieval Muslim scholars, and has been revered as "The First Teacher" (Arabic: المعلم الأول).

His ethics, though always influential, gained renewed interest with the modern advent of virtue ethics. All aspects of Aristotle's philosophy continue to be the object of active academic study today. Though Aristotle wrote many elegant treatises and dialogues – Cicero described his literary style as "a river of gold" – it is thought that only around a third of his original output has survived.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Aristotle. (2017, August 15). In Wikipedia, The Free Encyclopedia. Retrieved 17:23, August 15, 2017, from <https://en.wikipedia.org/w/index.php?title=Aristotle&oldid=795627522>

*Politics*²

Book I

Part I

Every state is a community of some kind, and every community is established with a view to some good; for mankind always act in order to obtain that which they think good. But, if all communities aim at some good, the state or political community, which is the highest of all, and which embraces all the rest, aims at good in a greater degree than any other, and at the highest good.

Some people think that the qualifications of a statesman, king, householder, and master are the same, and that they differ, not in kind, but only in the number of their subjects. For example, the ruler over a few is called a master; over more, the manager of a household; over a still larger number, a statesman or king, as if there were no difference between a great household and a small state. The distinction which is made between the king and the statesman is as follows: When the government is personal, the ruler is a king; when, according to the rules of the political science, the citizens rule and are ruled in turn, then he is called a statesman.

But all this is a mistake; for governments differ in kind, as will be evident to any one who considers the matter according to the method which has hitherto guided us. As in other departments of science, so in politics, the compound should always be resolved into the simple elements or least parts of the whole. We must therefore look at the elements of which the state is composed, in order that we may see in what the different kinds of rule differ from one another, and whether any scientific result can be attained about each one of them.

Part II

He who thus considers things in their first growth and origin, whether a state or anything else, will obtain the clearest view of them. In the first place there must be a union of those who cannot exist without each other; namely, of male and female, that the race may continue (and this is a union which is formed, not of deliberate purpose, but because, in common with other animals and with plants, mankind have a natural desire to leave behind them an image of themselves), and of natural ruler and subject, that both may be preserved. For that which can foresee by the exercise of mind is by nature intended to be lord and master, and that which can with its body give effect to such foresight is a subject, and by nature a slave; hence master and slave have the same interest. Now nature has distinguished between the female and the slave. For she is not niggardly, like the smith who fashions the Delphian knife for many uses; she makes each thing for a single use, and every instrument is best made when intended for one and not for many uses. But among barbarians no distinction is made between women and slaves, because there is no natural ruler among them: they are a community of slaves, male and female. Wherefore the poets say,

"It is meet that Hellenes should rule over barbarians; "

² Aristotle, 350 BCE, translated by Benjamin Jowett, 1885.

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as if they thought that the barbarian and the slave were by nature one.

Out of these two relationships between man and woman, master and slave, the first thing to arise is the family, and Hesiod is right when he says,

"First house and wife and an ox for the plough, "

for the ox is the poor man's slave. The family is the association established by nature for the supply of men's everyday wants, and the members of it are called by Charondas 'companions of the cupboard,' and by Epimenides the Cretan, 'companions of the manger.' But when several families are united, and the association aims at something more than the supply of daily needs, the first society to be formed is the village. And the most natural form of the village appears to be that of a colony from the family, composed of the children and grandchildren, who are said to be suckled 'with the same milk.' And this is the reason why Hellenic states were originally governed by kings; because the Hellenes were under royal rule before they came together, as the barbarians still are. Every family is ruled by the eldest, and therefore in the colonies of the family the kingly form of government prevailed because they were of the same blood. As Homer says:

"Each one gives law to his children and to his wives. "

For they lived dispersedly, as was the manner in ancient times. Wherefore men say that the Gods have a king, because they themselves either are or were in ancient times under the rule of a king. For they imagine, not only the forms of the Gods, but their ways of life to be like their own.

When several villages are united in a single complete community, large enough to be nearly or quite self-sufficing, the state comes into existence, originating in the bare needs of life, and continuing in existence for the sake of a good life. And therefore, if the earlier forms of society are natural, so is the state, for it is the end of them, and the nature of a thing is its end. For what each thing is when fully developed, we call its nature, whether we are speaking of a man, a horse, or a family. Besides, the final cause and end of a thing is the best, and to be self-sufficing is the end and the best.

Hence it is evident that the state is a creation of nature, and that man is by nature a political animal. And he who by nature and not by mere accident is without a state, is either a bad man or above humanity; he is like the

"Tribeless, lawless, hearthless one, "

whom Homer denounces- the natural outcast is forthwith a lover of war; he may be compared to an isolated piece at draughts.

Now, that man is more of a political animal than bees or any other gregarious animals is evident. Nature, as we often say, makes nothing in vain, and man is the only animal whom she has endowed with the gift of speech. And whereas mere voice is but an indication of pleasure or pain, and is therefore found in other animals (for their nature attains to the perception of pleasure and pain and the intimation of them to one another, and no further), the power of speech is intended to set forth the expedient and inexpedient, and therefore likewise the just and the unjust. And it is a characteristic of man that he alone

has any sense of good and evil, of just and unjust, and the like, and the association of living beings who have this sense makes a family and a state.

Further, the state is by nature clearly prior to the family and to the individual, since the whole is of necessity prior to the part; for example, if the whole body be destroyed, there will be no foot or hand, except in an equivocal sense, as we might speak of a stone hand; for when destroyed the hand will be no better than that. But things are defined by their working and power; and we ought not to say that they are the same when they no longer have their proper quality, but only that they have the same name. The proof that the state is a creation of nature and prior to the individual is that the individual, when isolated, is not self-sufficing; and therefore he is like a part in relation to the whole. But he who is unable to live in society, or who has no need because he is sufficient for himself, must be either a beast or a god: he is no part of a state. A social instinct is implanted in all men by nature, and yet he who first founded the state was the greatest of benefactors. For man, when perfected, is the best of animals, but, when separated from law and justice, he is the worst of all; since armed injustice is the more dangerous, and he is equipped at birth with arms, meant to be used by intelligence and virtue, which he may use for the worst ends. Wherefore, if he have not virtue, he is the most unholy and the most savage of animals, and the most full of lust and gluttony. But justice is the bond of men in states, for the administration of justice, which is the determination of what is just, is the principle of order in political society.

Part III

Seeing then that the state is made up of households, before speaking of the state we must speak of the management of the household. The parts of household management correspond to the persons who compose the household, and a complete household consists of slaves and freemen. Now we should begin by examining everything in its fewest possible elements; and the first and fewest possible parts of a family are master and slave, husband and wife, father and children. We have therefore to consider what each of these three relations is and ought to be: I mean the relation of master and servant, the marriage relation (the conjunction of man and wife has no name of its own), and thirdly, the procreative relation (this also has no proper name). And there is another element of a household, the so-called art of getting wealth, which, according to some, is identical with household management, according to others, a principal part of it; the nature of this art will also have to be considered by us.

Let us first speak of master and slave, looking to the needs of practical life and also seeking to attain some better theory of their relation than exists at present. For some are of opinion that the rule of a master is a science, and that the management of a household, and the mastership of slaves, and the political and royal rule, as I was saying at the outset, are all the same. Others affirm that the rule of a master over slaves is contrary to nature, and that the distinction between slave and freeman exists by law only, and not by nature; and being an interference with nature is therefore unjust.

Part IV

Property is a part of the household, and the art of acquiring property is a part of the art of managing the household; for no man can live well, or indeed live at all, unless he be provided with necessities. And as in the arts which have a definite sphere the workers must have their own proper instruments for the accomplishment of their work, so it is in the management of a household. Now instruments are of various sorts; some are living, others lifeless; in the rudder, the pilot of a ship has a lifeless, in the look-

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out man, a living instrument; for in the arts the servant is a kind of instrument. Thus, too, a possession is an instrument for maintaining life. And so, in the arrangement of the family, a slave is a living possession, and property a number of such instruments; and the servant is himself an instrument which takes precedence of all other instruments. For if every instrument could accomplish its own work, obeying or anticipating the will of others, like the statues of Daedalus, or the tripods of Hephaestus, which, says the poet,

"of their own accord entered the assembly of the Gods; "

if, in like manner, the shuttle would weave and the plectrum touch the lyre without a hand to guide them, chief workmen would not want servants, nor masters slaves. Here, however, another distinction must be drawn; the instruments commonly so called are instruments of production, whilst a possession is an instrument of action. The shuttle, for example, is not only of use; but something else is made by it, whereas of a garment or of a bed there is only the use. Further, as production and action are different in kind, and both require instruments, the instruments which they employ must likewise differ in kind. But life is action and not production, and therefore the slave is the minister of action. Again, a possession is spoken of as a part is spoken of; for the part is not only a part of something else, but wholly belongs to it; and this is also true of a possession. The master is only the master of the slave; he does not belong to him, whereas the slave is not only the slave of his master, but wholly belongs to him. Hence we see what is the nature and office of a slave; he who is by nature not his own but another's man, is by nature a slave; and he may be said to be another's man who, being a human being, is also a possession. And a possession may be defined as an instrument of action, separable from the possessor.

Part V

But is there any one thus intended by nature to be a slave, and for whom such a condition is expedient and right, or rather is not all slavery a violation of nature?

There is no difficulty in answering this question, on grounds both of reason and of fact. For that some should rule and others be ruled is a thing not only necessary, but expedient; from the hour of their birth, some are marked out for subjection, others for rule.

And there are many kinds both of rulers and subjects (and that rule is the better which is exercised over better subjects- for example, to rule over men is better than to rule over wild beasts; for the work is better which is executed by better workmen, and where one man rules and another is ruled, they may be said to have a work); for in all things which form a composite whole and which are made up of parts, whether continuous or discrete, a distinction between the ruling and the subject element comes to light. Such a duality exists in living creatures, but not in them only; it originates in the constitution of the universe; even in things which have no life there is a ruling principle, as in a musical mode. But we are wandering from the subject. We will therefore restrict ourselves to the living creature, which, in the first place, consists of soul and body: and of these two, the one is by nature the ruler, and the other the subject. But then we must look for the intentions of nature in things which retain their nature, and not in things which are corrupted. And therefore we must study the man who is in the most perfect state both of body and soul, for in him we shall see the true relation of the two; although in bad or corrupted natures the body will often appear to rule over the soul, because they are in an evil and unnatural condition. At all events we may firstly observe in living creatures both a despotical and a constitutional

rule; for the soul rules the body with a despotical rule, whereas the intellect rules the appetites with a constitutional and royal rule. And it is clear that the rule of the soul over the body, and of the mind and the rational element over the passionate, is natural and expedient; whereas the equality of the two or the rule of the inferior is always hurtful. The same holds good of animals in relation to men; for tame animals have a better nature than wild, and all tame animals are better off when they are ruled by man; for then they are preserved. Again, the male is by nature superior, and the female inferior; and the one rules, and the other is ruled; this principle, of necessity, extends to all mankind.

Where then there is such a difference as that between soul and body, or between men and animals (as in the case of those whose business is to use their body, and who can do nothing better), the lower sort are by nature slaves, and it is better for them as for all inferiors that they should be under the rule of a master. For he who can be, and therefore is, another's and he who participates in rational principle enough to apprehend, but not to have, such a principle, is a slave by nature. Whereas the lower animals cannot even apprehend a principle; they obey their instincts. And indeed the use made of slaves and of tame animals is not very different; for both with their bodies minister to the needs of life. Nature would like to distinguish between the bodies of freemen and slaves, making the one strong for servile labor, the other upright, and although useless for such services, useful for political life in the arts both of war and peace. But the opposite often happens- that some have the souls and others have the bodies of freemen. And doubtless if men differed from one another in the mere forms of their bodies as much as the statues of the Gods do from men, all would acknowledge that the inferior class should be slaves of the superior. And if this is true of the body, how much more just that a similar distinction should exist in the soul? but the beauty of the body is seen, whereas the beauty of the soul is not seen. It is clear, then, that some men are by nature free, and others slaves, and that for these latter slavery is both expedient and right.

Part VI

But that those who take the opposite view have in a certain way right on their side, may be easily seen. For the words slavery and slave are used in two senses. There is a slave or slavery by law as well as by nature. The law of which I speak is a sort of convention- the law by which whatever is taken in war is supposed to belong to the victors. But this right many jurists impeach, as they would an orator who brought forward an unconstitutional measure: they detest the notion that, because one man has the power of doing violence and is superior in brute strength, another shall be his slave and subject. Even among philosophers there is a difference of opinion. The origin of the dispute, and what makes the views invade each other's territory, is as follows: in some sense virtue, when furnished with means, has actually the greatest power of exercising force; and as superior power is only found where there is superior excellence of some kind, power seems to imply virtue, and the dispute to be simply one about justice (for it is due to one party identifying justice with goodwill while the other identifies it with the mere rule of the stronger). If these views are thus set out separately, the other views have no force or plausibility against the view that the superior in virtue ought to rule, or be master. Others, clinging, as they think, simply to a principle of justice (for law and custom are a sort of justice), assume that slavery in accordance with the custom of war is justified by law, but at the same moment they deny this. For what if the cause of the war be unjust? And again, no one would ever say he is a slave who is unworthy to be a slave. Were this the case, men of the highest rank would be slaves and the children of slaves if they or their parents chance to have been taken captive and sold. Wherefore Hellenes do not like to call Hellenes slaves, but confine the term to barbarians. Yet, in using this language, they really mean the natural slave of whom we spoke at first; for it must be admitted that some are slaves everywhere, others nowhere. The

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same principle applies to nobility. Hellenes regard themselves as noble everywhere, and not only in their own country, but they deem the barbarians noble only when at home, thereby implying that there are two sorts of nobility and freedom, the one absolute, the other relative. The Helen of Theodectes says:

"Who would presume to call me servant who am on both sides sprung from the stem of the Gods? "

What does this mean but that they distinguish freedom and slavery, noble and humble birth, by the two principles of good and evil? They think that as men and animals beget men and animals, so from good men a good man springs. But this is what nature, though she may intend it, cannot always accomplish.

We see then that there is some foundation for this difference of opinion, and that all are not either slaves by nature or freemen by nature, and also that there is in some cases a marked distinction between the two classes, rendering it expedient and right for the one to be slaves and the others to be masters: the one practicing obedience, the others exercising the authority and lordship which nature intended them to have. The abuse of this authority is injurious to both; for the interests of part and whole, of body and soul, are the same, and the slave is a part of the master, a living but separated part of his bodily frame. Hence, where the relation of master and slave between them is natural they are friends and have a common interest, but where it rests merely on law and force the reverse is true.

Book II

Part I

Our purpose is to consider what form of political community is best of all for those who are most able to realize their ideal of life. We must therefore examine not only this but other constitutions, both such as actually exist in well-governed states, and any theoretical forms which are held in esteem; that what is good and useful may be brought to light. And let no one suppose that in seeking for something beyond them we are anxious to make a sophistical display at any cost; we only undertake this inquiry because all the constitutions with which we are acquainted are faulty.

We will begin with the natural beginning of the subject. Three alternatives are conceivable: The members of a state must either have (1) all things or (2) nothing in common, or (3) some things in common and some not. That they should have nothing in common is clearly impossible, for the constitution is a community, and must at any rate have a common place- one city will be in one place, and the citizens are those who share in that one city. But should a well ordered state have all things, as far as may be, in common, or some only and not others? For the citizens might conceivably have wives and children and property in common, as Socrates proposes in the Republic of Plato. Which is better, our present condition, or the proposed new order of society.

Part II

There are many difficulties in the community of women. And the principle on which Socrates rests the necessity of such an institution evidently is not established by his arguments. Further, as a means to the end which he ascribes to the state, the scheme, taken literally is impracticable, and how we are to interpret it is nowhere precisely stated. I am speaking of the premise from which the argument of Socrates proceeds, 'that the greater the unity of the state the better.' Is it not obvious that a state may at

length attain such a degree of unity as to be no longer a state? since the nature of a state is to be a plurality, and in tending to greater unity, from being a state, it becomes a family, and from being a family, an individual; for the family may be said to be more than the state, and the individual than the family. So that we ought not to attain this greatest unity even if we could, for it would be the destruction of the state. Again, a state is not made up only of so many men, but of different kinds of men; for similars do not constitute a state. It is not like a military alliance The usefulness of the latter depends upon its quantity even where there is no difference in quality (for mutual protection is the end aimed at), just as a greater weight of anything is more useful than a less (in like manner, a state differs from a nation, when the nation has not its population organized in villages, but lives an Arcadian sort of life); but the elements out of which a unity is to be formed differ in kind. Wherefore the principle of compensation, as I have already remarked in the Ethics, is the salvation of states. Even among freemen and equals this is a principle which must be maintained, for they cannot an rule together, but must change at the end of a year or some other period of time or in some order of succession. The result is that upon this plan they all govern; just as if shoemakers and carpenters were to exchange their occupations, and the same persons did not always continue shoemakers and carpenters. And since it is better that this should be so in politics as well, it is clear that while there should be continuance of the same persons in power where this is possible, yet where this is not possible by reason of the natural equality of the citizens, and at the same time it is just that an should share in the government (whether to govern be a good thing or a bad), an approximation to this is that equals should in turn retire from office and should, apart from official position, be treated alike. Thus the one party rule and the others are ruled in turn, as if they were no longer the same persons. In like manner when they hold office there is a variety in the offices held. Hence it is evident that a city is not by nature one in that sense which some persons affirm; and that what is said to be the greatest good of cities is in reality their destruction; but surely the good of things must be that which preserves them. Again, in another point of view, this extreme unification of the state is clearly not good; for a family is more self-sufficing than an individual, and a city than a family, and a city only comes into being when the community is large enough to be self-sufficing. If then self-sufficiency is to be desired, the lesser degree of unity is more desirable than the greater.

Part III

But, even supposing that it were best for the community to have the greatest degree of unity, this unity is by no means proved to follow from the fact 'of all men saying "mine" and "not mine" at the same instant of time,' which, according to Socrates, is the sign of perfect unity in a state. For the word 'all' is ambiguous. If the meaning be that every individual says 'mine' and 'not mine' at the same time, then perhaps the result at which Socrates aims may be in some degree accomplished; each man will call the same person his own son and the same person his wife, and so of his property and of all that falls to his lot. This, however, is not the way in which people would speak who had their had their wives and children in common; they would say 'all' but not 'each.' In like manner their property would be described as belonging to them, not severally but collectively. There is an obvious fallacy in the term 'all': like some other words, 'both,' 'odd,' 'even,' it is ambiguous, and even in abstract argument becomes a source of logical puzzles. That all persons call the same thing mine in the sense in which each does so may be a fine thing, but it is impracticable; or if the words are taken in the other sense, such a unity in no way conduces to harmony. And there is another objection to the proposal. For that which is common to the greatest number has the least care bestowed upon it. Every one thinks chiefly of his own, hardly at all of the common interest; and only when he is himself concerned as an individual. For besides other

considerations, everybody is more inclined to neglect the duty which he expects another to fulfill; as in families many attendants are often less useful than a few. Each citizen will have a thousand sons who will not be his sons individually but anybody will be equally the son of anybody, and will therefore be neglected by all alike. Further, upon this principle, every one will use the word 'mine' of one who is prospering or the reverse, however small a fraction he may himself be of the whole number; the same boy will be 'so and so's son,' the son of each of the thousand, or whatever be the number of the citizens; and even about this he will not be positive; for it is impossible to know who chanced to have a child, or whether, if one came into existence, it has survived. But which is better- for each to say 'mine' in this way, making a man the same relation to two thousand or ten thousand citizens, or to use the word 'mine' in the ordinary and more restricted sense? For usually the same person is called by one man his own son whom another calls his own brother or cousin or kinsman- blood relation or connection by marriage either of himself or of some relation of his, and yet another his clansman or tribesman; and how much better is it to be the real cousin of somebody than to be a son after Plato's fashion! Nor is there any way of preventing brothers and children and fathers and mothers from sometimes recognizing one another; for children are born like their parents, and they will necessarily be finding indications of their relationship to one another. Geographers declare such to be the fact; they say that in part of Upper Libya, where the women are common, nevertheless the children who are born are assigned to their respective fathers on the ground of their likeness. And some women, like the females of other animals- for example, mares and cows- have a strong tendency to produce offspring resembling their parents, as was the case with the Pharsalian mare called Honest.

Part IV

Other evils, against which it is not easy for the authors of such a community to guard, will be assaults and homicides, voluntary as well as involuntary, quarrels and slanders, all which are most unholy acts when committed against fathers and mothers and near relations, but not equally unholy when there is no relationship. Moreover, they are much more likely to occur if the relationship is unknown, and, when they have occurred, the customary expiations of them cannot be made. Again, how strange it is that Socrates, after having made the children common, should hinder lovers from carnal intercourse only, but should permit love and familiarities between father and son or between brother and brother, than which nothing can be more unseemly, since even without them love of this sort is improper. How strange, too, to forbid intercourse for no other reason than the violence of the pleasure, as though the relationship of father and son or of brothers with one another made no difference.

This community of wives and children seems better suited to the husbandmen than to the guardians, for if they have wives and children in common, they will be bound to one another by weaker ties, as a subject class should be, and they will remain obedient and not rebel. In a word, the result of such a law would be just the opposite of which good laws ought to have, and the intention of Socrates in making these regulations about women and children would defeat itself. For friendship we believe to be the greatest good of states and the preservative of them against revolutions; neither is there anything which Socrates so greatly lauds as the unity of the state which he and all the world declare to be created by friendship. But the unity which he commends would be like that of the lovers in the Symposium, who, as Aristophanes says, desire to grow together in the excess of their affection, and from being two to become one, in which case one or both would certainly perish. Whereas in a state having women and children common, love will be watery; and the father will certainly not say 'my son,' or the son 'my father.' As a little sweet wine mingled with a great deal of water is imperceptible in the mixture, so, in

this sort of community, the idea of relationship which is based upon these names will be lost; there is no reason why the so-called father should care about the son, or the son about the father, or brothers about one another. Of the two qualities which chiefly inspire regard and affection- that a thing is your own and that it is your only one-neither can exist in such a state as this.

Again, the transfer of children as soon as they are born from the rank of husbandmen or of artisans to that of guardians, and from the rank of guardians into a lower rank, will be very difficult to arrange; the givers or transferrers cannot but know whom they are giving and transferring, and to whom. And the previously mentioned evils, such as assaults, unlawful loves, homicides, will happen more often amongst those who are transferred to the lower classes, or who have a place assigned to them among the guardians; for they will no longer call the members of the class they have left brothers, and children, and fathers, and mothers, and will not, therefore, be afraid of committing any crimes by reason of consanguinity. Touching the community of wives and children, let this be our conclusion.

Part V

Next let us consider what should be our arrangements about property: should the citizens of the perfect state have their possessions in common or not? This question may be discussed separately from the enactments about women and children. Even supposing that the women and children belong to individuals, according to the custom which is at present universal, may there not be an advantage in having and using possessions in common? Three cases are possible: (1) the soil may be appropriated, but the produce may be thrown for consumption into the common stock; and this is the practice of some nations. Or (2), the soil may be common, and may be cultivated in common, but the produce divided among individuals for their private use; this is a form of common property which is said to exist among certain barbarians. Or (3), the soil and the produce may be alike common.

When the husbandmen are not the owners, the case will be different and easier to deal with; but when they till the ground for themselves the question of ownership will give a world of trouble. If they do not share equally enjoyments and toils, those who labor much and get little will necessarily complain of those who labor little and receive or consume much. But indeed there is always a difficulty in men living together and having all human relations in common, but especially in their having common property. The partnerships of fellow-travelers are an example to the point; for they generally fall out over everyday matters and quarrel about any trifle which turns up. So with servants: we are most able to take offense at those with whom we most frequently come into contact in daily life.

These are only some of the disadvantages which attend the community of property; the present arrangement, if improved as it might be by good customs and laws, would be far better, and would have the advantages of both systems. Property should be in a certain sense common, but, as a general rule, private; for, when everyone has a distinct interest, men will not complain of one another, and they will make more progress, because every one will be attending to his own business. And yet by reason of goodness, and in respect of use, 'Friends,' as the proverb says, 'will have all things common.' Even now there are traces of such a principle, showing that it is not impracticable, but, in well-ordered states, exists already to a certain extent and may be carried further. For, although every man has his own property, some things he will place at the disposal of his friends, while of others he shares the use with them. The Lacedaemonians, for example, use one another's slaves, and horses, and dogs, as if they were their own; and when they lack provisions on a journey, they appropriate what they find in the fields throughout the

country. It is clearly better that property should be private, but the use of it common; and the special business of the legislator is to create in men this benevolent disposition. Again, how immeasurably greater is the pleasure, when a man feels a thing to be his own; for surely the love of self is a feeling implanted by nature and not given in vain, although selfishness is rightly censured; this, however, is not the mere love of self, but the love of self in excess, like the miser's love of money; for all, or almost all, men love money and other such objects in a measure. And further, there is the greatest pleasure in doing a kindness or service to friends or guests or companions, which can only be rendered when a man has private property. These advantages are lost by excessive unification of the state. The exhibition of two virtues, besides, is visibly annihilated in such a state: first, temperance towards women (for it is an honorable action to abstain from another's wife for temperance' sake); secondly, liberality in the matter of property. No one, when men have all things in common, will any longer set an example of liberality or do any liberal action; for liberality consists in the use which is made of property.

Such legislation may have a specious appearance of benevolence; men readily listen to it, and are easily induced to believe that in some wonderful manner everybody will become everybody's friend, especially when some one is heard denouncing the evils now existing in states, suits about contracts, convictions for perjury, flatteries of rich men and the like, which are said to arise out of the possession of private property. These evils, however, are due to a very different cause- the wickedness of human nature. Indeed, we see that there is much more quarrelling among those who have all things in common, though there are not many of them when compared with the vast numbers who have private property.

Again, we ought to reckon, not only the evils from which the citizens will be saved, but also the advantages which they will lose. The life which they are to lead appears to be quite impracticable. The error of Socrates must be attributed to the false notion of unity from which he starts. Unity there should be, both of the family and of the state, but in some respects only. For there is a point at which a state may attain such a degree of unity as to be no longer a state, or at which, without actually ceasing to exist, it will become an inferior state, like harmony passing into unison, or rhythm which has been reduced to a single foot. The state, as I was saying, is a plurality which should be united and made into a community by education; and it is strange that the author of a system of education which he thinks will make the state virtuous, should expect to improve his citizens by regulations of this sort, and not by philosophy or by customs and laws, like those which prevail at Sparta and Crete respecting common meals, whereby the legislator has made property common. Let us remember that we should not disregard the experience of ages; in the multitude of years these things, if they were good, would certainly not have been unknown; for almost everything has been found out, although sometimes they are not put together; in other cases men do not use the knowledge which they have. Great light would be thrown on this subject if we could see such a form of government in the actual process of construction; for the legislator could not form a state at all without distributing and dividing its constituents into associations for common meals, and into phratries and tribes. But all this legislation ends only in forbidding agriculture to the guardians, a prohibition which the Lacedaemonians try to enforce already.

But, indeed, Socrates has not said, nor is it easy to decide, what in such a community will be the general form of the state. The citizens who are not guardians are the majority, and about them nothing has been determined: are the husbandmen, too, to have their property in common? Or is each individual to have his own? And are the wives and children to be individual or common. If, like the guardians, they are to have all things in common, what do they differ from them, or what will they gain by submitting to their government? Or, upon what principle would they submit, unless indeed the governing class adopt the

ingenious policy of the Cretans, who give their slaves the same institutions as their own, but forbid them gymnastic exercises and the possession of arms. If, on the other hand, the inferior classes are to be like other cities in respect of marriage and property, what will be the form of the community? Must it not contain two states in one, each hostile to the other? He makes the guardians into a mere occupying garrison, while the husbandmen and artisans and the rest are the real citizens. But if so the suits and quarrels, and all the evils which Socrates affirms to exist in other states, will exist equally among them. He says indeed that, having so good an education, the citizens will not need many laws, for example laws about the city or about the markets; but then he confines his education to the guardians. Again, he makes the husbandmen owners of the property upon condition of their paying a tribute. But in that case they are likely to be much more unmanageable and conceited than the Helots, or Penestae, or slaves in general. And whether community of wives and property be necessary for the lower equally with the higher class or not, and the questions akin to this, what will be the education, form of government, laws of the lower class, Socrates has nowhere determined: neither is it easy to discover this, nor is their character of small importance if the common life of the guardians is to be maintained.

Again, if Socrates makes the women common, and retains private property, the men will see to the fields, but who will see to the house? And who will do so if the agricultural class have both their property and their wives in common? Once more: it is absurd to argue, from the analogy of the animals, that men and women should follow the same pursuits, for animals have not to manage a household. The government, too, as constituted by Socrates, contains elements of danger; for he makes the same persons always rule. And if this is often a cause of disturbance among the meaner sort, how much more among high-spirited warriors? But that the persons whom he makes rulers must be the same is evident; for the gold which the God mingles in the souls of men is not at one time given to one, at another time to another, but always to the same: as he says, 'God mingles gold in some, and silver in others, from their very birth; but brass and iron in those who are meant to be artisans and husbandmen.' Again, he deprives the guardians even of happiness, and says that the legislator ought to make the whole state happy. But the whole cannot be happy unless most, or all, or some of its parts enjoy happiness. In this respect happiness is not like the even principle in numbers, which may exist only in the whole, but in neither of the parts; not so happiness. And if the guardians are not happy, who are? Surely not the artisans, or the common people. The Republic of which Socrates discourses has all these difficulties, and others quite as great.

5 The Prince (Niccoló Machiavelli)

Niccolò di Bernardo dei Machiavelli¹ (Italian: [nikko 'lɔ mmakja 'velli]; 3 May 1469 – 21 June 1527) was an Italian diplomat, politician, historian, philosopher, humanist, and writer of the Renaissance period. He has often been called the father of modern political science. He was for many years a senior official in the Florentine Republic, with responsibilities in diplomatic and military affairs. He also wrote comedies, carnival songs, and poetry. His personal correspondence is renowned in the Italian language. He was secretary to the Second Chancery of the Republic of Florence from 1498 to 1512, when the Medici were out of power. He wrote his most renowned work *The Prince* (*Il Principe*) in 1513.

"Machiavellianism" is a widely used negative term to characterize unscrupulous politicians of the sort Machiavelli described most famously in *The Prince*. Machiavelli described immoral behavior, such as dishonesty and killing innocents, as being normal and effective in politics. He even seemed to endorse it in some situations. The book itself gained notoriety when some readers claimed that the author was teaching evil, and providing "evil recommendations to tyrants to help them maintain their power." The term "Machiavellian" is often associated with political deceit, deviousness, and *realpolitik*. On the other hand, many commentators, such as Baruch Spinoza, Jean-Jacques Rousseau and Denis Diderot, have argued that Machiavelli was actually a republican, even when writing *The Prince*, and his writings were an inspiration to Enlightenment proponents of modern democratic political philosophy. In one place for example he noted his admiration for the selfless Roman dictator Cincinnatus.

*The Prince*²

CHAPTER V

Concerning The Way To Govern Cities Or Principalities Which Lived Under Their Own Laws Before They Were Annexed

WHENEVER those states which have been acquired as stated have been accustomed to live under their own laws and in freedom, there are three courses for those who wish to hold them: the first is to ruin them, the next is to reside there in person, the third is to permit them to live under their own laws, drawing a tribute, and establishing within it an oligarchy which will keep it friendly to you. Because such a government, being created by the prince, knows that it cannot stand without his friendship and interest, and does its utmost to support him; and therefore he who would keep a city accustomed to freedom will hold it more easily by the means of its own citizens than in any other way.

There are, for example, the Spartans and the Romans. The Spartans held Athens and Thebes, establishing there an oligarchy, nevertheless they lost them. The Romans, in order to hold Capua, Carthage, and Numantia, dismantled them, and did not lose them. They wished to hold Greece as the

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Niccolò Machiavelli. (2017, August 15). In Wikipedia, The Free Encyclopedia. Retrieved 17:11, August 15, 2017, from https://en.wikipedia.org/w/index.php?title=Niccol%C3%B2_Machiavelli&oldid=795642910

² Niccoló Machiavelli, 1513, translated by W. K. Marriott, 1908.

Spartans held it, making it free and permitting its laws, and did not succeed. So to hold it they were compelled to dismantle many cities in the country, for in truth there is no safe way to retain them otherwise than by ruining them. And he who becomes master of a city accustomed to freedom and does not destroy it, may expect to be destroyed by it, for in rebellion it has always the watch-word of liberty and its ancient privileges as a rallying point, which neither time nor benefits will ever cause it to forget. And what ever you may do or provide against, they never forget that name or their privileges unless they are disunited or dispersed but at every chance they immediately rally to them, as Pisa after the hundred years she had been held in bondage by the Florentines.

But when cities or countries are accustomed to live under a prince, and his family is exterminated, they, being on the one hand accustomed to obey and on the other hand not having the old prince, cannot agree in making one from amongst themselves, and they do not know how to govern themselves. For this reason they are very slow to take up arms, and a prince can gain them to himself and secure them much more easily. But in republics there is more vitality, greater hatred, and more desire for vengeance, which will never permit them to allow the memory of their former liberty to rest; so that the safest way is to destroy them or to reside there.

CHAPTER VI

Concerning New Principalities Which Are Acquired By One's Own Arms And Ability

LET no one be surprised if, in speaking of entirely new principalities as I shall do, I adduce the highest examples both of prince and of state; because men, walking almost always in paths beaten by others, and following by imitation their deeds, are yet unable to keep entirely to the ways of others or attain to the power of those they imitate. A wise man ought always to follow the paths beaten by great men, and to imitate those who have been supreme, so that if his ability does not equal theirs, at least it will savour of it. Let him act like the clever archers who, designing to hit the mark which yet appears too far distant, and knowing the limits to which the strength of their bow attains, take aim much higher than the mark, not to reach by their strength or arrow to so great a height, but to be able with the aid of so high an aim to hit the mark they wish to reach.

I say, therefore, that in entirely new principalities, where there is a new prince, more or less difficulty is found in keeping them, accordingly as there is more or less ability in him who has acquired the state. Now, as the fact of becoming a prince from a private station presupposes either ability or fortune, it is clear that one or other of these two things will mitigate in some degree many difficulties. Nevertheless, he who has relied least on fortune is established the strongest. Further, it facilitates matters when the prince, having no other state, is compelled to reside there in person.

But to come to those who, by their own ability and not through fortune, have risen to be princes, I say that Moses, Cyrus, Romulus, Theseus, and such like are the most excellent examples. And although one may not discuss Moses, he having been a mere executor of the will of God, yet he ought to be admired, if only for that favour which made him worthy to speak with God. But in considering Cyrus and others who have acquired or founded kingdoms, all will be found admirable; and if their particular deeds and conduct shall be considered, they will not be found inferior to those of Moses, although he had so great a preceptor. And in examining their actions and lives one cannot see that they owed anything to fortune beyond opportunity, which brought them the material to mould into the form which seemed best to

them. Without that opportunity their powers of mind would have been extinguished, and without those powers the opportunity would have come in vain.

It was necessary, therefore, to Moses that he should find the people of Israel in Egypt enslaved and oppressed by the Egyptians, in order that they should be disposed to follow him so as to be delivered out of bondage. It was necessary that Romulus should not remain in Alba, and that he should be abandoned at his birth, in order that he should become King of Rome and founder of the fatherland. It was necessary that Cyrus should find the Persians discontented with the government of the Medes, and the Medes soft and effeminate through their long peace. Theseus could not have shown his ability had he not found the Athenians dispersed. These opportunities, therefore, made those men fortunate, and their high ability enabled them to recognize the opportunity whereby their country was ennobled and made famous.

Those who by valorous ways become princes, like these men, acquire a principality with difficulty, but they keep it with ease. The difficulties they have in acquiring it arise in part from the new rules and methods which they are forced to introduce to establish their government and its security. And it ought to be remembered that there is nothing more difficult to take in hand, more perilous to conduct, or more uncertain in its success, than to take the lead in the introduction of a new order of things. Because the innovator has for enemies all those who have done well under the old conditions, and lukewarm defenders in those who may do well under the new. This coolness arises partly from fear of the opponents, who have the laws on their side, and partly from the incredulity of men, who do not readily believe in new things until they have had a long experience of them. Thus it happens that whenever those who are hostile have the opportunity to attack they do it like partisans, whilst the others defend lukewarmly, in such wise that the prince is endangered along with them.

It is necessary, therefore, if we desire to discuss this matter thoroughly, to inquire whether these innovators can rely on themselves or have to depend on others: that is to say, whether, to consummate their enterprise, have they to use prayers or can they use force? In the first instance they always succeed badly, and never compass anything; but when they can rely on themselves and use force, then they are rarely endangered. Hence it is that all armed prophets have conquered, and the unarmed ones have been destroyed. Besides the reasons mentioned, the nature of the people is variable, and whilst it is easy to persuade them, it is difficult to fix them in that persuasion. And thus it is necessary to take such measures that, when they believe no longer, it may be possible to make them believe by force.

If Moses, Cyrus, Theseus, and Romulus had been unarmed they could not have enforced their constitutions for long — as happened in our time to Fra Girolamo Savonarola, who was ruined with his new order of things immediately the multitude believed in him no longer, and he had no means of keeping steadfast those who believed or of making the unbelievers to believe. Therefore such as these have great difficulties in consummating their enterprise, for all their dangers are in the ascent, yet with ability they will overcome them; but when these are overcome, and those who envied them their success are exterminated, they will begin to be respected, and they will continue afterwards powerful, secure, honoured, and happy.

To these great examples I wish to add a lesser one; still it bears some resemblance to them, and I wish it to suffice me for all of a like kind: it is Hiero the Syracusan. This man rose from a private station to be Prince of Syracuse, nor did he, either, owe anything to fortune but opportunity; for the Syracusans, being

oppressed, chose him for their captain, afterwards he was rewarded by being made their prince. He was of so great ability, even as a private citizen, that one who writes of him says he wanted nothing but a kingdom to be a king. This man abolished the old soldiery, organized the new, gave up old alliances, made new ones; and as he had his own soldiers and allies, on such foundations he was able to build any edifice: thus, whilst he had endured much trouble in acquiring, he had but little in keeping.

CHAPTER VII

Concerning New Principalities Which Are Acquired Either By The Arms Of Others Or By Good Fortune

THOSE who solely by good fortune become princes from being private citizens have little trouble in rising, but much in keeping atop; they have not any difficulties on the way up, because they fly, but they have many when they reach the summit. Such are those to whom some state is given either for money or by the favour of him who bestows it; as happened to many in Greece, in the cities of Ionia and of the Hellespont, where princes were made by Darius, in order that they might hold the cities both for his security and his glory; as also were those emperors who, by the corruption of the soldiers, from being citizens came to empire. Such stand simply upon the goodwill and the fortune of him who has elevated them — two most inconstant and unstable things. Neither have they the knowledge requisite for the position; because, unless they are men of great worth and ability, it is not reasonable to expect that they should know how to command, having always lived in a private condition; besides, they cannot hold it because they have not forces which they can keep friendly and faithful.

States that rise unexpectedly, then, like all other things in nature which are born and grow rapidly, cannot have their foundations and relations with other states fixed in such a way that the first storm will not overthrow them; unless, as is said, those who unexpectedly become princes are men of so much ability that they know they have to be prepared at once to hold that which fortune has thrown into their laps, and that those foundations, which others have laid before they became princes, they must lay afterwards...

CHAPTER VIII

Concerning Those Who Have Obtained A Principality By Wickedness

ALTHOUGH a prince may rise from a private station in two ways, neither of which can be entirely attributed to fortune or genius, yet it is manifest to me that I must not be silent on them, although one could be more copiously treated when I discuss republics. These methods are when, either by some wicked or nefarious ways, one ascends to the principality, or when by the favour of his fellow-citizens a private person becomes the prince of his country. And speaking of the first method, it will be illustrated by two examples — one ancient, the other modern — and without entering further into the subject, I consider these two examples will suffice those who may be compelled to follow them.

Agathocles, the Sicilian, became King of Syracuse not only from a private but from a low and abject position. This man, the son of a potter, through all the changes in his fortunes always led an infamous life. Nevertheless, he accompanied his infamies with so much ability of mind and body that, having devoted himself to the military profession, he rose through its ranks to be Praetor of Syracuse. Being established in that position, and having deliberately resolved to make himself prince and to seize by

violence, without obligation to others, that which had been conceded to him by assent, he came to an understanding for this purpose with Hamilcar, the Carthaginian, who, with his army, was fighting in Sicily. One morning he assembled the people and senate of Syracuse, as if he had to discuss with them things relating to the Republic, and at a given signal the soldiers killed all the senators and the richest of the people; these dead, he seized and held the principedom of that city without any civil commotion. And although he was twice routed by the Carthaginians, and ultimately besieged, yet not only was he able to defend his city, but leaving part of his men for its defence, with the others he attacked Africa, and in a short time raised the siege of Syracuse. The Carthaginians, reduced to extreme necessity, were compelled to come to terms with Agathocles, and, leaving Sicily to him, had to be content with the possession of Africa.

Therefore, he who considers the actions and the genius of this man will see nothing, or little, which can be attributed to fortune, inasmuch as he attained pre-eminence, as is shown above, not by the favour of any one, but step by step in the military profession, which steps were gained with a thousand troubles and perils, and were afterwards boldly held by him with many hazards and dangers. Yet it cannot be called talent to slay fellow-citizens, to deceive friends, to be without faith, without mercy, without religion; such methods may gain empire, but not glory. Still, if the courage of Agathocles in entering into and extricating himself from dangers be considered, together with his greatness of mind in enduring overcoming hardships, it cannot be seen why he should be esteemed less than the most notable captain. Nevertheless, his barbarous cruelty and inhumanity with infinite wickednesses do not permit him to be celebrated among the most excellent men. What he achieved cannot be attributed either to fortune or to genius...

Some may wonder how it can happen that Agathocles, and his like, after infinite treacheries and cruelties, should live for long secure in his country, and defend himself from external enemies, and never be conspired against by his own citizens; seeing that many others, by means of cruelty, have never been able even in peaceful times to hold the state, still less in the doubtful times of war. I believe that this follows from severities being badly or properly used. Those may be called properly used, if of evil it is lawful to speak well, that are applied at one blow and are necessary to one's security, and that are not persisted in afterwards unless they can be turned to the advantage of the subjects. The badly employed are those which, notwithstanding they may be few in the commencement, multiply with time rather than decrease. Those who practise the first system are able, by aid of God or man, to mitigate in some degree their rule, as Agathocles did. It is impossible for those who follow the other to maintain themselves.

Hence it is to be remarked that, in seizing a state, the usurper ought to examine closely into all those injuries which it is necessary for him to inflict, and to do them all at one stroke so as not to have to repeat them daily; and thus by not unsettling men he will be able to reassure them, and win them to himself by benefits. He who does otherwise, either from timidity or evil advice, is always compelled to keep the knife in his hand; neither can he rely on his subjects, nor can they attach themselves to him, owing to their continued and repeated wrongs. For injuries ought to be done all at one time, so that, being tasted less, they offend less; benefits ought to be given little by little, so that the flavour of them may last longer.

And above all things, a prince ought to live amongst his people in such a way that no unexpected circumstances, whether of good or evil, shall make him change; because if the necessity for this comes

in troubled times, you are too late for harsh measures; and mild ones will not help you, for they will be considered as forced from you, and no one will be under any obligation to you for them.

CHAPTER IX

Concerning A Civil Principality

BUT coming to the other point — where a leading citizen becomes the prince of his country, not by wickedness or any intolerable violence, but by the favour of his fellow citizens — this may be called a civil principality: nor is genius or fortune altogether necessary to attain to it, but rather a happy shrewdness. I say then that such a principality is obtained either by the favour of the people or by the favour of the nobles. Because in all cities these two distinct parties are found, and from this it arises that the people do not wish to be ruled nor oppressed by the nobles, and the nobles wish to rule and oppress the people; and from these two opposite desires there arises in cities one of three results, either a principality, self-government, or anarchy.

A principality is created either by the people or by the nobles, accordingly as one or other of them has the opportunity; for the nobles, seeing they cannot withstand the people, begin to cry up the reputation of one of themselves, and they make him a prince, so that under his shadow they can give vent to their ambitions. The people, finding they cannot resist the nobles, also cry up the reputation of one of themselves, and make him a prince so as to be defended by his authority. He who obtains sovereignty by the assistance of the nobles maintains himself with more difficulty than he who comes to it by the aid of the people, because the former finds himself with many around him who consider themselves his equals, and because of this he can neither rule nor manage them to his liking. But he who reaches sovereignty by popular favour finds himself alone, and has none around him, or few, who are not prepared to obey him.

Besides this, one cannot by fair dealing, and without injury to others, satisfy the nobles, but you can satisfy the people, for their object is more righteous than that of the nobles, the latter wishing to oppress, whilst the former only desire not to be oppressed. It is to be added also that a prince can never secure himself against a hostile people, because of their being too many, whilst from the nobles he can secure himself, as they are few in number. The worst that a prince may expect from a hostile people is to be abandoned by them; but from hostile nobles he has not only to fear abandonment, but also that they will rise against him; for they, being in these affairs more far-seeing and astute, always come forward in time to save themselves, and to obtain favours from him whom they expect to prevail. Further, the prince is compelled to live always with the same people, but he can do well without the same nobles, being able to make and unmake them daily, and to give or take away authority when it pleases him.

Therefore, to make this point clearer, I say that the nobles ought to be looked at mainly in two ways: that is to say, they either shape their course in such a way as binds them entirely to your fortune, or they do not. Those who so bind themselves, and are not rapacious, ought to be honoured and loved; those who do not bind themselves may be dealt with in two ways; they may fail to do this through pusillanimity and a natural want of courage, in which case you ought to make use of them, especially of those who are of good counsel; and thus, whilst in prosperity you honour yourself, in adversity you have not to fear them. But when for their own ambitious ends they shun binding themselves, it is a token that they are giving more thought to themselves than to you, and a prince ought to guard against such, and to fear them as if they were open enemies, because in adversity they always help to ruin him.

Therefore, one who becomes a prince through the favour of the people ought to keep them friendly, and this he can easily do seeing they only ask not to be oppressed by him. But one who, in opposition to the people, becomes a prince by the favour of the nobles, ought, above everything, to seek to win the people over to himself, and this he may easily do if he takes them under his protection. Because men, when they receive good from him of whom they were expecting evil, are bound more closely to their benefactor; thus the people quickly become more devoted to him than if he had been raised to the principality by their favours; and the prince can win their affections in many ways, but as these vary according to the circumstances one cannot give fixed rules, so I omit them; but, I repeat, it is necessary for a prince to have the people friendly, otherwise he has no security in adversity.

Nabis, Prince of the Spartans, sustained the attack of all Greece, and of a victorious Roman army, and against them he defended his country and his government; and for the overcoming of this peril it was only necessary for him to make himself secure against a few, but this would not have been sufficient if the people had been hostile. And do not let any one impugn this statement with the trite proverb that 'He who builds on the people, builds on the mud,' for this is true when a private citizen makes a foundation there, and persuades himself that the people will free him when he is oppressed by his enemies or by the magistrates; wherein he would find himself very often deceived, as happened to the Gracchi in Rome and to Messer Giorgio Scali in Florence. But granted a prince who has established himself as above, who can command, and is a man of courage, undismayed in adversity, who does not fail in other qualifications, and who, by his resolution and energy, keeps the whole people encouraged — such a one will never find himself deceived in them, and it will be shown that he has laid his foundations well.

These principalities are liable to danger when they are passing from the civil to the absolute order of government, for such princes either rule personally or through magistrates. In the latter case their government is weaker and more insecure, because it rests entirely on the goodwill of those citizens who are raised to the magistracy, and who, especially in troubled times, can destroy the government with great ease, either by intrigue or open defiance; and the prince has not the chance amid tumults to exercise absolute authority, because the citizens and subjects, accustomed to receive orders from magistrates, are not of a mind to obey him amid these confusions, and there will always be in doubtful times a scarcity of men whom he can trust. For such a prince cannot rely upon what he observes in quiet times, when citizens had need of the state, because then every one agrees with him; they all promise, and when death is far distant they all wish to die for him; but in troubled times, when the state has need of its citizens, then he finds but few. And so much the more is this experiment dangerous, inasmuch as it can only be tried once. Therefore a wise prince ought to adopt such a course that his citizens will always in every sort and kind of circumstance have need of the state and of him, and then he will always find them faithful.

CHAPTER XII

How Many Kinds Of Soldiery There Are, And Concerning Mercenaries

HAVING discoursed particularly on the characteristics of such principalities as in the beginning I proposed to discuss, and having considered in some degree the causes of their being good or bad, and having shown the methods by which many have sought to acquire them and to hold them, it now remains for me to discuss generally the means of offence and defence which belong to each of them.

POLITICAL PHILOSOPHY READER

We have seen above how necessary it is for a prince to have his foundations well laid, otherwise it follows of necessity he will go to ruin. The chief foundations of all states, new as well as old or composite, are good laws and good arms; and as there cannot be good laws where the state is not well armed, it follows that where they are well armed they have good laws. I shall leave the laws out of the discussion and shall speak of the arms.

I say, therefore, that the arms with which a prince defends his state are either his own, or they are mercenaries, auxiliaries, or mixed. Mercenaries and auxiliaries are useless and dangerous; and if one holds his state based on these arms, he will stand neither firm nor safe; for they are disunited, ambitious and without discipline, unfaithful, valiant before friends, cowardly before enemies; they have neither the fear of God nor fidelity to men, and destruction is deferred only so long as the attack is; for in peace one is robbed by them, and in war by the enemy. The fact is, they have no other attraction or reason for keeping the field than a trifle of stipend, which is not sufficient to make them willing to die for you. They are ready enough to be your soldiers whilst you do not make war, but if war comes they take themselves off or run from the foe; which I should have little trouble to prove, for the ruin of Italy has been caused by nothing else than by resting all her hopes for many years on mercenaries, and although they formerly made some display and appeared valiant amongst themselves, yet when the foreigners came they showed what they were. Thus it was that Charles, King of France, was allowed to seize Italy with chalk in hand; and he who told us that our sins were the cause of it told the truth, but they were not the sins he imagined, but those which I have related. And as they were the sins of princes, it is the princes who have also suffered the penalty...

CHAPTER XVI

Concerning Liberality And Meanness

COMMENCING then with the first of the above-named characteristics, I say that it would be well to be reputed liberal. Nevertheless, liberality exercised in a way that does not bring you the reputation for it, injures you; for if one exercises it honestly and as it should be exercised, it may not become known, and you will not avoid the reproach of its opposite. Therefore, any one wishing to maintain among men the name of liberal is obliged to avoid no attribute of magnificence; so that a prince thus inclined will consume in such acts all his property, and will be compelled in the end, if he wish to maintain the name of liberal, to unduly weigh down his people, and tax them, and do everything he can to get money. This will soon make him odious to his subjects, and becoming poor he will be little valued by any one; thus, with his liberality, having offended many and rewarded few, he is affected by the very first trouble and imperilled by whatever may be the first danger; recognizing this himself, and wishing to draw back from it, he runs at once into the reproach of being miserly.

Therefore, a prince, not being able to exercise this virtue of liberality in such a way that it is recognized, except to his cost, if he is wise he ought not to fear the reputation of being mean, for in time he will come to be more considered than if liberal, seeing that with his economy his revenues are enough, that he can defend himself against all attacks, and is able to engage in enterprises without burdening his people; thus it comes to pass that he exercises liberality towards all from whom he does not take, who are numberless, and meanness towards those to whom he does not give, who are few.

We have not seen great things done in our time except by those who have been considered mean; the

rest have failed. Pope Julius the Second was assisted in reaching the papacy by a reputation for liberality, yet he did not strive afterwards to keep it up, when he made war on the King of France; and he made many wars without imposing any extraordinary tax on his subjects, for he supplied his additional expenses out of his long thriftiness. The present King of Spain would not have undertaken or conquered in so many enterprises if he had been reputed liberal. A prince, therefore, provided that he has not to rob his subjects, that he can defend himself, that he does not become poor and abject, that he is not forced to become rapacious, ought to hold of little account a reputation for being mean, for it is one of those vices which will enable him to govern.

And if any one should say: Caesar obtained empire by liberality, and many others have reached the highest positions by having been liberal, and by being considered so, I answer: Either you are a prince in fact, or in a way to become one. In the first case this liberality is dangerous, in the second it is very necessary to be considered liberal; and Caesar was one of those who wished to become pre-eminent in Rome; but if he had survived after becoming so, and had not moderated his expenses, he would have destroyed his government. And if any one should reply: Many have been princes, and have done great things with armies, who have been considered very liberal, I reply: Either a prince spends that which is his own or his subjects' or else that of others. In the first case he ought to be sparing, in the second he ought not to neglect any opportunity for liberality. And to the prince who goes forth with his army, supporting it by pillage, sack, and extortion, handling that which belongs to others, this liberality is necessary, otherwise he would not be followed by soldiers. And of that which is neither yours nor your subjects' you can be a ready giver, as were Cyrus, Caesar, and Alexander; because it does not take away your reputation if you squander that of others, but adds to it; it is only squandering your own that injures you.

And there is nothing wastes so rapidly as liberality, for even whilst you exercise it you lose the power to do so, and so become either poor or despised, or else, in avoiding poverty, rapacious and hated. And a prince should guard himself, above all things, against being despised and hated; and liberality leads you to both. Therefore it is wiser to have a reputation for meanness which brings reproach without hatred, than to be compelled through seeking a reputation for liberality to incur a name for rapacity which begets reproach with hatred.

CHAPTER XVII

Concerning Cruelty And Clemency, And Whether It Is Better To Be Loved Than Feared

COMING now to the other qualities mentioned above, I say that every prince ought to desire to be considered clement and not cruel. Nevertheless he ought to take care not to misuse this clemency. Cesare Borgia was considered cruel; notwithstanding, his cruelty reconciled the Romagna, unified it, and restored it to peace and loyalty. And if this be rightly considered, he will be seen to have been much more merciful than the Florentine people, who, to avoid a reputation for cruelty, permitted Pistoia to be destroyed. Therefore a prince, so long as he keeps his subjects united and loyal, ought not to mind the reproach of cruelty; because with a few examples he will be more merciful than those who, through too much mercy, allow disorders to arise, from which follow murders or robberies; for these are wont to injure the whole people, whilst those executions which originate with a prince offend the individual only.

POLITICAL PHILOSOPHY READER

And of all princes, it is impossible for the new prince to avoid the imputation of cruelty, owing to new states being full of dangers. Hence Virgil, through the mouth of Dido, excuses the inhumanity of her reign owing to its being new, saying:

*Res dura, et regni novitas me talia cogunt
Moliri, et late fines custode tueri.*

(My difficult condition and the newness of my rule make me act in such a manner, and to set guards over my land on all sides)

Nevertheless he ought to be slow to believe and to act, nor should he himself show fear, but proceed in a temperate manner with prudence and humanity, so that too much confidence may not make him incautious and too much distrust render him intolerable.

Upon this a question arises: whether it be better to be loved than feared or feared than loved? It may be answered that one should wish to be both, but, because it is difficult to unite them in one person, is much safer to be feared than loved, when, of the two, either must be dispensed with. Because this is to be asserted in general of men, that they are ungrateful, fickle, false, cowardly, covetous, and as long as you succeed they are yours entirely; they will offer you their blood, property, life and children, as is said above, when the need is far distant; but when it approaches they turn against you. And that prince who, relying entirely on their promises, has neglected other precautions, is ruined; because friendships that are obtained by payments, and not by greatness or nobility of mind, may indeed be earned, but they are not secured, and in time of need cannot be relied upon; and men have less scruple in offending one who is beloved than one who is feared, for love is preserved by the link of obligation which, owing to the baseness of men, is broken at every opportunity for their advantage; but fear preserves you by a dread of punishment which never fails.

Nevertheless a prince ought to inspire fear in such a way that, if he does not win love, he avoids hatred; because he can endure very well being feared whilst he is not hated, which will always be as long as he abstains from the property of his citizens and subjects and from their women. But when it is necessary for him to proceed against the life of someone, he must do it on proper justification and for manifest cause, but above all things he must keep his hands off the property of others, because men more quickly forget the death of their father than the loss of their patrimony. Besides, pretexts for taking away the property are never wanting; for he who has once begun to live by robbery will always find pretexts for seizing what belongs to others; but reasons for taking life, on the contrary, are more difficult to find and sooner lapse. But when a prince is with his army, and has under control a multitude of soldiers, then it is quite necessary for him to disregard the reputation of cruelty, for without it he would never hold his army united or disposed to its duties.

Among the wonderful deeds of Hannibal this one is enumerated: that having led an enormous army, composed of many various races of men, to fight in foreign lands, no dissensions arose either among them or against the prince, whether in his bad or in his good fortune. This arose from nothing else than his inhuman cruelty, which, with his boundless valour, made him revered and terrible in the sight of his soldiers, but without that cruelty, his other virtues were not sufficient to produce this effect. And shortsighted writers admire his deeds from one point of view and from another condemn the principal cause of them. That it is true his other virtues would not have been sufficient for him may be proved by

the case of Scipio, that most excellent man, not of his own times but within the memory of man, against whom, nevertheless, his army rebelled in Spain; this arose from nothing but his too great forbearance, which gave his soldiers more licence than is consistent with military discipline. For this he was upbraided in the Senate by Fabius Maximus, and called the corrupter of the Roman soldiery. The Locrians were laid waste by a legate of Scipio, yet they were not avenged by him, nor was the insolence of the legate punished, owing entirely to his easy nature. Insomuch that someone in the Senate, wishing to excuse him, said there were many men who knew much better how not to err than to correct the errors of others. This disposition, if he had been continued in the command, would have destroyed in time the fame and glory of Scipio; but, he being under the control of the Senate, this injurious characteristic not only concealed itself, but contributed to his glory.

Returning to the question of being feared or loved, I come to the conclusion that, men loving according to their own will and fearing according to that of the prince, a wise prince should establish himself on that which is in his own control and not in that of others; he must endeavour only to avoid hatred, as is noted.

CHAPTER XVIII

Concerning The Way In Which Princes Should Keep Faith

EVERY one admits how praiseworthy it is in a prince to keep faith, and to live with integrity and not with craft. Nevertheless our experience has been that those princes who have done great things have held good faith of little account, and have known how to circumvent the intellect of men by craft, and in the end have overcome those who have relied on their word. You must know there are two ways of contesting, the one by the law, the other by force; the first method is proper to men, the second to beasts; but because the first is frequently not sufficient, it is necessary to have recourse to the second. Therefore it is necessary for a prince to understand how to avail himself of the beast and the man. This has been figuratively taught to princes by ancient writers, who describe how Achilles and many other princes of old were given to the Centaur Chiron to nurse, who brought them up in his discipline; which means solely that, as they had for a teacher one who was half beast and half man, so it is necessary for a prince to know how to make use of both natures, and that one without the other is not durable. A prince, therefore, being compelled knowingly to adopt the beast, ought to choose the fox and the lion; because the lion cannot defend himself against snares and the fox cannot defend himself against wolves. Therefore, it is necessary to be a fox to discover the snares and a lion to terrify the wolves. Those who rely simply on the lion do not understand what they are about. Therefore a wise lord cannot, nor ought he to, keep faith when such observance may be turned against him, and when the reasons that caused him to pledge it exist no longer. If men were entirely good this precept would not hold, but because they are bad, and will not keep faith with you, you too are not bound to observe it with them. Nor will there ever be wanting to a prince legitimate reasons to excuse this nonobservance. Of this endless modern examples could be given, showing how many treaties and engagements have been made void and of no effect through the faithlessness of princes; and he who has known best how to employ the fox has succeeded best.

But it is necessary to know well how to disguise this characteristic, and to be a great pretender and dissembler; and men are so simple, and so subject to present necessities, that he who seeks to deceive will always find someone who will allow himself to be deceived. One recent example I cannot pass over in silence. Alexander VI did nothing else but deceive men, nor ever thought of doing otherwise, and he

always found victims; for there never was a man who had greater power in asserting, or who with greater oaths would affirm a thing, yet would observe it less; nevertheless his deceits always succeeded according to his wishes, because he well understood this side of mankind.

Therefore it is unnecessary for a prince to have all the good qualities I have enumerated, but it is very necessary to appear to have them. And I shall dare to say this also, that to have them and always to observe them is injurious, and that to appear to have them is useful; to appear merciful, faithful, humane, religious, upright, and to be so, but with a mind so framed that should you require not to be so, you may be able and know how to change to the opposite.

And you have to understand this, that a prince, especially a new one, cannot observe all those things for which men are esteemed, being often forced, in order to maintain the state, to act contrary to faith, friendship, humanity, and religion. Therefore it is necessary for him to have a mind ready to turn itself accordingly as the winds and variations of fortune force it, yet, as I have said above, not to diverge from the good if he can avoid doing so, but, if compelled, then to know how to set about it.

For this reason a prince ought to take care that he never lets anything slip from his lips that is not replete with the above-named five qualities, that he may appear to him who sees and hears him altogether merciful, faithful, humane, upright, and religious. There is nothing more necessary to appear to have than this last quality, inasmuch as men judge generally more by the eye than by the hand, because it belongs to everybody to see you, to few to come in touch with you. Every one sees what you appear to be, few really know what you are, and those few dare not oppose themselves to the opinion of the many, who have the majesty of the state to defend them; and in the actions of all men, and especially of princes, which it is not prudent to challenge, one judges by the result.

For that reason, let a prince have the credit of conquering and holding his state, the means will always be considered honest, and he will be praised by everybody because the vulgar are always taken by what a thing seems to be and by what comes of it; and in the world there are only the vulgar, for the few find a place there only when the many have no ground to rest on.

One prince of the present time, whom it is not well to name, never preaches anything else but peace and good faith, and to both he is most hostile, and either, if he had kept it, would have deprived him of reputation and kingdom many a time.

CHAPTER XXI

How A Prince Should Conduct Himself As To Gain Renown

NOTHING makes a prince so much esteemed as great enterprises and setting a fine example. We have in our time Ferdinand of Aragon, the present King of Spain. He can almost be called a new prince, because he has risen, by fame and glory, from being an insignificant king to be the foremost king in Christendom; and if you will consider his deeds you will find them all great and some of them extraordinary. In the beginning of his reign he attacked Granada, and this enterprise was the foundation of his dominions. He did this quietly at first and without any fear of hindrance, for he held the minds of the barons of Castile occupied in thinking of the war and not anticipating any innovations; thus they did not perceive that by these means he was acquiring power and authority over them. He was able with the money of the Church and of the people to sustain his armies, and by that long war to lay the foundation

for the military skill which has since distinguished him. Further, always using religion as a plea, so as to undertake greater schemes, he devoted himself with a pious cruelty to driving out and clearing his kingdom of the Moors; nor could there be a more admirable example, nor one more rare. Under this same cloak he assailed Africa, he came down on Italy, he has finally attacked France; and thus his achievements and designs have always been great, and have kept the minds of his people in suspense and admiration and occupied with the issue of them. And his actions have arisen in such a way, one out of the other, that men have never been given time to work steadily against him.

Again, it much assists a prince to set unusual examples in internal affairs, similar to those which are related of Messer Bernabo da Milano, who, when he had the opportunity, by any one in civil life doing some extraordinary thing, either good or bad, would take some method of rewarding or punishing him, which would be much spoken about. And a prince ought, above all things, always to endeavour in every action to gain for himself the reputation of being a great and remarkable man.

A prince is also respected when he is either a true friend or a downright enemy, that to say, when, without any reservation, he declares himself in favour of one party against the other; which course will always be more advantageous than standing neutral; because if two of your powerful neighbours come to blows, they are of such a character that, if one of them conquers, you have either to fear him or not. In either case it will always be more advantageous for you to declare yourself and to make war strenuously; because, in the first case, if you do not declare yourself, you will invariably fall a prey to the conqueror, to the pleasure and satisfaction of him who has been conquered, and you will have no reasons to offer, nor anything to protect or to shelter you. Because he who conquers does not want doubtful friends who will not aid him in the time of trial; and he who loses will not harbour you because you did not willingly, sword in hand, court his fate.

Antiochus went into Greece, being sent for by the Aetolians to drive out the Romans. He sent envoys to the Achaeans, who were friends of the Romans, exhorting them to remain neutral; and on the other hand the Romans urged them to take up arms. This question came to be discussed in the council of the Achaeans, where the legate of Antiochus urged them to stand neutral. To this the Roman legate answered: "As for that which has been said, that it is better and more advantageous for your state not to interfere in our war, nothing can be more erroneous; because by not interfering you will be left, without favour or consideration, the guerdon of the conqueror." Thus it will always happen that he who is not your friend will demand your neutrality, whilst he who is your friend will entreat you to declare yourself with arms. And irresolute princes, to avoid present dangers, generally follow the neutral path, and are generally ruined. But when a prince declares himself gallantly in favour of one side, if the party with whom he allies himself conquers, although the victor may be powerful and may have him at his mercy, yet he is indebted to him, and there is established a bond of amity; and men are never so shameless as to become a monument of ingratitude by oppressing you. Victories after all are never so complete that the victor must not show some regard, especially to justice. But if he with whom you ally yourself loses, you may be sheltered by him, and whilst he is able he may aid you, and you become companions in a fortune that may rise again.

In the second case, when those who fight are of such a character that you have no anxiety as to who may conquer, so much the more is it greater prudence to be allied, because you assist at the destruction of one by the aid of another who, if he had been wise, would have saved him; and conquering, as it is impossible that he should not with your assistance, he remains at your discretion. And here it is to be

noted that a prince ought to take care never to make an alliance with one more powerful than himself for the purpose of attacking others, unless necessity compels him, as is said above; because if he conquers you are at his discretion, and princes ought to avoid as much as possible being at the discretion of any one. The Venetians joined with France against the Duke of Milan, and this alliance, which caused their ruin, could have been avoided. But when it cannot be avoided, as happened to the Florentines when the Pope and Spain sent armies to attack Lombardy, then in such a case, for the above reasons, the prince ought to favour one of the parties.

Never let any Government imagine that it can choose perfectly safe courses; rather let it expect to have to take very doubtful ones, because it is found in ordinary affairs that one never seeks to avoid one trouble without running into another; but prudence consists in knowing how to distinguish the character of troubles, and for choice to take the lesser evil.

A prince ought also to show himself a patron of ability, and to honour the proficient in every art. At the same time he should encourage his citizens to practise their callings peaceably, both in commerce and agriculture, and in every other following, so that the one should not be deterred from improving his possessions for fear lest they be taken away from him or another from opening up trade for fear of taxes; but the prince ought to offer rewards to whoever wishes to do these things and designs in any way to honour his city or state.

Further, he ought to entertain the people with festivals and spectacles at convenient seasons of the year; and as every city is divided into guilds or into societies, he ought to hold such bodies in esteem, and associate with them sometimes, and show himself an example of courtesy and liberality; nevertheless, always maintaining the majesty of his rank, for this he must never consent to abate in anything.

CHAPTER XXV

What Fortune Can Effect In Human Affairs, And How To Withstand Her

IT is not unknown to me how many men have had, and still have, the opinion that the affairs of the world are in such wise governed by fortune and by God that men with their wisdom cannot direct them and that no one can even help them; and because of this they would have us believe that it is not necessary to labour much in affairs, but to let chance govern them. This opinion has been more credited in our times because of the great changes in affairs which have been seen, and may still be seen, every day, beyond all human conjecture. Sometimes pondering over this, I am in some degree inclined to their opinion. Nevertheless, not to extinguish our free will, I hold it to be true that Fortune is the arbiter of one-half of our actions, but that she still leaves us to direct the other half, or perhaps a little less.

I compare her to one of those raging rivers, which when in flood overflows the plains, sweeping away trees and buildings, bearing away the soil from place to place; everything flies before it, all yield to its violence, without being able in any way to withstand it; and yet, though its nature be such, it does not follow therefore that men, when the weather becomes fair, shall not make provision, both with defences and barriers, in such a manner that, rising again, the waters may pass away by canal, and their force be neither so unrestrained nor so dangerous. So it happens with fortune, who shows her power where valour has not prepared to resist her, and thither she turns her forces where she knows that barriers and defences have not been raised to constrain her.

And if you will consider Italy, which is the seat of these changes, and which has given to them their impulse, you will see it to be an open country without barriers and without any defence. For if it had been defended by proper valour, as are Germany, Spain, and France, either this invasion would not have made the great changes it has made or it would not have come at all. And this I consider enough to say concerning resistance to fortune in general.

But confining myself more to the particular, I say that a prince may be seen happy to-day and ruined to-morrow without having shown any change of disposition or character. This, I believe, arises firstly from causes that have already been discussed at length, namely, that the prince who relies entirely upon fortune is lost when it changes. I believe also that he will be successful who directs his actions according to the spirit of the times, and that he whose actions do not accord with the times will not be successful. Because men are seen, in affairs that lead to the end which every man has before him, namely, glory and riches, to get there by various methods; one with caution, another with haste; one by force, another by skill; one by patience, another by its opposite; and each one succeeds in reaching the goal by a different method. One can also see of two cautious men the one attain his end, the other fail; and similarly, two men by different observances are equally successful, the one being cautious, the other impetuous; all this arises from nothing else than whether or not they conform in their methods to the spirit of the times. This follows from what I have said, that two men working differently bring about the same effect, and of two working similarly, one attains his object and the other does not.

Changes in estate also issue from this, for if, to one who governs himself with caution and patience, times and affairs converge in such a way that his administration is successful, his fortune is made; but if times and affairs change, he is ruined if he does not change his course of action. But a man is not often found sufficiently circumspect to know how to accommodate himself to the change, both because he cannot deviate from what nature inclines him to, and also because, having always prospered by acting in one way, he cannot be persuaded that it is well to leave it; and, therefore, the cautious man, when it is time to turn adventurous, does not know how to do it, hence he is ruined; but had he changed his conduct with the times fortune would not have changed.

Pope Julius II went to work impetuously in all his affairs, and found the times and circumstances conform so well to that line of action that he always met with success. Consider his first enterprise against Bologna, Messer Giovanni Bentivogli being still alive. The Venetians were not agreeable to it, nor was the King of Spain, and he had the enterprise still under discussion with the King of France; nevertheless he personally entered upon the expedition with his accustomed boldness and energy, a move which made Spain and the Venetians stand irresolute and passive, the latter from fear, the former from desire to recover all the kingdom of Naples; on the other hand, he drew after him the King of France, because that king, having observed the movement, and desiring to make the Pope his friend so as to humble the Venetians, found it impossible to refuse him soldiers without manifestly offending him. Therefore Julius with his impetuous action accomplished what no other pontiff with simple human wisdom could have done; for if he had waited in Rome until he could get away, with his plans arranged and everything fixed, as any other pontiff would have done, he would never have succeeded. Because the King of France would have made a thousand excuses, and the others would have raised a thousand fears.

I will leave his other actions alone, as they were all alike, and they all succeeded, for the shortness of his life did not let him experience the contrary; but if circumstances had arisen which required him to go

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cautiously, his ruin would have followed, because he would never have deviated from those ways to which nature inclined him.

I conclude therefore that, fortune being changeful and mankind steadfast in their ways, so long as the two are in agreement men are successful, but unsuccessful when they fall out. For my part I consider that it is better to be adventurous than cautious, because fortune is a woman, and if you wish to keep her under it is necessary to beat and ill-use her; and it is seen that she allows herself to be mastered by the adventurous rather than by those who go to work more coldly. She is, therefore, always, woman-like, a lover of young men, because they are less cautious, more violent, and with more audacity command her.

6 Leviathan (Thomas Hobbes)

Thomas Hobbes¹ (/hɒbz/; 5 April 1588 – 4 December 1679), in some older texts **Thomas Hobbes of Malmesbury**, was an English philosopher who is considered one of the founders of modern political philosophy. Hobbes is best known for his 1651 book *Leviathan*, which established the social contract theory that has served as the foundation for most later Western political philosophy. In addition to political philosophy, Hobbes also contributed to a diverse array of other fields, including history, jurisprudence, geometry, the physics of gases, theology, ethics, and general philosophy.

Though on rational grounds a champion of absolutism for the sovereign, Hobbes also developed some of the fundamentals of European liberal thought: the right of the individual; the natural equality of all men; the artificial character of the political order (which led to the later distinction between civil society and the state); the view that all legitimate political power must be "representative" and based on the consent of the people; and a liberal interpretation of law that leaves people free to do whatever the law does not explicitly forbid. His understanding of humans as being matter and motion, obeying the same physical laws as other matter and motion, remains influential; and his account of human nature as self-interested cooperation, and of political communities as being based upon a "social contract" remains one of the major topics of political philosophy.

*Leviathan*²

THE INTRODUCTION

Nature (the art whereby God hath made and governes the world) is by the art of man, as in many other things, so in this also imitated, that it can make an Artificial Animal. For seeing life is but a motion of Limbs, the begining whereof is in some principall part within; why may we not say, that all Automata (Engines that move themselves by springs and wheelles as doth a watch) have an artificiall life? For what is the Heart, but a Spring; and the Nerves, but so many Strings; and the Joynts, but so many Wheelles, giving motion to the whole Body, such as was intended by the Artificer? Art goes yet further, imitating that Rationall and most excellent worke of Nature, Man. For by Art is created that great LEVIATHAN called a COMMON-WEALTH, or STATE, (in latine CIVITAS) which is but an Artificiall Man; though of greater stature and strength than the Naturall, for whose protection and defence it was intended; and in which, the Sovereignty is an Artificiall Soul, as giving life and motion to the whole body; The Magistrates, and other Officers of Judicature and Execution, artificiall Joynts; Reward and Punishment (by which fastned to the seat of the Sovereignty, every joynt and member is moved to performe his duty) are the Nerves, that do the same in the Body Naturall; The Wealth and Riches of all the particular members, are the Strength; Salus Populi (the Peoples Safety) its Businesse; Counsellors, by whom all

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Thomas Hobbes. (2017, July 31). In Wikipedia, The Free Encyclopedia. Retrieved 17:20, August 15, 2017, from https://en.wikipedia.org/w/index.php?title=Thomas_Hobbes&oldid=793262338

² Thomas Hobbes, 1651.

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things needfull for it to know, are suggested unto it, are the Memory; Equity and Lawes, an artificiall Reason and Will; Concord, Health; Sedition, Sicknesse; and Civill War, Death. Lastly, the Pacts and Covenants, by which the parts of this Body Politique were at first made, set together, and united, resemble that Fiat, or the Let Us Make Man, pronounced by God in the Creation.

To describe the Nature of this Artificiall man, I will consider

First the Matter thereof, and the Artificer; both which is Man.

Secondly, How, and by what Covenants it is made; what are the Rights and just Power or Authority of a Sovereaigne; and what it is that Preserveth and Dissolveth it.

Thirdly, what is a Christian Common-Wealth.

Lastly, what is the Kingdome of Darkness.

Concerning the first, there is a saying much usurped of late, That Wisedome is acquired, not by reading of Books, but of Men. Consequently whereunto, those persons, that for the most part can give no other proof of being wise, take great delight to shew what they think they have read in men, by uncharitable censures of one another behind their backs. But there is another saying not of late understood, by which they might learn truly to read one another, if they would take the pains; and that is, Nosce Teipsum, Read Thy Self: which was not meant, as it is now used, to countenance, either the barbarous state of men in power, towards their inferiors; or to encourage men of low degree, to a sawcie behaviour towards their betters; But to teach us, that for the similitude of the thoughts, and Passions of one man, to the thoughts, and Passions of another, whosoever looketh into himselfe, and considereth what he doth, when he does Think, Opine, Reason, Hope, Feare, &c, and upon what grounds; he shall thereby read and know, what are the thoughts, and Passions of all other men, upon the like occasions. I say the similitude of Passions, which are the same in all men, Desire, Feare, Hope, &c; not the similitude or The Objects of the Passions, which are the things Desired, Feared, Hoped, &c: for these the constitution individuall, and particular education do so vary, and they are so easie to be kept from our knowledge, that the characters of mans heart, blotted and confounded as they are, with dissembling, lying, counterfeiting, and erroneous doctrines, are legible onely to him that searcheth hearts. And though by mens actions wee do discover their designee sometimes; yet to do it without comparing them with our own, and distinguishing all circumstances, by which the case may come to be altered, is to decypher without a key, and be for the most part deceived, by too much trust, or by too much diffidence; as he that reads, is himselfe a good or evill man.

But let one man read another by his actions never so perfectly, it serves him onely with his acquaintance, which are but few. He that is to govern a whole Nation, must read in himselfe, not this, or that particular man; but Man-kind; which though it be hard to do, harder than to learn any Language, or Science; yet, when I shall have set down my own reading orderly, and perspicuously, the pains left another, will be onely to consider, if he also find not the same in himselfe. For this kind of Doctrine, admitteth no other Demonstration.

PART 1 OF MAN
CHAPTER I. OF SENSE

Concerning the Thoughts of man, I will consider them first Singly, and afterwards in Trayne, or dependance upon one another. Singly, they are every one a Representation or Apparence, of some quality, or other Accident of a body without us; which is commonly called an Object. Which Object worketh on the Eyes, Eares, and other parts of mans body; and by diversity of working, produceth diversity of Apparences.

The Originall of them all, is that which we call Sense; (For there is no conception in a mans mind, which hath not at first, totally, or by parts, been begotten upon the organs of Sense.) The rest are derived from that originall.

To know the naturall cause of Sense, is not very necessary to the business now in hand; and I have elsewhere written of the same at large. Nevertheless, to fill each part of my present method, I will briefly deliver the same in this place.

The cause of Sense, is the Externall Body, or Object, which presseth the organ proper to each Sense, either immediatly, as in the Tast and Touch; or mediately, as in Seeing, Hearing, and Smelling: which pressure, by the mediation of Nerves, and other strings, and membranes of the body, continued inwards to the Brain, and Heart, causeth there a resistance, or counter-pressure, or endeavour of the heart, to deliver it self: which endeavour because Outward, seemeth to be some matter without. And this Seeming, or Fancy, is that which men call sense; and consisteth, as to the Eye, in a Light, or Colour Figured; To the Eare, in a Sound; To the Nostrill, in an Odour; To the Tongue and Palat, in a Savour; and to the rest of the body, in Heat, Cold, Hardnesse, Softnesse, and such other qualities, as we discern by Feeling. All which qualities called Sensible, are in the object that causeth them, but so many several motions of the matter, by which it presseth our organs diversly. Neither in us that are pressed, are they anything els, but divers motions; (for motion, produceth nothing but motion.) But their apparence to us is Fancy, the same waking, that dreaming. And as pressing, rubbing, or striking the Eye, makes us fancy a light; and pressing the Eare, produceth a dinne; so do the bodies also we see, or hear, produce the same by their strong, though unobserved action, For if those Colours, and Sounds, were in the Bodies, or Objects that cause them, they could not bee severed from them, as by glasses, and in Ecchoes by reflection, wee see they are; where we know the thing we see, is in one place; the apparence, in another. And though at some certain distance, the reall, and very object seem invested with the fancy it begets in us; Yet still the object is one thing, the image or fancy is another. So that Sense in all cases, is nothing els but originall fancy, caused (as I have said) by the pressure, that is, by the motion, of externall things upon our Eyes, Eares, and other organs thereunto ordained.

But the Philosophy-schooles, through all the Universities of Christendome, grounded upon certain Texts of Aristotle, teach another doctrine; and say, For the cause of Vision, that the thing seen, sendeth forth on every side a Visible Species(in English) a Visible Shew, Apparition, or Aspect, or a Being Seen; the receiving whereof into the Eye, is Seeing. And for the cause of Hearing, that the thing heard, sendeth forth an Audible Species, that is, an Audible Aspect, or Audible Being Seen; which entring at the Eare, maketh Hearing. Nay for the cause of Understanding also, they say the thing Understood sendeth forth Intelligible Species, that is, an Intelligible Being Seen; which comming into the Understanding, makes us Understand. I say not this, as disapproving the use of Universities: but because I am to speak

hereafter of their office in a Common-wealth, I must let you see on all occasions by the way, what things would be amended in them; amongst which the frequency of insignificant Speech is one.

CHAPTER VI. OF THE INTERIOUR BEGINNINGS OF VOLUNTARY MOTIONS

COMMONLY CALLED THE PASSIONS. AND THE SPEECHES BY WHICH THEY ARE EXPRESSED.

Endeavour; Appetite; Desire; Hunger; Thirst; Aversion

This Endeavour, when it is toward something which causes it, is called APPETITE, or DESIRE; the later, being the generall name; and the other, oftentimes restrayned to signifie the Desire of Food, namely Hunger and Thirst. And when the Endeavour is fromward something, it is generally called AVERSION. These words Appetite, and Aversion we have from the Latines; and they both of them signifie the motions, one of approaching, the other of retiring. So also do the Greek words for the same, which are orme and aphorme. For nature it selfe does often presse upon men those truths, which afterwards, when they look for somewhat beyond Nature, they stumble at. For the Schooles find in meere Appetite to go, or move, no actuall Motion at all: but because some Motion they must acknowledge, they call it Metaphoricall Motion; which is but an absurd speech; for though Words may be called metaphoricall; Bodies, and Motions cannot.

That which men Desire, they are also sayd to LOVE; and to HATE those things, for which they have Aversion. So that Desire, and Love, are the same thing; save that by Desire, we alwayes signifie the Absence of the object; by Love, most commonly the Presence of the same. So also by Aversion, we signifie the Absence; and by Hate, the Presence of the Object.

Of Appetites, and Aversions, some are born with men; as Appetite of food, Appetite of excretion, and exoneration, (which may also and more properly be called Aversions, from somewhat they feelee in their Bodies;) and some other Appetites, not many. The rest, which are Appetites of particular things, proceed from Experience, and triall of their effects upon themselves, or other men. For of things wee know not at all, or believe not to be, we can have no further Desire, than to tast and try. But Aversion wee have for things, not onely which we know have hurt us; but also that we do not know whether they will hurt us, or not...

CHAPTER X. OF POWER, WORTH, DIGNITY, HONOUR AND WORTHINESS

Power

The POWER of a Man, (to take it Universally,) is his present means, to obtain some future apparent Good. And is either Originall, or Instrumentall.

Naturall Power, is the eminence of the Faculties of Body, or Mind: as extraordinary Strength, Forme, Prudence, Arts, Eloquence, Liberality, Nobility. Instrumentall are those Powers, which acquired by these, or by fortune, are means and Instruments to acquire more: as Riches, Reputation, Friends, and the Secret working of God, which men call Good Luck. For the nature of Power, is in this point, like to Fame, increasing as it proceeds; or like the motion of heavy bodies, which the further they go, make still the more hast.

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The Greatest of humane Powers, is that which is compounded of the Powers of most men, united by consent, in one person, Naturall, or civill, that has the use of all their Powers depending on his will; such as is the Power of a Common-wealth: or depending on the wills of each particular; such as is the Power of a Faction, or of divers factions leagued. Therefore to have servants, is Power; To have Friends, is Power: for they are strengths united.

Also Riches joyned with liberality, is Power; because it procureth friends, and servants: Without liberality, not so; because in this case they defend not; but expose men to Envy, as a Prey.

Reputation of power, is Power; because it draweth with it the adhaerance of those that need protection.

So is Reputation of love of a mans Country, (called Popularity,) for the same Reason.

Also, what quality soever maketh a man beloved, or feared of many; or the reputation of such quality, is Power; because it is a means to have the assistance, and service of many.

Good successe is Power; because it maketh reputation of Wisdome, or good fortune; which makes men either feare him, or rely on him.

Affability of men already in power, is encrease of Power; because it gaineth love.

Reputation of Prudence in the conduct of Peace or War, is Power; because to prudent men, we commit the government of our selves, more willingly than to others.

Nobility is Power, not in all places, but onely in those Common-wealths, where it has Priviledges: for in such priviledges consisteth their Power.

Eloquence is Power; because it is seeming Prudence.

Forme is Power; because being a promise of Good, it recommendeth men to the favour of women and strangers.

The Sciences, are small Power; because not eminent; and therefore, not acknowledged in any man; nor are at all, but in a few; and in them, but of a few things. For Science is of that nature, as none can understand it to be, but such as in a good measure have attayned it.

Arts of publique use, as Fortification, making of Engines, and other Instruments of War; because they conferre to Defence, and Victory, are Power; And though the true Mother of them, be Science, namely the Mathematicques; yet, because they are brought into the Light, by the hand of the Artificer, they be esteemed (the Midwife passing with the vulgar for the Mother,) as his issue.

Worth

The Value, or WORTH of a man, is as of all other things, his Price; that is to say, so much as would be given for the use of his Power: and therefore is not absolute; but a thing dependant on the need and judgement of another. An able conductor of Souldiers, is of great Price in time of War present, or

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imminent; but in Peace not so. A learned and uncorrupt Judge, is much Worth in time of Peace; but not so much in War. And as in other things, so in men, not the seller, but the buyer determines the Price. For let a man (as most men do,) rate themselves as the highest Value they can; yet their true Value is no more than it is esteemed by others...

CHAPTER XI. OF THE DIFFERENCE OF MANNERS

What Is Here Meant By Manners

By MANNERS, I mean not here, Decency of behaviour; as how one man should salute another, or how a man should wash his mouth, or pick his teeth before company, and such other points of the Small Morals; But those qualities of man-kind, that concern their living together in Peace, and Unity. To which end we are to consider, that the Felicity of this life, consisteth not in the repose of a mind satisfied. For there is no such Finis Ultimus, (utmost ayme,) nor Summum Bonum, (greatest good,) as is spoken of in the Books of the old Morall Philosophers. Nor can a man any more live, whose Desires are at an end, than he, whose Senses and Imaginations are at a stand. Felicity is a continuall progresse of the desire, from one object to another; the attaining of the former, being still but the way to the later. The cause whereof is, That the object of mans desire, is not to enjoy once onely, and for one instant of time; but to assure for ever, the way of his future desire. And therefore the voluntary actions, and inclinations of all men, tend, not only to the procuring, but also to the assuring of a contented life; and differ onely in the way: which ariseth partly from the diversity of passions, in divers men; and partly from the difference of the knowledge, or opinion each one has of the causes, which produce the effect desired.

A Restlesse Desire Of Power, In All Men

So that in the first place, I put for a generall inclination of all mankind, a perpetuall and restlesse desire of Power after power, that ceaseth onely in Death. And the cause of this, is not alwayes that a man hopes for a more intensive delight, than he has already attained to; or that he cannot be content with a moderate power: but because he cannot assure the power and means to live well, which he hath present, without the acquisition of more. And from hence it is, that Kings, whose power is greatest, turn their endeavours to the assuring it a home by Lawes, or abroad by Wars: and when that is done, there succeedeth a new desire; in some, of Fame from new Conquest; in others, of ease and sensuall pleasure; in others, of admiration, or being flattered for excellence in some art, or other ability of the mind.

Love Of Contention From Competition

Competition of Riches, Honour, command, or other power, enclineth to Contention, Enmity, and War: because the way of one Competitor, to the attaining of his desire, is to kill, subdue, supplant, or repell the other. Particularly, competition of praise, enclineth to a reverence of Antiquity. For men contend with the living, not with the dead; to these ascribing more than due, that they may obscure the glory of the other.

Civil Obedience From Love Of Ease

Desire of Ease, and sensuall Delight, disposeth men to obey a common Power: because by such Desires, a man doth abandon the protection might be hoped for from his own Industry, and labour.

From Feare Of Death Or Wounds

Fear of Death, and Wounds, disposeth to the same; and for the same reason. On the contrary, needy men, and hardy, not contented with their present condition; as also, all men that are ambitious of Military command, are enclined to continue the causes of warre; and to stirre up trouble and sedition: for there is no honour Military but by warre; nor any such hope to mend an ill game, as by causing a new shuffle.

And From Love Of Arts

Desire of Knowledge, and Arts of Peace, enclineth men to obey a common Power: For such Desire, containeth a desire of leasure; and consequently protection from some other Power than their own.

Love Of Vertue, From Love Of Praise

Desire of Praise, disposeth to laudable actions, such as please them whose judgement they value; for of these men whom we contemn, we contemn also the Praises. Desire of Fame after death does the same. And though after death, there be no sense of the praise given us on Earth, as being joyes, that are either swallowed up in the unspeakable joyes of Heaven, or extinguished in the extreme torments of Hell: yet is not such Fame vain; because men have a present delight therein, from the foresight of it, and of the benefit that may rebound thereby to their posterity: which though they now see not, yet they imagine; and any thing that is pleasure in the sense, the same also is pleasure in the imagination.

CHAPTER XII. OF RELIGION

Religion, In Man Onely

Seeing there are no signes, nor fruit of Religion, but in Man onely; there is no cause to doubt, but that the seed of Religion, is also onely in Man; and consisteth in some peculiar quality, or at least in some eminent degree thereof, not to be found in other Living creatures...

Made Different By Culture

For these seeds have received culture from two sorts of men. One sort have been they, that have nourished, and ordered them, according to their own invention. The other, have done it, by Gods commandement, and direction: but both sorts have done it, with a purpose to make those men that relied on them, the more apt to Obedience, Lawes, Peace, Charity, and civill Society. So that the Religion of the former sort, is a part of humane Politiques; and teacheth part of the duty which Earthly Kings require of their Subjects. And the Religion of the later sort is Divine Politiques; and containeth Precepts to those that have yeilded themselves subjects in the Kingdome of God. Of the former sort, were all the Founders of Common-wealths, and the Law-givers of the Gentiles: Of the later sort, were Abraham, Moses, and our Blessed Saviour; by whom have been derived unto us the Lawes of the Kingdome of God...

**CHAPTER XIII. OF THE NATURALL CONDITION OF MANKIND,
AS CONCERNING THEIR FELICITY, AND MISERY**

Nature hath made men so equall, in the faculties of body, and mind; as that though there bee found one man sometimes manifestly stronger in body, or of quicker mind then another; yet when all is reckoned together, the difference between man, and man, is not so considerable, as that one man can thereupon claim to himselfe any benefit, to which another may not pretend, as well as he. For as to the strength of body, the weakest has strength enough to kill the strongest, either by secret machination, or by confederacy with others, that are in the same danger with himselfe.

And as to the faculties of the mind, (setting aside the arts grounded upon words, and especially that skill of proceeding upon generall, and infallible rules, called Science; which very few have, and but in few things; as being not a native faculty, born with us; nor attained, (as Prudence,) while we look after somewhat els,) I find yet a greater equality amongst men, than that of strength. For Prudence, is but Experience; which equall time, equally bestowes on all men, in those things they equally apply themselves unto. That which may perhaps make such equality incredible, is but a vain conceit of ones owne wisdom, which almost all men think they have in a greater degree, than the Vulgar; that is, than all men but themselves, and a few others, whom by Fame, or for concurring with themselves, they approve. For such is the nature of men, that howsoever they may acknowledge many others to be more witty, or more eloquent, or more learned; Yet they will hardly believe there be many so wise as themselves: For they see their own wit at hand, and other mens at a distance. But this proveth rather that men are in that point equall, than unequall. For there is not ordinarily a greater signe of the equall distribution of any thing, than that every man is contented with his share.

From Equality Proceeds Diffidence

From this equality of ability, ariseth equality of hope in the attaining of our Ends. And therefore if any two men desire the same thing, which neverthesse they cannot both enjoy, they become enemies; and in the way to their End, (which is principally their owne conservation, and sometimes their delectation only,) endeavour to destroy, or subdue one an other. And from hence it comes to passe, that where an Invader hath no more to feare, than an other mans single power; if one plant, sow, build, or possesse a convenient Seat, others may probably be expected to come prepared with forces united, to dispossesse, and deprive him, not only of the fruit of his labour, but also of his life, or liberty. And the Invader again is in the like danger of another.

From Diffidence Warre

And from this diffidence of one another, there is no way for any man to secure himselfe, so reasonable, as Anticipation; that is, by force, or wiles, to master the persons of all men he can, so long, till he see no other power great enough to endanger him: And this is no more than his own conservation requireth, and is generally allowed. Also because there be some, that taking pleasure in contemplating their own power in the acts of conquest, which they pursue farther than their security requires; if others, that otherwise would be glad to be at ease within modest bounds, should not by invasion increase their power, they would not be able, long time, by standing only on their defence, to subsist. And by consequence, such augmentation of dominion over men, being necessary to a mans conservation, it ought to be allowed him.

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Againe, men have no pleasure, (but on the contrary a great deale of grieve) in keeping company, where there is no power able to over-awe them all. For every man looketh that his companion should value him, at the same rate he sets upon himselfe: And upon all signes of contempt, or undervaluing, naturally endeavours, as far as he dares (which amongst them that have no common power, to keep them in quiet, is far enough to make them destroy each other,) to extort a greater value from his contemners, by damage; and from others, by the example.

So that in the nature of man, we find three principall causes of quarrel. First, Competition; Secondly, Diffidence; Thirdly, Glory.

The first, maketh men invade for Gain; the second, for Safety; and the third, for Reputation. The first use Violence, to make themselves Masters of other mens persons, wives, children, and cattell; the second, to defend them; the third, for trifles, as a word, a smile, a different opinion, and any other signe of undervalue, either direct in their Persons, or by reflexion in their Kindred, their Friends, their Nation, their Profession, or their Name.

Out Of Civil States,

There Is Alwayes Warre Of Every One Against Every One Hereby it is manifest, that during the time men live without a common Power to keep them all in awe, they are in that condition which is called Warre; and such a warre, as is of every man, against every man. For WARRE, consisteth not in Battell onely, or the act of fighting; but in a tract of time, wherein the Will to contend by Battell is sufficiently known: and therefore the notion of Time, is to be considered in the nature of Warre; as it is in the nature of Weather. For as the nature of Foule weather, lyeth not in a showre or two of rain; but in an inclination thereto of many dayes together: So the nature of War, consisteth not in actuall fighting; but in the known disposition thereto, during all the time there is no assurance to the contrary. All other time is PEACE.

The Incommodities Of Such A War

Whatsoever therefore is consequent to a time of Warre, where every man is Enemy to every man; the same is consequent to the time, wherein men live without other security, than what their own strength, and their own invention shall furnish them withall. In such condition, there is no place for Industry; because the fruit thereof is uncertain; and consequently no Culture of the Earth; no Navigation, nor use of the commodities that may be imported by Sea; no commodious Building; no Instruments of moving, and removing such things as require much force; no Knowledge of the face of the Earth; no account of Time; no Arts; no Letters; no Society; and which is worst of all, continuall feare, and danger of violent death; And the life of man, solitary, poore, nasty, brutish, and short.

It may seem strange to some man, that has not well weighed these things; that Nature should thus dissociate, and render men apt to invade, and destroy one another: and he may therefore, not trusting to this Inference, made from the Passions, desire perhaps to have the same confirmed by Experience. Let him therefore consider with himselfe, when taking a journey, he armes himselfe, and seeks to go well accompanied; when going to sleep, he locks his dores; when even in his house he locks his chests; and this when he knows there bee Lawes, and publike Officers, armed, to revenge all injuries shall bee done him; what opinion he has of his fellow subjects, when he rides armed; of his fellow Citizens, when he locks his dores; and of his children, and servants, when he locks his chests. Does he not there as much

accuse mankind by his actions, as I do by my words? But neither of us accuse mans nature in it. The Desires, and other Passions of man, are in themselves no Sin. No more are the Actions, that proceed from those Passions, till they know a Law that forbids them; which till Lawes be made they cannot know: nor can any Law be made, till they have agreed upon the Person that shall make it.

It may peradventure be thought, there was never such a time, nor condition of warre as this; and I believe it was never generally so, over all the world: but there are many places, where they live so now. For the savage people in many places of America, except the government of small Families, the concord whereof dependeth on naturall lust, have no government at all; and live at this day in that brutish manner, as I said before. Howsoever, it may be perceived what manner of life there would be, where there were no common Power to feare; by the manner of life, which men that have formerly lived under a peacefull government, use to degenerate into, in a civill Warre.

But though there had never been any time, wherein particular men were in a condition of warre one against another; yet in all times, Kings, and persons of Sovereigne authority, because of their Independency, are in continuall jealousies, and in the state and posture of Gladiators; having their weapons pointing, and their eyes fixed on one another; that is, their Forts, Garrisons, and Guns upon the Frontiers of their Kingdomes; and continuall Spyes upon their neighbours; which is a posture of War. But because they uphold thereby, the Industry of their Subjects; there does not follow from it, that misery, which accompanies the Liberty of particular men.

In Such A Warre, Nothing Is Unjust

To this warre of every man against every man, this also is consequent; that nothing can be Unjust. The notions of Right and Wrong, Justice and Injustice have there no place. Where there is no common Power, there is no Law: where no Law, no Injustice. Force, and Fraud, are in warre the two Cardinall vertues. Justice, and Injustice are none of the Faculties neither of the Body, nor Mind. If they were, they might be in a man that were alone in the world, as well as his Senses, and Passions. They are Qualities, that relate to men in Society, not in Solitude. It is consequent also to the same condition, that there be no Propriety, no Dominion, no Mine and Thine distinct; but onely that to be every mans that he can get; and for so long, as he can keep it. And thus much for the ill condition, which man by meer Nature is actually placed in; though with a possibility to come out of it, consisting partly in the Passions, partly in his Reason.

The Passions That Incline Men To Peace

The Passions that encline men to Peace, are Feare of Death; Desire of such things as are necessary to commodious living; and a Hope by their Industry to obtain them. And Reason suggesteth convenient Articles of Peace, upon which men may be drawn to agreement. These Articles, are they, which otherwise are called the Lawes of Nature: whereof I shall speak more particularly, in the two following Chapters.

CHAPTER XIV. OF THE FIRST AND SECOND NATURALL LAWES, AND OF CONTRACTS

Right Of Nature What

The RIGHT OF NATURE, which Writers commonly call Jus Naturale, is the Liberty each man hath, to use his own power, as he will himselfe, for the preservation of his own Nature; that is to say, of his own Life; and consequently, of doing any thing, which in his own Judgement, and Reason, hee shall conceive to be the aptest means thereunto.

Liberty What

By LIBERTY, is understood, according to the proper signification of the word, the absence of externall Impediments: which Impediments, may oft take away part of a mans power to do what hee would; but cannot hinder him from using the power left him, according as his judgement, and reason shall dictate to him.

A Law Of Nature What

A LAW OF NATURE, (Lex Naturalis,) is a Precept, or generall Rule, found out by Reason, by which a man is forbidden to do, that, which is destructive of his life, or taketh away the means of preserving the same; and to omit, that, by which he thinketh it may be best preserved. For though they that speak of this subject, use to confound Jus, and Lex, Right and Law; yet they ought to be distinguished; because RIGHT, consisteth in liberty to do, or to forbear; Whereas LAW, determineth, and bindeth to one of them: so that Law, and Right, differ as much, as Obligation, and Liberty; which in one and the same matter are inconsistent.

Naturally Every Man Has Right To Everything

And because the condition of Man, (as hath been declared in the precedent Chapter) is a condition of Warre of every one against every one; in which case every one is governed by his own Reason; and there is nothing he can make use of, that may not be a help unto him, in preserving his life against his enemyes; It followeth, that in such a condition, every man has a Right to every thing; even to one anothers body. And therefore, as long as this naturall Right of every man to every thing endureth, there can be no security to any man, (how strong or wise soever he be,) of living out the time, which Nature ordinarily alloweth men to live.

The Fundamental Law Of Nature

And consequently it is a precept, or generall rule of Reason, "That every man, ought to endeavour Peace, as farre as he has hope of obtaining it; and when he cannot obtain it, that he may seek, and use, all helps, and advantages of Warre." The first branch, of which Rule, containeth the first, and Fundamentall Law of Nature; which is, "To seek Peace, and follow it." The Second, the summe of the Right of Nature; which is, "By all means we can, to defend our selves."

The Second Law Of Nature

From this Fundamentall Law of Nature, by which men are commanded to endeavour Peace, is derived this second Law; "That a man be willing, when others are so too, as farre-forth, as for Peace, and defence of himselfe he shall think it necessary, to lay down this right to all things; and be contented with so much liberty against other men, as he would allow other men against himselfe." For as long as every man holdeth this Right, of doing any thing he liketh; so long are all men in the condition of Warre. But if other men will not lay down their Right, as well as he; then there is no Reason for any one, to divest himselfe of his: For that were to expose himselfe to Prey, (which no man is bound to) rather than to dispose himselfe to Peace. This is that Law of the Gospell; "Whatsoever you require that others should do to you, that do ye to them." And that Law of all men, "Quod tibi feiri non vis, alteri ne feceris."

What it is to lay down a Right

To Lay Downe a mans Right to any thing, is to Divest himselfe of the Liberty, of hindring another of the benefit of his own Right to the same. For he that renounceth, or passeth away his Right, giveth not to any other man a Right which he had not before; because there is nothing to which every man had not Right by Nature: but onely standeth out of his way, that he may enjoy his own originall Right, without hindrance from him; not without hindrance from another. So that the effect which redoundeth to one man, by another mans defect of Right, is but so much diminution of impediments to the use of his own Right originall.

Renouncing (or) Transferring Right What; Obligation Duty Justice

Right is layd aside, either by simply Renouncing it; or by Transferring it to another. By Simply RENOUNCING; when he cares not to whom the benefit thereof redoundeth. By TRANSFERRING; when he intendeth the benefit thereof to some certain person, or persons. And when a man hath in either manner abandoned, or granted away his Right; then is he said to be OBLIGED, or BOUND, not to hinder those, to whom such Right is granted, or abandoned, from the benefit of it: and that he Ought, and it his DUTY, not to make voyd that voluntary act of his own: and that such hindrance is INJUSTICE, and INJURY, as being Sine Jure; the Right being before renounced, or transferred. So that Injury, or Injustice, in the controversies of the world, is somewhat like to that, which in the disputations of Scholers is called Absurdity. For as it is there called an Absurdity, to contradict what one maintained in the Beginning: so in the world, it is called Injustice, and Injury, voluntarily to undo that, which from the beginning he had voluntarily done. The way by which a man either simply Renounceth, or Transferreth his Right, is a Declaration, or Signification, by some voluntary and sufficient signe, or signes, that he doth so Renounce, or Transferre; or hath so Renounced, or Transferred the same, to him that accepteth it. And these Signes are either Words onely, or Actions onely; or (as it happeneth most often) both Words and Actions. And the same are the BONDS, by which men are bound, and obliged: Bonds, that have their strength, not from their own Nature, (for nothing is more easily broken then a mans word,) but from Feare of some evill consequence upon the rupture.

Not All Rights Are Alienable

Whensoever a man Transferreth his Right, or Renounceth it; it is either in consideration of some Right reciprocally transferred to himselfe; or for some other good he hopeth for thereby. For it is a voluntary act: and of the voluntary acts of every man, the object is some Good To Himselfe. And therefore there be some Rights, which no man can be understood by any words, or other signes, to have abandoned, or

transferred. As first a man cannot lay down the right of resisting them, that assault him by force, to take away his life; because he cannot be understood to ayme thereby, at any Good to himselfe. The same may be sayd of Wounds, and Chayns, and Imprisonment; both because there is no benefit consequent to such patience; as there is to the patience of suffering another to be wounded, or imprisoned: as also because a man cannot tell, when he seeth men proceed against him by violence, whether they intend his death or not. And lastly the motive, and end for which this renouncing, and transferring or Right is introduced, is nothing else but the security of a mans person, in his life, and in the means of so preserving life, as not to be weary of it. And therefore if a man by words, or other signes, seem to despoyle himselfe of the End, for which those signes were intended; he is not to be understood as if he meant it, or that it was his will; but that he was ignorant of how such words and actions were to be interpreted.

Contract What

The mutuall transferring of Right, is that which men call CONTRACT.

There is difference, between transferring of Right to the Thing; and transferring, or tradition, that is, delivery of the Thing it selfe. For the Thing may be delivered together with the Translation of the Right; as in buying and selling with ready mony; or exchange of goods, or lands: and it may be delivered some time after.

Covenant What

Again, one of the Contractors, may deliver the Thing contracted for on his part, and leave the other to perform his part at some determinate time after, and in the mean time be trusted; and then the Contract on his part, is called PACT, or COVENANT: Or both parts may contract now, to performe hereafter: in which cases, he that is to performe in time to come, being trusted, his performance is called Keeping Of Promise, or Faith; and the fayling of performance (if it be voluntary) Violation Of Faith...

No Covenant, But Of Possible And Future

The matter, or subject of a Covenant, is alwayes something that falleth under deliberation; (For to Covenant, is an act of the Will; that is to say an act, and the last act, of deliberation;) and is therefore alwayes understood to be something to come; and which is judged Possible for him that Covenanteth, to performe.

And therefore, to promise that which is known to be Impossible, is no Covenant. But if that prove impossible afterwards, which before was thought possible, the Covenant is valid, and bindeth, (though not to the thing it selfe,) yet to the value; or, if that also be impossible, to the unfeigned endeavour of performing as much as is possible; for to more no man can be obliged.

Covenants How Made Voyd

Men are freed of their Covenants two wayes; by Performing; or by being Forgiven. For Performance, is the naturall end of obligation; and Forgivenessse, the restitution of liberty; as being a retransferring of that Right, in which the obligation consisted.

Covenants Extorted By Feare Are Valide

Covenants entred into by fear, in the condition of meer Nature, are obligatory. For example, if I Covenant to pay a ransome, or service for my life, to an enemy; I am bound by it. For it is a Contract, wherein one receiveth the benefit of life; the other is to receive mony, or service for it; and consequently, where no other Law (as in the condition, of meer Nature) forbiddeth the performance, the Covenant is valid. Therefore Prisoners of warre, if trusted with the payment of their Ransome, are obliged to pay it; And if a weaker Prince, make a disadvantageous peace with a stronger, for feare; he is bound to keep it; unlesse (as hath been sayd before) there ariseth some new, and just cause of feare, to renew the war. And even in Common-wealths, if I be forced to redeem my selfe from a Theefe by promising him mony, I am bound to pay it, till the Civill Law discharge me. For whatsoever I may lawfully do without Obligation, the same I may lawfully Covenant to do through feare: and what I lawfully Covenant, I cannot lawfully break.

The Former Covenant To One, Makes Voyd The Later To Another

A former Covenant, makes voyd a later. For a man that hath passed away his Right to one man to day, hath it not to passe to morrow to another: and therefore the later promise passeth no Right, but is null.

A Mans Covenant Not To Defend Himselfe, Is Voyd

A Covenant not to defend my selfe from force, by force, is alwayes voyd. For (as I have shewed before) no man can transferre, or lay down his Right to save himselfe from Death, Wounds, and Imprisonment, (the avoyding whereof is the onely End of laying down any Right,) and therefore the promise of not resisting force, in no Covenant transferreth any right; nor is obliging. For though a man may Covenant thus, "Unlesse I do so, or so, kill me;" he cannot Covenant thus "Unless I do so, or so, I will not resist you, when you come to kill me." For man by nature chooseth the lesser evill, which is danger of death in resisting; rather than the greater, which is certain and present death in not resisting. And this is granted to be true by all men, in that they lead Criminals to Execution, and Prison, with armed men, notwithstanding that such Criminals have consented to the Law, by which they are condemned.

No Man Obligated To Accuse Himselfe

A Covenant to accuse ones Selfe, without assurance of pardon, is likewise invalide. For in the condition of Nature, where every man is Judge, there is no place for Accusation: and in the Civill State, the Accusation is followed with Punishment; which being Force, a man is not obliged not to resist. The same is also true, of the Accusation of those, by whose Condemnation a man falls into misery; as of a Father, Wife, or Benefactor. For the Testimony of such an Accuser, if it be not willingly given, is praesumed to be corrupted by Nature; and therefore not to be received: and where a mans Testimony is not to be credited, his not bound to give it. Also Accusations upon Torture, are not to be reputed as Testimonies. For Torture is to be used but as means of conjecture, and light, in the further examination, and search of truth; and what is in that case confessed, tendeth to the ease of him that is Tortured; not to the informing of the Torturers: and therefore ought not to have the credit of a sufficient Testimony: for whether he deliver himselfe by true, or false Accusation, he does it by the Right of preserving his own life.

The End Of An Oath; The Forme Of As Oath

The force of Words, being (as I have formerly noted) too weak to hold men to the performance of their Covenants; there are in mans nature, but two imaginable helps to strengthen it. And those are either a Feare of the consequence of breaking their word; or a Glory, or Pride in appearing not to need to breake it. This later is a Generosity too rarely found to be presumed on, especially in the pursuers of Wealth, Command, or sensuall Pleasure; which are the greatest part of Mankind. The Passion to be reckoned upon, is Fear; whereof there be two very generall Objects: one, the Power of Spirits Invisible; the other, the Power of those men they shall therein Offend. Of these two, though the former be the greater Power, yet the feare of the later is commonly the greater Feare. The Feare of the former is in every man, his own Religion: which hath place in the nature of man before Civill Society. The later hath not so; at least not place enough, to keep men to their promises; because in the condition of meer Nature, the inequality of Power is not discerned, but by the event of Battell. So that before the time of Civill Society, or in the interruption thereof by Warre, there is nothing can strengthen a Covenant of Peace agreed on, against the temptations of Avarice, Ambition, Lust, or other strong desire, but the feare of that Invisible Power, which they every one Worship as God; and Feare as a Revenger of their perfidy. All therefore that can be done between two men not subject to Civill Power, is to put one another to swear by the God he feareth: Which Swearing or OATH, is a Forme Of Speech, Added To A Promise; By Which He That Promiseth, Signifieth, That Unlesse He Performe, He Renounceth The Mercy Of His God, Or Calleth To Him For Vengeance On Himselfe. Such was the Heathen Forme, "Let Jupiter kill me else, as I kill this Beast." So is our Forme, "I shall do thus, and thus, so help me God." And this, with the Rites and Ceremonies, which every one useth in his own Religion, that the feare of breaking faith might be the greater...

CHAPTER XV. OF OTHER LAWES OF NATURE

The Third Law Of Nature, Justice

From that law of Nature, by which we are obliged to transferre to another, such Rights, as being retained, hinder the peace of Mankind, there followeth a Third; which is this, That Men Performe Their Covenants Made: without which, Covenants are in vain, and but Empty words; and the Right of all men to all things remaining, wee are still in the condition of Warre.

Justice And Injustice What

And in this law of Nature, consisteth the Fountain and Originall of JUSTICE. For where no Covenant hath preceded, there hath no Right been transferred, and every man has right to every thing; and consequently, no action can be Unjust. But when a Covenant is made, then to break it is Unjust: And the definition of INJUSTICE, is no other than The Not Performance Of Covenant. And whatsoever is not Unjust, is Just.

Justice And Propriety Begin With The Constitution of Common-wealth But because Covenants of mutuall trust, where there is a feare of not performance on either part, (as hath been said in the former Chapter,) are invalid; though the Originall of Justice be the making of Covenants; yet Injustice actually there can be none, till the cause of such feare be taken away; which while men are in the naturall condition of Warre, cannot be done. Therefore before the names of Just, and Unjust can have place, there must be some coercive Power, to compell men equally to the performance of their Covenants, by

the terrour of some punishment, greater than the benefit they expect by the breach of their Covenant; and to make good that Propriety, which by mutuall Contract men acquire, in recompence of the universall Right they abandon: and such power there is none before the erection of a Common-wealth. And this is also to be gathered out of the ordinary definition of Justice in the Schooles: For they say, that "Justice is the constant Will of giving to every man his own." And therefore where there is no Own, that is, no Propriety, there is no Injustice; and where there is no coercive Power erected, that is, where there is no Common-wealth, there is no Propriety; all men having Right to all things: Therefore where there is no Common-wealth, there nothing is Unjust. So that the nature of Justice, consisteth in keeping of valid Covenants: but the Validity of Covenants begins not but with the Constitution of a Civill Power, sufficient to compell men to keep them: And then it is also that Propriety begins.

Justice Not Contrary To Reason

The Foole hath sayd in his heart, there is no such thing as Justice; and sometimes also with his tongue; seriously alleaging, that every mans conservation, and contentment, being committed to his own care, there could be no reason, why every man might not do what he thought conduced thereunto; and therefore also to make, or not make; keep, or not keep Covenants, was not against Reason, when it conduced to ones benefit. He does not therein deny, that there be Covenants; and that they are sometimes broken, sometimes kept; and that such breach of them may be called Injustice, and the observance of them Justice: but he questioneth, whether Injustice, taking away the feare of God, (for the same Foole hath said in his heart there is no God,) may not sometimes stand with that Reason, which dictateth to every man his own good; and particularly then, when it conduceth to such a benefit, as shall put a man in a condition, to neglect not onely the dispraise, and revilings, but also the power of other men. The Kingdome of God is gotten by violence; but what if it could be gotten by unjust violence? were it against Reason so to get it, when it is impossible to receive hurt by it? and if it be not against Reason, it is not against Justice; or else Justice is not to be approved for good. From such reasoning as this, Succesfull wickednesse hath obtained the Name of Vertue; and some that in all other things have disallowed the violation of Faith; yet have allowed it, when it is for the getting of a Kingdome. And the Heathen that believed, that Saturn was deposed by his son Jupiter, believed neverthesse the same Jupiter to be the avenger of Injustice: Somewhat like to a piece of Law in Cokes Commentaries on Litleton; where he sayes, If the right Heire of the Crown be attainted of Treason; yet the Crown shall descend to him, and Eo Instante the Atteynder be voyd; From which instances a man will be very prone to inferre; that when the Heire apparent of a Kingdome, shall kill him that is in possession, though his father; you may call it Injustice, or by what other name you will; yet it can never be against Reason, seeing all the voluntary actions of men tend to the benefit of themselves; and those actions are most Reasonable, that conduce most to their ends. This specious reasoning is nevertheless false.

For the question is not of promises mutuall, where there is no security of performance on either side; as when there is no Civill Power erected over the parties promising; for such promises are no Covenants: But either where one of the parties has performed already; or where there is a Power to make him performe; there is the question whether it be against reason, that is, against the benefit of the other to performe, or not. And I say it is not against reason. For the manifestation whereof, we are to consider; First, that when a man doth a thing, which notwithstanding any thing can be foreseen, and reckoned on, tendeth to his own destruction, howsoever some accident which he could not expect, arriving may turne it to his benefit; yet such events do not make it reasonably or wisely done. Secondly, that in a condition of Warre, wherein every man to every man, for want of a common Power to keep them all in awe, is an

Enemy, there is no man can hope by his own strength, or wit, to defend himselfe from destruction, without the help of Confederates; where every one expects the same defence by the Confederation, that any one else does: and therefore he which declares he thinks it reason to deceive those that help him, can in reason expect no other means of safety, than what can be had from his own single Power. He therefore that breaketh his Covenant, and consequently declareth that he thinks he may with reason do so, cannot be received into any Society, that unite themselves for Peace and defence, but by the error of them that receive him; nor when he is received, be retayned in it, without seeing the danger of their error; which errors a man cannot reasonably reckon upon as the means of his security; and therefore if he be left, or cast out of Society, he perisheth; and if he live in Society, it is by the errors of other men, which he could not foresee, nor reckon upon; and consequently against the reason of his preservation; and so, as all men that contribute not to his destruction, forbear him onely out of ignorance of what is good for themselves.

As for the Instance of gaining the secure and perpetuall felicity of Heaven, by any way; it is frivolous: there being but one way imaginable; and that is not breaking, but keeping of Covenant.

And for the other Instance of attaining Sovereignty by Rebellion; it is manifest, that though the event follow, yet because it cannot reasonably be expected, but rather the contrary; and because by gaining it so, others are taught to gain the same in like manner, the attempt thereof is against reason. Justice therefore, that is to say, Keeping of Covenant, is a Rule of Reason, by which we are forbidden to do any thing destructive to our life; and consequently a Law of Nature.

There be some that proceed further; and will not have the Law of Nature, to be those Rules which conduce to the preservation of mans life on earth; but to the attaining of an eternall felicity after death; to which they think the breach of Covenant may conduce; and consequently be just and reasonable; (such are they that think it a work of merit to kill, or depose, or rebell against, the Sovereigne Power constituted over them by their own consent.) But because there is no naturall knowledge of mans estate after death; much lesse of the reward that is then to be given to breach of Faith; but onely a believe grounded upon other mens saying, that they know it supernaturally, or that they know those, that knew them, that knew others, that knew it supernaturally; Breach of Faith cannot be called a Precept of Reason, or Nature...

Justice Of Manners, And Justice Of Actions

Again, the Injustice of Manners, is the disposition, or aptitude to do Injurie; and is Injustice before it proceed to Act; and without supposing any individuall person injured. But the Injustice of an Action, (that is to say Injury,) supposeth an individuall person Injured; namely him, to whom the Covenant was made: And therefore many times the injury is received by one man, when the damage redoundeth to another. As when The Master commandeth his servant to give mony to a stranger; if it be not done, the Injury is done to the Master, whom he had before Covenanted to obey; but the damage redoundeth to the stranger, to whom he had no Obligation; and therefore could not Injure him. And so also in Common-wealths, private men may remit to one another their debts; but not robberies or other violences, whereby they are endamaged; because the detaining of Debt, is an Injury to themselves; but Robbery and Violence, are Injuries to the Person of the Common-wealth.

Nothing Done To A Man, By His Own Consent Can Be Injury

Whatsoever is done to a man, conformable to his own Will signified to the doer, is no Injury to him. For if he that doeth it, hath not passed away his originall right to do what he please, by some Antecedent Covenant, there is no breach of Covenant; and therefore no Injury done him. And if he have; then his Will to have it done being signified, is a release of that Covenant; and so again there is no Injury done him.

Justice Commutative, And Distributive

Justice of Actions, is by Writers divided into Commutative, and Distributive; and the former they say consisteth in proportion Arithmetically; the later in proportion Geometrically. Commutative therefore, they place in the equality of value of the things contracted for; And Distributive, in the distribution of equall benefit, to men of equall merit. As if it were Injustice to sell dearer than we buy; or to give more to a man than he merits. The value of all things contracted for, is measured by the Appetite of the Contractors: and therefore the just value, is that which they be contented to give. And Merit (besides that which is by Covenant, where the performance on one part, meriteth the performance of the other part, and falls under Justice Commutative, not Distributive,) is not due by Justice; but is rewarded of Grace onely. And therefore this distinction, in the sense wherein it useth to be expounded, is not right. To speak properly, Commutative Justice, is the Justice of a Contractor; that is, a Performance of Covenant, in Buying, and Selling; Hiring, and Letting to Hire; Lending, and Borrowing; Exchanging, Bartering, and other acts of Contract.

And Distributive Justice, the Justice of an Arbitrator; that is to say, the act of defining what is Just. Wherein, (being trusted by them that make him Arbitrator,) if he performe his Trust, he is said to distribute to every man his own: and his is indeed Just Distribution, and may be called (though improperly) Distributive Justice; but more properly Equity; which also is a Law of Nature, as shall be shewn in due place...

The Fifth, Mutuall accommodation, or Compeasance

A fifth Law of Nature, is COMPEASANCE; that is to say, "That every man strive to accommodate himselfe to the rest." For the understanding whereof, we may consider, that there is in mens aptnesse to Society; a diversity of Nature, rising from their diversity of Affections; not unlike to that we see in stones brought together for building of an Aedifice. For as that stone which by the asperity, and irregularity of Figure, takes more room from others, than it selfe fills; and for the hardnesse, cannot be easily made plain, and thereby hindereth the building, is by the builders cast away as unprofitable, and troublesome: so also, a man that by asperity of Nature, will strive to retain those things which to himselfe are superfluous, and to others necessary; and for the stubbornness of his Passions, cannot be corrected, is to be left, or cast out of Society, as combersome thereunto. For seeing every man, not onely by Right, but also by necessity of Nature, is supposed to endeavour all he can, to obtain that which is necessary for his conservation; He that shall oppose himselfe against it, for things superfluous, is guilty of the warre that thereupon is to follow; and therefore doth that, which is contrary to the fundamentall Law of Nature, which commandeth To Seek Peace. The observers of this Law, may be called

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SOCIABLE, (the Latines call them Commodi;) The contrary, Stubborn, Insociable, Froward, Intractable...

The Eleventh Equity

Also "If a man be trusted to judge between man and man," it is a precept of the Law of Nature, "that he deale Equally between them." For without that, the Controversies of men cannot be determined but by Warre. He therefore that is partiall in judgment, doth what in him lies, to deterre men from the use of Judges, and Arbitrators; and consequently, (against the fundamentall Lawe of Nature) is the cause of Warre.

The observance of this law, from the equall distribution to each man, of that which in reason belongeth to him, is called EQUITY, and (as I have sayd before) distributive justice: the violation, Acception Of Persons, Prosopolepsia.

The Twelfth, Equall Use Of Things Common

And from this followeth another law, "That such things as cannot be divided, be enjoyed in Common, if it can be; and if the quantity of the thing permit, without Stint; otherwise Proportionably to the number of them that have Right." For otherwise the distribution is Unequall, and contrary to Equitie.

The Thirteenth, Of Lot

But some things there be, that can neither be divided, nor enjoyed in common. Then, The Law of Nature, which prescribeth Equity, requireth, "That the Entire Right; or else, (making the use alternate,) the First Possession, be determined by Lot." For equall distribution, is of the Law of Nature; and other means of equall distribution cannot be imagined.

The Fourteenth, Of Primogeniture, And First Seising

Of Lots there be two sorts, Arbitrary, and Naturall. Arbitrary, is that which is agreed on by the Competitors; Naturall, is either Primogeniture, (which the Greek calls Kleronomia, which signifies, Given by Lot;) or First Seisure.

And therefore those things which cannot be enjoyed in common, nor divided, ought to be adjudged to the First Possessor; and in some cases to the First-Borne, as acquired by Lot.

The Fifteenth, Of Mediators

It is also a Law of Nature, "That all men that mediate Peace, be allowed safe Conduct." For the Law that commandeth Peace, as the End, commandeth Intercession, as the Means; and to Intercession the Means is safe Conduct.

The Sixteenth, Of Submission To Arbitrement

And because, though men be never so willing to observe these Lawes, there may neverthelesse arise questions concerning a mans action; First, whether it were done, or not done; Secondly (if done) whether against the Law, or not against the Law; the former whereof, is called a question Of Fact; the later a question Of Right; therefore unlesse the parties to the question, Covenant mutually to stand to the sentence of another, they are as farre from Peace as ever. This other, to whose Sentence they submit, is called an ARBITRATOR. And therefore it is of the Law of Nature, "That they that are at controversie, submit their Right to the judgement of an Arbitrator."

The Seventeenth, No Man Is His Own Judge

And seeing every man is presumed to do all things in order to his own benefit, no man is a fit Arbitrator in his own cause: and if he were never so fit; yet Equity allowing to each party equall benefit, if one be admitted to be Judge, the other is to be admitted also; & so the controversie, that is, the cause of War, remains, against the Law of Nature.

The Eighteenth, No Man To Be Judge, That Has In Him Cause Of Partiality

For the same reason no man in any Cause ought to be received for Arbitrator, to whom greater profit, or honour, or pleasure apparently ariseth out of the victory of one party, than of the other: for he hath taken (though an unavoydable bribe, yet) a bribe; and no man can be obliged to trust him. And thus also the controversie, and the condition of War remaineth, contrary to the Law of Nature.

The Nineteenth, Of Witnesse

And in a controversie of Fact, the Judge being to give no more credit to one, than to the other, (if there be no other Arguments) must give credit to a third; or to a third and fourth; or more: For else the question is undecided, and left to force, contrary to the Law of Nature.

These are the Lawes of Nature, dictating Peace, for a means of the conservation of men in multitudes; and which onely concern the doctrine of Civill Society. There be other things tending to the destruction of particular men; as Drunkenness, and all other parts of Intemperance; which may therefore also be reckoned amongst those things which the Law of Nature hath forbidden; but are not necessary to be mentioned, nor are pertinent enough to this place.

A Rule, By Which The Laws Of Nature May Easily Be Examined

And though this may seem too subtile a deduction of the Lawes of Nature, to be taken notice of by all men; whereof the most part are too busie in getting food, and the rest too negligent to understand; yet to leave all men unexcusable, they have been contracted into one easie sum, intelligible even to the meanest capacity; and that is, "Do not that to another, which thou wouldest not have done to thy selfe;" which sheweth him, that he has no more to do in learning the Lawes of Nature, but, when weighing the actions of other men with his own, they seem too heavy, to put them into the other part of the ballance, and his own into their place, that his own passions, and selfe-love, may adde nothing to the weight; and then there is none of these Lawes of Nature that will not appear unto him very reasonable.

The Lawes Of Nature Oblige In Conscience Alwayes,

But In Effect Then Onely When There Is Security The Lawes of Nature oblige In Foro Interno; that is to say, they bind to a desire they should take place: but In Foro Externo; that is, to the putting them in act, not alwayes. For he that should be modest, and tractable, and performe all he promises, in such time, and place, where no man els should do so, should but make himselfe a prey to others, and procure his own certain ruine, contrary to the ground of all Lawes of Nature, which tend to Natures preservation. And again, he that shall observe the same Lawes towards him, observes them not himselfe, seeketh not Peace, but War; & consequently the destruction of his Nature by Violence.

And whatsoever Lawes bind In Foro Interno, may be broken, not onely by a fact contrary to the Law but also by a fact according to it, in case a man think it contrary. For though his Action in this case, be according to the Law; which where the Obligation is In Foro Interno, is a breach.

The Laws Of Nature Are Eternal;

The Lawes of Nature are Immutable and Eternall, For Injustice, Ingratitude, Arrogance, Pride, Iniquity, Acception of persons, and the rest, can never be made lawfull. For it can never be that Warre shall preserve life, and Peace destroy it. ..

These dictates of Reason, men use to call by the name of Lawes; but improperly: for they are but Conclusions, or Theoremes concerning what conduceth to the conservation and defence of themselves; whereas Law, properly is the word of him, that by right hath command over others. But yet if we consider the same Theoremes, as delivered in the word of God, that by right commandeth all things; then are they properly called Lawes.

PART II. OF COMMON-WEALTH

CHAPTER XVII. OF THE CAUSES, GENERATION, AND DEFINITION OF A

COMMON-WEALTH

The End Of Common-wealth, Particular Security

The finall Cause, End, or Designe of men, (who naturally love Liberty, and Dominion over others,) in the introduction of that restraint upon themselves, (in which wee see them live in Common-wealths,) is the foresight of their own preservation, and of a more contented life thereby; that is to say, of getting themselves out from that miserable condition of Warre, which is necessarily consequent (as hath been shewn) to the naturall Passions of men, when there is no visible Power to keep them in awe, and tye them by feare of punishment to the performance of their Covenants, and observation of these Lawes of Nature set down in the fourteenth and fifteenth Chapters.

Which Is Not To Be Had From The Law Of Nature:

For the Lawes of Nature (as Justice, Equity, Modesty, Mercy, and (in summe) Doing To Others, As Wee Would Be Done To,) if themselves, without the terrour of some Power, to cause them to be observed, are contrary to our naturall Passions, that carry us to Partiality, Pride, Revenge, and the like. And

Covenants, without the Sword, are but Words, and of no strength to secure a man at all. Therefore notwithstanding the Lawes of Nature, (which every one hath then kept, when he has the will to keep them, when he can do it safely,) if there be no Power erected, or not great enough for our security; every man will and may lawfully rely on his own strength and art, for caution against all other men. And in all places, where men have lived by small Families, to robbe and spoyle one another, has been a Trade, and so farre from being reputed against the Law of Nature, that the greater spoyles they gained, the greater was their honour; and men observed no other Lawes therein, but the Lawes of Honour; that is, to abstain from cruelty, leaving to men their lives, and instruments of husbandry. And as small Familyes did then; so now do Cities and Kingdomes which are but greater Families (for their own security) enlarge their Dominions, upon all pretences of danger, and fear of Invasion, or assistance that may be given to Invaders, endeavour as much as they can, to subdue, or weaken their neighbours, by open force, and secret arts, for want of other Caution, justly; and are remembred for it in after ages with honour.

Nor From The Conjunction Of A Few Men Or Familyes

Nor is it the joyning together of a small number of men, that gives them this security; because in small numbers, small additions on the one side or the other, make the advantage of strength so great, as is sufficient to carry the Victory; and therefore gives encouragement to an Invasion. The Multitude sufficient to confide in for our Security, is not determined by any certain number, but by comparison with the Enemy we feare; and is then sufficient, when the odds of the Enemy is not of so visible and conspicuous moment, to determine the event of warre, as to move him to attempt.

Nor From A Great Multitude, Unlesse Directed By One Judgement

And be there never so great a Multitude; yet if their actions be directed according to their particular judgements, and particular appetites, they can expect thereby no defence, nor protection, neither against a Common enemy, nor against the injuries of one another. For being distracted in opinions concerning the best use and application of their strength, they do not help, but hinder one another; and reduce their strength by mutuall opposition to nothing: whereby they are easily, not onely subdued by a very few that agree together; but also when there is no common enemy, they make warre upon each other, for their particular interests. For if we could suppose a great Multitude of men to consent in the observation of Justice, and other Lawes of Nature, without a common Power to keep them all in awe; we might as well suppose all Man-kind to do the same; and then there neither would be nor need to be any Civill Government, or Common-wealth at all; because there would be Peace without subjection.

And That Continually

Nor is it enough for the security, which men desire should last all the time of their life, that they be governed, and directed by one judgement, for a limited time; as in one Battell, or one Warre. For though they obtain a Victory by their unanimous endeavour against a forraign enemy; yet afterwards, when either they have no common enemy, or he that by one part is held for an enemy, is by another part held for a friend, they must needs by the difference of their interests dissolve, and fall again into a Warre amongst themselves.

Why Certain Creatures Without Reason, Or Speech, Do Nevertheless Live In Society, Without Any Coercive Power

It is true, that certain living creatures, as Bees, and Ants, live sociably one with another, (which are therefore by Aristotle numbred amongst Politicall creatures;) and yet have no other direction, than their particular judgements and appetites; nor speech, whereby one of them can signifie to another, what he thinks expedient for the common benefit: and therefore some man may perhaps desire to know, why Man-kind cannot do the same. To which I answer,

First, that men are continually in competition for Honour and Dignity, which these creatures are not; and consequently amongst men there ariseth on that ground, Envy and Hatred, and finally Warre; but amongst these not so.

Secondly, that amongst these creatures, the Common good differeth not from the Private; and being by nature enclined to their private, they procure thereby the common benefit. But man, whose Joy consisteth in comparing himselfe with other men, can relish nothing but what is eminent.

Thirdly, that these creatures, having not (as man) the use of reason, do not see, nor think they see any fault, in the administration of their common businesse: whereas amongst men, there are very many, that thinke themselves wiser, and abler to govern the Publique, better than the rest; and these strive to reforme and innovate, one this way, another that way; and thereby bring it into Distraction and Civill warre.

Fourthly, that these creatures, though they have some use of voice, in making knowne to one another their desires, and other affections; yet they want that art of words, by which some men can represent to others, that which is Good, in the likenesse of Evill; and Evill, in the likenesse of Good; and augment, or diminish the apparent greatnesse of Good and Evill; discontenting men, and troubling their Peace at their pleasure.

Fiftly, irrationall creatures cannot distinguish betweene Injury, and Dammage; and therefore as long as they be at ease, they are not offended with their fellowes: whereas Man is then most troublesome, when he is most at ease: for then it is that he loves to shew his Wisdome, and controule the Actions of them that governe the Common-wealth.

Lastly, the agreement of these creatures is Naturall; that of men, is by Covenant only, which is Artificiall: and therefore it is no wonder if there be somewhat else required (besides Covenant) to make their Agreement constant and lasting; which is a Common Power, to keep them in awe, and to direct their actions to the Common Benefit.

The Generation Of A Common-wealth

The only way to erect such a Common Power, as may be able to defend them from the invasion of Forraigners, and the injuries of one another, and thereby to secure them in such sort, as that by their owne industrie, and by the fruites of the Earth, they may nourish themselves and live contentedly; is, to conferre all their power and strength upon one Man, or upon one Assembly of men, that may reduce all their Wills, by plurality of voices, unto one Will: which is as much as to say, to appoint one man, or

Assembly of men, to beare their Person; and every one to owne, and acknowledge himselfe to be Author of whatsoever he that so beareth their Person, shall Act, or cause to be Acted, in those things which concerne the Common Peace and Safetie; and therein to submit their Wills, every one to his Will, and their Judgements, to his Judgment. This is more than Consent, or Concord; it is a reall Unitie of them all, in one and the same Person, made by Covenant of every man with every man, in such manner, as if every man should say to every man, "I Authorise and give up my Right of Governing my selfe, to this Man, or to this Assembly of men, on this condition, that thou give up thy Right to him, and Authorise all his Actions in like manner." This done, the Multitude so united in one Person, is called a COMMON-WEALTH, in latine CIVITAS. This is the Generation of that great LEVIATHAN, or rather (to speake more reverently) of that Mortall God, to which wee owe under the Immortall God, our peace and defence. For by this Authoritie, given him by every particular man in the Common-Wealth, he hath the use of so much Power and Strength conferred on him, that by terror thereof, he is inabled to forme the wills of them all, to Peace at home, and mutuall ayd against their enemies abroad.

The Definition Of A Common-wealth

And in him consisteth the Essence of the Common-wealth; which (to define it,) is "One Person, of whose Acts a great Multitude, by mutuall Covenants one with another, have made themselves every one the Author, to the end he may use the strength and means of them all, as he shall think expedient, for their Peace and Common Defence."

Soveraigne, And Subject, What

And he that carryeth this Person, as called SOVERAIGNE, and said to have Soveraigne Power; and every one besides, his SUBJECT.

The attaining to this Soveraigne Power, is by two wayes. One, by Naturall force; as when a man maketh his children, to submit themselves, and their children to his government, as being able to destroy them if they refuse, or by Warre subdueth his enemies to his will, giving them their lives on that condition. The other, is when men agree amongst themselves, to submit to some Man, or Assembly of men, voluntarily, on confidence to be protected by him against all others. This later, may be called a Politicall Common-wealth, or Common-wealth by Institution; and the former, a Common-wealth by Acquisition. And first, I shall speak of a Common-wealth by Institution.

CHAPTER XVIII. OF THE RIGHTS OF SOVERAIGNES BY INSTITUTION

The Act Of Instituting A Common-wealth, What

A Common-wealth is said to be Instituted, when a Multitude of men do Agree, and Covenant, Every One With Every One, that to whatsoever Man, or Assembly Of Men, shall be given by the major part, the Right to Present the Person of them all, (that is to say, to be their Representative;) every one, as well he that Voted For It, as he that Voted Against It, shall Authorise all the Actions and Judgements, of that Man, or Assembly of men, in the same manner, as if they were his own, to the end, to live peaceably amongst themselves, and be protected against other men.

The Consequences To Such Institution, Are

I. The Subjects Cannot Change The Forme Of Government

From this Institution of a Common-wealth are derived all the Rights, and

Faculties of him, or them, on whom the Sovereigne Power is conferred by the consent of the People assembled.

First, because they Covenant, it is to be understood, they are not obliged by former Covenant to any thing repugnant hereunto. And Consequently they that have already Instituted a Common-wealth, being thereby bound by Covenant, to own the Actions, and Judgements of one, cannot lawfully make a new Covenant, amongst themselves, to be obedient to any other, in any thing whatsoever, without his permission. And therefore, they that are subjects to a Monarch, cannot without his leave cast off Monarchy, and return to the confusion of a disunited Multitude; nor transferre their Person from him that beareth it, to another Man, or other Assembly of men: for they are bound, every man to every man, to Own, and be reputed Author of all, that he that already is their Sovereigne, shall do, and judge fit to be done: so that any one man dissenting, all the rest should break their Covenant made to that man, which is injustice: and they have also every man given the Sovereignty to him that beareth their Person; and therefore if they depose him, they take from him that which is his own, and so again it is injustice. Besides, if he that attempteth to depose his Sovereign, be killed, or punished by him for such attempt, he is author of his own punishment, as being by the Institution, Author of all his Sovereign shall do: And because it is injustice for a man to do any thing, for which he may be punished by his own authority, he is also upon that title, unjust. And whereas some men have pretended for their disobedience to their Sovereign, a new Covenant, made, not with men, but with God; this also is unjust: for there is no Covenant with God, but by mediation of some body that representeth Gods Person; which none doth but Gods Lieutenant, who hath the Sovereignty under God. But this pretence of Covenant with God, is so evident a lye, even in the pretenders own consciences, that it is not onely an act of an unjust, but also of a vile, and unmanly disposition.

2. Sovereigne Power Cannot Be Forfeited

Secondly, Because the Right of bearing the Person of them all, is given to him they make Sovereigne, by Covenant onely of one to another, and not of him to any of them; there can happen no breach of Covenant on the part of the Sovereigne; and consequently none of his Subjects, by any pretence of forfeiture, can be freed from his Subjection. That he which is made Sovereigne maketh no Covenant with his Subjects beforehand, is manifest; because either he must make it with the whole multitude, as one party to the Covenant; or he must make a severall Covenant with every man. With the whole, as one party, it is impossible; because as yet they are not one Person: and if he make so many severall Covenants as there be men, those Covenants after he hath the Sovereignty are voyd, because what act soever can be pretended by any one of them for breach thereof, is the act both of himselfe, and of all the rest, because done in the Person, and by the Right of every one of them in particular. Besides, if any one, or more of them, pretend a breach of the Covenant made by the Sovereigne at his Institution; and others, or one other of his Subjects, or himselfe alone, pretend there was no such breach, there is in this case, no Judge to decide the controversie: it returns therefore to the Sword again; and every man recovereth the right of Protecting himselfe by his own strength, contrary to the designe they had in the Institution. It is therefore in vain to grant Sovereignty by way of precedent Covenant. The opinion that any Monarch receiveth his Power by Covenant, that is to say on Condition, proceedeth from want of understanding

this easie truth, that Covenants being but words, and breath, have no force to oblige, contain, constrain, or protect any man, but what it has from the publique Sword; that is, from the untied hands of that Man, or Assembly of men that hath the Sovereignty, and whose actions are avouched by them all, and performed by the strength of them all, in him united. But when an Assembly of men is made Sovereigne; then no man imagineth any such Covenant to have past in the Institution; for no man is so dull as to say, for example, the People of Rome, made a Covenant with the Romans, to hold the Sovereignty on such or such conditions; which not performed, the Romans might lawfully depose the Roman People. That men see not the reason to be alike in a Monarchy, and in a Popular Government, proceedeth from the ambition of some, that are kinder to the government of an Assembly, whereof they may hope to participate, than of Monarchy, which they despair to enjoy.

3. No Man Can Without Injustice Protest Against The Institution Of The Sovereigne Declared By The Major Part.

Thirdly, because the major part hath by consenting voices declared a Sovereigne; he that dissented must now consent with the rest; that is, be contented to avow all the actions he shall do, or else justly be destroyed by the rest. For if he voluntarily entered into the Congregation of them that were assembled, he sufficiently declared thereby his will (and therefore tacitely covenanted) to stand to what the major part should ordayne: and therefore if he refuse to stand thereto, or make Protestation against any of their Decrees, he does contrary to his Covenant, and therefore unjustly. And whether he be of the Congregation, or not; and whether his consent be asked, or not, he must either submit to their decrees, or be left in the condition of warre he was in before; wherein he might without injustice be destroyed by any man whatsoever.

4. The Sovereigns Actions Cannot Be Justly Accused By The Subject

Fourthly, because every Subject is by this Institution Author of all the Actions, and Judgements of the Sovereigne Instituted; it followes, that whatsoever he doth, it can be no injury to any of his Subjects; nor ought he to be by any of them accused of Injustice. For he that doth any thing by authority from another, doth therein no injury to him by whose authority he acteth: But by this Institution of a Common-wealth, every particular man is Author of all the Sovereigne doth; and consequently he that complaineth of injury from his Sovereigne, complaineth of that whereof he himselfe is Author; and therefore ought not to accuse any man but himselfe; no nor himselfe of injury; because to do injury to ones selfe, is impossible. It is true that they that have Sovereigne power, may commit Iniquity; but not Injustice, or Injury in the proper signification.

5. What Soever The Sovereigne Doth, Is Unpunishable By The Subject

Fiftly, and consequently to that which was sayd last, no man that hath Sovereigne power can justly be put to death, or otherwise in any manner by his Subjects punished. For seeing every Subject is author of the actions of his Sovereigne; he punisheth another, for the actions committed by himselfe.

6. The Sovereigne Is Judge Of What Is Necessary For The Peace And Defence Of His Subjects

And because the End of this Institution, is the Peace and Defence of them all; and whosoever has right to the End, has right to the Means; it belongeth of Right, to whatsoever Man, or Assembly that hath the Sovereignty, to be Judge both of the meanes of Peace and Defence; and also of the hindrances, and disturbances of the same; and to do whatsoever he shall think necessary to be done, both beforehand, for the preserving of Peace and Security, by prevention of discord at home and Hostility from abroad; and, when Peace and Security are lost, for the recovery of the same. And therefore,

And Judge Of What Doctrines Are Fit To Be Taught Them

Sixtly, it is annexed to the Sovereignty, to be Judge of what Opinions and Doctrines are averse, and what conducing to Peace; and consequently, on what occasions, how farre, and what, men are to be trusted withall, in speaking to Multitudes of people; and who shall examine the Doctrines of all bookes before they be published. For the Actions of men proceed from their Opinions; and in the wel governing of Opinions, consisteth the well governing of mens Actions, in order to their Peace, and Concord. And though in matter of Doctrine, nothing ought to be regarded but the Truth; yet this is not repugnant to regulating of the same by Peace. For Doctrine Repugnant to Peace, can no more be True, than Peace and Concord can be against the Law of Nature. It is true, that in a Common-wealth, where by the negligence, or unskilfullnesse of Governours, and Teachers, false Doctrines are by time generally received; the contrary Truths may be generally offensive; Yet the most sudden, and rough busling in of a new Truth, that can be, does never breake the Peace, but onely somtimes awake the Warre. For those men that are so remissely governed, that they dare take up Armes, to defend, or introduce an Opinion, are still in Warre; and their condition not Peace, but only a Cessation of Armes for feare of one another; and they live as it were, in the procincts of battaile continually. It belongeth therefore to him that hath the Sovereign Power, to be Judge, or constitute all Judges of Opinions and Doctrines, as a thing necessary to Peace, thereby to prevent Discord and Civill Warre.

7. The Right Of Making Rules, Whereby The Subject May Every Man Know What Is So His Owne, As No Other Subject

Can Without Injustice Take It From Him

Seventhly, is annexed to the Soveraigntie, the whole power of prescribing the Rules, whereby every man may know, what Goods he may enjoy and what Actions he may doe, without being molested by any of his fellow Subjects: And this is it men Call Propriety. For before constitution of Sovereign Power (as hath already been shewn) all men had right to all things; which necessarily causeth Warre: and therefore this Propriety, being necessary to Peace, and depending on Sovereign Power, is the Act of the Power, in order to the publique peace. These Rules of Propriety (or Meum and Tuum) and of Good, Evill, Lawfull and Unlawfull in the actions of subjects, are the Civill Lawes, that is to say, the lawes of each Commonwealth in particular; though the name of Civill Law be now restrained to the antient Civill Lawes of the City of Rome; which being the head of a great part of the World, her Lawes at that time were in these parts the Civill Law.

8. To Him Also Belongeth The Right Of All Judicature

And Decision Of Controversies:

Eightly, is annexed to the Sovereignty, the Right of Judicature; that is to say, of hearing and deciding all Controversies, which may arise concerning Law, either Civill, or naturall, or concerning Fact. For without the decision of Controversies, there is no protection of one Subject, against the injuries of another; the Lawes concerning Meum and Tuum are in vaine; and to every man remaineth, from the naturall and necessary appetite of his own conservation, the right of protecting himselfe by his private strength, which is the condition of Warre; and contrary to the end for which every Common-wealth is instituted.

9. And Of Making War, And Peace, As He Shall Think Best:

Ninthly, is annexed to the Sovereignty, the Right of making Warre, and Peace with other Nations, and Common-wealths; that is to say, of Judging when it is for the publique good, and how great forces are to be assembled, armed, and payd for that end; and to levy mony upon the Subjects, to defray the expenses thereof. For the Power by which the people are to be defended, consisteth in their Armies; and the strength of an Army, in the union of their strength under one Command; which Command the Sovereign Instituted, therefore hath; because the command of the Militia, without other Institution, maketh him that hath it Sovereign. And therefore whosoever is made Generall of an Army, he that hath the Sovereign Power is alwayes Generallissimo.

10. And Of Choosing All Counsellours, And Ministers, Both Of Peace, And Warre:

Tenthly, is annexed to the Sovereignty, the choosing of all Counsellours, Ministers, Magistrates, and Officers, both in peace, and War. For seeing the Sovereign is charged with the End, which is the common Peace and Defence; he is understood to have Power to use such Means, as he shall think most fit for his discharge.

11. And Of Rewarding, And Punishing, And That (Where No Former Law hath Determined The Measure Of It) Arbitrary:

Eleventhly, to the Sovereign is committed the Power of Rewarding with riches, or honour; and of Punishing with corporall, or pecuniary punishment, or with ignominy every Subject according to the Lawe he hath formerly made; or if there be no Law made, according as he shall judge most to conduce to the encouraging of men to serve the Common-wealth, or deterring of them from doing dis-service to the same.

12. And Of Honour And Order

Lastly, considering what values men are naturally apt to set upon themselves; what respect they look for from others; and how little they value other men; from whence continually arise amongst them, Emulation, Quarrells, Factions, and at last Warre, to the destroying of one another, and diminution of their strength against a Common Enemy; It is necessary that there be Lawes of Honour, and a publique

rate of the worth of such men as have deserved, or are able to deserve well of the Common-wealth; and that there be force in the hands of some or other, to put those Lawes in execution. But it hath already been shown, that not onely the whole Militia, or forces of the Common-wealth; but also the Judicature of all Controversies, is annexed to the Sovereignty. To the Sovereign therefore it belongeth also to give titles of Honour; and to appoint what Order of place, and dignity, each man shall hold; and what signes of respect, in publique or private meetings, they shall give to one another...

But a man may here object, that the Condition of Subjects is very miserable; as being obnoxious to the lusts, and other irregular passions of him, or them that have so unlimited a Power in their hands. And commonly they that live under a Monarch, think it the fault of Monarchy; and they that live under the government of Democracy, or other Sovereign Assembly, attribute all the inconvenience to that forme of Common-wealth; whereas the Power in all formes, if they be perfect enough to protect them, is the same; not considering that the estate of Man can never be without some incommmodity or other; and that the greatest, that in any forme of Government can possibly happen to the people in generall, is scarce sensible, in respect of the miseries, and horrible calamities, that accompany a Civill Warre; or that dissolute condition of masterlesse men, without subjection to Lawes, and a coercive Power to tye their hands from rapine, and revenge: nor considering that the greatest pressure of Sovereign Governours, proceedeth not from any delight, or profit they can expect in the dammage, or weakening of their subjects, in whose vigor, consisteth their own selves, that unwillingly contributing to their own defence, make it necessary for their Governours to draw from them what they can in time of Peace, that they may have means on any emergent occasion, or sudden need, to resist, or take advantage on their Enemies. For all men are by nature provided of notable multiplying glasses, (that is their Passions and Self-love,) through which, every little payment appeareth a great grievance; but are destitute of those prospective glasses, (namely Morall and Civill Science,) to see a farre off the miseries that hang over them, and cannot without such payments be avoyded.

CHAPTER XXI. OF THE LIBERTY OF SUBJECTS

Liberty What

Liberty, or FREEDOME, signifieth (properly) the absence of Opposition; (by Opposition, I mean externall Impediments of motion;) and may be applyed no lesse to Irrational, and Inanimate creatures, than to Rationall. For whatsoever is so tyed, or environed, as it cannot move, but within a certain space, which space is determined by the opposition of some externall body, we say it hath not Liberty to go further. And so of all living creatures, whilst they are imprisoned, or restrained, with walls, or chayns; and of the water whilst it is kept in by banks, or vessels, that otherwise would spread it selfe into a larger space, we use to say, they are not at Liberty, to move in such manner, as without those externall impediments they would. But when the impediment of motion, is in the constitution of the thing it selfe, we use not to say, it wants the Liberty; but the Power to move; as when a stone lyeth still, or a man is fastned to his bed by sicknesse.

What It Is To Be Free

And according to this proper, and generally received meaning of the word, A FREE-MAN, is "he, that in those things, which by his strength and wit he is able to do, is not hindred to doe what he has a will to." But when the words Free, and Liberty, are applyed to any thing but Bodies, they are abused; for that

which is not subject to Motion, is not subject to Impediment: And therefore, when 'tis said (for example) The way is free, no liberty of the way is signified, but of those that walk in it without stop. And when we say a Guift is free, there is not meant any liberty of the Guift, but of the Giver, that was not bound by any law, or Covenant to give it. So when we Speak Freely, it is not the liberty of voice, or pronounciation, but of the man, whom no law hath obliged to speak otherwise then he did. Lastly, from the use of the word Freewill, no liberty can be inferred to the will, desire, or inclination, but the liberty of the man; which consisteth in this, that he finds no stop, in doing what he has the will, desire, or inclination to doe.

Feare And Liberty Consistent

Feare and Liberty are consistent; as when a man throweth his goods into the Sea for Feare the ship should sink, he doth it neverthelesse very willingly, and may refuse to doe it if he will: It is therefore the action, of one that was Free; so a man sometimes pays his debt, only for Feare of Imprisonment, which because no body hindred him from detaining, was the action of a man at Liberty. And generally all actions which men doe in Common-wealths, for Feare of the law, or actions, which the doers had Liberty to omit.

Liberty And Necessity Consistent

Liberty and Necessity are Consistent: As in the water, that hath not only Liberty, but a Necessity of descending by the Channel: so likewise in the Actions which men voluntarily doe; which (because they proceed from their will) proceed from Liberty; and yet because every act of mans will, and every desire, and inclination proceedeth from some cause, which causes in a continuall chaine (whose first link in the hand of God the first of all causes) proceed from Necessity. So that to him that could see the connexion of those causes, the Necessity of all mens voluntary actions, would appeare manifest. And therefore God, that seeth, and disposeth all things, seeth also that the Liberty of man in doing what he will, is accompanied with the Necessity of doing that which God will, & no more, nor lesse. For though men may do many things, which God does not command, nor is therefore Author of them; yet they can have no passion, nor appetite to any thing, of which appetite Gods will is not the cause. And did not his will assure the Necessity of mans will, and consequently of all that on mans will dependeth, the Liberty of men would be a contradiction, and impediment to the omnipotence and Liberty of God. And this shall suffice, (as to the matter in hand) of that naturall Liberty, which only is properly called Liberty...

Liberty Of The Subject How To Be Measured

To come now to the particulars of the true Liberty of a Subject; that is to say, what are the things, which though commanded by the Sovereign, he may neverthelesse, without Injustice, refuse to do; we are to consider, what Rights we passe away, when we make a Common-wealth; or (which is all one,) what Liberty we deny our selves, by owning all the Actions (without exception) of the Man, or Assembly we make our Sovereign. For in the act of our Submission, consisteth both our Obligation, and our Liberty; which must therefore be inferred by arguments taken from thence; there being no Obligation on any man, which ariseth not from some Act of his own; for all men equally, are by Nature Free. And because such arguments, must either be drawn from the expresse words, "I Authorise all his Actions," or from the Intention of him that submitteth himselfe to his Power, (which Intention is to be understood by the End for which he so submitteth;) The Obligation, and Liberty of the Subject, is to be derived, either

from those Words, (or others equivalent;) or else from the End of the Institution of Sovereignty; namely, the Peace of the Subjects within themselves, and their Defence against a common Enemy.

**Subjects Have Liberty To Defend Their Own Bodies,
Even Against Them That Lawfully Invade Them**

First therefore, seeing Sovereignty by Institution, is by Covenant of every one to every one; and Sovereignty by Acquisition, by Covenants of the Vanquished to the Victor, or Child to the Parent; It is manifest, that every Subject has Liberty in all those things, the right whereof cannot by Covenant be transferred. I have shewn before in the 14. Chapter, that Covenants, not to defend a mans own body, are voyd. Therefore,

Are Not Bound To Hurt Themselves;

If the Sovereign command a man (though justly condemned,) to kill, wound, or mayme himselfe; or not to resist those that assault him; or to abstain from the use of food, ayre, medicine, or any other thing, without which he cannot live; yet hath that man the Liberty to disobey.

If a man be interrogated by the Sovereign, or his Authority, concerning a crime done by himselfe, he is not bound (without assurance of Pardon) to confesse it; because no man (as I have shewn in the same Chapter) can be obliged by Covenant to accuse himselfe.

Again, the Consent of a Subject to Sovereign Power, is contained in these words, "I Authorise, or take upon me, all his actions;" in which there is no restriction at all, of his own former naturall Liberty: For by allowing him to Kill Me, I am not bound to Kill my selfe when he commands me. "'Tis one thing to say 'Kill me, or my fellow, if you please;' another thing to say, 'I will kill my selfe, or my fellow.'" It followeth therefore, that

No man is bound by the words themselves, either to kill himselfe, or any other man; And consequently, that the Obligation a man may sometimes have, upon the Command of the Sovereign to execute any dangerous, or dishonourable Office, dependeth not on the Words of our Submission; but on the Intention; which is to be understood by the End thereof. When therefore our refusall to obey, frustrates the End for which the Sovereignty was ordained; then there is no Liberty to refuse: otherwise there is.

Nor To Warfare, Unless They Voluntarily Undertake It

Upon this ground, a man that is commanded as a Souldier to fight against the enemy, though his Sovereign have Right enough to punish his refusall with death, may neverthesse in many cases refuse, without Injustice; as when he substituteth a sufficient Souldier in his place: for in this case he deserteth not the service of the Common-wealth. And there is allowance to be made for naturall timorousnesse, not onely to women, (of whom no such dangerous duty is expected,) but also to men of feminine courage. When Armies fight, there is on one side, or both, a running away; yet when they do it not out of trechery, but fear, they are not esteemed to do it unjustly, but dishonourably. For the same reason, to avoyd battell, is not Injustice, but Cowardise. But he that inrowleth himselfe a Souldier, or taketh imprest mony, taketh away the excuse of a timorous nature; and is obliged, not onely to go to the battell,

but also not to run from it, without his Captaines leave. And when the Defence of the Common-wealth, requireth at once the help of all that are able to bear Arms, every one is obliged; because otherwise the Institution of the Common-wealth, which they have not the purpose, or courage to preserve, was in vain.

To resist the Sword of the Common-wealth, in defence of another man, guilty, or innocent, no man hath Liberty; because such Liberty, takes away from the Sovereign, the means of Protecting us; and is therefore destructive of the very essence of Government. But in case a great many men together, have already resisted the Sovereign Power Unjustly, or committed some Capitall crime, for which every one of them expecteth death, whether have they not the Liberty then to joyn together, and assist, and defend one another? Certainly they have: For they but defend their lives, which the guilty man may as well do, as the Innocent. There was indeed injustice in the first breach of their duty; Their bearing of Arms subsequent to it, though it be to maintain what they have done, is no new unjust act. And if it be onely to defend their persons, it is not unjust at all. But the offer of Pardon taketh from them, to whom it is offered, the plea of self-defence, and maketh their perseverance in assisting, or defending the rest, unlawfull.

The Greatest Liberty Of Subjects, Dependeth On The Silence Of The Law

As for other Liberties, they depend on the silence of the Law. In cases where the Sovereign has prescribed no rule, there the Subject hath the liberty to do, or forbear, according to his own discretion. And therefore such Liberty is in some places more, and in some lesse; and in some times more, in other times lesse, according as they that have the Sovereignty shall think most convenient. As for Example, there was a time, when in England a man might enter in to his own Land, (and dispossesse such as wrongfully possessed it) by force. But in after-times, that Liberty of Forcible entry, was taken away by a Statute made (by the King) in Parliament. And in some places of the world, men have the Liberty of many wives: in other places, such Liberty is not allowed.

If a Subject have a controversie with his Sovereign, of Debt, or of right of possession of lands or goods, or concerning any service required at his hands, or concerning any penalty corporall, or pecuniary, grounded on a precedent Law; He hath the same Liberty to sue for his right, as if it were against a Subject; and before such Judges, as are appointed by the Sovereign. For seeing the Sovereign demandeth by force of a former Law, and not by vertue of his Power; he declareth thereby, that he requireth no more, than shall appear to be due by that Law. The sute therefore is not contrary to the will of the Sovereign; and consequently the Subject hath the Liberty to demand the hearing of his Cause; and sentence, according to that Law. But if he demand, or take any thing by pretence of his Power; therebyeth, in that case, no action of Law: for all that is done by him in Vertue of his Power, is done by the Authority of every subject, and consequently, he that brings an action against the Sovereign, brings it against himselfe.

If a Monarch, or Sovereign Assembly, grant a Liberty to all, or any of his Subjects; which Grant standing, he is disabled to provide for their safety, the Grant is voyd; unlesse he directly renounce, or transferre the Sovereignty to another. For in that he might openly, (if it had been his will,) and in plain termes, have renounced, or transferred it, and did not; it is to be understood it was not his will; but that the Grant proceeded from ignorance of the repugnancy between such a Liberty and the Sovereign Power; and therefore the Sovereignty is still retayned; and consequently all those Powers, which are

necessary to the exercising thereof; such as are the Power of Warre, and Peace, of Judicature, of appointing Officers, and Councillours, of levying Mony, and the rest named in the 18th Chapter.

In What Cases Subjects Absolved Of Their Obedience To Their Sovereign

The Obligation of Subjects to the Sovereign is understood to last as long, and no longer, than the power lasteth, by which he is able to protect them. For the right men have by Nature to protect themselves, when none else can protect them, can by no Covenant be relinquished. The Sovereignty is the Soule of the Common-wealth; which once departed from the Body, the members doe no more receive their motion from it. The end of Obedience is Protection; which, wheresoever a man seeth it, either in his own, or in anothers sword, Nature applyeth his obedience to it, and his endeavour to maintaine it. And though Sovereignty, in the intention of them that make it, be immortall; yet is it in its own nature, not only subject to violent death, by forreign war; but also through the ignorance, and passions of men, it hath in it, from the very institution, many seeds of a naturall mortality, by Intestine Discord...

CHAPTER XXIX. OF THOSE THINGS THAT WEAKEN, OR TEND TO THE DISSOLUTION OF A COMMON-WEALTH

Dissolution Of Common-wealths Proceedeth From Imperfect Institution

Though nothing can be immortall, which mortals make; yet, if men had the use of reason they pretend to, their Common-wealths might be secured, at least, from perishing by internall diseases. For by the nature of their Institution, they are designed to live, as long as Man-kind, or as the Lawes of Nature, or as Justice it selfe, which gives them life. Therefore when they come to be dissolved, not by externall violence, but intestine disorder, the fault is not in men, as they are the Matter; but as they are the Makers, and orderers of them. For men, as they become at last weary of irregular justling, and hewing one another, and desire with all their hearts, to conforme themselves into one firme and lasting edifice; so for want, both of the art of making fit Laws, to square their actions by, and also of humility, and patience, to suffer the rude and combersome points of their present greatnesse to be taken off, they cannot without the help of a very able Architect, be compiled, into any other than a crasie building, such as hardly lasting out their own time, must assuredly fall upon the heads of their posterity.

Amongst the Infirmities therefore of a Common-wealth, I will reckon in the first place, those that arise from an Imperfect Institution, and resemble the diseases of a naturall body, which proceed from a Defectuous Procreation.

Want Of Absolute Power

Of which, this is one, "That a man to obtain a Kingdome, is sometimes content with lesse Power, than to the Peace, and defence of the Common-wealth is necessarily required." From whence it commeth to passe, that when the exercise of the Power layd by, is for the publique safety to be resumed, it hath the resemblance of as unjust act; which disposeth great numbers of men (when occasion is presented) to rebell; In the same manner as the bodies of children, gotten by diseased parents, are subject either to untimely death, or to purge the ill quality, derived from their vicious conception, by breaking out into biles and scabbs. And when Kings deny themselves some such necessary Power, it is not alwayes (though sometimes) out of ignorance of what is necessary to the office they undertake; but many times

out of a hope to recover the same again at their pleasure: Wherein they reason not well; because such as will hold them to their promises, shall be maintained against them by forraign Common-wealths; who in order to the good of their own Subjects let slip few occasions to Weaken the estate of their Neighbours. So was Thomas Beckett Archbishop of Canterbury, supported against Henry the Second, by the Pope; the subjection of Ecclesiastiques to the Common-wealth, having been dispensed with by William the Conqueror at his reception, when he took an Oath, not to infringe the liberty of the Church. And so were the Barons, whose power was by William Rufus (to have their help in transferring the Succession from his Elder brother, to himselfe,) encreased to a degree, inconsistent with the Sovereign Power, maintained in their Rebellion against King John, by the French...

Private Judgement Of Good and Evill

In the second place, I observe the Diseases of a Common-wealth, that proceed from the poyson of seditious doctrines; whereof one is, "That every private man is Judge of Good and Evill actions." This is true in the condition of meer Nature, where there are no Civill Lawes; and also under Civill Government, in such cases as are not determined by the Law. But otherwise, it is manifest, that the measure of Good and Evill actions, is the Civill Law; and the Judge the Legislator, who is alwayes Representative of the Common-wealth. From this false doctrine, men are disposed to debate with themselves, and dispute the commands of the Common-wealth; and afterwards to obey, or disobey them, as in their private judgements they shall think fit. Whereby the Common-wealth is distracted and Weakened...

Subjecting The Sovereign Power To Civill Lawes

A fourth opinion, repugnant to the nature of a Common-wealth, is this, "That he that hath the Sovereign Power, is subject to the Civill Lawes." It is true, that Sovereigns are all subjects to the Lawes of Nature; because such lawes be Divine, and cannot by any man, or Common-wealth be abrogated. But to those Lawes which the Sovereign himselfe, that is, which the Common-wealth maketh, he is not subject. For to be subject to Lawes, is to be subject to the Common-wealth, that is to the Sovereign Representative, that is to himselfe; which is not subjection, but freedome from the Lawes. Which error, because it setteth the Lawes above the Sovereign, setteth also a Judge above him, and a Power to punish him; which is to make a new Sovereign; and again for the same reason a third, to punish the second; and so continually without end, to the Confusion, and Dissolution of the Common-wealth.

Attributing Of Absolute Propriety To The Subjects

A Fifth doctrine, that tendeth to the Dissolution of a Common-wealth, is, "That every private man has an absolute Propriety in his Goods; such, as excludeth the Right of the Sovereign." Every man has indeed a Propriety that excludes the Right of every other Subject: And he has it onely from the Sovereign Power; without the protection whereof, every other man should have equall Right to the same. But if the Right of the Sovereign also be excluded, he cannot performe the office they have put him into; which is, to defend them both from forraign enemies, and from the injuries of one another; and consequently there is no longer a Common-wealth.

And if the Propriety of Subjects, exclude not the Right of the Sovereign Representative to their Goods; much lesse to their offices of Judicature, or Execution, in which they Represent the Sovereign himselfe.

Dividing Of The Sovereign Power

There is a Sixth doctrine, plainly, and directly against the essence of a Common-wealth; and 'tis this, "That the Sovereign Power may be divided." For what is it to divide the Power of a Common-wealth, but to Dissolve it; for Powers divided mutually destroy each other. And for these doctrines, men are chiefly beholding to some of those, that making profession of the Lawes, endeavour to make them depend upon their own learning, and not upon the Legislative Power...

Mixt Government

Sometimes also in the meerly Civill government, there be more than one Soule: As when the Power of levying mony, (which is the Nutritive faculty,) has depended on a generall Assembly; the Power of conduct and command, (which is the Motive Faculty,) on one man; and the Power of making Lawes, (which is the Rationall faculty,) on the accidentall consent, not onely of those two, but also of a third; This endangereth the Common-wealth, somtimes for want of consent to good Lawes; but most often for want of such Nourishment, as is necessary to Life, and Motion. For although few perceive, that such government, is not government, but division of the Common-wealth into three Factions, and call it mixt Monarchy; yet the truth is, that it is not one independent Common-wealth, but three independent Factions; nor one Representative Person, but three. In the Kingdome of God, there may be three Persons independent, without breach of unity in God that Reigneth; but where men Reigne, that be subject to diversity of opinions, it cannot be so. And therefore if the King bear the person of the People, and the generall Assembly bear also the person of the People, and another assembly bear the person of a Part of the people, they are not one Person, nor one Sovereign, but three Persons, and three Sovereigns.

To what Disease in the Naturall Body of man, I may exactly compare this irregularity of a Common-wealth, I know not. But I have seen a man, that had another man growing out of his side, with an head, armes, breast, and stomach, of his own: If he had had another man growing out of his other side, the comparison might then have been exact...

UNIT TWO: NATURE AND PURPOSE OF THE STATE: OBLIGATIONS TO AND FROM THE STATE

Living in a civilized society means that we must interact with many other individuals and organizations. All of these relationships vary in their nature, and what we must do for and expect from others will vary greatly. We expect that parents will be responsible for their children, and if they fail them, we expect that society will help these children that can't help themselves. All of these expectations and responsibilities are there because we expect that certain people or groups have *obligations* towards others. A political obligation specifically is the sort of obligation citizens have to obey the state, but this is not a one-way street: in exchange for the obligations the state expects from its citizens, the citizens enjoy a set of obligations from the state as well. Citizens are obligated to follow the laws and accept the consequences if they violate them, and the state is obligated to protect its citizens and enforce the laws as they ought to be enforced. Exactly which obligations, if any, exist has been debated for millennia, as well as the nature of these obligations. Is the state obligated to provide food for its citizens? Is a citizen obligated to serve in the army? Are citizens obligated to refrain from hate speech? To pay taxes? Is it a moral duty to maintain these obligations or is it merely a part of a practical contract that everyone enters into? All of these issues will be discussed in this Unit, through the viewpoints of many classical considerations on what the very purpose and nature of the state is, for if we can understand that, then the obligations become more lucid.

7 The Wealth of Nations (Adam Smith)

Adam Smith¹ FRSA (16 June 1723 NS (5 June 1723 OS) – 17 July 1790) was a Scottish economist, philosopher, and author. He was a moral philosopher, a pioneer of political economy, and was a key figure during the Scottish Enlightenment era. He is best known for two classic works: *The Theory of Moral Sentiments* (1759), and *An Inquiry into the Nature and Causes of the Wealth of Nations* (1776). The latter, usually abbreviated as *The Wealth of Nations*, is considered his *magnum opus* and the first modern work of economics.

Smith studied social philosophy at the University of Glasgow and at Balliol College, Oxford, where he was one of the first students to benefit from scholarships set up by fellow Scot, John Snell. After graduating, he delivered a successful series of public lectures at Edinburgh, leading him to collaborate with David Hume during the Scottish Enlightenment. Smith obtained a professorship at Glasgow teaching moral philosophy, and during this time he wrote and published *The Theory of Moral Sentiments*. In his later life, he took a tutoring position that allowed him to travel throughout Europe, where he met other intellectual leaders of his day.

Smith laid the foundations of classical free market economic theory. *The Wealth of Nations* was a precursor to the modern academic discipline of economics. In this and other works, he developed the concept of division of labour, and expounded upon how rational self-interest and competition can lead to economic prosperity. Smith was controversial in his own day and his general approach and writing style were often satirised by Tory writers in the moralising tradition of William Hogarth and Jonathan Swift. In 2005, *The Wealth of Nations* was named among the 100 Best Scottish Books of all time. The minor planet 12838 Adamsmith was named in his memory.

*The Wealth of Nations*²

BOOK I. OF THE CAUSES OF IMPROVEMENT IN THE PRODUCTIVE POWERS OF LABOUR, AND OF THE ORDER ACCORDING TO WHICH ITS PRODUCE IS NATURALLY DISTRIBUTED AMONG THE DIFFERENT RANKS OF THE PEOPLE.

CHAPTER I. OF THE DIVISION OF LABOUR.

The greatest improvements in the productive powers of labour, and the greater part of the skill, dexterity, and judgment, with which it is anywhere directed, or applied, seem to have been the effects of the division of labour. The effects of the division of labour, in the general business of society, will be more easily understood, by considering in what manner it operates in some particular manufactures. It is commonly supposed to be carried furthest in some very trifling ones; not perhaps that it really is carried

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Adam Smith. (2017, August 14). In Wikipedia, The Free Encyclopedia. Retrieved 16:58, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Adam_Smith&oldid=795495133

² Adam Smith, 1776.

further in them than in others of more importance: but in those trifling manufactures which are destined to supply the small wants of but a small number of people, the whole number of workmen must necessarily be small; and those employed in every different branch of the work can often be collected into the same workhouse, and placed at once under the view of the spectator.

In those great manufactures, on the contrary, which are destined to supply the great wants of the great body of the people, every different branch of the work employs so great a number of workmen, that it is impossible to collect them all into the same workhouse. We can seldom see more, at one time, than those employed in one single branch. Though in such manufactures, therefore, the work may really be divided into a much greater number of parts, than in those of a more trifling nature, the division is not near so obvious, and has accordingly been much less observed.

To take an example, therefore, from a very trifling manufacture, but one in which the division of labour has been very often taken notice of, the trade of a pin-maker: a workman not educated to this business (which the division of labour has rendered a distinct trade), nor acquainted with the use of the machinery employed in it (to the invention of which the same division of labour has probably given occasion), could scarce, perhaps, with his utmost industry, make one pin in a day, and certainly could not make twenty. But in the way in which this business is now carried on, not only the whole work is a peculiar trade, but it is divided into a number of branches, of which the greater part are likewise peculiar trades. One man draws out the wire; another straightens it; a third cuts it; a fourth points it; a fifth grinds it at the top for receiving the head; to make the head requires two or three distinct operations; to put it on is a peculiar business; to whiten the pins is another; it is even a trade by itself to put them into the paper; and the important business of making a pin is, in this manner, divided into about eighteen distinct operations, which, in some manufactories, are all performed by distinct hands, though in others the same man will sometimes perform two or three of them. I have seen a small manufactory of this kind, where ten men only were employed, and where some of them consequently performed two or three distinct operations. But though they were very poor, and therefore but indifferently accommodated with the necessary machinery, they could, when they exerted themselves, make among them about twelve pounds of pins in a day. There are in a pound upwards of four thousand pins of a middling size. Those ten persons, therefore, could make among them upwards of forty-eight thousand pins in a day. Each person, therefore, making a tenth part of forty-eight thousand pins, might be considered as making four thousand eight hundred pins in a day. But if they had all wrought separately and independently, and without any of them having been educated to this peculiar business, they certainly could not each of them have made twenty, perhaps not one pin in a day; that is, certainly, not the two hundred and fortieth, perhaps not the four thousand eight hundredth, part of what they are at present capable of performing, in consequence of a proper division and combination of their different operations...

This great increase in the quantity of work, which, in consequence of the division of labour, the same number of people are capable of performing, is owing to three different circumstances; first, to the increase of dexterity in every particular workman; secondly, to the saving of the time which is commonly lost in passing from one species of work to another; and, lastly, to the invention of a great number of machines which facilitate and abridge labour, and enable one man to do the work of many.

First, the improvement of the dexterity of the workmen, necessarily increases the quantity of the work he can perform; and the division of labour, by reducing every man's business to some one simple operation, and by making this operation the sole employment of his life, necessarily increases very much the

dexterity of the workman. A common smith, who, though accustomed to handle the hammer, has never been used to make nails, if, upon some particular occasion, he is obliged to attempt it, will scarce, I am assured, be able to make above two or three hundred nails in a day, and those, too, very bad ones. A smith who has been accustomed to make nails, but whose sole or principal business has not been that of a nailer, can seldom, with his utmost diligence, make more than eight hundred or a thousand nails in a day. I have seen several boys, under twenty years of age, who had never exercised any other trade but that of making nails, and who, when they exerted themselves, could make, each of them, upwards of two thousand three hundred nails in a day. The making of a nail, however, is by no means one of the simplest operations. The same person blows the bellows, stirs or mends the fire as there is occasion, heats the iron, and forges every part of the nail: in forging the head, too, he is obliged to change his tools. The different operations into which the making of a pin, or of a metal button, is subdivided, are all of them much more simple, and the dexterity of the person, of whose life it has been the sole business to perform them, is usually much greater. The rapidity with which some of the operations of those manufactures are performed, exceeds what the human hand could, by those who had never seen them, be supposed capable of acquiring.

Secondly, The advantage which is gained by saving the time commonly lost in passing from one sort of work to another, is much greater than we should at first view be apt to imagine it. It is impossible to pass very quickly from one kind of work to another, that is carried on in a different place, and with quite different tools. A country weaver, who cultivates a small farm, must lose a good deal of time in passing from his loom to the field, and from the field to his loom. When the two trades can be carried on in the same workhouse, the loss of time is, no doubt, much less. It is, even in this case, however, very considerable. A man commonly saunters a little in turning his hand from one sort of employment to another. When he first begins the new work, he is seldom very keen and hearty; his mind, as they say, does not go to it, and for some time he rather trifles than applies to good purpose. The habit of sauntering, and of indolent careless application, which is naturally, or rather necessarily, acquired by every country workman who is obliged to change his work and his tools every half hour, and to apply his hand in twenty different ways almost every day of his life, renders him almost always slothful and lazy, and incapable of any vigorous application, even on the most pressing occasions. Independent, therefore, of his deficiency in point of dexterity, this cause alone must always reduce considerably the quantity of work which he is capable of performing.

Thirdly, and lastly, everybody must be sensible how much labour is facilitated and abridged by the application of proper machinery. It is unnecessary to give any example. I shall only observe, therefore, that the invention of all those machines by which labour is so much facilitated and abridged, seems to have been originally owing to the division of labour. Men are much more likely to discover easier and readier methods of attaining any object, when the whole attention of their minds is directed towards that single object, than when it is dissipated among a great variety of things. But, in consequence of the division of labour, the whole of every man's attention comes naturally to be directed towards some one very simple object. It is naturally to be expected, therefore, that some one or other of those who are employed in each particular branch of labour should soon find out easier and readier methods of performing their own particular work, whenever the nature of it admits of such improvement. A great part of the machines made use of in those manufactures in which labour is most subdivided, were originally the invention of common workmen, who, being each of them employed in some very simple operation, naturally turned their thoughts towards finding out easier and readier methods of performing it. Whoever has been much accustomed to visit such manufactures, must frequently have been shewn

very pretty machines, which were the inventions of such workmen, in order to facilitate and quicken their own particular part of the work. In the first fire engines {this was the current designation for steam engines}, a boy was constantly employed to open and shut alternately the communication between the boiler and the cylinder, according as the piston either ascended or descended. One of those boys, who loved to play with his companions, observed that, by tying a string from the handle of the valve which opened this communication to another part of the machine, the valve would open and shut without his assistance, and leave him at liberty to divert himself with his play-fellows. One of the greatest improvements that has been made upon this machine, since it was first invented, was in this manner the discovery of a boy who wanted to save his own labour.

All the improvements in machinery, however, have by no means been the inventions of those who had occasion to use the machines. Many improvements have been made by the ingenuity of the makers of the machines, when to make them became the business of a peculiar trade; and some by that of those who are called philosophers, or men of speculation, whose trade it is not to do any thing, but to observe every thing, and who, upon that account, are often capable of combining together the powers of the most distant and dissimilar objects in the progress of society, philosophy or speculation becomes, like every other employment, the principal or sole trade and occupation of a particular class of citizens. Like every other employment, too, it is subdivided into a great number of different branches, each of which affords occupation to a peculiar tribe or class of philosophers; and this subdivision of employment in philosophy, as well as in every other business, improve dexterity, and saves time. Each individual becomes more expert in his own peculiar branch, more work is done upon the whole, and the quantity of science is considerably increased by it.

It is the great multiplication of the productions of all the different arts, in consequence of the division of labour, which occasions, in a well-governed society, that universal opulence which extends itself to the lowest ranks of the people. Every workman has a great quantity of his own work to dispose of beyond what he himself has occasion for; and every other workman being exactly in the same situation, he is enabled to exchange a great quantity of his own goods for a great quantity or, what comes to the same thing, for the price of a great quantity of theirs. He supplies them abundantly with what they have occasion for, and they accommodate him as amply with what he has occasion for, and a general plenty diffuses itself through all the different ranks of the society.

Observe the accommodation of the most common artificer or daylabourer in a civilized and thriving country, and you will perceive that the number of people, of whose industry a part, though but a small part, has been employed in procuring him this accommodation, exceeds all computation. The woollen coat, for example, which covers the day-labourer, as coarse and rough as it may appear, is the produce of the joint labour of a great multitude of workmen. The shepherd, the sorter of the wool, the wool-comber or carder, the dyer, the scribbler, the spinner, the weaver, the fuller, the dresser, with many others, must all join their different arts in order to complete even this homely production. How many merchants and carriers, besides, must have been employed in transporting the materials from some of those workmen to others who often live in a very distant part of the country? How much commerce and navigation in particular, how many ship-builders, sailors, sail-makers, rope-makers, must have been employed in order to bring together the different drugs made use of by the dyer, which often come from the remotest corners of the world? What a variety of labour, too, is necessary in order to produce the tools of the meanest of those workmen! To say nothing of such complicated machines as the ship of the sailor, the mill of the fuller, or even the loom of the weaver, let us consider only what a variety of labour is

requisite in order to form that very simple machine, the shears with which the shepherd clips the wool. The miner, the builder of the furnace for smelting the ore, the feller of the timber, the burner of the charcoal to be made use of in the smelting-house, the brickmaker, the bricklayer, the workmen who attend the furnace, the millwright, the forger, the smith, must all of them join their different arts in order to produce them. Were we to examine, in the same manner, all the different parts of his dress and household furniture, the coarse linen shirt which he wears next his skin, the shoes which cover his feet, the bed which he lies on, and all the different parts which compose it, the kitchen-grate at which he prepares his victuals, the coals which he makes use of for that purpose, dug from the bowels of the earth, and brought to him, perhaps, by a long sea and a long land-carriage, all the other utensils of his kitchen, all the furniture of his table, the knives and forks, the earthen or pewter plates upon which he serves up and divides his victuals, the different hands employed in preparing his bread and his beer, the glass window which lets in the heat and the light, and keeps out the wind and the rain, with all the knowledge and art requisite for preparing that beautiful and happy invention, without which these northern parts of the world could scarce have afforded a very comfortable habitation, together with the tools of all the different workmen employed in producing those different conveniencies; if we examine, I say, all these things, and consider what a variety of labour is employed about each of them, we shall be sensible that, without the assistance and co-operation of many thousands, the very meanest person in a civilized country could not be provided, even according to, what we very falsely imagine, the easy and simple manner in which he is commonly accommodated. Compared, indeed, with the more extravagant luxury of the great, his accommodation must no doubt appear extremely simple and easy; and yet it may be true, perhaps, that the accommodation of an European prince does not always so much exceed that of an industrious and frugal peasant, as the accommodation of the latter exceeds that of many an African king, the absolute masters of the lives and liberties of ten thousand naked savages.

CHAPTER II. OF THE PRINCIPLE WHICH GIVES OCCASION TO THE DIVISION OF LABOUR.

This division of labour, from which so many advantages are derived, is not originally the effect of any human wisdom, which foresees and intends that general opulence to which it gives occasion. It is the necessary, though very slow and gradual, consequence of a certain propensity in human nature, which has in view no such extensive utility; the propensity to truck, barter, and exchange one thing for another.

Whether this propensity be one of those original principles in human nature, of which no further account can be given, or whether, as seems more probable, it be the necessary consequence of the faculties of reason and speech, it belongs not to our present subject to inquire. It is common to all men, and to be found in no other race of animals, which seem to know neither this nor any other species of contracts. Two greyhounds, in running down the same hare, have sometimes the appearance of acting in some sort of concert. Each turns her towards his companion, or endeavours to intercept her when his companion turns her towards himself. This, however, is not the effect of any contract, but of the accidental concurrence of their passions in the same object at that particular time. Nobody ever saw a dog make a fair and deliberate exchange of one bone for another with another dog. Nobody ever saw one animal, by its gestures and natural cries signify to another, this is mine, that yours; I am willing to give this for that. When an animal wants to obtain something either of a man, or of another animal, it has no other means of persuasion, but to gain the favour of those whose service it requires. A puppy fawns upon its dam, and a spaniel endeavours, by a thousand attractions, to engage the attention of its master who is at dinner, when it wants to be fed by him. Man sometimes uses the same arts with his brethren, and when he has no other means of engaging them to act according to his inclinations, endeavours by every servile

and fawning attention to obtain their good will. He has not time, however, to do this upon every occasion. In civilized society he stands at all times in need of the co-operation and assistance of great multitudes, while his whole life is scarce sufficient to gain the friendship of a few persons. In almost every other race of animals, each individual, when it is grown up to maturity, is entirely independent, and in its natural state has occasion for the assistance of no other living creature. But man has almost constant occasion for the help of his brethren, and it is in vain for him to expect it from their benevolence only. He will be more likely to prevail if he can interest their self-love in his favour, and shew them that it is for their own advantage to do for him what he requires of them. Whoever offers to another a bargain of any kind, proposes to do this. Give me that which I want, and you shall have this which you want, is the meaning of every such offer; and it is in this manner that we obtain from one another the far greater part of those good offices which we stand in need of. It is not from the benevolence of the butcher, the brewer, or the baker that we expect our dinner, but from their regard to their own interest. We address ourselves, not to their humanity, but to their self-love, and never talk to them of our own necessities, but of their advantages. Nobody but a beggar chooses to depend chiefly upon the benevolence of his fellow-citizens. Even a beggar does not depend upon it entirely. The charity of well-disposed people, indeed, supplies him with the whole fund of his subsistence. But though this principle ultimately provides him with all the necessities of life which he has occasion for, it neither does nor can provide him with them as he has occasion for them. The greater part of his occasional wants are supplied in the same manner as those of other people, by treaty, by barter, and by purchase. With the money which one man gives him he purchases food. The old clothes which another bestows upon him he exchanges for other clothes which suit him better, or for lodging, or for food, or for money, with which he can buy either food, clothes, or lodging, as he has occasion.

As it is by treaty, by barter, and by purchase, that we obtain from one another the greater part of those mutual good offices which we stand in need of, so it is this same trucking disposition which originally gives occasion to the division of labour. In a tribe of hunters or shepherds, a particular person makes bows and arrows, for example, with more readiness and dexterity than any other. He frequently exchanges them for cattle or for venison, with his companions; and he finds at last that he can, in this manner, get more cattle and venison, than if he himself went to the field to catch them. From a regard to his own interest, therefore, the making of bows and arrows grows to be his chief business, and he becomes a sort of armourer. Another excels in making the frames and covers of their little huts or moveable houses. He is accustomed to be of use in this way to his neighbours, who reward him in the same manner with cattle and with venison, till at last he finds it his interest to dedicate himself entirely to this employment, and to become a sort of house-carpenter. In the same manner a third becomes a smith or a brazier; a fourth, a tanner or dresser of hides or skins, the principal part of the clothing of savages. And thus the certainty of being able to exchange all that surplus part of the produce of his own labour, which is over and above his own consumption, for such parts of the produce of other men's labour as he may have occasion for, encourages every man to apply himself to a particular occupation, and to cultivate and bring to perfection whatever talent of genius he may possess for that particular species of business.

The difference of natural talents in different men, is, in reality, much less than we are aware of; and the very different genius which appears to distinguish men of different professions, when grown up to maturity, is not upon many occasions so much the cause, as the effect of the division of labour. The difference between the most dissimilar characters, between a philosopher and a common street porter, for example, seems to arise not so much from nature, as from habit, custom, and education. When they

came in to the world, and for the first six or eight years of their existence, they were, perhaps, very much alike, and neither their parents nor play-fellows could perceive any remarkable difference. About that age, or soon after, they come to be employed in very different occupations. The difference of talents comes then to be taken notice of, and widens by degrees, till at last the vanity of the philosopher is willing to acknowledge scarce any resemblance. But without the disposition to truck, barter, and exchange, every man must have procured to himself every necessary and conveniency of life which he wanted. All must have had the same duties to perform, and the same work to do, and there could have been no such difference of employment as could alone give occasion to any great difference of talents.

As it is this disposition which forms that difference of talents, so remarkable among men of different professions, so it is this same disposition which renders that difference useful. Many tribes of animals, acknowledged to be all of the same species, derive from nature a much more remarkable distinction of genius, than what, antecedent to custom and education, appears to take place among men. By nature a philosopher is not in genius and disposition half so different from a street porter, as a mastiff is from a grey-hound, or a grey-hound from a spaniel, or this last from a shepherd's dog. Those different tribes of animals, however, though all of the same species are of scarce any use to one another. The strength of the mastiff is not in the least supported either by the swiftness of the greyhound, or by the sagacity of the spaniel, or by the docility of the shepherd's dog. The effects of those different geniuses and talents, for want of the power or disposition to barter and exchange, cannot be brought into a common stock, and do not in the least contribute to the better accommodation and conveniency of the species. Each animal is still obliged to support and defend itself, separately and independently, and derives no sort of advantage from that variety of talents with which nature has distinguished its fellows. Among men, on the contrary, the most dissimilar geniuses are of use to one another; the different produces of their respective talents, by the general disposition to truck, barter, and exchange, being brought, as it were, into a common stock, where every man may purchase whatever part of the produce of other men's talents he has occasion for.

CHAPTER IV. OF THE ORIGIN AND USE OF MONEY.

When the division of labour has been once thoroughly established, it is but a very small part of a man's wants which the produce of his own labour can supply. He supplies the far greater part of them by exchanging that surplus part of the produce of his own labour, which is over and above his own consumption, for such parts of the produce of other men's labour as he has occasion for. Every man thus lives by exchanging, or becomes, in some measure, a merchant, and the society itself grows to be what is properly a commercial society.

But when the division of labour first began to take place, this power of exchanging must frequently have been very much clogged and embarrassed in its operations. One man, we shall suppose, has more of a certain commodity than he himself has occasion for, while another has less. The former, consequently, would be glad to dispose of; and the latter to purchase, a part of this superfluity. But if this latter should chance to have nothing that the former stands in need of, no exchange can be made between them. The butcher has more meat in his shop than he himself can consume, and the brewer and the baker would each of them be willing to purchase a part of it. But they have nothing to offer in exchange, except the different productions of their respective trades, and the butcher is already provided with all the bread and beer which he has immediate occasion for. No exchange can, in this case, be made between them. He cannot be their merchant, nor they his customers; and they are all of them thus mutually less

serviceable to one another. In order to avoid the inconveniency of such situations, every prudent man in every period of society, after the first establishment of the division of labour, must naturally have endeavoured to manage his affairs in such a manner, as to have at all times by him, besides the peculiar produce of his own industry, a certain quantity of some one commodity or other, such as he imagined few people would be likely to refuse in exchange for the produce of their industry. Many different commodities, it is probable, were successively both thought of and employed for this purpose. In the rude ages of society, cattle are said to have been the common instrument of commerce; and, though they must have been a most inconvenient one, yet, in old times, we find things were frequently valued according to the number of cattle which had been given in exchange for them. The armour of Diomede, says Homer, cost only nine oxen; but that of Glaucus cost a hundred oxen. Salt is said to be the common instrument of commerce and exchanges in Abyssinia; a species of shells in some parts of the coast of India; dried cod at Newfoundland; tobacco in Virginia; sugar in some of our West India colonies; hides or dressed leather in some other countries; and there is at this day a village in Scotland, where it is not uncommon, I am told, for a workman to carry nails instead of money to the baker's shop or the ale-house.

In all countries, however, men seem at last to have been determined by irresistible reasons to give the preference, for this employment, to metals above every other commodity. Metals can not only be kept with as little loss as any other commodity, scarce any thing being less perishable than they are, but they can likewise, without any loss, be divided into any number of parts, as by fusion those parts can easily be re-united again; a quality which no other equally durable commodities possess, and which, more than any other quality, renders them fit to be the instruments of commerce and circulation. The man who wanted to buy salt, for example, and had nothing but cattle to give in exchange for it, must have been obliged to buy salt to the value of a whole ox, or a whole sheep, at a time. He could seldom buy less than this, because what he was to give for it could seldom be divided without loss; and if he had a mind to buy more, he must, for the same reasons, have been obliged to buy double or triple the quantity, the value, to wit, of two or three oxen, or of two or three sheep. If, on the contrary, instead of sheep or oxen, he had metals to give in exchange for it, he could easily proportion the quantity of the metal to the precise quantity of the commodity which he had immediate occasion for...

It is in this manner that money has become, in all civilized nations, the universal instrument of commerce, by the intervention of which goods of all kinds are bought and sold, or exchanged for one another.

What are the rules which men naturally observe, in exchanging them either for money, or for one another, I shall now proceed to examine. These rules determine what may be called the relative or exchangeable value of goods.

The word VALUE, it is to be observed, has two different meanings, and sometimes expresses the utility of some particular object, and sometimes the power of purchasing other goods which the possession of that object conveys. The one may be called 'value in use;' the other, 'value in exchange.' The things which have the greatest value in use have frequently little or no value in exchange; and, on the contrary, those which have the greatest value in exchange have frequently little or no value in use. Nothing is more useful than water; but it will purchase scarce any thing; scarce any thing can be had in exchange for it. A diamond, on the contrary, has scarce any value in use; but a very great quantity of other goods may frequently be had in exchange for it.

In order to investigate the principles which regulate the exchangeable value of commodities, I shall endeavour to shew,

First, what is the real measure of this exchangeable value; or wherein consists the real price of all commodities.

Secondly, what are the different parts of which this real price is composed or made up.

And, lastly, what are the different circumstances which sometimes raise some or all of these different parts of price above, and sometimes sink them below, their natural or ordinary rate; or, what are the causes which sometimes hinder the market price, that is, the actual price of commodities, from coinciding exactly with what may be called their natural price.

I shall endeavour to explain, as fully and distinctly as I can, those three subjects in the three following chapters, for which I must very earnestly entreat both the patience and attention of the reader: his patience, in order to examine a detail which may, perhaps, in some places, appear unnecessarily tedious; and his attention, in order to understand what may perhaps, after the fullest explication which I am capable of giving it, appear still in some degree obscure. I am always willing to run some hazard of being tedious, in order to be sure that I am perspicuous; and, after taking the utmost pains that I can to be perspicuous, some obscurity may still appear to remain upon a subject, in its own nature extremely abstracted.

CHAPTER V. OF THE REAL AND NOMINAL PRICE OF COMMODITIES, OR OF THEIR PRICE IN LABOUR, AND THEIR PRICE IN MONEY.

Every man is rich or poor according to the degree in which he can afford to enjoy the necessities, conveniencies, and amusements of human life. But after the division of labour has once thoroughly taken place, it is but a very small part of these with which a man's own labour can supply him. The far greater part of them he must derive from the labour of other people, and he must be rich or poor according to the quantity of that labour which he can command, or which he can afford to purchase. The value of any commodity, therefore, to the person who possesses it, and who means not to use or consume it himself, but to exchange it for other commodities, is equal to the quantity of labour which it enables him to purchase or command. Labour therefore, is the real measure of the exchangeable value of all commodities.

The real price of every thing, what every thing really costs to the man who wants to acquire it, is the toil and trouble of acquiring it. What every thing is really worth to the man who has acquired it and who wants to dispose of it, or exchange it for something else, is the toil and trouble which it can save to himself, and which it can impose upon other people. What is bought with money, or with goods, is purchased by labour, as much as what we acquire by the toil of our own body. That money, or those goods, indeed, save us this toil. They contain the value of a certain quantity of labour, which we exchange for what is supposed at the time to contain the value of an equal quantity. Labour was the first price, the original purchase money that was paid for all things. It was not by gold or by silver, but by labour, that all the wealth of the world was originally purchased; and its value, to those who possess it,

and who want to exchange it for some new productions, is precisely equal to the quantity of labour which it can enable them to purchase or command.

Wealth, as Mr Hobbes says, is power. But the person who either acquires, or succeeds to a great fortune, does not necessarily acquire or succeed to any political power, either civil or military. His fortune may, perhaps, afford him the means of acquiring both; but the mere possession of that fortune does not necessarily convey to him either. The power which that possession immediately and directly conveys to him, is the power of purchasing a certain command over all the labour, or over all the produce of labour which is then in the market. His fortune is greater or less, precisely in proportion to the extent of this power, or to the quantity either of other men's labour, or, what is the same thing, of the produce of other men's labour, which it enables him to purchase or command. The exchangeable value of every thing must always be precisely equal to the extent of this power which it conveys to its owner.

But though labour be the real measure of the exchangeable value of all commodities, it is not that by which their value is commonly estimated. It is often difficult to ascertain the proportion between two different quantities of labour. The time spent in two different sorts of work will not always alone determine this proportion. The different degrees of hardship endured, and of ingenuity exercised, must likewise be taken into account. There may be more labour in an hour's hard work, than in two hours easy business; or in an hour's application to a trade which it cost ten years labour to learn, than in a month's industry, at an ordinary and obvious employment. But it is not easy to find any accurate measure either of hardship or ingenuity. In exchanging, indeed, the different productions of different sorts of labour for one another, some allowance is commonly made for both. It is adjusted, however, not by any accurate measure, but by the higgling and bargaining of the market, according to that sort of rough equality which, though not exact, is sufficient for carrying on the business of common life.

Every commodity, besides, is more frequently exchanged for, and thereby compared with, other commodities, than with labour. It is more natural, therefore, to estimate its exchangeable value by the quantity of some other commodity, than by that of the labour which it can produce. The greater part of people, too, understand better what is meant by a quantity of a particular commodity, than by a quantity of labour. The one is a plain palpable object; the other an abstract notion, which though it can be made sufficiently intelligible, is not altogether so natural and obvious.

But when barter ceases, and money has become the common instrument of commerce, every particular commodity is more frequently exchanged for money than for any other commodity. The butcher seldom carries his beef or his mutton to the baker or the brewer, in order to exchange them for bread or for beer; but he carries them to the market, where he exchanges them for money, and afterwards exchanges that money for bread and for beer. The quantity of money which he gets for them regulates, too, the quantity of bread and beer which he can afterwards purchase. It is more natural and obvious to him, therefore, to estimate their value by the quantity of money, the commodity for which he immediately exchanges them, than by that of bread and beer, the commodities for which he can exchange them only by the intervention of another commodity; and rather to say that his butcher's meat is worth three-pence or fourpence a-pound, than that it is worth three or four pounds of bread, or three or four quarts of small beer. Hence it comes to pass, that the exchangeable value of every commodity is more frequently estimated by the quantity of money, than by the quantity either of labour or of any other commodity which can be had in exchange for it.

Gold and silver, however, like every other commodity, vary in their value; are sometimes cheaper and sometimes dearer, sometimes of easier and sometimes of more difficult purchase. The quantity of labour which any particular quantity of them can purchase or command, or the quantity of other goods which it will exchange for, depends always upon the fertility or barrenness of the mines which happen to be known about the time when such exchanges are made. The discovery of the abundant mines of America, reduced, in the sixteenth century, the value of gold and silver in Europe to about a third of what it had been before. As it cost less labour to bring those metals from the mine to the market, so, when they were brought thither, they could purchase or command less labour; and this revolution in their value, though perhaps the greatest, is by no means the only one of which history gives some account. But as a measure of quantity, such as the natural foot, fathom, or handful, which is continually varying in its own quantity, can never be an accurate measure of the quantity of other things; so a commodity which is itself continually varying in its own value, can never be an accurate measure of the value of other commodities. Equal quantities of labour, at all times and places, may be said to be of equal value to the labourer. In his ordinary state of health, strength, and spirits; in the ordinary degree of his skill and dexterity, he must always lay down the same portion of his ease, his liberty, and his happiness. The price which he pays must always be the same, whatever may be the quantity of goods which he receives in return for it. Of these, indeed, it may sometimes purchase a greater and sometimes a smaller quantity; but it is their value which varies, not that of the labour which purchases them. At all times and places, that is dear which it is difficult to come at, or which it costs much labour to acquire; and that cheap which is to be had easily, or with very little labour. Labour alone, therefore, never varying in its own value, is alone the ultimate and real standard by which the value of all commodities can at all times and places be estimated and compared. It is their real price; money is their nominal price only.

But though equal quantities of labour are always of equal value to the labourer, yet to the person who employs him they appear sometimes to be of greater, and sometimes of smaller value. He purchases them sometimes with a greater, and sometimes with a smaller quantity of goods, and to him the price of labour seems to vary like that of all other things. It appears to him dear in the one case, and cheap in the other. In reality, however, it is the goods which are cheap in the one case, and dear in the other.

In this popular sense, therefore, labour, like commodities, may be said to have a real and a nominal price. Its real price may be said to consist in the quantity of the necessities and conveniencies of life which are given for it; its nominal price, in the quantity of money. The labourer is rich or poor, is well or ill rewarded, in proportion to the real, not to the nominal price of his labour...

CHAPTER VI. OF THE COMPONENT PART OF THE PRICE OF COMMODITIES.

In that early and rude state of society which precedes both the accumulation of stock and the appropriation of land, the proportion between the quantities of labour necessary for acquiring different objects, seems to be the only circumstance which can afford any rule for exchanging them for one another. If among a nation of hunters, for example, it usually costs twice the labour to kill a beaver which it does to kill a deer, one beaver should naturally exchange for or be worth two deer. It is natural that what is usually the produce of two days or two hours labour, should be worth double of what is usually the produce of one day's or one hour's labour.

If the one species of labour should be more severe than the other, some allowance will naturally be made for this superior hardship; and the produce of one hour's labour in the one way may frequently exchange for that of two hour's labour in the other.

Or if the one species of labour requires an uncommon degree of dexterity and ingenuity, the esteem which men have for such talents, will naturally give a value to their produce, superior to what would be due to the time employed about it. Such talents can seldom be acquired but in consequence of long application, and the superior value of their produce may frequently be no more than a reasonable compensation for the time and labour which must be spent in acquiring them. In the advanced state of society, allowances of this kind, for superior hardship and superior skill, are commonly made in the wages of labour; and something of the same kind must probably have taken place in its earliest and rudest period.

In this state of things, the whole produce of labour belongs to the labourer; and the quantity of labour commonly employed in acquiring or producing any commodity, is the only circumstance which can regulate the quantity of labour which it ought commonly to purchase, command, or exchange for.

As soon as stock has accumulated in the hands of particular persons, some of them will naturally employ it in setting to work industrious people, whom they will supply with materials and subsistence, in order to make a profit by the sale of their work, or by what their labour adds to the value of the materials. In exchanging the complete manufacture either for money, for labour, or for other goods, over and above what may be sufficient to pay the price of the materials, and the wages of the workmen, something must be given for the profits of the undertaker of the work, who hazards his stock in this adventure. The value which the workmen add to the materials, therefore, resolves itself in this case into two parts, of which the one pays their wages, the other the profits of their employer upon the whole stock of materials and wages which he advanced. He could have no interest to employ them, unless he expected from the sale of their work something more than what was sufficient to replace his stock to him; and he could have no interest to employ a great stock rather than a small one, unless his profits were to bear some proportion to the extent of his stock.

The profits of stock, it may perhaps be thought, are only a different name for the wages of a particular sort of labour, the labour of inspection and direction. They are, however, altogether different, are regulated by quite different principles, and bear no proportion to the quantity, the hardship, or the ingenuity of this supposed labour of inspection and direction. They are regulated altogether by the value of the stock employed, and are greater or smaller in proportion to the extent of this stock. Let us suppose, for example, that in some particular place, where the common annual profits of manufacturing stock are ten per cent. there are two different manufactures, in each of which twenty workmen are employed, at the rate of fifteen pounds a year each, or at the expense of three hundred a-year in each manufactory. Let us suppose, too, that the coarse materials annually wrought up in the one cost only seven hundred pounds, while the finer materials in the other cost seven thousand. The capital annually employed in the one will, in this case, amount only to one thousand pounds; whereas that employed in the other will amount to seven thousand three hundred pounds. At the rate of ten per cent. therefore, the undertaker of the one will expect a yearly profit of about one hundred pounds only; while that of the other will expect about seven hundred and thirty pounds. But though their profits are so very different, their labour of inspection and direction may be either altogether or very nearly the same. In many great works, almost the whole labour of this kind is committed to some principal clerk. His wages properly

express the value of this labour of inspection and direction. Though in settling them some regard is had commonly, not only to his labour and skill, but to the trust which is reposed in him, yet they never bear any regular proportion to the capital of which he oversees the management; and the owner of this capital, though he is thus discharged of almost all labour, still expects that his profit should bear a regular proportion to his capital. In the price of commodities, therefore, the profits of stock constitute a component part altogether different from the wages of labour, and regulated by quite different principles.

In this state of things, the whole produce of labour does not always belong to the labourer. He must in most cases share it with the owner of the stock which employs him. Neither is the quantity of labour commonly employed in acquiring or producing any commodity, the only circumstance which can regulate the quantity which it ought commonly to purchase, command or exchange for. An additional quantity, it is evident, must be due for the profits of the stock which advanced the wages and furnished the materials of that labour.

As soon as the land of any country has all become private property, the landlords, like all other men, love to reap where they never sowed, and demand a rent even for its natural produce. The wood of the forest, the grass of the field, and all the natural fruits of the earth, which, when land was in common, cost the labourer only the trouble of gathering them, come, even to him, to have an additional price fixed upon them. He must then pay for the licence to gather them, and must give up to the landlord a portion of what his labour either collects or produces. This portion, or, what comes to the same thing, the price of this portion, constitutes the rent of land, and in the price of the greater part of commodities, makes a third component part.

The real value of all the different component parts of price, it must be observed, is measured by the quantity of labour which they can, each of them, purchase or command. Labour measures the value, not only of that part of price which resolves itself into labour, but of that which resolves itself into rent, and of that which resolves itself into profit...

BOOK IV. OF SYSTEMS OF POLITICAL ECONOMY.

Introduction

Political economy, considered as a branch of the science of a statesman or legislator, proposes two distinct objects; first, to provide a plentiful revenue or subsistence for the people, or, more properly, to enable them to provide such a revenue or subsistence for themselves; and, secondly, to supply the state or commonwealth with a revenue sufficient for the public services. It proposes to enrich both the people and the sovereign.

The different progress of opulence in different ages and nations, has given occasion to two different systems of political economy, with regard to enriching the people. The one may be called the system of commerce, the other that of agriculture. I shall endeavour to explain both as fully and distinctly as I can, and shall begin with the system of commerce. It is the modern system, and is best understood in our own country and in our own times.

CHAPTER II. OF RESTRAINTS UPON IMPORTATION FROM FOREIGN COUNTRIES OF SUCH GOODS AS CAN BE PRODUCED AT HOME.

...Every individual is continually exerting himself to find out the most advantageous employment for whatever capital he can command. It is his own advantage, indeed, and not that of the society, which he has in view. But the study of his own advantage naturally, or rather necessarily, leads him to prefer that employment which is most advantageous to the society.

First, every individual endeavours to employ his capital as near home as he can, and consequently as much as he can in the support of domestic industry, provided always that he can thereby obtain the ordinary, or not a great deal less than the ordinary profits of stock.

Thus, upon equal, or nearly equal profits, every wholesale merchant naturally prefers the home trade to the foreign trade of consumption, and the foreign trade of consumption to the carrying trade. In the home trade, his capital is never so long out of his sight as it frequently is in the foreign trade of consumption. He can know better the character and situation of the persons whom he trusts; and if he should happen to be deceived, he knows better the laws of the country from which he must seek redress. In the carrying trade, the capital of the merchant is, as it were, divided between two foreign countries, and no part of it is ever necessarily brought home, or placed under his own immediate view and command. The capital which an Amsterdam merchant employs in carrying corn from Koningsberg to Lisbon, and fruit and wine from Lisbon to Koningsberg, must generally be the one half of it at Koningsberg, and the other half at Lisbon. No part of it need ever come to Amsterdam. The natural residence of such a merchant should either be at Koningsberg or Lisbon; and it can only be some very particular circumstances which can make him prefer the residence of Amsterdam. The uneasiness, however, which he feels at being separated so far from his capital, generally determines him to bring part both of the Koningsberg goods which he destines for the market of Lisbon, and of the Lisbon goods which he destines for that of Koningsberg, to Amsterdam; and though this necessarily subjects him to a double charge of loading and unloading as well as to the payment of some duties and customs, yet, for the sake of having some part of his capital always under his own view and command, he willingly submits to this extraordinary charge; and it is in this manner that every country which has any considerable share of the carrying trade, becomes always the emporium, or general market, for the goods of all the different countries whose trade it carries on. The merchant, in order to save a second loading and unloading, endeavours always to sell in the home market, as much of the goods of all those different countries as he can; and thus, so far as he can, to convert his carrying trade into a foreign trade of consumption. A merchant, in the same manner, who is engaged in the foreign trade of consumption, when he collects goods for foreign markets, will always be glad, upon equal or nearly equal profits, to sell as great a part of them at home as he can. He saves himself the risk and trouble of exportation, when, so far as he can, he thus converts his foreign trade of consumption into a home trade. Home is in this manner the centre, if I may say so, round which the capitals of the inhabitants of every country are continually circulating, and towards which they are always tending, though, by particular causes, they may sometimes be driven off and repelled from it towards more distant employments. But a capital employed in the home trade, it has already been shown, necessarily puts into motion a greater quantity of domestic industry, and gives revenue and employment to a greater number of the inhabitants of the country, than an equal capital employed in the foreign trade of consumption; and one employed in the foreign trade of consumption has the same advantage over an equal capital employed in the carrying trade. Upon equal, or only nearly equal profits, therefore, every individual naturally inclines to employ

his capital in the manner in which it is likely to afford the greatest support to domestic industry, and to give revenue and employment to the greatest number of people of his own country.

Secondly, every individual who employs his capital in the support of domestic industry, necessarily endeavours so to direct that industry, that its produce may be of the greatest possible value.

The produce of industry is what it adds to the subject or materials upon which it is employed. In proportion as the value of this produce is great or small, so will likewise be the profits of the employer. But it is only for the sake of profit that any man employs a capital in the support of industry; and he will always, therefore, endeavour to employ it in the support of that industry of which the produce is likely to be of the greatest value, or to exchange for the greatest quantity either of money or of other goods.

But the annual revenue of every society is always precisely equal to the exchangeable value of the whole annual produce of its industry, or rather is precisely the same thing with that exchangeable value. As every individual, therefore, endeavours as much as he can, both to employ his capital in the support of domestic industry, and so to direct that industry that its produce may be of the greatest value; every individual necessarily labours to render the annual revenue of the society as great as he can. He generally, indeed, neither intends to promote the public interest, nor knows how much he is promoting it. By preferring the support of domestic to that of foreign industry, he intends only his own security; and by directing that industry in such a manner as its produce may be of the greatest value, he intends only his own gain; and he is in this, as in many other cases, led by an invisible hand to promote an end which was no part of his intention. Nor is it always the worse for the society that it was no part of it. By pursuing his own interest, he frequently promotes that of the society more effectually than when he really intends to promote it. I have never known much good done by those who affected to trade for the public good. It is an affectation, indeed, not very common among merchants, and very few words need be employed in dissuading them from it.

What is the species of domestic industry which his capital can employ, and of which the produce is likely to be of the greatest value, every individual, it is evident, can in his local situation judge much better than any statesman or lawgiver can do for him. The statesman, who should attempt to direct private people in what manner they ought to employ their capitals, would not only load himself with a most unnecessary attention, but assume an authority which could safely be trusted, not only to no single person, but to no council or senate whatever, and which would nowhere be so dangerous as in the hands of a man who had folly and presumption enough to fancy himself fit to exercise it...

CHAPTER IX. OF THE AGRICULTURAL SYSTEMS, OR OF THOSE SYSTEMS OF POLITICAL ECONOMY WHICH REPRESENT THE PRODUCE OF LAND, AS EITHER THE SOLE OR THE PRINCIPAL SOURCE OF THE REVENUE AND WEALTH OF EVERY COUNTRY.

...All systems, either of preference or of restraint, therefore, being thus completely taken away, the obvious and simple system of natural liberty establishes itself of its own accord. Every man, as long as he does not violate the laws of justice, is left perfectly free to pursue his own interest his own way, and to bring both his industry and capital into competition with those of any other man, or order of men. The sovereign is completely discharged from a duty, in the attempting to perform which he must always be exposed to innumerable delusions, and for the proper performance of which, no human wisdom or

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knowledge could ever be sufficient; the duty of superintending the industry of private people, and of directing it towards the employments most suitable to the interests of the society. According to the system of natural liberty, the sovereign has only three duties to attend to; three duties of great importance, indeed, but plain and intelligible to common understandings: first, the duty of protecting the society from the violence and invasion of other independent societies; secondly, the duty of protecting, as far as possible, every member of the society from the injustice or oppression of every other member of it, or the duty of establishing an exact administration of justice; and, thirdly, the duty of erecting and maintaining certain public works, and certain public institutions, which it can never be for the interest of any individual, or small number of individuals to erect and maintain; because the profit could never repay the expense to any individual, or small number of individuals, though it may frequently do much more than repay it to a great society.

The proper performance of those several duties of the sovereign necessarily supposes a certain expense; and this expense again necessarily requires a certain revenue to support it. In the following book, therefore, I shall endeavour to explain, first, what are the necessary expenses of the sovereign or commonwealth; and which of those expenses ought to be defrayed by the general contribution of the whole society; and which of them, by that of some particular part only, or of some particular members of the society: secondly, what are the different methods in which the whole society may be made to contribute towards defraying the expenses incumbent on the whole society; and what are the principal advantages and inconveniencies of each of those methods: and thirdly, what are the reasons and causes which have induced almost all modern governments to mortgage some part of this revenue, or to contract debts; and what have been the effects of those debts upon the real wealth, the annual produce of the land and labour of the society. The following book, therefore, will naturally be divided into three chapters.

BOOK V. OF THE REVENUE OF THE SOVEREIGN OR COMMONWEALTH

CHAPTER I. OF THE EXPENSES OF THE SOVEREIGN OR COMMONWEALTH.

CONCLUSION.

...The expense of defending the society, and that of supporting the dignity of the chief magistrate, are both laid out for the general benefit of the whole society. It is reasonable, therefore, that they should be defrayed by the general contribution of the whole society; all the different members contributing, as nearly as possible, in proportion to their respective abilities.

The expense of the administration of justice, too, may no doubt be considered as laid out for the benefit of the whole society. There is no impropriety, therefore, in its being defrayed by the general contribution of the whole society. The persons, however, who give occasion to this expense, are those who, by their injustice in one way or another, make it necessary to seek redress or protection from the courts of justice. The persons, again, most immediately benefited by this expense, are those whom the courts of justice either restore to their rights, or maintain in their rights. The expense of the administration of justice, therefore, may very properly be defrayed by the particular contribution of one or other, or both, of those two different sets of persons, according as different occasions may require, that is, by the fees of court. It cannot be necessary to have recourse to the general contribution of the whole society, except

for the conviction of those criminals who have not themselves any estate or fund sufficient for paying those fees.

Those local or provincial expenses, of which the benefit is local or provincial (what is laid out, for example, upon the police of a particular town or district), ought to be defrayed by a local or provincial revenue, and ought to be no burden upon the general revenue of the society. It is unjust that the whole society should contribute towards an expense, of which the benefit is confined to a part of the society.

The expense of maintaining good roads and communications is, no doubt, beneficial to the whole society, and may, therefore, without any injustice, be defrayed by the general contributions of the whole society. This expense, however, is most immediately and directly beneficial to those who travel or carry goods from one place to another, and to those who consume such goods...

The expense of the institutions for education and religious instruction, is likewise, no doubt, beneficial to the whole society, and may, therefore, without injustice, be defrayed by the general contribution of the whole society. This expense, however, might, perhaps, with equal propriety, and even with some advantage, be defrayed altogether by those who receive the immediate benefit of such education and instruction, or by the voluntary contribution of those who think they have occasion for either the one or the other.

When the institutions, or public works, which are beneficial to the whole society, either cannot be maintained altogether, or are not maintained altogether, by the contribution of such particular members of the society as are most immediately benefited by them; the deficiency must, in most cases, be made up by the general contribution of the whole society. The general revenue of the society, over and above defraying the expense of defending the society, and of supporting the dignity of the chief magistrate, must make up for the deficiency of many particular branches of revenue. The sources of this general or public revenue, I shall endeavour to explain in the following chapter.

CHAPTER II. OF THE SOURCES OF THE GENERAL OR PUBLIC REVENUE OF THE SOCIETY.

The revenue which must defray, not only the expense of defending the society and of supporting the dignity of the chief magistrate, but all the other necessary expenses of government, for which the constitution of the state has not provided any particular revenue may be drawn, either, first, from some fund which peculiarly belongs to the sovereign or commonwealth, and which is independent of the revenue of the people; or, secondly, from the revenue of the people...

Before I enter upon the examination of particular taxes, it is necessary to premise the four following maximis with regard to taxes in general.

1. The subjects of every state ought to contribute towards the support of the government, as nearly as possible, in proportion to their respective abilities; that is, in proportion to the revenue which they respectively enjoy under the protection of the state. The expense of government to the individuals of a great nation, is like the expense of management to the joint tenants of a great estate, who are all obliged to contribute in proportion to their respective interests in the estate. In the observation or neglect of this maxim, consists what is called the equality or inequality of taxation...

2. The tax which each individual is bound to pay, ought to be certain and not arbitrary. The time of payment, the manner of payment, the quantity to be paid, ought all to be clear and plain to the contributor, and to every other person. Where it is otherwise, every person subject to the tax is put more or less in the power of the tax-gatherer, who can either aggravate the tax upon any obnoxious contributor, or extort, by the terror of such aggravation, some present or perquisite to himself. The uncertainty of taxation encourages the insolence, and favours the corruption, of an order of men who are naturally unpopular, even where they are neither insolent nor corrupt. The certainty of what each individual ought to pay is, in taxation, a matter of so great importance, that a very considerable degree of inequality, it appears, I believe, from the experience of all nations, is not near so great an evil as a very small degree of uncertainty.

3. Every tax ought to be levied at the time, or in the manner, in which it is most likely to be convenient for the contributor to pay it. A tax upon the rent of land or of houses, payable at the same term at which such rents are usually paid, is levied at the time when it is most likely to be convenient for the contributor to pay; or when he is most likely to have wherewithall to pay. Taxes upon such consumable goods as are articles of luxury, are all finally paid by the consumer, and generally in a manner that is very convenient for him. He pays them by little and little, as he has occasion to buy the goods. As he is at liberty too, either to buy or not to buy, as he pleases, it must be his own fault if he ever suffers any considerable inconveniency from such taxes.

4. Every tax ought to be so contrived, as both to take out and to keep out of the pockets of the people as little as possible, over and above what it brings into the public treasury of the state. A tax may either take out or keep out of the pockets of the people a great deal more than it brings into the public treasury, in the four following ways. First, the levying of it may require a great number of officers, whose salaries may eat up the greater part of the produce of the tax, and whose perquisites may impose another additional tax upon the people. Secondly, it may obstruct the industry of the people, and discourage them from applying to certain branches of business which might give maintenance and employment to great multitudes. While it obliges the people to pay, it may thus diminish, or perhaps destroy, some of the funds which might enable them more easily to do so. Thirdly, by the forfeitures and other penalties which those unfortunate individuals incur, who attempt unsuccessfully to evade the tax, it may frequently ruin them, and thereby put an end to the benefit which the community might have received from the employment of their capitals. An injudicious tax offers a great temptation to smuggling. But the penalties of smuggling must arise in proportion to the temptation. The law, contrary to all the ordinary principles of justice, first creates the temptation, and then punishes those who yield to it; and it commonly enhances the punishment, too, in proportion to the very circumstance which ought certainly to alleviate it, the temptation to commit the crime. {See Sketches of the History of Man page 474, and Seq.} Fourthly, by subjecting the people to the frequent visits and the odious examination of the tax-gatherers, it may expose them to much unnecessary trouble, vexation, and oppression; and though vexation is not, strictly speaking, expense, it is certainly equivalent to the expense at which every man would be willing to redeem himself from it. It is in some one or other of these four different ways, that taxes are frequently so much more burdensome to the people than they are beneficial to the sovereign.

8 Manifesto of the Communist Party (Karl Marx and Friedrich Engels)

Karl Marx¹ (/mɑːrks/; German: [ˈkaʁl ˈmaʁks]; 5 May 1818 – 14 March 1883) was a Prussian-born philosopher, economist, political theorist, sociologist, journalist, and revolutionary socialist. Born in Trier to a middle-class family, he later studied political economy and Hegelian philosophy. As an adult, Marx became stateless and spent much of his life in London, where he continued to develop his thought in collaboration with German thinker Friedrich Engels and published various works, the most well-known being the 1848 pamphlet *The Communist Manifesto*. His work has since influenced subsequent intellectual, economic, and political history.

Marx's theories about society, economics, and politics—collectively understood as Marxism—hold that human societies develop through class struggle; in capitalism, this manifests itself in the conflict between the ruling classes (known as the bourgeoisie) that control the means of production and working classes (known as the proletariat) that enable these means by selling their labour for wages. Employing a critical approach known as historical materialism, Marx predicted that, like previous socioeconomic systems, capitalism produced internal tensions which would lead to its self-destruction and replacement by a new system: socialism. For Marx, class antagonisms under capitalism, owing in part to its instability and crisis-prone nature, would eventuate the working class' development of class consciousness, leading to their conquest of political power and eventually the establishment of a classless, communist society constituted by a free association of producers. Marx actively fought for its implementation, arguing that the working class should carry out organised revolutionary action to topple capitalism and bring about socio-economic emancipation.

Marx has been described as one of the most influential figures in human history, and his work has been both lauded and criticised. His work in economics laid the basis for much of the current understanding of labour and its relation to capital, and subsequent economic thought. Many intellectuals, labour unions, artists and political parties worldwide have been influenced by Marx's work, with many modifying or adapting his ideas. Marx is typically cited as one of the principal architects of modern social science.

Friedrich Engels² (English: /ˈɛŋɡəlz/ or /ˈɛŋəlz/; German: [ˈfʁiːdʁɪç ˈɛŋəls]; 28 November 1820 – 5 August 1895) was a German philosopher, social scientist, journalist, and businessman. He founded Marxist theory together with Karl Marx. In 1845, he published *The Condition of the Working Class in England*, based on personal observations and research in Manchester.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Karl Marx. (2017, August 18). In Wikipedia, The Free Encyclopedia. Retrieved 17:00, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Karl_Marx&oldid=796101997

² This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Friedrich Engels. (2017, August 5). In Wikipedia, The Free Encyclopedia. Retrieved 17:01, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Friedrich_Engels&oldid=794028856

In 1848, he co-authored *The Communist Manifesto* with Marx, though he also authored and co-authored (primarily with Marx) many other works, and later he supported Marx financially to do research and write *Das Kapital*. After Marx's death, Engels edited the second and third volumes. Additionally, Engels organised Marx's notes on the *Theories of Surplus Value*, which he later published as the "fourth volume" of *Capital*. He also made contributions to family economics.

***Manifesto of the Communist Party*³**

A spectre is haunting Europe—the spectre of Communism. All the Powers of old Europe have entered into a holy alliance to exorcise this spectre: Pope and Czar, Metternich and Guizot, French Radicals and German police-spies.

Where is the party in opposition that has not been decried as Communistic by its opponents in power? Where is the Opposition that has not hurled back the branding reproach of Communism, against the more advanced opposition parties, as well as against its reactionary adversaries?

Two things result from this fact.

I. Communism is already acknowledged by all European Powers to be itself a Power.

II. It is high time that Communists should openly, in the face of the whole world, publish their views, their aims, their tendencies, and meet this nursery tale of the Spectre of Communism with a Manifesto of the party itself.

To this end, Communists of various nationalities have assembled in London, and sketched the following Manifesto, to be published in the English, French, German, Italian, Flemish and Danish languages.

I. BOURGEOIS AND PROLETARIANS

The history of all hitherto existing societies is the history of class struggles.

Freeman and slave, patrician and plebeian, lord and serf, guild-master and journeyman, in a word, oppressor and oppressed, stood in constant opposition to one another, carried on an uninterrupted, now hidden, now open fight, a fight that each time ended, either in a revolutionary re-constitution of society at large, or in the common ruin of the contending classes.

In the earlier epochs of history, we find almost everywhere a complicated arrangement of society into various orders, a manifold gradation of social rank. In ancient Rome we have patricians, knights, plebeians, slaves; in the Middle Ages, feudal lords, vassals, guild-masters, journeymen, apprentices, serfs; in almost all of these classes, again, subordinate gradations.

The modern bourgeois society that has sprouted from the ruins of feudal society has not done away with class antagonisms. It has but established new classes, new conditions of oppression, new forms of

³ Karl Marx and Friedrich Engels, 1888.

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struggle in place of the old ones. Our epoch, the epoch of the bourgeoisie, possesses, however, this distinctive feature: it has simplified the class antagonisms. Society as a whole is more and more splitting up into two great hostile camps, into two great classes, directly facing each other: Bourgeoisie and Proletariat.

From the serfs of the Middle Ages sprang the chartered burghers of the earliest towns. From these burgesses the first elements of the bourgeoisie were developed.

The discovery of America, the rounding of the Cape, opened up fresh ground for the rising bourgeoisie. The East-Indian and Chinese markets, the colonisation of America, trade with the colonies, the increase in the means of exchange and in commodities generally, gave to commerce, to navigation, to industry, an impulse never before known, and thereby, to the revolutionary element in the tottering feudal society, a rapid development.

The feudal system of industry, under which industrial production was monopolised by closed guilds, now no longer sufficed for the growing wants of the new markets. The manufacturing system took its place. The guild-masters were pushed on one side by the manufacturing middle class; division of labour between the different corporate guilds vanished in the face of division of labour in each single workshop.

Meantime the markets kept ever growing, the demand ever rising. Even manufacture no longer sufficed. Thereupon, steam and machinery revolutionised industrial production. The place of manufacture was taken by the giant, Modern Industry, the place of the industrial middle class, by industrial millionaires, the leaders of whole industrial armies, the modern bourgeois.

Modern industry has established the world-market, for which the discovery of America paved the way. This market has given an immense development to commerce, to navigation, to communication by land. This development has, in its time, reacted on the extension of industry; and in proportion as industry, commerce, navigation, railways extended, in the same proportion the bourgeoisie developed, increased its capital, and pushed into the background every class handed down from the Middle Ages.

We see, therefore, how the modern bourgeoisie is itself the product of a long course of development, of a series of revolutions in the modes of production and of exchange.

Each step in the development of the bourgeoisie was accompanied by a corresponding political advance of that class. An oppressed class under the sway of the feudal nobility, an armed and self-governing association in the mediaeval commune; here independent urban republic (as in Italy and Germany), there taxable "third estate" of the monarchy (as in France), afterwards, in the period of manufacture proper, serving either the semi-feudal or the absolute monarchy as a counterpoise against the nobility, and, in fact, corner-stone of the great monarchies in general, the bourgeoisie has at last, since the establishment of Modern Industry and of the world-market, conquered for itself, in the modern representative State, exclusive political sway. The executive of the modern State is but a committee for managing the common affairs of the whole bourgeoisie.

The bourgeoisie, historically, has played a most revolutionary part.

The bourgeoisie, wherever it has got the upper hand, has put an end to all feudal, patriarchal, idyllic relations. It has pitilessly torn asunder the motley feudal ties that bound man to his "natural superiors," and has left remaining no other nexus between man and man than naked self-interest, than callous "cash payment." It has drowned the most heavenly ecstasies of religious fervour, of chivalrous enthusiasm, of philistine sentimentalism, in the icy water of egotistical calculation. It has resolved personal worth into exchange value, and in place of the numberless and infeasible chartered freedoms, has set up that single, unconscionable freedom—Free Trade. In one word, for exploitation, veiled by religious and political illusions, naked, shameless, direct, brutal exploitation.

The bourgeoisie has stripped of its halo every occupation hitherto honoured and looked up to with reverent awe. It has converted the physician, the lawyer, the priest, the poet, the man of science, into its paid wage labourers.

The bourgeoisie has torn away from the family its sentimental veil, and has reduced the family relation to a mere money relation.

The bourgeoisie has disclosed how it came to pass that the brutal display of vigour in the Middle Ages, which Reactionists so much admire, found its fitting complement in the most slothful indolence. It has been the first to show what man's activity can bring about. It has accomplished wonders far surpassing Egyptian pyramids, Roman aqueducts, and Gothic cathedrals; it has conducted expeditions that put in the shade all former Exoduses of nations and crusades.

The bourgeoisie cannot exist without constantly revolutionising the instruments of production, and thereby the relations of production, and with them the whole relations of society. Conservation of the old modes of production in unaltered form, was, on the contrary, the first condition of existence for all earlier industrial classes. Constant revolutionising of production, uninterrupted disturbance of all social conditions, everlasting uncertainty and agitation distinguish the bourgeois epoch from all earlier ones. All fixed, fast-frozen relations, with their train of ancient and venerable prejudices and opinions, are swept away, all new-formed ones become antiquated before they can ossify. All that is solid melts into air, all that is holy is profaned, and man is at last compelled to face with sober senses, his real conditions of life, and his relations with his kind.

The need of a constantly expanding market for its products chases the bourgeoisie over the whole surface of the globe. It must nestle everywhere, settle everywhere, establish connexions everywhere.

The bourgeoisie has through its exploitation of the world-market given a cosmopolitan character to production and consumption in every country. To the great chagrin of Reactionists, it has drawn from under the feet of industry the national ground on which it stood. All old-established national industries have been destroyed or are daily being destroyed. They are dislodged by new industries, whose introduction becomes a life and death question for all civilised nations, by industries that no longer work up indigenous raw material, but raw material drawn from the remotest zones; industries whose products are consumed, not only at home, but in every quarter of the globe. In place of the old wants, satisfied by the productions of the country, we find new wants, requiring for their satisfaction the products of distant lands and climes. In place of the old local and national seclusion and self-sufficiency, we have intercourse in every direction, universal inter-dependence of nations. And as in material, so also in intellectual production. The intellectual creations of individual nations become common property.

National one-sidedness and narrow-mindedness become more and more impossible, and from the numerous national and local literatures, there arises a world literature.

The bourgeoisie, by the rapid improvement of all instruments of production, by the immensely facilitated means of communication, draws all, even the most barbarian, nations into civilisation. The cheap prices of its commodities are the heavy artillery with which it batters down all Chinese walls, with which it forces the barbarians' intensely obstinate hatred of foreigners to capitulate. It compels all nations, on pain of extinction, to adopt the bourgeois mode of production; it compels them to introduce what it calls civilisation into their midst, i.e., to become bourgeois themselves. In one word, it creates a world after its own image.

The bourgeoisie has subjected the country to the rule of the towns. It has created enormous cities, has greatly increased the urban population as compared with the rural, and has thus rescued a considerable part of the population from the idiocy of rural life. Just as it has made the country dependent on the towns, so it has made barbarian and semi-barbarian countries dependent on the civilised ones, nations of peasants on nations of bourgeois, the East on the West.

The bourgeoisie keeps more and more doing away with the scattered state of the population, of the means of production, and of property. It has agglomerated production, and has concentrated property in a few hands. The necessary consequence of this was political centralisation. Independent, or but loosely connected provinces, with separate interests, laws, governments and systems of taxation, became lumped together into one nation, with one government, one code of laws, one national class-interest, one frontier and one customs-tariff. The bourgeoisie, during its rule of scarce one hundred years, has created more massive and more colossal productive forces than have all preceding generations together. Subjection of Nature's forces to man, machinery, application of chemistry to industry and agriculture, steam-navigation, railways, electric telegraphs, clearing of whole continents for cultivation, canalisation of rivers, whole populations conjured out of the ground—what earlier century had even a presentiment that such productive forces slumbered in the lap of social labour?

We see then: the means of production and of exchange, on whose foundation the bourgeoisie built itself up, were generated in feudal society. At a certain stage in the development of these means of production and of exchange, the conditions under which feudal society produced and exchanged, the feudal organisation of agriculture and manufacturing industry, in one word, the feudal relations of property became no longer compatible with the already developed productive forces; they became so many fetters. They had to be burst asunder; they were burst asunder.

Into their place stepped free competition, accompanied by a social and political constitution adapted to it, and by the economical and political sway of the bourgeois class.

A similar movement is going on before our own eyes. Modern bourgeois society with its relations of production, of exchange and of property, a society that has conjured up such gigantic means of production and of exchange, is like the sorcerer, who is no longer able to control the powers of the nether world whom he has called up by his spells. For many a decade past the history of industry and commerce is but the history of the revolt of modern productive forces against modern conditions of production, against the property relations that are the conditions for the existence of the bourgeoisie and of its rule. It is enough to mention the commercial crises that by their periodical return put on its trial,

each time more threateningly, the existence of the entire bourgeois society. In these crises a great part not only of the existing products, but also of the previously created productive forces, are periodically destroyed. In these crises there breaks out an epidemic that, in all earlier epochs, would have seemed an absurdity—the epidemic of over-production. Society suddenly finds itself put back into a state of momentary barbarism; it appears as if a famine, a universal war of devastation had cut off the supply of every means of subsistence; industry and commerce seem to be destroyed; and why? Because there is too much civilisation, too much means of subsistence, too much industry, too much commerce. The productive forces at the disposal of society no longer tend to further the development of the conditions of bourgeois property; on the contrary, they have become too powerful for these conditions, by which they are fettered, and so soon as they overcome these fetters, they bring disorder into the whole of bourgeois society, endanger the existence of bourgeois property. The conditions of bourgeois society are too narrow to comprise the wealth created by them. And how does the bourgeoisie get over these crises? On the one hand enforced destruction of a mass of productive forces; on the other, by the conquest of new markets, and by the more thorough exploitation of the old ones. That is to say, by paving the way for more extensive and more destructive crises, and by diminishing the means whereby crises are prevented.

The weapons with which the bourgeoisie felled feudalism to the ground are now turned against the bourgeoisie itself.

But not only has the bourgeoisie forged the weapons that bring death to itself; it has also called into existence the men who are to wield those weapons—the modern working class—the proletarians.

In proportion as the bourgeoisie, i.e., capital, is developed, in the same proportion is the proletariat, the modern working class, developed—a class of labourers, who live only so long as they find work, and who find work only so long as their labour increases capital. These labourers, who must sell themselves piece-meal, are a commodity, like every other article of commerce, and are consequently exposed to all the vicissitudes of competition, to all the fluctuations of the market.

Owing to the extensive use of machinery and to division of labour, the work of the proletarians has lost all individual character, and consequently, all charm for the workman. He becomes an appendage of the machine, and it is only the most simple, most monotonous, and most easily acquired knack, that is required of him. Hence, the cost of production of a workman is restricted, almost entirely, to the means of subsistence that he requires for his maintenance, and for the propagation of his race. But the price of a commodity, and therefore also of labour, is equal to its cost of production. In proportion therefore, as the repulsiveness of the work increases, the wage decreases. Nay more, in proportion as the use of machinery and division of labour increases, in the same proportion the burden of toil also increases, whether by prolongation of the working hours, by increase of the work exacted in a given time or by increased speed of the machinery, etc.

Modern industry has converted the little workshop of the patriarchal master into the great factory of the industrial capitalist. Masses of labourers, crowded into the factory, are organised like soldiers. As privates of the industrial army they are placed under the command of a perfect hierarchy of officers and sergeants. Not only are they slaves of the bourgeois class, and of the bourgeois State; they are daily and hourly enslaved by the machine, by the over-looker, and, above all, by the individual bourgeois manufacturer himself. The more openly this despotism proclaims gain to be its end and aim, the more

petty, the more hateful and the more embittering it is.

The less the skill and exertion of strength implied in manual labour, in other words, the more modern industry becomes developed, the more is the labour of men superseded by that of women. Differences of age and sex have no longer any distinctive social validity for the working class. All are instruments of labour, more or less expensive to use, according to their age and sex.

No sooner is the exploitation of the labourer by the manufacturer, so far at an end, that he receives his wages in cash, than he is set upon by the other portions of the bourgeoisie, the landlord, the shopkeeper, the pawnbroker, etc.

The lower strata of the middle class—the small tradespeople, shopkeepers, retired tradesmen generally, the handicraftsmen and peasants—all these sink gradually into the proletariat, partly because their diminutive capital does not suffice for the scale on which Modern Industry is carried on, and is swamped in the competition with the large capitalists, partly because their specialized skill is rendered worthless by the new methods of production. Thus the proletariat is recruited from all classes of the population.

The proletariat goes through various stages of development. With its birth begins its struggle with the bourgeoisie. At first the contest is carried on by individual labourers, then by the workpeople of a factory, then by the operatives of one trade, in one locality, against the individual bourgeois who directly exploits them. They direct their attacks not against the bourgeois conditions of production, but against the instruments of production themselves; they destroy imported wares that compete with their labour, they smash to pieces machinery, they set factories ablaze, they seek to restore by force the vanished status of the workman of the Middle Ages.

At this stage the labourers still form an incoherent mass scattered over the whole country, and broken up by their mutual competition. If anywhere they unite to form more compact bodies, this is not yet the consequence of their own active union, but of the union of the bourgeoisie, which class, in order to attain its own political ends, is compelled to set the whole proletariat in motion, and is moreover yet, for a time, able to do so. At this stage, therefore, the proletarians do not fight their enemies, but the enemies of their enemies, the remnants of absolute monarchy, the landowners, the non-industrial bourgeois, the petty bourgeoisie. Thus the whole historical movement is concentrated in the hands of the bourgeoisie; every victory so obtained is a victory for the bourgeoisie.

But with the development of industry the proletariat not only increases in number; it becomes concentrated in greater masses, its strength grows, and it feels that strength more. The various interests and conditions of life within the ranks of the proletariat are more and more equalised, in proportion as machinery obliterates all distinctions of labour, and nearly everywhere reduces wages to the same low level. The growing competition among the bourgeois, and the resulting commercial crises, make the wages of the workers ever more fluctuating. The unceasing improvement of machinery, ever more rapidly developing, makes their livelihood more and more precarious; the collisions between individual workmen and individual bourgeois take more and more the character of collisions between two classes. Thereupon the workers begin to form combinations (Trades Unions) against the bourgeois; they club together in order to keep up the rate of wages; they found permanent associations in order to make provision beforehand for these occasional revolts. Here and there the contest breaks out into riots.

Now and then the workers are victorious, but only for a time. The real fruit of their battles lies, not in the immediate result, but in the ever-expanding union of the workers. This union is helped on by the improved means of communication that are created by modern industry and that place the workers of different localities in contact with one another. It was just this contact that was needed to centralise the numerous local struggles, all of the same character, into one national struggle between classes. But every class struggle is a political struggle. And that union, to attain which the burghers of the Middle Ages, with their miserable highways, required centuries, the modern proletarians, thanks to railways, achieve in a few years.

This organisation of the proletarians into a class, and consequently into a political party, is continually being upset again by the competition between the workers themselves. But it ever rises up again, stronger, firmer, mightier. It compels legislative recognition of particular interests of the workers, by taking advantage of the divisions among the bourgeoisie itself. Thus the ten-hours' bill in England was carried.

Altogether collisions between the classes of the old society further, in many ways, the course of development of the proletariat. The bourgeoisie finds itself involved in a constant battle. At first with the aristocracy; later on, with those portions of the bourgeoisie itself, whose interests have become antagonistic to the progress of industry; at all times, with the bourgeoisie of foreign countries. In all these battles it sees itself compelled to appeal to the proletariat, to ask for its help, and thus, to drag it into the political arena. The bourgeoisie itself, therefore, supplies the proletariat with its own instruments of political and general education, in other words, it furnishes the proletariat with weapons for fighting the bourgeoisie.

Further, as we have already seen, entire sections of the ruling classes are, by the advance of industry, precipitated into the proletariat, or are at least threatened in their conditions of existence. These also supply the proletariat with fresh elements of enlightenment and progress.

Finally, in times when the class struggle nears the decisive hour, the process of dissolution going on within the ruling class, in fact within the whole range of society, assumes such a violent, glaring character, that a small section of the ruling class cuts itself adrift, and joins the revolutionary class, the class that holds the future in its hands. Just as, therefore, at an earlier period, a section of the nobility went over to the bourgeoisie, so now a portion of the bourgeoisie goes over to the proletariat, and in particular, a portion of the bourgeois ideologists, who have raised themselves to the level of comprehending theoretically the historical movement as a whole.

Of all the classes that stand face to face with the bourgeoisie today, the proletariat alone is a really revolutionary class. The other classes decay and finally disappear in the face of Modern Industry; the proletariat is its special and essential product. The lower middle class, the small manufacturer, the shopkeeper, the artisan, the peasant, all these fight against the bourgeoisie, to save from extinction their existence as fractions of the middle class. They are therefore not revolutionary, but conservative. Nay more, they are reactionary, for they try to roll back the wheel of history. If by chance they are revolutionary, they are so only in view of their impending transfer into the proletariat, they thus defend not their present, but their future interests, they desert their own standpoint to place themselves at that of the proletariat.

The "dangerous class," the social scum, that passively rotting mass thrown off by the lowest layers of old society, may, here and there, be swept into the movement by a proletarian revolution; its conditions of life, however, prepare it far more for the part of a bribed tool of reactionary intrigue.

In the conditions of the proletariat, those of old society at large are already virtually swamped. The proletarian is without property; his relation to his wife and children has no longer anything in common with the bourgeois family-relations; modern industrial labour, modern subjection to capital, the same in England as in France, in America as in Germany, has stripped him of every trace of national character. Law, morality, religion, are to him so many bourgeois prejudices, behind which lurk in ambush just as many bourgeois interests.

All the preceding classes that got the upper hand, sought to fortify their already acquired status by subjecting society at large to their conditions of appropriation. The proletarians cannot become masters of the productive forces of society, except by abolishing their own previous mode of appropriation, and thereby also every other previous mode of appropriation. They have nothing of their own to secure and to fortify; their mission is to destroy all previous securities for, and insurances of, individual property.

All previous historical movements were movements of minorities, or in the interests of minorities. The proletarian movement is the self-conscious, independent movement of the immense majority, in the interests of the immense majority. The proletariat, the lowest stratum of our present society, cannot stir, cannot raise itself up, without the whole superincumbent strata of official society being sprung into the air.

Though not in substance, yet in form, the struggle of the proletariat with the bourgeoisie is at first a national struggle. The proletariat of each country must, of course, first of all settle matters with its own bourgeoisie.

In depicting the most general phases of the development of the proletariat, we traced the more or less veiled civil war, raging within existing society, up to the point where that war breaks out into open revolution, and where the violent overthrow of the bourgeoisie lays the foundation for the sway of the proletariat.

Hitherto, every form of society has been based, as we have already seen, on the antagonism of oppressing and oppressed classes. But in order to oppress a class, certain conditions must be assured to it under which it can, at least, continue its slavish existence. The serf, in the period of serfdom, raised himself to membership in the commune, just as the petty bourgeois, under the yoke of feudal absolutism, managed to develop into a bourgeois. The modern laborer, on the contrary, instead of rising with the progress of industry, sinks deeper and deeper below the conditions of existence of his own class. He becomes a pauper, and pauperism develops more rapidly than population and wealth. And here it becomes evident, that the bourgeoisie is unfit any longer to be the ruling class in society, and to impose its conditions of existence upon society as an over-riding law. It is unfit to rule because it is incompetent to assure an existence to its slave within his slavery, because it cannot help letting him sink into such a state, that it has to feed him, instead of being fed by him. Society can no longer live under this bourgeoisie, in other words, its existence is no longer compatible with society.

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The essential condition for the existence, and for the sway of the bourgeois class, is the formation and augmentation of capital; the condition for capital is wage-labour. Wage-labour rests exclusively on competition between the laborers. The advance of industry, whose involuntary promoter is the bourgeoisie, replaces the isolation of the labourers, due to competition, by their revolutionary combination, due to association. The development of Modern Industry, therefore, cuts from under its feet the very foundation on which the bourgeoisie produces and appropriates products. What the bourgeoisie, therefore, produces, above all, is its own grave-diggers. Its fall and the victory of the proletariat are equally inevitable.

II. PROLETARIANS AND COMMUNISTS

In what relation do the Communists stand to the proletarians as a whole?

The Communists do not form a separate party opposed to other working-class parties.

They have no interests separate and apart from those of the proletariat as a whole.

They do not set up any sectarian principles of their own, by which to shape and mould the proletarian movement.

The Communists are distinguished from the other working-class parties by this only: (1) In the national struggles of the proletarians of the different countries, they point out and bring to the front the common interests of the entire proletariat, independently of all nationality. (2) In the various stages of development which the struggle of the working class against the bourgeoisie has to pass through, they always and everywhere represent the interests of the movement as a whole.

The Communists, therefore, are on the one hand, practically, the most advanced and resolute section of the working-class parties of every country, that section which pushes forward all others; on the other hand, theoretically, they have over the great mass of the proletariat the advantage of clearly understanding the line of march, the conditions, and the ultimate general results of the proletarian movement.

The immediate aim of the Communist is the same as that of all the other proletarian parties: formation of the proletariat into a class, overthrow of the bourgeois supremacy, conquest of political power by the proletariat.

The theoretical conclusions of the Communists are in no way based on ideas or principles that have been invented, or discovered, by this or that would-be universal reformer. They merely express, in general terms, actual relations springing from an existing class struggle, from a historical movement going on under our very eyes. The abolition of existing property relations is not at all a distinctive feature of Communism.

All property relations in the past have continually been subject to historical change consequent upon the change in historical conditions.

The French Revolution, for example, abolished feudal property in favour of bourgeois property.

The distinguishing feature of Communism is not the abolition of property generally, but the abolition of bourgeois property. But modern bourgeois private property is the final and most complete expression of the system of producing and appropriating products, that is based on class antagonisms, on the exploitation of the many by the few.

In this sense, the theory of the Communists may be summed up in the single sentence: Abolition of private property.

We Communists have been reproached with the desire of abolishing the right of personally acquiring property as the fruit of a man's own labour, which property is alleged to be the groundwork of all personal freedom, activity and independence.

Hard-won, self-acquired, self-earned property! Do you mean the property of the petty artisan and of the small peasant, a form of property that preceded the bourgeois form? There is no need to abolish that; the development of industry has to a great extent already destroyed it, and is still destroying it daily.

Or do you mean modern bourgeois private property?

But does wage-labour create any property for the labourer? Not a bit. It creates capital, i.e., that kind of property which exploits wage-labour, and which cannot increase except upon condition of begetting a new supply of wage-labour for fresh exploitation. Property, in its present form, is based on the antagonism of capital and wage-labour. Let us examine both sides of this antagonism.

To be a capitalist, is to have not only a purely personal, but a social status in production. Capital is a collective product, and only by the united action of many members, nay, in the last resort, only by the united action of all members of society, can it be set in motion.

Capital is, therefore, not a personal, it is a social power.

When, therefore, capital is converted into common property, into the property of all members of society, personal property is not thereby transformed into social property. It is only the social character of the property that is changed. It loses its class-character.

Let us now take wage-labour.

The average price of wage-labour is the minimum wage, i.e., that quantum of the means of subsistence, which is absolutely requisite in bare existence as a labourer. What, therefore, the wage-labourer appropriates by means of his labour, merely suffices to prolong and reproduce a bare existence. We by no means intend to abolish this personal appropriation of the products of labour, an appropriation that is made for the maintenance and reproduction of human life, and that leaves no surplus wherewith to command the labour of others. All that we want to do away with, is the miserable character of this appropriation, under which the labourer lives merely to increase capital, and is allowed to live only in so far as the interest of the ruling class requires it.

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In bourgeois society, living labour is but a means to increase accumulated labour. In Communist society, accumulated labour is but a means to widen, to enrich, to promote the existence of the labourer.

In bourgeois society, therefore, the past dominates the present; in Communist society, the present dominates the past. In bourgeois society capital is independent and has individuality, while the living person is dependent and has no individuality.

And the abolition of this state of things is called by the bourgeois, abolition of individuality and freedom! And rightly so. The abolition of bourgeois individuality, bourgeois independence, and bourgeois freedom is undoubtedly aimed at.

By freedom is meant, under the present bourgeois conditions of production, free trade, free selling and buying.

But if selling and buying disappears, free selling and buying disappears also. This talk about free selling and buying, and all the other "brave words" of our bourgeoisie about freedom in general, have a meaning, if any, only in contrast with restricted selling and buying, with the fettered traders of the Middle Ages, but have no meaning when opposed to the Communistic abolition of buying and selling, of the bourgeois conditions of production, and of the bourgeoisie itself.

You are horrified at our intending to do away with private property. But in your existing society, private property is already done away with for nine-tenths of the population; its existence for the few is solely due to its non-existence in the hands of those nine-tenths. You reproach us, therefore, with intending to do away with a form of property, the necessary condition for whose existence is the non-existence of any property for the immense majority of society.

In one word, you reproach us with intending to do away with your property. Precisely so; that is just what we intend.

From the moment when labour can no longer be converted into capital, money, or rent, into a social power capable of being monopolised, i.e., from the moment when individual property can no longer be transformed into bourgeois property, into capital, from that moment, you say individuality vanishes.

You must, therefore, confess that by "individual" you mean no other person than the bourgeois, than the middle-class owner of property. This person must, indeed, be swept out of the way, and made impossible.

Communism deprives no man of the power to appropriate the products of society; all that it does is to deprive him of the power to subjugate the labour of others by means of such appropriation.

It has been objected that upon the abolition of private property all work will cease, and universal laziness will overtake us.

According to this, bourgeois society ought long ago to have gone to the dogs through sheer idleness; for those of its members who work, acquire nothing, and those who acquire anything, do not work. The whole of this objection is but another expression of the tautology: that there can no longer be any wage-

labour when there is no longer any capital.

All objections urged against the Communistic mode of producing and appropriating material products, have, in the same way, been urged against the Communistic modes of producing and appropriating intellectual products. Just as, to the bourgeois, the disappearance of class property is the disappearance of production itself, so the disappearance of class culture is to him identical with the disappearance of all culture.

That culture, the loss of which he laments, is, for the enormous majority, a mere training to act as a machine.

But don't wrangle with us so long as you apply, to our intended abolition of bourgeois property, the standard of your bourgeois notions of freedom, culture, law, etc. Your very ideas are but the outgrowth of the conditions of your bourgeois production and bourgeois property, just as your jurisprudence is but the will of your class made into a law for all, a will, whose essential character and direction are determined by the economical conditions of existence of your class.

The selfish misconception that induces you to transform into eternal laws of nature and of reason, the social forms springing from your present mode of production and form of property—historical relations that rise and disappear in the progress of production—this misconception you share with every ruling class that has preceded you. What you see clearly in the case of ancient property, what you admit in the case of feudal property, you are of course forbidden to admit in the case of your own bourgeois form of property.

Abolition of the family! Even the most radical flare up at this infamous proposal of the Communists.

On what foundation is the present family, the bourgeois family, based? On capital, on private gain. In its completely developed form this family exists only among the bourgeoisie. But this state of things finds its complement in the practical absence of the family among the proletarians, and in public prostitution.

The bourgeois family will vanish as a matter of course when its complement vanishes, and both will vanish with the vanishing of capital.

Do you charge us with wanting to stop the exploitation of children by their parents? To this crime we plead guilty.

But, you will say, we destroy the most hallowed of relations, when we replace home education by social.

And your education! Is not that also social, and determined by the social conditions under which you educate, by the intervention, direct or indirect, of society, by means of schools, etc.? The Communists have not invented the intervention of society in education; they do but seek to alter the character of that intervention, and to rescue education from the influence of the ruling class.

The bourgeois clap-trap about the family and education, about the hallowed co-relation of parent and child, becomes all the more disgusting, the more, by the action of Modern Industry, all family ties among the proletarians are torn asunder, and their children transformed into simple articles of commerce

and instruments of labour.

But you Communists would introduce community of women, screams the whole bourgeoisie in chorus.

The bourgeois sees in his wife a mere instrument of production. He hears that the instruments of production are to be exploited in common, and, naturally, can come to no other conclusion than that the lot of being common to all will likewise fall to the women.

He has not even a suspicion that the real point is to do away with the status of women as mere instruments of production.

For the rest, nothing is more ridiculous than the virtuous indignation of our bourgeois at the community of women which, they pretend, is to be openly and officially established by the Communists. The Communists have no need to introduce community of women; it has existed almost from time immemorial.

Our bourgeois, not content with having the wives and daughters of their proletarians at their disposal, not to speak of common prostitutes, take the greatest pleasure in seducing each other's wives.

Bourgeois marriage is in reality a system of wives in common and thus, at the most, what the Communists might possibly be reproached with, is that they desire to introduce, in substitution for a hypocritically concealed, an openly legalised community of women. For the rest, it is self-evident that the abolition of the present system of production must bring with it the abolition of the community of women springing from that system, i.e., of prostitution both public and private.

The Communists are further reproached with desiring to abolish countries and nationality.

The working men have no country. We cannot take from them what they have not got. Since the proletariat must first of all acquire political supremacy, must rise to be the leading class of the nation, must constitute itself the nation, it is, so far, itself national, though not in the bourgeois sense of the word.

National differences and antagonisms between peoples are daily more and more vanishing, owing to the development of the bourgeoisie, to freedom of commerce, to the world-market, to uniformity in the mode of production and in the conditions of life corresponding thereto.

The supremacy of the proletariat will cause them to vanish still faster. United action, of the leading civilised countries at least, is one of the first conditions for the emancipation of the proletariat.

In proportion as the exploitation of one individual by another is put an end to, the exploitation of one nation by another will also be put an end to. In proportion as the antagonism between classes within the nation vanishes, the hostility of one nation to another will come to an end.

The charges against Communism made from a religious, a philosophical, and, generally, from an ideological standpoint, are not deserving of serious examination.

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Does it require deep intuition to comprehend that man's ideas, views and conceptions, in one word, man's consciousness, changes with every change in the conditions of his material existence, in his social relations and in his social life?

What else does the history of ideas prove, than that intellectual production changes its character in proportion as material production is changed? The ruling ideas of each age have ever been the ideas of its ruling class.

When people speak of ideas that revolutionise society, they do but express the fact, that within the old society, the elements of a new one have been created, and that the dissolution of the old ideas keeps even pace with the dissolution of the old conditions of existence.

When the ancient world was in its last throes, the ancient religions were overcome by Christianity. When Christian ideas succumbed in the 18th century to rationalist ideas, feudal society fought its death battle with the then revolutionary bourgeoisie. The ideas of religious liberty and freedom of conscience merely gave expression to the sway of free competition within the domain of knowledge.

"Undoubtedly," it will be said, "religious, moral, philosophical and juridical ideas have been modified in the course of historical development. But religion, morality philosophy, political science, and law, constantly survived this change."

"There are, besides, eternal truths, such as Freedom, Justice, etc. that are common to all states of society. But Communism abolishes eternal truths, it abolishes all religion, and all morality, instead of constituting them on a new basis; it therefore acts in contradiction to all past historical experience."

What does this accusation reduce itself to? The history of all past society has consisted in the development of class antagonisms, antagonisms that assumed different forms at different epochs.

But whatever form they may have taken, one fact is common to all past ages, viz., the exploitation of one part of society by the other. No wonder, then, that the social consciousness of past ages, despite all the multiplicity and variety it displays, moves within certain common forms, or general ideas, which cannot completely vanish except with the total disappearance of class antagonisms.

The Communist revolution is the most radical rupture with traditional property relations; no wonder that its development involves the most radical rupture with traditional ideas.

But let us have done with the bourgeois objections to Communism.

We have seen above, that the first step in the revolution by the working class, is to raise the proletariat to the position of ruling as to win the battle of democracy.

The proletariat will use its political supremacy to wrest, by degrees, all capital from the bourgeoisie, to centralise all instruments of production in the hands of the State, i.e., of the proletariat organised as the ruling class; and to increase the total of productive forces as rapidly as possible.

Of course, in the beginning, this cannot be effected except by means of despotic inroads on the rights of

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property, and on the conditions of bourgeois production; by means of measures, therefore, which appear economically insufficient and untenable, but which, in the course of the movement, outstrip themselves, necessitate further inroads upon the old social order, and are unavoidable as a means of entirely revolutionising the mode of production.

These measures will of course be different in different countries.

Nevertheless in the most advanced countries, the following will be pretty generally applicable.

1. Abolition of property in land and application of all rents of land to public purposes.
2. A heavy progressive or graduated income tax.
3. Abolition of all right of inheritance.
4. Confiscation of the property of all emigrants and rebels.
5. Centralisation of credit in the hands of the State, by means of a national bank with State capital and an exclusive monopoly.
6. Centralisation of the means of communication and transport in the hands of the State.
7. Extension of factories and instruments of production owned by the State; the bringing into cultivation of waste-lands, and the improvement of the soil generally in accordance with a common plan.
8. Equal liability of all to labour. Establishment of industrial armies, especially for agriculture.
9. Combination of agriculture with manufacturing industries; gradual abolition of the distinction between town and country, by a more equable distribution of the population over the country.
10. Free education for all children in public schools. Abolition of children's factory labour in its present form. Combination of education with industrial production, &c., &c.

When, in the course of development, class distinctions have disappeared, and all production has been concentrated in the hands of a vast association of the whole nation, the public power will lose its political character. Political power, properly so called, is merely the organised power of one class for oppressing another. If the proletariat during its contest with the bourgeoisie is compelled, by the force of circumstances, to organise itself as a class, if, by means of a revolution, it makes itself the ruling class, and, as such, sweeps away by force the old conditions of production, then it will, along with these conditions, have swept away the conditions for the existence of class antagonisms and of classes generally, and will thereby have abolished its own supremacy as a class.

In place of the old bourgeois society, with its classes and class antagonisms, we shall have an association, in which the free development of each is the condition for the free development of all.

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IV. POSITION OF THE COMMUNISTS IN RELATION TO THE VARIOUS EXISTING OPPOSITION PARTIES

...In short, the Communists everywhere support every revolutionary movement against the existing social and political order of things.

In all these movements they bring to the front, as the leading question in each, the property question, no matter what its degree of development at the time.

Finally, they labour everywhere for the union and agreement of the democratic parties of all countries.

The Communists disdain to conceal their views and aims. They openly declare that their ends can be attained only by the forcible overthrow of all existing social conditions. Let the ruling classes tremble at a Communistic revolution. The proletarians have nothing to lose but their chains. They have a world to win.

WORKING MEN OF ALL COUNTRIES, UNITE!

9 Three Types of Democracies: Classic Republicanism, Liberal Democracy, and Deliberative Democracy

*Classical Republicanism*¹

Classical republicanism, also known as **civic humanism**, is a form of republicanism developed in the Renaissance inspired by the governmental forms and writings of classical antiquity, especially such classical writers as Aristotle, Polybius, and Cicero. Classical republicanism is built around concepts such as civil society, civic virtue and mixed government.

Development

In the classical period itself the term *republicanism* did not exist, but the term *res publica*, which translates literally as "the public thing" or "the public affair," was in usage. There were a number of theorists who wrote on political philosophy during this period such as Aristotle, Polybius, and Cicero, and their ideas became the essential core of classical republicanism. The ideology of republicanism blossomed during the Italian Renaissance, most notably in Florence, when a number of authors looked back to the classical period and used its examples to formulate ideas about ideal governance. One of the first reintroducing classical republicanism was Niccolò Machiavelli (1469–1527) in his later reflections.

It has been argued that Machiavelli was not a classical republican, since he described mostly medieval political relations. Indeed, Machiavelli's innovation, addition, or transformation of classical republicanism more likely marks a turning point, and the dawn of modern republicanism; Machiavelli's particular brand of republicanism has been dubbed "rapacious republicanism" by a collection of scholars. At any rate, that *classical* republicanism actually refers to a philosophy developed primarily in the *early modern* period is acknowledged by many scholars to be confusing; therefore, some now use the term *early modern republicanism* to cover this branch of political thought. To be sure, the conceptual, historical, and philosophical debate continues.

One variant of classical republicanism is known as **civic humanism**, a term first employed by the German scholar of late medieval and early modern Italian history, Hans Baron. And although in certain cases and with certain scholars there is a subtle distinction between the two, they are for all intents and purposes interchangeable. Civic humanism is slightly wider in scope and stresses the central role of civic virtue in the preservation of the classically Roman/Florentine ideal of political liberty. Leading exponents of this dual concept are Hannah Arendt, J. G. A. Pocock, Quentin Skinner, and Philip Pettit.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Classical republicanism. (2017, July 2). In Wikipedia, The Free Encyclopedia. Retrieved 17:30, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Classical_republicanism&oldid=788568668

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However, Thomas Pangle has critiqued the inaccuracy of the "civic humanist" reconstruction and thus its distortion of classical republicanism on the one hand and of Machiavelli's political science on the other hand. Pangle writes, "both Pocock and Arendt (the latter more self-consciously) obscure the imperialism, the ruthlessness, the warring hierarchy, and the glacial rationalism that truly characterize Machiavelli; over these elements they throw a veil of softened, egalitarian, "civic humanism.""

According to Baron, for many years the foremost expert on the development of classical republicanism, the ideology was a product of the long conflict between Florence and Milan. Florence was ruled by its commercial elites while Milan was a monarchy controlled by its landed aristocracy. The Florentines asserted that their form of government was superior on the basis that it was more similar to that of the Greeks and the Roman Republic. Moreover, Leonardo Bruni (1370–1444) asserted, based on Tacitus's pronouncements in the introduction to the *Histories*, that republican government made better men, whereas monarchy was inimical to human virtue (see Tacitean studies). The Florentine ideal developed into the ideology of civic humanism, as per Baron.

Since Thomas Hobbes, at the core of republicanism is the concept of the social contract. Although modern republicanism rejected monarchy (whether hereditary or otherwise autocratic) in favour of rule by the people, classical republicanism treated monarchy as one form of government among others. Classical republicanism was rather aimed against any form of tyranny, whether monarchic, aristocratic, or democratic (tyranny of the majority). The notions of what constituted an ideal republic to classical republicans themselves depended on personal view. However, the most ideal republic featured form of mixed government and was based on the pursuit of civility.

Most controversial is the classical republican view of liberty and how, or if, this view differed from that later developed by liberalism. Previously, many scholars accepted the stance of Isaiah Berlin that republicanism was tilted more toward positive liberty rather than the negative liberty characterizing liberalism. In recent years this thesis has been challenged, and Philip Pettit argues that republican liberty is based upon "non-domination" while liberal freedom is based upon "non-interference." Another view is that liberalism views liberty as pre-social while classical republicans saw true liberty as a product of society. Because liberty was an important part of republican thought, many republican thinkers were appropriated by the theory of classical liberalism.

Classical republicanism became extremely popular in Classicism and during the Enlightenment, playing a central role in the thought of political philosophy since Hobbes, through John Locke, Giambattista Vico, Montesquieu, Rousseau, until Kant. Some historians have seen classical republican ideas influencing early American political thought.

*Liberal Democracy*²

Liberal democracy is a liberal political ideology and a form of government in which representative democracy operates under the principles of classical liberalism. It is also called western democracy. It is characterized by fair, free, and competitive elections between multiple distinct political parties, a separation of powers into different branches of government, the rule of law in everyday life as part of an open society, and the equal protection of human rights, civil rights, civil liberties, and political freedoms for all people. To define the system in practice, liberal democracies often draw upon a constitution, either formally written or uncoded, to delineate the powers of government and enshrine the social contract. After a period of sustained expansion throughout the 20th century, liberal democracy became the predominant political system in the world.

A liberal democracy may take various constitutional forms: it may be a constitutional monarchy (Australia, Belgium, Canada, Japan, Norway, Spain and the United Kingdom) or a republic (France, India, Ireland, the United States). It may have a parliamentary system (Australia, Canada, India, Ireland, the United Kingdom), a presidential system (Indonesia, the United States), or a semi-presidential system (France).

Liberal democracies usually have universal suffrage, granting all adult citizens the right to vote regardless of race, gender or property ownership. Historically, however, some countries regarded as liberal democracies have had a more limited franchise, and some do not have secret ballots. There may also be qualifications such as voters being required to register before being allowed to vote. The decisions made through elections are made not by all of the citizens, but rather by those who choose to participate by voting.

The liberal democratic constitution defines the democratic character of the state. The purpose of a constitution is often seen as a limit on the authority of the government. Liberal democracy emphasises the separation of powers, an independent judiciary, and a system of checks and balances between branches of government. Liberal democracies are likely to emphasise the importance of the state being a Rechtsstaat, i.e., a state that follows the principle of rule of law. Governmental authority is legitimately exercised only in accordance with written, publicly disclosed laws adopted and enforced in accordance with established procedure. Many democracies use federalism—also known as vertical separation of powers—in order to prevent abuse and increase public input by dividing governing powers between municipal, provincial and national governments (e.g., Germany where the federal government assumes the main legislative responsibilities and the federated *Länder* assume many executive tasks).

Rights and freedoms

In practice, democracies do have limits on certain freedoms. There are various legal limitations such as copyright and laws against defamation. There may be limits on anti-democratic speech, on attempts to undermine human rights, and on the promotion or justification of terrorism. In the United States more

² This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Liberal democracy. (2017, August 16). In Wikipedia, The Free Encyclopedia. Retrieved 17:30, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Liberal_democracy&oldid=795826978

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than in Europe, during the Cold War, such restrictions applied to Communists. Now they are more commonly applied to organisations perceived as promoting actual terrorism or the incitement of group hatred. Examples include anti-terrorism legislation, the shutting down of Hezbollah satellite broadcasts, and some laws against hate speech. Critics claim that these limitations may go too far and that there may be no due and fair judicial process.

The common justification for these limits is that they are necessary to guarantee the existence of democracy, or the existence of the freedoms themselves. For example, allowing free speech for those advocating mass murder undermines the right to life and security. Opinion is divided on how far democracy can extend to include the enemies of democracy in the democratic process. If relatively small numbers of people are excluded from such freedoms for these reasons, a country may still be seen as a liberal democracy. Some argue that this is only quantitatively (not qualitatively) different from autocracies that persecute opponents, since only a small number of people are affected and the restrictions are less severe. Others emphasise that democracies are different. At least in theory, opponents of democracy are also allowed due process under the rule of law.

However, many governments considered to be democratic have restrictions upon expressions considered anti-democratic, such as Holocaust denial and hate speech, including prison sentences, oftentimes seen as anomalous for the concept of free speech. Members of political organisations with connections to prior totalitarianism (typically formerly predominant Communist, fascist or National Socialists) may be deprived of the vote and the privilege of holding certain jobs. Discriminatory behaviour may be prohibited, such as refusal by owners of public accommodations to serve persons on grounds of race, religion, ethnicity, gender, or sexual orientation. For example, in Canada, a printer who refused to print materials for the Canadian Lesbian and Gay Archives was fined \$5,000, incurred \$100,000 in legal fees, and was ordered to pay a further \$40,000 of his opponents' legal fees by the Human Rights Tribunal.

Other rights considered fundamental in one country may be foreign to other governments. For instance, the constitutions of Canada, India, Israel, Mexico and the United States guarantee freedom from double jeopardy, a right not provided in other legal systems. Also, legal systems that use politically elected court jurors, such as Sweden, view a (partly) politicised court system as a main component of accountable government, distinctly alien to democracies employing trial by jury designed to shield *against* the influence of politicians over trials. Similarly, many Americans consider the right to keep and bear arms to be an essential feature to safeguard the right to revolution against a potentially abusive government, while other countries do not recognise this as fundamental (the United Kingdom, for example, having very strict limitations on the gun ownership by individuals).

Preconditions

Although they are not part of the system of government as such, a modicum of individual and economic freedoms, which result in the formation of a significant middle class and a broad and flourishing civil society, are often seen as pre-conditions for liberal democracy (Lipset 1959).

For countries without a strong tradition of democratic majority rule, the introduction of free elections alone has rarely been sufficient to achieve a transition from dictatorship to democracy; a wider shift in the political culture and gradual formation of the institutions of democratic government are needed.

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There are various examples—for instance, in Latin America—of countries that were able to sustain democracy only temporarily or in a limited fashion until wider cultural changes established the conditions under which democracy could flourish.

One of the key aspects of democratic culture is the concept of a "loyal opposition", where political competitors may disagree, but they must tolerate one another and acknowledge the legitimate and important roles that each play. This is an especially difficult cultural shift to achieve in nations where transitions of power have historically taken place through violence. The term means, in essence, that all sides in a democracy share a common commitment to its basic values. The ground rules of the society must encourage tolerance and civility in public debate. In such a society, the losers accept the judgment of the voters when the election is over, and allow for the peaceful transfer of power. The losers are safe in the knowledge that they will neither lose their lives nor their liberty, and will continue to participate in public life. They are loyal not to the specific policies of the government, but to the fundamental legitimacy of the state and to the democratic process itself.

Origins

Liberal democracy traces its origins—and its name—to the European 18th-century, also known as the Age of Enlightenment. At the time, the vast majority of European states were monarchies, with political power held either by the monarch or the aristocracy. The possibility of democracy had not been a seriously considered political theory since classical antiquity, and the widely held belief was that democracies would be inherently unstable and chaotic in their policies due to the changing whims of the people. It was further believed that democracy was contrary to human nature, as human beings were seen to be inherently evil, violent and in need of a strong leader to restrain their destructive impulses. Many European monarchs held that their power had been ordained by God, and that questioning their right to rule was tantamount to blasphemy.

These conventional views were challenged at first by a relatively small group of Enlightenment intellectuals, who believed that human affairs should be guided by reason and principles of liberty and equality. They argued that all people are created equal, and therefore political authority cannot be justified on the basis of "noble blood", a supposed privileged connection to God, or any other characteristic that is alleged to make one person superior to others. They further argued that governments exist to serve the people, not vice versa, and that laws should apply to those who govern as well as to the governed (a concept known as rule of law).

Some of these ideas began to be expressed in England in the 17th century. Passage of the Petition of Right in 1628 and Habeas Corpus Act in 1679 established certain liberties for subjects. The idea of a political party took form with groups debating rights to political representation during the Putney Debates of 1647. After the English Civil Wars (1642–1651) and the Glorious Revolution of 1688, the Bill of Rights was enacted in 1689, which codified certain rights and liberties. The Bill set out the requirement for regular elections, rules for freedom of speech in Parliament and limited the power of the monarch, ensuring that, unlike much of Europe at the time, royal absolutism would not prevail. This led to significant social change in Britain in terms of the position of individuals in society and the growing power of Parliament in relation to the monarch.

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By the late 18th century, leading philosophers of the day had published works that spread around the European continent and beyond. These ideas and beliefs inspired the American Revolution and the French Revolution, which gave birth to the ideology of liberalism and instituted forms of government that attempted to apply the principles of the Enlightenment philosophers into practice. Neither of these forms of government was precisely what we would call a liberal democracy we know today (the most significant differences being that voting rights were still restricted to a minority of the population and slavery remained a legal institution), and the French attempt turned out to be short-lived, but they were the prototypes from which liberal democracy later grew. Since the supporters of these forms of government were known as liberals, the governments themselves came to be known as liberal democracies.

When the first prototypical liberal democracies were founded, the liberals themselves were viewed as an extreme and rather dangerous fringe group that threatened international peace and stability. The conservative monarchists who opposed liberalism and democracy saw themselves as defenders of traditional values and the natural order of things, and their criticism of democracy seemed vindicated when Napoleon Bonaparte took control of the young French Republic, reorganised it into the first French Empire and proceeded to conquer most of Europe. Napoleon was eventually defeated and the Holy Alliance was formed in Europe to prevent any further spread of liberalism or democracy. However, liberal democratic ideals soon became widespread among the general population, and, over the 19th century, traditional monarchy was forced on a continuous defensive and withdrawal.

The dominions of the British Empire became laboratories for liberal democracy from the mid 19th century onward. In Canada, responsible government began in the 1840s and in Australia and New Zealand, parliamentary government elected by male suffrage and secret ballot was established from the 1850s and female suffrage achieved from the 1890s.

Reforms and revolutions helped move most European countries towards liberal democracy. Liberalism ceased being a fringe opinion and joined the political mainstream. At the same time, a number of non-liberal ideologies developed that took the concept of liberal democracy and made it their own. The political spectrum changed; traditional monarchy became more and more a fringe view and liberal democracy became more and more mainstream. By the end of the 19th century, liberal democracy was no longer only a "liberal" idea, but an idea supported by many different ideologies. After World War I and especially after World War II, liberal democracy achieved a dominant position among theories of government and is now endorsed by the vast majority of the political spectrum.

Although liberal democracy was originally put forward by Enlightenment liberals, the relationship between democracy and liberalism has been controversial since the beginning, and was problematized in the 20th century. The ideology of liberalism—particularly in its classical form—is highly individualistic and concerns itself with limiting the power of the state over the individual. In contrast, democracy is seen by some as a collectivist ideal, concerned with empowering the masses. Thus, liberal democracy may be seen as a compromise between liberal individualism and democratic collectivism. Those who hold this view sometimes point to the existence of illiberal democracy and liberal autocracy as evidence that constitutional liberalism and democratic government are not necessarily interconnected. On the other hand, there is the view that constitutional liberalism and democratic government are not only compatible but necessary for the true existence of each other, both arising from the underlying concept

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of political equality. It has also been defended that freedom and equality are necessary for a liberal democracy. The research institute Freedom House today simply defines liberal democracy as an electoral democracy also protecting civil liberties.

Issues and criticism

According to Karl Marx, popular elections are nothing but the appearance of having the power of decision of who among the ruling classes will misrepresent the people in parliament.

United States economist Steven Levitt argues in his book *Freakonomics* that campaign spending is no guarantee of electoral success. He compared electoral success of the same pair of candidates running against one another repeatedly for the same job, as often happens in United States Congressional elections, where spending levels varied. He concludes:

"A winning candidate can cut his spending in half and lose only 1 percent of the vote. Meanwhile, a losing candidate who doubles his spending can expect to shift the vote in his favor by only that same 1 percent."

Majoritarianism

The tyranny of the majority is the fear that a direct democratic government, reflecting the majority view, can take action that oppresses a particular minority; for instance a minority holding wealth, property ownership, or power (see Federalist No. 10) or a minority of a certain racial and ethnic origin, class or nationality. Theoretically, the majority is a majority of all citizens. If citizens are not compelled by law to vote it is usually a majority of those who choose to vote. If such of group constitutes a minority then it is possible that a minority could, in theory, oppress another minority in the name of the majority. However, such an argument could apply to both direct democracy or representative democracy. In comparison to a direct democracy where every citizen is forced to vote, under liberal democracies the wealth and power is usually concentrated in the hands of a small privileged class who have significant power over the political process (See inverted totalitarianism). It is argued by some that in representative democracies this minority makes the majority of the policies and potentially oppresses the minority or even the majority in the name of the majority (see Silent majority). Several de facto dictatorships also have compulsory, but not "free and fair", voting in order to try to increase the legitimacy of the regime, such as North Korea.

Possible examples of a minority being oppressed by or in the name of the majority:

- Those potentially subject to conscription are a minority possibly because of socioeconomic reasons.
- The minority who are wealthy often use their money and influence to manipulate the political process against the interests of the rest of the population, who are the minority in terms of income and access.
- Several European countries have introduced bans on personal religious symbols in state schools. Opponents see this as a violation of rights to freedom of religion. Supporters see it as following from the separation of state and religious activities.

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- Prohibition of pornography is typically determined by what the majority is prepared to accept.
- The private possession of various weapons (i.e. batons, nunchakus, brass knuckles, pepper spray, firearms etc...) is criminalized in several democracies (i.e. the United Kingdom, Belgium, etc...), with such criminalization motivated by attempts to increase safety in the society, to reduce general violence, instances of homicide, or perhaps by moralism, classism and/or paternalism.
- Recreational drug, caffeine, tobacco and alcohol use is too often criminalised or otherwise suppressed by majorities. In the United States, this happened originally for racist, classist, religious or paternalistic motives.
- Society's treatment of homosexuals is also cited in this context. Homosexual acts were widely criminalised in democracies until several decades ago; in some democracies they still are, reflecting the religious or sexual mores of the majority.
- The Athenian democracy and the early United States had slavery.
- The majority often taxes the minority who are wealthy at progressively higher rates, with the intention that the wealthy will incur a larger tax burden for social purposes.
- In prosperous western representative democracies, the poor form a minority of the population, and may not have the power to use the state to initiate redistribution when a majority of the electorate opposes such designs. When the poor form a distinct underclass, the majority may use the democratic process to, in effect, withdraw the protection of the state.
- An often quoted example of the 'tyranny of the majority' is that Adolf Hitler came to power by legitimate democratic procedures. The Nazi party gained the largest share of votes in the democratic Weimar republic in 1933. Some might consider this an example of "tyranny of a minority" since he never gained a majority vote, but it is common for a plurality to exercise power in democracies, so the rise of Hitler cannot be considered irrelevant. However, his regime's large-scale human rights violations took place after the democratic system had been abolished. Also, the Weimar constitution in an "emergency" allowed dictatorial powers and suspension of the essentials of the constitution itself without any vote or election.

Proponents of democracy make a number of defenses concerning 'tyranny of the majority'. One is to argue that the presence of a constitution protecting the rights of all citizens in many democratic countries acts as a safeguard. Generally, changes in these constitutions require the agreement of a supermajority of the elected representatives, or require a judge and jury to agree that evidentiary and procedural standards have been fulfilled by the state, or two different votes by the representatives separated by an election, or, sometimes, a referendum. These requirements are often combined. The separation of powers into legislative branch, executive branch, judicial branch also makes it more difficult for a small majority to impose their will. This means a majority can still legitimately coerce a minority (which is still ethically questionable), but such a minority would be very small and, as a practical matter, it is harder to get a larger proportion of the people to agree to such actions.

Another argument is that majorities and minorities can take a markedly different shape on different issues. People often agree with the majority view on some issues and agree with a minority view on other issues. One's view may also change. Thus, the members of a majority may limit oppression of a minority since they may well in the future themselves be in a minority.

A third common argument is that, despite the risks, majority rule is preferable to other systems, and the tyranny of the majority is in any case an improvement on a tyranny of a minority. All the possible

problems mentioned above can also occur in nondemocracies with the added problem that a minority can oppress the majority. Proponents of democracy argue that empirical statistical evidence strongly shows that more democracy leads to less internal violence and mass murder by the government. This is sometimes formulated as Rummel's Law, which states that the less democratic freedom a people have, the more likely their rulers are to murder them.

Political stability

One argument for democracy is that by creating a system where the public can remove administrations, without changing the legal basis for government, democracy aims at reducing political uncertainty and instability, and assuring citizens that however much they may disagree with present policies, they will be given a regular chance to change those who are in power, or change policies with which they disagree. This is preferable to a system where political change takes place through violence.

Some think that political stability may be considered as excessive when the group in power remains the same for an extended period of time. On the other hand, this is more common in nondemocracies.

One notable feature of liberal democracies is that their opponents (those groups who wish to abolish liberal democracy) rarely win elections. Advocates use this as an argument to support their view that liberal democracy is inherently stable and can usually only be overthrown by external force, while opponents argue that the system is inherently stacked against them despite its claims to impartiality. In the past, it was feared that democracy could be easily exploited by leaders with dictatorial aspirations, who could get themselves elected into power. However, the actual number of liberal democracies that have elected dictators into power is low. When it has occurred, it is usually after a major crisis has caused many people to doubt the system or in young/poorly functioning democracies. Some possible examples include Adolf Hitler during the Great Depression and Napoleon III, who became first President of the Second French Republic and later Emperor.

*Deliberative Democracy*³

Deliberative democracy or **discursive democracy** is a form of democracy in which deliberation is central to decision-making. It adopts elements of both consensus decision-making and majority rule. Deliberative democracy differs from traditional democratic theory in that authentic deliberation, not mere voting, is the primary source of legitimacy for the law.

Deliberative democracy is compatible with both representative democracy and direct democracy. Some practitioners and theorists use the term to encompass representative bodies whose members authentically deliberate on legislation without unequal distributions of power, while others use the term exclusively to refer to decision-making directly by lay citizens, as in direct democracy.

³ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Deliberative democracy. (2017, July 21). In Wikipedia, The Free Encyclopedia. Retrieved 17:30, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Deliberative_democracy&oldid=791677439

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The term "deliberative democracy" was originally coined by Joseph M. Bessette in his 1980 work *Deliberative Democracy: The Majority Principle in Republican Government*.

Characteristics

Fishkin's model of deliberation

James Fishkin, who has designed practical implementations of deliberative democracy for over 15 years in various countries, describes five characteristics essential for legitimate deliberation:

- *Information*: The extent to which participants are given access to reasonably accurate information that they believe to be relevant to the issue
- *Substantive balance*: The extent to which arguments offered by one side or from one perspective are answered by considerations offered by those who hold other perspectives
- *Diversity*: The extent to which the major position in the public are represented by participants in the discussion
- *Conscientiousness*: The extent to which participants sincerely weigh the merits of the arguments
- *Equal consideration*: The extent to which arguments offered by all participants are considered on the merits regardless of which participants offer them

In Fishkin's definition of deliberative democracy, lay citizens must participate in the decision-making process, thus making it a subtype of direct democracy.

James Fishkin and Robert Luskin suggest that deliberative discussion should be:

1. *Informed* (and thus informative). Arguments should be supported by appropriate and reasonably accurate factual claims.
2. *Balanced*. Arguments should be met by contrary arguments.
3. *Conscientious*. The participants should be willing to talk and listen, with civility and respect.
4. *Substantive*. Arguments should be considered sincerely on their merits, not on how they are made or by who is making them.
5. *Comprehensive*. All points of view held by significant portions of the population should receive attention.

Cohen's outline

Joshua Cohen, a student of John Rawls, outlined conditions that he thinks constitute the root principles of the theory of deliberative democracy, in the article "Deliberation and Democratic Legitimacy" in the 1989 book *The Good Polity*. He outlines five main features of deliberative democracy, which include:

1. An ongoing independent association with expected continuation.
2. The citizens in the democracy structure their institutions such that deliberation is the deciding factor in the creation of the institutions and the institutions allow deliberation to continue.
3. A commitment to the respect of a pluralism of values and aims within the polity.

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4. The citizens consider deliberative procedure as the source of legitimacy, and prefer the causal history of legitimation for each law to be transparent and easily traceable to the deliberative process.
5. Each member recognizes and respects other members' deliberative capacity.

This can be construed as the idea that in the legislative process, we "owe" one another reasons for our proposals.

Cohen presents deliberative democracy as more than a theory of legitimacy, and forms a body of substantive rights around it based on achieving "ideal deliberation":

1. It is free in two ways:
 1. The participants consider themselves bound solely by the results and preconditions of the deliberation. They are free from any authority of prior norms or requirements.
 2. The participants suppose that they can act on the decision made; the deliberative process is a sufficient reason to comply with the decision reached.
2. Parties to deliberation are required to state reasons for their proposals, and proposals are accepted or rejected based on the reasons given, as the content of the very deliberation taking place.
3. Participants are equal in two ways:
 1. Formal: anyone can put forth proposals, criticize, and support measures. There is no substantive hierarchy.
 2. Substantive: The participants are not limited or bound by certain distributions of power, resources, or pre-existing norms. "The participants...do not regard themselves as bound by the existing system of rights, except insofar as that system establishes the framework of free deliberation among equals."
4. Deliberation aims at a rationally motivated consensus: it aims to find reasons acceptable to all who are committed to such a system of decision-making. When consensus or something near enough is not possible, majoritarian decision making is used.

In *Democracy and Liberty*, an essay published in 1998, Cohen reiterated many of these points, also emphasizing the concept of "reasonable pluralism" – the acceptance of different, incompatible worldviews and the importance of good faith deliberative efforts to ensure that as far as possible the holders of these views can live together on terms acceptable to all.

Gutmann and Thompson's model

Amy Gutmann and Dennis F. Thompson's definition captures the elements that are found in most conceptions of deliberative democracy. They define it as "a form of government in which free and equal citizens and their representatives justify decisions in a process in which they give one another reasons that are mutually acceptable and generally accessible, with the aim of reaching decisions that are binding on all at present but open to challenge in the future".

They state that deliberative democracy has four requirements, which refer to the kind of reasons that citizens and their representatives are expected to give to one another:

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1. Reciprocal. The reasons should be acceptable to free and equal persons seeking fair terms of cooperation.
2. Accessible. The reasons must be given in public and the content must be understandable to the relevant audience.
3. Binding. The reason-giving process leads to a decision or law that is enforced for some period of time. The participants do not deliberate just for the sake of deliberation or for individual enlightenment.
4. Dynamic or Provisional. The participants must keep open the possibility of changing their minds, and continuing a reason-giving dialogue that can challenge previous decisions and laws.

Strengths and Weaknesses

A claimed strength of deliberative democratic models is that they are more easily able to incorporate scientific opinion and base policy on outputs of ongoing research, because:

- Time is given for all participants to understand and discuss the science
- Scientific peer review, adversarial presentation of competing arguments, refereed journals, even betting markets, are also deliberative processes.
- The technology used to record dissent and document opinions opposed to the majority is also useful to notarize bets, predictions and claims.

According to proponents such as James Fearon, another strength of deliberative democratic models is that they tend, more than any other model, to generate ideal conditions of impartiality, rationality and knowledge of the relevant facts. The more these conditions are fulfilled, the greater the likelihood that the decisions reached are morally correct. Deliberative democracy takes on the role of an "epistemic democracy" in this way, as it thus has an *epistemic* value: it allows participants to deduce what is morally correct. This view has been prominently held by Carlos Nino.

Studies by James Fishkin and others have found that deliberative democracy tends to produce outcomes which are superior to those in other forms of democracy. Deliberative democracy produces less partisanship and more sympathy with opposing views; more respect for evidence based reasoning rather than opinion; a greater commitment to the decisions taken by those involved; and a greater chance for widely shared consensus to emerge, thus promoting social cohesion between people from different backgrounds. Fishkin cites extensive empirical support for the increase in public spiritedness that is often caused by participation in deliberation, and says theoretical support can be traced back to foundational democratic thinkers such as John Stuart Mill and Alexis de Tocqueville. Former diplomat Carne Ross writes that in 2011 that the debates arising from deliberative democracy are also much more civil, collaborative, and evidence-based than the debates in traditional town hall meetings or in internet forums. For Ross, the key reason for this is that in deliberative democracy citizens are empowered by knowledge that their debates will have a measurable impact on society.

A claimed failure of most theories of deliberative democracy is that they do not address the problems of voting. James Fishkin's 1991 work, "Democracy and Deliberation", introduced a way to apply the theory of deliberative democracy to real-world decision making, by way of what he calls the deliberative opinion poll. In the deliberative opinion poll, a statistically representative sample of the nation or a

community is gathered to discuss an issue in conditions that further deliberation. The group is then polled, and the results of the poll and the actual deliberation can be used both as a recommending force and in certain circumstances, to replace a vote. Dozens of deliberative opinion polls have been conducted across the United States since his book was published.

The political philosopher Charles Blattberg has criticized deliberative democracy on four grounds: (i) the rules for deliberation that deliberative theorists affirm interfere with, rather than facilitate, good practical reasoning; (ii) deliberative democracy is ideologically biased in favor of liberalism as well as republican over parliamentary democratic systems; (iii) deliberative democrats assert a too-sharp division between just and rational deliberation on the one hand and self-interested and coercive bargaining or negotiation on the other; and (iv) deliberative democrats encourage an adversarial relationship between state and society, one that undermines solidarity between citizens.

A criticism of deliberation is that potentially it allows those most skilled in rhetoric to sway the decision in their favour. This criticism has been made since deliberative democracy first arose in Ancient Athens.

History

Consensus-based decision making similar to deliberative democracy is characteristic of the hunter gather band societies thought to predominate in pre-historical times. As some of these societies became more complex with developments like division of labour, community-based decision making was displaced by various forms of authoritarian rule. The first example of democracy arose in Greece as Athenian democracy during the sixth century BC. Athenian democracy was both *deliberative* and largely *direct*: some decisions were made by representatives but most were made by "the people" directly. Athenian democracy came to an end in 322BC. When democracy was revived as a political system about 2000 years later, decisions were made by representatives rather than directly by the people. In a sense, this revived version was deliberative from its beginnings; for example, in 1774 Edmund Burke made a famous speech where he called Great Britain's parliament a deliberative assembly. Similarly, the Founding Fathers of the United States considered deliberation an essential part of the government they created in the late 18th century.

The deliberative element of democracy was not widely studied by academics until the late 20th century. Although some of the seminal work was done in the 1970s and 80s, it was only in 1990 that deliberative democracy began to attract substantial attention from political scientists. According to Professor John Dryzek, early work on Deliberative Democracy was part of efforts to develop a theory of Democratic legitimacy. Theorists such as Carne Ross advocate deliberative democracy as a complete alternative to representative democracy. The more common view, held by contributors such as James Fishkin, is that direct deliberative democracy can be complementary to traditional representative democracy. Since 1994, hundreds of implementations of direct deliberative democracy have taken place throughout the world. For example, lay citizens have used deliberative democracy to determine local budget allocations in various cities and to undertake major public projects, such as the rebuilding of New Orleans after Hurricane Katrina.

Association with political movements

Deliberative democracy recognizes a conflict of interest between the citizen participating, those affected or victimized by the process being undertaken, and the group-entity that organizes the decision. Thus it usually involves an extensive outreach effort to include marginalized, isolated, ignored groups in decisions, and to extensively document dissent, grounds for dissent, and future predictions of consequences of actions. It focuses as much on the process as the results. In this form it is a complete theory of civics.

On the other hand, many practitioners of deliberative democracy attempt to be as neutral and open-ended as possible, inviting (or even randomly selecting) people who represent a wide range of views and providing them with balanced materials to guide their discussions. Examples include National Issues Forums, Choices for the 21st Century, study circles, deliberative opinion polls, the Citizens' Initiative Review, and the 21st-century town meetings convened by AmericaSpeaks, among others. In these cases, deliberative democracy is not connected to left-wing politics but is intended to create a conversation among people of different philosophies and beliefs.

In Canada, there have been two prominent applications of deliberative democratic models. In 2004, the British Columbia Citizens' Assembly on Electoral Reform convened a policy jury to consider alternatives to the first-past-the-post electoral systems. In 2007, the Ontario Citizens' Assembly on Electoral Reform convened to consider alternative electoral systems in that province. Similarly, three of Ontario's Local Health Integration Networks (LHIN) have referred their budget priorities to a policy jury for advice and refinement.

The Green Party of the United States refers to its particular proposals for grassroots democracy and electoral reform by this name. Although not always the case, participation in deliberation has often been found to shift participants' opinions in favour of Green positions, and can even cause a favourable change of voting intention. For example, with *Europolis* 2009, at the time one of the largest deliberative assemblies ever held, which set out to assess the public's view on a wide range of issues and included representatives from all 27 EU member nations, the share of citizens intending to vote for the Greens increased from 8% to 18%.

10 Speech to the Electors of Bristol (Edmund Burke)

Edmund Burke¹ (/bɜːrk/; 12 January [NS] 1729 – 9 July 1797) was an Irish statesman born in Dublin, as well as an author, orator, political theorist, and philosopher who, after moving to London, served as a member of parliament (MP) for many years in the House of Commons with the Whig Party.

Burke criticized British treatment of the American colonies, including through its taxation policies. He also supported the American Revolution, believing both that it couldn't affect British or European stability and would be an innovative experiment in political development because the Americas were so far away from Europe and thus could have little impact on England. Burke is remembered for his support for Catholic emancipation, the impeachment of Warren Hastings from the East India Company, and for his later opposition to the French Revolution. In his *Reflections on the Revolution in France*, Burke claimed that the revolution was destroying the fabric of good society, and condemned the persecution of the Catholic Church that resulted from it. This led to his becoming the leading figure within the conservative faction of the Whig Party, which he dubbed the "Old Whigs", as opposed to the pro-French Revolution "New Whigs", led by Charles James Fox.

In the nineteenth century Burke was praised by both conservatives and liberals. Subsequently, in the twentieth century, he became widely regarded as the philosophical founder of modern conservatism.

*Speech to the Electors of Bristol*²

I am sorry I cannot conclude without saying a word on a topic touched upon by my worthy colleague. I wish that topic had been passed by at a time when I have so little leisure to discuss it. But since he has thought proper to throw it out, I owe you a clear explanation of my poor sentiments on that subject.

He tells you that "the topic of instructions has occasioned much altercation and uneasiness in this city;" and he expresses himself (if I understand him rightly) in favour of the coercive authority of such instructions.

Certainly, gentlemen, it ought to be the happiness and glory of a representative to live in the strictest union, the closest correspondence, and the most unreserved communication with his constituents. Their wishes ought to have great weight with him; their opinion, high respect; their business, unremitting attention. It is his duty to sacrifice his repose, his pleasures, his satisfactions, to theirs; and above all, ever, and in all cases, to prefer their interest to his own. But his unbiassed opinion, his mature judgment, his enlightened conscience, he ought not to sacrifice to you, to any man, or to any set of men living.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Edmund Burke. (2017, August 5). In Wikipedia, The Free Encyclopedia. Retrieved 17:42, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Edmund_Burke&oldid=794048525

² Edmund Burke, November 3, 1774.

These he does not derive from your pleasure; no, nor from the law and the constitution. They are a trust from Providence, for the abuse of which he is deeply answerable. Your representative owes you, not his industry only, but his judgment; and he betrays, instead of serving you, if he sacrifices it to your opinion.

My worthy colleague says, his will ought to be subservient to yours. If that be all, the thing is innocent. If government were a matter of will upon any side, yours, without question, ought to be superior. But government and legislation are matters of reason and judgment, and not of inclination; and what sort of reason is that, in which the determination precedes the discussion; in which one set of men deliberate, and another decide; and where those who form the conclusion are perhaps three hundred miles distant from those who hear the arguments?

To deliver an opinion, is the right of all men; that of constituents is a weighty and respectable opinion, which a representative ought always to rejoice to hear; and which he ought always most seriously to consider. But authoritative instructions; mandates issued, which the member is bound blindly and implicitly to obey, to vote, and to argue for, though contrary to the clearest conviction of his judgment and conscience,—these are things utterly unknown to the laws of this land, and which arise from a fundamental mistake of the whole order and tenor of our constitution.

Parliament is not a congress of ambassadors from different and hostile interests; which interests each must maintain, as an agent and advocate, against other agents and advocates; but parliament is a deliberative assembly of one nation, with one interest, that of the whole; where, not local purposes, not local prejudices, ought to guide, but the general good, resulting from the general reason of the whole. You choose a member indeed; but when you have chosen him, he is not member of Bristol, but he is a member of parliament. If the local constituent should have an interest, or should form an hasty opinion, evidently opposite to the real good of the rest of the community, the member for that place ought to be as far, as any other, from any endeavour to give it effect. I beg pardon for saying so much on this subject. I have been unwillingly drawn into it; but I shall ever use a respectful frankness of communication with you. Your faithful friend, your devoted servant, I shall be to the end of my life: a flatterer you do not wish for. On this point of instructions, however, I think it scarcely possible, we ever can have any sort of difference. Perhaps I may give you too much, rather than too little trouble.

From the first hour I was encouraged to court your favour to this happy day of obtaining it, I have never promised you any thing, but humble and persevering endeavours to do my duty. The weight of that duty, I confess, makes me tremble; and whoever well considers what it is, of all things in the world will fly from what has the least likeness to a positive and precipitate engagement. To be a good Member of Parliament, is, let me tell you, no easy task; especially at this time, when there is so strong a disposition to run into the perilous extremes of servile compliance, or wild popularity. To unite circumspection with vigour, is absolutely necessary; but it is extremely difficult. We are now Members for a rich commercial City; this City, however, is but a part of a rich commercial Nation, the Interests of which are various, multiform, and intricate. We are Members for that great Nation, which however is itself but part of a great Empire, extended by our Virtue and our Fortune to the farthest limits of the East and of the West. All these wide-spread Interests must be considered; must be compared; must be reconciled if possible. We are Members for a free Country; and surely we all know, that the machine of a free Constitution is no simple thing; but as intricate and as delicate, as it is valuable. We are Members in a great and ancient Monarchy; and we must preserve religiously, the true legal rights of the Sovereign, which form the Key-stone that binds together the noble and well-constructed Arch of our Empire and our Constitution. A

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Constitution made up of balanced Powers must ever be a critical thing. As such I mean to touch that part of it which comes within my reach. I know my Inability, and I wish for support from every Quarter...

11 Perpetual Peace (Immanuel Kant)

Immanuel Kant¹ (/kænt/; German: [ɪˈmaːnu̯eːl kant]; 22 April 1724 – 12 February 1804) was a German philosopher who is a central figure in modern philosophy. Kant argued that the human mind creates the structure of human experience, that reason is the source of morality, that aesthetics arises from a faculty of disinterested judgment, that space and time are forms of our sensibility, and that the world as it is "in-itself" is independent of our concepts of it. Kant took himself to have effected a "Copernican revolution" in philosophy, akin to Copernicus' reversal of the age-old belief that the sun revolved around the earth. His beliefs continue to have a major influence on contemporary philosophy, especially the fields of metaphysics, epistemology, ethics, political theory, and aesthetics.

Politically, Kant was one of the earliest exponents of the idea that perpetual peace could be secured through universal democracy and international cooperation. He believed that this will be the eventual outcome of universal history, although it is not rationally planned. The exact nature of Kant's religious ideas continues to be the subject of especially heated philosophical dispute, with viewpoints ranging from the idea that Kant was an early and radical exponent of atheism who finally exploded the ontological argument for God's existence, to more critical treatments epitomized by Nietzsche who claimed that Kant had "theologian blood" and that Kant was merely a sophisticated apologist for traditional Christian religious belief, writing that "Kant wanted to prove, in a way that would dumbfound the common man, that the common man was right: that was the secret joke of this soul."

In one of Kant's major works, the *Critique of Pure Reason* (*Kritik der reinen Vernunft*, 1781), he attempted to explain the relationship between reason and human experience and to move beyond the failures of traditional philosophy and metaphysics. Kant wanted to put an end to an era of futile and speculative theories of human experience, while resisting the skepticism of thinkers such as David Hume. Kant regarded himself as ending and showing the way beyond the impasse which modern philosophy had led to between rationalists and empiricists, and is widely held to have synthesized these two early modern traditions in his thought.

Kant argued that our experiences are structured by necessary features of our minds. In his view, the mind shapes and structures experience so that, on an abstract level, all human experience shares certain essential structural features. Among other things, Kant believed that the concepts of *space* and *time* are integral to all human experience, as are our concepts of *cause* and *effect*. One important consequence of this view is that our experience of things is always of the *phenomenal* world as conveyed by our senses: we do not have direct access to things in themselves, the so-called *noumenal* world. Kant published other important works on ethics, religion, law, aesthetics, astronomy, and history. These included the *Critique of Practical Reason* (*Kritik der praktischen Vernunft*, 1788), the *Metaphysics of Morals* (*Die Metaphysik der Sitten*, 1797), which dealt with ethics, and the *Critique of Judgment* (*Kritik der Urteilskraft*, 1790), which looks at aesthetics and teleology.

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*Perpetual Peace*²

These words were once put by a Dutch innkeeper on his signboard, as a satirical inscription over the representation of a churchyard. We need not enquire whether they hold of men in general, or particularly of the rulers of States who seem never to be satiated of war, or even only of the Philosophers who dream that sweet dream of Peace. The author of the present Sketch, however, would make one remark by way of reservation in reference to it. It is well known that the practical politician looks down, with great self-complacency, on the theoretical Politician, when he comes in the way, as a mere pedant whose empty ideas can bring no danger to the State, proceeding as it does, upon principles derived from experience; and the theoriser may, therefore, be allowed to throw down his eleven skittle-pins at once, while the sagacious Statesman who knows the world, need not, on that account, even give himself a turn! This being so, should any matter of controversy arise between them, the practical Statesman must so far proceed consistently and not scent out a danger for the State behind the opinions of the theoretical thinker, which he has ventured in a good intent publicly to express. By which ‘saving clause,’ the Author will consider himself expressly safeguarded against all malicious interpretation.

First Section which contains THE PRELIMINARY ARTICLES OF A PERPETUAL PEACE BETWEEN STATES.

1.: ‘No conclusion of Peace shall be held to be valid as such, when it has been made with the secret reservation of the material for a future War.’

For, in that case, it would be a mere truce, or a suspension of hostilities, and not a Peace. A Peace properly signifies the end of all hostilities; and to qualify it by the addition of the epithet ‘perpetual’ or ‘eternal’ is pleonastic and suspicious. All existing causes for a future war—although they were perhaps unknown to the contracting parties at the time—are to be regarded as entirely removed, or annihilated by the Treaty of Peace, even if they could be picked out by the dexterity of an acute interpretation from the terms of documents in the public Archives. There may be a mental reservation of old pretensions or claims with the view of asserting them at a future time, of which, however, neither party makes any mention for the present because they are too exhausted to continue the war, while there remains the evil will to take advantage of the first favourable opportunity for this purpose; but this is illegitimate and belongs to the Jesuitical casuistry of Politics. If we consider the subject of reservation in itself, it is beneath the dignity of the Rulers of States to have to do with it, and, in like manner, the complacent participation in such deductions is beneath the dignity of their Ministers. But if the true glory of the State is placed in the continual increase of its power, by any means whatever—according to certain ‘enlightened’ notions of national policy—then this judgment will certainly appear to those who adopt that view, to be impractical and pedantic.

2.: ‘No State having an existence by itself—whether it be small or large—shall be acquirable by another State through inheritance, exchange, purchase or donation.

A State is not to be regarded as a property or patrimony, like the soil on which it may be settled. It is a society of men, over which no one but itself has the right to rule or to dispo. Like the stem of a tree it has its own root, and to incorporate it as a graft in another State, is to destroy its existence as a moral

² Immanuel Kant, 1795. Translated by William Hastie, 1891.

Person; it is to reduce it to a Thing, and thereby to contradict the idea of the original Compact without which a Right over a people is inconceivable.* Everyone knows what danger the prejudice in favour of thus acquiring States has brought to Europe,—for in the other parts of the world it has never been known; and that this has gone on even up to our own times. It was considered that the States might marry one another; and hence, on the one hand, a new kind of industry in the effort to acquire predominance by family alliances, without any expenditure of power; and, on the other hand, to increase, in this way, by new possessions the extent of a Country. Further, the lending of the troops of one State to another on pay, to fight against an enemy not at war with their own State, has arisen from the same erroneous view; for the Subjects of the State are thus used and abused as Things that may be managed at will.

3.: ‘Standing Armies shall be entirely abolished in the course of time.’

For, they threaten other States incessantly with War, by their appearing to be always equipped to enter upon it. Standing armies (*miles perpetuus*) excite the States to outrival each other in the number of their armed men which has no limits. By the expense occasioned thereby, Peace becomes in the long run even more oppressive than a short war; and Standing Armies are thus the cause of aggressive wars undertaken in order to get rid of this burden. Besides, it has to be considered that for men to be hired for pay to kill or to be killed, appears to imply the using of them as mere machines and instruments in the hand of another, although it be the State; and that this cannot be well reconciled with the Right of humanity in our own person. It is quite otherwise, however, as regards the voluntary exercise of the citizens in arms at certain appointed periods; for the object in view is thereby to protect themselves and their country from external attacks.—The accumulation of treasure in a State would have the same sort of influence as regular troops, in so far as, being regarded by other States as a threat of war, it might compel them to anticipate such a war by an attack upon the State. For of the three powers known in the State as the Power of the Army, the Power of external Alliance and the Power of Money, the money-power might well become the most reliable instrument of war, did not the difficulty of determining its real force stand in the way of its employment.

4.: ‘No National Debts shall be contracted in connection with the external affairs of the State.’

No objection can be taken to seeking assistance, either without or within the State, in behalf of the economical administration of the country; such as, for the improvement of highways, or in support of new colonies, or in the establishment of resources against dearth and famine. A loan, whether raised externally or internally, as a source of aid in such cases is above suspicion. But a Credit System when used by the Powers as a hostile antagonistic instrument against each other, and when the debts under it go on increasing to an excessive extent and yet are always secured for the present (because all the creditors are not to put in their claims at once), is a dangerous money power. This arrangement—the ingenious invention of a commercial people in this century—constitutes, in fact, a treasure for the carrying on of War; it may exceed the treasures of all the other States taken together, and it can only be exhausted by the forth-coming deficit of the taxes,—which, however, may be long delayed even by the animation of the national commerce from the reaction of the system upon industry and trade. The facility given by this system for engaging in War, combined with the inclination of Rulers towards it (an inclination which seems to be implanted in human nature),—is, therefore, a great obstacle in the way of a Perpetual Peace. The prohibition of it must be laid down as a Preliminary Article in the conditions of such a Peace, even more strongly on the further ground, that the national bankruptcy, which it inevitably

brings at last, would necessarily involve many other States that are without debt in the loss; and this would be a public lesion of these other States. And, consequently, the other States are justified in allying themselves against such a State and its pretensions.

5.: ‘No State shall intermeddle by force with the Constitution or Government of another State.’

For what could justify it in doing so? Mayhap the scandal or offence given by that State to the subjects of another State? Then the offending State should much rather serve as a warning by the example of the great Evils which peoples have drawn upon themselves through their lawlessness; and generally a bad example given by one free person to another (as a *scandalum acceptum*), is not a lesion of his Right. But it is a different case where a State has become divided in two by internal disunion, and when each of the parts represents itself as a separate State laying claim to the whole; for, to furnish assistance to one of them under these circumstances might not be reckoned as the intermeddling of an External State with the Constitution of another, as that other is then in a condition of Anarchy. Yet so long as this internal strife is not decided, such an interference on the part of external Powers would be a violation of the Rights of an independent people that is only struggling with an external evil. It would, therefore, itself be a cause of offence, and would make the Autonomy of all other States insecure.

6.: ‘No State at war with another shall adopt such modes of hostility as would necessarily render mutual confidence impossible in a future Peace; such as, the employment of Assassins (*percussores*) or Poisoners (*venefici*), the violation of a Capitulation, the instigation of Treason and such like.’

These are dishonourable stratagems. For there must be some trust in the habit and disposition even of an enemy in War, otherwise no Peace could be concluded, and the hostilities would pass into an internecine war of extermination. War, however, is only a melancholy necessity of asserting Right by force—where, as in the state of Nature, there is no common tribunal with the rightful power to adjudicate on causes of quarrel. In such circumstances neither of the two parties can be declared to be an unjust enemy as this presupposes a judicial sentence: but the issue of the conflict—as in the so-called ‘judgments of God’—has to decide on which side is the Right. As between States, however, a punitive war, according to the principle of punishment, is inconceivable; because there is no relation of subordination between them, as between Superior and Inferior.—Hence it follows that a war of extermination, in which the process of annihilation would strike at both parties, and likewise at all Right at the same time, would reach Perpetual Peace only on the final Golgotha of the human race. Such a war, therefore, as well as the use of such means as might lead to it, must be absolutely unallowable.—And that the means referred to inevitably lead to that result, is apparent from the fact that when these hellish arts, which are debasing in themselves, are once brought into use, they are not kept long within the limits of war.—Such, for instance, is the employment of Spies. In this case it is only the dishonesty of others that is employed, and as such practices and habits cannot be exterminated at once, they would be carried over into the state of Peace, and thus its very purpose would be entirely frustrated.

The Articles thus indicated, when viewed objectively, or as to the intention of the Powers, represent merely Prohibitive Laws. Some of them, however, are Strict Laws (*leges strictæ*); that are valid without distinction of circumstances, and press immediately for the abolition of certain things. Such are Nos. 1, 5, 6. Others, again—as Nos. 2, 3, 4,—have a certain subjective breadth (*leges latæ*) in respect of their application. Although they present no exceptions to the rule of Right, they imply a regard to circumstances in practice. They include permissions to delay their fulfilment without, however, losing

sight of their end; for their end allows such delay. Thus, for instance, in regard to the restoration of certain States to the Liberty of which they have been deprived, it is allowable, according to the Second Article, to postpone it—not, indeed to ‘the Greek Kalends,’ as Augustus was wont to say, so that its time would never come; but only so as not to precipitate its coming, and thus by overhaste to act contrary to the very purpose in view. The prohibition in question, bears only upon a mode of Acquisition which is to be no longer valid, but not upon the state of possession which, although it may not hold the requisite title of Right, was, nevertheless, regarded as rightful and valid by all the States at the date of the putative acquisition, in accordance with the public opinion of the time.*

Second Section which contains THE DEFINITIVE ARTICLES OF A PERPETUAL PEACE BETWEEN STATES.

A state of Peace among men who live side by side with each other, is not the natural state. The state of Nature is rather a state of War; for although it may not always present the outbreak of hostilities, it is nevertheless continually threatened with them. The state of Peace must, therefore, be established; for the mere cessation of hostilities furnishes no security against their recurrence, and where there is no guarantee of peace between neighbouring States—which can only be furnished under conditions that are regulated by Law—the one may treat the other, when proclamation is made to that effect, as an enemy.*

I.: First Definitive Article in the Conditions of Perpetual Peace. ‘The Civil Constitution in every State shall be Republican.’

A Republican Constitution is one that is founded, firstly, according to the principle of the Liberty of the Members of a Society, as Men; secondly, according to the principle of the Dependence of all its members on a single common Legislation, as Subjects; and, thirdly, according to the law of the Equality of its Members as Citizens.* The Republican Constitution is, thus, the only one which arises out of the idea of the Original Compact upon which all the rightful legislation of a people is founded. As regards public Right, the republican principles, therefore, lie originally and essentially at the basis of the Civil Constitution in all its forms; and the only question for us now is as to whether it is also the only Constitution that can lead to a Perpetual Peace?

Now, in point of fact, the Republican Constitution, in addition to the purity of its origin as arising from the original source of the conception of Right, includes also the prospect of realising the desired object: Perpetual Peace among the nations. And the reason of this may be stated as follows.—According to the Republican Constitution, the consent of the citizens as members of the State is required to determine at any time the question, ‘Whether there shall be war or not?’ Hence, nothing is more natural than that they should be very loth to enter upon so undesirable an undertaking; for in decreeing it they would necessarily be resolving to bring upon themselves all the horrors of War. And, in their case, this implies such consequences as these: to have to fight in their own persons; to supply the costs of the war out of their own property; to have sorrowfully to repair the devastation which it leaves behind; and, as a crowning evil, to have to take upon themselves at the end a burden of debt which will go on embittering peace itself, and which it will be impossible ever to pay off on account of the constant threatening of further impending wars. On the other hand, in a Constitution where the Subject is not a voting member of the State, and which is, therefore, not Republican, the resolution to go to war is a matter of the smallest concern in the world. For, in this case, the Ruler, who, as such, is not a mere citizen but the

Owner of the State, need not in the least suffer personally by war, nor has he to sacrifice his pleasures of the table or of the chase or his pleasant palaces, court-festivals and such like. He can, therefore, resolve for war from insignificant reasons, as if it were but a hunting expedition; and, as regards its propriety, he may leave the justification of it without concern to the diplomatic body, who are always too ready to give their services for that purpose.

The Republican Constitution is not to be confounded with the Democratic Constitution. But as this is commonly done, the following remarks must be made in order to guard against this confusion.—The various forms of the State (*Civitas*) may be divided either according to the difference of the Persons who hold the highest authority in the State, or according to the mode of the governing of the people through its supreme Head. The first is properly called the form of the Sovereignty in the State (*forma imperii*). There are only three forms of this kind possible, according as one only, or as some in connection with each other, or as all those constituting the Civil Society combined together may happen to possess the governing power; and thus we have either an Autocracy constituted by the power of a Monarch, or an Aristocracy constituted by the power of the Nobles, or a Democracy constituted by the power of the People. The second principle of division is taken from the form of the Government (*forma regiminis*); and viewing the Constitution as the act of the common or universal will by which a number of men become a People, it regards the mode in which the State, founding on the Constitution, makes use of its supreme power. In this connection the form of government is either republican or despotic. Republicanism regarded as the constitutive principle of a State is the political severance of the Executive Power of the Government from the Legislative Power. Despotism is in principle the irresponsible executive administration of the State by laws laid down and enacted by the same power that administers them; and consequently the Ruler so far exercises his own private will as if it were the public Will. Of the three forms of the State, a Democracy, in the proper sense of the word, is necessarily a despotism; because it establishes an Executive power in which All resolve about, and, it may be, also against, any One who is not in accord with it; and consequently the All who thus resolve are really not all; which is a contradiction of the Universal Will with itself and with liberty.

Every form of Government, in fact, which is not representative, is properly a spurious form of Government or not a form of Government at all; because the Lawgiver in one and the same person, may, at the same time, be the executive administrator of his own Will. And although the other two political constitutions—Autocracy and Aristocracy—are always so far defective in that they afford opportunity for such a mode of government, it is at least possible in their cases that a mode of government may be adopted in conformity with the spirit of a representative system. Thus Frederick the Great was wont to say of himself that he was ‘merely the highest servant of the State.’* But the Democratic Constitution, on the contrary, makes such a spirit impossible; because under it everyone wishes to be master. It may, therefore, be said that the fewer the number of the Rulers or personal Administrators of the power of the State, and the greater the representation embodied in them, so much the more does the political constitution harmonise with the possibility of Republicanism; and such a constitution may hope to raise itself, by gradual reforms, to the Republican Ideal.—On this account, it is more difficult to attain to this one perfect constitution according to the principles of Right in an Aristocracy than in a Monarchy, and in a Democracy it is impossible otherwise than by violent revolution. As regards the people, however, the mode of Government is incomparably more important than the form of the Constitution, although the degree of conformity in the Constitution to the end of government is also of much importance.* But if the mode of Government is to conform to the idea of Right, it must embody the representative system. For in this system alone is a really republican mode of Government possible; and without it, let the

Constitution be what it may, it will be despotic and violent. In none of the ancient so-called ‘Republics,’ was this known; and they necessarily became resolved in consequence, into an absolute form of despotism, which is always most bearable when the supreme power is concentrated in a single individual.

II.: Second Definitive Article in the conditions of a Perpetual Peace. ‘The Right of Nations shall be founded on a Federation of Free States.’

Peoples or nations regarded as States, may be judged like individual men. Now men living in a state of Nature independent of external laws, by their very contiguity to each other, give occasion to mutual injury or lesion. Every people, for the sake of its own security, thus may and ought to demand from any other, that it shall enter along with it into a constitution, similar to the Civil Constitution, in which the Right of each shall be secured. This would give rise to an International Federation of the Peoples. This, however, would not have to take the form of a State made up of these Nations. For that would involve a contradiction, since every State, properly so called, contains the relation of a Superior as the lawgiver to an Inferior as the people subject to their laws. Many nations, however, in one State, would constitute only one nation, which is contradictory to the principle assumed, as we are here considering the Right of Nations in relation to each other, in so far as they constitute different States and are not to be fused into one.

The attachment of Savages to the lawless liberty of rather being engaged in incessant conflict with each other, than submitting to a legal constraint constituted by themselves, is well known. Hence their preference of wild freedom to rational liberty is looked upon by us with profound contempt, and characterised as barbarism, coarseness, and a brutal degradation of humanity. Thus it might be thought that civilised Nations, being each united into a State, would of necessity make all haste to advance as soon as possible out of any semblance to a condition that is so much condemned. Instead of this, however, we rather find that every State founds its Majesty* on not being subject to any external legal coercion; and the glory of its Ruler or Head is made to consist in the fact that without his requiring to encounter any danger himself, many thousands stand ready to be sacrificed at his command for a cause which may be no concern of theirs...

The depravity of human nature is exhibited without disguise in the unrestrained relations of the Nations to each other, whereas in the legalised state of Civil Society it is greatly veiled under the constraint of government. In view of it, we may well wonder that the word ‘Right’ has not yet been entirely banished from the policy of war as pedantic, and that no State has as yet ventured to declare itself publicly in favour of that doctrine. For Grotius, Puffendorf, Vattel and the others—miserable comforters all of them—are still always quoted cordially for the justification of an outbreak of war, although their philosophically or diplomatically composed codes has not, nor could have, the slightest legal force, since the States as such stand under no common legal constraint; and there is not an example of a State having been ever moved to desist from its purpose by arguments, although armed with testimonies of such important men.—Yet the homage which every State thus renders—at least in words—to the conception of Right still proves that there is to be found in man a higher and greater moral capacity; though it may slumber for a time; and it is evidently felt that this capacity will yet attain the mastery over the evil principle in him, the existence of which cannot be denied; and this gives a ground of hope to others. For the word ‘Right’ would otherwise never enter into the vocabulary of States desirous to go to war with each other, unless it were merely to make a jest of it, in the manner of the Gallic prince who

declared that ‘it is the prerogative of the strong to make the weak obey them.’

The means by which States prosecute their Rights at present can never be by a form of process—as if there were an external tribunal,—but can only be by War; but even the favourable issue of war in victory will not decide a matter of Right. A treaty of Peace may, indeed, put an end to a particular war, yet not to the general condition of war, in which a pretext can always be found for new hostilities. Nor can such a pretext under these circumstances be regarded as ‘unjust;’ for in that state of society, every nation is the judge of its own cause. At the same time, the position which, according to the Right of nature, holds of men in a lawless condition that ‘they ought to advance out of that condition,’ cannot according to the Right of Nations be directly applied to States; because as States they have already within themselves a legal Constitution and have thus out-grown the coercive Right of others to bring them under a wider legal constitution according to conceptions of Right. And yet Reason on the throne of the highest moral law-giving power, absolutely condemns War as a mode of Right, and, on the contrary, makes the state of Peace an immediate duty. But the state of Peace cannot be founded or secured without a compact of the Nations with each other. Hence there must be a compact of a special kind which may be called a Pacific Federation (*foedus pacificum*), and which would be distinguished from a mere treaty or Compact of Peace (*pactum pacis*) in that the latter merely puts an end to one war whereas the former would seek to put an end to all wars for ever. This Federation will not aim at the acquisition of any of the political powers of a State, but merely at the preservation and guarantee for itself, and likewise for the other confederated States, of the liberty that is proper to a State; and this would not require these States to subject themselves for this purpose—as is the case with men in the state of nature—to public laws and to coercion under them. The practicability and objective realisation of this idea of Federalism, inasmuch as it has to spread itself over all States and thereby lead to Perpetual Peace, may be easily shewn. For if happy circumstances bring it about that a powerful and enlightened people form themselves into a Republic—which by its very nature must be disposed in favour of Perpetual Peace—this will furnish a centre of federative union for other States to attach themselves to, and thus to secure the conditions of Liberty among all States, according to the idea of the Right of Nations. And such a Union would extend wider and wider, in the course of time, by the addition of further connections of this kind.

It is intelligible that a People should say: ‘There shall be no war among us: for we will form ourselves into a State, and constitute of ourselves a supreme legislative, governing and judicial Power which will peacefully settle our differences.’—But if this State says: ‘There shall be no war between me and other States, although I recognise no supreme legislative power which will secure me my Right and whose Right I will also secure;’—then there is no intelligible basis upon which any security for such Rights could be founded unless it were a surrogate of the union embodied in Civil Society. And this can be nothing but a free Federation of the States, which Reason must necessarily connect with the idea of the Right of Nations if there is anything further to be thought in connection with it.

The notion of a Right to go to war, cannot be properly conceived as an element in the Right of Nations. For it would be equivalent to a Right to determine what is just not by universal external laws limiting the freedom of every individual alike, but through one-sided maxims that operate by means of force. If such a Right be conceivable at all it would amount, in fact, to this: that in the case of men who are so disposed it is quite right for them to destroy and devour each other, and thus to find Perpetual Peace only in the wide grave which is to cover all the abomination of the deeds of violence and their authors!—For States viewed in relation to each other, there can be only one way, according to reason, of emerging from that lawless condition which contains nothing but occasions of war. Just as in the case of individual

men, Reason would drive them to give up their savage lawless freedom, to accommodate themselves to public coercive laws, and thus to form an ever-growing State of Nations, such as would at last embrace all the Nations of the Earth. But as the Nations, according to their ideas of international Right, will not have such a positive rational system, and consequently reject in fact (in *thesi*) what is right in theory (in *hypothesi*), it cannot be realised in this pure form. Hence, instead of the positive idea of a Universal Republic—if all is not to be lost—we shall have as result only the negative surrogate of a Federation of the States averting war, subsisting in an external union, and always extending itself over the world. And thus the current of those inclinations and passions of men which are antagonistic to Right and productive of war, may be checked, although there will still be a danger of their breaking out betimes...

III.: Third Definitive Article in the conditions of a Perpetual Peace. 'The Rights of men as Citizens of the world in a cosmo-political system, shall be restricted to conditions of universal Hospitality.'

In this as in the previous Articles, the question is not about a relation of Philanthropy, but one of Right. 'Hospitality' here indicates the Right of a stranger in consequence of his arrival on the soil of another country, not to be treated by its citizens as an enemy. As a stranger he may be turned away, if this can be done without involving his death; but so long as he conducts himself peacefully in the place where he may happen to be, he is not to be dealt with in a hostile way. The stranger may not lay claim to be entertained by right as a Guest,—for this would require a special friendly compact to make him for a certain time the member of a household,—he may only claim a Right of Resort or of visitation. All men are entitled to present themselves thus to society in virtue of their Right to the common possession of the surface of the earth, to no part of which anyone had originally more right than another; and upon which, from its being a globe, they cannot scatter themselves to infinite distances, but must at last bear to live side by side with each other.—Uninhabitable portions of this surface are formed by seas and deserts; these present barriers to the fellowship of men in society; but they are of such a nature that the ship or the camel, 'the ship of the desert,' makes it possible for men to approach each other over these unappropriated regions, and thus to turn the Right which the human species have in common to the surface of the earth, into a means for social intercourse. The inhospitality practised, for instance, on the Barbary coasts, of plundering ships in the neighbouring seas and making slaves of stranded mariners, or that of the sandy deserts, as practised by Arab Bedouins who regard their access to nomadic tribes as constituting a right to plunder them, is thus contrary to the Right of Nature. But this Right of Hospitality as vested in strangers arriving in another State, does not extend further than the conditions of the possibility of entering into social intercourse with the inhabitants of the country. In this way distant continents may enter into peaceful relations with each other. These may at last become publicly regulated by law, and thus the human race may be always brought nearer to a Cosmo-political Constitution...

But the social relations between the various Peoples of the world, in narrower or wider circles, have now advanced everywhere so far that a violation of Right in one place of the earth, is felt all over it. Hence the idea of a Cosmo-political Right of the whole Human Race, is no phantastic or overstrained mode of representing Right, but is a necessary completion of the unwritten Code which carries national and international Right to a consummation in the Public Right of Mankind. Thus the whole system leads to the conclusion of a Perpetual Peace among the Nations. And it is only under the conditions now laid down that men may flatter themselves with the belief, that they are making a continual approach to its realisation.

First Supplement. Of the Guarantee of Perpetual Peace.

...The question then arises, as to what is the essential meaning and aim of this design of a Perpetual Peace. It may be put thus: 'What does Nature do in this respect with reference to the end which man's own reason presents to him as a duty; and, consequently, what does she do for the furtherance of his moral purpose in life? And, further, how does she guarantee that what man ought to do according to the laws of his freedom, and yet does not do, shall be done by him without prejudice to his freedom even by a certain constraint of nature; and how does she secure this in all the three relationships of Public Right as Political Right, International Right and Cosmopolitan Right?' When I say of nature that she wills a certain thing to be done, I do not mean that she imposes upon us a duty to do it, for only the Practical Reason as essentially free from constraint, can do this; but I mean that she does it herself whether we be willing or not...

1. Even if a people were not compelled by internal discord to submit to the coercion of public laws, War as an external influence would effect this. For, according to the arrangement of nature already indicated, every people finds another pressing upon it in its neighbourhood, and it must form itself internally into a State in order to be equipped as a Power so as to defend itself. Now the Republican Constitution is the only one which perfectly corresponds to the Rights of man; but it is at the same time the most difficult to found, and still more so to maintain. So much is this the case that many have asserted that the realisation of a true Republic would be like a State formed by angels, because men with their selfish inclinations are incapable of carrying out a constitution of so sublime a form. In these circumstances, then, nature comes to the aid of the rational and universal will of man, which, however honoured in itself, is impotent in practice; and it does this just by means of these selfish inclinations. Thus it comes that the chief interest turns only upon a good organisation of the State, which is certainly within the power of man, whereby the powers of the human will shall be so directed in relation to each other, that the one will check the destructive effects of the other, or nullify them; and hence the result will be as regards reason the same as if these forces did not exist when their evil effects are thus neutralised; and man, although not possessed of real moral goodness, yet becomes constrained to be a good citizen.

The problem of the institution of a State, however hard it may appear, would not be insoluble even for a race of devils, assuming only that they have intelligence, and it may be put as follows: 'A multitude of rational beings all requiring laws in common for their own preservation, and yet of such a nature that each of them is inclined secretly to except himself from their sway, have to be put under order, and a constitution has to be established among them so that, although they may be antagonistic to one another in their private sentiments, they have yet to be so organised that, in their public relations, their conduct will have the same result as if they had no such bad sentiments.'

Such a problem must be capable of solution. For it does not turn directly upon the moral improvement of men, but only upon the mechanism of nature; and the problem is to know how men can use the conditions of nature in order so to regulate the antagonism of the hostile sentiments at work among the people that the individuals composing it shall have to compel each other to submit to common compulsory laws, and that there shall thus be brought about a state of peace in which the laws will have full power. This process may be seen going on in the actually existing, although still very imperfectly organised States. For, in their external relations to one another, they already approach what the idea of Right prescribes, although the essential principle of Morality is certainly not the cause of it; and indeed a good political constitution is not so much to be expected from that principle but rather conversely the

good moral culture of a people from such a constitution. Hence the mechanism of nature as it works through selfish inclinations which are externally and naturally antagonistic in their operation to each other, may be used by reason as a means of making way for the realisation of her own end by the application of a Rule of Right, and thereby of furthering and securing Peace both internal and external, so far as it may lie within the power of the State to do so. It may then be said that Nature irresistibly wills that Right shall at last obtain the supremacy. What men may here neglect to do will at length be done of itself, although through much inconvenience, and as Bouterwek says:—

‘Bend but the reed too strong, it breaks;
Who wills too much, but nothing makes.’

2. The idea of International Right presupposes the separation of several neighbouring States that are independent of each other; and such a condition of things is of itself already one of war, unless by their federated union they can prevent the outbreak of hostilities. Such a condition of things is, however, better, according to the idea of reason, than the fusion of all the States into a Universal Monarchy by one Power that has overgrown the rest and subjected them to its sway. This is so because the laws lose always something of their definiteness as the range of a government becomes enlarged; and soulless despotism when it has choked the seeds of good, at length lapses into anarchy. Nevertheless there is a desire on the part of every State, or of its Sovereign, to attain to a lasting condition of Peace by subjecting the whole world, were it possible, to its sway. But nature wills it otherwise. She employs two means to prevent the peoples from intermingling, and to keep them apart. These are the differences of their Languages and of their Religions, which bring with them a certain tendency to mutual hatred, and furnish pretexts for war. However, as civilisation increases, there is a gradual approach of men to greater unanimity in principles, and to a mutual understanding of the conditions of peace even in view of these differences. This pacific spirit, unlike that despotism which revels upon the grave of liberty, is developed and secured, not by the weakening of all the separate powers of the States, but by an equilibrium which is brought forth and guaranteed through their rivalry with each other.

3. Nature wisely separates the nations which the will of each State, even according to the principles of International Right, would fain combine into one by fraud or force. But, on the other hand, she again unites the nations whom the idea of a universal Cosmopolitan Right would not have secured from violence and war by regard to their mutual interests. This is effected by the commercial spirit which cannot exist along with war, and which sooner or later controls every people. Among all the means of power subordinate to the regulation of the State, the power of money is the most reliable, and thus the States find themselves driven to further the noble interest of peace, although not directly from motives of morality. Hence wherever war threatens to break out in the world, the States have an interest to avert it by mediations, just as if they stood in a constant league with each other for this purpose. Thus great combinations with a view to war can but very rarely occur from the very nature of things, and still more rarely can they succeed.

In this way Nature guarantees the conditions of Perpetual Peace by the mechanism involved in our human inclinations themselves; and although this is not realised with a guarantee that is sufficient to enable us to prophesy the future theoretically, yet the security involved is sufficient for all practical relations. And thus it becomes a duty to labour for the realisation of this purpose as not at all chimerical in itself.

Second Supplement. Secret Article relating to Perpetual Peace.

A secret Article in transactions relating to Public Right when viewed objectively or as to its matter, is a contradiction. Viewed subjectively, however, and considered in reference to the quality of the Person who dictates it, it is possible that there may be a secret contained in it which it may not be compatible with his dignity to have publicly announced as originating with him.

The only Article of this kind is contained in the following proposition: ‘The maxims of the philosophers regarding the conditions of the possibility of a public peace, shall be taken into consideration by the States that are armed for war.’

It appears, however, to detract from the dignity of the legislative authority of a State—to which we must naturally attribute the highest wisdom—to have to seek for instruction regarding the principles of their practical relations to other States from subjects, even though they be philosophers. Hence the State will rather encourage them silently, making a secret of the matter, than deal with them directly. This amounts to saying that it will allow them to speak forth freely and publicly their universal maxims regarding the carrying on of war and the establishment of peace; for this they will do of themselves if they are not prohibited from doing it. Nor is there any particular agreement of the States with one another required in this connection in order to their harmonising on this point; for it lies already in the obligations imposed by the common human Reason as a moral lawgiver. It is not however meant that the State must give a preference to the principles of the philosopher over the dictates of the jurist, who is a representative of the political authority; it is only meant that the philosopher ought to be heard. The jurist, who has taken for his symbol the scales of right and the sword of justice, commonly uses the latter not merely to keep away all foreign influences from the former, but (should the one scale not sink) to throw his sword into it; and then *Vae victis!* The jurist, who is not at the same time a moral philosopher, is under the greatest temptation to do this, because the function of his office is only to apply existing laws, and not to enquire whether they may be in need of improvement. And further he reckons this really lower order of his faculty as belonging by its functions to a higher rank, because it is accompanied with power; as holds also of the other two faculties of Medicine and Divinity. Philosophy thus stands on a very humble stage below these allied authorities. Hence it is said of Philosophy that she is the handmaid of Theology; and the same has been said of her relation to Medicine and Law. But it is not easy to see, as has been remarked, ‘whether she bears the torch before these gracious ladies, or carries their train.’

That ‘kings will philosophise or philosophers become kings,’ is not to be expected. Nor indeed is it to be desired, because the possession of power inevitably corrupts the free judgment of reason. But kings or king-like nations, who govern themselves according to laws of equality, should not allow the philosophers as a class to disappear, or to be silenced; rather should they be allowed to speak forth their maxims publicly. Nay, this is even indispensable to both for the mutual enlightenment of their functions. Nor should this process of communicating enlightenment be jealously regarded as a kind of Propagandism, because as a class the philosophers are by their nature incapable of combining into political clubs and factions.

12 Considerations on Representative Government (John Stuart Mill)

John Stuart Mill¹ (20 May 1806 – 8 May 1873) was an English philosopher, political economist and civil servant. One of the most influential thinkers in the history of liberalism, he contributed widely to social theory, political theory and political economy. Dubbed "the most influential English-speaking philosopher of the nineteenth century", Mill's conception of liberty justified the freedom of the individual in opposition to unlimited state and social control.

Mill was a proponent of utilitarianism, an ethical theory developed by his predecessor Jeremy Bentham, and contributed significantly to the theory of the scientific method.

A member of the Liberal Party, he was also the first Member of Parliament to call for women's suffrage.

*Considerations on Representative Government*²

Chapter III—That the ideally best Form of Government is Representative Government.

It has long (perhaps throughout the entire duration of British freedom) been a common form of speech, that if a good despot could be insured, despotic monarchy would be the best form of government. I look upon this as a radical and most pernicious misconception of what good government is, which, until it can be got rid of, will fatally vitiate all our speculations on government.

The supposition is, that absolute power, in the hands of an eminent individual, would insure a virtuous and intelligent performance of all the duties of government. Good laws would be established and enforced, bad laws would be reformed; the best men would be placed in all situations of trust; justice would be as well administered, the public burdens would be as light and as judiciously imposed, every branch of administration would be as purely and as intelligently conducted as the circumstances of the country and its degree of intellectual and moral cultivation would admit. I am willing, for the sake of the argument, to concede all this, but I must point out how great the concession is, how much more is needed to produce even an approximation to these results than is conveyed in the simple expression, a good despot. Their realization would in fact imply, not merely a good monarch, but an all-seeing one. He must be at all times informed correctly, in considerable detail, of the conduct and working of every branch of administration, in every district of the country, and must be able, in the twenty-four hours per day, which are all that is granted to a king as to the humblest laborer, to give an effective share of attention and superintendence to all parts of this vast field; or he must at least be capable of discerning and choosing out, from among the mass of his subjects, not only a large abundance of honest and able

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: John Stuart Mill. (2017, August 3). In Wikipedia, The Free Encyclopedia. Retrieved 17:49, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=John_Stuart_Mill&oldid=793721811

² John Stuart Mill, 1861.

men, fit to conduct every branch of public administration under supervision and control, but also the small number of men of eminent virtues and talents who can be trusted not only to do without that supervision, but to exercise it themselves over others. So extraordinary are the faculties and energies required for performing this task in any supportable manner, that the good despot whom we are supposing can hardly be imagined as consenting to undertake it unless as a refuge from intolerable evils, and a transitional preparation for something beyond. But the argument can do without even this immense item in the account. Suppose the difficulty vanquished. What should we then have? One man of superhuman mental activity managing the entire affairs of a mentally passive people. Their passivity is implied in the very idea of absolute power. The nation as a whole, and every individual composing it, are without any potential voice in their own destiny. They exercise no will in respect to their collective interests. All is decided for them by a will not their own, which it is legally a crime for them to disobey.

What sort of human beings can be formed under such a regimen? What development can either their thinking or their active faculties attain under it? On matters of pure theory they might perhaps be allowed to speculate, so long as their speculations either did not approach politics, or had not the remotest connection with its practice. On practical affairs they could at most be only suffered to suggest; and even under the most moderate of despots, none but persons of already admitted or reputed superiority could hope that their suggestions would be known to, much less regarded by, those who had the management of affairs. A person must have a very unusual taste for intellectual exercise in and for itself who will put himself to the trouble of thought when it is to have no outward effect, or qualify himself for functions which he has no chance of being allowed to exercise. The only sufficient incitement to mental exertion, in any but a few minds in a generation, is the prospect of some practical use to be made of its results. It does not follow that the nation will be wholly destitute of intellectual power. The common business of life, which must necessarily be performed by each individual or family for themselves, will call forth some amount of intelligence and practical ability, within a certain narrow range of ideas. There may be a select class of savants who cultivate science with a view to its physical uses or for the pleasure of the pursuit. There will be a bureaucracy, and persons in training for the bureaucracy, who will be taught at least some empirical maxims of government and public administration. There may be, and often has been, a systematic organization of the best mental power in the country in some special direction (commonly military) to promote the grandeur of the despot. But the public at large remain without information and without interest on all greater matters of practice; or, if they have any knowledge of them, it is but a dilettante knowledge, like that which people have of the mechanical arts who have never handled a tool. Nor is it only in their intelligence that they suffer. Their moral capacities are equally stunted. Wherever the sphere of action of human beings is artificially circumscribed, their sentiments are narrowed and dwarfed in the same proportion. The food of feeling is action; even domestic affection lives upon voluntary good offices. Let a person have nothing to do for his country, and he will not care for it. It has been said of old that in a despotism there is at most but one patriot, the despot himself; and the saying rests on a just appreciation of the effects of absolute subjection even to a good and wise master. Religion remains; and here, at least, it may be thought, is an agency that may be relied on for lifting men's eyes and minds above the dust at their feet. But religion, even supposing it to escape perversion for the purposes of despotism, ceases in these circumstances to be a social concern, and narrows into a personal affair between an individual and his Maker, in which the issue at stake is but his private salvation. Religion in this shape is quite consistent with the most selfish and contracted egoism, and identifies the votary as little in feeling with the rest of his kind as sensuality itself.

A good despotism means a government in which, so far as depends on the despot, there is no positive oppression by officers of state, but in which all the collective interests of the people are managed for them, all the thinking that has relation to collective interests done for them, and in which their minds are formed by, and consenting to, this abdication of their own energies. Leaving things to the government, like leaving them to Providence, is synonymous with caring nothing about them, and accepting their results, when disagreeable, as visitations of Nature. With the exception, therefore, of a few studious men who take an intellectual interest in speculation for its own sake, the intelligence and sentiments of the whole people are given up to the material interests, and when these are provided for, to the amusement and ornamentation of private life. But to say this is to say, if the whole testimony of history is worth any thing, that the era of national decline has arrived; that is, if the nation had ever attained any thing to decline from. If it has never risen above the condition of an Oriental people, in that condition it continues to stagnate; but if, like Greece or Rome, it had realized any thing higher, through the energy, patriotism, and enlargement of mind, which, as national qualities, are the fruits solely of freedom, it relapses in a few generations into the Oriental state. And that state does not mean stupid tranquillity, with security against change for the worse; it often means being overrun, conquered, and reduced to domestic slavery either by a stronger despot, or by the nearest barbarous people who retain along with their savage rudeness the energies of freedom.

Such are not merely the natural tendencies, but the inherent necessities of despotic government; from which there is no outlet, unless in so far as the despotism consents not to be despotism; in so far as the supposed good despot abstains from exercising his power, and, though holding it in reserve, allows the general business of government to go on as if the people really governed themselves. However little probable it may be, we may imagine a despot observing many of the rules and restraints of constitutional government. He might allow such freedom of the press and of discussion as would enable a public opinion to form and express itself on national affairs. He might suffer local interests to be managed, without the interference of authority, by the people themselves. He might even surround himself with a council or councils of government, freely chosen by the whole or some portion of the nation, retaining in his own hands the power of taxation, and the supreme legislative as well as executive authority. Were he to act thus, and so far abdicate as a despot, he would do away with a considerable part of the evils characteristic of despotism. Political activity and capacity for public affairs would no longer be prevented from growing up in the body of the nation, and a public opinion would form itself, not the mere echo of the government. But such improvement would be the beginning of new difficulties. This public opinion, independent of the monarch's dictation, must be either with him or against him; if not the one, it will be the other. All governments must displease many persons, and these having now regular organs, and being able to express their sentiments, opinions adverse to the measures of government would often be expressed. What is the monarch to do when these unfavorable opinions happen to be in the majority? Is he to alter his course? Is he to defer to the nation? If so, he is no longer a despot, but a constitutional king; an organ or first minister of the people, distinguished only by being irremovable. If not, he must either put down opposition by his despotic power, or there will arise a permanent antagonism between the people and one man, which can have but one possible ending. Not even a religious principle of passive obedience and "right divine" would long ward off the natural consequences of such a position. The monarch would have to succumb, and conform to the conditions of constitutional royalty, or give place to some one who would. The despotism, being thus chiefly nominal, would possess few of the advantages supposed to belong to absolute monarchy, while it would realize in a very imperfect degree those of a free government, since, however great an amount of liberty the citizens might practically enjoy, they could never forget that they held it on sufferance, and by a concession

which, under the existing constitution of the state might at any moment be resumed; that they were legally slaves, though of a prudent or indulgent master.

It is not much to be wondered at if impatient or disappointed reformers, groaning under the impediments opposed to the most salutary public improvements by the ignorance, the indifference, the untractableness, the perverse obstinacy of a people, and the corrupt combinations of selfish private interests, armed with the powerful weapons afforded by free institutions, should at times sigh for a strong hand to bear down all these obstacles, and compel a recalcitrant people to be better governed. But (setting aside the fact that for one despot who now and then reforms an abuse, there are ninety-nine who do nothing but create them) those who look in any such direction for the realization of their hopes leave out of the idea of good government its principal element, the improvement of the people themselves. One of the benefits of freedom is that under it the ruler can not pass by the people's minds, and amend their affairs for them without amending them. If it were possible for the people to be well governed in spite of themselves, their good government would last no longer than the freedom of a people usually lasts who have been liberated by foreign arms without their own co-operation. It is true, a despot may educate the people, and to do so really would be the best apology for his despotism. But any education which aims at making human beings other than machines, in the long run makes them claim to have the control of their own actions. The leaders of French philosophy in the eighteenth century had been educated by the Jesuits. Even Jesuit education, it seems, was sufficiently real to call forth the appetite for freedom. Whatever invigorates the faculties, in however small a measure, creates an increased desire for their more unimpeded exercise; and a popular education is a failure if it educates the people for any state but that which it will certainly induce them to desire, and most probably to demand.

I am far from condemning, in cases of extreme exigency, the assumption of absolute power in the form of a temporary dictatorship. Free nations have, in times of old, conferred such power by their own choice, as a necessary medicine for diseases of the body politic which could not be got rid of by less violent means. But its acceptance, even for a time strictly limited, can only be excused, if, like Solon or Pittacus, the dictator employs the whole power he assumes in removing the obstacles which debar the nation from the enjoyment of freedom. A good despotism is an altogether false ideal, which practically (except as a means to some temporary purpose) becomes the most senseless and dangerous of chimeras. Evil for evil, a good despotism, in a country at all advanced in civilization, is more noxious than a bad one, for it is far more relaxing and enervating to the thoughts, feelings, and energies of the people. The despotism of Augustus prepared the Romans for Tiberius. If the whole tone of their character had not first been prostrated by nearly two generations of that mild slavery, they would probably have had spirit enough left to rebel against the more odious one.

There is no difficulty in showing that the ideally best form of government is that in which the sovereignty, or supreme controlling power in the last resort, is vested in the entire aggregate of the community, every citizen not only having a voice in the exercise of that ultimate sovereignty, but being, at least occasionally, called on to take an actual part in the government by the personal discharge of some public function, local or general.

To test this proposition, it has to be examined in reference to the two branches into which, as pointed out in the last chapter, the inquiry into the goodness of a government conveniently divides itself, namely, how far it promotes the good management of the affairs of society by means of the existing faculties, moral, intellectual, and active, of its various members, and what is its effect in improving or

deteriorating those faculties.

The ideally best form of government, it is scarcely necessary to say, does not mean one which is practicable or eligible in all states of civilization, but the one which, in the circumstances in which it is practicable and eligible, is attended with the greatest amount of beneficial consequences, immediate and prospective. A completely popular government is the only polity which can make out any claim to this character. It is pre-eminent in both the departments between which the excellence of a political Constitution is divided. It is both more favorable to present good government, and promotes a better and higher form of national character than any other polity whatsoever.

Its superiority in reference to present well-being rests upon two principles, of as universal truth and applicability as any general propositions which can be laid down respecting human affairs. The first is, that the rights and interests of every or any person are only secure from being disregarded when the person interested is himself able, and habitually disposed to stand up for them. The second is, that the general prosperity attains a greater height, and is more widely diffused, in proportion to the amount and variety of the personal energies enlisted in promoting it.

Putting these two propositions into a shape more special to their present application—human beings are only secure from evil at the hands of others in proportion as they have the power of being, and are, self-protecting; and they only achieve a high degree of success in their struggle with Nature in proportion as they are self-dependent, relying on what they themselves can do, either separately or in concert, rather than on what others do for them.

The former proposition—that each is the only safe guardian of his own rights and interests—is one of those elementary maxims of prudence which every person capable of conducting his own affairs implicitly acts upon wherever he himself is interested. Many, indeed, have a great dislike to it as a political doctrine, and are fond of holding it up to obloquy as a doctrine of universal selfishness. To which we may answer, that whenever it ceases to be true that mankind, as a rule, prefer themselves to others, and those nearest to them to those more remote, from that moment Communism is not only practicable, but the only defensible form of society, and will, when that time arrives, be assuredly carried into effect. For my own part, not believing in universal selfishness, I have no difficulty in admitting that Communism would even now be practicable among the élite of mankind, and may become so among the rest. But as this opinion is any thing but popular with those defenders of existing institutions who find fault with the doctrine of the general predominance of self-interest, I am inclined to think they do in reality believe that most men consider themselves before other people. It is not, however, necessary to affirm even thus much in order to support the claim of all to participate in the sovereign power. We need not suppose that when power resides in an exclusive class, that class will knowingly and deliberately sacrifice the other classes to themselves: it suffices that, in the absence of its natural defenders, the interest of the excluded is always in danger of being overlooked; and, when looked at, is seen with very different eyes from those of the persons whom it directly concerns. In this country, for example, what are called the working-classes may be considered as excluded from all direct participation in the government. I do not believe that the classes who do participate in it have in general any intention of sacrificing the working classes to themselves. They once had that intention; witness the persevering attempts so long made to keep down wages by law. But in the present day, their ordinary disposition is the very opposite: they willingly make considerable sacrifices, especially of their pecuniary interest, for the benefit of the working classes, and err rather by too lavish and

indiscriminating beneficence; nor do I believe that any rulers in history have been actuated by a more sincere desire to do their duty towards the poorer portion of their countrymen. Yet does Parliament, or almost any of the members composing it, ever for an instant look at any question with the eyes of a working man? When a subject arises in which the laborers as such have an interest, is it regarded from any point of view but that of the employers of labor? I do not say that the working men's view of these questions is in general nearer to the truth than the other, but it is sometimes quite as near; and in any case it ought to be respectfully listened to, instead of being, as it is, not merely turned away from, but ignored. On the question of strikes, for instance, it is doubtful if there is so much as one among the leading members of either House who is not firmly convinced that the reason of the matter is unqualifiedly on the side of the masters, and that the men's view of it is simply absurd. Those who have studied the question know well how far this is from being the case, and in how different, and how infinitely less superficial a manner the point would have to be argued, if the classes who strike were able to make themselves heard in Parliament.

It is an inherent condition of human affairs that no intention, however sincere, of protecting the interests of others can make it safe or salutary to tie up their own hands. Still more obviously true is it that by their own hands only can any positive and durable improvement of their circumstances in life be worked out. Through the joint influence of these two principles, all free communities have both been more exempt from social injustice and crime, and have attained more brilliant prosperity than any others, or than they themselves after they lost their freedom. Contrast the free states of the world, while their freedom lasted, with the cotemporary subjects of monarchical or oligarchical despotism: the Greek cities with the Persian satrapies; the Italian republics and the free towns of Flanders and Germany, with the feudal monarchies of Europe; Switzerland, Holland, and England, with Austria or ante-revolutionary France. Their superior prosperity was too obvious ever to have been gainsayed; while their superiority in good government and social relations is proved by the prosperity, and is manifest besides in every page of history. If we compare, not one age with another, but the different governments which coexisted in the same age, no amount of disorder which exaggeration itself can pretend to have existed amidst the publicity of the free states can be compared for a moment with the contemptuous trampling upon the mass of the people which pervaded the whole life of the monarchical countries, or the disgusting individual tyranny which was of more than daily occurrence under the systems of plunder which they called fiscal arrangements, and in the secrecy of their frightful courts of justice.

It must be acknowledged that the benefits of freedom, so far as they have hitherto been enjoyed, were obtained by the extension of its privileges to a part only of the community; and that a government in which they are extended impartially to all is a desideratum still unrealized. But, though every approach to this has an independent value, and in many cases more than an approach could not, in the existing state of general improvement, be made, the participation of all in these benefits is the ideally perfect conception of free government. In proportion as any, no matter who, are excluded from it, the interests of the excluded are left without the guaranty accorded to the rest, and they themselves have less scope and encouragement than they might otherwise have to that exertion of their energies for the good of themselves and of the community, to which the general prosperity is always proportioned.

Thus stands the case as regards present well-being—the good management of the affairs of the existing generation. If we now pass to the influence of the form of government upon character, we shall find the superiority of popular government over every other to be, if possible, still more decided and indisputable.

This question really depends upon a still more fundamental one, viz., which of two common types of character, for the general good of humanity, it is most desirable should predominate—the active or the passive type; that which struggles against evils, or that which endures them; that which bends to circumstances, or that which endeavours to make circumstances bend to itself.

The commonplaces of moralists and the general sympathies of mankind are in favor of the passive type. Energetic characters may be admired, but the acquiescent and submissive are those which most men personally prefer. The passiveness of our neighbors increases our sense of security, and plays into the hands of our wilfulness. Passive characters, if we do not happen to need their activity, seem an obstruction the less in our own path. A contented character is not a dangerous rival. Yet nothing is more certain than that improvement in human affairs is wholly the work of the uncontented characters; and, moreover, that it is much easier for an active mind to acquire the virtues of patience, than for a passive one to assume those of energy.

Of the three varieties of mental excellence, intellectual, practical, and moral, there never could be any doubt in regard to the first two, which side had the advantage. All intellectual superiority is the fruit of active effort. Enterprise, the desire to keep moving, to be trying and accomplishing new things for our own benefit or that of others, is the parent even of speculative, and much more of practical, talent. The intellectual culture compatible with the other type is of that feeble and vague description which belongs to a mind that stops at amusement or at simple contemplation. The test of real and vigorous thinking, the thinking which ascertains truths instead of dreaming dreams, is successful application to practice. Where that purpose does not exist, to give definiteness, precision, and an intelligible meaning to thought, it generates nothing better than the mystical metaphysics of the Pythagoreans or the Veds. With respect to practical improvement, the case is still more evident. The character which improves human life is that which struggles with natural powers and tendencies, not that which gives way to them. The self-benefiting qualities are all on the side of the active and energetic character, and the habits and conduct which promote the advantage of each individual member of the community must be at least a part of those which conduce most in the end to the advancement of the community as a whole.

But on the point of moral preferability, there seems at first sight to be room for doubt. I am not referring to the religious feeling which has so generally existed in favor of the inactive character, as being more in harmony with the submission due to the divine will. Christianity, as well as other religions, has fostered this sentiment; but it is the prerogative of Christianity, as regards this and many other perversions, that it is able to throw them off. Abstractedly from religious considerations, a passive character, which yields to obstacles instead of striving to overcome them, may not indeed be very useful to others, no more than to itself, but it might be expected to be at least inoffensive. Contentment is always counted among the moral virtues. But it is a complete error to suppose that contentment is necessarily or naturally attendant on passivity of character; and useless it is, the moral consequences are mischievous. Where there exists a desire for advantages not possessed, the mind which does not potentially possess them by means of its own energies is apt to look with hatred and malice on those who do. The person bestirring himself with hopeful prospects to improve his circumstances is the one who feels good-will towards others engaged in, or who have succeeded in the same pursuit. And where the majority are so engaged, those who do not attain the object have had the tone given to their feelings by the general habit of the country, and ascribe their failure to want of effort or opportunity, or to their personal ill luck. But those who, while desiring what others possess, put no energy into striving for it, are either incessantly grumbling that fortune does not do for them what they do not attempt to do for themselves, or overflowing with envy and ill-will

towards those who possess what they would like to have...

Now there can be no kind of doubt that the passive type of character is favored by the government of one or a few, and the active self-helping type by that of the many. Irresponsible rulers need the quiescence of the ruled more than they need any activity but that which they can compel. Submissiveness to the prescriptions of men as necessities of nature is the lesson inculcated by all governments upon those who are wholly without participation in them. The will of superiors, and the law as the will of superiors, must be passively yielded to. But no men are mere instruments or materials in the hands of their rulers who have will, or spirit, or a spring of internal activity in the rest of their proceedings, and any manifestation of these qualities, instead of receiving encouragement from despots, has to get itself forgiven by them. Even when irresponsible rulers are not sufficiently conscious of danger from the mental activity of their subjects to be desirous of repressing it, the position itself is a repression. Endeavour is even more effectually restrained by the certainty of its impotence than by any positive discouragement. Between subjection to the will of others and the virtues of self-help and self-government there is a natural incompatibility. This is more or less complete according as the bondage is strained or relaxed. Rulers differ very much in the length to which they carry the control of the free agency of their subjects, or the supersession of it by managing their business for them. But the difference is in degree, not in principle; and the best despots often go the greatest lengths in chaining up the free agency of their subjects. A bad despot, when his own personal indulgences have been provided for, may sometimes be willing to let the people alone; but a good despot insists on doing them good by making them do their own business in a better way than they themselves know of. The regulations which restricted to fixed processes all the leading branches of French manufactures were the work of the great Colbert.

Very different is the state of the human faculties where a human being feels himself under no other external restraint than the necessities of nature, or mandates of society which he has his share in imposing, and which it is open to him, if he thinks them wrong, publicly to dissent from, and exert himself actively to get altered. No doubt, under a government partially popular, this freedom may be exercised even by those who are not partakers in the full privileges of citizenship; but it is a great additional stimulus to any one's self-help and self-reliance when he starts from even ground, and has not to feel that his success depends on the impression he can make upon the sentiments and dispositions of a body of whom he is not one. It is a great discouragement to an individual, and a still greater one to a class, to be left out of the constitution; to be reduced to plead from outside the door to the arbiters of their destiny, not taken into consultation within. The maximum of the invigorating effect of freedom upon the character is only obtained when the person acted on either is, or is looking forward to becoming, a citizen as fully privileged as any other. What is still more important than even this matter of feeling is the practical discipline which the character obtains from the occasional demand made upon the citizens to exercise, for a time and in their turn, some social function. It is not sufficiently considered how little there is in most men's ordinary life to give any largeness either to their conceptions or to their sentiments. Their work is a routine; not a labor of love, but of self-interest in the most elementary form, the satisfaction of daily wants; neither the thing done, nor the process of doing it, introduces the mind to thoughts or feelings extending beyond individuals; if instructive books are within their reach, there is no stimulus to read them; and, in most cases, the individual has no access to any person of cultivation much superior to his own. Giving him something to do for the public supplies, in a measure, all these deficiencies. If circumstances allow the amount of public duty assigned him to be considerable, it makes him an educated man. Notwithstanding the defects of the social system and moral ideas of antiquity, the

practice of the dicastery and the ecclesia raised the intellectual standard of an average Athenian citizen far beyond any thing of which there is yet an example in any other mass of men, ancient or modern. The proofs of this are apparent in every page of our great historian of Greece; but we need scarcely look further than to the high quality of the addresses which their great orators deemed best calculated to act with effect on their understanding and will. A benefit of the same kind, though far less in degree, is produced on Englishmen of the lower middle class by their liability to be placed on juries and to serve parish offices, which, though it does not occur to so many, nor is so continuous, nor introduces them to so great a variety of elevated considerations as to admit of comparison with the public education which every citizen of Athens obtained from her democratic institutions, makes them nevertheless very different beings, in range of ideas and development of faculties, from those who have done nothing in their lives but drive a quill, or sell goods over a counter. Still more salutary is the moral part of the instruction afforded by the participation of the private citizen, if even rarely, in public functions. He is called upon, while so engaged, to weigh interests not his own; to be guided, in case of conflicting claims, by another rule than his private partialities; to apply, at every turn, principles and maxims which have for their reason of existence the general good; and he usually finds associated with him in the same work minds more familiarized than his own with these ideas and operations, whose study it will be to supply reasons to his understanding, and stimulation to his feeling for the general interest. He is made to feel himself one of the public, and whatever is their interest to be his interest. Where this school of public spirit does not exist, scarcely any sense is entertained that private persons, in no eminent social situation, owe any duties to society except to obey the laws and submit to the government. There is no unselfish sentiment of identification with the public. Every thought or feeling, either of interest or of duty, is absorbed in the individual and in the family. The man never thinks of any collective interest, of any objects to be pursued jointly with others, but only in competition with them, and in some measure at their expense. A neighbor, not being an ally or an associate, since he is never engaged in any common undertaking for joint benefit, is therefore only a rival. Thus even private morality suffers, while public is actually extinct. Were this the universal and only possible state of things, the utmost aspirations of the lawgiver or the moralist could only stretch to make the bulk of the community a flock of sheep innocently nibbling the grass side by side.

From these accumulated considerations, it is evident that the only government which can fully satisfy all the exigencies of the social state is one in which the whole people participate; that any participation, even in the smallest public function, is useful; that the participation should every where be as great as the general degree of improvement of the community will allow; and that nothing less can be ultimately desirable than the admission of all to a share in the sovereign power of the state. But since all can not, in a community exceeding a single small town, participate personally in any but some very minor portions of the public business, it follows that the ideal type of a perfect government must be representative.

UNIT THREE: BALANCING NATURAL RIGHTS, HUMAN NATURE, AND THE STATE: CONTRACTS(?)

The Social Contract¹ or **political contract** is a theory or model, originating during the Age of Enlightenment, that typically addresses the questions of the origin of society and the legitimacy of the authority of the state over the individual. Social contract arguments typically posit that individuals have consented, either explicitly or tacitly, to surrender some of their freedoms and submit to the authority of the ruler or magistrate (or to the decision of a majority), in exchange for protection of their remaining rights. The question of the relation between natural and legal rights, therefore, is often an aspect of social contract theory. The term takes its name from *The Social Contract (Du contrat social ou Principes du droit politique)*, a 1762 book by Jean-Jacques Rousseau that discussed this concept.

Although the antecedents of social contract theory are found in antiquity, in Greek and Stoic philosophy and Roman and Canon Law, the heyday of the social contract was the mid-17th to early 19th centuries, when it emerged as the leading doctrine of political legitimacy. The starting point for most social contract theories is an examination of the human condition absent any political order that Thomas Hobbes termed the "state of nature". In this condition, individuals' actions are bound only by their personal power and conscience. From this shared starting point, social contract theorists seek to demonstrate, in different ways, why a rational individual would voluntarily consent to give up their natural freedom to obtain the benefits of political order.

Hugo Grotius (1625), Thomas Hobbes (1651), Samuel Pufendorf (1673), John Locke (1689), Jean-Jacques Rousseau (1762), and Immanuel Kant (1797) are among the most prominent of 17th- and 18th-century theorists of social contract and natural rights. Each solved the problem of political authority in a different way. Grotius posited that individual human beings had natural rights. Thomas Hobbes famously said that in a "state of nature", human life would be "solitary, poor, nasty, brutish and short". In the absence of political order and law, everyone would have unlimited natural freedoms, including the "right to all things" and thus the freedom to plunder, rape, and murder; there would be an endless "war of all against all" (*bellum omnium contra omnes*). To avoid this, free men contract with each other to establish political community, i.e. civil society, through a social contract in which they all gain security in return for subjecting themselves to an absolute sovereign, one man or an assembly of men. Though the sovereign's edicts may well be arbitrary and tyrannical, Hobbes saw absolute government as the only alternative to the terrifying anarchy of a state of nature. Hobbes asserted that humans consent to abdicate their rights in favor of the absolute authority of government (whether monarchical or parliamentary). Pufendorf disputed Hobbes's equation of a state of nature with war.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Social contract. (2017, July 28). In Wikipedia, The Free Encyclopedia. Retrieved 17:52, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Social_contract&oldid=792812484

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Alternatively, John Locke and Jean-Jacques Rousseau have argued that we gain civil rights in return for accepting the obligation to respect and defend the rights of others, giving up some freedoms to do so. The central assertion of social contract approaches is that law and political order are not natural, but are instead human creations. The social contract and the political order it creates are simply the means towards an end—the benefit of the individuals involved—and legitimate only to the extent that they fulfill their part of the agreement. According to Hobbes (in whose view government is not a party to the original contract) citizens are not obligated to submit to the government when it is too weak to act effectively to suppress factionalism and civil unrest. According to other social contract theorists, when the government fails to secure their natural rights (Locke) or satisfy the best interests of society (called the "general will" in Rousseau), citizens can withdraw their obligation to obey, or change the leadership through elections or other means including, when necessary, violence.

Locke believed that natural rights were inalienable, and that the rule of God therefore superseded government authority, and Rousseau believed that democracy (self-rule) was the best way of ensuring the general welfare while maintaining individual freedom under the rule of law. The Lockean concept of the social contract was invoked in the United States Declaration of Independence. Social contract theories were eclipsed in the 19th century in favor of utilitarianism, Hegelianism, and Marxism, and were revived in the 20th century, notably in the form of a thought experiment by John Rawls.

History

The concept of the social contract is posed by Glaucon, as described by Plato in *The Republic*, Book II.

They say that to do injustice is, by nature, good; to suffer injustice, evil; but that the evil is greater than the good. And so when men have both done and suffered injustice and have had experience of both, not being able to avoid the one and obtain the other, they think that they had better agree among themselves to have neither; hence there arise laws and mutual covenants; and that which is ordained by law is termed by them lawful and just. This they affirm to be the origin and nature of justice;—it is a mean or compromise, between the best of all, which is to do injustice and not be punished, and the worst of all, which is to suffer injustice without the power of retaliation; and justice, being at a middle point between the two, is tolerated not as a good, but as the lesser evil, and honoured by reason of the inability of men to do injustice. For no man who is worthy to be called a man would ever submit to such an agreement if he were able to resist; he would be mad if he did. Such is the received account, Socrates, of the nature and origin of justice.

The social contract theory also appears in *Crito*, another dialogue from Plato.

Classical thought

Social contract formulations are preserved in many of the world's oldest records. The Buddhist text of the second century BCE, Mahāvastu, recounts the legend of Mahasammata. The story goes as follows:

In the early days of the cosmic cycle mankind lived on an immaterial plane, dancing on air in a sort of fairyland, where there was no need of food or clothing, and no private property, family, government or laws. Then gradually the process of cosmic decay began its work, and mankind became earthbound, and

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felt the need of food and shelter. As men lost their primeval glory, distinctions of class arose, and they entered into agreements with one another, accepting the institution of private property and the family. With this theft, murder, adultery, and other crime began, and so the people met together and decided to appoint one man from among them to maintain order in return for a share of the produce of their fields and herds. He was called "the Great Chosen One" (Mahasammata), and he received the title of raja because he pleased the people.

In his rock edicts, the Buddhist king Asoka was said to have argued for a broad and far-reaching social contract. The Buddhist *vinaya* also reflects social contracts expected of the monks; one such instance is when the people of a certain town complained about monks felling saka trees, the Buddha tells his monks that they must stop and give way to social norms.

Epicurus seems to have had a strong sense of social contract, with justice and law being rooted in mutual agreement and advantage, as evidenced by these lines, among others, from his *Principal Doctrines* (see also Epicurean ethics):

31. Natural justice is a pledge of reciprocal benefit, to prevent one man from harming or being harmed by another.

32. Those animals which are incapable of making binding agreements with one another not to inflict nor suffer harm are without either justice or injustice; and likewise for those peoples who either could not or would not form binding agreements not to inflict nor suffer harm.

33. There never was such a thing as absolute justice, but only agreements made in mutual dealings among men in whatever places at various times providing against the infliction or suffering of harm.

Renaissance developments

Quentin Skinner has argued that several critical modern innovations in contract theory are found in the writings from French Calvinists and Huguenots, whose work in turn was invoked by writers in the Low Countries who objected to their subjection to Spain and, later still, by Catholics in England. Francisco Suárez (1548–1617), from the School of Salamanca, might be considered an early theorist of the social contract, theorizing natural law in an attempt to limit the divine right of absolute monarchy. All of these groups were led to articulate notions of popular sovereignty by means of a social covenant or contract, and all of these arguments began with proto-"state of nature" arguments, to the effect that the basis of politics is that everyone is by nature free of subjection to any government.

These arguments, however, relied on a corporatist theory found in Roman law, according to which "a populus" can exist as a distinct legal entity. Thus, these arguments held that a group of people can join a government because it has the capacity to exercise a single will and make decisions with a single voice in the absence of sovereign authority—a notion rejected by Hobbes and later contract theorists.

Philosophers

Hugo Grotius (1625)

In the early 17th century, Grotius (1583–1645) introduced the modern idea that individuals had *natural rights* that enabled self-preservation, employing this idea as a basis for moral consensus in the face of religious diversity and the rise of natural science. He seeks to find a parsimonious basis for a moral beginning for society, a kind of natural law that everyone could accept. He goes so far as to say in his *On the Law of War and Peace* that even if we were to concede what we cannot concede without the utmost wickedness, namely that there is no God, these laws would still hold.

The idea was considered incendiary since it suggested that power can ultimately go back to the individuals if the political society that they have set up forfeits the purpose for which it was originally established, which is to preserve themselves. In other words, individual persons are sovereign. Grotius says that the people are *sui juris* (under their own jurisdiction). People have rights as human beings, but there is a delineation of those rights because of what is possible for everyone to accept morally; everyone has to accept that each person as an individual is entitled to try to preserve himself. Each person should, therefore, avoid doing harm to, or interfering with, another, and any breach of these rights should be punished.

Thomas Hobbes' Leviathan (1651)

The first modern philosopher to articulate a detailed contract theory was Thomas Hobbes (1588–1679). According to Hobbes, the lives of individuals in the state of nature were "solitary, poor, nasty, brutish and short", a state in which self-interest and the absence of rights and contracts prevented the "social", or society. Life was "anarchic" (without leadership or the concept of sovereignty). Individuals in the state of nature were apolitical and asocial. This state of nature is followed by the social contract.

The social contract was an "occurrence" during which individuals came together and ceded some of their individual rights so that others would cede theirs (e.g. person A gives up his/her right to kill person B if person B does the same). This resulted in the establishment of the state, a sovereign entity like the individuals now under its rule used to be, which would create laws to regulate social interactions. Human life was thus no longer "a war of all against all".

The state system, which grew out of the social contract, was, however, also anarchic (without leadership). Just as the individuals in the state of nature had been sovereigns and thus guided by self-interest and the absence of rights, so states now acted in their self-interest in competition with each other. Just like the state of nature, states were thus bound to be in conflict because there was no sovereign over and above the state (i.e. more powerful) capable of imposing some system such as social-contract laws on everyone by force. Indeed, Hobbes' work helped to serve as a basis for the realism theories of international relations, advanced by E. H. Carr and Hans Morgenthau.

Hobbes wrote in *Leviathan (book)* that humans ("we") need the "terroure of some Power" otherwise humans will not heed the law of reciprocity, i.e. "(in summe) doing to others, as wee would be done to".

John Locke's Second Treatise of Government (1689)

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John Locke's conception of the social contract differed from Hobbes' in several fundamental ways, retaining only the central notion that persons in a state of nature would willingly come together to form a state. Locke believed that individuals in a state of nature would be bound morally, by the Law of Nature, not to harm each other in their lives or possessions, but without government to defend them against those seeking to injure or enslave them, people would have no security in their rights and would live in fear. Locke argued that individuals would agree to form a state that would provide a "neutral judge", acting to protect the lives, liberty, and property of those who lived within it.

While Hobbes argued for near-absolute authority, Locke argued for inviolate freedom under law in his *Second Treatise of Government*. Locke argued that a government's legitimacy comes from the citizens' delegation to the government of their absolute right of violence (reserving the inalienable right of self-defense or "self-preservation"), along with elements of other rights (e.g. property will be liable to taxation) as necessary to achieve the goal of security through granting the state a monopoly of violence, whereby the government, as an impartial judge, may use the collective force of the populace to administer and enforce the law, rather than each man acting as his own judge, jury, and executioner—the condition in the state of nature.

Jean-Jacques Rousseau's Du contrat social (1762)

Jean-Jacques Rousseau (1712–1778), in his influential 1762 treatise *The Social Contract*, outlined a different version of social contract theory, as the foundations of political rights based on unlimited popular sovereignty. Although Rousseau wrote that the British were perhaps at the time the freest people on earth, he did not approve of their representative government. Rousseau believed that liberty was possible only where there was direct rule by the people as a whole in lawmaking, where popular sovereignty was indivisible and inalienable. But he also maintained that the people often did not know their "real will", and that a proper society would not occur until a great leader ("the Legislator") arose to change the values and customs of the people, likely through the strategic use of religion.

Rousseau's political theory differs in important ways from that of Locke and Hobbes. Rousseau's collectivism is most evident in his development of the "luminous conception" (which he credited to Diderot) of the general will. Rousseau argues a citizen cannot pursue his true interest by being an egoist but must instead subordinate himself to the law created by the citizenry acting as a collective.

[The social contract] can be reduced to the following terms: *Each of us puts his person and all his power in common under the supreme direction of the general will; and in a body we receive each member as an indivisible part of the whole.*

Rousseau's striking phrase that man must "be forced to be free" should be understood this way: since the indivisible and inalienable popular sovereignty decides what is good for the whole, then if an individual lapses back into his ordinary egoism and disobeys the law, he will be forced to listen to what was decided when the people acted as a collectivity (i.e. as citizens). Thus, the law, inasmuch as it is created by the people acting as a body, is not a limitation of individual freedom, but rather its expression.

Thus, enforcement of laws, including criminal law, is not a restriction on individual liberty: the individual, as a citizen, explicitly agreed to be constrained if, as a private individual, he did not respect

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his own will as formulated in the general will. Because laws represent the restraints of civil freedom, they represent the leap made from humans in the state of nature into civil society. In this sense, the law is a civilizing force, and therefore Rousseau believed that the laws that govern a people helped to mold their character.

Pierre-Joseph Proudhon's individualist social contract (1851)

While Rousseau's social contract is based on popular sovereignty and not on individual sovereignty, there are other theories espoused by individualists, libertarians, and anarchists that do not involve agreeing to anything more than negative rights and creates only a limited state, if any.

Pierre-Joseph Proudhon (1809–1865) advocated a conception of social contract that did not involve an individual surrendering sovereignty to others. According to him, the social contract was not between individuals and the state, but rather among individuals who refrain from coercing or governing each other, each one maintaining complete sovereignty upon him- or herself:

What really is the Social Contract? An agreement of the citizen with the government? No, that would mean but the continuation of [Rousseau's] idea. The social contract is an agreement of man with man; an agreement from which must result what we call society. In this, the notion of commutative justice, first brought forward by the primitive fact of exchange, ... is substituted for that of distributive justice ... Translating these words, contract, commutative justice, which are the language of the law, into the language of business, and you have commerce, that is to say, in its highest significance, the act by which man and man declare themselves essentially producers, and abdicate all pretension to govern each other.

— *Pierre-Joseph Proudhon, General Idea of the Revolution in the Nineteenth Century (1851)*

John Rawls' Theory of Justice (1971)

Building on the work of Immanuel Kant with its presumption of limits on the state, John Rawls (1921–2002), in *A Theory of Justice* (1971), proposed a contractarian approach whereby rational people in a hypothetical "original position" would set aside their individual preferences and capacities under a "veil of ignorance" and agree to certain general principles of justice and legal organization. This idea is also used as a game-theoretical formalization of the notion of fairness.

David Gauthier's Morals By Agreement (1986)

David Gauthier "neo-Hobbesian" theory argues that cooperation between two independent and self-interested parties is indeed possible, especially when it comes to understanding morality and politics. Gauthier notably points out the advantages of cooperation between two parties when it comes to the challenge of the prisoner's dilemma. He proposes that, if two parties were to stick to the original agreed-upon arrangement and morals outlined by the contract, they would both experience an optimal result. In his model for the social contract, factors including trust, rationality, and self-interest keep each party honest and dissuade them from breaking the rules.

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Philip Pettit's Republicanism (1997)

Philip Pettit (b. 1945) has argued, in *Republicanism: A Theory of Freedom and Government* (1997), that the theory of social contract, classically based on the consent of the governed, should be modified. Instead of arguing for explicit consent, which can always be manufactured, Pettit argues that the absence of an effective rebellion against it is a contract's only legitimacy.

Critical theories

Consent of the governed

An early critic of social contract theory was Rousseau's friend, the philosopher David Hume, who in 1742 published an essay "Of Civil Liberty". The second part of this essay, entitled "Of the Original Contract", stresses that the concept of a "social contract" is a convenient fiction:

As no party, in the present age can well support itself without a philosophical or speculative system of principles annexed to its political or practical one; we accordingly find that each of the factions into which this nation is divided has reared up a fabric of the former kind, in order to protect and cover that scheme of actions which it pursues. ... The one party [defenders of the absolute and divine right of kings, or Tories], by tracing up government to the DEITY, endeavor to render it so sacred and inviolate that it must be little less than sacrilege, however tyrannical it may become, to touch or invade it in the smallest article. The other party [the Whigs, or believers in constitutional monarchy], by founding government altogether on the consent of the PEOPLE suppose that there is a kind of original contract by which the subjects have tacitly reserved the power of resisting their sovereign, whenever they find themselves aggrieved by that authority with which they have for certain purposes voluntarily entrusted him.

— *David Hume, "On Civil Liberty" [II.XII.1]*

Hume argued that consent of the governed was the ideal foundation on which a government should rest, but that it had not actually occurred this way in general.

My intention here is not to exclude the consent of the people from being one just foundation of government where it has place. It is surely the best and most sacred of any. I only contend that it has very seldom had place in any degree and never almost in its full extent. And that therefore some other foundation of government must also be admitted.

— *Ibid II.XII.20*

Natural law and constitutionalism

Legal scholar Randy Barnett has argued that, while presence in the territory of a society may be necessary for consent, this does not constitute consent to *all* rules the society might make regardless of their content. A second condition of consent is that the rules be consistent with underlying principles of justice and the protection of natural and social rights, and have procedures for effective protection of those rights (or liberties). This has also been discussed by O. A. Brownson, who argued that, in a sense, three "constitutions" are involved: first, the *constitution of nature* that includes all of what the Founders

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called "natural law"; second, the *constitution of society*, an unwritten and commonly understood set of rules for the society formed by a social contract before it establishes a government, by which it does establish the third, a *constitution of government*. To consent, a necessary condition is that the rules be *constitutional* in that sense.

Tacit consent

The theory of an implicit social contract holds that by remaining in the territory controlled by some society, which usually has a government, people give consent to join that society and be governed by its government, if any. This consent is what gives legitimacy to such a government.

Other writers have argued that consent to join the society is not necessarily consent to its government. For that, the government must be set up according to a constitution of government that is consistent with the superior unwritten constitutions of nature and society.

Voluntarism

According to the will theory of contract, a contract is not presumed valid unless all parties voluntarily agree to it, either tacitly or explicitly, without coercion. Lysander Spooner, a 19th-century lawyer and staunch supporter of a right of contract between individuals, argued in his essay *No Treason* that a supposed social contract cannot be used to justify governmental actions such as taxation because government will initiate force against anyone who does not wish to enter into such a contract. As a result, he maintains that such an agreement is not voluntary and therefore cannot be considered a legitimate contract at all.

Modern Anglo-American law, like European civil law, is based on a will theory of contract, according to which all terms of a contract are binding on the parties because they chose those terms for themselves. This was less true when Hobbes wrote *Leviathan*; at that time more importance was attached to consideration, meaning a mutual exchange of benefits necessary to the formation of a valid contract, and most contracts had implicit terms that arose from the nature of the contractual relationship rather than from the choices made by the parties. Accordingly, it has been argued that social contract theory is more consistent with the contract law of the time of Hobbes and Locke than with the contract law of our time, and that certain features in the social contract which seem anomalous to us, such as the belief that we are bound by a contract formulated by our distant ancestors, would not have seemed as strange to Hobbes' contemporaries as they do to us.

13 Second Treatise on Government (John Locke)

John Locke¹ FRS (/ˈlɒk/; 29 August 1632 – 28 October 1704) was an English philosopher and physician, widely regarded as one of the most influential of Enlightenment thinkers and commonly known as the "Father of Liberalism". Considered one of the first of the British empiricists, following the tradition of Sir Francis Bacon, he is equally important to social contract theory. His work greatly affected the development of epistemology and political philosophy. His writings influenced Voltaire and Jean-Jacques Rousseau, many Scottish Enlightenment thinkers, as well as the American revolutionaries. His contributions to classical republicanism and liberal theory are reflected in the United States Declaration of Independence.

Locke's theory of mind is often cited as the origin of modern conceptions of identity and the self, figuring prominently in the work of later philosophers such as David Hume, Rousseau, and Immanuel Kant. Locke was the first to define the self through a continuity of *consciousness*. He postulated that, at birth, the mind was a blank slate or *tabula rasa*. Contrary to Cartesian philosophy based on pre-existing concepts, he maintained that we are born without innate ideas, and that knowledge is instead determined only by experience derived from sense perception. This is now known as empiricism. An example of Locke's belief in Empiricism can be seen in his quote, "whatever I write, as soon as I discover it not to be true, my hand shall be the forwardest to throw it into the fire." This shows the ideology of science in his observations in that something must be capable of being tested repeatedly and that nothing is exempt from being disproven. Challenging the work of others, Locke is said to have established the method of introspection, or observing the emotions and behaviours of one's self.

*Second Treatise on Government*²

CHAPTER. I. AN ESSAY CONCERNING THE TRUE ORIGINAL, EXTENT AND END OF CIVIL GOVERNMENT

Sect. 1. It having been shewn in the foregoing discourse,

(1). That Adam had not, either by natural right of fatherhood, or by positive donation from God, any such authority over his children, or dominion over the world, as is pretended:

(2). That if he had, his heirs, yet, had no right to it:

(3). That if his heirs had, there being no law of nature nor positive law of God that determines which is the right heir in all cases that may arise, the right of succession, and consequently of bearing rule, could

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² John Locke, 1690.

not have been certainly determined:

(4). That if even that had been determined, yet the knowledge of which is the eldest line of Adam's posterity, being so long since utterly lost, that in the races of mankind and families of the world, there remains not to one above another, the least pretence to be the eldest house, and to have the right of inheritance:

All these premises having, as I think, been clearly made out, it is impossible that the rulers now on earth should make any benefit, or derive any the least shadow of authority from that, which is held to be the fountain of all power, Adam's private dominion and paternal jurisdiction; so that he that will not give just occasion to think that all government in the world is the product only of force and violence, and that men live together by no other rules but that of beasts, where the strongest carries it, and so lay a foundation for perpetual disorder and mischief, tumult, sedition and rebellion, (things that the followers of that hypothesis so loudly cry out against) must of necessity find out another rise of government, another original of political power, and another way of designing and knowing the persons that have it, than what Sir Robert Filmer hath taught us.

Sect. 2. To this purpose, I think it may not be amiss, to set down what I take to be political power; that the power of a MAGISTRATE over a subject may be distinguished from that of a FATHER over his children, a MASTER over his servant, a HUSBAND over his wife, and a LORD over his slave. All which distinct powers happening sometimes together in the same man, if he be considered under these different relations, it may help us to distinguish these powers one from wealth, a father of a family, and a captain of a galley.

Sect. 3. POLITICAL POWER, then, I take to be a RIGHT of making laws with penalties of death, and consequently all less penalties, for the regulating and preserving of property, and of employing the force of the community, in the execution of such laws, and in the defence of the commonwealth from foreign injury; and all this only for the public good.

CHAPTER. II. OF THE STATE OF NATURE.

Sect. 4. TO understand political power right, and derive it from its original, we must consider, what state all men are naturally in, and that is, a state of perfect freedom to order their actions, and dispose of their possessions and persons, as they think fit, within the bounds of the law of nature, without asking leave, or depending upon the will of any other man.

A state also of equality, wherein all the power and jurisdiction is reciprocal, no one having more than another; there being nothing more evident, than that creatures of the same species and rank, promiscuously born to all the same advantages of nature, and the use of the same faculties, should also be equal one amongst another without subordination or subjection, unless the lord and master of them all should, by any manifest declaration of his will, set one above another, and confer on him, by an evident and clear appointment, an undoubted right to dominion and sovereignty.

Sect. 5. This equality of men by nature, the judicious Hooker looks upon as so evident in itself, and beyond all question, that he makes it the foundation of that obligation to mutual love amongst men, on

which he builds the duties they owe one another, and from whence he derives the great maxims of justice and charity. His words are,

The like natural inducement hath brought men to know that it is no less their duty, to love others than themselves; for seeing those things which are equal, must needs all have one measure; if I cannot but wish to receive good, even as much at every man's hands, as any man can wish unto his own soul, how should I look to have any part of my desire herein satisfied, unless myself be careful to satisfy the like desire, which is undoubtedly in other men, being of one and the same nature? To have any thing offered them repugnant to this desire, must needs in all respects grieve them as much as me; so that if I do harm, I must look to suffer, there being no reason that others should shew greater measure of love to me, than they have by me shewed unto them: my desire therefore to be loved of my equals in nature as much as possible may be, imposeth upon me a natural duty of bearing to them-ward fully the like affection; from which relation of equality between ourselves and them that are as ourselves, what several rules and canons natural reason hath drawn, for direction of life, no man is ignorant, Eccl. Pol. Lib. 1.

Sect. 6. But though this be a state of liberty, yet it is not a state of licence: though man in that state have an uncontrollable liberty to dispose of his person or possessions, yet he has not liberty to destroy himself, or so much as any creature in his possession, but where some nobler use than its bare preservation calls for it. The state of nature has a law of nature to govern it, which obliges every one: and reason, which is that law, teaches all mankind, who will but consult it, that being all equal and independent, no one ought to harm another in his life, health, liberty, or possessions: for men being all the workmanship of one omnipotent, and infinitely wise maker; all the servants of one sovereign master, sent into the world by his order, and about his business; they are his property, whose workmanship they are, made to last during his, not one another's pleasure: and being furnished with like faculties, sharing all in one community of nature, there cannot be supposed any such subordination among us, that may authorize us to destroy one another, as if we were made for one another's uses, as the inferior ranks of creatures are for our's. Every one, as he is bound to preserve himself, and not to quit his station wilfully, so by the like reason, when his own preservation comes not in competition, ought he, as much as he can, to preserve the rest of mankind, and may not, unless it be to do justice on an offender, take away, or impair the life, or what tends to the preservation of the life, the liberty, health, limb, or goods of another.

Sect. 7. And that all men may be restrained from invading others rights, and from doing hurt to one another, and the law of nature be observed, which willeth the peace and preservation of all mankind, the execution of the law of nature is, in that state, put into every man's hands, whereby every one has a right to punish the transgressors of that law to such a degree, as may hinder its violation: for the law of nature would, as all other laws that concern men in this world 'be in vain, if there were no body that in the state of nature had a power to execute that law, and thereby preserve the innocent and restrain offenders. And if any one in the state of nature may punish another for any evil he has done, every one may do so: for in that state of perfect equality, where naturally there is no superiority or jurisdiction of one over another, what any may do in prosecution of that law, every one must needs have a right to do.

Sect. 8. And thus, in the state of nature, one man comes by a power over another; but yet no absolute or arbitrary power, to use a criminal, when he has got him in his hands, according to the passionate heats, or boundless extravagancy of his own will; but only to retribute to him, so far as calm reason and conscience dictate, what is proportionate to his transgression, which is so much as may serve for reparation and restraint: for these two are the only reasons, why one man may lawfully do harm to

another, which is that we call punishment. In transgressing the law of nature, the offender declares himself to live by another rule than that of reason and common equity, which is that measure God has set to the actions of men, for their mutual security; and so he becomes dangerous to mankind, the tie, which is to secure them from injury and violence, being slighted and broken by him. Which being a trespass against the whole species, and the peace and safety of it, provided for by the law of nature, every man upon this score, by the right he hath to preserve mankind in general, may restrain, or where it is necessary, destroy things noxious to them, and so may bring such evil on any one, who hath transgressed that law, as may make him repent the doing of it, and thereby deter him, and by his example others, from doing the like mischief. And in the case, and upon this ground, EVERY MAN HATH A RIGHT TO PUNISH THE OFFENDER, AND BE EXECUTIONER OF THE LAW OF NATURE.

Sect. 9. I doubt not but this will seem a very strange doctrine to some men: but before they condemn it, I desire them to resolve me, by what right any prince or state can put to death, or punish an alien, for any crime he commits in their country. It is certain their laws, by virtue of any sanction they receive from the promulgated will of the legislative, reach not a stranger: they speak not to him, nor, if they did, is he bound to hearken to them. The legislative authority, by which they are in force over the subjects of that commonwealth, hath no power over him. Those who have the supreme power of making laws in England, France or Holland, are to an Indian, but like the rest of the world, men without authority: and therefore, if by the law of nature every man hath not a power to punish offences against it, as he soberly judges the case to require, I see not how the magistrates of any community can punish an alien of another country; since, in reference to him, they can have no more power than what every man naturally may have over another.

Sect. 10. Besides the crime which consists in violating the law, and varying from the right rule of reason, whereby a man so far becomes degenerate, and declares himself to quit the principles of human nature, and to be a noxious creature, there is commonly injury done to some person or other, and some other man receives damage by his transgression: in which case he who hath received any damage, has, besides the right of punishment common to him with other men, a particular right to seek reparation from him that has done it: and any other person, who finds it just, may also join with him that is injured, and assist him in recovering from the offender so much as may make satisfaction for the harm he has suffered.

Sect. 11. From these two distinct rights, the one of punishing the crime for restraint, and preventing the like offence, which right of punishing is in every body; the other of taking reparation, which belongs only to the injured party, comes it to pass that the magistrate, who by being magistrate hath the common right of punishing put into his hands, can often, where the public good demands not the execution of the law, remit the punishment of criminal offences by his own authority, but yet cannot remit the satisfaction due to any private man for the damage he has received. That, he who has suffered the damage has a right to demand in his own name, and he alone can remit: the damnified person has this power of appropriating to himself the goods or service of the offender, by right of self-preservation, as every man has a power to punish the crime, to prevent its being committed again, by the right he has of preserving all mankind, and doing all reasonable things he can in order to that end: and thus it is, that every man, in the state of nature, has a power to kill a murderer, both to deter others from doing the like injury, which no reparation can compensate, by the example of the punishment that attends it from every body, and also to secure men from the attempts of a criminal, who having renounced reason, the common rule and measure God hath given to mankind, hath, by the unjust violence and slaughter he

hath committed upon one, declared war against all mankind, and therefore may be destroyed as a lion or a tyger, one of those wild savage beasts, with whom men can have no society nor security: and upon this is grounded that great law of nature, Whoso sheddeth man's blood, by man shall his blood be shed. And Cain was so fully convinced, that every one had a right to destroy such a criminal, that after the murder of his brother, he cries out, Every one that findeth me, shall slay me; so plain was it writ in the hearts of all mankind.

Sect. 12. By the same reason may a man in the state of nature punish the lesser breaches of that law. It will perhaps be demanded, with death? I answer, each transgression may be punished to that degree, and with so much severity, as will suffice to make it an ill bargain to the offender, give him cause to repent, and terrify others from doing the like. Every offence, that can be committed in the state of nature, may in the state of nature be also punished equally, and as far forth as it may, in a commonwealth: for though it would be besides my present purpose, to enter here into the particulars of the law of nature, or its measures of punishment; yet, it is certain there is such a law, and that too, as intelligible and plain to a rational creature, and a studier of that law, as the positive laws of commonwealths; nay, possibly plainer; as much as reason is easier to be understood, than the fancies and intricate contrivances of men, following contrary and hidden interests put into words; for so truly are a great part of the municipal laws of countries, which are only so far right, as they are founded on the law of nature, by which they are to be regulated and interpreted.

Sect. 13. To this strange doctrine, viz. That in the state of nature every one has the executive power of the law of nature, I doubt not but it will be objected, that it is unreasonable for men to be judges in their own cases, that self-love will make men partial to themselves and their friends: and on the other side, that ill nature, passion and revenge will carry them too far in punishing others; and hence nothing but confusion and disorder will follow, and that therefore God hath certainly appointed government to restrain the partiality and violence of men. I easily grant, that civil government is the proper remedy for the inconveniencies of the state of nature, which must certainly be great, where men may be judges in their own case, since it is easy to be imagined, that he who was so unjust as to do his brother an injury, will scarce be so just as to condemn himself for it: but I shall desire those who make this objection, to remember, that absolute monarchs are but men; and if government is to be the remedy of those evils, which necessarily follow from men's being judges in their own cases, and the state of nature is therefore not to be endured, I desire to know what kind of government that is, and how much better it is than the state of nature, where one man, commanding a multitude, has the liberty to be judge in his own case, and may do to all his subjects whatever he pleases, without the least liberty to any one to question or controul those who execute his pleasure? and in whatsoever he doth, whether led by reason, mistake or passion, must be submitted to? much better it is in the state of nature, wherein men are not bound to submit to the unjust will of another: and if he that judges, judges amiss in his own, or any other case, he is answerable for it to the rest of mankind.

Sect. 14. It is often asked as a mighty objection, where are, or ever were there any men in such a state of nature? To which it may suffice as an answer at present, that since all princes and rulers of independent governments all through the world, are in a state of nature, it is plain the world never was, nor ever will be, without numbers of men in that state. I have named all governors of independent communities, whether they are, or are not, in league with others: for it is not every compact that puts an end to the state of nature between men, but only this one of agreeing together mutually to enter into one community, and make one body politic; other promises, and compacts, men may make one with another,

and yet still be in the state of nature. The promises and bargains for truck, &c. between the two men in the desert island, mentioned by Garcilasso de la Vega, in his history of Peru; or between a Swiss and an Indian, in the woods of America, are binding to them, though they are perfectly in a state of nature, in reference to one another: for truth and keeping of faith belongs to men, as men, and not as members of society.

Sect. 15. To those that say, there were never any men in the state of nature, I will not only oppose the authority of the judicious Hooker, Eccl. Pol. lib. i. sect. 10, where he says,

The laws which have been hitherto mentioned, i.e. the laws of nature, do bind men absolutely, even as they are men, although they have never any settled fellowship, never any solemn agreement amongst themselves what to do, or not to do: but forasmuch as we are not by ourselves sufficient to furnish ourselves with competent store of things, needful for such a life as our nature doth desire, a life fit for the dignity of man; therefore to supply those defects and imperfections which are in us, as living single and solely by ourselves, we are naturally induced to seek communion and fellowship with others: this was the cause of men's uniting themselves at first in politic societies.

But I moreover affirm, that all men are naturally in that state, and remain so, till by their own consents they make themselves members of some politic society; and I doubt not in the sequel of this discourse, to make it very clear.

CHAPTER. III. OF THE STATE OF WAR.

Sect. 16. THE state of war is a state of enmity and destruction: and therefore declaring by word or action, not a passionate and hasty, but a sedate settled design upon another man's life, puts him in a state of war with him against whom he has declared such an intention, and so has exposed his life to the other's power to be taken away by him, or any one that joins with him in his defence, and espouses his quarrel; it being reasonable and just, I should have a right to destroy that which threatens me with destruction: for, by the fundamental law of nature, man being to be preserved as much as possible, when all cannot be preserved, the safety of the innocent is to be preferred: and one may destroy a man who makes war upon him, or has discovered an enmity to his being, for the same reason that he may kill a wolf or a lion; because such men are not under the ties of the commonlaw of reason, have no other rule, but that of force and violence, and so may be treated as beasts of prey, those dangerous and noxious creatures, that will be sure to destroy him whenever he falls into their power.

Sect. 17. And hence it is, that he who attempts to get another man into his absolute power, does thereby put himself into a state of war with him; it being to be understood as a declaration of a design upon his life: for I have reason to conclude, that he who would get me into his power without my consent, would use me as he pleased when he had got me there, and destroy me too when he had a fancy to it; for no body can desire to have me in his absolute power, unless it be to compel me by force to that which is against the right of my freedom, i.e. make me a slave. To be free from such force is the only security of my preservation; and reason bids me look on him, as an enemy to my preservation, who would take away that freedom which is the fence to it; so that he who makes an attempt to enslave me, thereby puts himself into a state of war with me. He that, in the state of nature, would take away the freedom that belongs to any one in that state, must necessarily be supposed to have a design to take away every thing

else, that freedom being the foundation of all the rest; as he that, in the state of society, would take away the freedom belonging to those of that society or commonwealth, must be supposed to design to take away from them every thing else, and so be looked on as in a state of war.

Sect. 18. This makes it lawful for a man to kill a thief, who has not in the least hurt him, nor declared any design upon his life, any farther than, by the use of force, so to get him in his power, as to take away his money, or what he pleases, from him; because using force, where he has no right, to get me into his power, let his pretence be what it will, I have no reason to suppose, that he, who would take away my liberty, would not, when he had me in his power, take away every thing else. And therefore it is lawful for me to treat him as one who has put himself into a state of war with me, i.e. kill him if I can; for to that hazard does he justly expose himself, whoever introduces a state of war, and is aggressor in it.

Sect. 19. And here we have the plain difference between the state of nature and the state of war, which however some men have confounded, are as far distant, as a state of peace, good will, mutual assistance and preservation, and a state of enmity, malice, violence and mutual destruction, are one from another. Men living together according to reason, without a common superior on earth, with authority to judge between them, is properly the state of nature. But force, or a declared design of force, upon the person of another, where there is no common superior on earth to appeal to for relief, is the state of war: and it is the want of such an appeal gives a man the right of war even against an aggressor, tho' he be in society and a fellow subject. Thus a thief, whom I cannot harm, but by appeal to the law, for having stolen all that I am worth, I may kill, when he sets on me to rob me but of my horse or coat; because the law, which was made for my preservation, where it cannot interpose to secure my life from present force, which, if lost, is capable of no reparation, permits me my own defence, and the right of war, a liberty to kill the aggressor, because the aggressor allows not time to appeal to our common judge, nor the decision of the law, for remedy in a case where the mischief may be irreparable. Want of a common judge with authority, puts all men in a state of nature: force without right, upon a man's person, makes a state of war, both where there is, and is not, a common judge.

Sect. 20. But when the actual force is over, the state of war ceases between those that are in society, and are equally on both sides subjected to the fair determination of the law; because then there lies open the remedy of appeal for the past injury, and to prevent future harm: but where no such appeal is, as in the state of nature, for want of positive laws, and judges with authority to appeal to, the state of war once begun, continues, with a right to the innocent party to destroy the other whenever he can, until the aggressor offers peace, and desires reconciliation on such terms as may repair any wrongs he has already done, and secure the innocent for the future; nay, where an appeal to the law, and constituted judges, lies open, but the remedy is denied by a manifest perverting of justice, and a barefaced wresting of the laws to protect or indemnify the violence or injuries of some men, or party of men, there it is hard to imagine any thing but a state of war: for wherever violence is used, and injury done, though by hands appointed to administer justice, it is still violence and injury, however coloured with the name, pretences, or forms of law, the end whereof being to protect and redress the innocent, by an unbiassed application of it, to all who are under it; wherever that is not bona fide done, war is made upon the sufferers, who having no appeal on earth to right them, they are left to the only remedy in such cases, an appeal to heaven.

Sect. 21. To avoid this state of war (wherein there is no appeal but to heaven, and wherein every the least difference is apt to end, where there is no authority to decide between the contenders) is one great reason of men's putting themselves into society, and quitting the state of nature: for where there is an

authority, a power on earth, from which relief can be had by appeal, there the continuance of the state of war is excluded, and the controversy is decided by that power. Had there been any such court, any superior jurisdiction on earth, to determine the right between Jephtha and the Ammonites, they had never come to a state of war: but we see he was forced to appeal to heaven. The Lord the Judge (says he) be judge this day between the children of Israel and the children of Ammon, Judg. xi. 27. and then prosecuting, and relying on his appeal, he leads out his army to battle: and therefore in such controversies, where the question is put, who shall be judge? It cannot be meant, who shall decide the controversy; every one knows what Jephtha here tells us, that the Lord the Judge shall judge. Where there is no judge on earth, the appeal lies to God in heaven. That question then cannot mean, who shall judge, whether another hath put himself in a state of war with me, and whether I may, as Jephtha did, appeal to heaven in it? of that I myself can only be judge in my own conscience, as I will answer it, at the great day, to the supreme judge of all men.

CHAPTER. IV. OF SLAVERY.

Sect. 22. THE natural liberty of man is to be free from any superior power on earth, and not to be under the will or legislative authority of man, but to have only the law of nature for his rule. The liberty of man, in society, is to be under no other legislative power, but that established, by consent, in the commonwealth; nor under the dominion of any will, or restraint of any law, but what that legislative shall enact, according to the trust put in it. Freedom then is not what Sir Robert Filmer tells us, Observations, A. 55. a liberty for every one to do what he lists, to live as he pleases, and not to be tied by any laws: but freedom of men under government is, to have a standing rule to live by, common to every one of that society, and made by the legislative power erected in it; a liberty to follow my own will in all things, where the rule prescribes not; and not to be subject to the inconstant, uncertain, unknown, arbitrary will of another man: as freedom of nature is, to be under no other restraint but the law of nature.

Sect. 23. This freedom from absolute, arbitrary power, is so necessary to, and closely joined with a man's preservation, that he cannot part with it, but by what forfeits his preservation and life together: for a man, not having the power of his own life, cannot, by compact, or his own consent, enslave himself to any one, nor put himself under the absolute, arbitrary power of another, to take away his life, when he pleases. No body can give more power than he has himself; and he that cannot take away his own life, cannot give another power over it. Indeed, having by his fault forfeited his own life, by some act that deserves death; he, to whom he has forfeited it, may (when he has him in his power) delay to take it, and make use of him to his own service, and he does him no injury by it: for, whenever he finds the hardship of his slavery outweigh the value of his life, it is in his power, by resisting the will of his master, to draw on himself the death he desires.

Sect. 24. This is the perfect condition of slavery, which is nothing else, but the state of war continued, between a lawful conqueror and a captive: for, if once compact enter between them, and make an agreement for a limited power on the one side, and obedience on the other, the state of war and slavery ceases, as long as the compact endures: for, as has been said, no man can, by agreement, pass over to another that which he hath not in himself, a power over his own life.

I confess, we find among the Jews, as well as other nations, that men did sell themselves; but, it is plain, this was only to drudgery, not to slavery: for, it is evident, the person sold was not under an absolute, arbitrary, despotical power: for the master could not have power to kill him, at any time, whom, at a certain time, he was obliged to let go free out of his service; and the master of such a servant was so far from having an arbitrary power over his life, that he could not, at pleasure, so much as maim him, but the loss of an eye, or tooth, set him free, Exod. xxi.

CHAPTER. V. OF PROPERTY.

Sect. 25. Whether we consider natural reason, which tells us, that men, being once born, have a right to their preservation, and consequently to meat and drink, and such other things as nature affords for their subsistence: or revelation, which gives us an account of those grants God made of the world to Adam, and to Noah, and his sons, it is very clear, that God, as king David says, Psal. cxv. 16. has given the earth to the children of men; given it to mankind in common. But this being supposed, it seems to some a very great difficulty, how any one should ever come to have a property in any thing: I will not content myself to answer, that if it be difficult to make out property, upon a supposition that God gave the world to Adam, and his posterity in common, it is impossible that any man, but one universal monarch, should have any property upon a supposition, that God gave the world to Adam, and his heirs in succession, exclusive of all the rest of his posterity. But I shall endeavour to shew, how men might come to have a property in several parts of that which God gave to mankind in common, and that without any express compact of all the commoners.

Sect. 26. God, who hath given the world to men in common, hath also given them reason to make use of it to the best advantage of life, and convenience. The earth, and all that is therein, is given to men for the support and comfort of their being. And tho' all the fruits it naturally produces, and beasts it feeds, belong to mankind in common, as they are produced by the spontaneous hand of nature; and no body has originally a private dominion, exclusive of the rest of mankind, in any of them, as they are thus in their natural state: yet being given for the use of men, there must of necessity be a means to appropriate them some way or other, before they can be of any use, or at all beneficial to any particular man. The fruit, or venison, which nourishes the wild Indian, who knows no enclosure, and is still a tenant in common, must be his, and so his, i.e. a part of him, that another can no longer have any right to it, before it can do him any good for the support of his life.

Sect. 27. Though the earth, and all inferior creatures, be common to all men, yet every man has a property in his own person: this no body has any right to but himself. The labour of his body, and the work of his hands, we may say, are properly his. Whatsoever then he removes out of the state that nature hath provided, and left it in, he hath mixed his labour with, and joined to it something that is his own, and thereby makes it his property. It being by him removed from the common state nature hath placed it in, it hath by this labour something annexed to it, that excludes the common right of other men: for this labour being the unquestionable property of the labourer, no man but he can have a right to what that is once joined to, at least where there is enough, and as good, left in common for others.

Sect. 28. He that is nourished by the acorns he picked up under an oak, or the apples he gathered from the trees in the wood, has certainly appropriated them to himself. No body can deny but the nourishment is his. I ask then, when did they begin to be his? when he digested? or when he eat? or when he boiled?

or when he brought them home? or when he picked them up? and it is plain, if the first gathering made them not his, nothing else could. That labour put a distinction between them and common: that added something to them more than nature, the common mother of all, had done; and so they became his private right. And will any one say, he had no right to those acorns or apples, he thus appropriated, because he had not the consent of all mankind to make them his? Was it a robbery thus to assume to himself what belonged to all in common? If such a consent as that was necessary, man had starved, notwithstanding the plenty God had given him. We see in commons, which remain so by compact, that it is the taking any part of what is common, and removing it out of the state nature leaves it in, which begins the property; without which the common is of no use. And the taking of this or that part, does not depend on the express consent of all the commoners. Thus the grass my horse has bit; the turfs my servant has cut; and the ore I have digged in any place, where I have a right to them in common with others, become my property, without the assignation or consent of any body. The labour that was mine, removing them out of that common state they were in, hath fixed my property in them...

Sect. 31. It will perhaps be objected to this, that if gathering the acorns, or other fruits of the earth, &c. makes a right to them, then any one may ingross as much as he will. To which I answer, Not so. The same law of nature, that does by this means give us property, does also bound that property too. God has given us all things richly, 1 Tim. vi. 12. is the voice of reason confirmed by inspiration. But how far has he given it us? To enjoy. As much as any one can make use of to any advantage of life before it spoils, so much he may by his Labour fix a property in: whatever is beyond this, is more than his share, and belongs to others. Nothing was made by God for man to spoil or destroy. And thus, considering the plenty of natural provisions there was a long time in the world, and the few spenders; and to how small a part of that provision the industry of one man could extend itself, and ingross it to the prejudice of others; especially keeping within the bounds, set by reason, of what might serve for his use; there could be then little room for quarrels or contentions about property so established.

Sect. 32. But the chief matter of property being now not the fruits of the earth, and the beasts that subsist on it, but the earth itself; as that which takes in and carries with it all the rest; I think it is plain, that property in that too is acquired as the former. As much land as a man tills, plants, improves, cultivates, and can use the product of, so much is his property. He by his labour does, as it were, inclose it from the common. Nor will it invalidate his right, to say every body else has an equal title to it; and therefore he cannot appropriate, he cannot inclose, without the consent of all his fellow-commoners, all mankind. God, when he gave the world in common to all mankind, commanded man also to labour, and the penury of his condition required it of him. God and his reason commanded him to subdue the earth, i.e. improve it for the benefit of life, and therein lay out something upon it that was his own, his labour. He that in obedience to this command of God, subdued, tilled and sowed any part of it, thereby annexed to it something that was his property, which another had no title to, nor could without injury take from him.

Sect. 33. Nor was this appropriation of any parcel of land, by improving it, any prejudice to any other man, since there was still enough, and as good left; and more than the yet unprovided could use. So that, in effect, there was never the less left for others because of his enclosure for himself: for he that leaves as much as another can make use of, does as good as take nothing at all. No body could think himself injured by the drinking of another man, though he took a good draught, who had a whole river of the same water left him to quench his thirst: and the case of land and water, where there is enough of both, is perfectly the same...

Sect. 40. Nor is it so strange, as perhaps before consideration it may appear, that the property of labour should be able to over-balance the community of land: for it is labour indeed that puts the difference of value on every thing; and let any one consider what the difference is between an acre of land planted with tobacco or sugar, sown with wheat or barley, and an acre of the same land lying in common, without any husbandry upon it, and he will find, that the improvement of labour makes the far greater part of the value. I think it will be but a very modest computation to say, that of the products of the earth useful to the life of man nine tenths are the effects of labour: nay, if we will rightly estimate things as they come to our use, and cast up the several expences about them, what in them is purely owing to nature, and what to labour, we shall find, that in most of them ninety-nine hundredths are wholly to be put on the account of labour.

Sect. 46. The greatest part of things really useful to the life of man, and such as the necessity of subsisting made the first commoners of the world look after, as it doth the Americans now, are generally things of short duration; such as, if they are not consumed by use, will decay and perish of themselves: gold, silver and diamonds, are things that fancy or agreement hath put the value on, more than real use, and the necessary support of life. Now of those good things which nature hath provided in common, every one had a right (as hath been said) to as much as he could use, and property in all that he could effect with his labour; all that his industry could extend to, to alter from the state nature had put it in, was his. He that gathered a hundred bushels of acorns or apples, had thereby a property in them, they were his goods as soon as gathered. He was only to look, that he used them before they spoiled, else he took more than his share, and robbed others. And indeed it was a foolish thing, as well as dishonest, to hoard up more than he could make use of. If he gave away a part to any body else, so that it perished not uselessly in his possession, these he also made use of. And if he also bartered away plums, that would have rotted in a week, for nuts that would last good for his eating a whole year, he did no injury; he wasted not the common stock; destroyed no part of the portion of goods that belonged to others, so long as nothing perished uselessly in his hands. Again, if he would give his nuts for a piece of metal, pleased with its colour; or exchange his sheep for shells, or wool for a sparkling pebble or a diamond, and keep those by him all his life he invaded not the right of others, he might heap up as much of these durable things as he pleased; the exceeding of the bounds of his just property not lying in the largeness of his possession, but the perishing of any thing uselessly in it.

Sect. 47. And thus came in the use of money, some lasting thing that men might keep without spoiling, and that by mutual consent men would take in exchange for the truly useful, but perishable supports of life.

Sect. 48. And as different degrees of industry were apt to give men possessions in different proportions, so this invention of money gave them the opportunity to continue and enlarge them: for supposing an island, separate from all possible commerce with the rest of the world, wherein there were but an hundred families, but there were sheep, horses and cows, with other useful animals, wholesome fruits, and land enough for corn for a hundred thousand times as many, but nothing in the island, either because of its commonness, or perishableness, fit to supply the place of money; what reason could any one have there to enlarge his possessions beyond the use of his family, and a plentiful supply to its consumption, either in what their own industry produced, or they could barter for like perishable, useful commodities, with others? Where there is not some thing, both lasting and scarce, and so valuable to be hoarded up, there men will not be apt to enlarge their possessions of land, were it never so rich, never so free for them to take: for I ask, what would a man value ten thousand, or an hundred thousand acres of excellent

land, ready cultivated, and well stocked too with cattle, in the middle of the inland parts of America, where he had no hopes of commerce with other parts of the world, to draw money to him by the sale of the product? It would not be worth the enclosing, and we should see him give up again to the wild common of nature, whatever was more than would supply the conveniencies of life to be had there for him and his family...

CHAPTER. VII. OF POLITICAL OR CIVIL SOCIETY.

Sect. 77. GOD having made man such a creature, that in his own judgment, it was not good for him to be alone, put him under strong obligations of necessity, convenience, and inclination to drive him into society, as well as fitted him with understanding and language to continue and enjoy it. The first society was between man and wife, which gave beginning to that between parents and children; to which, in time, that between master and servant came to be added: and though all these might, and commonly did meet together, and make up but one family, wherein the master or mistress of it had some sort of rule proper to a family; each of these, or all together, came short of political society, as we shall see, if we consider the different ends, ties, and bounds of each of these...

Sect. 85. Master and servant are names as old as history, but given to those of far different condition; for a freeman makes himself a servant to another, by selling him, for a certain time, the service he undertakes to do, in exchange for wages he is to receive: and though this commonly puts him into the family of his master, and under the ordinary discipline thereof; yet it gives the master but a temporary power over him, and no greater than what is contained in the contract between them. But there is another sort of servants, which by a peculiar name we call slaves, who being captives taken in a just war, are by the right of nature subjected to the absolute dominion and arbitrary power of their masters. These men having, as I say, forfeited their lives, and with it their liberties, and lost their estates; and being in the state of slavery, not capable of any property, cannot in that state be considered as any part of civil society; the chief end whereof is the preservation of property...

Sect. 87. Man being born, as has been proved, with a title to perfect freedom, and an uncontrouled enjoyment of all the rights and privileges of the law of nature, equally with any other man, or number of men in the world, hath by nature a power, not only to preserve his property, that is, his life, liberty and estate, against the injuries and attempts of other men; but to judge of, and punish the breaches of that law in others, as he is persuaded the offence deserves, even with death itself, in crimes where the heinousness of the fact, in his opinion, requires it. But because no political society can be, nor subsist, without having in itself the power to preserve the property, and in order thereunto, punish the offences of all those of that society; there, and there only is political society, where every one of the members hath quitted this natural power, resigned it up into the hands of the community in all cases that exclude him not from appealing for protection to the law established by it. And thus all private judgment of every particular member being excluded, the community comes to be umpire, by settled standing rules, indifferent, and the same to all parties; and by men having authority from the community, for the execution of those rules, decides all the differences that may happen between any members of that society concerning any matter of right; and punishes those offences which any member hath committed against the society, with such penalties as the law has established: whereby it is easy to discern, who are, and who are not, in political society together. Those who are united into one body, and have a common established law and judicature to appeal to, with authority to decide controversies between them, and

punish offenders, are in civil society one with another: but those who have no such common appeal, I mean on earth, are still in the state of nature, each being, where there is no other, judge for himself, and executioner; which is, as I have before shewed it, the perfect state of nature.

Sect. 88. And thus the commonwealth comes by a power to set down what punishment shall belong to the several transgressions which they think worthy of it, committed amongst the members of that society, (which is the power of making laws) as well as it has the power to punish any injury done unto any of its members, by any one that is not of it, (which is the power of war and peace;) and all this for the preservation of the property of all the members of that society, as far as is possible. But though every man who has entered into civil society, and is become a member of any commonwealth, has thereby quitted his power to punish offences, against the law of nature, in prosecution of his own private judgment, yet with the judgment of offences, which he has given up to the legislative in all cases, where he can appeal to the magistrate, he has given a right to the commonwealth to employ his force, for the execution of the judgments of the commonwealth, whenever he shall be called to it; which indeed are his own judgments, they being made by himself, or his representative. And herein we have the original of the legislative and executive power of civil society, which is to judge by standing laws, how far offences are to be punished, when committed within the commonwealth; and also to determine, by occasional judgments founded on the present circumstances of the fact, how far injuries from without are to be vindicated; and in both these to employ all the force of all the members, when there shall be need.

Sect. 89. Where-ever therefore any number of men are so united into one society, as to quit every one his executive power of the law of nature, and to resign it to the public, there and there only is a political, or civil society. And this is done, where-ever any number of men, in the state of nature, enter into society to make one people, one body politic, under one supreme government; or else when any one joins himself to, and incorporates with any government already made: for hereby he authorizes the society, or which is all one, the legislative thereof, to make laws for him, as the public good of the society shall require; to the execution whereof, his own assistance (as to his own decrees) is due. And this puts men out of a state of nature into that of a commonwealth, by setting up a judge on earth, with authority to determine all the controversies, and redress the injuries that may happen to any member of the commonwealth; which judge is the legislative, or magistrates appointed by it. And where-ever there are any number of men, however associated, that have no such decisive power to appeal to, there they are still in the state of nature.

Sect. 90. Hence it is evident, that absolute monarchy, which by some men is counted the only government in the world, is indeed inconsistent with civil society, and so can be no form of civil-government at all: for the end of civil society, being to avoid, and remedy those inconveniencies of the state of nature, which necessarily follow from every man's being judge in his own case, by setting up a known authority, to which every one of that society may appeal upon any injury received, or controversy that may arise, and which every one of the society ought to obey;* where-ever any persons are, who have not such an authority to appeal to, for the decision of any difference between them, there those persons are still in the state of nature; and so is every absolute prince, in respect of those who are under his dominion...

**CHAPTER. VIII.
OF THE BEGINNING OF POLITICAL SOCIETIES.**

Sect. 95. MEN being, as has been said, by nature, all free, equal, and independent, no one can be put out of this estate, and subjected to the political power of another, without his own consent. The only way whereby any one divests himself of his natural liberty, and puts on the bonds of civil society, is by agreeing with other men to join and unite into a community for their comfortable, safe, and peaceable living one amongst another, in a secure enjoyment of their properties, and a greater security against any, that are not of it. This any number of men may do, because it injures not the freedom of the rest; they are left as they were in the liberty of the state of nature. When any number of men have so consented to make one community or government, they are thereby presently incorporated, and make one body politic, wherein the majority have a right to act and conclude the rest.

Sect. 96. For when any number of men have, by the consent of every individual, made a community, they have thereby made that community one body, with a power to act as one body, which is only by the will and determination of the majority: for that which acts any community, being only the consent of the individuals of it, and it being necessary to that which is one body to move one way; it is necessary the body should move that way whither the greater force carries it, which is the consent of the majority: or else it is impossible it should act or continue one body, one community, which the consent of every individual that united into it, agreed that it should; and so every one is bound by that consent to be concluded by the majority. And therefore we see, that in assemblies, impowered to act by positive laws, where no number is set by that positive law which impowers them, the act of the majority passes for the act of the whole, and of course determines, as having, by the law of nature and reason, the power of the whole.

Sect. 97. And thus every man, by consenting with others to make one body politic under one government, puts himself under an obligation, to every one of that society, to submit to the determination of the majority, and to be concluded by it; or else this original compact, whereby he with others incorporates into one society, would signify nothing, and be no compact, if he be left free, and under no other ties than he was in before in the state of nature. For what appearance would there be of any compact? what new engagement if he were no farther tied by any decrees of the society, than he himself thought fit, and did actually consent to? This would be still as great a liberty, as he himself had before his compact, or any one else in the state of nature hath, who may submit himself, and consent to any acts of it if he thinks fit.

Sect. 98. For if the consent of the majority shall not, in reason, be received as the act of the whole, and conclude every individual; nothing but the consent of every individual can make any thing to be the act of the whole: but such a consent is next to impossible ever to be had, if we consider the infirmities of health, and avocations of business, which in a number, though much less than that of a commonwealth, will necessarily keep many away from the public assembly. To which if we add the variety of opinions, and contrariety of interests, which unavoidably happen in all collections of men, the coming into society upon such terms would be only like Cato's coming into the theatre, only to go out again. Such a constitution as this would make the mighty Leviathan of a shorter duration, than the feeblest creatures, and not let it outlast the day it was born in: which cannot be supposed, till we can think, that rational creatures should desire and constitute societies only to be dissolved: for where the majority cannot conclude the rest, there they cannot act as one body, and consequently will be immediately dissolved

again.

Sect. 99. Whosoever therefore out of a state of nature unite into a community, must be understood to give up all the power, necessary to the ends for which they unite into society, to the majority of the community, unless they expressly agreed in any number greater than the majority. And this is done by barely agreeing to unite into one political society, which is all the compact that is, or needs be, between the individuals, that enter into, or make up a commonwealth. And thus that, which begins and actually constitutes any political society, is nothing but the consent of any number of freemen capable of a majority to unite and incorporate into such a society. And this is that, and that only, which did, or could give beginning to any lawful government in the world...

Sect. 119. Every man being, as has been shewed, naturally free, and nothing being able to put him into subjection to any earthly power, but only his own consent; it is to be considered, what shall be understood to be a sufficient declaration of a man's consent, to make him subject to the laws of any government. There is a common distinction of an express and a tacit consent, which will concern our present case. No body doubts but an express consent, of any man entering into any society, makes him a perfect member of that society, a subject of that government. The difficulty is, what ought to be looked upon as a tacit consent, and how far it binds, i.e. how far any one shall be looked on to have consented, and thereby submitted to any government, where he has made no expressions of it at all. And to this I say, that every man, that hath any possessions, or enjoyment, of any part of the dominions of any government, doth thereby give his tacit consent, and is as far forth obliged to obedience to the laws of that government, during such enjoyment, as any one under it; whether this his possession be of land, to him and his heirs for ever, or a lodging only for a week; or whether it be barely travelling freely on the highway; and in effect, it reaches as far as the very being of any one within the territories of that government.

Sect. 120. To understand this the better, it is fit to consider, that every man, when he at first incorporates himself into any commonwealth, he, by his uniting himself thereunto, annexed also, and submits to the community, those possessions, which he has, or shall acquire, that do not already belong to any other government: for it would be a direct contradiction, for any one to enter into society with others for the securing and regulating of property; and yet to suppose his land, whose property is to be regulated by the laws of the society, should be exempt from the jurisdiction of that government, to which he himself, the proprietor of the land, is a subject. By the same act therefore, whereby any one unites his person, which was before free, to any commonwealth, by the same he unites his possessions, which were before free, to it also; and they become, both of them, person and possession, subject to the government and dominion of that commonwealth, as long as it hath a being. Whoever therefore, from thenceforth, by inheritance, purchase, permission, or otherways, enjoys any part of the land, so annexed to, and under the government of that commonwealth, must take it with the condition it is under; that is, of submitting to the government of the commonwealth, under whose jurisdiction it is, as far forth as any subject of it.

Sect. 121. But since the government has a direct jurisdiction only over the land, and reaches the possessor of it, (before he has actually incorporated himself in the society) only as he dwells upon, and enjoys that; the obligation any one is under, by virtue of such enjoyment, to submit to the government, begins and ends with the enjoyment; so that whenever the owner, who has given nothing but such a tacit consent to the government, will, by donation, sale, or otherwise, quit the said possession, he is at liberty to go and incorporate himself into any other commonwealth; or to agree with others to begin a new one,

in vacuis locis, in any part of the world, they can find free and unpossessed: whereas he, that has once, by actual agreement, and any express declaration, given his consent to be of any commonwealth, is perpetually and indispensably obliged to be, and remain unalterably a subject to it, and can never be again in the liberty of the state of nature; unless, by any calamity, the government he was under comes to be dissolved; or else by some public act cuts him off from being any longer a member of it.

Sect. 122. But submitting to the laws of any country, living quietly, and enjoying privileges and protection under them, makes not a man a member of that society: this is only a local protection and homage due to and from all those, who, not being in a state of war, come within the territories belonging to any government, to all parts whereof the force of its laws extends. But this no more makes a man a member of that society, a perpetual subject of that commonwealth, than it would make a man a subject to another, in whose family he found it convenient to abide for some time; though, whilst he continued in it, he were obliged to comply with the laws, and submit to the government he found there. And thus we see, that foreigners, by living all their lives under another government, and enjoying the privileges and protection of it, though they are bound, even in conscience, to submit to its administration, as far forth as any denison; yet do not thereby come to be subjects or members of that commonwealth. Nothing can make any man so, but his actually entering into it by positive engagement, and express promise and compact. This is that, which I think, concerning the beginning of political societies, and that consent which makes any one a member of any commonwealth.

CHAPTER. IX. OF THE ENDS OF POLITICAL SOCIETY AND GOVERNMENT.

Sect. 123. IF man in the state of nature be so free, as has been said; if he be absolute lord of his own person and possessions, equal to the greatest, and subject to no body, why will he part with his freedom? why will he give up this empire, and subject himself to the dominion and controul of any other power? To which it is obvious to answer, that though in the state of nature he hath such a right, yet the enjoyment of it is very uncertain, and constantly exposed to the invasion of others: for all being kings as much as he, every man his equal, and the greater part no strict observers of equity and justice, the enjoyment of the property he has in this state is very unsafe, very insecure. This makes him willing to quit a condition, which, however free, is full of fears and continual dangers: and it is not without reason, that he seeks out, and is willing to join in society with others, who are already united, or have a mind to unite, for the mutual preservation of their lives, liberties and estates, which I call by the general name, property.

Sect. 124. The great and chief end, therefore, of men's uniting into commonwealths, and putting themselves under government, is the preservation of their property. To which in the state of nature there are many things wanting.

First, There wants an established, settled, known law, received and allowed by common consent to be the standard of right and wrong, and the common measure to decide all controversies between them: for though the law of nature be plain and intelligible to all rational creatures; yet men being biassed by their interest, as well as ignorant for want of study of it, are not apt to allow of it as a law binding to them in the application of it to their particular cases.

Sect. 125. Secondly, In the state of nature there wants a known and indifferent judge, with authority to

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determine all differences according to the established law: for every one in that state being both judge and executioner of the law of nature, men being partial to themselves, passion and revenge is very apt to carry them too far, and with too much heat, in their own cases; as well as negligence, and unconcernedness, to make them too remiss in other men's.

Sect. 126. Thirdly, In the state of nature there often wants power to back and support the sentence when right, and to give it due execution, They who by any injustice offended, will seldom fail, where they are able, by force to make good their injustice; such resistance many times makes the punishment dangerous, and frequently destructive, to those who attempt it.

Sect. 127. Thus mankind, notwithstanding all the privileges of the state of nature, being but in an ill condition, while they remain in it, are quickly driven into society. Hence it comes to pass, that we seldom find any number of men live any time together in this state. The inconveniencies that they are therein exposed to, by the irregular and uncertain exercise of the power every man has of punishing the transgressions of others, make them take sanctuary under the established laws of government, and therein seek the preservation of their property. It is this makes them so willingly give up every one his single power of punishing, to be exercised by such alone, as shall be appointed to it amongst them; and by such rules as the community, or those authorized by them to that purpose, shall agree on. And in this we have the original right and rise of both the legislative and executive power, as well as of the governments and societies themselves.

Sect. 128. For in the state of nature, to omit the liberty he has of innocent delights, a man has two powers.

The first is to do whatsoever he thinks fit for the preservation of himself, and others within the permission of the law of nature: by which law, common to them all, he and all the rest of mankind are one community, make up one society, distinct from all other creatures. And were it not for the corruption and vitiousness of degenerate men, there would be no need of any other; no necessity that men should separate from this great and natural community, and by positive agreements combine into smaller and divided associations.

The other power a man has in the state of nature, is the power to punish the crimes committed against that law. Both these he gives up, when he joins in a private, if I may so call it, or particular politic society, and incorporates into any commonwealth, separate from the rest of mankind.

Sect. 129. The first power, viz. of doing whatsoever he thought for the preservation of himself, and the rest of mankind, he gives up to be regulated by laws made by the society, so far forth as the preservation of himself, and the rest of that society shall require; which laws of the society in many things confine the liberty he had by the law of nature.

Sect. 130. Secondly, The power of punishing he wholly gives up, and engages his natural force, (which he might before employ in the execution of the law of nature, by his own single authority, as he thought fit) to assist the executive power of the society, as the law thereof shall require: for being now in a new state, wherein he is to enjoy many conveniencies, from the labour, assistance, and society of others in the same community, as well as protection from its whole strength; he is to part also with as much of his natural liberty, in providing for himself, as the good, prosperity, and safety of the society shall require;

which is not only necessary, but just, since the other members of the society do the like.

Sect. 131. But though men, when they enter into society, give up the equality, liberty, and executive power they had in the state of nature, into the hands of the society, to be so far disposed of by the legislative, as the good of the society shall require; yet it being only with an intention in every one the better to preserve himself, his liberty and property; (for no rational creature can be supposed to change his condition with an intention to be worse) the power of the society, or legislative constituted by them, can never be supposed to extend farther, than the common good; but is obliged to secure every one's property, by providing against those three defects above mentioned, that made the state of nature so unsafe and uneasy. And so whoever has the legislative or supreme power of any commonwealth, is bound to govern by established standing laws, promulgated and known to the people, and not by extemporary decrees; by indifferent and upright judges, who are to decide controversies by those laws; and to employ the force of the community at home, only in the execution of such laws, or abroad to prevent or redress foreign injuries, and secure the community from inroads and invasion. And all this to be directed to no other end, but the peace, safety, and public good of the people.

CHAPTER. X. OF THE FORMS OF A COMMON-WEALTH.

Sect. 132. THE majority having, as has been shewed, upon men's first uniting into society, the whole power of the community naturally in them, may employ all that power in making laws for the community from time to time, and executing those laws by officers of their own appointing; and then the form of the government is a perfect democracy: or else may put the power of making laws into the hands of a few select men, and their heirs or successors; and then it is an oligarchy: or else into the hands of one man, and then it is a monarchy: if to him and his heirs, it is an hereditary monarchy: if to him only for life, but upon his death the power only of nominating a successor to return to them; an elective monarchy. And so accordingly of these the community may make compounded and mixed forms of government, as they think good. And if the legislative power be at first given by the majority to one or more persons only for their lives, or any limited time, and then the supreme power to revert to them again; when it is so reverted, the community may dispose of it again anew into what hands they please, and so constitute a new form of government: for the form of government depending upon the placing the supreme power, which is the legislative, it being impossible to conceive that an inferior power should prescribe to a superior, or any but the supreme make laws, according as the power of making laws is placed, such is the form of the commonwealth.

Sect. 133. By commonwealth, I must be understood all along to mean, not a democracy, or any form of government, but any independent community, which the Latines signified by the word *civitas*, to which the word which best answers in our language, is commonwealth, and most properly expresses such a society of men, which community or city in English does not; for there may be subordinate communities in a government; and city amongst us has a quite different notion from commonwealth: and therefore, to avoid ambiguity, I crave leave to use the word commonwealth in that sense, in which I find it used by king James the first; and I take it to be its genuine signification; which if any body dislike, I consent with him to change it for a better.

**CHAPTER. XI.
OF THE EXTENT OF THE LEGISLATIVE POWER.**

Sect. 134. THE great end of men's entering into society, being the enjoyment of their properties in peace and safety, and the great instrument and means of that being the laws established in that society; the first and fundamental positive law of all commonwealths is the establishing of the legislative power; as the first and fundamental natural law, which is to govern even the legislative itself, is the preservation of the society, and (as far as will consist with the public good) of every person in it. This legislative is not only the supreme power of the commonwealth, but sacred and unalterable in the hands where the community have once placed it; nor can any edict of any body else, in what form soever conceived, or by what power soever backed, have the force and obligation of a law, which has not its sanction from that legislative which the public has chosen and appointed: for without this the law could not have that, which is absolutely necessary to its being a law,* the consent of the society, over whom no body can have a power to make laws, but by their own consent, and by authority received from them; and therefore all the obedience, which by the most solemn ties any one can be obliged to pay, ultimately terminates in this supreme power, and is directed by those laws which it enacts: nor can any oaths to any foreign power whatsoever, or any domestic subordinate power, discharge any member of the society from his obedience to the legislative, acting pursuant to their trust; nor oblige him to any obedience contrary to the laws so enacted, or farther than they do allow; it being ridiculous to imagine one can be tied ultimately to obey any power in the society, which is not the supreme.

(*The lawful power of making laws to command whole politic societies of men, belonging so properly unto the same intire societies, that for any prince or potentate of what kind soever upon earth, to exercise the same of himself, and not by express commission immediately and personally received from God, or else by authority derived at the first from their consent, upon whose persons they impose laws, it is no better than mere tyranny. Laws they are not therefore which public approbation hath not made so. Hooker's Eccl. Pol. l. i. sect. 10.

Of this point therefore we are to note, that such men naturally have no full and perfect power to command whole politic multitudes of men, therefore utterly without our consent, we could in such sort be at no man's commandment living. And to be commanded we do consent, when that society, whereof we be a part, hath at any time before consented, without revoking the same after by the like universal agreement. Laws therefore human, of what kind so ever, are available by consent. Ibid.)

Sect. 135. Though the legislative, whether placed in one or more, whether it be always in being, or only by intervals, though it be the supreme power in every commonwealth; yet:

First, It is not, nor can possibly be absolutely arbitrary over the lives and fortunes of the people: for it being but the joint power of every member of the society given up to that person, or assembly, which is legislator; it can be no more than those persons had in a state of nature before they entered into society, and gave up to the community: for no body can transfer to another more power than he has in himself; and no body has an absolute arbitrary power over himself, or over any other, to destroy his own life, or take away the life or property of another. A man, as has been proved, cannot subject himself to the arbitrary power of another; and having in the state of nature no arbitrary power over the life, liberty, or possession of another, but only so much as the law of nature gave him for the preservation of himself, and the rest of mankind; this is all he doth, or can give up to the commonwealth, and by it to the

legislative power, so that the legislative can have no more than this. Their power, in the utmost bounds of it, is limited to the public good of the society. It is a power, that hath no other end but preservation, and therefore can never have a right to destroy, enslave, or designedly to impoverish the subjects.* The obligations of the law of nature cease not in society, but only in many cases are drawn closer, and have by human laws known penalties annexed to them, to inforce their observation. Thus the law of nature stands as an eternal rule to all men, legislators as well as others. The rules that they make for other men's actions, must, as well as their own and other men's actions, be conformable to the law of nature, i.e. to the will of God, of which that is a declaration, and the fundamental law of nature being the preservation of mankind, no human sanction can be good, or valid against it.

(*Two foundations there are which bear up public societies; the one a natural inclination, whereby all men desire sociable life and fellowship; the other an order, expressly or secretly agreed upon, touching the manner of their union in living together: the latter is that which we call the law of a common-weal, the very soul of a politic body, the parts whereof are by law animated, held together, and set on work in such actions as the common good requireth. Laws politic, ordained for external order and regiment amongst men, are never framed as they should be, unless presuming the will of man to be inwardly obstinate, rebellious, and averse from all obedience to the sacred laws of his nature; in a word, unless presuming man to be, in regard of his depraved mind, little better than a wild beast, they do accordingly provide, notwithstanding, so to frame his outward actions, that they be no hindrance unto the common good, for which societies are instituted. Unless they do this, they are not perfect. Hooker's Eccl. Pol. l. i. sect. 10.)

Sect. 136. Secondly, The legislative, or supreme authority, cannot assume to its self a power to rule by extemporary arbitrary decrees, but is bound to dispense justice, and decide the rights of the subject by promulgated standing laws, and known authorized judges:* for the law of nature being unwritten, and so no where to be found but in the minds of men, they who through passion or interest shall miscite, or misapply it, cannot so easily be convinced of their mistake where there is no established judge: and so it serves not, as it ought, to determine the rights, and fence the properties of those that live under it, especially where every one is judge, interpreter, and executioner of it too, and that in his own case: and he that has right on his side, having ordinarily but his own single strength, hath not force enough to defend himself from injuries, or to punish delinquents. To avoid these inconveniences, which disorder men's properties in the state of nature, men unite into societies, that they may have the united strength of the whole society to secure and defend their properties, and may have standing rules to bound it, by which every one may know what is his. To this end it is that men give up all their natural power to the society which they enter into, and the community put the legislative power into such hands as they think fit, with this trust, that they shall be governed by declared laws, or else their peace, quiet, and property will still be at the same uncertainty, as it was in the state of nature.

(*Human laws are measures in respect of men whose actions they must direct, howbeit such measures they are as have also their higher rules to be measured by, which rules are two, the law of God, and the law of nature; so that laws human must be made according to the general laws of nature, and without contradiction to any positive law of scripture, otherwise they are ill made. Hooker's Eccl. Pol. l. iii. sect. 9.

To constrain men to any thing inconvenient doth seem unreasonable. Ibid. l. i. sect. 10.)

Sect. 137. Absolute arbitrary power, or governing without settled standing laws, can neither of them consist with the ends of society and government, which men would not quit the freedom of the state of nature for, and tie themselves up under, were it not to preserve their lives, liberties and fortunes, and by stated rules of right and property to secure their peace and quiet. It cannot be supposed that they should intend, had they a power so to do, to give to any one, or more, an absolute arbitrary power over their persons and estates, and put a force into the magistrate's hand to execute his unlimited will arbitrarily upon them. This were to put themselves into a worse condition than the state of nature, wherein they had a liberty to defend their right against the injuries of others, and were upon equal terms of force to maintain it, whether invaded by a single man, or many in combination. Whereas by supposing they have given up themselves to the absolute arbitrary power and will of a legislator, they have disarmed themselves, and armed him, to make a prey of them when he pleases; he being in a much worse condition, who is exposed to the arbitrary power of one man, who has the command of 100,000, than he that is exposed to the arbitrary power of 100,000 single men; no body being secure, that his will, who has such a command, is better than that of other men, though his force be 100,000 times stronger. And therefore, whatever form the commonwealth is under, the ruling power ought to govern by declared and received laws, and not by extemporary dictates and undetermined resolutions: for then mankind will be in a far worse condition than in the state of nature, if they shall have armed one, or a few men with the joint power of a multitude, to force them to obey at pleasure the exorbitant and unlimited decrees of their sudden thoughts, or unrestrained, and till that moment unknown wills, without having any measures set down which may guide and justify their actions: for all the power the government has, being only for the good of the society, as it ought not to be arbitrary and at pleasure, so it ought to be exercised by established and promulgated laws; that both the people may know their duty, and be safe and secure within the limits of the law; and the rulers too kept within their bounds, and not be tempted, by the power they have in their hands, to employ it to such purposes, and by such measures, as they would not have known, and own not willingly.

Sect. 138. Thirdly, The supreme power cannot take from any man any part of his property without his own consent: for the preservation of property being the end of government, and that for which men enter into society, it necessarily supposes and requires, that the people should have property, without which they must be supposed to lose that, by entering into society, which was the end for which they entered into it; too gross an absurdity for any man to own. Men therefore in society having property, they have such a right to the goods, which by the law of the community are their's, that no body hath a right to take their substance or any part of it from them, without their own consent: without this they have no property at all; for I have truly no property in that, which another can by right take from me, when he pleases, against my consent. Hence it is a mistake to think, that the supreme or legislative power of any commonwealth, can do what it will, and dispose of the estates of the subject arbitrarily, or take any part of them at pleasure. This is not much to be feared in governments where the legislative consists, wholly or in part, in assemblies which are variable, whose members, upon the dissolution of the assembly, are subjects under the common laws of their country, equally with the rest. But in governments, where the legislative is in one lasting assembly always in being, or in one man, as in absolute monarchies, there is danger still, that they will think themselves to have a distinct interest from the rest of the community; and so will be apt to increase their own riches and power, by taking what they think fit from the people: for a man's property is not at all secure, tho' there be good and equitable laws to set the bounds of it between him and his fellow subjects, if he who commands those subjects have power to take from any private man, what part he pleases of his property, and use and dispose of it as he thinks good...

Sect. 140. It is true, governments cannot be supported without great charge, and it is fit every one who enjoys his share of the protection, should pay out of his estate his proportion for the maintenance of it. But still it must be with his own consent, i.e. the consent of the majority, giving it either by themselves, or their representatives chosen by them: for if any one shall claim a power to lay and levy taxes on the people, by his own authority, and without such consent of the people, he thereby invades the fundamental law of property, and subverts the end of government: for what property have I in that, which another may by right take, when he pleases, to himself?

Sect. 141. Fourthly, The legislative cannot transfer the power of making laws to any other hands: for it being but a delegated power from the people, they who have it cannot pass it over to others. The people alone can appoint the form of the commonwealth, which is by constituting the legislative, and appointing in whose hands that shall be. And when the people have said, We will submit to rules, and be governed by laws made by such men, and in such forms, no body else can say other men shall make laws for them; nor can the people be bound by any laws, but such as are enacted by those whom they have chosen, and authorized to make laws for them. The power of the legislative, being derived from the people by a positive voluntary grant and institution, can be no other than what that positive grant conveyed, which being only to make laws, and not to make legislators, the legislative can have no power to transfer their authority of making laws, and place it in other hands.

Sect. 142. These are the bounds which the trust, that is put in them by the society, and the law of God and nature, have set to the legislative power of every commonwealth, in all forms of government.

First, They are to govern by promulgated established laws, not to be varied in particular cases, but to have one rule for rich and poor, for the favourite at court, and the country man at plough.

Secondly, These laws also ought to be designed for no other end ultimately, but the good of the people.

Thirdly, They must not raise taxes on the property of the people, without the consent of the people, given by themselves, or their deputies. And this properly concerns only such governments where the legislative is always in being, or at least where the people have not reserved any part of the legislative to deputies, to be from time to time chosen by themselves.

Fourthly, The legislative neither must nor can transfer the power of making laws to any body else, or place it any where, but where the people have.

CHAPTER. XII. OF THE LEGISLATIVE, EXECUTIVE, AND FEDERATIVE POWER OF THE COMMON- WEALTH.

Sect. 143. THE legislative power is that, which has a right to direct how the force of the commonwealth shall be employed for preserving the community and the members of it. But because those laws which are constantly to be executed, and whose force is always to continue, may be made in a little time; therefore there is no need, that the legislative should be always in being, not having always business to do. And because it may be too great a temptation to human frailty, apt to grasp at power, for the same persons, who have the power of making laws, to have also in their hands the power to execute them, whereby they may exempt themselves from obedience to the laws they make, and suit the law, both in

its making, and execution, to their own private advantage, and thereby come to have a distinct interest from the rest of the community, contrary to the end of society and government: therefore in wellordered commonwealths, where the good of the whole is so considered, as it ought, the legislative power is put into the hands of divers persons, who duly assembled, have by themselves, or jointly with others, a power to make laws, which when they have done, being separated again, they are themselves subject to the laws they have made; which is a new and near tie upon them, to take care, that they make them for the public good.

Sect. 144. But because the laws, that are at once, and in a short time made, have a constant and lasting force, and need a perpetual execution, or an attendance thereunto; therefore it is necessary there should be a power always in being, which should see to the execution of the laws that are made, and remain in force. And thus the legislative and executive power come often to be separated.

Sect. 145. There is another power in every commonwealth, which one may call natural, because it is that which answers to the power every man naturally had before he entered into society: for though in a commonwealth the members of it are distinct persons still in reference to one another, and as such as governed by the laws of the society; yet in reference to the rest of mankind, they make one body, which is, as every member of it before was, still in the state of nature with the rest of mankind. Hence it is, that the controversies that happen between any man of the society with those that are out of it, are managed by the public; and an injury done to a member of their body, engages the whole in the reparation of it. So that under this consideration, the whole community is one body in the state of nature, in respect of all other states or persons out of its community.

Sect. 146. This therefore contains the power of war and peace, leagues and alliances, and all the transactions, with all persons and communities without the commonwealth, and may be called federative, if any one pleases. So the thing be understood, I am indifferent as to the name.

Sect. 147. These two powers, executive and federative, though they be really distinct in themselves, yet one comprehending the execution of the municipal laws of the society within its self, upon all that are parts of it; the other the management of the security and interest of the public without, with all those that it may receive benefit or damage from, yet they are always almost united. And though this federative power in the well or ill management of it be of great moment to the commonwealth, yet it is much less capable to be directed by antecedent, standing, positive laws, than the executive; and so must necessarily be left to the prudence and wisdom of those, whose hands it is in, to be managed for the public good: for the laws that concern subjects one amongst another, being to direct their actions, may well enough precede them. But what is to be done in reference to foreigners, depending much upon their actions, and the variation of designs and interests, must be left in great part to the prudence of those, who have this power committed to them, to be managed by the best of their skill, for the advantage of the commonwealth.

Sect. 148. Though, as I said, the executive and federative power of every community be really distinct in themselves, yet they are hardly to be separated, and placed at the same time, in the hands of distinct persons: for both of them requiring the force of the society for their exercise, it is almost impracticable to place the force of the commonwealth in distinct, and not subordinate hands; or that the executive and federative power should be placed in persons, that might act separately, whereby the force of the public would be under different commands: which would be apt some time or other to cause disorder and ruin.

**CHAPTER. XIII.
OF THE SUBORDINATION OF THE POWERS OF THE COMMON-WEALTH.**

Sect. 149. **THOUGH** in a constituted commonwealth, standing upon its own basis, and acting according to its own nature, that is, acting for the preservation of the community, there can be but one supreme power, which is the legislative, to which all the rest are and must be subordinate, yet the legislative being only a fiduciary power to act for certain ends, there remains still in the people a supreme power to remove or alter the legislative, when they find the legislative act contrary to the trust reposed in them: for all power given with trust for the attaining an end, being limited by that end, whenever that end is manifestly neglected, or opposed, the trust must necessarily be forfeited, and the power devolve into the hands of those that gave it, who may place it anew where they shall think best for their safety and security. And thus the community perpetually retains a supreme power of saving themselves from the attempts and designs of any body, even of their legislators, whenever they shall be so foolish, or so wicked, as to lay and carry on designs against the liberties and properties of the subject: for no man or society of men, having a power to deliver up their preservation, or consequently the means of it, to the absolute will and arbitrary dominion of another; when ever any one shall go about to bring them into such a slavish condition, they will always have a right to preserve, what they have not a power to part with; and to rid themselves of those, who invade this fundamental, sacred, and unalterable law of self-preservation, for which they entered into society. And thus the community may be said in this respect to be always the supreme power, but not as considered under any form of government, because this power of the people can never take place till the government be dissolved...

**CHAPTER. XVI.
OF CONQUEST.**

Sect. 175. **THOUGH** governments can originally have no other rise than that before mentioned, nor polities be founded on any thing but the consent of the people; yet such have been the disorders ambition has filled the world with, that in the noise of war, which makes so great a part of the history of mankind, this consent is little taken notice of: and therefore many have mistaken the force of arms for the consent of the people, and reckon conquest as one of the originals of government. But conquest is as far from setting up any government, as demolishing an house is from building a new one in the place. Indeed, it often makes way for a new frame of a commonwealth, by destroying the former; but, without the consent of the people, can never erect a new one...

Sect. 177. But supposing victory favours the right side, let us consider a conqueror in a lawful war, and see what power he gets, and over whom.

First, It is plain he gets no power by his conquest over those that conquered with him. They that fought on his side cannot suffer by the conquest, but must at least be as much freemen as they were before. And most commonly they serve upon terms, and on condition to share with their leader, and enjoy a part of the spoil, and other advantages that attend the conquering sword; or at least have a part of the subdued country bestowed upon them. And the conquering people are not, I hope, to be slaves by conquest, and wear their laurels only to shew they are sacrifices to their leaders triumph. They that found absolute monarchy upon the title of the sword, make their heroes, who are the founders of such monarchies, arrant Draw-can-sirs, and forget they had any officers and soldiers that fought on their side in the battles

they won, or assisted them in the subduing, or shared in possessing, the countries they mastered. We are told by some, that the English monarchy is founded in the Norman conquest, and that our princes have thereby a title to absolute dominion: which if it were true, (as by the history it appears otherwise) and that William had a right to make war on this island; yet his dominion by conquest could reach no farther than to the Saxons and Britons, that were then inhabitants of this country. The Normans that came with him, and helped to conquer, and all descended from them, are freemen, and no subjects by conquest; let that give what dominion it will. And if I, or any body else, shall claim freedom, as derived from them, it will be very hard to prove the contrary: and it is plain, the law, that has made no distinction between the one and the other, intends not there should be any difference in their freedom or privileges.

Sect. 178. But supposing, which seldom happens, that the conquerors and conquered never incorporate into one people, under the same laws and freedom; let us see next what power a lawful conqueror has over the subdued: and that I say is purely despotical. He has an absolute power over the lives of those who by an unjust war have forfeited them; but not over the lives or fortunes of those who engaged not in the war, nor over the possessions even of those who were actually engaged in it.

Sect. 179. Secondly, I say then the conqueror gets no power but only over those who have actually assisted, concurred, or consented to that unjust force that is used against him: for the people having given to their governors no power to do an unjust thing, such as is to make an unjust war, (for they never had such a power in themselves) they ought not to be charged as guilty of the violence and injustice that is committed in an unjust war, any farther than they actually abet it; no more than they are to be thought guilty of any violence or oppression their governors should use upon the people themselves, or any part of their fellow subjects, they having empowered them no more to the one than to the other. Conquerors, it is true, seldom trouble themselves to make the distinction, but they willingly permit the confusion of war to sweep all together: but yet this alters not the right; for the conquerors power over the lives of the conquered, being only because they have used force to do, or maintain an injustice, he can have that power only over those who have concurred in that force; all the rest are innocent; and he has no more title over the people of that country, who have done him no injury, and so have made no forfeiture of their lives, than he has over any other, who, without any injuries or provocations, have lived upon fair terms with him.

Sect. 180. Thirdly, The power a conqueror gets over those he overcomes in a just war, is perfectly despotical: he has an absolute power over the lives of those, who, by putting themselves in a state of war, have forfeited them; but he has not thereby a right and title to their possessions. This I doubt not, but at first sight will seem a strange doctrine, it being so quite contrary to the practice of the world; there being nothing more familiar in speaking of the dominion of countries, than to say such an one conquered it; as if conquest, without any more ado, conveyed a right of possession. But when we consider, that the practice of the strong and powerful, how universal soever it may be, is seldom the rule of right, however it be one part of the subjection of the conquered, not to argue against the conditions cut out to them by the conquering sword.

Sect. 181. Though in all war there be usually a complication of force and damage, and the aggressor seldom fails to harm the estate, when he uses force against the persons of those he makes war upon; yet it is the use of force only that puts a man into the state of war: for whether by force he begins the injury, or else having quietly, and by fraud, done the injury, he refuses to make reparation, and by force maintains it, (which is the same thing, as at first to have done it by force) it is the unjust use of force that

makes the war: for he that breaks open my house, and violently turns me out of doors; or having peaceably got in, by force keeps me out, does in effect the same thing; supposing we are in such a state, that we have no common judge on earth, whom I may appeal to, and to whom we are both obliged to submit: for of such I am now speaking. It is the unjust use of force then, that puts a man into the state of war with another; and thereby he that is guilty of it makes a forfeiture of his life: for quitting reason, which is the rule given between man and man, and using force, the way of beasts, he becomes liable to be destroyed by him he uses force against, as any savage ravenous beast, that is dangerous to his being...

Sect. 190. Every man is born with a double right: first, a right of freedom to his person, which no other man has a power over, but the free disposal of it lies in himself. Secondly, a right, before any other man, to inherit with his brethren his father's goods.

Sect. 191. By the first of these, a man is naturally free from subjection to any government, tho' he be born in a place under its jurisdiction; but if he disclaim the lawful government of the country he was born in, he must also quit the right that belonged to him by the laws of it, and the possessions there descending to him from his ancestors, if it were a government made by their consent.

Sect. 192. By the second, the inhabitants of any country, who are descended, and derive a title to their estates from those who are subdued, and had a government forced upon them against their free consents, retain a right to the possession of their ancestors, though they consent not freely to the government, whose hard conditions were by force imposed on the possessors of that country: for the first conqueror never having had a title to the land of that country, the people who are the descendants of, or claim under those who were forced to submit to the yoke of a government by constraint, have always a right to shake it off, and free themselves from the usurpation or tyranny which the sword hath brought in upon them, till their rulers put them under such a frame of government as they willingly and of choice consent to. Who doubts but the Grecian Christians, descendants of the ancient possessors of that country, may justly cast off the Turkish yoke, which they have so long groaned under, whenever they have an opportunity to do it? For no government can have a right to obedience from a people who have not freely consented to it; which they can never be supposed to do, till either they are put in a full state of liberty to chuse their government and governors, or at least till they have such standing laws, to which they have by themselves or their representatives given their free consent, and also till they are allowed their due property, which is so to be proprietors of what they have, that no body can take away any part of it without their own consent, without which, men under any government are not in the state of freemen, but are direct slaves under the force of war...

CHAPTER. XVII. OF USURPATION.

Sect. 197. AS conquest may be called a foreign usurpation, so usurpation is a kind of domestic conquest, with this difference, that an usurper can never have right on his side, it being no usurpation, but where one is got into the possession of what another has right to. This, so far as it is usurpation, is a change only of persons, but not of the forms and rules of the government: for if the usurper extend his power beyond what of right belonged to the lawful princes, or governors of the commonwealth, it is tyranny added to usurpation.

Sect. 198. In all lawful governments, the designation of the persons, who are to bear rule, is as natural

and necessary a part as the form of the government itself, and is that which had its establishment originally from the people; the anarchy being much alike, to have no form of government at all; or to agree, that it shall be monarchical, but to appoint no way to design the person that shall have the power, and be the monarch. Hence all commonwealths, with the form of government established, have rules also of appointing those who are to have any share in the public authority, and settled methods of conveying the right to them: for the anarchy is much alike, to have no form of government at all; or to agree that it shall be monarchical, but to appoint no way to know or design the person that shall have the power, and be the monarch. Whoever gets into the exercise of any part of the power, by other ways than what the laws of the community have prescribed, hath no right to be obeyed, though the form of the commonwealth be still preserved; since he is not the person the laws have appointed, and consequently not the person the people have consented to. Nor can such an usurper, or any deriving from him, ever have a title, till the people are both at liberty to consent, and have actually consented to allow, and confirm in him the power he hath till then usurped.

CHAPTER. XVIII. OF TYRANNY.

Sect. 199. AS usurpation is the exercise of power, which another hath a right to; so tyranny is the exercise of power beyond right, which no body can have a right to. And this is making use of the power any one has in his hands, not for the good of those who are under it, but for his own private separate advantage. When the governor, however intitled, makes not the law, but his will, the rule; and his commands and actions are not directed to the preservation of the properties of his people, but the satisfaction of his own ambition, revenge, covetousness, or any other irregular passion...

Sect. 201. It is a mistake, to think this fault is proper only to monarchies; other forms of government are liable to it, as well as that: for wherever the power, that is put in any hands for the government of the people, and the preservation of their properties, is applied to other ends, and made use of to impoverish, harass, or subdue them to the arbitrary and irregular commands of those that have it; there it presently becomes tyranny, whether those that thus use it are one or many. Thus we read of the thirty tyrants at Athens, as well as one at Syracuse; and the intolerable dominion of the Decemviri at Rome was nothing better.

Sect. 202. Where-ever law ends, tyranny begins, if the law be transgressed to another's harm; and whosoever in authority exceeds the power given him by the law, and makes use of the force he has under his command, to compass that upon the subject, which the law allows not, ceases in that to be a magistrate; and, acting without authority, may be opposed, as any other man, who by force invades the right of another. This is acknowledged in subordinate magistrates. He that hath authority to seize my person in the street, may be opposed as a thief and a robber, if he endeavours to break into my house to execute a writ, notwithstanding that I know he has such a warrant, and such a legal authority, as will empower him to arrest me abroad. And why this should not hold in the highest, as well as in the most inferior magistrate, I would gladly be informed. Is it reasonable, that the eldest brother, because he has the greatest part of his father's estate, should thereby have a right to take away any of his younger brothers portions? or that a rich man, who possessed a whole country, should from thence have a right to seize, when he pleased, the cottage and garden of his poor neighbour? The being rightfully possessed of great power and riches, exceedingly beyond the greatest part of the sons of Adam, is so far from being an excuse, much less a reason, for rapine and oppression, which the endamaging another without

authority is, that it is a great aggravation of it: for the exceeding the bounds of authority is no more a right in a great, than in a petty officer; no more justifiable in a king than a constable; but is so much the worse in him, in that he has more trust put in him, has already a much greater share than the rest of his brethren, and is supposed, from the advantages of his education, employment, and counsellors, to be more knowing in the measures of right and wrong.

Sect. 203. May the commands then of a prince be opposed? may he be resisted as often as any one shall find himself aggrieved, and but imagine he has not right done him? This will unhinge and overturn all polities, and, instead of government and order, leave nothing but anarchy and confusion.

Sect. 204. To this I answer, that force is to be opposed to nothing, but to unjust and unlawful force; whoever makes any opposition in any other case, draws on himself a just condemnation both from God and man; and so no such danger or confusion will follow, as is often suggested: for,

Sect. 205. First, As, in some countries, the person of the prince by the law is sacred; and so, whatever he commands or does, his person is still free from all question or violence, not liable to force, or any judicial censure or condemnation. But yet opposition may be made to the illegal acts of any inferior officer, or other commissioned by him; unless he will, by actually putting himself into a state of war with his people, dissolve the government, and leave them to that defence which belongs to every one in the state of nature: for of such things who can tell what the end will be? and a neighbour kingdom has shewed the world an odd example. In all other cases the sacredness of the person exempts him from all inconveniencies, whereby he is secure, whilst the government stands, from all violence and harm whatsoever; than which there cannot be a wiser constitution: for the harm he can do in his own person not being likely to happen often, nor to extend itself far; nor being able by his single strength to subvert the laws, nor oppress the body of the people, should any prince have so much weakness, and ill nature as to be willing to do it, the inconveniency of some particular mischiefs, that may happen sometimes, when a heady prince comes to the throne, are well recompensed by the peace of the public, and security of the government, in the person of the chief magistrate, thus set out of the reach of danger: it being safer for the body, that some few private men should be sometimes in danger to suffer, than that the head of the republic should be easily, and upon slight occasions, exposed.

Sect. 206. Secondly, But this privilege, belonging only to the king's person, hinders not, but they may be questioned, opposed, and resisted, who use unjust force, though they pretend a commission from him, which the law authorizes not; as is plain in the case of him that has the king's writ to arrest a man, which is a full commission from the king; and yet he that has it cannot break open a man's house to do it, nor execute this command of the king upon certain days, nor in certain places, though this commission have no such exception in it; but they are the limitations of the law, which if any one transgress, the king's commission excuses him not: for the king's authority being given him only by the law, he cannot empower any one to act against the law, or justify him, by his commission, in so doing; the commission, or command of any magistrate, where he has no authority, being as void and insignificant, as that of any private man; the difference between the one and the other, being that the magistrate has some authority so far, and to such ends, and the private man has none at all: for it is not the commission, but the authority, that gives the right of acting; and against the laws there can be no authority. But, notwithstanding such resistance, the king's person and authority are still both secured, and so no danger to governor or government.

Sect. 207. Thirdly, Supposing a government wherein the person of the chief magistrate is not thus sacred; yet this doctrine of the lawfulness of resisting all unlawful exercises of his power, will not upon every slight occasion indanger him, or imbroil the government: for where the injured party may be relieved, and his damages repaired by appeal to the law, there can be no pretence for force, which is only to be used where a man is intercepted from appealing to the law: for nothing is to be accounted hostile force, but where it leaves not the remedy of such an appeal; and it is such force alone, that puts him that uses it into a state of war, and makes it lawful to resist him. A man with a sword in his hand demands my purse in the high-way, when perhaps I have not twelve pence in my pocket: this man I may lawfully kill. To another I deliver 100 pounds to hold only whilst I alight, which he refuses to restore me, when I am got up again, but draws his sword to defend the possession of it by force, if I endeavour to retake it. The mischief this man does me is a hundred, or possibly a thousand times more than the other perhaps intended me (whom I killed before he really did me any); and yet I might lawfully kill the one, and cannot so much as hurt the other lawfully. The reason whereof is plain; because the one using force, which threatened my life, I could not have time to appeal to the law to secure it: and when it was gone, it was too late to appeal. The law could not restore life to my dead carcass: the loss was irreparable; which to prevent, the law of nature gave me a right to destroy him, who had put himself into a state of war with me, and threatened my destruction. But in the other case, my life not being in danger, I may have the benefit of appealing to the law, and have reparation for my 100 pounds that way.

Sect. 208. Fourthly, But if the unlawful acts done by the magistrate be maintained (by the power he has got), and the remedy which is due by law, be by the same power obstructed; yet the right of resisting, even in such manifest acts of tyranny, will not suddenly, or on slight occasions, disturb the government: for if it reach no farther than some private men's cases, though they have a right to defend themselves, and to recover by force what by unlawful force is taken from them; yet the right to do so will not easily engage them in a contest, wherein they are sure to perish; it being as impossible for one, or a few oppressed men to disturb the government, where the body of the people do not think themselves concerned in it, as for a raving mad-man, or heady malcontent to overturn a well settled state; the people being as little apt to follow the one, as the other.

Sect. 209. But if either these illegal acts have extended to the majority of the people; or if the mischief and oppression has lighted only on some few, but in such cases, as the precedent, and consequences seem to threaten all; and they are persuaded in their consciences, that their laws, and with them their estates, liberties, and lives are in danger, and perhaps their religion too; how they will be hindered from resisting illegal force, used against them, I cannot tell. This is an inconvenience, I confess, that attends all governments whatsoever, when the governors have brought it to this pass, to be generally suspected of their people; the most dangerous state which they can possibly put themselves in, wherein they are the less to be pitied, because it is so easy to be avoided; it being as impossible for a governor, if he really means the good of his people, and the preservation of them, and their laws together, not to make them see and feel it, as it is for the father of a family, not to let his children see he loves, and takes care of them...

CHAPTER. XIX. OF THE DISSOLUTION OF GOVERNMENT.

Sect. 211. HE that will with any clearness speak of the dissolution of government, ought in the first place to distinguish between the dissolution of the society and the dissolution of the government. That

which makes the community, and brings men out of the loose state of nature, into one politic society, is the agreement which every one has with the rest to incorporate, and act as one body, and so be one distinct commonwealth. The usual, and almost only way whereby this union is dissolved, is the inroad of foreign force making a conquest upon them: for in that case, (not being able to maintain and support themselves, as one intire and independent body) the union belonging to that body which consisted therein, must necessarily cease, and so every one return to the state he was in before, with a liberty to shift for himself, and provide for his own safety, as he thinks fit, in some other society. Whenever the society is dissolved, it is certain the government of that society cannot remain. Thus conquerors swords often cut up governments by the roots, and mangle societies to pieces, separating the subdued or scattered multitude from the protection of, and dependence on, that society which ought to have preserved them from violence. The world is too well instructed in, and too forward to allow of, this way of dissolving of governments, to need any more to be said of it; and there wants not much argument to prove, that where the society is dissolved, the government cannot remain; that being as impossible, as for the frame of an house to subsist when the materials of it are scattered and dissipated by a whirl-wind, or jumbled into a confused heap by an earthquake.

Sect. 212. Besides this over-turning from without, governments are dissolved from within.

First, When the legislative is altered. Civil society being a state of peace, amongst those who are of it, from whom the state of war is excluded by the umpirage, which they have provided in their legislative, for the ending all differences that may arise amongst any of them, it is in their legislative, that the members of a commonwealth are united, and combined together into one coherent living body. This is the soul that gives form, life, and unity, to the commonwealth: from hence the several members have their mutual influence, sympathy, and connexion: and therefore, when the legislative is broken, or dissolved, dissolution and death follows: for the essence and union of the society consisting in having one will, the legislative, when once established by the majority, has the declaring, and as it were keeping of that will. The constitution of the legislative is the first and fundamental act of society, whereby provision is made for the continuation of their union, under the direction of persons, and bonds of laws, made by persons authorized thereunto, by the consent and appointment of the people, without which no one man, or number of men, amongst them, can have authority of making laws that shall be binding to the rest. When any one, or more, shall take upon them to make laws, whom the people have not appointed so to do, they make laws without authority, which the people are not therefore bound to obey; by which means they come again to be out of subjection, and may constitute to themselves a new legislative, as they think best, being in full liberty to resist the force of those, who without authority would impose any thing upon them. Every one is at the disposal of his own will, when those who had, by the delegation of the society, the declaring of the public will, are excluded from it, and others usurp the place, who have no such authority or delegation...

Sect. 221. There is therefore, secondly, another way whereby governments are dissolved, and that is, when the legislative, or the prince, either of them, act contrary to their trust.

First, The legislative acts against the trust reposed in them, when they endeavour to invade the property of the subject, and to make themselves, or any part of the community, masters, or arbitrary disposers of the lives, liberties, or fortunes of the people.

Sect. 222. The reason why men enter into society, is the preservation of their property; and the end why

they chuse and authorize a legislative, is, that there may be laws made, and rules set, as guards and fences to the properties of all the members of the society, to limit the power, and moderate the dominion, of every part and member of the society: for since it can never be supposed to be the will of the society, that the legislative should have a power to destroy that which every one designs to secure, by entering into society, and for which the people submitted themselves to legislators of their own making; whenever the legislators endeavour to take away, and destroy the property of the people, or to reduce them to slavery under arbitrary power, they put themselves into a state of war with the people, who are thereupon absolved from any farther obedience, and are left to the common refuge, which God hath provided for all men, against force and violence. Whensoever therefore the legislative shall transgress this fundamental rule of society; and either by ambition, fear, folly or corruption, endeavour to grasp themselves, or put into the hands of any other, an absolute power over the lives, liberties, and estates of the people; by this breach of trust they forfeit the power the people had put into their hands for quite contrary ends, and it devolves to the people, who have a right to resume their original liberty, and, by the establishment of a new legislative, (such as they shall think fit) provide for their own safety and security, which is the end for which they are in society. What I have said here, concerning the legislative in general, holds true also concerning the supreme executor, who having a double trust put in him, both to have a part in the legislative, and the supreme execution of the law, acts against both, when he goes about to set up his own arbitrary will as the law of the society. He acts also contrary to his trust, when he either employs the force, treasure, and offices of the society, to corrupt the representatives, and gain them to his purposes; or openly preengages the electors, and prescribes to their choice, such, whom he has, by solicitations, threats, promises, or otherwise, won to his designs; and employs them to bring in such, who have promised before-hand what to vote, and what to enact. Thus to regulate candidates and electors, and new-model the ways of election, what is it but to cut up the government by the roots, and poison the very fountain of public security? for the people having reserved to themselves the choice of their representatives, as the fence to their properties, could do it for no other end, but that they might always be freely chosen, and so chosen, freely act, and advise, as the necessity of the commonwealth, and the public good should, upon examination, and mature debate, be judged to require. This, those who give their votes before they hear the debate, and have weighed the reasons on all sides, are not capable of doing. To prepare such an assembly as this, and endeavour to set up the declared abettors of his own will, for the true representatives of the people, and the law-makers of the society, is certainly as great a breach of trust, and as perfect a declaration of a design to subvert the government, as is possible to be met with. To which, if one shall add rewards and punishments visibly employed to the same end, and all the arts of perverted law made use of, to take off and destroy all that stand in the way of such a design, and will not comply and consent to betray the liberties of their country, it will be past doubt what is doing. What power they ought to have in the society, who thus employ it contrary to the trust went along with it in its first institution, is easy to determine; and one cannot but see, that he, who has once attempted any such thing as this, cannot any longer be trusted.

Sect. 223. To this perhaps it will be said, that the people being ignorant, and always discontented, to lay the foundation of government in the unsteady opinion and uncertain humour of the people, is to expose it to certain ruin; and no government will be able long to subsist, if the people may set up a new legislative, whenever they take offence at the old one. To this I answer, Quite the contrary. People are not so easily got out of their old forms, as some are apt to suggest. They are hardly to be prevailed with to amend the acknowledged faults in the frame they have been accustomed to. And if there be any original defects, or adventitious ones introduced by time, or corruption; it is not an easy thing to get them changed, even when all the world sees there is an opportunity for it. This slowness and aversion in

the people to quit their old constitutions, has, in the many revolutions which have been seen in this kingdom, in this and former ages, still kept us to, or, after some interval of fruitless attempts, still brought us back again to our old legislative of king, lords and commons: and whatever provocations have made the crown be taken from some of our princes heads, they never carried the people so far as to place it in another line.

Sect. 224. But it will be said, this hypothesis lays a ferment for frequent rebellion. To which I answer,

First, No more than any other hypothesis: for when the people are made miserable, and find themselves exposed to the ill usage of arbitrary power, cry up their governors, as much as you will, for sons of Jupiter; let them be sacred and divine, descended, or authorized from heaven; give them out for whom or what you please, the same will happen. The people generally ill treated, and contrary to right, will be ready upon any occasion to ease themselves of a burden that sits heavy upon them. They will wish, and seek for the opportunity, which in the change, weakness and accidents of human affairs, seldom delays long to offer itself. He must have lived but a little while in the world, who has not seen examples of this in his time; and he must have read very little, who cannot produce examples of it in all sorts of governments in the world.

Sect. 225. Secondly, I answer, such revolutions happen not upon every little mismanagement in public affairs. Great mistakes in the ruling part, many wrong and inconvenient laws, and all the slips of human frailty, will be born by the people without mutiny or murmur. But if a long train of abuses, prevarications and artifices, all tending the same way, make the design visible to the people, and they cannot but feel what they lie under, and see whither they are going; it is not to be wondered, that they should then rouse themselves, and endeavour to put the rule into such hands which may secure to them the ends for which government was at first erected; and without which, ancient names, and specious forms, are so far from being better, that they are much worse, than the state of nature, or pure anarchy; the inconveniencies being all as great and as near, but the remedy farther off and more difficult.

Sect. 226. Thirdly, I answer, that this doctrine of a power in the people of providing for their safety anew, by a new legislative, when their legislators have acted contrary to their trust, by invading their property, is the best fence against rebellion, and the probablest means to hinder it: for rebellion being an opposition, not to persons, but authority, which is founded only in the constitutions and laws of the government; those, whoever they be, who by force break through, and by force justify their violation of them, are truly and properly rebels: for when men, by entering into society and civil-government, have excluded force, and introduced laws for the preservation of property, peace, and unity amongst themselves, those who set up force again in opposition to the laws, do rebellare, that is, bring back again the state of war, and are properly rebels: which they who are in power, (by the pretence they have to authority, the temptation of force they have in their hands, and the flattery of those about them) being likeliest to do; the properest way to prevent the evil, is to shew them the danger and injustice of it, who are under the greatest temptation to run into it.

Sect. 227. In both the fore-mentioned cases, when either the legislative is changed, or the legislators act contrary to the end for which they were constituted; those who are guilty are guilty of rebellion: for if any one by force takes away the established legislative of any society, and the laws by them made, pursuant to their trust, he thereby takes away the umpirage, which every one had consented to, for a peaceable decision of all their controversies, and a bar to the state of war amongst them. They, who

remove, or change the legislative, take away this decisive power, which no body can have, but by the appointment and consent of the people; and so destroying the authority which the people did, and no body else can set up, and introducing a power which the people hath not authorized, they actually introduce a state of war, which is that of force without authority: and thus, by removing the legislative established by the society, (in whose decisions the people acquiesced and united, as to that of their own will) they untie the knot, and expose the people a-new to the state of war, And if those, who by force take away the legislative, are rebels, the legislators themselves, as has been shewn, can be no less esteemed so; when they, who were set up for the protection, and preservation of the people, their liberties and properties, shall by force invade and endeavour to take them away; and so they putting themselves into a state of war with those who made them the protectors and guardians of their peace, are properly, and with the greatest aggravation, rebellantes, rebels...

Sect. 240. Here, it is like, the common question will be made, Who shall be judge, whether the prince or legislative act contrary to their trust? This, perhaps, ill-affected and factious men may spread amongst the people, when the prince only makes use of his due prerogative. To this I reply, The people shall be judge; for who shall be judge whether his trustee or deputy acts well, and according to the trust reposed in him, but he who deposes him, and must, by having deposed him, have still a power to discard him, when he fails in his trust? If this be reasonable in particular cases of private men, why should it be otherwise in that of the greatest moment, where the welfare of millions is concerned, and also where the evil, if not prevented, is greater, and the redress very difficult, dear, and dangerous?

Sect. 241. But farther, this question, (Who shall be judge?) cannot mean, that there is no judge at all: for where there is no judicature on earth, to decide controversies amongst men, God in heaven is judge. He alone, it is true, is judge of the right. But every man is judge for himself, as in all other cases, so in this, whether another hath put himself into a state of war with him, and whether he should appeal to the Supreme Judge, as Jephtha did.

Sect. 242. If a controversy arise betwixt a prince and some of the people, in a matter where the law is silent, or doubtful, and the thing be of great consequence, I should think the proper umpire, in such a case, should be the body of the people: for in cases where the prince hath a trust reposed in him, and is dispensed from the common ordinary rules of the law; there, if any men find themselves aggrieved, and think the prince acts contrary to, or beyond that trust, who so proper to judge as the body of the people, (who, at first, lodged that trust in him) how far they meant it should extend? But if the prince, or whoever they be in the administration, decline that way of determination, the appeal then lies no where but to heaven; force between either persons, who have no known superior on earth, or which permits no appeal to a judge on earth, being properly a state of war, wherein the appeal lies only to heaven; and in that state the injured party must judge for himself, when he will think fit to make use of that appeal, and put himself upon it.

Sect. 243. To conclude, The power that every individual gave the society, when he entered into it, can never revert to the individuals again, as long as the society lasts, but will always remain in the community; because without this there can be no community, no commonwealth, which is contrary to the original agreement: so also when the society hath placed the legislative in any assembly of men, to continue in them and their successors, with direction and authority for providing such successors, the legislative can never revert to the people whilst that government lasts; because having provided a legislative with power to continue for ever, they have given up their political power to the legislative,

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and cannot resume it. But if they have set limits to the duration of their legislative, and made this supreme power in any person, or assembly, only temporary; or else, when by the miscarriages of those in authority, it is forfeited; upon the forfeiture, or at the determination of the time set, it reverts to the society, and the people have a right to act as supreme, and continue the legislative in themselves; or erect a new form, or under the old form place it in new hands, as they think good.

FINIS.

14 Letter Concerning Toleration (John Locke)¹

Honoured Sir,

Since you are pleased to inquire what are my thoughts about the mutual toleration of Christians in their different professions of religion, I must needs answer you freely that I esteem that toleration to be the chief characteristic mark of the true Church. For whatsoever some people boast of the antiquity of places and names, or of the pomp of their outward worship; others, of the reformation of their discipline; all, of the orthodoxy of their faith — for everyone is orthodox to himself — these things, and all others of this nature, are much rather marks of men striving for power and empire over one another than of the Church of Christ. Let anyone have never so true a claim to all these things, yet if he be destitute of charity, meekness, and good-will in general towards all mankind, even to those that are not Christians, he is certainly yet short of being a true Christian himself. "The kings of the Gentiles exercise leadership over them," said our Saviour to his disciples, "but ye shall not be so." [1] The business of true religion is quite another thing. It is not instituted in order to the erecting of an external pomp, nor to the obtaining of ecclesiastical dominion, nor to the exercising of compulsive force, but to the regulating of men's lives, according to the rules of virtue and piety. Whosoever will list himself under the banner of Christ, must, in the first place and above all things, make war upon his own lusts and vices. It is in vain for any man to usurp the name of Christian, without holiness of life, purity of manners, benignity and meekness of spirit. "Let everyone that nameth the name of Christ, depart from iniquity." [2] "Thou, when thou art converted, strengthen thy brethren," said our Lord to Peter. [3] It would, indeed, be very hard for one that appears careless about his own salvation to persuade me that he were extremely concerned for mine. For it is impossible that those should sincerely and heartily apply themselves to make other people Christians, who have not really embraced the Christian religion in their own hearts. If the Gospel and the apostles may be credited, no man can be a Christian without charity and without that faith which works, not by force, but by love. Now, I appeal to the consciences of those that persecute, torment, destroy, and kill other men upon pretence of religion, whether they do it out of friendship and kindness towards them or no? And I shall then indeed, and not until then, believe they do so, when I shall see those fiery zealots correcting, in the same manner, their friends and familiar acquaintance for the manifest sins they commit against the precepts of the Gospel; when I shall see them persecute with fire and sword the members of their own communion that are tainted with enormous vices and without amendment are in danger of eternal perdition; and when I shall see them thus express their love and desire of the salvation of their souls by the infliction of torments and exercise of all manner of cruelties. For if it be out of a principle of charity, as they pretend, and love to men's souls that they deprive them of their estates, maim them with corporal punishments, starve and torment them in noisome prisons, and in the end even take away their lives — I say, if all this be done merely to make men Christians and procure their salvation, why then do they suffer whoredom, fraud, malice, and such-like enormities, which (according to the apostle) [4] manifestly relish of heathenish corruption, to predominate so much and abound amongst their flocks and people? These, and such-like things, are certainly more contrary to the glory of God, to the purity of the Church, and to the salvation of souls, than any conscientious dissent from ecclesiastical decisions, or

¹ John Locke, 1689. Translated from the original Latin by William Popple.

separation from public worship, whilst accompanied with innocence of life. Why, then, does this burning zeal for God, for the Church, and for the salvation of souls — burning I say, literally, with fire and faggot — pass by those moral vices and wickednesses, without any chastisement, which are acknowledged by all men to be diametrically opposite to the profession of Christianity, and bend all its nerves either to the introducing of ceremonies, or to the establishment of opinions, which for the most part are about nice and intricate matters, that exceed the capacity of ordinary understandings? Which of the parties contending about these things is in the right, which of them is guilty of schism or heresy, whether those that domineer or those that suffer, will then at last be manifest when the causes of their separation comes to be judged of He, certainly, that follows Christ, embraces His doctrine, and bears His yoke, though he forsake both father and mother, separate from the public assemblies and ceremonies of his country, or whomsoever or whatsoever else he relinquishes, will not then be judged a heretic.

Now, though the divisions that are amongst sects should be allowed to be never so obstructive of the salvation of souls; yet, nevertheless, adultery, fornication, uncleanness, lasciviousness, idolatry, and such-like things, cannot be denied to be works of the flesh, concerning which the apostle has expressly declared that "they who do them shall not inherit the kingdom of God." [5] Whosoever, therefore, is sincerely solicitous about the kingdom of God and thinks it his duty to endeavour the enlargement of it amongst men, ought to apply himself with no less care and industry to the rooting out of these immoralities than to the extirpation of sects. But if anyone do otherwise, and whilst he is cruel and implacable towards those that differ from him in opinion, he be indulgent to such iniquities and immoralities as are unbecoming the name of a Christian, let such a one talk never so much of the Church, he plainly demonstrates by his actions that it is another kingdom he aims at and not the advancement of the kingdom of God.

That any man should think fit to cause another man — whose salvation he heartily desires — to expire in torments, and that even in an unconverted state, would, I confess, seem very strange to me, and I think, to any other also. But nobody, surely, will ever believe that such a carriage can proceed from charity, love, or goodwill. If anyone maintain that men ought to be compelled by fire and sword to profess certain doctrines, and conform to this or that exterior worship, without any regard had unto their morals; if anyone endeavour to convert those that are erroneous unto the faith, by forcing them to profess things that they do not believe and allowing them to practise things that the Gospel does not permit, it cannot be doubted indeed but such a one is desirous to have a numerous assembly joined in the same profession with himself; but that he principally intends by those means to compose a truly Christian Church is altogether incredible. It is not, therefore, to be wondered at if those who do not really contend for the advancement of the true religion, and of the Church of Christ, make use of arms that do not belong to the Christian warfare. If, like the Captain of our salvation, they sincerely desired the good of souls, they would tread in the steps and follow the perfect example of that Prince of Peace, who sent out His soldiers to the subduing of nations, and gathering them into His Church, not armed with the sword, or other instruments of force, but prepared with the Gospel of peace and with the exemplary holiness of their conversation. This was His method. Though if infidels were to be converted by force, if those that are either blind or obstinate were to be drawn off from their errors by armed soldiers, we know very well that it was much more easy for Him to do it with armies of heavenly legions than for any son of the Church, how potent soever, with all his dragoons.

The toleration of those that differ from others in matters of religion is so agreeable to the Gospel of Jesus Christ, and to the genuine reason of mankind, that it seems monstrous for men to be so blind as not

to perceive the necessity and advantage of it in so clear a light. I will not here tax the pride and ambition of some, the passion and uncharitable zeal of others. These are faults from which human affairs can perhaps scarce ever be perfectly freed; but yet such as nobody will bear the plain imputation of, without covering them with some specious colour; and so pretend to commendation, whilst they are carried away by their own irregular passions. But, however, that some may not colour their spirit of persecution and unchristian cruelty with a pretence of care of the public weal and observation of the laws; and that others, under pretence of religion, may not seek impunity for their libertinism and licentiousness; in a word, that none may impose either upon himself or others, by the pretences of loyalty and obedience to the prince, or of tenderness and sincerity in the worship of God; I esteem it above all things necessary to distinguish exactly the business of civil government from that of religion and to settle the just bounds that lie between the one and the other. If this be not done, there can be no end put to the controversies that will be always arising between those that have, or at least pretend to have, on the one side, a concernment for the interest of men's souls, and, on the other side, a care of the commonwealth.

The commonwealth seems to me to be a society of men constituted only for the procuring, preserving, and advancing their own civil interests.

Civil interests I call life, liberty, health, and indolency of body; and the possession of outward things, such as money, lands, houses, furniture, and the like.

It is the duty of the civil magistrate, by the impartial execution of equal laws, to secure unto all the people in general and to every one of his subjects in particular the just possession of these things belonging to this life. If anyone presume to violate the laws of public justice and equity, established for the preservation of those things, his presumption is to be checked by the fear of punishment, consisting of the deprivation or diminution of those civil interests, or goods, which otherwise he might and ought to enjoy. But seeing no man does willingly suffer himself to be punished by the deprivation of any part of his goods, and much less of his liberty or life, therefore, is the magistrate armed with the force and strength of all his subjects, in order to the punishment of those that violate any other man's rights.

Now that the whole jurisdiction of the magistrate reaches only to these civil concernments, and that all civil power, right and dominion, is bounded and confined to the only care of promoting these things; and that it neither can nor ought in any manner to be extended to the salvation of souls, these following considerations seem unto me abundantly to demonstrate.

First, because the care of souls is not committed to the civil magistrate, any more than to other men. It is not committed unto him, I say, by God; because it appears not that God has ever given any such authority to one man over another as to compel anyone to his religion. Nor can any such power be vested in the magistrate by the consent of the people, because no man can so far abandon the care of his own salvation as blindly to leave to the choice of any other, whether prince or subject, to prescribe to him what faith or worship he shall embrace. For no man can, if he would, conform his faith to the dictates of another. All the life and power of true religion consist in the inward and full persuasion of the mind; and faith is not faith without believing. Whatever profession we make, to whatever outward worship we conform, if we are not fully satisfied in our own mind that the one is true and the other well pleasing unto God, such profession and such practice, far from being any furtherance, are indeed great obstacles to our salvation. For in this manner, instead of expiating other sins by the exercise of religion, I say, in offering thus unto God Almighty such a worship as we esteem to be displeasing unto Him, we

add unto the number of our other sins those also of hypocrisy and contempt of His Divine Majesty.

In the second place, the care of souls cannot belong to the civil magistrate, because his power consists only in outward force; but true and saving religion consists in the inward persuasion of the mind, without which nothing can be acceptable to God. And such is the nature of the understanding, that it cannot be compelled to the belief of anything by outward force. Confiscation of estate, imprisonment, torments, nothing of that nature can have any such efficacy as to make men change the inward judgement that they have framed of things.

It may indeed be alleged that the magistrate may make use of arguments, and, thereby; draw the heterodox into the way of truth, and procure their salvation. I grant it; but this is common to him with other men. In teaching, instructing, and redressing the erroneous by reason, he may certainly do what becomes any good man to do. Magistracy does not oblige him to put off either humanity or Christianity; but it is one thing to persuade, another to command; one thing to press with arguments, another with penalties. This civil power alone has a right to do; to the other, goodwill is authority enough. Every man has commission to admonish, exhort, convince another of error, and, by reasoning, to draw him into truth; but to give laws, receive obedience, and compel with the sword, belongs to none but the magistrate. And, upon this ground, I affirm that the magistrate's power extends not to the establishing of any articles of faith, or forms of worship, by the force of his laws. For laws are of no force at all without penalties, and penalties in this case are absolutely impertinent, because they are not proper to convince the mind. Neither the profession of any articles of faith, nor the conformity to any outward form of worship (as has been already said), can be available to the salvation of souls, unless the truth of the one and the acceptableness of the other unto God be thoroughly believed by those that so profess and practise. But penalties are no way capable to produce such belief. It is only light and evidence that can work a change in men's opinions; which light can in no manner proceed from corporal sufferings, or any other outward penalties.

In the third place, the care of the salvation of men's souls cannot belong to the magistrate; because, though the rigour of laws and the force of penalties were capable to convince and change men's minds, yet would not that help at all to the salvation of their souls. For there being but one truth, one way to heaven, what hope is there that more men would be led into it if they had no rule but the religion of the court and were put under the necessity to quit the light of their own reason, and oppose the dictates of their own consciences, and blindly to resign themselves up to the will of their governors and to the religion which either ignorance, ambition, or superstition had chanced to establish in the countries where they were born? In the variety and contradiction of opinions in religion, wherein the princes of the world are as much divided as in their secular interests, the narrow way would be much straitened; one country alone would be in the right, and all the rest of the world put under an obligation of following their princes in the ways that lead to destruction; and that which heightens the absurdity, and very ill suits the notion of a Deity, men would owe their eternal happiness or misery to the places of their nativity.

These considerations, to omit many others that might have been urged to the same purpose, seem unto me sufficient to conclude that all the power of civil government relates only to men's civil interests, is confined to the care of the things of this world, and hath nothing to do with the world to come.

Let us now consider what a church is. A church, then, I take to be a voluntary society of men, joining themselves together of their own accord in order to the public worshipping of God in such manner as

they judge acceptable to Him, and effectual to the salvation of their souls.

I say it is a free and voluntary society. Nobody is born a member of any church; otherwise the religion of parents would descend unto children by the same right of inheritance as their temporal estates, and everyone would hold his faith by the same tenure he does his lands, than which nothing can be imagined more absurd. Thus, therefore, that matter stands. No man by nature is bound unto any particular church or sect, but everyone joins himself voluntarily to that society in which he believes he has found that profession and worship which is truly acceptable to God. The hope of salvation, as it was the only cause of his entrance into that communion, so it can be the only reason of his stay there. For if afterwards he discover anything either erroneous in the doctrine or incongruous in the worship of that society to which he has joined himself, why should it not be as free for him to go out as it was to enter? No member of a religious society can be tied with any other bonds but what proceed from the certain expectation of eternal life. A church, then, is a society of members voluntarily uniting to that end.

It follows now that we consider what is the power of this church and unto what laws it is subject.

Forasmuch as no society, how free soever, or upon whatsoever slight occasion instituted, whether of philosophers for learning, of merchants for commerce, or of men of leisure for mutual conversation and discourse, no church or company, I say, can in the least subsist and hold together, but will presently dissolve and break in pieces, unless it be regulated by some laws, and the members all consent to observe some order. Place and time of meeting must be agreed on; rules for admitting and excluding members must be established; distinction of officers, and putting things into a regular course, and suchlike, cannot be omitted. But since the joining together of several members into this church-society, as has already been demonstrated, is absolutely free and spontaneous, it necessarily follows that the right of making its laws can belong to none but the society itself; or, at least (which is the same thing), to those whom the society by common consent has authorised thereunto.

Some, perhaps, may object that no such society can be said to be a true church unless it have in it a bishop or presbyter, with ruling authority derived from the very apostles, and continued down to the present times by an uninterrupted succession.

To these I answer: In the first place, let them show me the edict by which Christ has imposed that law upon His Church. And let not any man think me impertinent, if in a thing of this consequence I require that the terms of that edict be very express and positive; for the promise He has made us,^[6] that "whosoever two or three are gathered together" in His name, He will be in the midst of them, seems to imply the contrary. Whether such an assembly want anything necessary to a true church, pray do you consider. Certain I am that nothing can be there wanting unto the salvation of souls, which is sufficient to our purpose.

Next, pray observe how great have always been the divisions amongst even those who lay so much stress upon the Divine institution and continued succession of a certain order of rulers in the Church. Now, their very dissension unavoidably puts us upon a necessity of deliberating and, consequently, allows a liberty of choosing that which upon consideration we prefer.

And, in the last place, I consent that these men have a ruler in their church, established by such a long series of succession as they judge necessary, provided I may have liberty at the same time to join myself

to that society in which I am persuaded those things are to be found which are necessary to the salvation of my soul. In this manner ecclesiastical liberty will be preserved on all sides, and no man will have a legislator imposed upon him but whom himself has chosen.

But since men are so solicitous about the true church, I would only ask them here, by the way, if it be not more agreeable to the Church of Christ to make the conditions of her communion consist in such things, and such things only, as the Holy Spirit has in the Holy Scriptures declared, in express words, to be necessary to salvation; I ask, I say, whether this be not more agreeable to the Church of Christ than for men to impose their own inventions and interpretations upon others as if they were of Divine authority, and to establish by ecclesiastical laws, as absolutely necessary to the profession of Christianity, such things as the Holy Scriptures do either not mention, or at least not expressly command? Whosoever requires those things in order to ecclesiastical communion, which Christ does not require in order to life eternal, he may, perhaps, indeed constitute a society accommodated to his own opinion and his own advantage; but how that can be called the Church of Christ which is established upon laws that are not His, and which excludes such persons from its communion as He will one day receive into the Kingdom of Heaven, I understand not. But this being not a proper place to inquire into the marks of the true church, I will only mind those that contend so earnestly for the decrees of their own society, and that cry out continually, "The Church! the Church!" with as much noise, and perhaps upon the same principle, as the Ephesian silversmiths did for their Diana; this, I say, I desire to mind them of, that the Gospel frequently declares that the true disciples of Christ must suffer persecution; but that the Church of Christ should persecute others, and force others by fire and sword to embrace her faith and doctrine, I could never yet find in any of the books of the New Testament.

The end of a religious society (as has already been said) is the public worship of God and, by means thereof, the acquisition of eternal life. All discipline ought, therefore, to tend to that end, and all ecclesiastical laws to be thereunto confined. Nothing ought nor can be transacted in this society relating to the possession of civil and worldly goods. No force is here to be made use of upon any occasion whatsoever. For force belongs wholly to the civil magistrate, and the possession of all outward goods is subject to his jurisdiction.

But, it may be asked, by what means then shall ecclesiastical laws be established, if they must be thus destitute of all compulsive power? I answer: They must be established by means suitable to the nature of such things, whereof the external profession and observation — if not proceeding from a thorough conviction and approbation of the mind — is altogether useless and unprofitable. The arms by which the members of this society are to be kept within their duty are exhortations, admonitions, and advices. If by these means the offenders will not be reclaimed, and the erroneous convinced, there remains nothing further to be done but that such stubborn and obstinate persons, who give no ground to hope for their reformation, should be cast out and separated from the society. This is the last and utmost force of ecclesiastical authority. No other punishment can thereby be inflicted than that, the relation ceasing between the body and the member which is cut off. The person so condemned ceases to be a part of that church.

These things being thus determined, let us inquire, in the next place: How far the duty of toleration extends, and what is required from everyone by it?

And, first, I hold that no church is bound, by the duty of toleration, to retain any such person in her

bosom as, after admonition, continues obstinately to offend against the laws of the society. For, these being the condition of communion and the bond of the society, if the breach of them were permitted without any animadversion the society would immediately be thereby dissolved. But, nevertheless, in all such cases care is to be taken that the sentence of excommunication, and the execution thereof, carry with it no rough usage of word or action whereby the ejected person may any wise be damnified in body or estate. For all force (as has often been said) belongs only to the magistrate, nor ought any private persons at any time to use force, unless it be in self-defence against unjust violence. Excommunication neither does, nor can, deprive the excommunicated person of any of those civil goods that he formerly possessed. All those things belong to the civil government and are under the magistrate's protection. The whole force of excommunication consists only in this: that, the resolution of the society in that respect being declared, the union that was between the body and some member comes thereby to be dissolved; and, that relation ceasing, the participation of some certain things which the society communicated to its members, and unto which no man has any civil right, comes also to cease. For there is no civil injury done unto the excommunicated person by the church minister's refusing him that bread and wine, in the celebration of the Lord's Supper, which was not bought with his but other men's money.

Secondly, no private person has any right in any manner to prejudice another person in his civil enjoyments because he is of another church or religion. All the rights and franchises that belong to him as a man, or as a denizen, are inviolably to be preserved to him. These are not the business of religion. No violence nor injury is to be offered him, whether he be Christian or Pagan. Nay, we must not content ourselves with the narrow measures of bare justice; charity, bounty, and liberality must be added to it. This the Gospel enjoins, this reason directs, and this that natural fellowship we are born into requires of us. If any man err from the right way, it is his own misfortune, no injury to thee; nor therefore art thou to punish him in the things of this life because thou supposest he will be miserable in that which is to come.

What I say concerning the mutual toleration of private persons differing from one another in religion, I understand also of particular churches which stand, as it were, in the same relation to each other as private persons among themselves: nor has any one of them any manner of jurisdiction over any other; no, not even when the civil magistrate (as it sometimes happens) comes to be of this or the other communion. For the civil government can give no new right to the church, nor the church to the civil government. So that, whether the magistrate join himself to any church, or separate from it, the church remains always as it was before — a free and voluntary society. It neither requires the power of the sword by the magistrate's coming to it, nor does it lose the right of instruction and excommunication by his going from it. This is the fundamental and immutable right of a spontaneous society — that it has power to remove any of its members who transgress the rules of its institution; but it cannot, by the accession of any new members, acquire any right of jurisdiction over those that are not joined with it. And therefore peace, equity, and friendship are always mutually to be observed by particular churches, in the same manner as by private persons, without any pretence of superiority or jurisdiction over one another.

That the thing may be made clearer by an example, let us suppose two churches — the one of Arminians, the other of Calvinists — residing in the city of Constantinople. Will anyone say that either of these churches has right to deprive the members of the other of their estates and liberty (as we see practised elsewhere) because of their differing from it in some doctrines and ceremonies, whilst the Turks, in the meanwhile, silently stand by and laugh to see with what inhuman cruelty Christians thus

rage against Christians? But if one of these churches hath this power of treating the other ill, I ask which of them it is to whom that power belongs, and by what right? It will be answered, undoubtedly, that it is the orthodox church which has the right of authority over the erroneous or heretical. This is, in great and specious words, to say just nothing at all. For every church is orthodox to itself; to others, erroneous or heretical. For whatsoever any church believes, it believes to be true and the contrary unto those things it pronounce; to be error. So that the controversy between these churches about the truth of their doctrines and the purity of their worship is on both sides equal; nor is there any judge, either at Constantinople or elsewhere upon earth, by whose sentence it can be determined. The decision of that question belongs only to the Supreme judge of all men, to whom also alone belongs the punishment of the erroneous. In the meanwhile, let those men consider how heinously they sin, who, adding injustice, if not to their error, yet certainly to their pride, do rashly and arrogantly take upon them to misuse the servants of another master, who are not at all accountable to them.

Nay, further: if it could be manifest which of these two dissenting churches were in the right, there would not accrue thereby unto the orthodox any right of destroying the other. For churches have neither any jurisdiction in worldly matters, nor are fire and sword any proper instruments wherewith to convince men's minds of error, and inform them of the truth. Let us suppose, nevertheless, that the civil magistrate inclined to favour one of them and to put his sword into their hands that (by his consent) they might chastise the dissenters as they pleased. Will any man say that any right can be derived unto a Christian church over its brethren from a Turkish emperor? An infidel, who has himself no authority to punish Christians for the articles of their faith, cannot confer such an authority upon any society of Christians, nor give unto them a right which he has not himself. This would be the case at Constantinople; and the reason of the thing is the same in any Christian kingdom. The civil power is the same in every place. Nor can that power, in the hands of a Christian prince, confer any greater authority upon the Church than in the hands of a heathen; which is to say, just none at all.

Nevertheless, it is worthy to be observed and lamented that the most violent of these defenders of the truth, the opposers of errors, the exclaimers against schism do hardly ever let loose this their zeal for God, with which they are so warmed and inflamed, unless where they have the civil magistrate on their side. But so soon as ever court favour has given them the better end of the staff, and they begin to feel themselves the stronger, then presently peace and charity are to be laid aside. Otherwise they are religiously to be observed. Where they have not the power to carry on persecution and to become masters, there they desire to live upon fair terms and preach up toleration. When they are not strengthened with the civil power, then they can bear most patiently and unmovedly the contagion of idolatry, superstition, and heresy in their neighbourhood; of which on other occasions the interest of religion makes them to be extremely apprehensive. They do not forwardly attack those errors which are in fashion at court or are countenanced by the government. Here they can be content to spare their arguments; which yet (with their leave) is the only right method of propagating truth, which has no such way of prevailing as when strong arguments and good reason are joined with the softness of civility and good usage.

Nobody, therefore, in fine, neither single persons nor churches, nay, nor even commonwealths, have any just title to invade the civil rights and worldly goods of each other upon pretence of religion. Those that are of another opinion would do well to consider with themselves how pernicious a seed of discord and war, how powerful a provocation to endless hatreds, rapines, and slaughters they thereby furnish unto mankind. No peace and security, no, not so much as common friendship, can ever be established or

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preserved amongst men so long as this opinion prevails, that dominion is founded in grace and that religion is to be propagated by force of arms.

1. Luke 22. 25.
2. II Tim. 2. 19.
3. Luke 22. 32.
4. Rom. I.
5. Gal. 5.

15 Of the Social Contract, Part 1 (Jean-Jacques Rousseau)

Jean-Jacques Rousseau¹ (/ruːˈsoʊ/; French: [ʒɑ̃zak ʁuso]; 28 June 1712 – 2 July 1778) was a Francophone Genevan philosopher, writer, and composer of the 18th century. His political philosophy influenced the Enlightenment in France and across Europe, as well as aspects of the French Revolution and the overall development of modern political and educational thought.

Rousseau's novel *Emile, or On Education* is a treatise on the education of the whole person for citizenship. His sentimental novel *Julie, or the New Heloise* was of importance to the development of pre-romanticism and romanticism in fiction. Rousseau's autobiographical writings—his *Confessions*, which initiated the modern autobiography, and his *Reveries of a Solitary Walker*—exemplified the late 18th-century movement known as the *Age of Sensibility*, and featured an increased focus on subjectivity and introspection that later characterized modern writing. His *Discourse on Inequality* and *The Social Contract* are cornerstones in modern political and social thought.

During the period of the French Revolution, Rousseau was the most popular of the philosophes among members of the Jacobin Club. He was interred as a national hero in the Panthéon in Paris, in 1794, 16 years after his death.

*Of the Social Contract*²

BOOK I

I mean to inquire if, in the civil order, there can be any sure and legitimate rule of administration, men being taken as they are and laws as they might be. In this inquiry I shall endeavour always to unite what right sanctions with what is prescribed by interest, in order that justice and utility may in no case be divided.

I enter upon my task without proving the importance of the subject I shall be asked if I am a prince or a legislator, to write on politics. I answer that I am neither, and that is why I do so. If I were a prince or a legislator, I should not waste time in saying what wants doing; I should do it, or hold my peace.

As I was born a citizen of a free State, and a member of the Sovereign, I feel that, however feeble the influence my voice can have on public affairs, the right of voting on them makes it my duty to study them: and I am happy, when I reflect upon governments, to find my inquiries always furnish me with new reasons for loving that of my own country.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Jean-Jacques Rousseau. (2017, August 10). In Wikipedia, The Free Encyclopedia. Retrieved 17:58, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Jean-Jacques_Rousseau&oldid=794887766

² Jean-Jacques Rousseau, 1750. Translated by George Douglas Howard Cole, 1920.

CHAPTER I SUBJECT OF THE FIRST BOOK

Man is born free; and everywhere he is in chains. One thinks himself the master of others, and still remains a greater slave than they. How did this change come about? I do not know. What can make it legitimate? That question I think I can answer.

If I took into account only force, and the effects derived from it, I should say: "As long as a people is compelled to obey, and obeys, it does well; as soon as it can shake off the yoke, and shakes it off, it does still better; for, regaining its liberty by the same right as took it away, either it is justified in resuming it, or there was no justification for those who took it away." But the social order is a sacred right which is the basis of all other rights. Nevertheless, this right does not come from nature, and must therefore be founded on conventions. Before coming to that, I have to prove what I have just asserted.

CHAPTER II THE FIRST SOCIETIES

The most ancient of all societies, and the only one that is natural is the family: and even so the children remain attached to the father only so long as they need him for their preservation. As soon as this need ceases, the natural bond is dissolved. The children, released from the obedience they owed to the father, and the father, released from the care he owed his children, return equally to independence. If they remain united, they continue so no longer naturally, but voluntarily; and the family itself is then maintained only by convention.

This common liberty results from the nature of man. His first law is to provide for his own preservation, his first cares are those which he owes to himself; and, as soon as he reaches years of discretion, he is the sole judge of the proper means of preserving himself, and consequently becomes his own master...

CHAPTER III THE RIGHT OF THE STRONGEST

The strongest is never strong enough to be always the master, unless he transforms strength into right, and obedience into duty. Hence the right of the strongest, which, though to all seeming meant ironically, is really laid down as a fundamental principle. But are we never to have an explanation of this phrase? Force is a physical power, and I fail to see what moral effect it can have. To yield to force is an act of necessity, not of will—at the most, an act of prudence. In what sense can it be a duty?

Suppose for a moment that this so-called "right" exists. I maintain that the sole result is a mass of inexplicable nonsense. For, if force creates right, the effect changes with the cause: every force that is greater than the first succeeds to its right. As soon as it is possible to disobey with impunity, disobedience is legitimate; and, the strongest being always in the right, the only thing that matters is to act so as to become the strongest. But what kind of right is that which perishes when force fails? If we must obey perforce, there is no need to obey because we ought; and if we are not forced to obey, we are under no obligation to do so. Clearly, the word "right" adds nothing to force: in this connection, it means absolutely nothing.

Obey the powers that be. If this means yield to force, it is a good precept, but superfluous: I can answer for its never being violated. All power comes from God, I admit; but so does all sickness: does that mean that we are forbidden to call in the doctor? A brigand surprises me at the edge of a wood: must I not merely surrender my purse on compulsion; but, even if I could withhold it, am I in conscience bound to give it up? For certainly the pistol he holds is also a power.

Let us then admit that force does not create right, and that we are obliged to obey only legitimate powers. In that case, my original question recurs.

CHAPTER IV SLAVERY

Since no man has a natural authority over his fellow, and force creates no right, we must conclude that conventions form the basis of all legitimate authority among men.

If an individual, says Grotius, can alienate his liberty and make himself the slave of a master, why could not a whole people do the same and make itself subject to a king? There are in this passage plenty of ambiguous words which would need explaining; but let us confine ourselves to the word alienate. To alienate is to give or to sell. Now, a man who becomes the slave of another does not give himself; he sells himself, at the least for his subsistence: but for what does a people sell itself? A king is so far from furnishing his subjects with their subsistence that he gets his own only from them; and, according to Rabelais, kings do not live on nothing. Do subjects then give their persons on condition that the king takes their goods also? I fail to see what they have left to preserve.

It will be said that the despot assures his subjects civil tranquillity. Granted; but what do they gain, if the wars his ambition brings down upon them, his insatiable avidity, and the vexatious conduct of his ministers press harder on them than their own dissensions would have done? What do they gain, if the very tranquillity they enjoy is one of their miseries? Tranquillity is found also in dungeons; but is that enough to make them desirable places to live in? The Greeks imprisoned in the cave of the Cyclops lived there very tranquilly, while they were awaiting their turn to be devoured.

To say that a man gives himself gratuitously, is to say what is absurd and inconceivable; such an act is null and illegitimate, from the mere fact that he who does it is out of his mind. To say the same of a whole people is to suppose a people of madmen; and madness creates no right.

Even if each man could alienate himself, he could not alienate his children: they are born men and free; their liberty belongs to them, and no one but they has the right to dispose of it. Before they come to years of discretion, the father can, in their name, lay down conditions for their preservation and well-being, but he cannot give them, irrevocably and without conditions: such a gift is contrary to the ends of nature, and exceeds the rights of paternity. It would therefore be necessary, in order to legitimise an arbitrary government, that in every generation the people should be in a position to accept or reject it; but, were this so, the government would be no longer arbitrary.

To renounce liberty is to renounce being a man, to surrender the rights of humanity and even its duties. For him who renounces everything no indemnity is possible. Such a renunciation is incompatible with

man's nature; to remove all liberty from his will is to remove all morality from his acts. Finally, it is an empty and contradictory convention that sets up, on the one side, absolute authority, and, on the other, unlimited obedience. Is it not clear that we can be under no obligation to a person from whom we have the right to exact everything? Does not this condition alone, in the absence of equivalence or exchange, in itself involve the nullity of the act? For what right can my slave have against me, when all that he has belongs to me, and, his right being mine, this right of mine against myself is a phrase devoid of meaning?...

CHAPTER V THAT WE MUST ALWAYS GO BACK TO A FIRST CONVENTION

Even if I granted all that I have been refuting, the friends of despotism would be no better off. There will always be a great difference between subduing a multitude and ruling a society. Even if scattered individuals were successively enslaved by one man, however numerous they might be, I still see no more than a master and his slaves, and certainly not a people and its ruler; I see what may be termed an aggregation, but not an association; there is as yet neither public good nor body politic. The man in question, even if he has enslaved half the world, is still only an individual; his interest, apart from that of others, is still a purely private interest. If this same man comes to die, his empire, after him, remains scattered and without unity, as an oak falls and dissolves into a heap of ashes when the fire has consumed it.

A people, says Grotius, can give itself to a king. Then, according to Grotius, a people is a people before it gives itself. The gift is itself a civil act, and implies public deliberation. It would be better, before examining the act by which a people gives itself to a king, to examine that by which it has become a people; for this act, being necessarily prior to the other, is the true foundation of society.

Indeed, if there were no prior convention, where, unless the election were unanimous, would be the obligation on the minority to submit to the choice of the majority? How have a hundred men who wish for a master the right to vote on behalf of ten who do not? The law of majority voting is itself something established by convention, and presupposes unanimity, on one occasion at least.

CHAPTER VI THE SOCIAL COMPACT

I suppose men to have reached the point at which the obstacles in the way of their preservation in the state of nature show their power of resistance to be greater than the resources at the disposal of each individual for his maintenance in that state. That primitive condition can then subsist no longer; and the human race would perish unless it changed its manner of existence.

But, as men cannot engender new forces, but only unite and direct existing ones, they have no other means of preserving themselves than the formation, by aggregation, of a sum of forces great enough to overcome the resistance. These they have to bring into play by means of a single motive power, and cause to act in concert.

This sum of forces can arise only where several persons come together: but, as the force and liberty of each man are the chief instruments of his self-preservation, how can he pledge them without harming his

own interests, and neglecting the care he owes to himself? This difficulty, in its bearing on my present subject, may be stated in the following terms—

"The problem is to find a form of association which will defend and protect with the whole common force the person and goods of each associate, and in which each, while uniting himself with all, may still obey himself alone, and remain as free as before." This is the fundamental problem of which the Social Contract provides the solution.

The clauses of this contract are so determined by the nature of the act that the slightest modification would make them vain and ineffective; so that, although they have perhaps never been formally set forth, they are everywhere the same and everywhere tacitly admitted and recognised, until, on the violation of the social compact, each regains his original rights and resumes his natural liberty, while losing the conventional liberty in favour of which he renounced it.

These clauses, properly understood, may be reduced to one—the total alienation of each associate, together with all his rights, to the whole community for, in the first place, as each gives himself absolutely, the conditions are the same for all; and, this being so, no one has any interest in making them burdensome to others.

Moreover, the alienation being without reserve, the union is as perfect as it can be, and no associate has anything more to demand: for, if the individuals retained certain rights, as there would be no common superior to decide between them and the public, each, being on one point his own judge, would ask to be so on all; the state of nature would thus continue, and the association would necessarily become inoperative or tyrannical.

Finally, each man, in giving himself to all, gives himself to nobody; and as there is no associate over whom he does not acquire the same right as he yields others over himself, he gains an equivalent for everything he loses, and an increase of force for the preservation of what he has.

If then we discard from the social compact what is not of its essence, we shall find that it reduces itself to the following terms—

"Each of us puts his person and all his power in common under the supreme direction of the general will, and, in our corporate capacity, we receive each member as an indivisible part of the whole."

At once, in place of the individual personality of each contracting party, this act of association creates a moral and collective body, composed of as many members as the assembly contains votes, and receiving from this act its unity, its common identity, its life and its will. This public person, so formed by the union of all other persons, formerly took the name of city, and now takes that of Republic or body politic; it is called by its members State when passive, Sovereign when active, and Power when compared with others like itself. Those who are associated in it take collectively the name of people, and severally are called citizens, as sharing in the sovereign power, and subjects, as being under the laws of the State. But these terms are often confused and taken one for another: it is enough to know how to distinguish them when they are being used with precision.

CHAPTER VII THE SOVEREIGN

This formula shows us that the act of association comprises a mutual undertaking between the public and the individuals, and that each individual, in making a contract, as we may say, with himself, is bound in a double capacity; as a member of the Sovereign he is bound to the individuals, and as a member of the State to the Sovereign. But the maxim of civil right, that no one is bound by undertakings made to himself, does not apply in this case; for there is a great difference between incurring an obligation to yourself and incurring one to a whole of which you form a part.

Attention must further be called to the fact that public deliberation, while competent to bind all the subjects to the Sovereign, because of the two different capacities in which each of them may be regarded, cannot, for the opposite reason, bind the Sovereign to itself; and that it is consequently against the nature of the body politic for the Sovereign to impose on itself a law which it cannot infringe. Being able to regard itself in only one capacity, it is in the position of an individual who makes a contract with himself; and this makes it clear that there neither is nor can be any kind of fundamental law binding on the body of the people—not even the social contract itself. This does not mean that the body politic cannot enter into undertakings with others, provided the contract is not infringed by them; for in relation to what is external to it, it becomes a simple being, an individual.

But the body politic or the Sovereign, drawing its being wholly from the sanctity of the contract, can never bind itself, even to an outsider, to do anything derogatory to the original act, for instance, to alienate any part of itself, or to submit to another Sovereign. Violation of the act by which it exists would be self-annihilation; and that which is itself nothing can create nothing.

As soon as this multitude is so united in one body, it is impossible to offend against one of the members without attacking the body, and still more to offend against the body without the members resenting it. Duty and interest therefore equally oblige the two contracting parties to give each other help; and the same men should seek to combine, in their double capacity, all the advantages dependent upon that capacity.

Again, the Sovereign, being formed wholly of the individuals who compose it, neither has nor can have any interest contrary to theirs; and consequently the sovereign power need give no guarantee to its subjects, because it is impossible for the body to wish to hurt all its members. We shall also see later on that It cannot hurt any in particular. The Sovereign, merely by virtue of what it is, is always what it should be.

This, however, is not the case with the relation of the subjects to the Sovereign, which, despite the common interest, would have no security that they would fulfil their undertakings, unless it found means to assure itself of their fidelity.

In fact, each individual, as a man, may have a particular will contrary or dissimilar to the general will which he has as a citizen. His particular interest may speak to him quite differently from the common interest: his absolute and naturally independent existence may make him look upon what he owes to the common cause as a gratuitous contribution, the loss of which will do less harm to others than the payment of it is burdensome to himself; and, regarding the moral person which constitutes the State as a

persona ficta, because not a man, he may wish to enjoy the rights of citizenship without being ready to fulfil the duties of a subject. The continuance of such an injustice could not but prove the undoing of the body politic.

In order then that the social compact may not be an empty formula, it tacitly includes the undertaking, which alone can give force to the rest, that whoever refuses to obey the general will shall be compelled to do so by the whole body. This means nothing less than that he will be forced to be free; for this is the condition which, by giving each citizen to his country, secures him against all personal dependence. In this lies the key to the working of the political machine; this alone legitimizes civil undertakings, which, without it, would be absurd, tyrannical, and liable to the most frightful abuses.

CHAPTER VIII THE CIVIL STATE

The passage from the state of nature to the civil state produces a very remarkable change in man, by substituting justice, for instinct in his conduct, and giving his actions the morality they had formerly lacked. Then only, when the voice of duty takes the place of physical impulses and right of appetite, does man, who so far had considered only himself, find that he is forced to act on different principles, and to consult his reason before listening to his inclinations. Although, in this state, he deprives himself of some advantages which he got from nature, he gains in return others so great, his faculties are so stimulated and developed, his ideas so extended, his feelings so ennobled, and his whole soul so uplifted, that, did not the abuses of this new condition often degrade him below that which he left, he would be bound to bless continually the happy moment which took him from it for ever, and, instead of a stupid and unimaginative animal, made him an intelligent being and a man.

Let us draw up the whole account in terms easily commensurable. What man loses by the social contract in his natural liberty and an unlimited right to everything he tries to get and succeeds in getting; what he gains is civil liberty and the proprietorship of all he possesses. If we are to avoid mistake in weighing one against the other, we must clearly distinguish natural liberty, which is bounded only by the strength of the individual, from civil liberty, which is limited by the general will; and possession, which is merely the effect of force or the right of the first occupier, from property, which can be founded only on a positive title.

We might, over and above all this, add, to what man acquires in the civil state, moral liberty, which alone makes him truly master of himself; for the mere impulse of appetite is slavery, while obedience to a law which we prescribe to ourselves is liberty. But I have already said too much on this head, and the philosophical meaning of the word liberty does not now concern us.

CHAPTER IX REAL PROPERTY

Each member of the community gives himself to it, at the moment of its foundation, just as he is, with all the resources at his command, including the goods he possesses. This act does not make possession, in changing hands, change its nature, and becomes property in the hands of the Sovereign; but, as the forces of the city are incomparably greater than those of an individual, public possession is also, in fact, stronger and more irrevocable, without being any more legitimate, at any rate from the point of view of

foreigners. For the State, in relation to its members, is master of all their goods by the social contract, which, within the State, is the basis of all rights; but, in relation to other powers, it is so only by the right of the first occupier, which it holds from its members.

The right of the first occupier, though more real than the right of the strongest, becomes a real right only when the right of property has already been established. Every man has naturally a right to everything he needs; but the positive act which makes him proprietor of one thing excludes him from everything else. Having his share, he ought to keep to it, and can have no further right against the community. This is why the right of the first occupier, which in the state of nature is so weak, claims the respect of every man in civil society. In this right we are respecting not so much what belongs to another as what does not belong to ourselves.

In general, to establish the right of the first occupier over a plot of ground, the following conditions are necessary: first, the land must not yet be inhabited; secondly, a man must occupy only the amount he needs for his subsistence; and, in the third place, possession must be taken, not by an empty ceremony, but by labour and cultivation, the only sign of proprietorship that should be respected by others, in default of a legal title...

BOOK II CHAPTER I THAT SOVEREIGNTY IS INALIENABLE

The first and most important deduction from the principles we have so far laid down is that the general will alone can direct the State according to the object for which it was instituted, i.e. the common good: for if the clashing of particular interests made the establishment of societies necessary, the agreement of these very interests made it possible. The common element in these different interests is what forms the social tie; and, were there no point of agreement between them all, no society could exist. It is solely on the basis of this common interest that every society should be governed.

I hold then that Sovereignty, being nothing less than the exercise of the general will, can never be alienated, and that the Sovereign, who is no less than a collective being, cannot be represented except by himself: the power indeed may be transmitted, but not the will.

In reality, if it is not impossible for a particular will to agree on some point with the general will, it is at least impossible for the agreement to be lasting and constant; for the particular will tends, by its very nature, to partiality, while the general will tends to equality. It is even more impossible to have any guarantee of this agreement; for even if it should always exist, it would be the effect not of art, but of chance. The Sovereign may indeed say: "I now will actually what this man wills, or at least what he says he wills"; but it cannot say: "What he wills tomorrow, I too shall will" because it is absurd for the will to bind itself for the future, nor is it incumbent on any; will to consent to anything that is not for the good of the being who wills. If then the people promises simply to obey, by that very act it dissolves itself and loses what makes it a people; the moment a master exists, there is no longer a Sovereign, and from that moment the body politic has ceased to exist.

This does not mean that the commands of the rulers cannot pass for general wills, so long as the

Sovereign, being free to oppose them, offers no opposition. In such a case, universal silence is taken to imply the consent of the people. This will be explained later on.

CHAPTER II THAT SOVEREIGNTY IS INDIVISIBLE

Sovereignty, for the same reason as makes it inalienable, is indivisible; for will either is, or is not, general;[1] it is the will either of the body of the people, or only of a part of it. In the first case, the will, when declared, is an act of Sovereignty and constitutes law: in the second, it is merely a particular will, or act of magistracy—at the most a decree.

But our political theorists, unable to divide Sovereignty in principle, divide it according to its object: into force and will; into legislative power and executive power; into rights of taxation, justice and war; into internal administration and power of foreign treaty. Sometimes they confuse all these sections, and sometimes they distinguish them; they turn the Sovereign into a fantastic being composed of several connected pieces: it is as if they were making man of several bodies, one with eyes, one with arms, another with feet, and each with nothing besides. We are told that the jugglers of Japan dismember a child before the eyes of the spectators; then they throw all the members into the air one after another, and the child falls down alive and whole. The conjuring tricks of our political theorists are very like that; they first dismember the body politic by an illusion worthy of a fair, and then join it together again we know not how.

This error is due to a lack of exact notions concerning the Sovereign authority, and to taking for parts of it what are only emanations from it. Thus, for example, the acts of declaring war and making peace have been regarded as acts of Sovereignty; but this is not the case, as these acts do not constitute law, but merely the application of a law, a particular act which decides how the law applies, as we shall see clearly when the idea attached to the word law has been defined.

If we examined the other divisions in the same manner, we should find that, whenever Sovereignty seems to be divided, there is an illusion: the rights which are taken as being part of Sovereignty are really all subordinate, and always imply supreme wills of which they only sanction the execution...

CHAPTER III WHETHER THE GENERAL WILL IS FALLIBLE

It follows from what has gone before that the general will is always right and tends to the public advantage; but it does not follow that the deliberations of the people are always equally correct. Our will is always for our own good, but we do not always see what that is; the people is never corrupted, but it is often deceived, and on such occasions only does it seem to will what is bad.

There is often a great deal of difference between the will of all and the general will; the latter considers only the common interest, while the former takes private interest into account, and is no more than a sum of particular wills: but take away from these same wills the pluses and minuses that cancel one another, and the general will remains as the sum of the differences.

If, when the people, being furnished with adequate information, held its deliberations, the citizens had no communication one with another, the grand total of the small differences would always give the general will, and the decision would always be good. But when factions arise, and partial associations are formed at the expense of the great association, the will of each of these associations becomes general in relation to its members, while it remains particular in relation to the State: it may then be said that there are no longer as many votes as there are men, but only as many as there are associations. The differences become less numerous and give a less general result. Lastly, when one of these associations is so great as to prevail over all the rest, the result is no longer a sum of small differences, but a single difference; in this case there is no longer a general will, and the opinion which prevails is purely particular.

It is therefore essential, if the general will is to be able to express itself, that there should be no partial society within the State, and that each citizen should think only his own thoughts: which was indeed the sublime and unique system established by the great Lycurgus. But if there are partial societies, it is best to have as many as possible and to prevent them from being unequal, as was done by Solon, Numa and Servius. These precautions are the only ones that can guarantee that the general will shall be always enlightened, and that the people shall in no way deceive itself.

CHAPTER IV THE LIMITS OF THE SOVEREIGN POWER

If the State is a moral person whose life is in the union of its members, and if the most important of its cares is the care for its own preservation, it must have a universal and compelling force, in order to move and dispose each part as may be most advantageous to the whole. As nature gives each man absolute power over all his members, the social compact gives the body politic absolute power over all its members also; and it is this power which, under the direction of the general will, bears, as I have said, the name of Sovereignty.

But, besides the public person, we have to consider the private persons composing it, whose life and liberty are naturally independent of it. We are bound then to distinguish clearly between the respective rights of the citizens and the Sovereign,[1] and between the duties the former have to fulfil as subjects, and the natural rights they should enjoy as men.

Each man alienates, I admit, by the social compact, only such part of his powers, goods and liberty as it is important for the community to control; but it must also be granted that the Sovereign is sole judge of what is important.

Every service a citizen can render the State he ought to render as soon as the Sovereign demands it; but the Sovereign, for its part, cannot impose upon its subjects any fetters that are useless to the community, nor can it even wish to do so; for no more by the law of reason than by the law of nature can anything occur without a cause.

The undertakings which bind us to the social body are obligatory only because they are mutual; and their nature is such that in fulfilling them we cannot work for others without working for ourselves. Why is it that the general will is always in the right, and that all continually will the happiness of each one, unless it is because there is not a man who does not think of "each" as meaning him, and consider himself in

voting for all? This proves that equality of rights and the idea of justice which such equality creates originate in the preference each man gives to himself, and accordingly in the very nature of man. It proves that the general will, to be really such, must be general in its object as well as its essence; that it must both come from all and apply to all; and that it loses its natural rectitude when it is directed to some particular and determinate object, because in such a case we are judging of something foreign to us, and have no true principle of equity to guide us.

Indeed, as soon as a question of particular fact or right arises on a point not previously regulated by a general convention, the matter becomes contentious. It is a case in which the individuals concerned are one party, and the public the other, but in which I can see neither the law that ought to be followed nor the judge who ought to give the decision. In such a case, it would be absurd to propose to refer the question to an express decision of the general will, which can be only the conclusion reached by one of the parties and in consequence will be, for the other party, merely an external and particular will, inclined on this occasion to injustice and subject to error. Thus, just as a particular will cannot stand for the general will, the general will, in turn, changes its nature, when its object is particular, and, as general, cannot pronounce on a man or a fact. When, for instance, the people of Athens nominated or displaced its rulers, decreed honours to one, and imposed penalties on another, and, by a multitude of particular decrees, exercised all the functions of government indiscriminately, it had in such cases no longer a general will in the strict sense; it was acting no longer as Sovereign, but as magistrate. This will seem contrary to current views; but I must be given time to expound my own.

It should be seen from the foregoing that what makes the will general is less the number of voters than the common interest uniting them; for under this system, each necessarily submits to the conditions he imposes on others; and this admirable agreement between interest and justice gives to the common deliberations an equitable character which at once vanishes when any particular question is discussed, in the absence of a common interest to unite and identify the ruling of the judge with that of the party.

From whatever side we approach our principle, we reach the same conclusion, that the social compact sets up among the citizens an equality of such a kind, that they all bind themselves to observe the same conditions and should therefore all enjoy the same rights. Thus, from the very nature of the compact, every "act of Sovereignty", i.e. every authentic act of the general will, binds or favours all the citizens equally; so that the Sovereign recognises only the body of the nation, and draws no distinctions between those of whom it is made up. What, then, strictly speaking is an act of Sovereignty? It is not a convention between a superior and an inferior, but a convention between the body and each of its members. It is legitimate, because based on the social contract, and, equitable, because common to all; useful, because it can have no other object than the general good, and stable, because guaranteed by the public force and the supreme power. So long as the subjects have to submit only to conventions of this sort, they obey no-one but their own will; and to ask how far the respective rights of the Sovereign and the citizens extend, is to ask up to what point the latter can enter into undertakings with themselves, each with all, and all with each.

We can see from this that the sovereign power, absolute, sacred and inviolable as it is, does not and cannot exceed the limits of general conventions, and that every man may dispose at will of such goods and liberty as these conventions leave him; so that the Sovereign never has a right to lay more charges on one subject than on another, because, in that case, the question becomes particular, and ceases to be within its competency.

When these distinctions have once been admitted, it is seen to be so untrue that there is, in the social contract, any real renunciation on the part of the individuals, that the position in which they find themselves as a result of the contract is really preferable to that in which they were before. Instead of a renunciation, they have made an advantageous exchange: instead of an uncertain and precarious way of living they have got one that is better and more secure; instead of natural independence they have got liberty, instead of the power to harm others security for themselves, and instead of their strength, which others might overcome, a right which social union makes invincible. Their very life, which they have devoted to the State, is by it constantly protected; and when they risk it in the State's defence, what more are they doing than giving back what they have received from it? What are they doing that they would not do more often and with greater danger in the state of nature, in which they would inevitably have to fight battles at the peril of their lives in defence of that which is the means of their preservation? All have indeed to fight when their country needs them; but then no one has ever to fight for himself. Do we not gain something by running, on behalf of what gives us our security, only some of the risks we should have to run for ourselves, as soon as we lost it?...

CHAPTER VI LAW

By the social compact we have given the body politic existence and life: we have now by legislation to give it movement and will. For the original act by which the body is formed and united still in no respect determines what it ought to do for its preservation.

What is well and in conformity with order is so by the nature of things and independently of human conventions. All justice comes from God, who is its sole source; but if we knew how to receive so high an inspiration, we should need neither government nor laws. Doubtless, there is a universal justice emanating from reason alone; but this justice, to be admitted among us, must be mutual. Humanly speaking, in default of natural sanctions, the laws of justice are ineffective among men: they merely make for the good of the wicked and the undoing of the just, when the just man observes them towards everybody and nobody observes them towards him. Conventions and laws are therefore needed to join rights to duties and refer justice to its object. In the state of nature, where everything is common, I owe nothing to him whom I have promised nothing; I recognise as belonging to others only what is of no use to me. In the state of society all rights are fixed by law, and the case becomes different.

But what, after all, is a law? As long as we remain satisfied with attaching purely metaphysical ideas to the word, we shall go on arguing without arriving at an understanding; and when we have defined a law of nature, we shall be no nearer the definition of a law of the State.

I have already said that there can be no general will directed to a particular object. Such an object must be either within or outside the State. If outside, a will which is alien to it cannot be, in relation to it, general; if within, it is part of the State, and in that case there arises a relation between whole and part which makes them two separate beings, of which the part is one, and the whole minus the part the other. But the whole minus a part cannot be the whole; and while this relation persists, there can be no whole, but only two unequal parts; and it follows that the will of one is no longer in any respect general in relation to the other.

But when the whole people decrees for the whole people, it is considering only itself; and if a relation is then formed, it is between two aspects of the entire object, without there being any division of the whole. In that case the matter about which the decree is made is, like the decreeing will general. This act is what I call a law.

When I say that the object of laws is always general, I mean that law considers subjects en masse and actions in the abstract, and never a particular person or action. Thus the law may indeed decree that there shall be privileges, but cannot confer them on anybody by name. It may set up several classes of citizens, and even lay down the qualifications for membership of these classes, but it cannot nominate such and such persons as belonging to them; it may establish a monarchical government and hereditary succession, but it cannot choose a king, or nominate a royal family. In a word, no function which has a particular object belongs to the legislative power.

On this view, we at once see that it can no longer be asked whose business it is to make laws, since they are acts of the general will: nor whether the prince is above the law, since he is a member of the State; nor whether the law can be unjust, since no one is unjust to himself; nor how we can be both free and subject to the laws since they are but registers of our wills.

We see further that, as the law unites universality of will with universality of object, what a man, whoever he be, commands of his own motion cannot be a law; and even what the Sovereign commands with regard to a particular matter is no nearer being a law, but is a decree, an act, not of sovereignty, but of magistracy.

I therefore give the name 'Republic' to every State that is governed by laws, no matter what the form of its administration may be: for only in such a case does the public interest govern, and the *res publica* rank as a reality. Every legitimate government is republican; what government is I will explain later on.

Laws are, properly speaking, only the conditions of civil association. The people, being subject to the laws, ought to be their author: the conditions of the society ought to be regulated solely by those who come together to form it. But how are they to regulate them? Is it to be by common agreement, by a sudden inspiration? Has the body politic an organ to declare its will? Who can give it the foresight to formulate and announce its acts in advance? Or how is it to announce them in the hour of need? How can a blind multitude, which often does not know what it wills, because it rarely knows what is good for it, carry out for itself so great and difficult an enterprise as a system of legislation? Of itself the people wills always the good, but of itself it by no means always sees it. The general will is always in the right, but the judgment which guides it is not always enlightened. It must be got to see objects as they are, and sometimes as they ought to appear to it; it must be shown the good road it is in search of, secured from the seductive influences of individual wills, taught to see times and spaces as a series, and made to weigh the attractions of present and sensible advantages against the danger of distant and hidden evils. The individuals see the good they reject; the public wills the good it does not see. All stand equally in need of guidance. The former must be compelled to bring their wills into conformity with their reason; the latter must be taught to know what it wills. If that is done, public enlightenment leads to the union of understanding and will in the social body: the parts are made to work exactly together, and the whole is raised to its highest power. This makes a legislator necessary.

CHAPTER VII THE LEGISLATOR

In order to discover the rules of society best suited to nations, a superior intelligence beholding all the passions of men without experiencing any of them would be needed. This intelligence would have to be wholly unrelated to our nature, while knowing it through and through; its happiness would have to be independent of us, and yet ready to occupy itself with ours; and lastly, it would have, in the march of time, to look forward to a distant glory, and, working in one century, to be able to enjoy in the next. It would take gods to give men laws.

What Caligula argued from the facts, Plato, in the dialogue called the *Politicus*, argued in defining the civil or kingly man, on the basis of right. But if great princes are rare, how much more so are great legislators? The former have only to follow the pattern which the latter have to lay down. The legislator is the engineer who invents the machine, the prince merely the mechanic who sets it up and makes it go. "At the birth of societies," says Montesquieu, "the rulers of Republics establish institutions, and afterwards the institutions mould the rulers."

He who dares to undertake the making of a people's institutions ought to feel himself capable, so to speak, of changing human nature, of transforming each individual, who is by himself a complete and solitary whole, into part of a greater whole from which he in a manner receives his life and being; of altering man's constitution for the purpose of strengthening it; and of substituting a partial and moral existence for the physical and independent existence nature has conferred on us all. He must, in a word, take away from man his own resources and give him instead new ones alien to him, and incapable of being made use of without the help of other men. The more completely these natural resources are annihilated, the greater and the more lasting are those which he acquires, and the more stable and perfect the new institutions; so that if each citizen is nothing and can do nothing without the rest, and the resources acquired by the whole are equal or superior to the aggregate of the resources of all the individuals, it may be said that legislation is at the highest possible point of perfection.

The legislator occupies in every respect an extraordinary position in the State. If he should do so by reason of his genius, he does so no less by reason of his office, which is neither magistracy, nor Sovereignty. This office, which sets up the Republic, nowhere enters into its constitution; it is an individual and superior function, which has nothing in common with human empire; for if he who holds command over men ought not to have command over the laws, he who has command over the laws ought not any more to have it over men; or else his laws would be the ministers of his passions and would often merely serve to perpetuate his injustices: his private aims would inevitably mar the sanctity of his work.

When Lycurgus gave laws to his country, he began by resigning the throne. It was the custom of most Greek towns to entrust the establishment of their laws to foreigners. The Republics of modern Italy in many cases followed this example; Geneva did the same and profited by it. Rome, when it was most prosperous, suffered a revival of all the crimes of tyranny, and was brought to the verge of destruction, because it put the legislative authority and the sovereign power into the same hands.

Nevertheless, the decemvirs themselves never claimed the right to pass any law merely on their own authority. "Nothing we propose to you," they said to the people, "can pass into law without your

consent. Romans, be yourselves the authors of the laws which are to make you happy."

He, therefore, who draws up the laws has, or should have, no right of legislation, and the people cannot, even if it wishes, deprive itself of this incommunicable right, because, according to the fundamental compact, only the general will can bind the individuals, and there can be no assurance that a particular will is in conformity with the general will, until it has been put to the free vote of the people. This I have said already; but it is worth while to repeat it.

Thus in the task of legislation we find together two things which appear to be incompatible: an enterprise too difficult for human powers, and, for its execution, an authority that is no authority.

There is a further difficulty that deserves attention. Wise men, if they try to speak their language to the common herd instead of its own, cannot possibly make themselves understood. There are a thousand kinds of ideas which it is impossible to translate into popular language. Conceptions that are too general and objects that are too remote are equally out of its range: each individual, having no taste for any other plan of government than that which suits his particular interest, finds it difficult to realise the advantages he might hope to draw from the continual privations good laws impose. For a young people to be able to relish sound principles of political theory and follow the fundamental rules of statecraft, the effect would have to become the cause; the social spirit, which should be created by these institutions, would have to preside over their very foundation; and men would have to be before law what they should become by means of law. The legislator therefore, being unable to appeal to either force or reason, must have recourse to an authority of a different order capable of constraining without violence and persuading without convincing.

This is what has, in all ages, compelled the fathers of nations to have recourse to divine intervention and credit the gods with their own wisdom, in order that the peoples, submitting to the laws of the State as to those of nature, and recognising the same power in the formation of the city as in that of man, might obey freely, and bear with docility the yoke of the public happiness.

This sublime reason, far above the range of the common herd, is that whose decisions the legislator puts into the mouth of the immortals, in order to constrain by divine authority those whom human prudence could not move. But it is not anybody who can make the gods speak, or get himself believed when he proclaims himself their interpreter. The great soul of the legislator is the only miracle that can prove his mission. Any man may grave tablets of stone, or buy an oracle; or feign secret intercourse with some divinity, or train a bird to whisper in his ear, or find other vulgar ways of imposing on the people. He whose knowledge goes no further may perhaps gather round him a band of fools; but he will never found an empire, and his extravagances will quickly perish with him. Idle tricks form a passing tie; only wisdom can make it lasting. The Judaic law, which still subsists, and that of the child of Ishmael, which, for ten centuries, has ruled half the world, still proclaim the great men who laid them down; and, while the pride of philosophy or the blind spirit of faction sees in them no more than lucky impostures, the true political theorist admires, in the institutions they set up, the great and powerful genius which presides over things made to endure.

We should not, with Warburton, conclude from this that politics and religion have among us a common object, but that, in the first periods of nations, the one is used as an instrument for the other...

CHAPTER XI
THE VARIOUS SYSTEMS OF LEGISLATION

If we ask in what precisely consists the greatest good of all, which should be the end of every system of legislation, we shall find it reduce itself to two main objects, liberty and equality—liberty, because all particular dependence means so much force taken from the body of the State, and equality, because liberty cannot exist without it.

I have already defined civil liberty; by equality, we should understand, not that the degrees of power and riches are to be absolutely identical for everybody; but that power shall never be great enough for violence, and shall always be exercised by virtue of rank and law; and that, in respect of riches, no citizen shall ever be wealthy enough to buy another, and none poor enough to be forced to sell himself:[1] which implies, on the part of the great, moderation in goods and position, and, on the side of the common sort, moderation in avarice and covetousness.

Such equality, we are told, is an unpractical ideal that cannot actually exist. But if its abuse is inevitable, does it follow that we should not at least make regulations concerning it? It is precisely because the force of circumstances tends continually to destroy equality that the force of legislation should always tend to its maintenance.

16 Of the Social Contract, Part 2 (Jean-Jacques Rousseau)

*Of the Social Contract*¹

BOOK III

Before speaking of the different forms of government, let us try to fix the exact sense of the word, which has not yet been very clearly explained.

CHAPTER I GOVERNMENT IN GENERAL

I warn the reader that this chapter requires careful reading, and that I am unable to make myself clear to those who refuse to be attentive.

Every free action is produced by the concurrence of two causes; one moral, i.e. the will which determines the act; the other physical, i.e. the power which executes it. When I walk towards an object, it is necessary first that I should will to go there, and, in the second place, that my feet should carry me. If a paralytic wills to run and an active man wills not to, they will both stay where they are. The body politic has the same motive powers; here too force and will are distinguished, will under the name of legislative power and force under that of executive power. Without their concurrence, nothing is, or should be, done.

We have seen that the legislative power belongs to the people, and can belong to it alone. It may, on the other hand, readily be seen, from the principles laid down above, that the executive power cannot belong to the generality as legislature or Sovereign, because it consists wholly of particular acts which fall outside the competency of the law, and consequently of the Sovereign, whose acts must always be laws.

The public force therefore needs an agent of its own to bind it together and set it to work under the direction of the general will, to serve as a means of communication between the State and the Sovereign, and to do for the collective person more or less what the union of soul and body does for man. Here we have what is, in the State, the basis of government, often wrongly confused with the Sovereign, whose minister it is.

What then is government? An intermediate body set up between the subjects and the Sovereign, to secure their mutual correspondence, charged with the execution of the laws and the maintenance of liberty, both civil and political.

The members of this body are called magistrates or kings, that is to say governors, and the whole body

¹ Jean-Jacques Rousseau, 1750. Translated by George Douglas Howard Cole, 1920.

bears the name prince. Thus those who hold that the act, by which a people puts itself under a prince, is not a contract, are certainly right. It is simply and solely a commission, an employment, in which the rulers, mere officials of the Sovereign, exercise in their own name the power of which it makes them depositaries. This power it can limit, modify or recover at pleasure; for the alienation of such a right is incompatible with the nature of the social body, and contrary to the end of association.

I call then government, or supreme administration, the legitimate exercise of the executive power, and prince or magistrate the man or the body entrusted with that administration.

In government reside the intermediate forces whose relations make up that of the whole to the whole, or of the Sovereign to the State. This last relation may be represented as that between the extreme terms of a continuous proportion, which has government as its mean proportional. The government gets from the Sovereign the orders it gives the people, and, for the State to be properly balanced, there must, when everything is reckoned in, be equality between the product or power of the government taken in itself, and the product or power of the citizens, who are on the one hand sovereign and on the other subject.

Furthermore, none of these three terms can be altered without the equality being instantly destroyed. If the Sovereign desires to govern, or the magistrate to give laws, or if the subjects refuse to obey, disorder takes the place of regularity, force and will no longer act together, and the State is dissolved and falls into despotism or anarchy. Lastly, as there is only one mean proportional between each relation, there is also only one good government possible for a State. But, as countless events may change the relations of a people, not only may different governments be good for different peoples, but also for the same people at different times.

In attempting to give some idea of the various relations that may hold between these two extreme terms, I shall take as an example the number of a people, which is the most easily expressible.

Suppose the State is composed of ten thousand citizens. The Sovereign can only be considered collectively and as a body; but each member, as being a subject, is regarded as an individual: thus the Sovereign is to the subject as ten thousand to one, i.e. each member of the State has as his share only a ten-thousandth part of the sovereign authority, although he is wholly under its control. If the people numbers a hundred thousand, the condition of the subject undergoes no change, and each equally is under the whole authority of the laws, while his vote, being reduced to one hundred thousandth part, has ten times less influence in drawing them up. The subject therefore remaining always a unit, the relation between him and the Sovereign increases with the number of the citizens. From this it follows that, the larger the State, the less the liberty.

When I say the relation increases, I mean that it grows more unequal. Thus the greater it is in the geometrical sense, the less relation there is in the ordinary sense of the word. In the former sense, the relation, considered according to quantity, is expressed by the quotient; in the latter, considered according to identity, it is reckoned by similarity.

Now, the less relation the particular wills have to the general will, that is, morals and manners to laws, the more should the repressive force be increased. The government, then, to be good, should be proportionately stronger as the people is more numerous.

On the other hand, as the growth of the State gives the depositaries of the public authority more temptations and chances of abusing their power, the greater the force with which the government ought to be endowed for keeping the people in hand, the greater too should be the force at the disposal of the Sovereign for keeping the government in hand. I am speaking, not of absolute force, but of the relative force of the different parts of the State.

It follows from this double relation that the continuous proportion between the Sovereign, the prince and the people, is by no means an arbitrary idea, but a necessary consequence of the nature of the body politic. It follows further that, one of the extreme terms, viz. the people, as subject, being fixed and represented by unity, whenever the duplicate ratio increases or diminishes, the simple ratio does the same, and is changed accordingly. From this we see that there is not a single unique and absolute form of government, but as many governments differing in nature as there are States differing in size.

If, ridiculing this system, any one were to say that, in order to find the mean proportional and give form to the body of the government, it is only necessary, according to me, to find the square root of the number of the people, I should answer that I am here taking this number only as an instance; that the relations of which I am speaking are not measured by the number of men alone, but generally by the amount of action, which is a combination of a multitude of causes; and that, further, if, to save words, I borrow for a moment the terms of geometry, I am none the less well aware that moral quantities do not allow of geometrical accuracy.

The government is on a small scale what the body politic which includes it is on a great one. It is a moral person endowed with certain faculties, active like the Sovereign and passive like the State, and capable of being resolved into other similar relations. This accordingly gives rise to a new proportion, within which there is yet another, according to the arrangement of the magistracies, till an indivisible middle term is reached, i.e. a single ruler or supreme magistrate, who may be represented, in the midst of this progression, as the unity between the fractional and the ordinal series.

Without encumbering ourselves with this multiplication of terms, let us rest content with regarding government as a new body within the State, distinct from the people and the Sovereign, and intermediate between them.

There is between these two bodies this essential difference, that the State exists by itself, and the government only through the Sovereign. Thus the dominant will of the prince is, or should be, nothing but the general will or the law; his force is only the public force concentrated in his hands, and, as soon as he tries to base any absolute and independent act on his own authority, the tie that binds the whole together begins to be loosened. If finally the prince should come to have a particular will more active than the will of the Sovereign, and should employ the public force in his hands in obedience to this particular will, there would be, so to speak, two Sovereigns, one rightful and the other actual, the social union would evaporate instantly, and the body politic would be dissolved.

However, in order that the government may have a true existence and a real life distinguishing it from the body of the State, and in order that all its members may be able to act in concert and fulfil the end for which it was set up, it must have a particular personality, a sensibility common to its members, and a force and will of its own making for its preservation. This particular existence implies assemblies, councils, power of deliberation and decision, rights, titles, and privileges belonging exclusively to the

prince and making the office of magistrate more honourable in proportion as it is more troublesome. The difficulties lie in the manner of so ordering this subordinate whole within the whole, that it in no way alters the general constitution by affirmation of its own, and always distinguishes the particular force it possesses, which is destined to aid in its preservation, from the public force, which is destined to the preservation of the State; and, in a word, is always ready to sacrifice the government to the people, and never to sacrifice the people to the government.

Furthermore, although the artificial body of the government is the work of another artificial body, and has, we may say, only a borrowed and subordinate life, this does not prevent it from being able to act with more or less vigour or promptitude, or from being, so to speak, in more or less robust health. Finally, without departing directly from the end for which it was instituted, it may deviate more or less from it, according to the manner of its constitution.

From all these differences arise the various relations which the government ought to bear to the body of the State, according to the accidental and particular relations by which the State itself is modified, for often the government that is best in itself will become the most pernicious, if the relations in which it stands have altered according to the defects of the body politic to which it belongs.

CHAPTER II

THE CONSTITUENT PRINCIPLE IN THE VARIOUS FORMS OF GOVERNMENT

To set forth the general cause of the above differences, we must here distinguish between government and its principle, as we did before between the State and the Sovereign.

The body of the magistrate may be composed of a greater or a less number of members. We said that the relation of the Sovereign to the subjects was greater in proportion as the people was more numerous, and, by a clear analogy, we may say the same of the relation of the government to the magistrates.

But the total force of the government, being always that of the State, is invariable; so that, the more of this force it expends on its own members, the less it has left to employ on the whole people.

The more numerous the magistrates, therefore, the weaker the government. This principle being fundamental, we must do our best to make it clear.

In the person of the magistrate we can distinguish three essentially different wills: first, the private will of the individual, tending only to his personal advantage; secondly, the common will of the magistrates, which is relative solely to the advantage of the prince, and may be called corporate will, being general in relation to the government, and particular in relation to the State, of which the government forms part; and, in the third place, the will of the people or the sovereign will, which is general both in relation to the State regarded as the whole, and to the government regarded as a part of the whole.

In a perfect act of legislation, the individual or particular will should be at zero; the corporate will belonging to the government should occupy a very subordinate position; and, consequently, the general or sovereign will should always predominate and should be the sole guide of all the rest.

According to the natural order, on the other hand, these different wills become more active in proportion

as they are concentrated. Thus, the general will is always the weakest, the corporate will second, and the individual will strongest of all: so that, in the government, each member is first of all himself, then a magistrate, and then a citizen—in an order exactly the reverse of what the social system requires.

This granted, if the whole government is in the hands of one man, the particular and the corporate will are wholly united, and consequently the latter is at its highest possible degree of intensity. But, as the use to which the force is put depends on the degree reached by the will, and as the absolute force of the government is invariable, it follows that the most active government is that of one man.

Suppose, on the other hand, we unite the government with the legislative authority, and make the Sovereign prince also, and all the citizens so many magistrates: then the corporate will, being confounded with the general will, can possess no greater activity than that will, and must leave the particular will as strong as it can possibly be. Thus, the government, having always the same absolute force, will be at the lowest point of its relative force or activity.

These relations are incontestable, and there are other considerations which still further confirm them. We can see, for instance, that each magistrate is more active in the body to which he belongs than each citizen in that to which he belongs, and that consequently the particular will has much more influence on the acts of the government than on those of the Sovereign; for each magistrate is almost always charged with some governmental function, while each citizen, taken singly, exercises no function of Sovereignty. Furthermore, the bigger the State grows, the more its real force increases, though not in direct proportion to its growth; but, the State remaining the same, the number of magistrates may increase to any extent, without the government gaining any greater real force; for its force is that of the State, the dimension of which remains equal. Thus the relative force or activity of the government decreases, while its absolute or real force cannot increase.

Moreover, it is a certainty that promptitude in execution diminishes as more people are put in charge of it: where prudence is made too much of, not enough is made of fortune; opportunity is let slip, and deliberation results in the loss of its object.

I have just proved that the government grows remiss in proportion as the number of the magistrates increases; and I previously proved that, the more numerous the people, the greater should be the repressive force. From this it follows that the relation of the magistrates to the government should vary inversely to the relation of the subjects to the Sovereign; that is to say, the larger the State, the more should the government be tightened, so that the number of the rulers diminish in proportion to the increase of that of the people.

It should be added that I am here speaking of the relative strength of the government, and not of its rectitude: for, on the other hand, the more numerous the magistracy, the nearer the corporate will comes to the general will; while, under a single magistrate, the corporate will is, as I said, merely a particular will. Thus, what may be gained on one side is lost on the other, and the art of the legislator is to know how to fix the point at which the force and the will of the government, which are always in inverse proportion, meet in the relation that is most to the advantage of the State.

CHAPTER III THE DIVISION OF GOVERNMENTS

We saw in the last chapter what causes the various kinds or forms of government to be distinguished according to the number of the members composing them: it remains in this to discover how the division is made.

In the first place, the Sovereign may commit the charge of the government to the whole people or to the majority of the people, so that more citizens are magistrates than are mere private individuals. This form of government is called democracy.

Or it may restrict the government to a small number; so that there are more private citizens than magistrates; and this is named aristocracy.

Lastly, it may concentrate the whole government in the hands of a single magistrate from whom all others hold their power. This third form is the most usual, and is called monarchy, or royal government.

It should be remarked that all these forms, or at least the first two, admit of degree, and even of very wide differences; for democracy may include the whole people, or may be restricted to half. Aristocracy, in its turn, may be restricted indefinitely from half the people down to the smallest possible number. Even royalty is susceptible of a measure of distribution. Sparta always had two kings, as its constitution provided; and the Roman Empire saw as many as eight emperors at once, without it being possible to say that the Empire was split up. Thus there is a point at which each form of government passes into the next, and it becomes clear that, under three comprehensive denominations, government is really susceptible of as many diverse forms as the State has citizens.

There are even more: for, as the government may also, in certain aspects, be subdivided into other parts, one administered in one fashion and one in another, the combination of the three forms may result in a multitude of mixed forms, each of which admits of multiplication by all the simple forms.

There has been at all times much dispute concerning the best form of government, without consideration of the fact that each is in some cases the best, and in others the worst.

If, in the different States, the number of supreme magistrates should be in inverse ratio to the number of citizens, it follows that, generally, democratic government suits small States, aristocratic government those of middle size, and monarchy great ones. This rule is immediately deducible from the principle laid down. But it is impossible to count the innumerable circumstances which may furnish exceptions.

CHAPTER IV DEMOCRACY

He who makes the law knows better than any one else how it should be executed and interpreted. It seems then impossible to have a better constitution than that in which the executive and legislative powers are united; but this very fact renders the government in certain respects inadequate, because things which should be distinguished are confounded, and the prince and the Sovereign, being the same person, form, so to speak, no more than a government without government.

It is not good for him who makes the laws to execute them, or for the body of the people to turn its attention away from a general standpoint and devote it to particular objects. Nothing is more dangerous than the influence of private interests in public affairs, and the abuse of the laws by the government is a less evil than the corruption of the legislator, which is the inevitable sequel to a particular standpoint. In such a case, the State being altered in substance, all reformation becomes impossible. A people that would never misuse governmental powers would never misuse independence; a people that would always govern well would not need to be governed.

If we take the term in the strict sense, there never has been a real democracy, and there never will be. It is against the natural order for the many to govern and the few to be governed. It is unimaginable that the people should remain continually assembled to devote their time to public affairs, and it is clear that they cannot set up commissions for that purpose without the form of administration being changed.

In fact, I can confidently lay down as a principle that, when the functions of government are shared by several tribunals, the less numerous sooner or later acquire the greatest authority, if only because they are in a position to expedite affairs, and power thus naturally comes into their hands.

Besides, how many conditions that are difficult to unite does such a government presuppose! First, a very small State, where the people can readily be got together and where each citizen can with ease know all the rest; secondly, great simplicity of manners, to prevent business from multiplying and raising thorny problems; next, a large measure of equality in rank and fortune, without which equality of rights and authority cannot long subsist; lastly, little or no luxury—for luxury either comes of riches or makes them necessary; it corrupts at once rich and poor, the rich by possession and the poor by covetousness; it sells the country to softness and vanity, and takes away from the State all its citizens, to make them slaves one to another, and one and all to public opinion.

This is why a famous writer has made virtue the fundamental principle of Republics; for all these conditions could not exist without virtue. But, for want of the necessary distinctions, that great thinker was often inexact, and sometimes obscure, and did not see that, the sovereign authority being everywhere the same, the same principle should be found in every well-constituted State, in a greater or less degree, it is true, according to the form of the government.

It may be added that there is no government so subject to civil wars and intestine agitations as democratic or popular government, because there is none which has so strong and continual a tendency to change to another form, or which demands more vigilance and courage for its maintenance as it is. Under such a constitution above all, the citizen should arm himself with strength and constancy, and say, every day of his life, what a virtuous Count Palatine said in the Diet of Poland: *Malo periculosam libertatem quam quietum servitium*. [I prefer liberty with danger to peace with slavery.]

Were there a people of gods, their government would be democratic. So perfect a government is not for men.

CHAPTER V ARISTOCRACY

We have here two quite distinct moral persons, the government and the Sovereign, and in consequence two general wills, one general in relation to all the citizens, the other only for the members of the administration. Thus, although the government may regulate its internal policy as it pleases, it can never speak to the people save in the name of the Sovereign, that is, of the people itself, a fact which must not be forgotten.

The first societies governed themselves aristocratically. The heads of families took counsel together on public affairs. The young bowed without question to the authority of experience. Hence such names as priests, elders, senate, and gerontes. The savages of North America govern themselves in this way even now, and their government is admirable.

But, in proportion as artificial inequality produced by institutions became predominant over natural inequality, riches or power were put before age, and aristocracy became elective. Finally, the transmission of the father's power along with his goods to his children, by creating patrician families, made government hereditary, and there came to be senators of twenty.

There are then three sorts of aristocracy—natural, elective and hereditary. The first is only for simple peoples; the third is the worst of all governments; the second is the best, and is aristocracy properly so called.

Besides the advantage that lies in the distinction between the two powers, it presents that of its members being chosen; for, in popular government, all the citizens are born magistrates; but here magistracy is confined to a few, who become such only by election. By this means uprightness, understanding, experience and all other claims to pre-eminence and public esteem become so many further guarantees of wise government.

Moreover, assemblies are more easily held, affairs better discussed and carried out with more order and diligence, and the credit of the State is better sustained abroad by venerable senators than by a multitude that is unknown or despised.

In a word, it is the best and most natural arrangement that the wisest should govern the many, when it is assured that they will govern for its profit, and not for their own. There is no need to multiply instruments, or get twenty thousand men to do what a hundred picked men can do even better, but it must not be forgotten that corporate interest here begins to direct the public power less under the regulation of the general will, and that a further inevitable propensity takes away from the laws part of the executive power.

If we are to speak of what is individually desirable, neither should the State be so small, nor a people so simple and upright, that the execution of the laws follows immediately from the public will, as it does in a good democracy. Nor should the nation be so great that the rulers have to scatter in order to govern it and are able to play the Sovereign each in his own department, and, beginning by making themselves independent, end by becoming masters.

But if aristocracy does not demand all the virtues needed by popular government, it demands others which are peculiar to itself; for instance, moderation on the side of the rich and contentment on that of the poor; for it seems that thorough-going equality would be out of place, as it was not found even at Sparta.

Furthermore, if this form of government carries with it a certain inequality of fortune, this is justifiable in order that as a rule the administration of public affairs may be entrusted to those who are most able to give them their whole time, but not, as Aristotle maintains, in order that the rich may always be put first. On the contrary, it is of importance that an opposite choice should occasionally teach the people that the deserts of men offer claims to pre-eminence more important than those of riches.

CHAPTER VI MONARCHY

So far, we have considered the prince as a moral and collective person, unified by the force of the laws, and the depositary in the State of the executive power. We have now to consider this power when it is gathered together into the hands of a natural person, a real man, who alone has the right to dispose of it in accordance with the laws. Such a person is called a monarch or king.

In contrast with other forms of administration, in which a collective being stands for an individual, in this form an individual stands for a collective being; so that the moral unity that constituted the prince is at the same time a physical unity, and all the qualities, which in the other case are only with difficulty brought together by the law, are found naturally united.

Thus the will of the people, the will of the prince, the public force of the State, and the particular force of the government, all answer to a single motive power; all the springs of the machine are in the same hands, the whole moves towards the same end; there are no conflicting movements to cancel one another, and no kind of constitution can be imagined in which a less amount of effort produces a more considerable amount of action. Archimedes, seated quietly on the bank and easily drawing a great vessel afloat, stands to my mind for a skilful monarch, governing vast states from his study, and moving everything while he seems himself unmoved.

But if no government is more vigorous than this, there is also none in which the particular will holds more sway and rules the rest more easily. Everything moves towards the same end indeed, but this end is by no means that of the public happiness, and even the force of the administration constantly shows itself prejudicial to the State.

Kings desire to be absolute, and men are always crying out to them from afar that the best means of being so is to get themselves loved by their people. This precept is all very well, and even in some respects very true. Unfortunately, it will always be derided at court. The power which comes of a people's love is no doubt the greatest; but it is precarious and conditional, and princes will never rest content with it. The best kings desire to be in a position to be wicked, if they please, without forfeiting their mastery: political sermonisers may tell them to their hearts' content that, the people's strength being their own, their first interest is that the people should be prosperous, numerous and formidable; they are well aware that this is Untrue. Their first personal interest is that the people should be weak, wretched, and unable to resist them. I admit that, provided the subjects remained always in submission, the prince's

interest would indeed be that it should be powerful, in order that its power, being his own, might make him formidable to his neighbours; but, this interest being merely secondary and subordinate, and strength being incompatible with submission, princes naturally give the preference always to the principle that is more to their immediate advantage. This is what Samuel put strongly before the Hebrews, and what Macchiavelli has clearly shown. He professed to teach kings; but it was the people he really taught. His Prince is the book of Republicans.

We found, on general grounds, that monarchy is suitable only for great States, and this is confirmed when we examine it in itself. The more numerous the public administration, the smaller becomes the relation between the prince and the subjects, and the nearer it comes to equality, so that in democracy the ratio is unity, or absolute equality. Again, as the government is restricted in numbers the ratio increases and reaches its maximum when the government is in the hands of a single person. There is then too great a distance between prince and people and the State lacks a bond of union. To form such a bond, there must be intermediate orders, and princes, personages and nobility to compose them. But no such things suit a small State, to which all class differences mean ruin.

If, however, it is hard for a great State to be well governed, it is much harder for it to be so by a single man; and every one knows what happens when kings substitute others for themselves.

An essential and inevitable defect, which will always rank monarchical below republican government, is that in a republic the public voice hardly ever raises to the highest positions men who are not enlightened and capable, and such as to fill them with honour; while in monarchies these who rise to the top are most often merely petty blunderers petty swindlers, and petty intriguers, whose petty talents cause them to get into the highest positions at Court, but, as soon as they have got there, serve only to make their ineptitude clear to the public. The people is far less often mistaken in its choice than the prince; and a man of real worth among the king's ministers is almost as rare as a fool at the head of a republican government. Thus, when, by some fortunate chance, one of these born governors takes the helm of State in some monarchy that has been nearly overwhelmed by swarms of 'gentlemanly' administrators, there is nothing but amazement at the resources he discovers, and his coming marks an era in his country's history.

For a monarchical State to have a chance of being well governed, its population and extent must be proportionate to the abilities of its governor. It is easier to conquer than to rule. With a long enough lever, the world could be moved with a single finger; to sustain it needs the shoulders of Hercules. However small a State may be, the prince is hardly ever big enough for it. When, on the other hand, it happens that the State is too small for its ruler, in these rare cases too it is ill governed, because the ruler, constantly pursuing his great designs, forgets the interests of the people, and makes it no less wretched by misusing the talents he has, than a ruler of less capacity would make it for want of those he had not. A kingdom should, so to speak, expand or contract with each reign, according to the prince's capabilities; but, the abilities of a senate being more constant in quantity, the State can then have permanent frontiers without the administration suffering.

The disadvantage that is most felt in monarchical government is the want of the continuous succession which, in both the other forms, provides an unbroken bond of union. When one king dies, another is needed; elections leave dangerous intervals and are full of storms; and unless the citizens are disinterested and upright to a degree which very seldom goes with this kind of government, intrigue and

corruption abound. He to whom the State has sold itself can hardly help selling it in his turn and repaying himself, at the expense of the weak, the money the powerful have wrung from him. Under such an administration, venality sooner or later spreads through every part, and peace so enjoyed under a king is worse than the disorders of an interregnum.

What has been done to prevent these evils? Crowns have been made hereditary in certain families, and an order of succession has been set up, to prevent disputes from arising on the death of kings. That is to say, the disadvantages of regency have been put in place of those of election, apparent tranquillity has been preferred to wise administration, and men have chosen rather to risk having children, monstrosities, or imbeciles as rulers to having disputes over the choice of good kings. It has not been taken into account that, in so exposing ourselves to the risks this possibility entails, we are setting almost all the chances against us. There was sound sense in what the younger Dionysius said to his father, who reproached him for doing some shameful deed by asking, "Did I set you the example?" "No," answered his son, "but your father was not king."

Everything conspires to take away from a man who is set in authority over others the sense of justice and reason. Much trouble, we are told, is taken to teach young princes the art of reigning; but their education seems to do them no good. It would be better to begin by teaching them the art of obeying. The greatest kings whose praises history tells were not brought up to reign: reigning is a science we are never so far from possessing as when we have learnt too much of it, and one we acquire better by obeying than by commanding. "Nam utilissimus idem ac brevissimus bonarum malarumque rerum delectus cogitare quid aut nolueris sub alio principe, aut volueris."

One result Of this lack of coherence is the inconstancy of royal government, which, regulated now on one scheme and now on another, according to the character of the reigning prince or those who reign for him, cannot for long have a fixed object or a consistent policy—and this variability, not found in the other forms of government, where the prince is always the same, causes the State to be always shifting from principle to principle and from project to project. Thus we may say that generally, if a court is more subtle in intrigue, there is more wisdom in a senate, and Republics advance towards their ends by more consistent and better considered policies; while every revolution in a royal ministry creates a revolution in the State; for the principle common to all ministers and nearly all kings is to do in every respect the reverse of what was done by their predecessors.

This incoherence further clears up a sophism that is very familiar to royalist political writers; not only is civil government likened to domestic government, and the prince to the father of a family—this error has already been refuted—but the prince is also freely credited with all the virtues he ought to possess, and is supposed to be always what he should be. This supposition once made, royal government is clearly preferable to all others, because it is incontestably the strongest, and, to be the best also, wants only a corporate will more in conformity with the general will.

But if, according to Plato, the "king by nature" is such a rarity, how often will nature and fortune conspire to give him a crown? And, if royal education necessarily corrupts those who receive it, what is to be hoped from a series of men brought up to reign? It is, then, wanton self-deception to confuse royal government with government by a good king. To see such government as it is in itself, we must consider it as it is under princes who are incompetent or wicked: for either they will come to the throne wicked or incompetent, or the throne will make them so.

These difficulties have not escaped our writers, who, all the same, are not troubled by them. The remedy, they say, is to obey without a murmur: God sends bad kings in His wrath, and they must be borne as the scourges of Heaven. Such talk is doubtless edifying; but it would be more in place in a pulpit than in a political book. What are we to think of a doctor who promises miracles, and whose whole art is to exhort the sufferer to patience? We know for ourselves that we must put up with a bad government when it is there; the question is how to find a good one.

CHAPTER VII MIXED GOVERNMENTS

Strictly speaking, there is no such thing as a simple government. An isolated ruler must have subordinate magistrates; a popular government must have a head. There is therefore, in the distribution of the executive power, always a gradation from the greater to the lesser number, with the difference that sometimes the greater number is dependent on the smaller, and sometimes the smaller on the greater.

Sometimes the distribution is equal, when either the constituent parts are in mutual dependence, as in the government of England, or the authority of each section is independent, but imperfect, as in Poland. This last form is bad; for it secures no unity in the government, and the State is left without a bond of union.

Is a simple or a mixed government the better? Political writers are always debating the question, which must be answered as we have already answered a question about all forms of government.

Simple government is better in itself, just because it is simple. But when the executive power is not sufficiently dependent upon the legislative power, i.e. when the prince is more closely related to the Sovereign than the people to the prince, this lack of proportion must be cured by the division of the government; for all the parts have then no less authority over the subjects, while their division makes them all together less strong against the Sovereign.

The same disadvantage is also prevented by the appointment of intermediate magistrates, who leave the government entire, and have the effect only of balancing the two powers and maintaining their respective rights. Government is then not mixed, but moderated.

The opposite disadvantages may be similarly cured, and, when the government is too lax, tribunals may be set up to concentrate it. This is done in all democracies. In the first case, the government is divided to make it weak; in the second, to make it strong: for the maxima of both strength and weakness are found in simple governments, while the mixed forms result in a mean strength...

BOOK IV CHAPTER I THAT THE GENERAL WILL IS INDESTRUCTIBLE

As long as several men in assembly regard themselves as a single body, they have only a single will which is concerned with their common preservation and general well-being. In this case, all the springs of the State are vigorous and simple and its rules clear and luminous; there are no embroilments or conflicts of interests; the common good is everywhere clearly apparent, and only good sense is needed

to perceive it. Peace, unity and equality are the enemies of political subtleties. Men who are upright and simple are difficult to deceive because of their simplicity; lures and ingenious pretexts fail to impose upon them, and they are not even subtle enough to be dupes. When, among the happiest people in the world, bands of peasants are seen regulating affairs of State under an oak, and always acting wisely, can we help scorning the ingenious methods of other nations, which make themselves illustrious and wretched with so much art and mystery?

A State so governed needs very few laws; and, as it becomes necessary to issue new ones, the necessity is universally seen. The first man to propose them merely says what all have already felt, and there is no question of factions or intrigues or eloquence in order to secure the passage into law of what every one has already decided to do, as soon as he is sure that the rest will act with him.

Theorists are led into error because, seeing only States that have been from the beginning wrongly constituted, they are struck by the impossibility of applying such a policy to them. They make great game of all the absurdities a clever rascal or an insinuating speaker might get the people of Paris or London to believe. They do not know that Cromwell would have been put to "the bells" by the people of Berne, and the Due de Beaufort on the treadmill by the Genevese.

But when the social bond begins to be relaxed and the State to grow weak, when particular interests begin to make themselves felt and the smaller societies to exercise an influence over the larger, the common interest changes and finds opponents: opinion is no longer unanimous; the general will ceases to be the will of all; contradictory views and debates arise; and the best advice is not taken without question.

Finally, when the State, on the eve of ruin, maintains only a vain, illusory and formal existence, when in every heart the social bond is broken, and the meanest interest brazenly lays hold of the sacred name of "public good," the general will becomes mute: all men, guided by secret motives, no more give their views as citizens than if the State had never been; and iniquitous decrees directed solely to private interest get passed under the name of laws.

Does it follow from this that the general will is exterminated or corrupted? Not at all: it is always constant, unalterable and pure; but it is subordinated to other wills which encroach upon its sphere. Each man, in detaching, his interest from the common interest, sees clearly that he cannot entirely separate them; but his share in the public mishaps seems to him negligible beside the exclusive good he aims at making his own. Apart from this particular good, he wills the general good in his own interest, as strongly as any one else. Even in selling his vote for money, he does not extinguish in himself the general will, but only eludes it. The fault he commits is that of changing the state of the question, and answering something different from what he is asked. Instead of saying, by his vote, "It is to the advantage of the State," he says, "It is of advantage to this or that man or party that this or that view should prevail." Thus the law of public order in assemblies is not so much to maintain in them the general will as to secure that the question be always put to it, and the answer always given by it.

I could here set down many reflections on the simple right of voting in every act of Sovereignty—a right which no-one can take from the citizens—and also on the right of stating views, making proposals, dividing and discussing, which the government is always most careful to leave solely to its members; but this important subject would need a treatise to itself, and it is impossible to say everything in a single work.

CHAPTER II VOTING

It may be seen, from the last chapter, that the way in which general business is managed may give a clear enough indication of the actual state of morals and the health of the body politic. The more concert reigns in the assemblies, that is, the nearer opinion approaches unanimity, the greater is the dominance of the general will. On the other hand, long debates, dissensions and tumult proclaim the ascendancy of particular interests and the decline of the State.

This seems less clear when two or more orders enter into the constitution, as patricians and plebeians did at Rome; for quarrels between these two orders often disturbed the comitia, even in the best days of the Republic. But the exception is rather apparent than real; for then, through the defect that is inherent in the body politic, there were, so to speak, two States in one, and what is not true of the two together is true of either separately. Indeed, even in the most stormy times, the plebiscita of the people, when the Senate did not interfere with them, always went through quietly and by large majorities. The citizens having but one interest, the people had but a single will.

At the other extremity of the circle, unanimity recurs; this is the case when the citizens, having fallen into servitude, have lost both liberty and will. Fear and flattery then change votes into acclamation; deliberation ceases, and only worship or malediction is left. Such was the vile manner in which the senate expressed its views under the Emperors. It did so sometimes with absurd precautions. Tacitus observes that, under Otho, the senators, while they heaped curses on Vitellius, contrived at the same time to make a deafening noise, in order that, should he ever become their master, he might not know what each of them had said.

On these various considerations depend the rules by which the methods of counting votes and comparing opinions should be regulated, according as the general will is more or less easy to discover, and the State more or less in its decline.

There is but one law which, from its nature, needs unanimous consent. This is the social compact; for civil association is the most voluntary of all acts. Every man being born free and his own master, no-one, under any pretext whatsoever, can make any man subject without his consent. To decide that the son of a slave is born a slave is to decide that he is not born a man.

If then there are opponents when the social compact is made, their opposition does not invalidate the contract, but merely prevents them from being included in it. They are foreigners among citizens. When the State is instituted, residence constitutes consent; to dwell within its territory is to submit to the Sovereign.

Apart from this primitive contract, the vote of the majority always binds all the rest. This follows from the contract itself. But it is asked how a man can be both free and forced to conform to wills that are not his own. How are the opponents at once free and subject to laws they have not agreed to?

I retort that the question is wrongly put. The citizen gives his consent to all the laws, including those which are passed in spite of his opposition, and even those which punish him when he dares to break any

of them. The constant will of all the members of the State is the general will; by virtue of it they are citizens and free. When in the popular assembly a law is proposed, what the people is asked is not exactly whether it approves or rejects the proposal, but whether it is in conformity with the general will, which is their will. Each man, in giving his vote, states his opinion on that point; and the general will is found by counting votes. When therefore the opinion that is contrary to my own prevails, this proves neither more nor less than that I was mistaken, and that what I thought to be the general will was not so. If my particular opinion had carried the day I should have achieved the opposite of what was my will and it is in that case that I should not have been free.

This presupposes, indeed, that all the qualities of the general will still reside in the majority: when they cease to do so, whatever side a man may take, liberty is no longer possible.

In my earlier demonstration of how particular wills are substituted for the general will in public deliberation, I have adequately pointed out the practicable methods of avoiding this abuse; and I shall have more to say of them later on. I have also given the principles for determining the proportional number of votes for declaring that will. A difference of one vote destroys equality; a single opponent destroys unanimity; but between equality and unanimity, there are several grades of unequal division, at each of which this proportion may be fixed in accordance with the condition and the needs of the body politic.

There are two general rules that may serve to regulate this relation. First, the more grave and important the questions discussed, the nearer should the opinion that is to prevail approach unanimity. Secondly, the more the matter in hand calls for speed, the smaller the prescribed difference in the numbers of votes may be allowed to become: where an instant decision has to be reached, a majority of one vote should be enough. The first of these two rules seems more in harmony with the laws, and the second with practical affairs. In any case, it is the combination of them that gives the best proportions for determining the majority necessary...

CHAPTER VIII CIVIL RELIGION

...Among us, the Kings of England have made themselves heads of the Church, and the Czars have done the same: but this title has made them less its masters than its ministers; they have gained not so much the right to change it, as the power to maintain it: they are not its legislators, but only its princes. Wherever the clergy is a corporate body, it is master and legislator in its own country. There are thus two powers, two Sovereigns, in England and in Russia, as well as elsewhere.

Of all Christian writers, the philosopher Hobbes alone has seen the evil and how to remedy it, and has dared to propose the reunion of the two heads of the eagle, and the restoration throughout of political unity, without which no State or government will ever be rightly constituted. But he should have seen that the masterful spirit of Christianity is incompatible with his system, and that the priestly interest would always be stronger than that of the State. It is not so much what is false and terrible in his political theory, as what is just and true, that has drawn down hatred on it.

I believe that if the study of history were developed from this point of view, it would be easy to refute the contrary opinions of Bayle and Warburton, one of whom holds that religion can be of no use to the

body politic, while the other, on the contrary, maintains that Christianity is its strongest support. We should demonstrate to the former that no State has ever been founded without a religious basis, and to the latter, that the law of Christianity at bottom does more harm by weakening than good by strengthening the constitution of the State. To make myself understood, I have only to make a little more exact the too vague ideas of religion as relating to this subject.

Religion, considered in relation to society, which is either general or particular, may also be divided into two kinds: the religion of man, and that of the citizen. The first, which has neither temples, nor altars, nor rites, and is confined to the purely internal cult of the supreme God and the eternal obligations of morality, is the religion of the Gospel pure and simple, the true theism, what may be called natural divine right or law. The other, which is codified in a single country, gives it its gods, its own tutelary patrons; it has its dogmas, its rites, and its external cult prescribed by law; outside the single nation that follows it, all the world is in its sight infidel, foreign and barbarous; the duties and rights of man extend for it only as far as its own altars. Of this kind were all the religions of early peoples, which we may define as civil or positive divine right or law.

There is a third sort of religion of a more singular kind, which gives men two codes of legislation, two rulers, and two countries, renders them subject to contradictory duties, and makes it impossible for them to be faithful both to religion and to citizenship. Such are the religions of the Lamas and of the Japanese, and such is Roman Christianity, which may be called the religion of the priest. It leads to a sort of mixed and anti-social code which has no name.

In their political aspect, all these three kinds of religion have their defects. The third is so clearly bad, that it is waste of time to stop to prove it such. All that destroys social unity is worthless; all institutions that set man in contradiction to himself are worthless.

The second is good in that it unites the divine cult with love of the laws, and, making country the object of the citizens' adoration, teaches them that service done to the State is service done to its tutelary god. It is a form of theocracy, in which there can be no pontiff save the prince, and no priests save the magistrates. To die for one's country then becomes martyrdom; violation of its laws, impiety; and to subject one who is guilty to public execration is to condemn him to the anger of the gods: Sacer estod.

On the other hand, it is bad in that, being founded on lies and error, it deceives men, makes them credulous and superstitious, and drowns the true cult of the Divinity in empty ceremonial. It is bad, again, when it becomes tyrannous and exclusive, and makes a people bloodthirsty and intolerant, so that it breathes fire and slaughter, and regards as a sacred act the killing of every one who does not believe in its gods. The result is to place such a people in a natural state of war with all others, so that its security is deeply endangered.

There remains therefore the religion of man or Christianity—not the Christianity of to-day, but that of the Gospel, which is entirely different. By means of this holy, sublime, and real religion all men, being children of one God, recognise one another as brothers, and the society that unites them is not dissolved even at death.

But this religion, having no particular relation to the body politic, leaves the laws in possession of the force they have in themselves without making any addition to it; and thus one of the great bonds that

unite society considered in severalty fails to operate. Nay, more, so far from binding the hearts of the citizens to the State, it has the effect of taking them away from all earthly things. I know of nothing more contrary to the social spirit.

We are told that a people of true Christians would form the most perfect society imaginable. I see in this supposition only one great difficulty: that a society of true Christians would not be a society of men.

I say further that such a society, with all its perfection, would be neither the strongest nor the most lasting; the very fact that it was perfect would rob it of its bond of union; the flaw that would destroy it would lie in its very perfection.

Every one would do his duty; the people would be law-abiding, the rulers just and temperate; the magistrates upright and incorruptible; the soldiers would scorn death; there would be neither vanity nor luxury. So far, so good; but let us hear more.

Christianity as a religion is entirely spiritual, occupied solely with heavenly things; the country of the Christian is not of this world. He does his duty, indeed, but does it with profound indifference to the good or ill success of his cares. Provided he has nothing to reproach himself with, it matters little to him whether things go well or ill here on earth. If the State is prosperous, he hardly dares to share in the public happiness, for fear he may grow proud of his country's glory; if the State is languishing, he blesses the hand of God that is hard upon His people.

For the State to be peaceable and for harmony to be maintained, all the citizens without exception would have to be good Christians; if by ill hap there should be a single self-seeker or hypocrite, a Catiline or a Cromwell, for instance, he would certainly get the better of his pious compatriots. Christian charity does not readily allow a man to think hardly of his neighbours. As soon as, by some trick, he has discovered the art of imposing on them and getting hold of a share in the public authority, you have a man established in dignity; it is the will of God that he be respected: very soon you have a power; it is God's will that it be obeyed: and if the power is abused by him who wields it, it is the scourge wherewith God punishes His children. There would be scruples about driving out the usurper: public tranquillity would have to be disturbed, violence would have to be employed, and blood spilt; all this accords ill with Christian meekness; and after all, in this vale of sorrows, what does it matter whether we are free men or serfs? The essential thing is to get to heaven, and resignation is only an additional means of doing so.

If war breaks out with another State, the citizens march readily out to battle; not one of them thinks of flight; they do their duty, but they have no passion for victory; they know better how to die than how to conquer. What does it matter whether they win or lose? Does not Providence know better than they what is meet for them? Only think to what account a proud, impetuous and passionate enemy could turn their stoicism! Set over against them those generous peoples who were devoured by ardent love of glory and of their country, imagine your Christian republic face to face with Sparta or Rome: the pious Christians will be beaten, crushed and destroyed, before they know where they are, or will owe their safety only to the contempt their enemy will conceive for them. It was to my mind a fine oath that was taken by the soldiers of Fabius, who swore, not to conquer or die, but to come back victorious—and kept their oath. Christians, would never have taken such an oath; they would have looked on it as tempting God.

But I am mistaken in speaking of a Christian republic; the terms are mutually exclusive. Christianity

preaches only servitude and dependence. Its spirit is so favourable to tyranny that it always profits by such a régime. True Christians are made to be slaves, and they know it and do not much mind: this short life counts for too little in their eyes.

I shall be told that Christian troops are excellent. I deny it. Show me an instance. For my part, I know of no Christian troops. I shall be told of the Crusades. Without disputing the valour of the Crusaders, I answer that, so far from being Christians, they were the priests' soldiery, citizens of the Church. They fought for their spiritual country, which the Church had, somehow or other, made temporal. Well understood, this goes back to paganism: as the Gospel sets up no national religion, a holy war is impossible among Christians.

Under the pagan emperors, the Christian soldiers were brave; every Christian writer affirms it, and I believe it: it was a case of honourable emulation of the pagan troops. As soon as the emperors were Christian, this emulation no longer existed, and, when the Cross had driven out the eagle, Roman valour wholly disappeared.

But, setting aside political considerations, let us come back to what is right, and settle our principles on this important point. The right which the social compact gives the Sovereign over the subjects does not, we have seen, exceed the limits of public expediency. The subjects then owe the Sovereign an account of their opinions only to such an extent as they matter to the community. Now, it matters very much to the community that each citizen should have a religion. That will make him love his duty; but the dogmas of that religion concern the State and its members only so far as they have reference to morality and to the duties which he who professes them is bound to do to others. Each man may have, over and above, what opinions he pleases, without it being the Sovereign's business to take cognisance of them; for, as the Sovereign has no authority in the other world, whatever the lot of its subjects may be in the life to come, that is not its business, provided they are good citizens in this life.

There is therefore a purely civil profession of faith of which the Sovereign should fix the articles, not exactly as religious dogmas, but as social sentiments without which a man cannot be a good citizen or a faithful subject. While it can compel no one to believe them, it can banish from the State whoever does not believe them—it can banish him, not for impiety, but as an anti-social being, incapable of truly loving the laws and justice, and of sacrificing, at need, his life to his duty. If any one, after publicly recognising these dogmas, behaves as if he does not believe them, let him be punished by death: he has committed the worst of all crimes, that of lying before the law.

The dogmas of civil religion ought to be few, simple, and exactly worded, without explanation or commentary. The existence of a mighty, intelligent and beneficent Divinity, possessed of foresight and providence, the life to come, the happiness of the just, the punishment of the wicked, the sanctity of the social contract and the laws: these are its positive dogmas. Its negative dogmas I confine to one, intolerance, which is a part of the cults we have rejected.

Those who distinguish civil from theological intolerance are, to my mind, mistaken. The two forms are inseparable. It is impossible to live at peace with those we regard as damned; to love them would be to hate God who punishes them: we positively must either reclaim or torment them. Wherever theological intolerance is admitted, it must inevitably have some civil effect; and as soon as it has such an effect, the Sovereign is no longer Sovereign even in the temporal sphere: thenceforth priests are the real masters,

and kings only their ministers.

Now that there is and can be no longer an exclusive national religion, tolerance should be given to all religions that tolerate others, so long as their dogmas contain nothing contrary to the duties of citizenship. But whoever dares to say: Outside the Church is no salvation, ought to be driven from the State, unless the State is the Church, and the prince the pontiff. Such a dogma is good only in a theocratic government; in any other, it is fatal. The reason for which Henry IV is said to have embraced the Roman religion ought to make every honest man leave it, and still more any prince who knows how to reason.

CHAPTER IX CONCLUSION

Now that I have laid down the true principles of political right, and tried to give the State a basis of its own to rest on, I ought next to strengthen it by its external relations, which would include the law of nations, commerce, the right of war and conquest, public right, leagues, negotiations, treaties, etc. But all this forms a new subject that is far too vast for my narrow scope. I ought throughout to have kept to a more limited sphere.

17 A Treatise of Human Nature (David Hume)

David Hume¹ (/ˈhjuːm/; born **David Home**; 7 May 1711 NS (26 April 1711 OS) – 25 August 1776) was a Scottish philosopher, historian, economist, and essayist, who is best known today for his highly influential system of philosophical empiricism, skepticism, and naturalism.

Hume's empiricist approach to philosophy places him with John Locke, Francis Bacon, and Thomas Hobbes as a British Empiricist. Beginning with his *A Treatise of Human Nature* (1739), Hume strove to create a total naturalistic science of man that examined the psychological basis of human nature. Against philosophical rationalists, Hume held that passion rather than reason governs human behaviour and argued against the existence of innate ideas, positing that all human knowledge is ultimately founded solely in experience; Hume thus held that genuine knowledge must either be directly traceable to objects perceived in experience, or result from abstract reasoning about relations between ideas which are derived from experience, calling the rest "nothing but sophistry and illusion", a dichotomy later given the name *Hume's fork*.

In what is sometimes referred to as Hume's problem of induction, he argued that inductive reasoning, and belief in causality cannot ultimately be justified rationally; our trust in causality and induction instead results from custom and mental habit, and are attributable to only the experience of "constant conjunction" rather than logic: for we can never, in experience, perceive that one event causes another, but only that the two are always conjoined, and to draw any inductive causal inferences from past experience first requires the presupposition that the future will be like the past, a presupposition which cannot be grounded in prior experience without already being presupposed. Hume's anti-teleological opposition to the argument for God's existence from design is generally regarded as the most intellectually significant such attempt to rebut the teleological argument prior to Darwin.

Hume was also a sentimentalist who held that ethics are based on emotion or sentiment rather than abstract moral principle, famously proclaiming that "Reason is, and ought only to be the slave of the passions". Some contemporary scholars view Hume's moral theory as a unique attempt to synthesize the modern sentimentalist moral tradition to which Hume belonged, with the virtue ethics tradition of ancient philosophy, with which Hume concurred in regarding traits of character, rather than acts or their consequences, as ultimately the proper objects of moral evaluation. Hume's moral theory maintained an early commitment to naturalistic explanations of moral phenomena, and is usually taken to have first clearly expounded the is–ought problem, or the idea that a statement of fact alone can never give rise to a normative conclusion of what *ought* to be done. Hume also influentially denied that humans have an actual conception of the self, positing that we experience only a bundle of sensations, and that the self is nothing more than this bundle of causally-connected perceptions. Hume's compatibilist theory of free will takes causal determinism as fully compatible with human freedom, and has proved extremely influential on subsequent moral philosophy.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: David Hume. (2017, August 16). In Wikipedia, The Free Encyclopedia. Retrieved 18:00, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=David_Hume&oldid=795762168

While Hume was derailed in his attempts to start a university career by protests over his "atheism," and bemoaned that his literary debut, *A Treatise of Human Nature*, 'fell dead-born from the press', he nevertheless found literary success in his lifetime as an essayist, and a career as a librarian at the University of Edinburgh. His tenure there, and the access to research materials it provided, ultimately resulted in Hume's writing the massive six-volume *The History of England*, which became a bestseller and the standard history of England in its day. Hume described his "love for literary fame" as his "ruling passion" and judged his two late works, the so-called "first" and "second" enquiries, *An Enquiry Concerning Human Understanding* and *An Enquiry Concerning the Principles of Morals*, respectively, as his greatest literary and philosophical achievements, asking his contemporaries to judge him on the merits of the later texts alone, rather than the more radical formulations of his early, youthful work, dismissing his philosophical debut as juvenilia: "A work which the Author had projected before he left College." Nevertheless, despite Hume's protestations, a general consensus exists today that Hume's strongest and most important arguments, and most philosophically distinctive doctrines, are found in the original form they take in the *Treatise*, begun when Hume was just 23 years old, and now regarded as one of the most important works in the history of Western philosophy.

Hume has proved extremely influential on subsequent Western thought, especially on utilitarianism, logical positivism, William James, Immanuel Kant, the philosophy of science, early analytic philosophy, cognitive science, theology and other movements and thinkers. Kant himself credited Hume as the spur to his philosophical thought who had awakened him from his "dogmatic slumbers". Contemporary philosophers have opined that "Hume, rivaled only by Darwin, has done the most to undermine in principle our confidence in arguments from design", that "No man has influenced the history of philosophy to a deeper or more disturbing degree", and that Hume's *Treatise* is "the founding document of Cognitive Science" and one of the most important philosophical works written in English. Arthur Schopenhauer once declared that "there is more to be learned from each page of David Hume than from the collected philosophical works of Hegel, Herbart and Schleiermacher taken together." Hume is thus widely regarded as a pivotal figure in the history of philosophical thought.

*A Treatise of Human Nature*²

BOOK II OF THE PASSIONS
PART III OF THE WILL AND DIRECT PASSIONS
SECT. III OF THE INFLUENCING MOTIVES OF THE WILL

Nothing is more usual in philosophy, and even in common life, than to talk of the combat of passion and reason, to give the preference to reason, and assert that men are only so far virtuous as they conform themselves to its dictates. Every rational creature, it is said, is obliged to regulate his actions by reason; and if any other motive or principle challenge the direction of his conduct, he ought to oppose it, till it be entirely subdued, or at least brought to a conformity with that superior principle. On this method of thinking the greatest part of moral philosophy, antient and modern, seems to be founded; nor is there an ampler field, as well for metaphysical arguments, as popular declamations, than this supposed pre-eminence of reason above passion. The eternity, invariableness, and divine origin of the former have been displayed to the best advantage: The blindness, unconstancy, and deceitfulness of the latter have been as strongly insisted on. In order to shew the fallacy of all this philosophy, I shall endeavour to

² David Hume, 1738.

prove first, that reason alone can never be a motive to any action of the will; and secondly, that it can never oppose passion in the direction of the will.

The understanding exerts itself after two different ways, as it judges from demonstration or probability; as it regards the abstract relations of our ideas, or those relations of objects, of which experience only gives us information. I believe it scarce will be asserted, that the first species of reasoning alone is ever the cause of any action. As its proper province is the world of ideas, and as the will always places us in that of realities, demonstration and volition seem, upon that account, to be totally removed, from each other. Mathematics, indeed, are useful in all mechanical operations, and arithmetic in almost every art and profession: But it is not of themselves they have any influence: Mechanics are the art of regulating the motions of bodies to some designed end or purpose; and the reason why we employ arithmetic in fixing the proportions of numbers, is only that we may discover the proportions of their influence and operation. A merchant is desirous of knowing the sum total of his accounts with any person: Why? but that he may learn what sum will have the same effects in paying his debt, and going to market, as all the particular articles taken together. Abstract or demonstrative reasoning, therefore, never influences any of our actions, but only as it directs our judgment concerning causes and effects; which leads us to the second operation of the understanding.

It is obvious, that when we have the prospect of pain or pleasure from any object, we feel a consequent emotion of aversion or propensity, and are carryed to avoid or embrace what will give us this uneasiness or satisfaction. It is also obvious, that this emotion rests not here, but making us cast our view on every side, comprehends whatever objects are connected with its original one by the relation of cause and effect. Here then reasoning takes place to discover this relation; and according as our reasoning varies, our actions receive a subsequent variation. But it is evident in this case that the impulse arises not from reason, but is only directed by it. It is from the prospect of pain or pleasure that the aversion or propensity arises towards any object: And these emotions extend themselves to the causes and effects of that object, as they are pointed out to us by reason and experience. It can never in the least concern us to know, that such objects are causes, and such others effects, if both the causes and effects be indifferent to us. Where the objects themselves do not affect us, their connexion can never give them any influence; and it is plain, that as reason is nothing but the discovery of this connexion, it cannot be by its means that the objects are able to affect us.

Since reason alone can never produce any action, or give rise to volition, I infer, that the same faculty is as incapable of preventing volition, or of disputing the preference with any passion or emotion. This consequence is necessary. It is impossible reason could have the latter effect of preventing volition, but by giving an impulse in a contrary direction to our passion; and that impulse, had it operated alone, would have been able to produce volition. Nothing can oppose or retard the impulse of passion, but a contrary impulse; and if this contrary impulse ever arises from reason, that latter faculty must have an original influence on the will, and must be able to cause, as well as hinder any act of volition. But if reason has no original influence, it is impossible it can withstand any principle, which has such an efficacy, or ever keep the mind in suspense a moment. Thus it appears, that the principle, which opposes our passion, cannot be the same with reason, and is only called so in an improper sense. We speak not strictly and philosophically when we talk of the combat of passion and of reason. Reason is, and ought only to be the slave of the passions, and can never pretend to any other office than to serve and obey them. As this opinion may appear somewhat extraordinary, it may not be improper to confirm it by some other considerations.

A passion is an original existence, or, if you will, modification of existence, and contains not any representative quality, which renders it a copy of any other existence or modification. When I am angry, I am actually possest with the passion, and in that emotion have no more a reference to any other object, than when I am thirsty, or sick, or more than five foot high. It is impossible, therefore, that this passion can be opposed by, or be contradictory to truth and reason; since this contradiction consists in the disagreement of ideas, considered as copies, with those objects, which they represent.

What may at first occur on this head, is, that as nothing can be contrary to truth or reason, except what has a reference to it, and as the judgments of our understanding only have this reference, it must follow, that passions can be contrary to reason only so far as they are accompanied with some judgment or opinion. According to this principle, which is so obvious and natural, it is only in two senses, that any affection can be called unreasonable. First, When a passion, such as hope or fear, grief or joy, despair or security, is founded on the supposition or the existence of objects, which really do not exist. Secondly, When in exerting any passion in action, we chuse means insufficient for the designed end, and deceive ourselves in our judgment of causes and effects. Where a passion is neither founded on false suppositions, nor chuses means insufficient for the end, the understanding can neither justify nor condemn it. It is not contrary to reason to prefer the destruction of the whole world to the scratching of my finger. It is not contrary to reason for me to chuse my total ruin, to prevent the least uneasiness of an Indian or person wholly unknown to me. It is as little contrary to reason to prefer even my own acknowledged lesser good to my greater, and have a more ardent affection for the former than the latter. A trivial good may, from certain circumstances, produce a desire superior to what arises from the greatest and most valuable enjoyment; nor is there any thing more extraordinary in this, than in mechanics to see one pound weight raise up a hundred by the advantage of its situation. In short, a passion must be accompanied with some false judgment in order to its being unreasonable; and even then it is not the passion, properly speaking, which is unreasonable, but the judgment.

The consequences are evident. Since a passion can never, in any sense, be called unreasonable, but when founded on a false supposition or when it chuses means insufficient for the designed end, it is impossible, that reason and passion can ever oppose each other, or dispute for the government of the will and actions. The moment we perceive the falshood of any supposition, or the insufficiency of any means our passions yield to our reason without any opposition. I may desire any fruit as of an excellent relish; but whenever you convince me of my mistake, my longing ceases. I may will the performance of certain actions as means of obtaining any desired good; but as my willing of these actions is only secondary, and founded on the supposition, that they are causes of the proposed effect; as soon as I discover the falshood of that supposition, they must become indifferent to me.

It is natural for one, that does not examine objects with a strict philosophic eye, to imagine, that those actions of the mind are entirely the same, which produce not a different sensation, and are not immediately distinguishable to the feeling and perception. Reason, for instance, exerts itself without producing any sensible emotion; and except in the more sublime disquisitions of philosophy, or in the frivolous subtilties of the school, scarce ever conveys any pleasure or uneasiness. Hence it proceeds, that every action of the mind, which operates with the same calmness and tranquillity, is confounded with reason by all those, who judge of things from the first view and appearance. Now it is certain, there are certain calm desires and tendencies, which, though they be real passions, produce little emotion in the mind, and are more known by their effects than by the immediate feeling or sensation. These desires are

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of two kinds; either certain instincts originally implanted in our natures, such as benevolence and resentment, the love of life, and kindness to children; or the general appetite to good, and aversion to evil, considered merely as such. When any of these passions are calm, and cause no disorder in the soul, they are very readily taken for the determinations of reason, and are supposed to proceed from the same faculty, with that, which judges of truth and falshood. Their nature and principles have been supposed the same, because their sensations are not evidently different.

Beside these calm passions, which often determine the will, there are certain violent emotions of the same kind, which have likewise a great influence on that faculty. When I receive any injury from another, I often feel a violent passion of resentment, which makes me desire his evil and punishment, independent of all considerations of pleasure and advantage to myself. When I am immediately threatened with any grievous ill, my fears, apprehensions, and aversions rise to a great height, and produce a sensible emotion.

The common error of metaphysicians has lain in ascribing the direction of the will entirely to one of these principles, and supposing the other to have no influence. Men often act knowingly against their interest: For which reason the view of the greatest possible good does not always influence them. Men often counter-act a violent passion in prosecution of their interests and designs: It is not therefore the present uneasiness alone, which determines them. In general we may observe, that both these principles operate on the will; and where they are contrary, that either of them prevails, according to the general character or present disposition of the person. What we call strength of mind, implies the prevalence of the calm passions above the violent; though we may easily observe, there is no man so constantly possessed of this virtue, as never on any occasion to yield to the sollicitations of passion and desire. From these variations of temper proceeds the great difficulty of deciding concerning the actions and resolutions of men, where there is any contrariety of motives and passions.

BOOK III OF MORALS PART I OF VIRTUE AND VICE IN GENERAL SECT. I MORAL DISTINCTIONS NOT DERIVED FROM REASON

There is an inconvenience which attends all abstruse reasoning that it may silence, without convincing an antagonist, and requires the same intense study to make us sensible of its force, that was at first requisite for its invention. When we leave our closet, and engage in the common affairs of life, its conclusions seem to vanish, like the phantoms of the night on the appearance of the morning; and it is difficult for us to retain even that conviction, which we had attained with difficulty. This is still more conspicuous in a long chain of reasoning, where we must preserve to the end the evidence of the first propositions, and where we often lose sight of all the most received maxims, either of philosophy or common life. I am not, however, without hopes, that the present system of philosophy will acquire new force as it advances; and that our reasonings concerning morals will corroborate whatever has been said concerning the UNDERSTANDING and the PASSIONS. Morality is a subject that interests us above all others: We fancy the peace of society to be at stake in every decision concerning it; and it is evident, that this concern must make our speculations appear more real and solid, than where the subject is, in a great measure, indifferent to us. What affects us, we conclude can never be a chimera; and as our passion is engaged on the one side or the other, we naturally think that the question lies within human comprehension; which, in other cases of this nature, we are apt to entertain some doubt of. Without this advantage I never should have ventured upon a third volume of such abstruse philosophy, in an age,

wherein the greatest part of men seem agreed to convert reading into an amusement, and to reject every thing that requires any considerable degree of attention to be comprehended.

It has been observed, that nothing is ever present to the mind but its perceptions; and that all the actions of seeing, hearing, judging, loving, hating, and thinking, fall under this denomination. The mind can never exert itself in any action, which we may not comprehend under the term of perception; and consequently that term is no less applicable to those judgments, by which we distinguish moral good and evil, than to every other operation of the mind. To approve of one character, to condemn another, are only so many different perceptions.

Now as perceptions resolve themselves into two kinds, viz. impressions and ideas, this distinction gives rise to a question, with which we shall open up our present enquiry concerning morals. WHETHER IT IS BY MEANS OF OUR IDEAS OR IMPRESSIONS WE DISTINGUISH BETWIXT VICE AND VIRTUE, AND PRONOUNCE AN ACTION BLAMEABLE OR PRAISEWORTHY? This will immediately cut off all loose discourses and declamations, and reduce us to something precise and exact on the present subject.

Those who affirm that virtue is nothing but a conformity to reason; that there are eternal fitnesses and unfitnesses of things, which are the same to every rational being that considers them; that the immutable measures of right and wrong impose an obligation, not only on human creatures, but also on the Deity himself: All these systems concur in the opinion, that morality, like truth, is discerned merely by ideas, and by their juxta-position and comparison. In order, therefore, to judge of these systems, we need only consider, whether it be possible, from reason alone, to distinguish betwixt moral good and evil, or whether there must concur some other principles to enable us to make that distinction.

If morality had naturally no influence on human passions and actions, it were in vain to take such pains to inculcate it; and nothing would be more fruitless than that multitude of rules and precepts, with which all moralists abound. Philosophy is commonly divided into speculative and practical; and as morality is always comprehended under the latter division, it is supposed to influence our passions and actions, and to go beyond the calm and indolent judgments of the understanding. And this is confirmed by common experience, which informs us, that men are often governed by their duties, and are deterred from some actions by the opinion of injustice, and impelled to others by that of obligation.

Since morals, therefore, have an influence on the actions and affections, it follows, that they cannot be derived from reason; and that because reason alone, as we have already proved, can never have any such influence. Morals excite passions, and produce or prevent actions. Reason of itself is utterly impotent in this particular. The rules of morality therefore, are not conclusions of our reason.

No one, I believe, will deny the justness of this inference; nor is there any other means of evading it, than by denying that principle, on which it is founded. As long as it is allowed, that reason has no influence on our passions and action, it is in vain to pretend, that morality is discovered only by a deduction of reason. An active principle can never be founded on an inactive; and if reason be inactive in itself, it must remain so in all its shapes and appearances, whether it exerts itself in natural or moral subjects, whether it considers the powers of external bodies, or the actions of rational beings.

It would be tedious to repeat all the arguments, by which I have proved [Book II. Part III. Sect 3.], that reason is perfectly inert, and can never either prevent or produce any action or affection, it will be easy to recollect what has been said upon that subject. I shall only recall on this occasion one of these arguments, which I shall endeavour to render still more conclusive, and more applicable to the present subject.

Reason is the discovery of truth or falshood. Truth or falshood consists in an agreement or disagreement either to the real relations of ideas, or to real existence and matter of fact. Whatever, therefore, is not susceptible of this agreement or disagreement, is incapable of being true or false, and can never be an object of our reason. Now it is evident our passions, volitions, and actions, are not susceptible of any such agreement or disagreement; being original facts and realities, compleat in themselves, and implying no reference to other passions, volitions, and actions. It is impossible, therefore, they can be pronounced either true or false, and be either contrary or conformable to reason.

This argument is of double advantage to our present purpose. For it proves DIRECTLY, that actions do not derive their merit from a conformity to reason, nor their blame from a contrariety to it; and it proves the same truth more INDIRECTLY, by shewing us, that as reason can never immediately prevent or produce any action by contradicting or approving of it, it cannot be the source of moral good and evil, which are found to have that influence. Actions may be laudable or blameable; but they cannot be reasonable: Laudable or blameable, therefore, are not the same with reasonable or unreasonable. The merit and demerit of actions frequently contradict, and sometimes controul our natural propensities. But reason has no such influence. Moral distinctions, therefore, are not the offspring of reason. Reason is wholly inactive, and can never be the source of so active a principle as conscience, or a sense of morals. But perhaps it may be said, that though no will or action can be immediately contradictory to reason, yet we may find such a contradiction in some of the attendants of the action, that is, in its causes or effects. The action may cause a judgment, or may be obliquely caused by one, when the judgment concurs with a passion; and by an abusive way of speaking, which philosophy will scarce allow of, the same contrariety may, upon that account, be ascribed to the action. How far this truth or faishood may be the source of morals, it will now be proper to consider.

It has been observed, that reason, in a strict and philosophical sense, can have influence on our conduct only after two ways: Either when it excites a passion by informing us of the existence of something which is a proper object of it; or when it discovers the connexion of causes and effects, so as to afford us means of exerting any passion. These are the only kinds of judgment, which can accompany our actions, or can be said to produce them in any manner; and it must be allowed, that these judgments may often be false and erroneous. A person may be affected with passion, by supposing a pain or pleasure to lie in an object, which has no tendency to produce either of these sensations, or which produces the contrary to what is imagined. A person may also take false measures for the attaining his end, and may retard, by his foolish conduct, instead of forwarding the execution of any project. These false judgments may be thought to affect the passions and actions, which are connected with them, and may be said to render them unreasonable, in a figurative and improper way of speaking. But though this be acknowledged, it is easy to observe, that these errors are so far from being the source of all immorality, that they are commonly very innocent, and draw no manner of guilt upon the person who is so unfortunate as to fail into them. They extend not beyond a mistake of fact, which moralists have not generally supposed criminal, as being perfectly involuntary. I am more to be lamented than blamed, if I am mistaken with regard to the influence of objects in producing pain or pleasure, or if I know not the proper means of

satisfying my desires. No one can ever regard such errors as a defect in my moral character. A fruit, for instance, that is really disagreeable, appears to me at a distance, and through mistake I fancy it to be pleasant and delicious. Here is one error. I choose certain means of reaching this fruit, which are not proper for my end. Here is a second error; nor is there any third one, which can ever possibly enter into our reasonings concerning actions. I ask, therefore, if a man, in this situation, and guilty of these two errors, is to be regarded as vicious and criminal, however unavoidable they might have been? Or if it be possible to imagine, that such errors are the sources of all immorality?

And here it may be proper to observe, that if moral distinctions be derived from the truth or falshood of those judgments, they must take place wherever we form the judgments; nor will there be any difference, whether the question be concerning an apple or a kingdom, or whether the error be avoidable or unavoidable. For as the very essence of morality is supposed to consist in an agreement or disagreement to reason, the other circumstances are entirely arbitrary, and can never either bestow on any action the character of virtuous or vicious, or deprive it of that character. To which we may add, that this agreement or disagreement, not admitting of degrees, all virtues and vices would of course be equal. Should it be pretended, that though a mistake of fact be not criminal, yet a mistake of right often is; and that this may be the source of immorality: I would answer, that it is impossible such a mistake can ever be the original source of immorality, since it supposes a real right and wrong; that is, a real distinction in morals, independent of these judgments. A mistake, therefore, of right may become a species of immorality; but it is only a secondary one, and is founded on some other, antecedent to it.

As to those judgments which are the effects of our actions, and which, when false, give occasion to pronounce the actions contrary to truth and reason; we may observe, that our actions never cause any judgment, either true or false, in ourselves, and that it is only on others they have such an influence. It is certain, that an action, on many occasions, may give rise to false conclusions in others; and that a person, who through a window sees any lewd behaviour of mine with my neighbour's wife, may be so simple as to imagine she is certainly my own. In this respect my action resembles somewhat a lye or falshood; only with this difference, which is material, that I perform not the action with any intention of giving rise to a false judgment in another, but merely to satisfy my lust and passion. It causes, however, a mistake and false judgment by accident; and the falshood of its effects may be ascribed, by some odd figurative way of speaking, to the action itself. But still I can see no pretext of reason for asserting, that the tendency to cause such an error is the first spring or original source of all immorality.

Thus upon the whole, it is impossible, that the distinction betwixt moral good and evil, can be made to reason; since that distinction has an influence upon our actions, of which reason alone is incapable. Reason and judgment may, indeed, be the mediate cause of an action, by prompting, or by directing a passion: But it is not pretended, that a judgment of this kind, either in its truth or falshood, is attended with virtue or vice. And as to the judgments, which are caused by our judgments, they can still less bestow those moral qualities on the actions, which are their causes.

But to be more particular, and to shew, that those eternal immutable fitnesses and unfitnesses of things cannot be defended by sound philosophy, we may weigh the following considerations.

If the thought and understanding were alone capable of fixing the boundaries of right and wrong, the character of virtuous and vicious either must lie in some relations of objects, or must be a matter of fact, which is discovered by our reasoning. This consequence is evident. As the operations of human understanding divide themselves into two kinds, the comparing of ideas, and the inferring of matter of fact; were virtue discovered by the understanding; it must be an object of one of these operations, nor is

there any third operation of the understanding, which can discover it. There has been an opinion very industriously propagated by certain philosophers, that morality is susceptible of demonstration; and though no one has ever been able to advance a single step in those demonstrations; yet it is taken for granted, that this science may be brought to an equal certainty with geometry or algebra. Upon this supposition vice and virtue must consist in some relations; since it is allowed on all hands, that no matter of fact is capable of being demonstrated. Let us, therefore, begin with examining this hypothesis, and endeavour, if possible, to fix those moral qualities, which have been so long the objects of our fruitless researches. Point out distinctly the relations, which constitute morality or obligation, that we may know wherein they consist, and after what manner we must judge of them.

If you assert, that vice and virtue consist in relations susceptible of certainty and demonstration, you must confine yourself to those four relations, which alone admit of that degree of evidence; and in that case you run into absurdities, from which you will never be able to extricate yourself. For as you make the very essence of morality to lie in the relations, and as there is no one of these relations but what is applicable, not only to an irrational, but also to an inanimate object; it follows, that even such objects must be susceptible of merit or demerit. RESEMBLANCE, CONTRARIETY, DEGREES IN QUALITY, and PROPORTIONS IN QUANTITY AND NUMBER; all these relations belong as properly to matter, as to our actions, passions, and volitions. It is unquestionable, therefore, that morality lies not in any of these relations, nor the sense of it in their discovery.

Should it be asserted, that the sense of morality consists in the discovery of some relation, distinct from these, and that our enumeration was not compleat, when we comprehended all demonstrable relations under four general heads: To this I know not what to reply, till some one be so good as to point out to me this new relation. It is impossible to refute a system, which has never yet been explained. In such a manner of fighting in the dark, a man loses his blows in the air, and often places them where the enemy is not present.

I must, therefore, on this occasion, rest contented with requiring the two following conditions of any one that would undertake to clear up this system. First, As moral good and evil belong only to the actions of the mind, and are derived from our situation with regard to external objects, the relations, from which these moral distinctions arise, must lie only betwixt internal actions, and external objects, and must not be applicable either to internal actions, compared among themselves, or to external objects, when placed in opposition to other external objects. For as morality is supposed to attend certain relations, if these relations coued belong to internal actions considered singly, it would follow, that we might be guilty of crimes in ourselves, and independent of our situation, with respect to the universe: And in like manner, if these moral relations coued be applied to external objects, it would follow, that even inanimate beings would be susceptible of moral beauty and deformity. Now it seems difficult to imagine, that any relation can be discovered betwixt our passions, volitions and actions, compared to external objects, which relation might not belong either to these passions and volitions, or to these external objects, compared among themselves. But it will be still more difficult to fulfil the second condition, requisite to justify this system. According to the principles of those who maintain an abstract rational difference betwixt moral good and evil, and a natural fitness and unfitness of things, it is not only supposed, that these relations, being eternal and immutable, are the same, when considered by every rational creature, but their effects are also supposed to be necessarily the same; and it is concluded they have no less, or rather a greater, influence in directing the will of the deity, than in governing the rational and virtuous of our own species. These two particulars are evidently distinct. It is one thing to know virtue, and another to

conform the will to it. In order, therefore, to prove, that the measures of right and wrong are eternal laws, obligatory on every rational mind, it is not sufficient to shew the relations upon which they are founded: We must also point out the connexion betwixt the relation and the will; and must prove that this connexion is so necessary, that in every well-disposed mind, it must take place and have its influence; though the difference betwixt these minds be in other respects immense and infinite. Now besides what I have already proved, that even in human nature no relation can ever alone produce any action: besides this, I say, it has been shewn, in treating of the understanding, that there is no connexion of cause and effect, such as this is supposed to be, which is discoverable otherwise than by experience, and of which we can pretend to have any security by the simple consideration of the objects. All beings in the universe, considered in themselves, appear entirely loose and independent of each other. It is only by experience we learn their influence and connexion; and this influence we ought never to extend beyond experience.

Thus it will be impossible to fulfil the first condition required to the system of eternal measures of right and wrong; because it is impossible to shew those relations, upon which such a distinction may be founded: And it is as impossible to fulfil the second condition; because we cannot prove A PRIORI, that these relations, if they really existed and were perceived, would be universally forcible and obligatory. But to make these general reflections more dear and convincing, we may illustrate them by some particular instances, wherein this character of moral good or evil is the most universally acknowledged. Of all crimes that human creatures are capable of committing, the most horrid and unnatural is ingratitude, especially when it is committed against parents, and appears in the more flagrant instances of wounds and death. This is acknowledged by all mankind, philosophers as well as the people; the question only arises among philosophers, whether the guilt or moral deformity of this action be discovered by demonstrative reasoning, or be felt by an internal sense, and by means of some sentiment, which the reflecting on such an action naturally occasions. This question will soon be decided against the former opinion, if we can shew the same relations in other objects, without the notion of any guilt or iniquity attending them. Reason or science is nothing but the comparing of ideas, and the discovery of their relations; and if the same relations have different characters, it must evidently follow, that those characters are not discovered merely by reason. To put the affair, therefore, to this trial, let us chuse any inanimate object, such as an oak or elm; and let us suppose, that by the dropping of its seed, it produces a sapling below it, which springing up by degrees, at last overtops and destroys the parent tree: I ask, if in this instance there be wanting any relation, which is discoverable in parricide or ingratitude? Is not the one tree the cause of the other's existence; and the latter the cause of the destruction of the former, in the same manner as when a child murders his parent? It is not sufficient to reply, that a choice or will is wanting. For in the case of parricide, a will does not give rise to any DIFFERENT relations, but is only the cause from which the action is derived; and consequently produces the same relations, that in the oak or elm arise from some other principles. It is a will or choice, that determines a man to kill his parent; and they are the laws of matter and motion, that determine a sapling to destroy the oak, from which it sprung. Here then the same relations have different causes; but still the relations are the same: And as their discovery is not in both cases attended with a notion of immorality, it follows, that that notion does not arise from such a discovery.

But to chuse an instance, still more resembling; I would fain ask any one, why incest in the human species is criminal, and why the very same action, and the same relations in animals have not the smallest moral turpitude and deformity? If it be answered, that this action is innocent in animals, because they have not reason sufficient to discover its turpitude; but that man, being endowed with that

faculty which ought to restrain him to his duty, the same action instantly becomes criminal to him; should this be said, I would reply, that this is evidently arguing in a circle. For before reason can perceive this turpitude, the turpitude must exist; and consequently is independent of the decisions of our reason, and is their object more properly than their effect. According to this system, then, every animal, that has sense, and appetite, and will; that is, every animal must be susceptible of all the same virtues and vices, for which we ascribe praise and blame to human creatures. All the difference is, that our superior reason may serve to discover the vice or virtue, and by that means may augment the blame or praise: But still this discovery supposes a separate being in these moral distinctions, and a being, which depends only on the will and appetite, and which, both in thought and reality, may be distinguished from the reason. Animals are susceptible of the same relations, with respect to each other, as the human species, and therefore would also be susceptible of the same morality, if the essence of morality consisted in these relations. Their want of a sufficient degree of reason may hinder them from perceiving the duties and obligations of morality, but can never hinder these duties from existing; since they must antecedently exist, in order to their being perceived. Reason must find them, and can never produce them. This argument deserves to be weighed, as being, in my opinion, entirely decisive.

Nor does this reasoning only prove, that morality consists not in any relations, that are the objects of science; but if examined, will prove with equal certainty, that it consists not in any matter of fact, which can be discovered by the understanding. This is the second part of our argument; and if it can be made evident, we may conclude, that morality is not an object of reason. But can there be any difficulty in proving, that vice and virtue are not matters of fact, whose existence we can infer by reason? Take any action allowed to be vicious: Wilful murder, for instance. Examine it in all lights, and see if you can find that matter of fact, or real existence, which you call vice. In which-ever way you take it, you find only certain passions, motives, volitions and thoughts. There is no other matter of fact in the case. The vice entirely escapes you, as long as you consider the object. You never can find it, till you turn your reflection into your own breast, and find a sentiment of disapprobation, which arises in you, towards this action. Here is a matter of fact; but it is the object of feeling, not of reason. It lies in yourself, not in the object. So that when you pronounce any action or character to be vicious, you mean nothing, but that from the constitution of your nature you have a feeling or sentiment of blame from the contemplation of it. Vice and virtue, therefore, may be compared to sounds, colours, heat and cold, which, according to modern philosophy, are not qualities in objects, but perceptions in the mind: And this discovery in morals, like that other in physics, is to be regarded as a considerable advancement of the speculative sciences; though, like that too, it has little or no influence on practice. Nothing can be more real, or concern us more, than our own sentiments of pleasure and uneasiness; and if these be favourable to virtue, and unfavourable to vice, no more can be requisite to the regulation of our conduct and behaviour.

I cannot forbear adding to these reasonings an observation, which may, perhaps, be found of some importance. In every system of morality, which I have hitherto met with, I have always remarked, that the author proceeds for some time in the ordinary way of reasoning, and establishes the being of a God, or makes observations concerning human affairs; when of a sudden I am surprized to find, that instead of the usual copulations of propositions, is, and is not, I meet with no proposition that is not connected with an ought, or an ought not. This change is imperceptible; but is, however, of the last consequence. For as this ought, or ought not, expresses some new relation or affirmation, it is necessary that it should be observed and explained; and at the same time that a reason should be given, for what seems altogether inconceivable, how this new relation can be a deduction from others, which are entirely

different from it. But as authors do not commonly use this precaution, I shall presume to recommend it to the readers; and am persuaded, that this small attention would subvert all the vulgar systems of morality, and let us see, that the distinction of vice and virtue is not founded merely on the relations of objects, nor is perceived by reason.

SECT. II MORAL DISTINCTIONS DERIVED FROM A MORAL SENSE

Thus the course of the argument leads us to conclude, that since vice and virtue are not discoverable merely by reason, or the comparison of ideas, it must be by means of some impression or sentiment they occasion, that we are able to mark the difference betwixt them. Our decisions concerning moral rectitude and depravity are evidently perceptions; and as all perceptions are either impressions or ideas, the exclusion of the one is a convincing argument for the other. Morality, therefore, is more properly felt than judged of; though this feeling or sentiment is commonly so soft and gentle, that we are apt to confound it with an idea, according to our common custom of taking all things for the same, which have any near resemblance to each other.

The next question is, Of what nature are these impressions, and after what manner do they operate upon us? Here we cannot remain long in suspense, but must pronounce the impression arising from virtue, to be agreeable, and that proceeding from vice to be uneasy. Every moments experience must convince us of this. There is no spectacle so fair and beautiful as a noble and generous action; nor any which gives us more abhorrence than one that is cruel and treacherous. No enjoyment equals the satisfaction we receive from the company of those we love and esteem; as the greatest of all punishments is to be obliged to pass our lives with those we hate or condemn. A very play or romance may afford us instances of this pleasure, which virtue conveys to us; and pain, which arises from vice.

Now since the distinguishing impressions, by which moral good or evil is known, are nothing but particular pains or pleasures; it follows, that in all enquiries concerning these moral distinctions, it will be sufficient to shew the principles, which make us feel a satisfaction or uneasiness from the survey of any character, in order to satisfy us why the character is laudable or blameable. An action, or sentiment, or character is virtuous or vicious; why? because its view causes a pleasure or uneasiness of a particular kind. In giving a reason, therefore, for the pleasure or uneasiness, we sufficiently explain the vice or virtue. To have the sense of virtue, is nothing but to feel a satisfaction of a particular kind from the contemplation of a character. The very feeling constitutes our praise or admiration. We go no farther; nor do we enquire into the cause of the satisfaction. We do not infer a character to be virtuous, because it pleases: But in feeling that it pleases after such a particular manner, we in effect feel that it is virtuous. The case is the same as in our judgments concerning all kinds of beauty, and tastes, and sensations. Our approbation is implied in the immediate pleasure they convey to us.

I have objected to the system, which establishes eternal rational measures of right and wrong, that it is impossible to shew, in the actions of reasonable creatures, any relations, which are not found in external objects; and therefore, if morality always attended these relations, it were possible for inanimate matter to become virtuous or vicious. Now it may, in like manner, be objected to the present system, that if virtue and vice be determined by pleasure and pain, these qualities must, in every case, arise from the sensations; and consequently any object, whether animate or inanimate, rational or irrational, might become morally good or evil, provided it can excite a satisfaction or uneasiness. But though this objection seems to be the very same, it has by no means the same force, in the one case as in the other. For, first, tis evident, that under the term pleasure, we comprehend sensations, which are very different

from each other, and which have only such a distant resemblance, as is requisite to make them be expressed by the same abstract term. A good composition of music and a bottle of good wine equally produce pleasure; and what is more, their goodness is determined merely by the pleasure. But shall we say upon that account, that the wine is harmonious, or the music of a good flavour? In like manner an inanimate object, and the character or sentiments of any person may, both of them, give satisfaction; but as the satisfaction is different, this keeps our sentiments concerning them from being confounded, and makes us ascribe virtue to the one, and not to the other. Nor is every sentiment of pleasure or pain, which arises from characters and actions, of that peculiar kind, which makes us praise or condemn. The good qualities of an enemy are hurtful to us; but may still command our esteem and respect. It is only when a character is considered in general, without reference to our particular interest, that it causes such a feeling or sentiment, as denominates it morally good or evil. It is true, those sentiments, from interest and morals, are apt to be confounded, and naturally run into one another. It seldom happens, that we do not think an enemy vicious, and can distinguish betwixt his opposition to our interest and real villainy or baseness. But this hinders not, but that the sentiments are, in themselves, distinct; and a man of temper and judgment may preserve himself from these illusions. In like manner, though it is certain a musical voice is nothing but one that naturally gives a particular kind of pleasure; yet it is difficult for a man to be sensible, that the voice of an enemy is agreeable, or to allow it to be musical. But a person of a fine ear, who has the command of himself, can separate these feelings, and give praise to what deserves it.

SECONDLY, We may call to remembrance the preceding system of the passions, in order to remark a still more considerable difference among our pains and pleasures. Pride and humility, love and hatred are excited, when there is any thing presented to us, that both bears a relation to the object of the passion, and produces a separate sensation related to the sensation of the passion. Now virtue and vice are attended with these circumstances. They must necessarily be placed either in ourselves or others, and excite either pleasure or uneasiness; and therefore must give rise to one of these four passions; which clearly distinguishes them from the pleasure and pain arising from inanimate objects, that often bear no relation to us: And this is, perhaps, the most considerable effect that virtue and vice have upon the human mind.

It may now be asked in general, concerning this pain or pleasure, that distinguishes moral good and evil, FROM WHAT PRINCIPLES IS IT DERIVED, AND WHENCE DOES IT ARISE IN THE HUMAN MIND? To this I reply, first, that it is absurd to imagine, that in every particular instance, these sentiments are produced by an original quality and primary constitution. For as the number of our duties is, in a manner, infinite, it is impossible that our original instincts should extend to each of them, and from our very first infancy impress on the human mind all that multitude of precepts, which are contained in the completest system of ethics. Such a method of proceeding is not conformable to the usual maxims, by which nature is conducted, where a few principles produce all that variety we observe in the universe, and every thing is carried on in the easiest and most simple manner. It is necessary, therefore, to abridge these primary impulses, and find some more general principles, upon which all our notions of morals are founded.

But in the second place, should it be asked, Whether we ought to search for these principles in nature, or whether we must look for them in some other origin? I would reply, that our answer to this question depends upon the definition of the word, Nature, than which there is none more ambiguous and equivocal. If nature be opposed to miracles, not only the distinction betwixt vice and virtue is natural, but also every event, which has ever happened in the world, EXCEPTING THOSE MIRACLES, ON

WHICH OUR RELIGION IS FOUNDED. In saying, then, that the sentiments of vice and virtue are natural in this sense, we make no very extraordinary discovery.

But nature may also be opposed to rare and unusual; and in this sense of the word, which is the common one, there may often arise disputes concerning what is natural or unnatural; and one may in general affirm, that we are not possessed of any very precise standard, by which these disputes can be decided. Frequent and rare depend upon the number of examples we have observed; and as this number may gradually encrease or diminish, it will be impossible to fix any exact boundaries betwixt them. We may only affirm on this head, that if ever there was any thing, which could be called natural in this sense, the sentiments of morality certainly may; since there never was any nation of the world, nor any single person in any nation, who was utterly deprived of them, and who never, in any instance, shewed the least approbation or dislike of manners. These sentiments are so rooted in our constitution and temper, that without entirely confounding the human mind by disease or madness, it is impossible to extirpate and destroy them.

But nature may also be opposed to artifice, as well as to what is rare and unusual; and in this sense it may be disputed, whether the notions of virtue be natural or not. We readily forget, that the designs, and projects, and views of men are principles as necessary in their operation as heat and cold, moist and dry: But taking them to be free and entirely our own, it is usual for us to set them in opposition to the other principles of nature should it, therefore, be demanded, whether the sense of virtue be natural or artificial, I am of opinion, that it is impossible for me at present to give any precise answer to this question. Perhaps it will appear afterwards, that our sense of some virtues is artificial, and that of others natural. The discussion of this question will be more proper, when we enter upon an exact detail of each particular vice and virtue.

Mean while it may not be amiss to observe from these definitions of natural and unnatural, that nothing can be more unphilosophical than those systems, which assert, that virtue is the same with what is natural, and vice with what is unnatural. For in the first sense of the word, Nature, as opposed to miracles, both vice and virtue are equally natural; and in the second sense, as opposed to what is unusual, perhaps virtue will be found to be the most unnatural. At least it must be owned, that heroic virtue, being as unusual, is as little natural as the most brutal barbarity. As to the third sense of the word, it is certain, that both vice and virtue are equally artificial, and out of nature. For however it may be disputed, whether the notion of a merit or demerit in certain actions be natural or artificial, it is evident, that the actions themselves are artificial, and are performed with a certain design and intention; otherwise they could never be ranked under any of these denominations. It is impossible, therefore, that the character of natural and unnatural can ever, in any sense, mark the boundaries of vice and virtue.

Thus we are still brought back to our first position, that virtue is distinguished by the pleasure, and vice by the pain, that any action, sentiment or character gives us by the mere view and contemplation. This decision is very commodious; because it reduces us to this simple question, Why any action or sentiment upon the general view or survey, gives a certain satisfaction or uneasiness, in order to shew the origin of its moral rectitude or depravity, without looking for any incomprehensible relations and qualities, which never did exist in nature, nor even in our imagination, by any clear and distinct conception. I flatter myself I have executed a great part of my present design by a state of the question, which appears to me so free from ambiguity and obscurity.

PART II OF JUSTICE AND INJUSTICE
SECT. I JUSTICE, WHETHER A NATURAL OR ARTIFICIAL VIRTUE?

I have already hinted, that our sense of every kind of virtue is not natural; but that there are some virtues, that produce pleasure and approbation by means of an artifice or contrivance, which arises from the circumstances and necessity of mankind. Of this kind I assert justice to be; and shall endeavour to defend this opinion by a short, and, I hope, convincing argument, before I examine the nature of the artifice, from which the sense of that virtue is derived.

It is evident, that when we praise any actions, we regard only the motives that produced them, and consider the actions as signs or indications of certain principles in the mind and temper. The external performance has no merit. We must look within to find the moral quality. This we cannot do directly; and therefore fix our attention on actions, as on external signs. But these actions are still considered as signs; and the ultimate object of our praise and approbation is the motive, that produced them.

After the same manner, when we require any action, or blame a person for not performing it, we always suppose, that one in that situation should be influenced by the proper motive of that action, and we esteem it vicious in him to be regardless of it. If we find, upon enquiry, that the virtuous motive was still powerful over his breast, though checked in its operation by some circumstances unknown to us, we retract our blame, and have the same esteem for him, as if he had actually performed the action, which we require of him.

It appears, therefore, that all virtuous actions derive their merit only from virtuous motives, and are considered merely as signs of those motives. From this principle I conclude, that the first virtuous motive, which bestows a merit on any action, can never be a regard to the virtue of that action, but must be some other natural motive or principle. To suppose, that the mere regard to the virtue of the action may be the first motive, which produced the action, and rendered it virtuous, is to reason in a circle. Before we can have such a regard, the action must be really virtuous; and this virtue must be derived from some virtuous motive: And consequently the virtuous motive must be different from the regard to the virtue of the action. A virtuous motive is requisite to render an action virtuous. An action must be virtuous, before we can have a regard to its virtue. Some virtuous motive, therefore, must be antecedent to that regard.

Nor is this merely a metaphysical subtilty; but enters into all our reasonings in common life, though perhaps we may not be able to place it in such distinct philosophical terms. We blame a father for neglecting his child. Why? because it shews a want of natural affection, which is the duty of every parent. Were not natural affection a duty, the care of children coued not be a duty; and it were impossible we coued have the duty in our eye in the attention we give to our offspring. In this case, therefore, all men suppose a motive to the action distinct from a sense of duty.

Here is a man, that does many benevolent actions; relieves the distressed, comforts the afflicted, and extends his bounty even to the greatest strangers. No character can be more amiable and virtuous. We regard these actions as proofs of the greatest humanity. This humanity bestows a merit on the actions. A regard to this merit is, therefore, a secondary consideration, and derived from the antecedent principle of humanity, which is meritorious and laudable.

In short, it may be established as an undoubted maxim, THAT NO ACTION CAN BE VIRTUOUS, OR MORALLY GOOD, UNLESS THERE BE IN HUMAN NATURE SOME MOTIVE TO PRODUCE IT, DISTINCT FROM THE SENSE OF ITS MORALITY.

But may not the sense of morality or duty produce an action, without any other motive? I answer, It may: But this is no objection to the present doctrine. When any virtuous motive or principle is common in human nature, a person, who feels his heart devoid of that motive, may hate himself upon that account, and may perform the action without the motive, from a certain sense of duty, in order to acquire by practice, that virtuous principle, or at least, to disguise to himself, as much as possible, his want of it. A man that really feels no gratitude in his temper, is still pleased to perform grateful actions, and thinks he has, by that means, fulfilled his duty. Actions are at first only considered as signs of motives: But it is usual, in this case, as in all others, to fix our attention on the signs, and neglect, in some measure, the thing signified. But though, on some occasions, a person may perform an action merely out of regard to its moral obligation, yet still this supposes in human nature some distinct principles, which are capable of producing the action, and whose moral beauty renders the action meritorious.

Now to apply all this to the present case; I suppose a person to have lent me a sum of money, on condition that it be restored in a few days; and also suppose, that after the expiration of the term agreed on, he demands the sum: I ask, What reason or motive have I to restore the money? It will, perhaps, be said, that my regard to justice, and abhorrence of villainy and knavery, are sufficient reasons for me, if I have the least grain of honesty, or sense of duty and obligation. And this answer, no doubt, is just and satisfactory to man in his civilized state, and when trained up according to a certain discipline and education. But in his rude and more natural condition, if you are pleased to call such a condition natural, this answer would be rejected as perfectly unintelligible and sophistical. For one in that situation would immediately ask you, WHEREIN CONSISTS THIS HONESTY AND JUSTICE, WHICH YOU FIND IN RESTORING A LOAN, AND ABSTAINING FROM THE PROPERTY OF OTHERS? It does not surely lie in the external action. It must, therefore be placed in the motive, from which the external action is derived. This motive can never be a regard to the honesty of the action. For it is a plain fallacy to say, that a virtuous motive is requisite to render an action honest, and at the same time that a regard to the honesty is the motive of the action. We can never have a regard to the virtue of an action, unless the action be antecedently virtuous. No action can be virtuous, but so far as it proceeds from a virtuous motive. A virtuous motive, therefore, must precede the regard to the virtue, and it is impossible, that the virtuous motive and the regard to the virtue can be the same.

It is requisite, then, to find some motive to acts of justice and honesty, distinct from our regard to the honesty; and in this lies the great difficulty. For should we say, that a concern for our private interest or reputation is the legitimate motive to all honest actions; it would follow, that wherever that concern ceases, honesty can no longer have place. But it is certain, that self-love, when it acts at its liberty, instead of engaging us to honest actions, is the source of all injustice and violence; nor can a man ever correct those vices, without correcting and restraining the natural movements of that appetite.

But should it be affirmed, that the reason or motive of such actions is the regard to publick interest, to which nothing is more contrary than examples of injustice and dishonesty; should this be said, I would propose the three following considerations, as worthy of our attention. First, public interest is not naturally attached to the observation of the rules of justice; but is only connected with it, after an artificial convention for the establishment of these rules, as shall be shewn more at large hereafter. Secondly, if we suppose, that the loan was secret, and that it is necessary for the interest of the person,

that the money be restored in the same manner (as when the lender would conceal his riches) in that case the example ceases, and the public is no longer interested in the actions of the borrower; though I suppose there is no moralist, who will affirm, that the duty and obligation ceases. Thirdly, experience sufficiently proves, that men, in the ordinary conduct of life, look not so far as the public interest, when they pay their creditors, perform their promises, and abstain from theft, and robbery, and injustice of every kind. That is a motive too remote and too sublime to affect the generality of mankind, and operate with any force in actions so contrary to private interest as are frequently those of justice and common honesty.

In general, it may be affirmed, that there is no such passion in human minds, as the love of mankind, merely as such, independent of personal qualities, of services, or of relation to ourself. It is true, there is no human, and indeed no sensible, creature, whose happiness or misery does not, in some measure, affect us when brought near to us, and represented in lively colours: But this proceeds merely from sympathy, and is no proof of such an universal affection to mankind, since this concern extends itself beyond our own species. An affection betwixt the sexes is a passion evidently implanted in human nature; and this passion not only appears in its peculiar symptoms, but also in inflaming every other principle of affection, and raising a stronger love from beauty, wit, kindness, than what would otherwise flow from them. Were there an universal love among all human creatures, it would appear after the same manner. Any degree of a good quality would cause a stronger affection than the same degree of a bad quality would cause hatred; contrary to what we find by experience. Men's tempers are different, and some have a propensity to the tender, and others to the rougher, affections: But in the main, we may affirm, that man in general, or human nature, is nothing but the object both of love and hatred, and requires some other cause, which by a double relation of impressions and ideas, may excite these passions. In vain would we endeavour to elude this hypothesis. There are no phaenomena that point out any such kind affection to men, independent of their merit, and every other circumstance. We love company in general; but it is as we love any other amusement. An Englishman in Italy is a friend: A Euro paeen in China; and perhaps a man would be beloved as such, were we to meet him in the moon. But this proceeds only from the relation to ourselves; which in these cases gathers force by being confined to a few persons.

If public benevolence, therefore, or a regard to the interests of mankind, cannot be the original motive to justice, much less can private benevolence, or a regard to the interests of the party concerned, be this motive. For what if he be my enemy, and has given me just cause to hate him? What if he be a vicious man, and deserves the hatred of all mankind? What if he be a miser, and can make no use of what I would deprive him of? What if he be a profligate debauchee, and would rather receive harm than benefit from large possessions? What if I be in necessity, and have urgent motives to acquire something to my family? In all these cases, the original motive to justice would fail; and consequently the justice itself, and along with it all property, tight, and obligation.

A rich man lies under a moral obligation to communicate to those in necessity a share of his superfluities. Were private benevolence the original motive to justice, a man would not be obliged to leave others in the possession of more than he is obliged to give them. At least the difference would be very inconsiderable. Men generally fix their affections more on what they are possessed of, than on what they never enjoyed: For this reason, it would be greater cruelty to dispossess a man of any thing, than not to give it him. But who will assert, that this is the only foundation of justice?

Besides, we must consider, that the chief reason, why men attach themselves so much to their

possessions is, that they consider them as their property, and as secured to them inviolably by the laws of society. But this is a secondary consideration, and dependent on the preceding notions of justice and property.

A man's property is supposed to be fenced against every mortal, in every possible case. But private benevolence is, and ought to be, weaker in some persons, than in others: And in many, or indeed in most persons, must absolutely fail. Private benevolence, therefore, is not the original motive of justice.

From all this it follows, that we have no real or universal motive for observing the laws of equity, but the very equity and merit of that observance; and as no action can be equitable or meritorious, where it cannot arise from some separate motive, there is here an evident sophistry and reasoning in a circle. Unless, therefore, we will allow, that nature has established a sophistry, and rendered it necessary and unavoidable, we must allow, that the sense of justice and injustice is not derived from nature, but arises artificially, though necessarily from education, and human conventions.

I shall add, as a corollary to this reasoning, that since no action can be laudable or blameable, without some motives or impelling passions, distinct from the sense of morals, these distinct passions must have a great influence on that sense. It is according to their general force in human nature, that we blame or praise. In judging of the beauty of animal bodies, we always carry in our eye the oeconomy of a certain species; and where the limbs and features observe that proportion, which is common to the species, we pronounce them handsome and beautiful. In like manner we always consider the natural and usual force of the passions, when we determine concerning vice and virtue; and if the passions depart very much from the common measures on either side, they are always disapproved as vicious. A man naturally loves his children better than his nephews, his nephews better than his cousins, his cousins better than strangers, where every thing else is equal. Hence arise our common measures of duty, in preferring the one to the other. Our sense of duty always follows the common and natural course of our passions.

To avoid giving offence, I must here observe, that when I deny justice to be a natural virtue, I make use of the word, natural, only as opposed to artificial. In another sense of the word; as no principle of the human mind is more natural than a sense of virtue; so no virtue is more natural than justice. Mankind is an inventive species; and where an invention is obvious and absolutely necessary, it may as properly be said to be natural as any thing that proceeds immediately from original principles, without the intervention of thought or reflection. Though the rules of justice be artificial, they are not arbitrary. Nor is the expression improper to call them Laws of Nature; if by natural we understand what is common to any species, or even if we confine it to mean what is inseparable from the species.

SECT. II OF THE ORIGIN OF JUSTICE AND PROPERTY

We now proceed to examine two questions, viz, CONCERNING THE MANNER, IN WHICH THE RULES OF JUSTICE ARE ESTABLISHED BY THE ARTIFICE OF MEN; and CONCERNING THE REASONS, WHICH DETERMINE US TO ATTRIBUTE TO THE OBSERVANCE OR NEGLECT OF THESE RULES A MORAL BEAUTY AND DEFORMITY. These questions will appear afterwards to be distinct. We shall begin with the former.

Of all the animals, with which this globe is peopled, there is none towards whom nature seems, at first sight, to have exercised more cruelty than towards man, in the numberless wants and necessities, with which she has loaded him, and in the slender means, which she affords to the relieving these necessities.

In other creatures these two particulars generally compensate each other. If we consider the lion as a voracious and carnivorous animal, we shall easily discover him to be very necessitous; but if we turn our eye to his make and temper, his agility, his courage, his arms, and his force, we shall find, that his advantages hold proportion with his wants. The sheep and ox are deprived of all these advantages; but their appetites are moderate, and their food is of easy purchase. In man alone, this unnatural conjunction of infirmity, and of necessity, may be observed in its greatest perfection. Not only the food, which is required for his sustenance, flies his search and approach, or at least requires his labour to be produced, but he must be possessed of cloaths and lodging, to defend him against the injuries of the weather; though to consider him only in himself, he is provided neither with arms, nor force, nor other natural abilities, which are in any degree answerable to so many necessities.

It is by society alone he is able to supply his defects, and raise himself up to an equality with his fellow-creatures, and even acquire a superiority above them. By society all his infirmities are compensated; and though in that situation his wants multiply every moment upon him, yet his abilities are still more augmented, and leave him in every respect more satisfied and happy, than it is possible for him, in his savage and solitary condition, ever to become. When every individual person labours a-part, and only for himself, his force is too small to execute any considerable work; his labour being employed in supplying all his different necessities, he never attains a perfection in any particular art; and as his force and success are not at all times equal, the least failure in either of these particulars must be attended with inevitable ruin and misery. Society provides a remedy for these three inconveniences. By the conjunction of forces, our power is augmented: By the partition of employments, our ability encreases: And by mutual succour we are less exposed to fortune and accidents. It is by this additional force, ability, and security, that society becomes advantageous.

But in order to form society, it is requisite not only that it be advantageous, but also that men be sensible of these advantages; and it is impossible, in their wild uncultivated state, that by study and reflection alone, they should ever be able to attain this knowledge. Most fortunately, therefore, there is conjoined to those necessities, whose remedies are remote and obscure, another necessity, which having a present and more obvious remedy, may justly be regarded as the first and original principle of human society. This necessity is no other than that natural appetite betwixt the sexes, which unites them together, and preserves their union, till a new tie takes place in their concern for their common offspring. This new concern becomes also a principle of union betwixt the parents and offspring, and forms a more numerous society; where the parents govern by the advantage of their superior strength and wisdom, and at the same time are restrained in the exercise of their authority by that natural affection, which they bear their children. In a little time, custom and habit operating on the tender minds of the children, makes them sensible of the advantages, which they may reap from society, as well as fashions them by degrees for it, by rubbing off those rough corners and untoward affections, which prevent their coalition.

For it must be confest, that however the circumstances of human nature may render an union necessary, and however those passions of lust and natural affection may seem to render it unavoidable; yet there are other particulars in our natural temper, and in our outward circumstances, which are very incommodious, and are even contrary to the requisite conjunction. Among the former, we may justly esteem our selfishness to be the most considerable. I am sensible, that generally speaking, the representations of this quality have been carried much too far; and that the descriptions, which certain philosophers delight so much to form of mankind in this particular, are as wide of nature as any accounts of monsters, which we meet with in fables and romances. So far from thinking, that men have no

affection for any thing beyond themselves, I am of opinion, that though it be rare to meet with one, who loves any single person better than himself; yet it is as rare to meet with one, in whom all the kind affections, taken together, do not overbalance all the selfish. Consult common experience: Do you not see, that though the whole expence of the family be generally under the direction of the master of it, yet there are few that do not bestow the largest part of their fortunes on the pleasures of their wives, and the education of their children, reserving the smallest portion for their own proper use and entertainment. This is what we may observe concerning such as have those endearing ties; and may presume, that the case would be the same with others, were they placed in a like situation.

But though this generosity must be acknowledged to the honour of human nature, we may at the same time remark, that so noble an affection, instead of fitting men for large societies, is almost as contrary to them, as the most narrow selfishness. For while each person loves himself better than any other single person, and in his love to others bears the greatest affection to his relations and acquaintance, this must necessarily produce an oppositon of passions, and a consequent opposition of actions; which cannot but be dangerous to the new-established union.

It is however worth while to remark, that this contrariety of passions would be attended with but small danger, did it not concur with a peculiarity in our outward circumstances, which affords it an opportunity of exerting itself. There are different species of goods, which we are possessed of; the internal satisfaction of our minds, the external advantages of our body, and the enjoyment of such possessions as we have acquired by our industry and good fortune. We are perfectly secure in the enjoyment of the first. The second may be ravished from us, but can be of no advantage to him who deprives us of them. The last only are both exposed to the violence of others, and may be transferred without suffering any loss or alteration; while at the same time, there is not a sufficient quantity of them to supply every one's desires and necessities. As the improvement, therefore, of these goods is the chief advantage of society, so the instability of their possession, along with their scarcity, is the chief impediment.

In vain should we expect to find, in uncultivated nature, a remedy to this inconvenience; or hope for any inartificial principle of the human mind, which might controul those partial affections, and make us overcome the temptations arising from our circumstances. The idea of justice can never serve to this purpose, or be taken for a natural principle, capable of inspiring men with an equitable conduct towards each other. That virtue, as it is now understood, would never have been dreamed of among rude and savage men. For the notion of injury or injustice implies an immorality or vice committed against some other person: And as every immorality is derived from some defect or unsoundness of the passions, and as this defect must be judged of, in a great measure, from the ordinary course of nature in the constitution of the mind; it will be easy to know, whether we be guilty of any immorality, with regard to others, by considering the natural, and usual force of those several affections, which are directed towards them. Now it appears, that in the original frame of our mind, our strongest attention is confined to ourselves; our next is extended to our relations and acquaintance; and it is only the weakest which reaches to strangers and indifferent persons. This partiality, then, and unequal affection, must not only have an influence on our behaviour and conduct in society, but even on our ideas of vice and virtue; so as to make us regard any remarkable transgression of such a degree of partiality, either by too great an enlargement, or contraction of the affections, as vicious and immoral. This we may observe in our common judgments concerning actions, where we blame a person, who either centers all his affections in his family, or is so regardless of them, as, in any opposition of interest, to give the preference to a

stranger, or mere chance acquaintance. From all which it follows, that our natural uncultivated ideas of morality, instead of providing a remedy for the partiality of our affections, do rather conform themselves to that partiality, and give it an additional force and influence.

The remedy, then, is not derived from nature, but from artifice; or more e properly speaking, nature provides a remedy in the judgment and understanding, for what is irregular and incommodious in the affections. For when men, from their early education in society, have become sensible of the infinite advantages that result from it, and have besides acquired a new affection to company and conversation; and when they have observed, that the principal disturbance in society arises from those goods, which we call external, and from their looseness and easy transition from one person to another; they must seek for a remedy by putting these goods, as far as possible, on the same footing with the fixed and constant advantages of the mind and body. This can be done after no other manner, than by a convention entered into by all the members of the society to bestow stability on the possession of those external goods, and leave every one in the peaceable enjoyment of what he may acquire by his fortune and industry. By this means, every one knows what he may safely possess; and the passions ale restrained in their partial and contradictory motions. Nor is such a restraint contrary to these passions; for if so, it coued never be entered into, nor maintained; but it is only contrary to their heedless and impetuous movement. Instead of departing from our own interest, or from that of our nearest friends, by abstaining from the possessions of others, we cannot better consult both these interests, than by such a convention; because it is by that means we maintain society, which is so necessary to their well-being and subsistence, as well as to our own.

This convention is not of the nature of a promise: For even promises themselves, as we shall see afterwards, arise from human conventions. It is only a general sense of common interest; which sense all the members of the society express to one another, and which induces them to regulate their conduct by certain rules. I observe, that it will be for my interest to leave another in the possession of his goods, provided he will act in the same manner with regard to me. He is sensible of a like interest in the regulation of his conduct. When this common sense of interest is mutually expressed, and is known to both, it produces a suitable resolution and behaviour. And this may properly enough be called a convention or agreement betwixt us, though without the interposition of a promise; since the actions of each of us have a reference to those of the other, and are performed upon the supposition, that something is to be performed on the other part. Two men, who pull the oars of a boat, do it by an agreement or convention, though they have never given promises to each other. Nor is the rule concerning the stability of possession the less derived from human conventions, that it arises gradually, and acquires force by a slow progression, and by our repeated experience of the inconveniences of transgressing it. On the contrary, this experience assures us still more, that the sense of interest has become common to all our fellows, and gives us a confidence of the future regularity of their conduct: And it is only on the expectation of this, that our moderation and abstinence are founded. In like manner are languages gradually established by human conventions without any promise. In like manner do gold and silver become the common measures of exchange, and are esteemed sufficient payment for what is of a hundred times their value.

After this convention, concerning abstinence from the possessions of others, is entered into, and every one has acquired a stability in his possessions, there immediately arise the ideas of justice and injustice; as also those of property, right, and obligation. The latter are altogether unintelligible without first understanding the former. Our property is nothing but those goods, whose constant possession is

established by the laws of society; that is, by the laws of justice. Those, therefore, who make use of the words property, or right, or obligation, before they have explained the origin of justice, or even make use of them in that explication, are guilty of a very gross fallacy, and can never reason upon any solid foundation. A man's property is some object related to him. This relation is not natural, but moral, and founded on justice. It is very preposterous, therefore, to imagine, that we can have any idea of property, without fully comprehending the nature of justice, and shewing its origin in the artifice and contrivance of man. The origin of justice explains that of property. The same artifice gives rise to both. As our first and most natural sentiment of morals is founded on the nature of our passions, and gives the preference to ourselves and friends, above strangers; it is impossible there can be naturally any such thing as a fixed right or property, while the opposite passions of men impel them in contrary directions, and are not restrained by any convention or agreement.

No one can doubt, that the convention for the distinction of property, and for the stability of possession, is of all circumstances the most necessary to the establishment of human society, and that after the agreement for the fixing and observing of this rule, there remains little or nothing to be done towards settling a perfect harmony and concord. All the other passions, besides this of interest, are either easily restrained, or are not of such pernicious consequence, when indulged. Vanity is rather to be esteemed a social passion, and a bond of union among men. Pity and love are to be considered in the same light. And as to envy and revenge, though pernicious, they operate only by intervals, and are directed against particular persons, whom we consider as our superiors or enemies. This avidity alone, of acquiring goods and possessions for ourselves and our nearest friends, is insatiable, perpetual, universal, and directly destructive of society. There scarce is any one, who is not actuated by it; and there is no one, who has not reason to fear from it, when it acts without any restraint, and gives way to its first and most natural movements. So that upon the whole, we are to esteem the difficulties in the establishment of society, to be greater or less, according to those we encounter in regulating and restraining this passion.

It is certain, that no affection of the human mind has both a sufficient force, and a proper direction to counterbalance the love of gain, and render men fit members of society, by making them abstain from the possessions of others. Benevolence to strangers is too weak for this purpose; and as to the other passions, they rather inflame this avidity, when we observe, that the larger our possessions are, the more ability we have of gratifying all our appetites. There is no passion, therefore, capable of controlling the interested affection, but the very affection itself, by an alteration of its direction. Now this alteration must necessarily take place upon the least reflection; since it is evident, that the passion is much better satisfied by its restraint, than by its liberty, and that in preserving society, we make much greater advances in the acquiring possessions, than in the solitary and forlorn condition, which must follow upon violence and an universal licence. The question, therefore, concerning the wickedness or goodness of human nature, enters not in the least into that other question concerning the origin of society; nor is there any thing to be considered but the degrees of men's sagacity or folly. For whether the passion of self-interest be esteemed vicious or virtuous, it is all a case; since itself alone restrains it: So that if it be virtuous, men become social by their virtue; if vicious, their vice has the same effect.

Now as it is by establishing the rule for the stability of possession, that this passion restrains itself; if that rule be very abstruse, and of difficult invention; society must be esteemed, in a manner, accidental, and the effect of many ages. But if it be found, that nothing can be more simple and obvious than that rule; that every parent, in order to preserve peace among his children, must establish it; and that these first rudiments of justice must every day be improved, as the society enlarges: If all this appear evident, as it

certainly must, we may conclude, that it is utterly impossible for men to remain any considerable time in that savage condition, which precedes society; but that his very first state and situation may justly be esteemed social. This, however, hinders not, but that philosophers may, if they please, extend their reasoning to the supposed state of nature; provided they allow it to be a mere philosophical fiction, which never had, and never could have any reality. Human nature being composed of two principal parts, which are requisite in all its actions, the affections and understanding; it is certain, that the blind motions of the former, without the direction of the latter, incapacitate men for society: And it may be allowed us to consider separately the effects, that result from the separate operations of these two component parts of the mind. The same liberty may be permitted to moral, which is allowed to natural philosophers; and it is very usual with the latter to consider any motion as compounded and consisting of two parts separate from each other, though at the same time they acknowledge it to be in itself uncompounded and inseparable.

This state of nature, therefore, is to be regarded as a mere fiction, not unlike that of the golden age, which poets have invented; only with this difference, that the former is described as full of war, violence and injustice; whereas the latter is pointed out to us, as the most charming and most peaceable condition, that can possibly be imagined. The seasons, in that first age of nature, were so temperate, if we may believe the poets, that there was no necessity for men to provide themselves with cloaths and houses as a security against the violence of heat and cold. The rivers flowed with wine and milk: The oaks yielded honey; and nature spontaneously produced her greatest delicacies. Nor were these the chief advantages of that happy age. The storms and tempests were not alone removed from nature; but those more furious tempests were unknown to human breasts, which now cause such uproar, and engender such confusion. Avarice, ambition, cruelty, selfishness, were never heard of: Cordial affection, compassion, sympathy, were the only movements, with which the human mind was yet acquainted. Even the distinction of mine and thine was banished from that happy race of mortals, and carried with them the very notions of property and obligation, justice and injustice.

This, no doubt, is to be regarded as an idle fiction; but yet deserves our attention, because nothing can more evidently shew the origin of those virtues, which are the subjects of our present enquiry. I have already observed, that justice takes its rise from human conventions; and that these are intended as a remedy to some inconveniences, which proceed from the concurrence of certain qualities of the human mind with the situation of external objects. The qualities of the mind are selfishness and limited generosity: And the situation of external objects is their easy change, joined to their scarcity in comparison of the wants and desires of men. But however philosophers may have been bewildered in those speculations, poets have been guided more infallibly, by a certain taste or common instinct, which in most kinds of reasoning goes farther than any of that art and philosophy, with which we have been yet acquainted. They easily perceived, if every man had a tender regard for another, or if nature supplied abundantly all our wants and desires, that the jealousy of interest, which justice supposes, could no longer have place; nor would there be any occasion for those distinctions and limits of property and possession, which at present are in use among mankind. Encrease to a sufficient degree the benevolence of men, or the bounty of nature, and you render justice useless, by supplying its place with much nobler virtues, and more valuable blessings. The selfishness of men is animated by the few possessions we have, in proportion to our wants; and it is to restrain this selfishness, that men have been obliged to separate themselves from the community, and to distinguish betwixt their own goods and those of others.

Nor need we have recourse to the fictions of poets to learn this; but beside the reason of the thing, may discover the same truth by common experience and observation. It is easy to remark, that a cordial affection renders all things common among friends; and that married people in particular mutually lose their property, and are unacquainted with the mine and thine, which are so necessary, and yet cause such disturbance in human society. The same effect arises from any alteration in the circumstances of mankind; as when there is such a plenty of any thing as satisfies all the desires of men: In which case the distinction of property is entirely lost, and every thing remains in common. This we may observe with regard to air and water, though the most valuable of all external objects; and may easily conclude, that if men were supplied with every thing in the same abundance, or if every one had the same affection and tender regard for every one as for himself; justice and injustice would be equally unknown among mankind.

Here then is a proposition, which, I think, may be regarded as certain, that it is only from the selfishness and confined generosity of men, along with the scanty provision nature has made for his wants, that justice derives its origin. If we look backward we shall find, that this proposition bestows an additional force on some of those observations, which we have already made on this subject.

First, we may conclude from it, that a regard to public interest, or a strong extensive benevolence, is not our first and original motive for the observation of the rules of justice; since it is allowed, that if men were endowed with such a benevolence, these rules would never have been dreamt of.

Secondly, we may conclude from the same principle, that the sense of justice is not founded on reason, or on the discovery of certain connexions and relations of ideas, which are eternal, immutable, and universally obligatory. For since it is confest, that such an alteration as that above-mentioned, in the temper and circumstances of mankind, would entirely alter our duties and obligations, it is necessary upon the common system, that the sense of virtue is derived from reason, to shew the change which this must produce in the relations and ideas. But it is evident, that the only cause, why the extensive generosity of man, and the perfect abundance of every thing, would destroy the very idea of justice, is because they render it useless; and that, on the other hand, his confined benevolence, and his necessitous condition, give rise to that virtue, only by making it requisite to the publick interest, and to that of every individual. 'Twas therefore a concern for our own, and the publick interest, which made us establish the laws of justice; and nothing can be more certain, than that it is not any relation of ideas, which gives us this concern, but our impressions and sentiments, without which every thing in nature is perfectly indifferent to us, and can never in the least affect us. The sense of justice, therefore, is not founded on our ideas, but on our impressions.

Thirdly, we may farther confirm the foregoing proposition, THAT THOSE IMPRESSIONS, WHICH GIVE RISE TO THIS SENSE OF JUSTICE, ARE NOT NATURAL TO THE MIND OF MAN, BUT ARISE FROM ARTIFICE AND HUMAN CONVENTIONS. For since any considerable alteration of temper and circumstances destroys equally justice and injustice; and since such an alteration has an effect only by changing our own and the publick interest; it follows, that the first establishment of the rules of justice depends on these different interests. But if men pursued the publick interest naturally, and with a hearty affection, they would never have dreamed of restraining each other by these rules; and if they pursued their own interest, without any precaution, they would run head-long into every kind of injustice and violence. These rules, therefore, are artificial, and seek their end in an oblique and indirect manner; nor is the interest, which gives rise to them, of a kind that could be pursued by the natural and

inartificial passions of men.

To make this more evident, consider, that though the rules of justice are established merely by interest, their connexion with interest is somewhat singular, and is different from what may be observed on other occasions. A single act of justice is frequently contrary to public interest; and were it to stand alone, without being followed by other acts, may, in itself, be very prejudicial to society. When a man of merit, of a beneficent disposition, restores a great fortune to a miser, or a seditious bigot, he has acted justly and laudably, but the public is a real sufferer. Nor is every single act of justice, considered apart, more conducive to private interest, than to public; and it is easily conceived how a man may impoverish himself by a signal instance of integrity, and have reason to wish, that with regard to that single act, the laws of justice were for a moment suspended in the universe. But however single acts of justice may be contrary, either to public or private interest, it is certain, that the whole plan or scheme is highly conducive, or indeed absolutely requisite, both to the support of society, and the well-being of every individual. It is impossible to separate the good from the ill. Property must be stable, and must be fixed by general rules. Though in one instance the public be a sufferer, this momentary ill is amply compensated by the steady prosecution of the rule, and by the peace and order, which it establishes in society. And even every individual person must find himself a gainer, on ballancing the account; since, without justice society must immediately dissolve, and every one must fall into that savage and solitary condition, which is infinitely worse than the worst situation that can possibly be supposed in society.

When therefore men have had experience enough to observe, that whatever may be the consequence of any single act of justice, performed by a single person, yet the whole system of actions, concurred in by the whole society, is infinitely advantageous to the whole, and to every part; it is not long before justice and property take place. Every member of society is sensible of this interest: Every one expresses this sense to his fellows, along with the resolution he has taken of squaring his actions by it, on condition that others will do the same. No more is requisite to induce any one of them to perform an act of justice, who has the first opportunity. This becomes an example to others. And thus justice establishes itself by a kind of convention or agreement; that is, by a sense of interest, supposed to be common to all, and where every single act is performed in expectation that others are to perform the like. Without such a convention, no one would ever have dreamed, that there was such a virtue as justice, or have been induced to conform his actions to it. Taking any single act, my justice may be pernicious in every respect; and it is only upon the supposition that others are to imitate my example, that I can be induced to embrace that virtue; since nothing but this combination can render justice advantageous, or afford me any motives to conform my self to its rules.

We come now to the second question we proposed, viz. Why we annex the idea of virtue to justice, and of vice to injustice. This question will not detain us long after the principles, which we have already established. All we can say of it at present will be dispatched in a few words: And for farther satisfaction, the reader must wait till we come to the third part of this book. The natural obligation to justice, viz, interest, has been fully explained; but as to the moral obligation, or the sentiment of right and wrong, it will first be requisite to examine the natural virtues, before we can give a full and satisfactory account of it. After men have found by experience, that their selfishness and confined generosity, acting at their liberty, totally incapacitate them for society; and at the same time have observed, that society is necessary to the satisfaction of those very passions, they are naturally induced to lay themselves under the restraint of such rules, as may render their commerce more safe and commodious. To the imposition then, and observance of these rules, both in general, and in every

particular instance, they are at first induced only by a regard to interest; and this motive, on the first formation of society, is sufficiently strong and forcible. But when society has become numerous, and has encreased to a tribe or nation, this interest is more remote; nor do men so readily perceive, that disorder and confusion follow upon every breach of these rules, as in a more narrow and contracted society. But though in our own actions we may frequently lose sight of that interest, which we have in maintaining order, and may follow a lesser and more present interest, we never fail to observe the prejudice we receive, either mediately or immediately, from the injustice of others; as not being in that case either blinded by passion, or byassed by any contrary temptation. Nay when the injustice is so distant from us, as no way to affect our interest, it still displeases us; because we consider it as prejudicial to human society, and pernicious to every one that approaches the person guilty of it. We partake of their uneasiness by sympathy; and as every thing, which gives uneasiness in human actions, upon the general survey, is called Vice, and whatever produces satisfaction, in the same manner, is denominated Virtue; this is the reason why the sense of moral good and evil follows upon justice and injustice. And though this sense, in the present case, be derived only from contemplating the actions of others, yet we fail not to extend it even to our own actions. The general rule reaches beyond those instances, from which it arose; while at the same time we naturally sympathize with others in the sentiments they entertain of us. Thus self-interest is the original motive to the establishment of justice: but a sympathy with public interest is the source of the moral approbation, which attends that virtue.

Though this progress of the sentiments be natural, and even necessary, it is certain, that it is here forwarded by the artifice of politicians, who, in order to govern men more easily, and preserve peace in human society, have endeavoured to produce an esteem for justice, and an abhorrence of injustice. This, no doubt, must have its effect; but nothing can be more evident, than that the matter has been carried too far by certain writers on morals, who seem to have employed their utmost efforts to extirpate all sense of virtue from among mankind. Any artifice of politicians may assist nature in the producing of those sentiments, which she suggests to us, and may even on some occasions, produce alone an approbation or esteem for any particular action; but it is impossible it should be the sole cause of the distinction we make betwixt vice and virtue. For if nature did not aid us in this particular, it would be in vain for politicians to talk of honourable or dishonourable, praiseworthy or blameable. These words would be perfectly unintelligible, and would no more have any idea annexed to them, than if they were of a tongue perfectly unknown to us. The utmost politicians can perform, is, to extend the natural sentiments beyond their original bounds; but still nature must furnish the materials, and give us some notion of moral distinctions.

As publick praise and blame encrease our esteem for justice; so private education and instruction contribute to the same effect. For as parents easily observe, that a man is the more useful, both to himself and others, the greater degree of probity and honour he is endowed with; and that those principles have greater force, when custom and education assist interest and reflection: For these reasons they are induced to inculcate on their children, from their earliest infancy, the principles of probity, and teach them to regard the observance of those rules, by which society is maintained, as worthy and honourable, and their violation as base and infamous. By this means the sentiments of honour may take root in their tender minds, and acquire such firmness and solidity, that they may fall little short of those principles, which are the most essential to our natures, and the most deeply radicated in our internal constitution.

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What farther contributes to encrease their solidity, is the interest of our reputation, after the opinion, that a merit or demerit attends justice or injustice, is once firmly established among mankind. There is nothing, which touches us more nearly than our reputation, and nothing on which our reputation more depends than our conduct, with relation to the property of others. For this reason, every one, who has any regard to his character, or who intends to live on good terms with mankind, must fix an inviolable law to himself, never, by any temptation, to be induced to violate those principles, which are essential to a man of probity and honour.

I shall make only one observation before I leave this subject, viz, that though I assert, that in the state of nature, or that imaginary state, which preceded society, there be neither justice nor injustice, yet I assert not, that it was allowable, in such a state, to violate the property of others. I only maintain, that there was no such thing as property; and consequently coued be no such thing as justice or injustice. I shall have occasion to make a similar reflection with regard to promises, when I come to treat of them; and I hope this reflection, when duly weighed, will suffice to remove all odium from the foregoing opinions, with regard to justice and injustice.

18 Of Parties in General; Of the Original Contract (David Hume)

*Of Parties in General*¹

Of all men, that distinguish themselves by memorable achievements, the first place of honour seems due to Legislators and founders of states, who transmit a system of laws and institutions to secure the peace, happiness, and liberty of future generations. The influence of useful inventions in the arts and sciences may, perhaps, extend farther than that of wise laws, whose effects are limited both in time and place; but the benefit arising from the former, is not so sensible as that which results from the latter. Speculative sciences do, indeed, improve the mind; but this advantage reaches only to a few persons, who have leisure to apply themselves to them. And as to practical arts, which encrease the commodities and enjoyments of life, it is well known, that men's happiness consists not so much in an abundance of these, as in the peace and security with which they possess them; and those blessings can only be derived from good government. Not to mention, that general virtue and good morals in a state, which are so requisite to happiness, can never arise from the most refined precepts of philosophy, or even the severest injunctions of religion; but must proceed entirely from the virtuous education of youth, the effect of wise laws and institutions. I must, therefore, presume to differ from Lord Bacon in this particular, and must regard antiquity as somewhat unjust in its distribution of honours, when it made gods of all the inventors of useful arts, such as Ceres, Bacchus, Æsculapius; and dignify legislators, such as Romulus and Theseus, only with the appellation of demigods and heroes.

As much as legislators and founders of states ought to be honoured and respected among men, as much ought the founders of sects and factions to be detested and hated; because the influence of faction is directly contrary to that of laws. Factions subvert government, render laws impotent, and beget the fiercest animosities among men of the same nation, who ought to give mutual assistance and protection to each other. And what should render the founders of parties more odious is, the difficulty of extirpating^o these weeds, when once they have taken root in any state. They naturally propagate themselves for many centuries, and seldom end but by the total dissolution of that government, in which they are sown. They are, besides, plants which grow most plentifully in the richest soil; and though absolute governments be not wholly free from them, it must be confessed, that they rise more easily, and propagate themselves faster in free governments, where they always infect the legislature itself, which alone could be able, by the steady application of rewards and punishments, to eradicate them.

Factions may be divided into Personal and Real; that is, into factions, founded on personal friendship or animosity among such as compose the contending parties, and into those founded on some real difference of sentiment or interest. The reason of this distinction is obvious; though I must acknowledge, that parties are seldom found pure and unmixed, either of the one kind or the other. It is not often seen, that a government divides into factions, where there is no difference in the views of the constituent

¹ David Hume, 1742.

members, either real or apparent, trivial or material: And in those factions, which are founded on the most real and most material difference, there is always observed a great deal of personal animosity or affection. But notwithstanding this mixture, a party may be denominated either personal or real, according to that principle which is predominant, and is found to have the greatest influence.

Personal factions arise most easily in small republics. Every domestic quarrel, there, becomes an affair of state. Love, vanity, emulation, any passion, as well as ambition and resentment, begets public division. The Neri and Bianchi of Florence, the Fregosi and Adorni of Genoa, the Colonesi and Orsini of modern Rome, were parties of this kind.

Men have such a propensity to divide into personal factions, that the smallest appearance of real difference will produce them. What can be imagined more trivial than the difference between one colour of livery and another in horse races? Yet this difference begat two most inveterate factions in the Greek empire, the Prasini and Veneti, who never suspended their animosities, till they ruined that unhappy government.

We find in the Roman history a remarkable dissension between two tribes, the Pollia and Papiria, which continued for the space of near three hundred years, and discovered itself in their suffrages at every election of magistrates. This faction was the more remarkable, as it could continue for so long a tract of time; even though it did not spread itself, nor draw any of the other tribes into a share of the quarrel. If mankind had not a strong propensity to such divisions, the indifference of the rest of the community must have suppressed this foolish animosity, that had not any aliment of new benefits and injuries, of general sympathy and antipathy, which never fail to take place, when the whole state is rent into two equal factions.

Nothing is more usual than to see parties, which have begun upon a real difference, continue even after that difference is lost. When men are once inlisted on opposite sides, they contract an affection to the persons with whom they are united, and an animosity against their antagonists: And these passions they often transmit to their posterity. The real difference between Guelf and Ghibbelline was long lost in Italy, before these factions were extinguished. The Guelfs adhered to the pope, the Ghibbellines to the emperor; yet the family of Sforza, who were in alliance with the emperor, though they were Guelfs, being expelled Milan by the king of France, assisted by Jacomo Trivulzio and the Ghibbellines, the pope concurred with the latter, and they formed leagues with the pope against the emperor.

The civil wars which arose some few years ago in Morocco, between the blacks and whites, merely on account of their complexion, are founded on a pleasant difference. We laugh at them; but I believe, were things rightly examined, we afford much more occasion of ridicule to the Moors. For, what are all the wars of religion, which have prevailed in this polite and knowing part of the world? They are certainly more absurd than the Moorish civil wars. The difference of complexion is a sensible and a real difference: But the controversy about an article of faith, which is utterly absurd and unintelligible, is not a difference in sentiment, but in a few phrases and expressions, which one party accepts of, without understanding them; and the other refuses in the same manner.

Real factions may be divided into those from interest, from principle, and from affection. Of all factions, the first are the most reasonable, and the most excusable. Where two orders of men, such as the nobles and people, have a distinct authority in a government, not very accurately balanced and modelled, they

naturally follow a distinct interest; nor can we reasonably expect a different conduct, considering that degree of selfishness implanted in human nature. It requires great skill in a legislator to prevent such parties; and many philosophers are of opinion, that this secret, like the grand elixir, or perpetual motion, may amuse men in theory, but can never possibly be reduced to practice.⁸ In despotic governments, indeed, factions often do not appear; but they are not the less real; or rather, they are more real and more pernicious, upon that very account. The distinct orders of men, nobles and people, soldiers and merchants, have all a distinct interest; but the more powerful oppresses the weaker with impunity, and without resistance; which begets a seeming tranquillity in such governments.

There has been an attempt in England to divide the landed and trading part of the nation; but without success. The interests of these two bodies are not really distinct, and never will be so, till our public debts encrease to such a degree, as to become altogether oppressive and intolerable.

Parties from principle, especially abstract speculative principle, are known only to modern times, and are, perhaps, the most extraordinary and unaccountable phenomenon, that has yet appeared in human affairs. Where different principles beget a contrariety of conduct, which is the case with all different political principles, the matter may be more easily explained. A man, who esteems the true right of government to lie in one man, or one family, cannot easily agree with his fellow-citizen, who thinks that another man or family is possessed of this right. Each naturally wishes that right may take place, according to his own notions of it. But where the difference of principle is attended with no contrariety of action, but every one may follow his own way, without interfering with his neighbour, as happens in all religious controversies; what madness, what fury can beget such unhappy and such fatal divisions?

Two men travelling on the highway, the one east, the other west, can easily pass each other, if the way be broad enough: But two men, reasoning upon opposite principles of religion, cannot so easily pass, without shocking; though one should think, that the way were also, in that case, sufficiently broad, and that each might proceed, without interruption, in his own course. But such is the nature of the human mind, that it always lays hold on every mind that approaches it; and as it is wonderfully fortified by an unanimity of sentiments, so is it shocked and disturbed by any contrariety. Hence the eagerness, which most people discover in a dispute; and hence their impatience of opposition, even in the most speculative and indifferent opinions.

This principle, however frivolous it may appear, seems to have been the origin of all religious wars and divisions. But as this principle is universal in human nature, its effects would not have been confined to one age, and to one sect of religion, did it not there concur with other more accidental causes, which raise it to such a height, as to produce the greatest misery and devastation. Most religions of the ancient world arose in the unknown ages of government, when men were as yet barbarous and uninstructed, and the prince, as well as peasant, was disposed to receive, with implicit faith, every pious tale or fiction, which was offered him. The magistrate embraced the religion of the people, and entering cordially into the care of sacred matters, naturally acquired an authority in them, and united the ecclesiastical with the civil power. But the Christian religion arising, while principles directly opposite to it were firmly established in the polite part of the world, who despised the nation that first broached this novelty; no wonder, that, in such circumstances, it was but little countenanced by the civil magistrate, and that the priesthood was allowed to engross all the authority in the new sect. So bad a use did they make of this power, even in those early times, that the primitive persecutions may, perhaps, in part, be ascribed to the violence instilled by them into their followers. And the same principles of priestly government

continuing, after Christianity became the established religion, they have engendered a spirit of persecution, which has ever since been the poison of human society, and the source of the most inveterate factions in every government. Such divisions, therefore, on the part of the people, may justly be esteemed factions of principle; but, on the part of the priests, who are the prime movers, they are really factions of interest.

There is another cause (beside the authority of the priests, and the separation of the ecclesiastical and civil powers) which has contributed to render Christendom the scene of religious wars and divisions. Religions, that arise in ages totally ignorant and barbarous, consist mostly of traditional tales and fictions, which may be different in every sect, without being contrary to each other; and even when they are contrary, every one adheres to the tradition of his own sect, without much reasoning or disputation. But as philosophy was widely spread over the world, at the time when Christianity arose, the teachers of the new sect were obliged to form a system of speculative opinions; to divide, with some accuracy, their articles of faith; and to explain, comment, confute, and defend with all the subtilty of argument and science. Hence naturally arose keenness in dispute, when the Christian religion came to be split into new divisions and heresies: And this keenness assisted the priests in their policy, of begetting a mutual hatred and antipathy among their deluded followers. Sects of philosophy, in the ancient world, were more zealous than parties of religion; but in modern times, parties of religion are more furious and enraged than the most cruel factions that ever arose from interest and ambition.

I have mentioned parties from affection as a kind of real parties, beside those from interest and principle. By parties from affection, I understand those which are founded on the different attachments of men towards particular families and persons, whom they desire to rule over them. These factions are often very violent; though, I must own, it may seem unaccountable, that men should attach themselves so strongly to persons, with whom they are no wise acquainted, whom perhaps they never saw, and from whom they never received, nor can ever hope for any favour. Yet this we often find to be the case, and even with men, who, on other occasions, discover no great generosity of spirit, nor are found to be easily transported by friendship beyond their own interest. We are apt to think the relation between us and our sovereign very close and intimate. The splendour of majesty and power bestows an importance on the fortunes even of a single person. And when a man's good-nature does not give him this imaginary interest, his ill-nature will, from spite and opposition to persons whose sentiments are different from his own.

Of the Original Contract²

As no party, in the present age, can well support itself without a philosophical or speculative system of principles annexed to its political or practical one, we accordingly find, that each of the factions into which this nation is divided has reared up a fabric of the former kind, in order to protect and cover that scheme of actions which it pursues. The people being commonly very rude builders, especially in this speculative way, and more especially still when actuated by party-zeal, it is natural to imagine that their workmanship must be a little unshapely, and discover evident marks of that violence and hurry in which it was raised. The one party, by tracing up government to the Deity, endeavoured to render it so sacred and inviolate, that it must be little less than sacrilege, however, tyrannical it may become, to touch or invade it in the smallest article. The other party, by founding government altogether on the consent of

² David Hume, 1748.

the people, suppose that there is a kind of *original contract*, by which the subjects have tacitly reserved the power of resisting their sovereign, whenever they find themselves aggrieved by that authority, with which they have, for certain purposes, voluntarily intrusted him. These are the speculative principles of the two parties, and these, too, are the practical consequences deduced from them.

I shall venture to affirm, *That both these systems of speculative principles are just; though not in the sense intended by the parties: and, That both the schemes of practical consequences are prudent; though not in the extremes to which each party, in opposition to the other, has commonly endeavoured to carry them.*

That the Deity is the ultimate author of all government, will never be denied by any, who admit a general providence, and allow, that all events in the universe are conducted by an uniform plan, and directed to wise purposes. As it is impossible for the human race to subsist, at least in any comfortable or secure state, without the protection of government, this institution must certainly have been intended by that beneficent Being, who means the good of all his creatures: and as it has universally, in fact, taken place, in all countries, and all ages, we may conclude, with still greater certainty, that it was intended by that omniscient Being who can never be deceived by any event or operation. But since he gave rise to it, not by any particular or miraculous interposition, but by his concealed and universal efficacy, a sovereign cannot, properly speaking, be called his vicegerent in any other sense than every power or force, being derived from him, may be said to act by his commission. Whatever actually happens is comprehended in the general plan or intention of Providence; nor has the greatest and most lawful prince any more reason, upon that account, to plead a peculiar sacredness or inviolable authority, than an inferior magistrate, or even an usurper, or even a robber and a pirate. The same Divine Superintendent, who, for wise purposes, invested a Titus or a Trajan with authority, did also, for purposes no doubt equally wise, though unknown, bestow power on a Borgia or an Angria. The same causes, which gave rise to the sovereign power in every state, established likewise every petty jurisdiction in it, and every limited authority. A constable, therefore, no less than a king, acts by a divine commission, and possesses an indefeasible right.

When we consider how nearly equal all men are in their bodily force, and even in their mental powers and faculties, till cultivated by education, we must necessarily allow, that nothing but their own consent could, at first, associate them together, and subject them to any authority. The people, if we trace government to its first origin in the woods and deserts, are the source of all power and jurisdiction, and voluntarily, for the sake of peace and order, abandoned their native liberty, and received laws from their equal and companion. The conditions upon which they were willing to submit, were either expressed, or were so clear and obvious, that it might well be esteemed superfluous to express them. If this, then, be meant by the *original contract*, it cannot be denied, that all government is, at first, founded on a contract, and that the most ancient rude combinations of mankind were formed chiefly by that principle. In vain are we asked in what records this charter of our liberties is registered. It was not written on parchment, nor yet on leaves or barks of trees. It preceded the use of writing, and all the other civilized arts of life. But we trace it plainly in the nature of man, and in the equality, or something approaching equality, which we find in all the individuals of that species. The force, which now prevails, and which is founded on fleets and armies, is plainly political, and derived from authority, the effect of established government. A man's natural force consists only in the vigour of his limbs, and the firmness of his courage; which could never subject multitudes to the command of one. Nothing but their own consent, and their sense of the advantages resulting from peace and order, could have had that influence.

Yet even this consent was long very imperfect, and could not be the basis of a regular administration. The chieftain, who had probably acquired his influence during the continuance of war, ruled more by persuasion than command; and till he could employ force to reduce the refractory and disobedient, the society could scarcely be said to have attained a state of civil government. No compact or agreement, it is evident, was expressly formed for general submission; an idea far beyond the comprehension of savages: each exertion of authority in the chieftain must have been particular, and called forth by the present exigencies of the case: the sensible utility, resulting from his interposition, made these exertions become daily more frequent; and their frequency gradually produced an habitual, and, if you please to call it so, a voluntary, and therefore precarious, acquiescence in the people.

But philosophers, who have embraced a party (if that be not a contradiction in terms), are not contented with these concessions. They assert, not only that government in its earliest infancy arose from consent, or rather the voluntary acquiescence of the people; but also that, even at present, when it has attained its full maturity, it rests on no other foundation. They affirm, that all men are still born equal, and owe allegiance to no prince or government, unless bound by the obligation and sanction of a *promise*. And as no man, without some equivalent, would forego the advantages of his native liberty, and subject himself to the will of another, this promise is always understood to be conditional, and imposes on him no obligation, unless he meet with justice and protection from his sovereign. These advantages the sovereign promises him in return; and if he fail in the execution, he has broken, on his part, the articles of engagement, and has thereby freed his subject from all obligations to allegiance. Such, according to these philosophers, is the foundation of authority in every government, and such the right of resistance possessed by every subject.

But would these reasoners look abroad into the world, they would meet with nothing that, in the least, corresponds to their ideas, or can warrant so refined and philosophical a system. On the contrary, we find every where princes who claim their subjects as their property, and assert their independent right of sovereignty, from conquest or succession. We find also every where subjects who acknowledge this right in their prince, and suppose themselves born under obligations of obedience to a certain sovereign, as much as under the ties of reverence and duty to certain parents. These connexions are always conceived to be equally independent of our consent, in Persia and China; in France and Spain; and even in Holland and England, wherever the doctrines above-mentioned have not been carefully inculcated. Obedience or subjection becomes so familiar, that most men never make any inquiry about its origin or cause, more than about the principle of gravity, resistance, or the most universal laws of nature. Or if curiosity ever move them; as soon as they learn that they themselves and their ancestors have, for several ages, or from time immemorial, been subject to such a form of government or such a family, they immediately acquiesce, and acknowledge their obligation to allegiance. Were you to preach, in most parts of the world, that political connexions are founded altogether on voluntary consent or a mutual promise, the magistrate would soon imprison you as seditious for loosening the ties of obedience; if your friends did not before shut you up as delirious, for advancing such absurdities. It is strange that an act of the mind, which every individual is supposed to have formed, and after he came to the use of reason too, otherwise it could have no authority; that this act, I say, should be so much unknown to all of them, that over the face of the whole earth, there scarcely remain any traces or memory of it.

But the contract, on which government is founded, is said to be the *original contract*; and consequently may be supposed too old to fall under the knowledge of the present generation. If the agreement, by

which savage men first associated and conjoined their force, be here meant, this is acknowledged to be real; but being so ancient, and being obliterated by a thousand changes of government and princes, it cannot now be supposed to retain any authority. If we would say any thing to the purpose, we must assert that every particular government which is lawful, and which imposes any duty of allegiance on the subject, was, at first, founded on consent and a voluntary compact. But, besides that this supposes the consent of the fathers to bind the children, even to the most remote generations (which republican writers will never allow), besides this, I say, it is not justified by history or experience in any age or country of the world.

Almost all the governments which exist at present, or of which there remains any record in story, have been founded originally, either on usurpation or conquest, or both, without any presence of a fair consent or voluntary subjection of the people. When an artful and bold man is placed at the head of an army or faction, it is often easy for him, by employing, sometimes violence, sometimes false presences, to establish his dominion over a people a hundred times more numerous than his partisans. He allows no such open communication, that his enemies can know, with certainty, their number or force. He gives them no leisure to assemble together in a body to oppose him. Even all those who are the instruments of his usurpation may wish his fall; but their ignorance of each other's intention keeps them in awe, and is the sole cause of his security. By such arts as these many governments have been established; and this is all the *original contract* which they have to boast of.

The face of the earth is continually changing, by the increase of small kingdoms into great empires, by the dissolution of great empires into smaller kingdoms, by the planting of colonies, by the migration of tribes. Is there any thing discoverable in all these events but force and violence? Where is the mutual agreement or voluntary association so much talked of?

Even the smoothest way by which a nation may receive a foreign master, by marriage or a will, is not extremely honourable for the people; but supposes them to be disposed of, like a dowry or a legacy, according to the pleasure or interest of their rulers.

But where no force interposes, and election takes place; what is this election so highly vaunted? It is either the combination of a few great men, who decide for the whole, and will allow of no opposition; or it is the fury of a multitude, that follow a seditious ringleader, who is not known, perhaps, to a dozen among them, and who owes his advancement merely to his own impudence, or to the momentary caprice of his fellows.

Are these disorderly elections, which are rare too, of such mighty authority as to be the only lawful foundation of all government and allegiance?

In reality, there is not a more terrible event than a total dissolution of government, which gives liberty to the multitude, and makes the determination or choice of a new establishment depend upon a number, which nearly approaches to that of the body of the people: for it never comes entirely to the whole body of them. Every wise man then wishes to see, at the head of a powerful and obedient army, a general who may speedily seize the prize, and give to the people a master which they are so unfit to choose for themselves. So little correspondent is fact and reality to those philosophical notions.

Let not the establishment at the *Revolution* deceive us, or make us so much in love with a philosophical origin to government, as to imagine all others monstrous and irregular. Even that event was far from corresponding to these refined ideas. It was only the succession, and that only in the regal part of the government, which was then changed: and it was only the majority of seven hundred, who determined that change for near ten millions. I doubt not, indeed, but the bulk of those ten millions acquiesced willingly in the determination: but was the matter left, in the least, to their choice? Was it not justly supposed to be, from that moment, decided, and every man punished, who refused to submit to the new sovereign? How otherwise could the matter have ever been brought to any issue or conclusion?

The republic of Athens was, I believe, the most extensive democracy that we read of in history: yet if we make the requisite allowances for the women, the slaves, and the strangers, we shall find, that that establishment was not at first made, nor any law ever voted, by a tenth part of those who were bound to pay obedience to it; not to mention the islands and foreign dominions, which the Athenians claimed as theirs by right of conquest. And as it is well known that popular assemblies in that city were always full of license and disorder, notwithstanding the institutions and laws by which they were checked; how much more disorderly must they prove, where they form not the established constitution, but meet tumultuously on the dissolution of the ancient government, in order to give rise to a new one? How chimerical must it be to talk of a choice in such circumstances?

The Achæans enjoyed the freest and most perfect democracy of all antiquity; yet they employed force to oblige some cities to enter into their league, as we learn from Polybius.

Harry the IVth and Harry the VIIth of England, had really no title to the throne but a parliamentary election; yet they never would acknowledge it, lest they should thereby weaken their authority. Strange, if the only real foundation of all authority be consent and promise?

It is in vain to say, that all governments are, or should be, at first, founded on popular consent, as much as the necessity of human affairs will admit. This favours entirely my pretension. I maintain, that human affairs will never admit of this consent, seldom of the appearance of it; but that conquest or usurpation, that is, in plain terms, force, by dissolving the ancient governments, is the origin of almost all the new ones which were ever established in the world. And that in the few cases where consent may seem to have taken place, it was commonly so irregular, so confined, or so much intermixed either with fraud or violence, that it cannot have any great authority.

My intention here is not to exclude the consent of the people from being one just foundation of government where it has place. It is surely the best and most sacred of any. I only pretend, that it has very seldom had place in any degree, and never almost in its full extent; and that, therefore, some other foundation of government must also be admitted.

Were all men possessed of so inflexible a regard to justice, that, of themselves, they would totally abstain from the properties of others; they had for ever remained in a state of absolute liberty, without subjection to any magistrate or political society: but this is a state of perfection, of which human nature is justly deemed incapable. Again, were all men possessed of so perfect an understanding as always to know their own interests, no form of government had ever been submitted to but what was established on consent, and was fully canvassed by every member of the society: but this state of perfection is likewise much superior to human nature. Reason, history, and experience shew us, that all political

societies have had an origin much less accurate and regular; and were one to choose a period of time when the people's consent was the least regarded in public transactions, it would be precisely on the establishment of a new government. In a settled constitution their inclinations are often consulted; but during the fury of revolutions, conquests, and public convulsions, military force or political craft usually decides the controversy.

When a new government is established, by whatever means, the people are commonly dissatisfied with it, and pay obedience more from fear and necessity, than from any idea of allegiance or of moral obligation. The prince is watchful and jealous, and must carefully guard against every beginning or appearance of insurrection. Time, by degrees, removes all these difficulties, and accustoms the nation to regard, as their lawful or native princes, that family which at first they considered as usurpers or foreign conquerors. In order to found this opinion, they have no recourse to any notion of voluntary consent or promise, which, they know, never was, in this case, either expected or demanded. The original establishment was formed by violence, and submitted to from necessity. The subsequent administration is also supported by power, and acquiesced in by the people, not as a matter of choice, but of obligation. They imagine not that their consent gives their prince a title: but they willingly consent, because they think, that, from long possession, he has acquired a title, independent of their choice or inclination.

Should it be said, that, by living under the dominion of a prince which one might leave, every individual has given a *tacit* consent to his authority, and promised him obedience; it may be answered, that such an implied consent can only have place where a man imagines that the matter depends on his choice. But where he thinks (as all mankind do who are born under established governments) that, by his birth, he owes allegiance to a certain prince or certain form of government; it would be absurd to infer a consent or choice, which he expressly, in this case, renounces and disclaims.

Can we seriously say, that a poor peasant or artisan has a free choice to leave his country, when he knows no foreign language or manners, and lives, from day to day, by the small wages which he acquires? We may as well assert that a man, by remaining in a vessel, freely consents to the dominion of the master; though he was carried on board while asleep, and must leap into the ocean and perish, the moment he leaves her.

What if the prince forbid his subjects to quit his dominions; as in Tiberius's time, it was regarded as a crime in a Roman knight that he had attempted to fly to the Parthians, in order to escape the tyranny of that emperor? Or as the ancient Muscovites prohibited all travelling under pain of death? And did a prince observe, that many of his subjects were seized with the frenzy of migrating to foreign countries, he would, doubtless, with great reason and justice, restrain them, in order to prevent the depopulation of his own kingdom. Would he forfeit the allegiance of all his subjects by so wise and reasonable a law? Yet the freedom of their choice is surely, in that case, ravished from them.

A company of men, who should leave their native country, in order to people some uninhabited region, might dream of recovering their native freedom; but they would soon find, that their prince still laid claim to them, and called them his subjects, even in their new settlement. And in this he would but act conformably to the common ideas of mankind.

The truest *tacit* consent of this kind that is ever observed, is when a foreigner settles in any country, and is beforehand acquainted with the prince, and government, and laws, to which he must submit: yet is his

allegiance, though more voluntary, much less expected or depended on, than that of a natural born subject. On the contrary, his native prince still asserts a claim to him. And if he punish not the renegade, where he seizes him in war with his new prince's commission; this clemency is not founded on the municipal law, which in all countries condemns the prisoner; but on the consent of princes, who have agreed to this indulgence, in order to prevent reprisals.

Did one generation of men go off the stage at once, and another succeed, as is the case with silkworms and butterflies, the new race, if they had sense enough to choose their government, which surely is never the case with men, might voluntarily, and by general consent, establish their own form of civil polity, without any regard to the laws or precedents which prevailed among their ancestors. But as human society is in perpetual flux, one man every hour going out of the world, another coming into it, it is necessary, in order to preserve stability in government, that the new brood should conform themselves to the established constitution, and nearly follow the path which their fathers, treading in the footsteps of theirs, had marked out to them. Some innovations must necessarily have place in every human institution; and it is happy where the enlightened genius of the age give these a direction to the side of reason, liberty, and justice: but violent innovations no individual is entitled to make: they are even dangerous to be attempted by the legislature: more ill than good is ever to be expected from them: and if history affords examples to the contrary, they are not to be drawn into precedent, and are only to be regarded as proofs, that the science of politics affords few rules, which will not admit of some exception, and which may not sometimes be controlled by fortune and accident. The violent innovations in the reign of Henry VIII. proceeded from an imperious monarch, seconded by the appearance of legislative authority: those in the reign of Charles I. were derived from faction and fanaticism; and both of them have proved happy in the issue. But even the former were long the source of many disorders, and still more dangers; and if the measures of allegiance were to be taken from the latter, a total anarchy must have place in human society, and a final period at once be put to every government.

Suppose that an usurper, after having banished his lawful prince and royal family, should establish his dominion for ten or a dozen years in any country, and should preserve so exact a discipline in his troops, and so regular a disposition in his garrisons that no insurrection had ever been raised, or even murmur heard against his administration: can it be asserted that the people, who in their hearts abhor his treason, have tacitly consented to his authority, and promised him allegiance, merely because, from necessity, they live under his dominion? Suppose again their native prince restored, by means of an army, which he levies in foreign countries: they receive him with joy and exultation, and shew plainly with what reluctance they had submitted to any other yoke. I may now ask, upon what foundation the prince's title stands? Not on popular consent surely: for though the people willingly acquiesce in his authority, they never imagine that their consent made him sovereign. They consent; because they apprehend him to be already by birth, their lawful sovereign. And as to that tacit consent, which may now be inferred from their living under his dominion, this is no more than what they formerly gave to the tyrant and usurper.

When we assert, that all lawful government arises from the consent of the people, we certainly do them a great deal more honour than they deserve, or even expect and desire from us. After the Roman dominions became too unwieldy for the republic to govern them, the people over the whole known world were extremely grateful to Augustus for that authority which, by violence, he had established over them; and they shewed an equal disposition to submit to the successor whom he left them by his last will and testament. It was afterwards their misfortune, that there never was, in one family, any long regular succession; but that their line of princes was continually broken, either by private assassinations or

public rebellions. The *prætorian* bands, on the failure of every family, set up one emperor; the legions in the East a second; those in Germany, perhaps a third; and the sword alone could decide the controversy. The condition of the people in that mighty monarchy was to be lamented, not because the choice of the emperor was never left to them, for that was impracticable, but because they never fell under any succession of masters who might regularly follow each other. As to the violence, and wars, and bloodshed, occasioned by every new settlement, these were not blameable because they were inevitable.

The house of Lancaster ruled in this island about sixty years; yet the partisans of the white rose seemed daily to multiply in England. The present establishment has taken place during a still longer period. Have all views of right in another family been utterly extinguished, even though scarce any man now alive had arrived at the years of discretion when it was expelled, or could have consented to its dominion, or have promised it allegiance? -- a sufficient indication, surely, of the general sentiment of mankind on this head. For we blame not the partisans of the abdicated family merely on account of the long time during which they have preserved their imaginary loyalty. We blame them for adhering to a family which we affirm has been justly expelled, and which, from the moment the new settlement took place, had forfeited all title to authority.

But would we have a more regular, at least a more philosophical, refutation of this principle of an original contract, or popular consent, perhaps the following observations may suffice.

All *moral* duties may be divided into two kinds. The *first* are those to which men are impelled by a natural instinct or immediate propensity which operates on them, independent of all ideas of obligation, and of all views either to public or private utility. Of this nature are love of children, gratitude to benefactors, pity to the unfortunate. When we reflect on the advantage which results to society from such humane instincts, we pay them the just tribute of moral approbation and esteem: but the person actuated by them feels their power and influence antecedent to any such reflection.

The *second* kind of moral duties are such as are not supported by any original instinct of nature, but are performed entirely from a sense of obligation, when we consider the necessities of human society, and the impossibility of supporting it, if these duties were neglected. It is thus *justice*, or a regard to the property of others, *fidelity*, or the observance of promises, become obligatory, and acquire an authority over mankind. For as it is evident that every man loves himself better than any other person, he is naturally impelled to extend his acquisitions as much as possible; and nothing can restrain him in this propensity but reflection and experience, by which he learns the pernicious effects of that license, and the total dissolution of society which must ensue from it. His original inclination, therefore, or instinct, is here checked and restrained by a subsequent judgment or observation.

The case is precisely the same with the political or civil duty of *allegiance* as with the natural duties of justice and fidelity. Our primary instincts lead us either to indulge ourselves in unlimited freedom, or to seek dominion over others; and it is reflection only which engages us to sacrifice such strong passions to the interests of peace and public order. A small degree of experience and observation suffices to teach us, that society cannot possibly be maintained without the authority of magistrates, and that this authority must soon fall into contempt where exact obedience is not paid to it. The observation of these general and obvious interests is the source of all allegiance, and of that moral obligation which we attribute to it.

What necessity, therefore, is there to found the duty of *allegiance* or obedience to magistrates on that of *fidelity* or a regard to promises, and to suppose, that it is the consent of each individual which subjects him to government, when it appears that both allegiance and fidelity stand precisely on the same foundation, and are both submitted to by mankind, on account of the apparent interests and necessities of human society? We are bound to obey our sovereign, it is said, because we have given a tacit promise to that purpose. But why are we bound to observe our promise? It must here be asserted, that the commerce and intercourse of mankind, which are of such mighty advantage, can have no security where men pay no regard to their engagements. In like manner, may it be said that men could not live at all in society, at least in a civilized society, without laws, and magistrates, and judges, to prevent the encroachments of the strong upon the weak, of the violent upon the just and equitable. The obligation to allegiance being of like force and authority with the obligation to fidelity, we gain nothing by resolving the one into the other. The general interests or necessities of society are sufficient to establish both.

If the reason be asked of that obedience, which we are bound to pay to government, I readily answer, *Because society could not otherwise subsist*; and this answer is clear and intelligible to all mankind. Your answer is, *Because we should keep our word*. But besides, that no body, till trained in a philosophical system, can either comprehend or relish this answer; besides this, I say, you find yourself embarrassed when it is asked, *Why we are bound to keep our word*? Nor can you give any answer but what would, immediately, without any circuit, have accounted for our obligation to allegiance.

But to whom is *allegiance due*? And who is our lawful sovereign? This question is often the most difficult of any, and liable to infinite discussions. When people are so happy that they can answer, *Our present sovereign, who inherits, in a direct line, from ancestors that have governed us for many ages*, this answer admits of no reply, even though historians, in tracing up to the remotest antiquity the origin of that royal family, may find, as commonly happens, that its first authority was derived from usurpation and violence. It is confessed that private justice, or the abstinence from the properties of others, is a most cardinal virtue. Yet reason tells us that there is no property in durable objects, such as lands or houses, when carefully examined in passing from hand to hand, but must, in some period, have been founded on fraud and injustice. The necessities of human society, neither in private nor public life, will allow of such an accurate inquiry; and there is no virtue or moral duty but what may, with facility, be refined away, if we indulge a false philosophy in sifting and scrutinizing it, by every captious rule of logic, in every light or position in which it may be placed.

The questions with regard to private property have filled infinite volumes of law and philosophy, if in both we add the commentators to the original text; and in the end, we may safely pronounce, that many of the rules there established are uncertain, ambiguous, and arbitrary. The like opinion may be formed with regard to the succession and rights of princes, and forms of government. Several cases no doubt occur, especially in the infancy of any constitution, which admit of no determination from the laws of justice and equity; and our historian Rapin pretends, that the controversy between Edward the Third and Philip de Valois was of this nature, and could be decided only by an appeal to heaven, that is, by war and violence.

Who shall tell me, whether Germanicus or Drusus ought to have succeeded to Tiberius, had he died while they were both alive, without naming any of them for his successor? Ought the right of adoption to be received as equivalent to that of blood, in a nation where it had the same effect in private families, and had already, in two instances, taken place in the public? Ought Germanicus to be esteemed the elder

son, because he was born before Drusus; or the younger, because he was adopted after the birth of his brother? Ought the right of the elder to be regarded in a nation, where he had no advantage in the succession of private families? Ought the Roman empire at that time to be deemed hereditary, because of two examples; or ought it, even so early, to be regarded as belonging to the stronger, or to the present possessor, as being founded on so recent an usurpation?

Commodus mounted the throne after a pretty long succession of excellent emperors, who had acquired their title, not by birth, or public election, but by the fictitious rite of adoption. That bloody debauchee being murdered by a conspiracy, suddenly formed between his wench and her gallant, who happened at that time to be *Prætorian Præfect*; these immediately deliberated about choosing a master to human kind, to speak in the style of those ages; and they cast their eyes on Pertinax. Before the tyrant's death was known, the *Præfect* went secretly to that senator, who, on the appearance of the soldiers, imagined that his execution had been ordered by Commodus. He was immediately saluted emperor by the officer and his attendants, cheerfully proclaimed by the populace, unwillingly submitted to by the guards, formally recognized by the senate, and passively received by the provinces and armies of the empire.

The discontent of the *Prætorian* bands broke out in a sudden sedition, which occasioned the murder of that excellent prince; and the world being now without a master, and without government, the guards thought proper to set the empire formally to sale. Julian, the purchaser, was proclaimed by the soldiers, recognized by the senate, and submitted to by the people; and must also have been submitted to by the provinces, had not the envy of the legions begotten opposition and resistance. Pescennius Niger in Syria elected himself emperor, gained the tumultuary consent of his army, and was attended with the secret good-will of the senate and people of Rome. Albinus in Britain found an equal right to set up his claim; but Severus, who governed Pannonia, prevailed in the end above both of them. That able politician and warrior, finding his own birth and dignity too much inferior to the imperial crown, professed, at first, an intention only of revenging the death of Pertinax. He marched as general into Italy, defeated Julian, and, without our being able to fix any precise commencement even of the soldiers' consent, he was from necessity acknowledged emperor by the senate and people, and fully established in his violent authority, by subduing Niger and Albinus.

Inter hæc Gordianus Cæsar (says Capitolinus, speaking of another period) *sublatus a militibus. Imperator est appellatus, quia non erat alius in præsentia*. It is to be remarked, that Gordian was a boy of fourteen years of age.

Frequent instances of a like nature occur in the history of the emperors; in that of Alexander's successors; and of many other countries: nor can any thing be more unhappy than a despotic government of this kind; where the succession is disjointed and irregular, and must be determined, on every vacancy, by force or election. In a free government, the matter is often unavoidable, and is also much less dangerous. The interests of liberty may there frequently lead the people, in their own defence, to alter the succession of the crown. And the constitution, being compounded of parts, may still maintain a sufficient stability, by resting on the aristocratical or democratical members, though the monarchical be altered, from time to time, in order to accommodate it to the former.

In an absolute government, when there is no legal prince who has a title to the throne, it may safely be determined to belong to the first occupant. Instances of this kind are but too frequent, especially in the eastern monarchies. When any race of princes expires, the will or destination of the last sovereign will

be regarded as a title. Thus the edict of Louis the XIVth, who called the bastard princes to the succession in case of the failure of all the legitimate princes, would, in such an event, have some authority. Thus the will of Charles the Second disposed of the whole Spanish monarchy. The cession of the ancient proprietor, especially when joined to conquest, is likewise deemed a good title. The general obligation, which binds us to government, is the interest and necessities of society; and this obligation is very strong. The determination of it to this or that particular prince, or form of government, is frequently more uncertain and dubious. Present possession has considerable authority in these cases, and greater than in private property; because of the disorders which attend all revolutions and changes of government.

We shall only observe, before we conclude, that though an appeal to general opinion may justly, in the speculative sciences of metaphysics, natural philosophy, or astronomy, be deemed unfair and inconclusive, yet in all questions with regard to morals, as well as criticism, there is really no other standard, by which any controversy can ever be decided. And nothing is a clearer proof, that a theory of this kind is erroneous, than to find, that it leads to paradoxes repugnant to the common sentiments of mankind, and to the practice and opinion of all nations and all ages. The doctrine, which founds all lawful government on an *original contract*, or consent of the people, is plainly of this kind; nor has the most noted of its partisans, in prosecution of it, scrupled to affirm, *that absolute monarchy is inconsistent with civil society, and so can be no form of civil government at all; and that the supreme power in a state cannot take from any man, by taxes and impositions, any part of his property, without his own consent or that of his representatives*. What authority any moral reasoning can have, which leads into opinions so wide of the general practice of mankind, in every place but this single kingdom, it is easy to determine.

The only passage I meet with in antiquity, where the obligation of obedience to government is ascribed to a promise, is in Plato's *Crito*; where Socrates refuses to escape from prison, because he had tacitly promised to obey the laws. Thus he builds a *Tory* consequence of passive obedience on a *Whig* foundation of the original contract.

New discoveries are not to be expected in these matters. If scarce any man, till very lately, ever imagined that government was founded on compact, it is certain that it cannot, in general, have any such foundation.

The crime of rebellion among the ancients was commonly expressed by the terms νεοτερίζειν, νουας ρες μολιρι [*novas res moliri*; to innovate].

UNIT FOUR: LIBERTY & JUSTICE

Liberty¹ is distinctly differentiated from freedom in that freedom is primarily, if not exclusively, the ability to do as one wills and what one has the power to do; whereas liberty concerns the absence of arbitrary restraints and takes into account the rights of all involved. As such, the exercise of liberty is subject to capability and limited by the rights of others.

The modern concept of political liberty has its origins in the Greek concepts of freedom and slavery. To be free, to the Greeks, was to not have a master, to be independent from a master (to live like one likes). That was the original Greek concept of freedom. It is closely linked with the concept of democracy, as Aristotle put it:

"This, then, is one note of liberty which all democrats affirm to be the principle of their state. Another is that a man should live as he likes. This, they say, is the privilege of a freeman, since, on the other hand, not to live as a man likes is the mark of a slave. This is the second characteristic of democracy, whence has arisen the claim of men to be ruled by none, if possible, or, if this is impossible, to rule and be ruled in turns; and so it contributes to the freedom based upon equality."

This applied only to free men. In Athens, for instance, women could not vote or hold office and were legally and socially dependent on a male relative.

The populations of the Persian Empire enjoyed some degree of freedom. Citizens of all religions and ethnic groups were given the same rights and had the same freedom of religion, women had the same rights as men, and slavery was abolished (550 BC). All the palaces of the kings of Persia were built by paid workers in an era when slaves typically did such work.

In the Buddhist Maurya Empire of ancient India, citizens of all religions and ethnic groups had some rights to freedom, tolerance, and equality. The need for tolerance on an egalitarian basis can be found in the Edicts of Ashoka the Great, which emphasize the importance of tolerance in public policy by the government. The slaughter or capture of prisoners of war also appears to have been condemned by Ashoka. Slavery also appears to have been non-existent in the Maurya Empire. However, according to Hermann Kulke and Dietmar Rothermund, "Ashoka's orders seem to have been resisted right from the beginning."

Roman law also embraced certain limited forms of liberty, even under the rule of the Roman Emperors. However, these liberties were accorded only to Roman citizens. Many of the liberties enjoyed under Roman law endured through the Middle Ages, but were enjoyed solely by the nobility, rarely by the common man. The idea of inalienable and universal liberties had to wait until the Age of Enlightenment.

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Liberty. (2017, July 23). In Wikipedia, The Free Encyclopedia. Retrieved 18:02, August 18, 2017, from <https://en.wikipedia.org/w/index.php?title=Liberty&oldid=792015427>

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The social contract theory, most influentially formulated by Hobbes, John Locke and Rousseau (though first suggested by Plato in *The Republic*), was among the first to provide a political classification of rights, in particular through the notion of sovereignty and of natural rights. The thinkers of the Enlightenment reasoned that law governed both heavenly and human affairs, and that law gave the king his power, rather than the king's power giving force to law. This conception of law would find its culmination in the ideas of Montesquieu. The conception of law as a relationship between individuals, rather than families, came to the fore, and with it the increasing focus on individual liberty as a fundamental reality, given by "Nature and Nature's God," which, in the ideal state, would be as universal as possible.

In *On Liberty*, John Stuart Mill sought to define the "...nature and limits of the power which can be legitimately exercised by society over the individual," and as such, he describes an inherent and continuous antagonism between liberty and authority and thus, the prevailing question becomes "how to make the fitting adjustment between individual independence and social control".

According to the *Concise Oxford Dictionary of Politics*, liberalism is "the belief that it is the aim of politics to preserve individual rights and to maximize freedom of choice". But they point out that there is considerable discussion about how to achieve those goals. Every discussion of freedom depends of three key components: who is free, what are they free to do, and what forces restrict their freedom. John Gray argues that the core belief of liberalism is toleration. Liberals allow others freedom to do what they want, in exchange for having the same freedom in return. This idea of freedom is personal rather than political. William Safire points out that liberalism is attacked by both the Right and the Left: by the Right for defending such practices as abortion, homosexuality, and atheism, by the Left for defending free enterprise and the rights of the individual over the collective.

According to the *Encyclopædia Britannica*, Libertarians hold liberty as their primary political value. Their approach to implementing liberty involves opposing any governmental coercion, aside from that which is necessary to prevent individuals from coercing each other.

According to republican theorists of freedom, like the historian Quentin Skinner or the philosopher Philip Pettit, one's liberty should not be viewed as the absence of interference in one's actions, but as non-domination. According to this view, which originates in the Roman Digest, to be a *liber homo*, a free man, means not being subject to another's arbitrary will, that is to say, dominated by another. They also cite Machiavelli who asserted that you must be a member of a free self-governing civil association, a republic, if you are to enjoy individual liberty.

The predominance of this view of liberty among parliamentarians during the English Civil War resulted in the creation of the liberal concept of freedom as non-interference in Thomas Hobbes' *Leviathan*.

Socialists view freedom as a concrete situation as opposed to a purely abstract ideal. Freedom involves agency to pursue one's creative interests unhindered by coercive social relationships that one is forced to engage in in order to survive under a given social system. From this perspective, freedom requires both the material economic conditions that make freedom possible alongside the social relationships and institutions conducive to freedom. As such, the socialist concept of freedom is a specific interpretation of the liberal concept of freedom.

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The socialist conception of freedom is closely related to the socialist view of creativity and individuality. Influenced by Karl Marx's concept of alienated labor, socialists understand freedom to be the ability for an individual to engage in creative work in the absence of alienation, where alienated labor refers to work people are forced to perform and un-alienated work refers to individuals pursuing their own creative interests.

For Karl Marx, meaningful freedom is only attainable in a communist society characterized by superabundance and free access, would eliminate the need for alienated labor and enable individuals to pursue their own creative interests, leaving them to develop their full potentialities. This goes alongside Marx's emphasis on the reduction of the average length of the workday to expand the "realm of freedom" for each person. Marx's notion of communist society and human freedom is thus radically individualistic.

Some authors have suggested that a virtuous culture must exist as a prerequisite for liberty. Benjamin Franklin stated that "only a virtuous people are capable of freedom. As nations become corrupt and vicious, they have more need of masters." Madison likewise declared: "To suppose that any form of government will secure liberty or happiness without any virtue in the people, is a chimerical idea." John Adams acknowledged: "Our constitution was made only for a moral and religious people. It is wholly inadequate to the government of any other."

Justice² is the legal or philosophical theory by which fairness is administered. The concept of justice differs in every culture. An early theory of justice was set out by the Ancient Greek philosopher Plato in his work *The Republic*. Advocates of divine command theory argue that justice issues from God. In the 17th century, theorists like John Locke argued for the theory of natural law. Thinkers in the social contract tradition argued that justice is derived from the mutual agreement of everyone concerned. In the 19th century, utilitarian thinkers including John Stuart Mill argued that justice is what has the best consequences. Theories of distributive justice concern what is distributed, between whom they are to be distributed, and what is the *proper* distribution. Egalitarians argued that justice can only exist within the coordinates of equality. John Rawls used a social contract argument to show that justice, and especially distributive justice, is a form of fairness. Property rights theorists (like Robert Nozick) take a deontological view of distributive justice and argue that property rights-based justice maximizes the overall wealth of an economic system. Theories of retributive justice are concerned with punishment for wrongdoing. Restorative justice (also sometimes called "reparative justice") is an approach to justice that focuses on restoring what is good, and necessarily focuses on the needs of victims and offenders.

² This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Justice. (2017, August 2). In Wikipedia, The Free Encyclopedia. Retrieved 18:02, August 18, 2017, from <https://en.wikipedia.org/w/index.php?title=Justice&oldid=793547991>

19 The Republic, Book I (Plato)

Plato¹ (/ˈplɛtəʊ/; Greek: Πλάτων *Plátōn*, pronounced [plá.tɔːn] in Classical Attic; 428/427 or 424/423 – 348/347 BC) was a philosopher in Classical Greece and the founder of the Academy in Athens, the first institution of higher learning in the Western world. He is widely considered the most pivotal figure in the development of philosophy, especially the Western tradition. Unlike nearly all of his philosophical contemporaries, Plato's entire work is believed to have survived intact for over 2,400 years. Others believe that the oldest extant manuscript dates to around AD 895, 1100 years after Plato's death. This makes it difficult to know exactly what Plato wrote.

Along with his teacher, Socrates, and his most famous student, Aristotle, Plato laid the very foundations of Western philosophy and science. Alfred North Whitehead once noted: "the safest general characterization of the European philosophical tradition is that it consists of a series of footnotes to Plato." In addition to being a foundational figure for Western science, philosophy, and mathematics, Plato has also often been cited as one of the founders of Western religion and spirituality. Plato's influence on Christianity is often thought to be mediated by his major influence on Saint Augustine of Hippo, one of the most important philosophers and theologians in the foundation of the Western thought. In the 19th century, the philosopher Nietzsche called Christianity "Platonism for the people". Numenius of Apamea viewed this differently, he called Plato the Hellenic Moses. This would justify the superiority of Christianity over Hellenism because Moses predates Plato—thus the original source of this wisdom is the root of Christianity and not Hellenistic culture.

Plato was the innovator of the written dialogue and dialectic forms in philosophy. Plato appears to have been the founder of Western political philosophy, with his *Republic*, and *Laws* among other dialogues, providing some of the earliest extant treatments of political questions from a philosophical perspective. Plato's own most decisive philosophical influences are usually thought to have been Socrates, Parmenides, Heraclitus and Pythagoras, although few of his predecessors' works remain extant and much of what we know about these figures today derives from Plato himself.

The *Stanford Encyclopedia of Philosophy* describes Plato as "...one of the most dazzling writers in the Western literary tradition and one of the most penetrating, wide-ranging, and influential authors in the history of philosophy. ... He was not the first thinker or writer to whom the word "philosopher" should be applied. But he was so self-conscious about how philosophy should be conceived, and what its scope and ambitions properly are, and he so transformed the intellectual currents with which he grappled, that the subject of philosophy, as it is often conceived—a rigorous and systematic examination of ethical, political, metaphysical, and epistemological issues, armed with a distinctive method—can be called his invention. Few other authors in the history of Western philosophy approximate him in depth and range: perhaps only Aristotle (who studied with him), Aquinas and Kant would be generally agreed to be of the same rank."

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Plato. (2017, August 15). In Wikipedia, The Free Encyclopedia. Retrieved 18:09, August 18, 2017, from <https://en.wikipedia.org/w/index.php?title=Plato&oldid=795632169>

*The Republic*²

Book I

Socrates - GLAUCON

I went down yesterday to the Piraeus with Glaucon the son of Ariston, that I might offer up my prayers to the goddess; and also because I wanted to see in what manner they would celebrate the festival, which was a new thing. I was delighted with the procession of the inhabitants; but that of the Thracians was equally, if not more, beautiful. When we had finished our prayers and viewed the spectacle, we turned in the direction of the city; and at that instant Polemarchus the son of Cephalus chanced to catch sight of us from a distance as we were starting on our way home, and told his servant to run and bid us wait for him. The servant took hold of me by the cloak behind, and said: Polemarchus desires you to wait.

I turned round, and asked him where his master was.
There he is, said the youth, coming after you, if you will only wait.

Certainly we will, said Glaucon; and in a few minutes Polemarchus appeared, and with him Adeimantus, Glaucon's brother, Niceratus the son of Nicias, and several others who had been at the procession.

Socrates - POLEMARCHUS - GLAUCON - ADEIMANTUS

Polemarchus said to me: I perceive, Socrates, that you and our companion are already on your way to the city.

You are not far wrong, I said.
But do you see, he rejoined, how many we are?
Of course.
And are you stronger than all these? for if not, you will have to remain where you are.

May there not be the alternative, I said, that we may persuade you to let us go?

But can you persuade us, if we refuse to listen to you? he said.
Certainly not, replied Glaucon.
Then we are not going to listen; of that you may be assured.
Adeimantus added: Has no one told you of the torch-race on horseback in honour of the goddess which will take place in the evening?

With horses! I replied: That is a novelty. Will horsemen carry torches and pass them one to another during the race?

Yes, said Polemarchus, and not only so, but a festival will be celebrated at night, which you certainly ought to see. Let us rise soon after supper and see this festival; there will be a gathering of young men, and we will have a good talk. Stay then, and do not be perverse.

² Plato, 360 BCE. Translated by William Jowett, 1910.

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Glaucou said: I suppose, since you insist, that we must.
Very good, I replied.

Glaucou - CEPHALUS - SOCRATES

Accordingly we went with Polemarchus to his house; and there we found his brothers Lysias and Euthydemus, and with them Thrasymachus the Chalcedonian, Charmantides the Paeanian, and Cleitophon the son of Aristonymus. There too was Cephalus the father of Polemarchus, whom I had not seen for a long time, and I thought him very much aged. He was seated on a cushioned chair, and had a garland on his head, for he had been sacrificing in the court; and there were some other chairs in the room arranged in a semicircle, upon which we sat down by him. He saluted me eagerly, and then he said: --

You don't come to see me, Socrates, as often as you ought: If I were still able to go and see you I would not ask you to come to me. But at my age I can hardly get to the city, and therefore you should come oftener to the Piraeus. For let me tell you, that the more the pleasures of the body fade away, the greater to me is the pleasure and charm of conversation. Do not then deny my request, but make our house your resort and keep company with these young men; we are old friends, and you will be quite at home with us.

I replied: There is nothing which for my part I like better, Cephalus, than conversing with aged men; for I regard them as travellers who have gone a journey which I too may have to go, and of whom I ought to enquire, whether the way is smooth and easy, or rugged and difficult. And this is a question which I should like to ask of you who have arrived at that time which the poets call the 'threshold of old age' --Is life harder towards the end, or what report do you give of it?

I will tell you, Socrates, he said, what my own feeling is. Men of my age flock together; we are birds of a feather, as the old proverb says; and at our meetings the tale of my acquaintance commonly is --I cannot eat, I cannot drink; the pleasures of youth and love are fled away: there was a good time once, but now that is gone, and life is no longer life. Some complain of the slights which are put upon them by relations, and they will tell you sadly of how many evils their old age is the cause. But to me, Socrates, these complainers seem to blame that which is not really in fault. For if old age were the cause, I too being old, and every other old man, would have felt as they do. But this is not my own experience, nor that of others whom I have known. How well I remember the aged poet Sophocles, when in answer to the question, How does love suit with age, Sophocles, --are you still the man you were? Peace, he replied; most gladly have I escaped the thing of which you speak; I feel as if I had escaped from a mad and furious master. His words have often occurred to my mind since, and they seem as good to me now as at the time when he uttered them. For certainly old age has a great sense of calm and freedom; when the passions relax their hold, then, as Sophocles says, we are freed from the grasp not of one mad master only, but of many. The truth is, Socrates, that these regrets, and also the complaints about relations, are to be attributed to the same cause, which is not old age, but men's characters and tempers; for he who is of a calm and happy nature will hardly feel the pressure of age, but to him who is of an opposite disposition youth and age are equally a burden.

I listened in admiration, and wanting to draw him out, that he might go on --Yes, Cephalus, I said: but I rather suspect that people in general are not convinced by you when you speak thus; they think that old

age sits lightly upon you, not because of your happy disposition, but because you are rich, and wealth is well known to be a great comforter.

You are right, he replied; they are not convinced: and there is something in what they say; not, however, so much as they imagine. I might answer them as Themistocles answered the Seriphian who was abusing him and saying that he was famous, not for his own merits but because he was an Athenian: 'If you had been a native of my country or I of yours, neither of us would have been famous.' And to those who are not rich and are impatient of old age, the same reply may be made; for to the good poor man old age cannot be a light burden, nor can a bad rich man ever have peace with himself.

May I ask, Cephalus, whether your fortune was for the most part inherited or acquired by you?

Acquired! Socrates; do you want to know how much I acquired? In the art of making money I have been midway between my father and grandfather: for my grandfather, whose name I bear, doubled and trebled the value of his patrimony, that which he inherited being much what I possess now; but my father Lysanias reduced the property below what it is at present: and I shall be satisfied if I leave to these my sons not less but a little more than I received.

That was why I asked you the question, I replied, because I see that you are indifferent about money, which is a characteristic rather of those who have inherited their fortunes than of those who have acquired them; the makers of fortunes have a second love of money as a creation of their own, resembling the affection of authors for their own poems, or of parents for their children, besides that natural love of it for the sake of use and profit which is common to them and all men. And hence they are very bad company, for they can talk about nothing but the praises of wealth. That is true, he said.

Yes, that is very true, but may I ask another question? What do you consider to be the greatest blessing which you have reaped from your wealth?

One, he said, of which I could not expect easily to convince others. For let me tell you, Socrates, that when a man thinks himself to be near death, fears and cares enter into his mind which he never had before; the tales of a world below and the punishment which is exacted there of deeds done here were once a laughing matter to him, but now he is tormented with the thought that they may be true: either from the weakness of age, or because he is now drawing nearer to that other place, he has a clearer view of these things; suspicions and alarms crowd thickly upon him, and he begins to reflect and consider what wrongs he has done to others. And when he finds that the sum of his transgressions is great he will many a time like a child start up in his sleep for fear, and he is filled with dark forebodings. But to him who is conscious of no sin, sweet hope, as Pindar charmingly says, is the kind nurse of his age:

Hope, he says, cherishes the soul of him who lives in justice and holiness and is the nurse of his age and the companion of his journey; --hope which is mightiest to sway the restless soul of man.

How admirable are his words! And the great blessing of riches, I do not say to every man, but to a good man, is, that he has had no occasion to deceive or to defraud others, either intentionally or unintentionally; and when he departs to the world below he is not in any apprehension about offerings due to the gods or debts which he owes to men. Now to this peace of mind the possession of wealth greatly contributes; and therefore I say, that, setting one thing against another, of the many advantages

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which wealth has to give, to a man of sense this is in my opinion the greatest.

Well said, Cephalus, I replied; but as concerning justice, what is it? --to speak the truth and to pay your debts --no more than this? And even to this are there not exceptions? Suppose that a friend when in his right mind has deposited arms with me and he asks for them when he is not in his right mind, ought I to give them back to him? No one would say that I ought or that I should be right in doing so, any more than they would say that I ought always to speak the truth to one who is in his condition.

You are quite right, he replied.

But then, I said, speaking the truth and paying your debts is not a correct definition of justice.

Cephalus - SOCRATES - POLEMARCHUS

Quite correct, Socrates, if Simonides is to be believed, said Polemarchus interposing.

I fear, said Cephalus, that I must go now, for I have to look after the sacrifices, and I hand over the argument to Polemarchus and the company.

Is not Polemarchus your heir? I said.

To be sure, he answered, and went away laughing to the sacrifices.

Socrates - POLEMARCHUS

Tell me then, O thou heir of the argument, what did Simonides say, and according to you truly say, about justice?

He said that the repayment of a debt is just, and in saying so he appears to me to be right.

I should be sorry to doubt the word of such a wise and inspired man, but his meaning, though probably clear to you, is the reverse of clear to me. For he certainly does not mean, as we were now saying that I ought to return a return a deposit of arms or of anything else to one who asks for it when he is not in his right senses; and yet a deposit cannot be denied to be a debt.

True.

Then when the person who asks me is not in his right mind I am by no means to make the return?

Certainly not.

When Simonides said that the repayment of a debt was justice, he did not mean to include that case?

Certainly not; for he thinks that a friend ought always to do good to a friend and never evil.

You mean that the return of a deposit of gold which is to the injury of the receiver, if the two parties are friends, is not the repayment of a debt, --that is what you would imagine him to say?

Yes.

And are enemies also to receive what we owe to them?

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To be sure, he said, they are to receive what we owe them, and an enemy, as I take it, owes to an enemy that which is due or proper to him --that is to say, evil.

Simonides, then, after the manner of poets, would seem to have spoken darkly of the nature of justice; for he really meant to say that justice is the giving to each man what is proper to him, and this he termed a debt.

That must have been his meaning, he said.

By heaven! I replied; and if we asked him what due or proper thing is given by medicine, and to whom, what answer do you think that he would make to us?

He would surely reply that medicine gives drugs and meat and drink to human bodies.

And what due or proper thing is given by cookery, and to what?

Seasoning to food.

And what is that which justice gives, and to whom?

If, Socrates, we are to be guided at all by the analogy of the preceding instances, then justice is the art which gives good to friends and evil to enemies.

That is his meaning then?

I think so.

And who is best able to do good to his friends and evil to his enemies in time of sickness?

The physician.

Or when they are on a voyage, amid the perils of the sea?

The pilot.

And in what sort of actions or with a view to what result is the just man most able to do harm to his enemy and good to his friends?

In going to war against the one and in making alliances with the other.

But when a man is well, my dear Polemarchus, there is no need of a physician?

No.

And he who is not on a voyage has no need of a pilot?

No.

Then in time of peace justice will be of no use?

I am very far from thinking so.

You think that justice may be of use in peace as well as in war?

Yes.

Like husbandry for the acquisition of corn?

Yes.

Or like shoemaking for the acquisition of shoes, --that is what you mean?

Yes.

And what similar use or power of acquisition has justice in time of peace?

POLITICAL PHILOSOPHY READER

In contracts, Socrates, justice is of use.
And by contracts you mean partnerships?
Exactly.

But is the just man or the skilful player a more useful and better partner at a game of draughts?

The skilful player.

And in the laying of bricks and stones is the just man a more useful or better partner than the builder?

Quite the reverse.

Then in what sort of partnership is the just man a better partner than the harp-player, as in playing the harp the harp-player is certainly a better partner than the just man?

In a money partnership.

Yes, Polemarchus, but surely not in the use of money; for you do not want a just man to be your counsellor the purchase or sale of a horse; a man who is knowing about horses would be better for that, would he not?

Certainly.

And when you want to buy a ship, the shipwright or the pilot would be better?

True.

Then what is that joint use of silver or gold in which the just man is to be preferred?

When you want a deposit to be kept safely.

You mean when money is not wanted, but allowed to lie?

Precisely.

That is to say, justice is useful when money is useless?

That is the inference.

And when you want to keep a pruning-hook safe, then justice is useful to the individual and to the state; but when you want to use it, then the art of the vine-dresser?

Clearly.

And when you want to keep a shield or a lyre, and not to use them, you would say that justice is useful; but when you want to use them, then the art of the soldier or of the musician?

Certainly.

And so of all the other things; --justice is useful when they are useless, and useless when they are useful?

That is the inference.

Then justice is not good for much. But let us consider this further point: Is not he who can best strike a blow in a boxing match or in any kind of fighting best able to ward off a blow?

Certainly.

And he who is most skilful in preventing or escaping from a disease is best able to create one?

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True.

And he is the best guard of a camp who is best able to steal a march upon the enemy?

Certainly.

Then he who is a good keeper of anything is also a good thief?

That, I suppose, is to be inferred.

Then if the just man is good at keeping money, he is good at stealing it.

That is implied in the argument.

Then after all the just man has turned out to be a thief. And this is a lesson which I suspect you must have learnt out of Homer; for he, speaking of Autolycus, the maternal grandfather of Odysseus, who is a favourite of his, affirms that

He was excellent above all men in theft and perjury. And so, you and Homer and Simonides are agreed that justice is an art of theft; to be practised however 'for the good of friends and for the harm of enemies,' --that was what you were saying?

No, certainly not that, though I do not now know what I did say; but I still stand by the latter words.

Well, there is another question: By friends and enemies do we mean those who are so really, or only in seeming?

Surely, he said, a man may be expected to love those whom he thinks good, and to hate those whom he thinks evil.

Yes, but do not persons often err about good and evil: many who are not good seem to be so, and conversely?

That is true.

Then to them the good will be enemies and the evil will be their friends? True.

And in that case they will be right in doing good to the evil and evil to the good?

Clearly.

But the good are just and would not do an injustice?

True.

Then according to your argument it is just to injure those who do no wrong?

Nay, Socrates; the doctrine is immoral.

Then I suppose that we ought to do good to the just and harm to the unjust?

I like that better.

But see the consequence: --Many a man who is ignorant of human nature has friends who are bad friends, and in that case he ought to do harm to them; and he has good enemies whom he ought to benefit; but, if so, we shall be saying the very opposite of that which we affirmed to be the meaning of

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Simonides.

Very true, he said; and I think that we had better correct an error into which we seem to have fallen in the use of the words 'friend' and 'enemy.'

What was the error, Polemarchus? I asked.

We assumed that he is a friend who seems to be or who is thought good.

And how is the error to be corrected?

We should rather say that he is a friend who is, as well as seems, good; and that he who seems only, and is not good, only seems to be and is not a friend; and of an enemy the same may be said.

You would argue that the good are our friends and the bad our enemies?

Yes.

And instead of saying simply as we did at first, that it is just to do good to our friends and harm to our enemies, we should further say: It is just to do good to our friends when they are good and harm to our enemies when they are evil?

Yes, that appears to me to be the truth.

But ought the just to injure any one at all?

Undoubtedly he ought to injure those who are both wicked and his enemies.

When horses are injured, are they improved or deteriorated?

The latter.

Deteriorated, that is to say, in the good qualities of horses, not of dogs?

Yes, of horses.

And dogs are deteriorated in the good qualities of dogs, and not of horses?

Of course.

And will not men who are injured be deteriorated in that which is the proper virtue of man?

Certainly.

And that human virtue is justice?

To be sure.

Then men who are injured are of necessity made unjust?

That is the result.

But can the musician by his art make men unmusical?

Certainly not.

Or the horseman by his art make them bad horsemen?

Impossible.

And can the just by justice make men unjust, or speaking general can the good by virtue make them bad?

Assuredly not.

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Any more than heat can produce cold?

It cannot.

Or drought moisture?

Clearly not.

Nor can the good harm any one?

Impossible.

And the just is the good?

Certainly.

Then to injure a friend or any one else is not the act of a just man, but of the opposite, who is the unjust?

I think that what you say is quite true, Socrates.

Then if a man says that justice consists in the repayment of debts, and that good is the debt which a man owes to his friends, and evil the debt which he owes to his enemies, --to say this is not wise; for it is not true, if, as has been clearly shown, the injuring of another can be in no case just.

I agree with you, said Polemarchus.

Then you and I are prepared to take up arms against any one who attributes such a saying to Simonides or Bias or Pittacus, or any other wise man or seer?

I am quite ready to do battle at your side, he said.

Shall I tell you whose I believe the saying to be?

Whose?

I believe that Periander or Perdiccas or Xerxes or Ismenias the Theban, or some other rich and mighty man, who had a great opinion of his own power, was the first to say that justice is 'doing good to your friends and harm to your enemies.'

Most true, he said.

Yes, I said; but if this definition of justice also breaks down, what other can be offered?

Several times in the course of the discussion Thrasyarchus had made an attempt to get the argument into his own hands, and had been put down by the rest of the company, who wanted to hear the end. But when Polemarchus and I had done speaking and there was a pause, he could no longer hold his peace; and, gathering himself up, he came at us like a wild beast, seeking to devour us. We were quite panic-stricken at the sight of him.

Socrates - POLEMARCHUS - THRASYARCHUS

He roared out to the whole company: What folly. Socrates, has taken possession of you all? And why, sillybillies, do you knock under to one another? I say that if you want really to know what justice is, you should not only ask but answer, and you should not seek honour to yourself from the refutation of an opponent, but have your own answer; for there is many a one who can ask and cannot answer. And now I will not have you say that justice is duty or advantage or profit or gain or interest, for this sort of nonsense will not do for me; I must have clearness and accuracy.

I was panic-stricken at his words, and could not look at him without trembling. Indeed I believe that if I had not fixed my eye upon him, I should have been struck dumb: but when I saw his fury rising, I

looked at him first, and was therefore able to reply to him.

Thrasymachus, I said, with a quiver, don't be hard upon us. Polemarchus and I may have been guilty of a little mistake in the argument, but I can assure you that the error was not intentional. If we were seeking for a piece of gold, you would not imagine that we were 'knocking under to one another,' and so losing our chance of finding it. And why, when we are seeking for justice, a thing more precious than many pieces of gold, do you say that we are weakly yielding to one another and not doing our utmost to get at the truth? Nay, my good friend, we are most willing and anxious to do so, but the fact is that we cannot. And if so, you people who know all things should pity us and not be angry with us.

How characteristic of Socrates! he replied, with a bitter laugh; --that's your ironical style! Did I not foresee --have I not already told you, that whatever he was asked he would refuse to answer, and try irony or any other shuffle, in order that he might avoid answering?

You are a philosopher, Thrasymachus, I replied, and well know that if you ask a person what numbers make up twelve, taking care to prohibit him whom you ask from answering twice six, or three times four, or six times two, or four times three, 'for this sort of nonsense will not do for me,' --then obviously, that is your way of putting the question, no one can answer you. But suppose that he were to retort, 'Thrasymachus, what do you mean? If one of these numbers which you interdict be the true answer to the question, am I falsely to say some other number which is not the right one? --is that your meaning?' - How would you answer him?

Just as if the two cases were at all alike! he said.

Why should they not be? I replied; and even if they are not, but only appear to be so to the person who is asked, ought he not to say what he thinks, whether you and I forbid him or not?

I presume then that you are going to make one of the interdicted answers?

I dare say that I may, notwithstanding the danger, if upon reflection I approve of any of them.

But what if I give you an answer about justice other and better, he said, than any of these? What do you deserve to have done to you?

Done to me! --as becomes the ignorant, I must learn from the wise --that is what I deserve to have done to me.

What, and no payment! a pleasant notion!
I will pay when I have the money, I replied.

Socrates - THRASYMACHUS - GLAUCON

But you have, Socrates, said Glaucon: and you, Thrasymachus, need be under no anxiety about money, for we will all make a contribution for Socrates.

Yes, he replied, and then Socrates will do as he always does --refuse to answer himself, but take and pull to pieces the answer of some one else.

Why, my good friend, I said, how can any one answer who knows, and says that he knows, just nothing; and who, even if he has some faint notions of his own, is told by a man of authority not to utter them? The natural thing is, that the speaker should be some one like yourself who professes to know and can tell what he knows. Will you then kindly answer, for the edification of the company and of myself ?

Glaucon and the rest of the company joined in my request and Thrasymachus, as any one might see, was in reality eager to speak; for he thought that he had an excellent answer, and would distinguish himself. But at first he to insist on my answering; at length he consented to begin. Behold, he said, the wisdom of Socrates; he refuses to teach himself, and goes about learning of others, to whom he never even says thank you.

That I learn of others, I replied, is quite true; but that I am ungrateful I wholly deny. Money I have none, and therefore I pay in praise, which is all I have: and how ready I am to praise any one who appears to me to speak well you will very soon find out when you answer; for I expect that you will answer well.

Listen, then, he said; I proclaim that justice is nothing else than the interest of the stronger. And now why do you not me? But of course you won't.

Let me first understand you, I replied. justice, as you say, is the interest of the stronger. What, Thrasymachus, is the meaning of this? You cannot mean to say that because Polydamas, the pancratiast, is stronger than we are, and finds the eating of beef conducive to his bodily strength, that to eat beef is therefore equally for our good who are weaker than he is, and right and just for us?

That's abominable of you, Socrates; you take the words in the sense which is most damaging to the argument.

Not at all, my good sir, I said; I am trying to understand them; and I wish that you would be a little clearer.

Well, he said, have you never heard that forms of government differ; there are tyrannies, and there are democracies, and there are aristocracies?

Yes, I know.

And the government is the ruling power in each state?

Certainly.

And the different forms of government make laws democratical, aristocratical, tyrannical, with a view to their several interests; and these laws, which are made by them for their own interests, are the justice which they deliver to their subjects, and him who transgresses them they punish as a breaker of the law, and unjust. And that is what I mean when I say that in all states there is the same principle of justice, which is the interest of the government; and as the government must be supposed to have power, the only reasonable conclusion is, that everywhere there is one principle of justice, which is the interest of the stronger.

Now I understand you, I said; and whether you are right or not I will try to discover. But let me remark, that in defining justice you have yourself used the word 'interest' which you forbade me to use. It is true,

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however, that in your definition the words 'of the stronger' are added.

A small addition, you must allow, he said.

Great or small, never mind about that: we must first enquire whether what you are saying is the truth. Now we are both agreed that justice is interest of some sort, but you go on to say 'of the stronger'; about this addition I am not so sure, and must therefore consider further.

Proceed.

I will; and first tell me, Do you admit that it is just or subjects to obey their rulers?

I do.

But are the rulers of states absolutely infallible, or are they sometimes liable to err?

To be sure, he replied, they are liable to err.

Then in making their laws they may sometimes make them rightly, and sometimes not?

True.

When they make them rightly, they make them agreeably to their interest; when they are mistaken, contrary to their interest; you admit that?

Yes.

And the laws which they make must be obeyed by their subjects, --and that is what you call justice?

Doubtless.

Then justice, according to your argument, is not only obedience to the interest of the stronger but the reverse?

What is that you are saying? he asked.

I am only repeating what you are saying, I believe. But let us consider: Have we not admitted that the rulers may be mistaken about their own interest in what they command, and also that to obey them is justice? Has not that been admitted?

Yes.

Then you must also have acknowledged justice not to be for the interest of the stronger, when the rulers unintentionally command things to be done which are to their own injury. For if, as you say, justice is the obedience which the subject renders to their commands, in that case, O wisest of men, is there any escape from the conclusion that the weaker are commanded to do, not what is for the interest, but what is for the injury of the stronger?

Nothing can be clearer, Socrates, said Polemarchus.

Socrates - CLEITOPHON - POLEMARCHUS - THRASYMACHUS

Yes, said Cleitophon, interposing, if you are allowed to be his witness.

But there is no need of any witness, said Polemarchus, for Thrasymachus himself acknowledges that

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rulers may sometimes command what is not for their own interest, and that for subjects to obey them is justice.

Yes, Polemarchus, --Thrasymachus said that for subjects to do what was commanded by their rulers is just.

Yes, Cleitophon, but he also said that justice is the interest of the stronger, and, while admitting both these propositions, he further acknowledged that the stronger may command the weaker who are his subjects to do what is not for his own interest; whence follows that justice is the injury quite as much as the interest of the stronger.

But, said Cleitophon, he meant by the interest of the stronger what the stronger thought to be his interest, --this was what the weaker had to do; and this was affirmed by him to be justice.

Those were not his words, rejoined Polemarchus.

Socrates - THRASYMACHUS

Never mind, I replied, if he now says that they are, let us accept his statement. Tell me, Thrasymachus, I said, did you mean by justice what the stronger thought to be his interest, whether really so or not?

Certainly not, he said. Do you suppose that I call him who is mistaken the stronger at the time when he is mistaken?

Yes, I said, my impression was that you did so, when you admitted that the ruler was not infallible but might be sometimes mistaken.

You argue like an informer, Socrates. Do you mean, for example, that he who is mistaken about the sick is a physician in that he is mistaken? or that he who errs in arithmetic or grammar is an arithmetician or grammarian at the time when he is making the mistake, in respect of the mistake? True, we say that the physician or arithmetician or grammarian has made a mistake, but this is only a way of speaking; for the fact is that neither the grammarian nor any other person of skill ever makes a mistake in so far as he is what his name implies; they none of them err unless their skill fails them, and then they cease to be skilled artists. No artist or sage or ruler errs at the time when he is what his name implies; though he is commonly said to err, and I adopted the common mode of speaking. But to be perfectly accurate, since you are such a lover of accuracy, we should say that the ruler, in so far as he is the ruler, is unerring, and, being unerring, always commands that which is for his own interest; and the subject is required to execute his commands; and therefore, as I said at first and now repeat, justice is the interest of the stronger.

Indeed, Thrasymachus, and do I really appear to you to argue like an informer?

Certainly, he replied.

And you suppose that I ask these questions with any design of injuring you in the argument?

Nay, he replied, 'suppose' is not the word --I know it; but you will be found out, and by sheer force of

argument you will never prevail.

I shall not make the attempt, my dear man; but to avoid any misunderstanding occurring between us in future, let me ask, in what sense do you speak of a ruler or stronger whose interest, as you were saying, he being the superior, it is just that the inferior should execute --is he a ruler in the popular or in the strict sense of the term?

In the strictest of all senses, he said. And now cheat and play the informer if you can; I ask no quarter at your hands. But you never will be able, never.

And do you imagine, I said, that I am such a madman as to try and cheat, Thrasymachus? I might as well shave a lion.

Why, he said, you made the attempt a minute ago, and you failed.

Enough, I said, of these civilities. It will be better that I should ask you a question: Is the physician, taken in that strict sense of which you are speaking, a healer of the sick or a maker of money? And remember that I am now speaking of the true physician.

A healer of the sick, he replied.

And the pilot --that is to say, the true pilot --is he a captain of sailors or a mere sailor?

A captain of sailors.

The circumstance that he sails in the ship is not to be taken into account; neither is he to be called a sailor; the name pilot by which he is distinguished has nothing to do with sailing, but is significant of his skill and of his authority over the sailors.

Very true, he said.

Now, I said, every art has an interest?

Certainly.

For which the art has to consider and provide?

Yes, that is the aim of art.

And the interest of any art is the perfection of it --this and nothing else?

What do you mean?

I mean what I may illustrate negatively by the example of the body. Suppose you were to ask me whether the body is self-sufficing or has wants, I should reply: Certainly the body has wants; for the body may be ill and require to be cured, and has therefore interests to which the art of medicine ministers; and this is the origin and intention of medicine, as you will acknowledge. Am I not right?

Quite right, he replied.

But is the art of medicine or any other art faulty or deficient in any quality in the same way that the eye may be deficient in sight or the ear fail of hearing, and therefore requires another art to provide for the interests of seeing and hearing --has art in itself, I say, any similar liability to fault or defect, and does every art require another supplementary art to provide for its interests, and that another and another without end? Or have the arts to look only after their own interests? Or have they no need either of themselves or of another? --having no faults or defects, they have no need to correct them, either by the

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exercise of their own art or of any other; they have only to consider the interest of their subject-matter. For every art remains pure and faultless while remaining true --that is to say, while perfect and unimpaired. Take the words in your precise sense, and tell me whether I am not right."

Yes, clearly.

Then medicine does not consider the interest of medicine, but the interest of the body?

True, he said.

Nor does the art of horsemanship consider the interests of the art of horsemanship, but the interests of the horse; neither do any other arts care for themselves, for they have no needs; they care only for that which is the subject of their art?

True, he said.

But surely, Thrasymachus, the arts are the superiors and rulers of their own subjects?

To this he assented with a good deal of reluctance.

Then, I said, no science or art considers or enjoins the interest of the stronger or superior, but only the interest of the subject and weaker?

He made an attempt to contest this proposition also, but finally acquiesced.

Then, I continued, no physician, in so far as he is a physician, considers his own good in what he prescribes, but the good of his patient; for the true physician is also a ruler having the human body as a subject, and is not a mere money-maker; that has been admitted?

Yes.

And the pilot likewise, in the strict sense of the term, is a ruler of sailors and not a mere sailor?

That has been admitted.

And such a pilot and ruler will provide and prescribe for the interest of the sailor who is under him, and not for his own or the ruler's interest?

He gave a reluctant 'Yes.'

Then, I said, Thrasymachus, there is no one in any rule who, in so far as he is a ruler, considers or enjoins what is for his own interest, but always what is for the interest of his subject or suitable to his art; to that he looks, and that alone he considers in everything which he says and does.

When we had got to this point in the argument, and every one saw that the definition of justice had been completely upset, Thrasymachus, instead of replying to me, said: Tell me, Socrates, have you got a nurse?

Why do you ask such a question, I said, when you ought rather to be answering?

Because she leaves you to snivel, and never wipes your nose: she has not even taught you to know the shepherd from the sheep.

What makes you say that? I replied.

Because you fancy that the shepherd or neatherd fattens of tends the sheep or oxen with a view to their own good and not to the good of himself or his master; and you further imagine that the rulers of states, if they are true rulers, never think of their subjects as sheep, and that they are not studying their own advantage day and night. Oh, no; and so entirely astray are you in your ideas about the just and unjust as not even to know that justice and the just are in reality another's good; that is to say, the interest of the ruler and stronger, and the loss of the subject and servant; and injustice the opposite; for the unjust is lord over the truly simple and just: he is the stronger, and his subjects do what is for his interest, and minister to his happiness, which is very far from being their own. Consider further, most foolish Socrates, that the just is always a loser in comparison with the unjust. First of all, in private contracts: wherever the unjust is the partner of the just you will find that, when the partnership is dissolved, the unjust man has always more and the just less. Secondly, in their dealings with the State: when there is an income tax, the just man will pay more and the unjust less on the same amount of income; and when there is anything to be received the one gains nothing and the other much. Observe also what happens when they take an office; there is the just man neglecting his affairs and perhaps suffering other losses, and getting nothing out of the public, because he is just; moreover he is hated by his friends and acquaintance for refusing to serve them in unlawful ways. But all this is reversed in the case of the unjust man. I am speaking, as before, of injustice on a large scale in which the advantage of the unjust is more apparent; and my meaning will be most clearly seen if we turn to that highest form of injustice in which the criminal is the happiest of men, and the sufferers or those who refuse to do injustice are the most miserable --that is to say tyranny, which by fraud and force takes away the property of others, not little by little but wholesale; comprehending in one, things sacred as well as profane, private and public; for which acts of wrong, if he were detected perpetrating any one of them singly, he would be punished and incur great disgrace --they who do such wrong in particular cases are called robbers of temples, and man-stealers and burglars and swindlers and thieves. But when a man besides taking away the money of the citizens has made slaves of them, then, instead of these names of reproach, he is termed happy and blessed, not only by the citizens but by all who hear of his having achieved the consummation of injustice. For mankind censure injustice, fearing that they may be the victims of it and not because they shrink from committing it. And thus, as I have shown, Socrates, injustice, when on a sufficient scale, has more strength and freedom and mastery than justice; and, as I said at first, justice is the interest of the stronger, whereas injustice is a man's own profit and interest.

Thrasymachus, when he had thus spoken, having, like a bathman, deluged our ears with his words, had a mind to go away. But the company would not let him; they insisted that he should remain and defend his position; and I myself added my own humble request that he would not leave us. Thrasymachus, I said to him, excellent man, how suggestive are your remarks! And are you going to run away before you have fairly taught or learned whether they are true or not? Is the attempt to determine the way of man's life so small a matter in your eyes --to determine how life may be passed by each one of us to the greatest advantage?

And do I differ from you, he said, as to the importance of the enquiry?

You appear rather, I replied, to have no care or thought about us, Thrasymachus --whether we live better or worse from not knowing what you say you know, is to you a matter of indifference. Prithee, friend, do not keep your knowledge to yourself; we are a large party; and any benefit which you confer upon us will be amply rewarded. For my own part I openly declare that I am not convinced, and that I do not

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believe injustice to be more gainful than justice, even if uncontrolled and allowed to have free play. For, granting that there may be an unjust man who is able to commit injustice either by fraud or force, still this does not convince me of the superior advantage of injustice, and there may be others who are in the same predicament with myself. Perhaps we may be wrong; if so, you in your wisdom should convince us that we are mistaken in preferring justice to injustice.

And how am I to convince you, he said, if you are not already convinced by what I have just said; what more can I do for you? Would you have me put the proof bodily into your souls?

Heaven forbid! I said; I would only ask you to be consistent; or, if you change, change openly and let there be no deception. For I must remark, Thrasymachus, if you will recall what was previously said, that although you began by defining the true physician in an exact sense, you did not observe a like exactness when speaking of the shepherd; you thought that the shepherd as a shepherd tends the sheep not with a view to their own good, but like a mere diner or banqueter with a view to the pleasures of the table; or, again, as a trader for sale in the market, and not as a shepherd. Yet surely the art of the shepherd is concerned only with the good of his subjects; he has only to provide the best for them, since the perfection of the art is already ensured whenever all the requirements of it are satisfied. And that was what I was saying just now about the ruler. I conceived that the art of the ruler, considered as ruler, whether in a state or in private life, could only regard the good of his flock or subjects; whereas you seem to think that the rulers in states, that is to say, the true rulers, like being in authority.

Think! Nay, I am sure of it.

Then why in the case of lesser offices do men never take them willingly without payment, unless under the idea that they govern for the advantage not of themselves but of others? Let me ask you a question: Are not the several arts different, by reason of their each having a separate function? And, my dear illustrious friend, do say what you think, that we may make a little progress.

Yes, that is the difference, he replied.

And each art gives us a particular good and not merely a general one --medicine, for example, gives us health; navigation, safety at sea, and so on?

Yes, he said.

And the art of payment has the special function of giving pay: but we do not confuse this with other arts, any more than the art of the pilot is to be confused with the art of medicine, because the health of the pilot may be improved by a sea voyage. You would not be inclined to say, would you, that navigation is the art of medicine, at least if we are to adopt your exact use of language?

Certainly not.

Or because a man is in good health when he receives pay you would not say that the art of payment is medicine?

I should say not.

Nor would you say that medicine is the art of receiving pay because a man takes fees when he is engaged in healing?

Certainly not.

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And we have admitted, I said, that the good of each art is specially confined to the art?

Yes.

Then, if there be any good which all artists have in common, that is to be attributed to something of which they all have the common use?

True, he replied.

And when the artist is benefited by receiving pay the advantage is gained by an additional use of the art of pay, which is not the art professed by him?

He gave a reluctant assent to this.

Then the pay is not derived by the several artists from their respective arts. But the truth is, that while the art of medicine gives health, and the art of the builder builds a house, another art attends them which is the art of pay. The various arts may be doing their own business and benefiting that over which they preside, but would the artist receive any benefit from his art unless he were paid as well?

I suppose not.

But does he therefore confer no benefit when he works for nothing?

Certainly, he confers a benefit.

Then now, Thrasyarchus, there is no longer any doubt that neither arts nor governments provide for their own interests; but, as we were before saying, they rule and provide for the interests of their subjects who are the weaker and not the stronger --to their good they attend and not to the good of the superior.

And this is the reason, my dear Thrasyarchus, why, as I was just now saying, no one is willing to govern; because no one likes to take in hand the reformation of evils which are not his concern without remuneration. For, in the execution of his work, and in giving his orders to another, the true artist does not regard his own interest, but always that of his subjects; and therefore in order that rulers may be willing to rule, they must be paid in one of three modes of payment: money, or honour, or a penalty for refusing.

Socrates - GLAUCON

What do you mean, Socrates? said Glaucon. The first two modes of payment are intelligible enough, but what the penalty is I do not understand, or how a penalty can be a payment.

You mean that you do not understand the nature of this payment which to the best men is the great inducement to rule? Of course you know that ambition and avarice are held to be, as indeed they are, a disgrace?

Very true.

And for this reason, I said, money and honour have no attraction for them; good men do not wish to be openly demanding payment for governing and so to get the name of hirelings, nor by secretly helping themselves out of the public revenues to get the name of thieves. And not being ambitious they do not care about honour. Wherefore necessity must be laid upon them, and they must be induced to serve from the fear of punishment. And this, as I imagine, is the reason why the forwardness to take office, instead of waiting to be compelled, has been deemed dishonourable. Now the worst part of the punishment is

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that he who refuses to rule is liable to be ruled by one who is worse than himself. And the fear of this, as I conceive, induces the good to take office, not because they would, but because they cannot help --not under the idea that they are going to have any benefit or enjoyment themselves, but as a necessity, and because they are not able to commit the task of ruling to any one who is better than themselves, or indeed as good. For there is reason to think that if a city were composed entirely of good men, then to avoid office would be as much an object of contention as to obtain office is at present; then we should have plain proof that the true ruler is not meant by nature to regard his own interest, but that of his subjects; and every one who knew this would choose rather to receive a benefit from another than to have the trouble of conferring one. So far am I from agreeing with Thrasymachus that justice is the interest of the stronger. This latter question need not be further discussed at present; but when Thrasymachus says that the life of the unjust is more advantageous than that of the just, his new statement appears to me to be of a far more serious character. Which of us has spoken truly? And which sort of life, Glaucon, do you prefer?

I for my part deem the life of the just to be the more advantageous, he answered.

Did you hear all the advantages of the unjust which Thrasymachus was rehearsing?

Yes, I heard him, he replied, but he has not convinced me.

Then shall we try to find some way of convincing him, if we can, that he is saying what is not true?

Most certainly, he replied.

If, I said, he makes a set speech and we make another recounting all the advantages of being just, and he answers and we rejoin, there must be a numbering and measuring of the goods which are claimed on either side, and in the end we shall want judges to decide; but if we proceed in our enquiry as we lately did, by making admissions to one another, we shall unite the offices of judge and advocate in our own persons.

Very good, he said.

And which method do I understand you to prefer? I said.

That which you propose.

Well, then, Thrasymachus, I said, suppose you begin at the beginning and answer me. You say that perfect injustice is more gainful than perfect justice?

Socrates - GLAUCON - THRASYMACHUS

Yes, that is what I say, and I have given you my reasons.

And what is your view about them? Would you call one of them virtue and the other vice?

Certainly.

I suppose that you would call justice virtue and injustice vice?

What a charming notion! So likely too, seeing that I affirm injustice to be profitable and justice not.

What else then would you say?

The opposite, he replied.

And would you call justice vice?

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No, I would rather say sublime simplicity.

Then would you call injustice malignity?

No; I would rather say discretion.

And do the unjust appear to you to be wise and good?

Yes, he said; at any rate those of them who are able to be perfectly unjust, and who have the power of subduing states and nations; but perhaps you imagine me to be talking of cutpurses.

Even this profession if undetected has advantages, though they are not to be compared with those of which I was just now speaking.

I do not think that I misapprehend your meaning, Thrasymachus, I replied; but still I cannot hear without amazement that you class injustice with wisdom and virtue, and justice with the opposite.

Certainly I do so class them.

Now, I said, you are on more substantial and almost unanswerable ground; for if the injustice which you were maintaining to be profitable had been admitted by you as by others to be vice and deformity, an answer might have been given to you on received principles; but now I perceive that you will call injustice honourable and strong, and to the unjust you will attribute all the qualities which were attributed by us before to the just, seeing that you do not hesitate to rank injustice with wisdom and virtue.

You have guessed most infallibly, he replied.

Then I certainly ought not to shrink from going through with the argument so long as I have reason to think that you, Thrasymachus, are speaking your real mind; for I do believe that you are now in earnest and are not amusing yourself at our expense.

I may be in earnest or not, but what is that to you? --to refute the argument is your business.

Very true, I said; that is what I have to do: But will you be so good as answer yet one more question? Does the just man try to gain any advantage over the just?

Far otherwise; if he did would not be the simple, amusing creature which he is.

And would he try to go beyond just action?

He would not.

And how would he regard the attempt to gain an advantage over the unjust; would that be considered by him as just or unjust?

He would think it just, and would try to gain the advantage; but he would not be able.

Whether he would or would not be able, I said, is not to the point. My question is only whether the just man, while refusing to have more than another just man, would wish and claim to have more than the unjust?

Yes, he would.

And what of the unjust --does he claim to have more than the just man and to do more than is just

Of course, he said, for he claims to have more than all men.

And the unjust man will strive and struggle to obtain more than the unjust man or action, in order that he may have more than all?

True.

We may put the matter thus, I said --the just does not desire more than his like but more than his unlike, whereas the unjust desires more than both his like and his unlike?

Nothing, he said, can be better than that statement.

And the unjust is good and wise, and the just is neither?

Good again, he said.

And is not the unjust like the wise and good and the just unlike them?

Of course, he said, he who is of a certain nature, is like those who are of a certain nature; he who is not, not.

Each of them, I said, is such as his like is?

Certainly, he replied.

Very good, Thrasymachus, I said; and now to take the case of the arts: you would admit that one man is a musician and another not a musician?

Yes.

And which is wise and which is foolish?

Clearly the musician is wise, and he who is not a musician is foolish.

And he is good in as far as he is wise, and bad in as far as he is foolish?

Yes.

And you would say the same sort of thing of the physician?

Yes.

And do you think, my excellent friend, that a musician when he adjusts the lyre would desire or claim to exceed or go beyond a musician in the tightening and loosening the strings?

I do not think that he would.

But he would claim to exceed the non-musician?

Of course.

And what would you say of the physician? In prescribing meats and drinks would he wish to go beyond another physician or beyond the practice of medicine?

He would not.

But he would wish to go beyond the non-physician?

Yes.

And about knowledge and ignorance in general; see whether you think that any man who has knowledge ever would wish to have the choice of saying or doing more than another man who has knowledge. Would he not rather say or do the same as his like in the same case?

That, I suppose, can hardly be denied.

And what of the ignorant? would he not desire to have more than either the knowing or the ignorant?

I dare say.

And the knowing is wise?

Yes.

And the wise is good?

True.

Then the wise and good will not desire to gain more than his like, but more than his unlike and opposite?

I suppose so.

Whereas the bad and ignorant will desire to gain more than both?

Yes.

But did we not say, Thrasyarchus, that the unjust goes beyond both his like and unlike? Were not these your words? They were.

They were.

And you also said that the just will not go beyond his like but his unlike?

Yes.

Then the just is like the wise and good, and the unjust like the evil and ignorant?

That is the inference.

And each of them is such as his like is?

That was admitted.

Then the just has turned out to be wise and good and the unjust evil and ignorant.

Thrasyarchus made all these admissions, not fluently, as I repeat them, but with extreme reluctance; it was a hot summer's day, and the perspiration poured from him in torrents; and then I saw what I had never seen before, Thrasyarchus blushing. As we were now agreed that justice was virtue and wisdom, and injustice vice and ignorance, I proceeded to another point:

Well, I said, Thrasyarchus, that matter is now settled; but were we not also saying that injustice had strength; do you remember?

Yes, I remember, he said, but do not suppose that I approve of what you are saying or have no answer; if however I were to answer, you would be quite certain to accuse me of haranguing; therefore either permit me to have my say out, or if you would rather ask, do so, and I will answer 'Very good,' as they say to story-telling old women, and will nod 'Yes' and 'No.'

Certainly not, I said, if contrary to your real opinion.

Yes, he said, I will, to please you, since you will not let me speak. What else would you have?

Nothing in the world, I said; and if you are so disposed I will ask and you shall answer.

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Proceed.

Then I will repeat the question which I asked before, in order that our examination of the relative nature of justice and injustice may be carried on regularly. A statement was made that injustice is stronger and more powerful than justice, but now justice, having been identified with wisdom and virtue, is easily shown to be stronger than injustice, if injustice is ignorance; this can no longer be questioned by any one. But I want to view the matter, Thrasymachus, in a different way: You would not deny that a state may be unjust and may be unjustly attempting to enslave other states, or may have already enslaved them, and may be holding many of them in subjection?

True, he replied; and I will add the best and perfectly unjust state will be most likely to do so.

I know, I said, that such was your position; but what I would further consider is, whether this power which is possessed by the superior state can exist or be exercised without justice.

If you are right in your view, and justice is wisdom, then only with justice; but if I am right, then without justice.

I am delighted, Thrasymachus, to see you not only nodding assent and dissent, but making answers which are quite excellent.

That is out of civility to you, he replied.

You are very kind, I said; and would you have the goodness also to inform me, whether you think that a state, or an army, or a band of robbers and thieves, or any other gang of evil-doers could act at all if they injured one another?

No indeed, he said, they could not.

But if they abstained from injuring one another, then they might act together better?

Yes.

And this is because injustice creates divisions and hatreds and fighting, and justice imparts harmony and friendship; is not that true, Thrasymachus?

I agree, he said, because I do not wish to quarrel with you.

How good of you, I said; but I should like to know also whether injustice, having this tendency to arouse hatred, wherever existing, among slaves or among freemen, will not make them hate one another and set them at variance and render them incapable of common action?

Certainly.

And even if injustice be found in two only, will they not quarrel and fight, and become enemies to one another and to the just?

They will.

And suppose injustice abiding in a single person, would your wisdom say that she loses or that she retains her natural power?

Let us assume that she retains her power.

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Yet is not the power which injustice exercises of such a nature that wherever she takes up her abode, whether in a city, in an army, in a family, or in any other body, that body is, to begin with, rendered incapable of united action by reason of sedition and distraction; and does it not become its own enemy and at variance with all that opposes it, and with the just? Is not this the case?

Yes, certainly.

And is not injustice equally fatal when existing in a single person; in the first place rendering him incapable of action because he is not at unity with himself, and in the second place making him an enemy to himself and the just? Is not that true, Thrasymachus?

Yes.

And O my friend, I said, surely the gods are just?

Granted that they are.

But if so, the unjust will be the enemy of the gods, and the just will be their friend?

Feast away in triumph, and take your fill of the argument; I will not oppose you, lest I should displease the company.

Well then, proceed with your answers, and let me have the remainder of my repast. For we have already shown that the just are clearly wiser and better and abler than the unjust, and that the unjust are incapable of common action; nay ing at more, that to speak as we did of men who are evil acting at any time vigorously together, is not strictly true, for if they had been perfectly evil, they would have laid hands upon one another; but it is evident that there must have been some remnant of justice in them, which enabled them to combine; if there had not been they would have injured one another as well as their victims; they were but half --villains in their enterprises; for had they been whole villains, and utterly unjust, they would have been utterly incapable of action. That, as I believe, is the truth of the matter, and not what you said at first. But whether the just have a better and happier life than the unjust is a further question which we also proposed to consider. I think that they have, and for the reasons which to have given; but still I should like to examine further, for no light matter is at stake, nothing less than the rule of human life.

Proceed.

I will proceed by asking a question: Would you not say that a horse has some end?

I should.

And the end or use of a horse or of anything would be that which could not be accomplished, or not so well accomplished, by any other thing?

I do not understand, he said.

Let me explain: Can you see, except with the eye?

Certainly not.

Or hear, except with the ear?

No.

These then may be truly said to be the ends of these organs?

They may.

But you can cut off a vine-branch with a dagger or with a chisel, and in many other ways?

Of course.

And yet not so well as with a pruning-hook made for the purpose?

True.

May we not say that this is the end of a pruning-hook?

We may.

Then now I think you will have no difficulty in understanding my meaning when I asked the question whether the end of anything would be that which could not be accomplished, or not so well accomplished, by any other thing?

I understand your meaning, he said, and assent.

And that to which an end is appointed has also an excellence? Need I ask again whether the eye has an end?

It has.

And has not the eye an excellence?

Yes.

And the ear has an end and an excellence also?

True.

And the same is true of all other things; they have each of them an end and a special excellence?

That is so.

Well, and can the eyes fulfil their end if they are wanting in their own proper excellence and have a defect instead?

How can they, he said, if they are blind and cannot see?

You mean to say, if they have lost their proper excellence, which is sight; but I have not arrived at that point yet. I would rather ask the question more generally, and only enquire whether the things which fulfil their ends fulfil them by their own proper excellence, and fall of fulfilling them by their own defect?

Certainly, he replied.

I might say the same of the ears; when deprived of their own proper excellence they cannot fulfil their end?

True.

And the same observation will apply to all other things?

I agree.

Well; and has not the soul an end which nothing else can fulfil? for example, to superintend and command and deliberate and the like. Are not these functions proper to the soul, and can they rightly be assigned to any other?

To no other.

And is not life to be reckoned among the ends of the soul?

Assuredly, he said.

And has not the soul an excellence also?

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Yes.

And can she or can she not fulfil her own ends when deprived of that excellence?

She cannot.

Then an evil soul must necessarily be an evil ruler and superintendent, and the good soul a good ruler?

Yes, necessarily.

And we have admitted that justice is the excellence of the soul, and injustice the defect of the soul?

That has been admitted.

Then the just soul and the just man will live well, and the unjust man will live ill?

That is what your argument proves.

And he who lives well is blessed and happy, and he who lives ill the reverse of happy?

Certainly.

Then the just is happy, and the unjust miserable?

So be it.

But happiness and not misery is profitable.

Of course.

Then, my blessed Thrasymachus, injustice can never be more profitable than justice.

Let this, Socrates, he said, be your entertainment at the Bendidea.

For which I am indebted to you, I said, now that you have grown gentle towards me and have left off scolding. Nevertheless, I have not been well entertained; but that was my own fault and not yours. As an epicure snatches a taste of every dish which is successively brought to table, he not having allowed himself time to enjoy the one before, so have I gone from one subject to another without having discovered what I sought at first, the nature of justice. I left that enquiry and turned away to consider whether justice is virtue and wisdom or evil and folly; and when there arose a further question about the comparative advantages of justice and injustice, I could not refrain from passing on to that. And the result of the whole discussion has been that I know nothing at all. For I know not what justice is, and therefore I am not likely to know whether it is or is not a virtue, nor can I say whether the just man is happy or unhappy.

20 The Republic, Book II (Plato)

*The Republic*¹ Book II

Socrates - GLAUCON

With these words I was thinking that I had made an end of the discussion; but the end, in truth, proved to be only a beginning. For Glaucon, who is always the most pugnacious of men, was dissatisfied at Thrasymachus' retirement; he wanted to have the battle out. So he said to me: Socrates, do you wish really to persuade us, or only to seem to have persuaded us, that to be just is always better than to be unjust?

I should wish really to persuade you, I replied, if I could.

Then you certainly have not succeeded. Let me ask you now: --How would you arrange goods --are there not some which we welcome for their own sakes, and independently of their consequences, as, for example, harmless pleasures and enjoyments, which delight us at the time, although nothing follows from them?

I agree in thinking that there is such a class, I replied.

Is there not also a second class of goods, such as knowledge, sight, health, which are desirable not only in themselves, but also for their results?

Certainly, I said.

And would you not recognize a third class, such as gymnastic, and the care of the sick, and the physician's art; also the various ways of money-making --these do us good but we regard them as disagreeable; and no one would choose them for their own sakes, but only for the sake of some reward or result which flows from them?

There is, I said, this third class also. But why do you ask?

Because I want to know in which of the three classes you would place justice?

In the highest class, I replied, --among those goods which he who would be happy desires both for their own sake and for the sake of their results.

Then the many are of another mind; they think that justice is to be reckoned in the troublesome class, among goods which are to be pursued for the sake of rewards and of reputation, but in themselves are disagreeable and rather to be avoided.

I know, I said, that this is their manner of thinking, and that this was the thesis which Thrasymachus was

¹ Plato, 360 BCE. Translated by William Jowett, 1910.

maintaining just now, when he censured justice and praised injustice. But I am too stupid to be convinced by him.

I wish, he said, that you would hear me as well as him, and then I shall see whether you and I agree. For Thrasymachus seems to me, like a snake, to have been charmed by your voice sooner than he ought to have been; but to my mind the nature of justice and injustice have not yet been made clear. Setting aside their rewards and results, I want to know what they are in themselves, and how they inwardly work in the soul. If you, please, then, I will revive the argument of Thrasymachus. And first I will speak of the nature and origin of justice according to the common view of them. Secondly, I will show that all men who practise justice do so against their will, of necessity, but not as a good. And thirdly, I will argue that there is reason in this view, for the life of the unjust is after all better far than the life of the just --if what they say is true, Socrates, since I myself am not of their opinion. But still I acknowledge that I am perplexed when I hear the voices of Thrasymachus and myriads of others dinning in my ears; and, on the other hand, I have never yet heard the superiority of justice to injustice maintained by any one in a satisfactory way. I want to hear justice praised in respect of itself; then I shall be satisfied, and you are the person from whom I think that I am most likely to hear this; and therefore I will praise the unjust life to the utmost of my power, and my manner of speaking will indicate the manner in which I desire to hear you too praising justice and censuring injustice. Will you say whether you approve of my proposal?

Indeed I do; nor can I imagine any theme about which a man of sense would oftener wish to converse.

I am delighted, he replied, to hear you say so, and shall begin by speaking, as I proposed, of the nature and origin of justice.

Glaucou

They say that to do injustice is, by nature, good; to suffer injustice, evil; but that the evil is greater than the good. And so when men have both done and suffered injustice and have had experience of both, not being able to avoid the one and obtain the other, they think that they had better agree among themselves to have neither; hence there arise laws and mutual covenants; and that which is ordained by law is termed by them lawful and just. This they affirm to be the origin and nature of justice; --it is a mean or compromise, between the best of all, which is to do injustice and not be punished, and the worst of all, which is to suffer injustice without the power of retaliation; and justice, being at a middle point between the two, is tolerated not as a good, but as the lesser evil, and honoured by reason of the inability of men to do injustice. For no man who is worthy to be called a man would ever submit to such an agreement if he were able to resist; he would be mad if he did. Such is the received account, Socrates, of the nature and origin of justice.

Now that those who practise justice do so involuntarily and because they have not the power to be unjust will best appear if we imagine something of this kind: having given both to the just and the unjust power to do what they will, let us watch and see whither desire will lead them; then we shall discover in the very act the just and unjust man to be proceeding along the same road, following their interest, which all natures deem to be their good, and are only diverted into the path of justice by the force of law. The liberty which we are supposing may be most completely given to them in the form of such a power as is said to have been possessed by Gyges the ancestor of Croesus the Lydian. According to the tradition, Gyges was a shepherd in the service of the king of Lydia; there was a great storm, and an earthquake

made an opening in the earth at the place where he was feeding his flock. Amazed at the sight, he descended into the opening, where, among other marvels, he beheld a hollow brazen horse, having doors, at which he stooping and looking in saw a dead body of stature, as appeared to him, more than human, and having nothing on but a gold ring; this he took from the finger of the dead and reascended. Now the shepherds met together, according to custom, that they might send their monthly report about the flocks to the king; into their assembly he came having the ring on his finger, and as he was sitting among them he chanced to turn the collet of the ring inside his hand, when instantly he became invisible to the rest of the company and they began to speak of him as if he were no longer present. He was astonished at this, and again touching the ring he turned the collet outwards and reappeared; he made several trials of the ring, and always with the same result-when he turned the collet inwards he became invisible, when outwards he reappeared. Whereupon he contrived to be chosen one of the messengers who were sent to the court; where as soon as he arrived he seduced the queen, and with her help conspired against the king and slew him, and took the kingdom. Suppose now that there were two such magic rings, and the just put on one of them and the unjust the other; no man can be imagined to be of such an iron nature that he would stand fast in justice. No man would keep his hands off what was not his own when he could safely take what he liked out of the market, or go into houses and lie with any one at his pleasure, or kill or release from prison whom he would, and in all respects be like a God among men. Then the actions of the just would be as the actions of the unjust; they would both come at last to the same point. And this we may truly affirm to be a great proof that a man is just, not willingly or because he thinks that justice is any good to him individually, but of necessity, for wherever any one thinks that he can safely be unjust, there he is unjust. For all men believe in their hearts that injustice is far more profitable to the individual than justice, and he who argues as I have been supposing, will say that they are right. If you could imagine any one obtaining this power of becoming invisible, and never doing any wrong or touching what was another's, he would be thought by the lookers-on to be a most wretched idiot, although they would praise him to one another's faces, and keep up appearances with one another from a fear that they too might suffer injustice. Enough of this.

Now, if we are to form a real judgment of the life of the just and unjust, we must isolate them; there is no other way; and how is the isolation to be effected? I answer: Let the unjust man be entirely unjust, and the just man entirely just; nothing is to be taken away from either of them, and both are to be perfectly furnished for the work of their respective lives. First, let the unjust be like other distinguished masters of craft; like the skilful pilot or physician, who knows intuitively his own powers and keeps within their limits, and who, if he fails at any point, is able to recover himself. So let the unjust make his unjust attempts in the right way, and lie hidden if he means to be great in his injustice (he who is found out is nobody): for the highest reach of injustice is: to be deemed just when you are not. Therefore I say that in the perfectly unjust man we must assume the most perfect injustice; there is to be no deduction, but we must allow him, while doing the most unjust acts, to have acquired the greatest reputation for justice. If he have taken a false step he must be able to recover himself; he must be one who can speak with effect, if any of his deeds come to light, and who can force his way where force is required his courage and strength, and command of money and friends. And at his side let us place the just man in his nobleness and simplicity, wishing, as Aeschylus says, to be and not to seem good. There must be no seeming, for if he seem to be just he will be honoured and rewarded, and then we shall not know whether he is just for the sake of justice or for the sake of honours and rewards; therefore, let him be clothed in justice only, and have no other covering; and he must be imagined in a state of life the opposite of the former. Let him be the best of men, and let him be thought the worst; then he will have been put to the proof; and we shall see whether he will be affected by the fear of infamy and its

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consequences. And let him continue thus to the hour of death; being just and seeming to be unjust. When both have reached the uttermost extreme, the one of justice and the other of injustice, let judgment be given which of them is the happier of the two.

Socrates - GLAUCON

Heavens! my dear Glaucon, I said, how energetically you polish them up for the decision, first one and then the other, as if they were two statues.

I do my best, he said. And now that we know what they are like there is no difficulty in tracing out the sort of life which awaits either of them. This I will proceed to describe; but as you may think the description a little too coarse, I ask you to suppose, Socrates, that the words which follow are not mine. - Let me put them into the mouths of the eulogists of injustice: They will tell you that the just man who is thought unjust will be scourged, racked, bound --will have his eyes burnt out; and, at last, after suffering every kind of evil, he will be impaled: Then he will understand that he ought to seem only, and not to be, just; the words of Aeschylus may be more truly spoken of the unjust than of the just. For the unjust is pursuing a reality; he does not live with a view to appearances --he wants to be really unjust and not to seem only:--

His mind has a soil deep and fertile,
Out of which spring his prudent counsels. In the first place, he is thought just, and therefore bears rule in the city; he can marry whom he will, and give in marriage to whom he will; also he can trade and deal where he likes, and always to his own advantage, because he has no misgivings about injustice and at every contest, whether in public or private, he gets the better of his antagonists, and gains at their expense, and is rich, and out of his gains he can benefit his friends, and harm his enemies; moreover, he can offer sacrifices, and dedicate gifts to the gods abundantly and magnificently, and can honour the gods or any man whom he wants to honour in a far better style than the just, and therefore he is likely to be dearer than they are to the gods. And thus, Socrates, gods and men are said to unite in making the life of the unjust better than the life of the just.

Adeimantus -SOCRATES

I was going to say something in answer to Glaucon, when Adeimantus, his brother, interposed: Socrates, he said, you do not suppose that there is nothing more to be urged?

Why, what else is there? I answered.

The strongest point of all has not been even mentioned, he replied.

Well, then, according to the proverb, 'Let brother help brother' --if he fails in any part do you assist him; although I must confess that Glaucon has already said quite enough to lay me in the dust, and take from me the power of helping justice.

Adeimantus

Nonsense, he replied. But let me add something more: There is another side to Glaucon's argument about the praise and censure of justice and injustice, which is equally required in order to bring out what I believe to be his meaning. Parents and tutors are always telling their sons and their wards that they are

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to be just; but why? not for the sake of justice, but for the sake of character and reputation; in the hope of obtaining for him who is reputed just some of those offices, marriages, and the like which Glaucon has enumerated among the advantages accruing to the unjust from the reputation of justice. More, however, is made of appearances by this class of persons than by the others; for they throw in the good opinion of the gods, and will tell you of a shower of benefits which the heavens, as they say, rain upon the pious; and this accords with the testimony of the noble Hesiod and Homer, the first of whom says, that the gods make the oaks of the just--

To hear acorns at their summit, and bees I the middle;
And the sheep the bowed down bowed the with the their fleeces. and many other blessings of a like kind are provided for them. And Homer has a very similar strain; for he speaks of one whose fame is--

As the fame of some blameless king who, like a god,
Maintains justice to whom the black earth brings forth
Wheat and barley, whose trees are bowed with fruit,
And his sheep never fail to bear, and the sea gives him fish. Still grander are the gifts of heaven which Musaeus and his son vouchsafe to the just; they take them down into the world below, where they have the saints lying on couches at a feast, everlastingly drunk, crowned with garlands; their idea seems to be that an immortality of drunkenness is the highest meed of virtue. Some extend their rewards yet further; the posterity, as they say, of the faithful and just shall survive to the third and fourth generation. This is the style in which they praise justice. But about the wicked there is another strain; they bury them in a slough in Hades, and make them carry water in a sieve; also while they are yet living they bring them to infamy, and inflict upon them the punishments which Glaucon described as the portion of the just who are reputed to be unjust; nothing else does their invention supply. Such is their manner of praising the one and censuring the other.

Once more, Socrates, I will ask you to consider another way of speaking about justice and injustice, which is not confined to the poets, but is found in prose writers. The universal voice of mankind is always declaring that justice and virtue are honourable, but grievous and toilsome; and that the pleasures of vice and injustice are easy of attainment, and are only censured by law and opinion. They say also that honesty is for the most part less profitable than dishonesty; and they are quite ready to call wicked men happy, and to honour them both in public and private when they are rich or in any other way influential, while they despise and overlook those who may be weak and poor, even though acknowledging them to be better than the others. But most extraordinary of all is their mode of speaking about virtue and the gods: they say that the gods apportion calamity and misery to many good men, and good and happiness to the wicked. And mendicant prophets go to rich men's doors and persuade them that they have a power committed to them by the gods of making an atonement for a man's own or his ancestor's sins by sacrifices or charms, with rejoicings and feasts; and they promise to harm an enemy, whether just or unjust, at a small cost; with magic arts and incantations binding heaven, as they say, to execute their will. And the poets are the authorities to whom they appeal, now smoothing the path of vice with the words of Hesiod; --

Vice may be had in abundance without trouble; the way is smooth and her dwelling-place is near. But before virtue the gods have set toil, and a tedious and uphill road: then citing Homer as a witness that the gods may be influenced by men; for he also says:

The gods, too, may be turned from their purpose; and men pray to them and avert their wrath by sacrifices and soothing entreaties, and by libations and the odour of fat, when they have sinned and transgressed. And they produce a host of books written by Musaeus and Orpheus, who were children of the Moon and the Muses --that is what they say --according to which they perform their ritual, and persuade not only individuals, but whole cities, that expiations and atonements for sin may be made by sacrifices and amusements which fill a vacant hour, and are equally at the service of the living and the dead; the latter sort they call mysteries, and they redeem us from the pains of hell, but if we neglect them no one knows what awaits us.

He proceeded: And now when the young hear all this said about virtue and vice, and the way in which gods and men regard them, how are their minds likely to be affected, my dear Socrates, --those of them, I mean, who are quickwitted, and, like bees on the wing, light on every flower, and from all that they hear are prone to draw conclusions as to what manner of persons they should be and in what way they should walk if they would make the best of life? Probably the youth will say to himself in the words of Pindar--

Can I by justice or by crooked ways of deceit ascend a loftier tower which may be a fortress to me all my days? For what men say is that, if I am really just and am not also thought just profit there is none, but the pain and loss on the other hand are unmistakable. But if, though unjust, I acquire the reputation of justice, a heavenly life is promised to me. Since then, as philosophers prove, appearance tyrannizes over truth and is lord of happiness, to appearance I must devote myself. I will describe around me a picture and shadow of virtue to be the vestibule and exterior of my house; behind I will trail the subtle and crafty fox, as Archilochus, greatest of sages, recommends. But I hear some one exclaiming that the concealment of wickedness is often difficult; to which I answer, Nothing great is easy. Nevertheless, the argument indicates this, if we would be happy, to be the path along which we should proceed. With a view to concealment we will establish secret brotherhoods and political clubs. And there are professors of rhetoric who teach the art of persuading courts and assemblies; and so, partly by persuasion and partly by force, I shall make unlawful gains and not be punished. Still I hear a voice saying that the gods cannot be deceived, neither can they be compelled. But what if there are no gods? or, suppose them to have no care of human things --why in either case should we mind about concealment? And even if there are gods, and they do care about us, yet we know of them only from tradition and the genealogies of the poets; and these are the very persons who say that they may be influenced and turned by 'sacrifices and soothing entreaties and by offerings.' Let us be consistent then, and believe both or neither. If the poets speak truly, why then we had better be unjust, and offer of the fruits of injustice; for if we are just, although we may escape the vengeance of heaven, we shall lose the gains of injustice; but, if we are unjust, we shall keep the gains, and by our sinning and praying, and praying and sinning, the gods will be propitiated, and we shall not be punished. 'But there is a world below in which either we or our posterity will suffer for our unjust deeds.' Yes, my friend, will be the reflection, but there are mysteries and atoning deities, and these have great power. That is what mighty cities declare; and the children of the gods, who were their poets and prophets, bear a like testimony.

On what principle, then, shall we any longer choose justice rather than the worst injustice? when, if we only unite the latter with a deceitful regard to appearances, we shall fare to our mind both with gods and men, in life and after death, as the most numerous and the highest authorities tell us. Knowing all this, Socrates, how can a man who has any superiority of mind or person or rank or wealth, be willing to honour justice; or indeed to refrain from laughing when he hears justice praised? And even if there

should be some one who is able to disprove the truth of my words, and who is satisfied that justice is best, still he is not angry with the unjust, but is very ready to forgive them, because he also knows that men are not just of their own free will; unless, peradventure, there be some one whom the divinity within him may have inspired with a hatred of injustice, or who has attained knowledge of the truth --but no other man. He only blames injustice who, owing to cowardice or age or some weakness, has not the power of being unjust. And this is proved by the fact that when he obtains the power, he immediately becomes unjust as far as he can be.

The cause of all this, Socrates, was indicated by us at the beginning of the argument, when my brother and I told you how astonished we were to find that of all the professing panegyrists of justice --beginning with the ancient heroes of whom any memorial has been preserved to us, and ending with the men of our own time --no one has ever blamed injustice or praised justice except with a view to the glories, honours, and benefits which flow from them. No one has ever adequately described either in verse or prose the true essential nature of either of them abiding in the soul, and invisible to any human or divine eye; or shown that of all the things of a man's soul which he has within him, justice is the greatest good, and injustice the greatest evil. Had this been the universal strain, had you sought to persuade us of this from our youth upwards, we should not have been on the watch to keep one another from doing wrong, but every one would have been his own watchman, because afraid, if he did wrong, of harbouring in himself the greatest of evils. I dare say that Thrasymachus and others would seriously hold the language which I have been merely repeating, and words even stronger than these about justice and injustice, grossly, as I conceive, perverting their true nature. But I speak in this vehement manner, as I must frankly confess to you, because I want to hear from you the opposite side; and I would ask you to show not only the superiority which justice has over injustice, but what effect they have on the possessor of them which makes the one to be a good and the other an evil to him. And please, as Glaucon requested of you, to exclude reputations; for unless you take away from each of them his true reputation and add on the false, we shall say that you do not praise justice, but the appearance of it; we shall think that you are only exhorting us to keep injustice dark, and that you really agree with Thrasymachus in thinking that justice is another's good and the interest of the stronger, and that injustice is a man's own profit and interest, though injurious to the weaker. Now as you have admitted that justice is one of that highest class of goods which are desired indeed for their results, but in a far greater degree for their own sakes --like sight or hearing or knowledge or health, or any other real and natural and not merely conventional good --I would ask you in your praise of justice to regard one point only: I mean the essential good and evil which justice and injustice work in the possessors of them. Let others praise justice and censure injustice, magnifying the rewards and honours of the one and abusing the other; that is a manner of arguing which, coming from them, I am ready to tolerate, but from you who have spent your whole life in the consideration of this question, unless I hear the contrary from your own lips, I expect something better. And therefore, I say, not only prove to us that justice is better than injustice, but show what they either of them do to the possessor of them, which makes the one to be a good and the other an evil, whether seen or unseen by gods and men.

Socrates - ADEIMANTUS

I had always admired the genius of Glaucon and Adeimantus, but on hearing these words I was quite delighted, and said: Sons of an illustrious father, that was not a bad beginning of the Elegiac verses which the admirer of Glaucon made in honour of you after you had distinguished yourselves at the battle of Megara:--

'Sons of Ariston,' he sang, 'divine offspring of an illustrious hero.' The epithet is very appropriate, for there is something truly divine in being able to argue as you have done for the superiority of injustice, and remaining unconvinced by your own arguments. And I do believe that you are not convinced --this I infer from your general character, for had I judged only from your speeches I should have mistrusted you. But now, the greater my confidence in you, the greater is my difficulty in knowing what to say. For I am in a strait between two; on the one hand I feel that I am unequal to the task; and my inability is brought home to me by the fact that you were not satisfied with the answer which I made to Thrasymachus, proving, as I thought, the superiority which justice has over injustice. And yet I cannot refuse to help, while breath and speech remain to me; I am afraid that there would be an impiety in being present when justice is evil spoken of and not lifting up a hand in her defence. And therefore I had best give such help as I can.

Glaucon and the rest entreated me by all means not to let the question drop, but to proceed in the investigation. They wanted to arrive at the truth, first, about the nature of justice and injustice, and secondly, about their relative advantages. I told them, what I --really thought, that the enquiry would be of a serious nature, and would require very good eyes. Seeing then, I said, that we are no great wits, I think that we had better adopt a method which I may illustrate thus; suppose that a short-sighted person had been asked by some one to read small letters from a distance; and it occurred to some one else that they might be found in another place which was larger and in which the letters were larger --if they were the same and he could read the larger letters first, and then proceed to the lesser --this would have been thought a rare piece of good fortune.

Very true, said Adeimantus; but how does the illustration apply to our enquiry?

I will tell you, I replied; justice, which is the subject of our enquiry, is, as you know, sometimes spoken of as the virtue of an individual, and sometimes as the virtue of a State.

True, he replied.

And is not a State larger than an individual?

It is.

Then in the larger the quantity of justice is likely to be larger and more easily discernible. I propose therefore that we enquire into the nature of justice and injustice, first as they appear in the State, and secondly in the individual, proceeding from the greater to the lesser and comparing them.

That, he said, is an excellent proposal.

And if we imagine the State in process of creation, we shall see the justice and injustice of the State in process of creation also.

I dare say.

When the State is completed there may be a hope that the object of our search will be more easily discovered.

Yes, far more easily.

But ought we to attempt to construct one? I said; for to do so, as I am inclined to think, will be a very serious task. Reflect therefore.

I have reflected, said Adeimantus, and am anxious that you should proceed.

A State, I said, arises, as I conceive, out of the needs of mankind; no one is self-sufficing, but all of us have many wants. Can any other origin of a State be imagined?

There can I be no other.

Then, as we have many wants, and many persons are needed to supply them, one takes a helper for one purpose and another for another; and when these partners and helpers are gathered together in one habitation the body of inhabitants is termed a State.

True, he said.

And they exchange with one another, and one gives, and another receives, under the idea that the exchange will be for their good.

Very true.

Then, I said, let us begin and create in idea a State; and yet the true creator is necessity, who is the mother of our invention.

Of course, he replied.

Now the first and greatest of necessities is food, which is the condition of life and existence.

Certainly.

The second is a dwelling, and the third clothing and the like.

True.

And now let us see how our city will be able to supply this great demand: We may suppose that one man is a husbandman, another a builder, some one else a weaver --shall we add to them a shoemaker, or perhaps some other purveyor to our bodily wants?

Quite right.

The barest notion of a State must include four or five men.

Clearly.

And how will they proceed? Will each bring the result of his labours into a common stock? --the individual husbandman, for example, producing for four, and labouring four times as long and as much as he need in the provision of food with which he supplies others as well as himself; or will he have nothing to do with others and not be at the trouble of producing for them, but provide for himself alone a fourth of the food in a fourth of the time, and in the remaining three-fourths of his time be employed in making a house or a coat or a pair of shoes, having no partnership with others, but supplying himself all his own wants?

Adeimantus thought that he should aim at producing food only and not at producing everything.

Probably, I replied, that would be the better way; and when I hear you say this, I am myself reminded that we are not all alike; there are diversities of natures among us which are adapted to different occupations.

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Very true.

And will you have a work better done when the workman has many occupations, or when he has only one?

When he has only one.

Further, there can be no doubt that a work is spoilt when not done at the right time?

No doubt.

For business is not disposed to wait until the doer of the business is at leisure; but the doer must follow up what he is doing, and make the business his first object.

He must.

And if so, we must infer that all things are produced more plentifully and easily and of a better quality when one man does one thing which is natural to him and does it at the right time, and leaves other things.

Undoubtedly..

Then more than four citizens will be required; for the husbandman will not make his own plough or mattock, or other implements of agriculture, if they are to be good for anything. Neither will the builder make his tools --and he too needs many; and in like manner the weaver and shoemaker.

True.

Then carpenters, and smiths, and many other artisans, will be sharers in our little State, which is already beginning to grow?

True.

Yet even if we add neatherds, shepherds, and other herdsmen, in order that our husbandmen may have oxen to plough with, and builders as well as husbandmen may have draught cattle, and curriers and weavers fleeces and hides, --still our State will not be very large.

That is true; yet neither will it be a very small State which contains all these.

Then, again, there is the situation of the city --to find a place where nothing need be imported is well-nigh impossible.

Impossible.

Then there must be another class of citizens who will bring the required supply from another city?

There must.

But if the trader goes empty-handed, having nothing which they require who would supply his need, he will come back empty-handed.

That is certain.

And therefore what they produce at home must be not only enough for themselves, but such both in quantity and quality as to accommodate those from whom their wants are supplied.

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Very true.

Then more husbandmen and more artisans will be required?

They will.

Not to mention the importers and exporters, who are called merchants?

Yes.

Then we shall want merchants?

We shall.

And if merchandise is to be carried over the sea, skilful sailors will also be needed, and in considerable numbers?

Yes, in considerable numbers.

Then, again, within the city, how will they exchange their productions? To secure such an exchange was, as you will remember, one of our principal objects when we formed them into a society and constituted a State.

Clearly they will buy and sell.

Then they will need a market-place, and a money-token for purposes of exchange.

Certainly.

Suppose now that a husbandman, or an artisan, brings some production to market, and he comes at a time when there is no one to exchange with him, --is he to leave his calling and sit idle in the market-place?

Not at all; he will find people there who, seeing the want, undertake the office of salesmen. In well-ordered States they are commonly those who are the weakest in bodily strength, and therefore of little use for any other purpose; their duty is to be in the market, and to give money in exchange for goods to those who desire to sell and to take money from those who desire to buy.

This want, then, creates a class of retail-traders in our State. Is not 'retailer' the term which is applied to those who sit in the market-place engaged in buying and selling, while those who wander from one city to another are called merchants?

Yes, he said.

And there is another class of servants, who are intellectually hardly on the level of companionship; still they have plenty of bodily strength for labour, which accordingly they sell, and are called, if I do not mistake, hirelings, hire being the name which is given to the price of their labour.

True.

Then hirelings will help to make up our population?

Yes.

And now, Adeimantus, is our State matured and perfected?

I think so.

Where, then, is justice, and where is injustice, and in what part of the State did they spring up?

Probably in the dealings of these citizens with one another. cannot imagine that they are more likely to

be found anywhere else.

I dare say that you are right in your suggestion, I said; we had better think the matter out, and not shrink from the enquiry.

Let us then consider, first of all, what will be their way of life, now that we have thus established them. Will they not produce corn, and wine, and clothes, and shoes, and build houses for themselves? And when they are housed, they will work, in summer, commonly, stripped and barefoot, but in winter substantially clothed and shod. They will feed on barley-meal and flour of wheat, baking and kneading them, making noble cakes and loaves; these they will serve up on a mat of reeds or on clean leaves, themselves reclining the while upon beds strewn with yew or myrtle. And they and their children will feast, drinking of the wine which they have made, wearing garlands on their heads, and hymning the praises of the gods, in happy converse with one another. And they will take care that their families do not exceed their means; having an eye to poverty or war.

Socrates - GLAUCON

But, said Glaucon, interposing, you have not given them a relish to their meal.

True, I replied, I had forgotten; of course they must have a relish-salt, and olives, and cheese, and they will boil roots and herbs such as country people prepare; for a dessert we shall give them figs, and peas, and beans; and they will roast myrtle-berries and acorns at the fire, drinking in moderation. And with such a diet they may be expected to live in peace and health to a good old age, and bequeath a similar life to their children after them.

Yes, Socrates, he said, and if you were providing for a city of pigs, how else would you feed the beasts?

But what would you have, Glaucon? I replied.

Why, he said, you should give them the ordinary conveniences of life. People who are to be comfortable are accustomed to lie on sofas, and dine off tables, and they should have sauces and sweets in the modern style.

Yes, I said, now I understand: the question which you would have me consider is, not only how a State, but how a luxurious State is created; and possibly there is no harm in this, for in such a State we shall be more likely to see how justice and injustice originate. In my opinion the true and healthy constitution of the State is the one which I have described. But if you wish also to see a State at fever heat, I have no objection. For I suspect that many will not be satisfied with the simpler way of way They will be for adding sofas, and tables, and other furniture; also dainties, and perfumes, and incense, and courtesans, and cakes, all these not of one sort only, but in every variety; we must go beyond the necessities of which I was at first speaking, such as houses, and clothes, and shoes: the arts of the painter and the embroiderer will have to be set in motion, and gold and ivory and all sorts of materials must be procured.

True, he said.

Then we must enlarge our borders; for the original healthy State is no longer sufficient. Now will the city have to fill and swell with a multitude of callings which are not required by any natural want; such

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as the whole tribe of hunters and actors, of whom one large class have to do with forms and colours; another will be the votaries of music --poets and their attendant train of rhapsodists, players, dancers, contractors; also makers of divers kinds of articles, including women's dresses. And we shall want more servants. Will not tutors be also in request, and nurses wet and dry, tirewomen and barbers, as well as confectioners and cooks; and swineherds, too, who were not needed and therefore had no place in the former edition of our State, but are needed now? They must not be forgotten: and there will be animals of many other kinds, if people eat them.

Certainly.

And living in this way we shall have much greater need of physicians than before?

Much greater.

And the country which was enough to support the original inhabitants will be too small now, and not enough?

Quite true.

Then a slice of our neighbours' land will be wanted by us for pasture and tillage, and they will want a slice of ours, if, like ourselves, they exceed the limit of necessity, and give themselves up to the unlimited accumulation of wealth?

That, Socrates, will be inevitable.

And so we shall go to war, Glaucon. Shall we not?

Most certainly, he replied.

Then without determining as yet whether war does good or harm, thus much we may affirm, that now we have discovered war to be derived from causes which are also the causes of almost all the evils in States, private as well as public.

Undoubtedly.

And our State must once more enlarge; and this time the will be nothing short of a whole army, which will have to go out and fight with the invaders for all that we have, as well as for the things and persons whom we were describing above.

Why? he said; are they not capable of defending themselves?

No, I said; not if we were right in the principle which was acknowledged by all of us when we were framing the State: the principle, as you will remember, was that one man cannot practise many arts with success.

Very true, he said.

But is not war an art?

Certainly.

And an art requiring as much attention as shoemaking?

Quite true.

And the shoemaker was not allowed by us to be husbandman, or a weaver, a builder --in order that we might have our shoes well made; but to him and to every other worker was assigned one work for which he was by nature fitted, and at that he was to continue working all his life long and at no other; he was not to let opportunities slip, and then he would become a good workman. Now nothing can be more

important than that the work of a soldier should be well done. But is war an art so easily acquired that a man may be a warrior who is also a husbandman, or shoemaker, or other artisan; although no one in the world would be a good dice or draught player who merely took up the game as a recreation, and had not from his earliest years devoted himself to this and nothing else?

No tools will make a man a skilled workman, or master of defence, nor be of any use to him who has not learned how to handle them, and has never bestowed any attention upon them. How then will he who takes up a shield or other implement of war become a good fighter all in a day, whether with heavy-armed or any other kind of troops?

Yes, he said, the tools which would teach men their own use would be beyond price.

And the higher the duties of the guardian, I said, the more time, and skill, and art, and application will be needed by him?

No doubt, he replied.

Will he not also require natural aptitude for his calling?

Certainly.

Then it will be our duty to select, if we can, natures which are fitted for the task of guarding the city?

It will.

And the selection will be no easy matter, I said; but we must be brave and do our best.

We must.

Is not the noble youth very like a well-bred dog in respect of guarding and watching?

What do you mean?

I mean that both of them ought to be quick to see, and swift to overtake the enemy when they see him; and strong too if, when they have caught him, they have to fight with him.

All these qualities, he replied, will certainly be required by them.

Well, and your guardian must be brave if he is to fight well?

Certainly.

And is he likely to be brave who has no spirit, whether horse or dog or any other animal? Have you never observed how invincible and unconquerable is spirit and how the presence of it makes the soul of any creature to be absolutely fearless and indomitable?

I have.

Then now we have a clear notion of the bodily qualities which are required in the guardian.

True.

And also of the mental ones; his soul is to be full of spirit?

Yes.

But are not these spirited natures apt to be savage with one another, and with everybody else?

A difficulty by no means easy to overcome, he replied.

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Whereas, I said, they ought to be dangerous to their enemies, and gentle to their friends; if not, they will destroy themselves without waiting for their enemies to destroy them.

True, he said.

What is to be done then? I said; how shall we find a gentle nature which has also a great spirit, for the one is the contradiction of the other?

True.

He will not be a good guardian who is wanting in either of these two qualities; and yet the combination of them appears to be impossible; and hence we must infer that to be a good guardian is impossible.

I am afraid that what you say is true, he replied.

Here feeling perplexed I began to think over what had preceded. My friend, I said, no wonder that we are in a perplexity; for we have lost sight of the image which we had before us.

What do you mean? he said.

I mean to say that there do exist natures gifted with those opposite qualities.

And where do you find them?

Many animals, I replied, furnish examples of them; our friend the dog is a very good one: you know that well-bred dogs are perfectly gentle to their familiars and acquaintances, and the reverse to strangers.

Yes, I know.

Then there is nothing impossible or out of the order of nature in our finding a guardian who has a similar combination of qualities?

Certainly not.

Would not he who is fitted to be a guardian, besides the spirited nature, need to have the qualities of a philosopher?

I do not apprehend your meaning.

The trait of which I am speaking, I replied, may be also seen in the dog, and is remarkable in the animal.

What trait?

Why, a dog, whenever he sees a stranger, is angry; when an acquaintance, he welcomes him, although the one has never done him any harm, nor the other any good. Did this never strike you as curious?

The matter never struck me before; but I quite recognise the truth of your remark.

And surely this instinct of the dog is very charming; --your dog is a true philosopher.

Why?

Why, because he distinguishes the face of a friend and of an enemy only by the criterion of knowing and not knowing. And must not an animal be a lover of learning who determines what he likes and dislikes by the test of knowledge and ignorance?

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Most assuredly.

And is not the love of learning the love of wisdom, which is philosophy?

They are the same, he replied.

And may we not say confidently of man also, that he who is likely to be gentle to his friends and acquaintances, must by nature be a lover of wisdom and knowledge?

That we may safely affirm.

Then he who is to be a really good and noble guardian of the State will require to unite in himself philosophy and spirit and swiftness and strength?

Undoubtedly.

Then we have found the desired natures; and now that we have found them, how are they to be reared and educated? Is not this enquiry which may be expected to throw light on the greater enquiry which is our final end --How do justice and injustice grow up in States? for we do not want either to omit what is to the point or to draw out the argument to an inconvenient length.

Socrates - ADEIMANTUS

Adeimantus thought that the enquiry would be of great service to us.

Then, I said, my dear friend, the task must not be given up, even if somewhat long.

Certainly not.

Come then, and let us pass a leisure hour in story-telling, and our story shall be the education of our heroes.

By all means.

And what shall be their education? Can we find a better than the traditional sort? --and this has two divisions, gymnastic for the body, and music for the soul.

True.

Shall we begin education with music, and go on to gymnastic afterwards?

By all means.

And when you speak of music, do you include literature or not?

I do.

And literature may be either true or false?

Yes.

And the young should be trained in both kinds, and we begin with the false?

I do not understand your meaning, he said.

You know, I said, that we begin by telling children stories which, though not wholly destitute of truth, are in the main fictitious; and these stories are told them when they are not of an age to learn gymnastics.

Very true.

That was my meaning when I said that we must teach music before gymnastics.

Quite right, he said.

You know also that the beginning is the most important part of any work, especially in the case of a young and tender thing; for that is the time at which the character is being formed and the desired impression is more readily taken.

Quite true.

And shall we just carelessly allow children to hear any casual tales which may be devised by casual persons, and to receive into their minds ideas for the most part the very opposite of those which we should wish them to have when they are grown up?

We cannot.

Then the first thing will be to establish a censorship of the writers of fiction, and let the censors receive any tale of fiction which is good, and reject the bad; and we will desire mothers and nurses to tell their children the authorised ones only. Let them fashion the mind with such tales, even more fondly than they mould the body with their hands; but most of those which are now in use must be discarded.

21 On Liberty, Part 1 (John Stuart Mill)

*On Liberty*¹

The grand, leading principle, towards which every argument unfolded in these pages directly converges, is the absolute and essential importance of human development in its richest diversity.—Wilhelm Von Humboldt: *Sphere and Duties of Government*.

CHAPTER I. INTRODUCTORY.

The subject of this Essay is not the so-called Liberty of the Will, so unfortunately opposed to the misnamed doctrine of Philosophical Necessity; but Civil, or Social Liberty: the nature and limits of the power which can be legitimately exercised by society over the individual. A question seldom stated, and hardly ever discussed, in general terms, but which profoundly influences the practical controversies of the age by its latent presence, and is likely soon to make itself recognised as the vital question of the future. It is so far from being new, that in a certain sense, it has divided mankind, almost from the remotest ages; but in the stage of progress into which the more civilised portions of the species have now entered, it presents itself under new conditions, and requires a different and more fundamental treatment.

The struggle between Liberty and Authority is the most conspicuous feature in the portions of history with which we are earliest familiar, particularly in that of Greece, Rome, and England. But in old times this contest was between subjects, or some classes of subjects, and the government. By liberty, was meant protection against the tyranny of the political rulers. The rulers were conceived (except in some of the popular governments of Greece) as in a necessarily antagonistic position to the people whom they ruled. They consisted of a governing One, or a governing tribe or caste, who derived their authority from inheritance or conquest, who, at all events, did not hold it at the pleasure of the governed, and whose supremacy men did not venture, perhaps did not desire, to contest, whatever precautions might be taken against its oppressive exercise. Their power was regarded as necessary, but also as highly dangerous; as a weapon which they would attempt to use against their subjects, no less than against external enemies. To prevent the weaker members of the community from being preyed upon by innumerable vultures, it was needful that there should be an animal of prey stronger than the rest, commissioned to keep them down. But as the king of the vultures would be no less bent upon preying on the flock than any of the minor harpies, it was indispensable to be in a perpetual attitude of defence against his beak and claws. The aim, therefore, of patriots, was to set limits to the power which the ruler should be suffered to exercise over the community; and this limitation was what they meant by liberty. It was attempted in two ways. First, by obtaining a recognition of certain immunities, called political liberties or rights, which it was to be regarded as a breach of duty in the ruler to infringe, and which if he did infringe, specific resistance, or general rebellion, was held to be justifiable. A second, and generally a later expedient, was the establishment of constitutional checks; by which the consent of the community, or of a body of some sort, supposed to represent its interests, was made a necessary condition to some of the

¹ John Stuart Mill, 1859.

more important acts of the governing power. To the first of these modes of limitation, the ruling power, in most European countries, was compelled, more or less, to submit. It was not so with the second; and to attain this, or when already in some degree possessed, to attain it more completely, became everywhere the principal object of the lovers of liberty. And so long as mankind were content to combat one enemy by another, and to be ruled by a master, on condition of being guaranteed more or less efficaciously against his tyranny, they did not carry their aspirations beyond this point.

A time, however, came, in the progress of human affairs, when men ceased to think it a necessity of nature that their governors should be an independent power, opposed in interest to themselves. It appeared to them much better that the various magistrates of the State should be their tenants or delegates, revocable at their pleasure. In that way alone, it seemed, could they have complete security that the powers of government would never be abused to their disadvantage. By degrees, this new demand for elective and temporary rulers became the prominent object of the exertions of the popular party, wherever any such party existed; and superseded, to a considerable extent, the previous efforts to limit the power of rulers. As the struggle proceeded for making the ruling power emanate from the periodical choice of the ruled, some persons began to think that too much importance had been attached to the limitation of the power itself. *That* (it might seem) was a resource against rulers whose interests were habitually opposed to those of the people. What was now wanted was, that the rulers should be identified with the people; that their interest and will should be the interest and will of the nation. The nation did not need to be protected against its own will. There was no fear of its tyrannising over itself. Let the rulers be effectually responsible to it, promptly removable by it, and it could afford to trust them with power of which it could itself dictate the use to be made. Their power was but the nation's own power, concentrated, and in a form convenient for exercise. This mode of thought, or rather perhaps of feeling, was common among the last generation of European liberalism, in the Continental section of which it still apparently predominates. Those who admit any limit to what a government may do, except in the case of such governments as they think ought not to exist, stand out as brilliant exceptions among the political thinkers of the Continent. A similar tone of sentiment might by this time have been prevalent in our own country, if the circumstances which for a time encouraged it, had continued unaltered.

But, in political and philosophical theories, as well as in persons, success discloses faults and infirmities which failure might have concealed from observation. The notion, that the people have no need to limit their power over themselves, might seem axiomatic, when popular government was a thing only dreamed about, or read of as having existed at some distant period of the past. Neither was that notion necessarily disturbed by such temporary aberrations as those of the French Revolution, the worst of which were the work of a usurping few, and which, in any case, belonged, not to the permanent working of popular institutions, but to a sudden and convulsive outbreak against monarchical and aristocratic despotism. In time, however, a democratic republic came to occupy a large portion of the earth's surface, and made itself felt as one of the most powerful members of the community of nations; and elective and responsible government became subject to the observations and criticisms which wait upon a great existing fact. It was now perceived that such phrases as "self-government," and "the power of the people over themselves," do not express the true state of the case. The "people" who exercise the power are not always the same people with those over whom it is exercised; and the "self-government" spoken of is not the government of each by himself, but of each by all the rest. The will of the people, moreover, practically means, the will of the most numerous or the most active *part* of the people; the majority, or those who succeed in making themselves accepted as the majority: the people, consequently, *may* desire

to oppress a part of their number; and precautions are as much needed against this, as against any other abuse of power. The limitation, therefore, of the power of government over individuals, loses none of its importance when the holders of power are regularly accountable to the community, that is, to the strongest party therein. This view of things, recommending itself equally to the intelligence of thinkers and to the inclination of those important classes in European society to whose real or supposed interests democracy is adverse, has had no difficulty in establishing itself; and in political speculations "the tyranny of the majority" is now generally included among the evils against which society requires to be on its guard.

Like other tyrannies, the tyranny of the majority was at first, and is still vulgarly, held in dread, chiefly as operating through the acts of the public authorities. But reflecting persons perceived that when society is itself the tyrant—society collectively, over the separate individuals who compose it—its means of tyrannising are not restricted to the acts which it may do by the hands of its political functionaries. Society can and does execute its own mandates: and if it issues wrong mandates instead of right, or any mandates at all in things with which it ought not to meddle, it practises a social tyranny more formidable than many kinds of political oppression, since, though not usually upheld by such extreme penalties, it leaves fewer means of escape, penetrating much more deeply into the details of life, and enslaving the soul itself. Protection, therefore, against the tyranny of the magistrate is not enough: there needs protection also against the tyranny of the prevailing opinion and feeling; against the tendency of society to impose, by other means than civil penalties, its own ideas and practices as rules of conduct on those who dissent from them; to fetter the development, and, if possible, prevent the formation, of any individuality not in harmony with its ways, and compel all characters to fashion themselves upon the model of its own. There is a limit to the legitimate interference of collective opinion with individual independence: and to find that limit, and maintain it against encroachment, is as indispensable to a good condition of human affairs, as protection against political despotism.

But though this proposition is not likely to be contested in general terms, the practical question, where to place the limit—how to make the fitting adjustment between individual independence and social control—is a subject on which nearly everything remains to be done...

The object of this Essay is to assert one very simple principle, as entitled to govern absolutely the dealings of society with the individual in the way of compulsion and control, whether the means used be physical force in the form of legal penalties, or the moral coercion of public opinion. That principle is, that the sole end for which mankind are warranted, individually or collectively, in interfering with the liberty of action of any of their number, is self-protection. That the only purpose for which power can be rightfully exercised over any member of a civilised community, against his will, is to prevent harm to others. His own good, either physical or moral, is not a sufficient warrant. He cannot rightfully be compelled to do or forbear because it will be better for him to do so, because it will make him happier, because, in the opinions of others, to do so would be wise, or even right. These are good reasons for remonstrating with him, or reasoning with him, or persuading him, or entreating him, but not for compelling him, or visiting him with any evil in case he do otherwise. To justify that, the conduct from which it is desired to deter him must be calculated to produce evil to some one else. The only part of the conduct of any one, for which he is amenable to society, is that which concerns others. In the part which merely concerns himself, his independence is, of right, absolute. Over himself, over his own body and mind, the individual is sovereign.

It is, perhaps, hardly necessary to say that this doctrine is meant to apply only to human beings in the maturity of their faculties. We are not speaking of children, or of young persons below the age which the law may fix as that of manhood or womanhood. Those who are still in a state to require being taken care of by others, must be protected against their own actions as well as against external injury. For the same reason, we may leave out of consideration those backward states of society in which the race itself may be considered as in its nonage. The early difficulties in the way of spontaneous progress are so great, that there is seldom any choice of means for overcoming them; and a ruler full of the spirit of improvement is warranted in the use of any expedients that will attain an end, perhaps otherwise unattainable. Despotism is a legitimate mode of government in dealing with barbarians, provided the end be their improvement, and the means justified by actually effecting that end. Liberty, as a principle, has no application to any state of things anterior to the time when mankind have become capable of being improved by free and equal discussion. Until then, there is nothing for them but implicit obedience to an Akbar or a Charlemagne, if they are so fortunate as to find one. But as soon as mankind have attained the capacity of being guided to their own improvement by conviction or persuasion (a period long since reached in all nations with whom we need here concern ourselves), compulsion, either in the direct form or in that of pains and penalties for non-compliance, is no longer admissible as a means to their own good, and justifiable only for the security of others.

It is proper to state that I forego any advantage which could be derived to my argument from the idea of abstract right, as a thing independent of utility. I regard utility as the ultimate appeal on all ethical questions; but it must be utility in the largest sense, grounded on the permanent interests of man as a progressive being. Those interests, I contend, authorise the subjection of individual spontaneity to external control, only in respect to those actions of each, which concern the interest of other people. If any one does an act hurtful to others, there is a *primâ facie* case for punishing him, by law, or, where legal penalties are not safely applicable, by general disapprobation. There are also many positive acts for the benefit of others, which he may rightfully be compelled to perform; such as, to give evidence in a court of justice; to bear his fair share in the common defence, or in any other joint work necessary to the interest of the society of which he enjoys the protection; and to perform certain acts of individual beneficence, such as saving a fellow-creature's life, or interposing to protect the defenceless against ill-usage, things which whenever it is obviously a man's duty to do, he may rightfully be made responsible to society for not doing. A person may cause evil to others not only by his actions but by his inaction, and in either case he is justly accountable to them for the injury. The latter case, it is true, requires a much more cautious exercise of compulsion than the former. To make any one answerable for doing evil to others, is the rule; to make him answerable for not preventing evil, is, comparatively speaking, the exception. Yet there are many cases clear enough and grave enough to justify that exception. In all things which regard the external relations of the individual, he is *de jure* amenable to those whose interests are concerned, and if need be, to society as their protector. There are often good reasons for not holding him to the responsibility; but these reasons must arise from the special expedencies of the case: either because it is a kind of case in which he is on the whole likely to act better, when left to his own discretion, than when controlled in any way in which society have it in their power to control him; or because the attempt to exercise control would produce other evils, greater than those which it would prevent. When such reasons as these preclude the enforcement of responsibility, the conscience of the agent himself should step into the vacant judgment seat, and protect those interests of others which have no external protection; judging himself all the more rigidly, because the case does not admit of his being made accountable to the judgment of his fellow-creatures.

But there is a sphere of action in which society, as distinguished from the individual, has, if any, only an indirect interest; comprehending all that portion of a person's life and conduct which affects only himself, or if it also affects others, only with their free, voluntary, and undeceived consent and participation. When I say only himself, I mean directly, and in the first instance: for whatever affects himself, may affect others *through* himself; and the objection which may be grounded on this contingency, will receive consideration in the sequel. This, then, is the appropriate region of human liberty. It comprises, first, the inward domain of consciousness; demanding liberty of conscience, in the most comprehensive sense; liberty of thought and feeling; absolute freedom of opinion and sentiment on all subjects, practical or speculative, scientific, moral, or theological. The liberty of expressing and publishing opinions may seem to fall under a different principle, since it belongs to that part of the conduct of an individual which concerns other people; but, being almost of as much importance as the liberty of thought itself, and resting in great part on the same reasons, is practically inseparable from it. Secondly, the principle requires liberty of tastes and pursuits; of framing the plan of our life to suit our own character; of doing as we like, subject to such consequences as may follow: without impediment from our fellow-creatures, so long as what we do does not harm them, even though they should think our conduct foolish, perverse, or wrong. Thirdly, from this liberty of each individual, follows the liberty, within the same limits, of combination among individuals; freedom to unite, for any purpose not involving harm to others: the persons combining being supposed to be of full age, and not forced or deceived.

No society in which these liberties are not, on the whole, respected, is free, whatever may be its form of government; and none is completely free in which they do not exist absolute and unqualified. The only freedom which deserves the name, is that of pursuing our own good in our own way, so long as we do not attempt to deprive others of theirs, or impede their efforts to obtain it. Each is the proper guardian of his own health, whether bodily, or mental and spiritual. Mankind are greater gainers by suffering each other to live as seems good to themselves, than by compelling each to live as seems good to the rest...

CHAPTER II. OF THE LIBERTY OF THOUGHT AND DISCUSSION.

The time, it is to be hoped, is gone by, when any defence would be necessary of the "liberty of the press" as one of the securities against corrupt or tyrannical government. No argument, we may suppose, can now be needed, against permitting a legislature or an executive, not identified in interest with the people, to prescribe opinions to them, and determine what doctrines or what arguments they shall be allowed to hear. This aspect of the question, besides, has been so often and so triumphantly enforced by preceding writers, that it need not be specially insisted on in this place. Though the law of England, on the subject of the press, is as servile to this day as it was in the time of the Tudors, there is little danger of its being actually put in force against political discussion, except during some temporary panic, when fear of insurrection drives ministers and judges from their propriety; and, speaking generally, it is not, in constitutional countries, to be apprehended that the government, whether completely responsible to the people or not, will often attempt to control the expression of opinion, except when in doing so it makes itself the organ of the general intolerance of the public. Let us suppose, therefore, that the government is entirely at one with the people, and never thinks of exerting any power of coercion unless in agreement with what it conceives to be their voice. But I deny the right of the people to exercise such coercion, either by themselves or by their government. The power itself is illegitimate. The best government has no more title to it than the worst. It is as noxious, or more noxious, when exerted in accordance with public opinion, than when in or opposition to it. If all mankind minus one, were of one opinion, and only

one person were of the contrary opinion, mankind would be no more justified in silencing that one person, than he, if he had the power, would be justified in silencing mankind. Were an opinion a personal possession of no value except to the owner; if to be obstructed in the enjoyment of it were simply a private injury, it would make some difference whether the injury was inflicted only on a few persons or on many. But the peculiar evil of silencing the expression of an opinion is, that it is robbing the human race; posterity as well as the existing generation; those who dissent from the opinion, still more than those who hold it. If the opinion is right, they are deprived of the opportunity of exchanging error for truth: if wrong, they lose, what is almost as great a benefit, the clearer perception and livelier impression of truth, produced by its collision with error.

It is necessary to consider separately these two hypotheses, each of which has a distinct branch of the argument corresponding to it. We can never be sure that the opinion we are endeavouring to stifle is a false opinion; and if we were sure, stifling it would be an evil still.

First: the opinion which it is attempted to suppress by authority may possibly be true. Those who desire to suppress it, of course deny its truth; but they are not infallible. They have no authority to decide the question for all mankind, and exclude every other person from the means of judging. To refuse a hearing to an opinion, because they are sure that it is false, is to assume that *their* certainty is the same thing as *absolute* certainty. All silencing of discussion is an assumption of infallibility. Its condemnation may be allowed to rest on this common argument, not the worse for being common.

Unfortunately for the good sense of mankind, the fact of their fallibility is far from carrying the weight in their practical judgment, which is always allowed to it in theory; for while every one well knows himself to be fallible, few think it necessary to take any precautions against their own fallibility, or admit the supposition that any opinion, of which they feel very certain, may be one of the examples of the error to which they acknowledge themselves to be liable. Absolute princes, or others who are accustomed to unlimited deference, usually feel this complete confidence in their own opinions on nearly all subjects. People more happily situated, who sometimes hear their opinions disputed, and are not wholly unused to be set right when they are wrong, place the same unbounded reliance only on such of their opinions as are shared by all who surround them, or to whom they habitually defer: for in proportion to a man's want of confidence in his own solitary judgment, does he usually repose, with implicit trust, on the infallibility of "the world" in general. And the world, to each individual, means the part of it with which he comes in contact; his party, his sect, his church, his class of society: the man may be called, by comparison, almost liberal and large-minded to whom it means anything so comprehensive as his own country or his own age. Nor is his faith in this collective authority at all shaken by his being aware that other ages, countries, sects, churches, classes, and parties have thought, and even now think, the exact reverse. He devolves upon his own world the responsibility of being in the right against the dissentient worlds of other people; and it never troubles him that mere accident has decided which of these numerous worlds is the object of his reliance, and that the same causes which make him a Churchman in London, would have made him a Buddhist or a Confucian in Peking. Yet it is as evident in itself as any amount of argument can make it, that ages are no more infallible than individuals; every age having held many opinions which subsequent ages have deemed not only false but absurd; and it is as certain that many opinions, now general, will be rejected by future ages, as it is that many, once general, are rejected by the present.

The objection likely to be made to this argument, would probably take some such form as the following. There is no greater assumption of infallibility in forbidding the propagation of error, than in any other thing which is done by public authority on its own judgment and responsibility. Judgment is given to men that they may use it. Because it may be used erroneously, are men to be told that they ought not to use it at all? To prohibit what they think pernicious, is not claiming exemption from error, but fulfilling the duty incumbent on them, although fallible, of acting on their conscientious conviction. If we were never to act on our opinions, because those opinions may be wrong, we should leave all our interests uncared for, and all our duties unperformed. An objection which applies to all conduct, can be no valid objection to any conduct in particular. It is the duty of governments, and of individuals, to form the truest opinions they can; to form them carefully, and never impose them upon others unless they are quite sure of being right. But when they are sure (such reasoners may say), it is not conscientiousness but cowardice to shrink from acting on their opinions, and allow doctrines which they honestly think dangerous to the welfare of mankind, either in this life or in another, to be scattered abroad without restraint, because other people, in less enlightened times, have persecuted opinions now believed to be true. Let us take care, it may be said, not to make the same mistake: but governments and nations have made mistakes in other things, which are not denied to be fit subjects for the exercise of authority: they have laid on bad taxes, made unjust wars. Ought we therefore to lay on no taxes, and, under whatever provocation, make no wars? Men, and governments, must act to the best of their ability. There is no such thing as absolute certainty, but there is assurance sufficient for the purposes of human life. We may, and must, assume our opinion to be true for the guidance of our own conduct: and it is assuming no more when we forbid bad men to pervert society by the propagation of opinions which we regard as false and pernicious.

I answer that it is assuming very much more. There is the greatest difference between presuming an opinion to be true, because, with every opportunity for contesting it, it has not been refuted, and assuming its truth for the purpose of not permitting its refutation. Complete liberty of contradicting and disproving our opinion, is the very condition which justifies us in assuming its truth for purposes of action; and on no other terms can a being with human faculties have any rational assurance of being right.

When we consider either the history of opinion, or the ordinary conduct of human life, to what is it to be ascribed that the one and the other are no worse than they are? Not certainly to the inherent force of the human understanding; for, on any matter not self-evident, there are ninety-nine persons totally incapable of judging of it, for one who is capable; and the capacity of the hundredth person is only comparative; for the majority of the eminent men of every past generation held many opinions now known to be erroneous, and did or approved numerous things which no one will now justify. Why is it, then, that there is on the whole a preponderance among mankind of rational opinions and rational conduct? If there really is this preponderance—which there must be, unless human affairs are, and have always been, in an almost desperate state—it is owing to a quality of the human mind, the source of everything respectable in man either as an intellectual or as a moral being, namely, that his errors are corrigible. He is capable of rectifying his mistakes, by discussion and experience. Not by experience alone. There must be discussion, to show how experience is to be interpreted. Wrong opinions and practices gradually yield to fact and argument: but facts and arguments, to produce any effect on the mind, must be brought before it. Very few facts are able to tell their own story, without comments to bring out their meaning. The whole strength and value, then, of human judgment, depending on the one property, that it can be set right when it is wrong, reliance can be placed on it only when the means of setting it right are kept

constantly at hand. In the case of any person whose judgment is really deserving of confidence, how has it become so? Because he has kept his mind open to criticism of his opinions and conduct. Because it has been his practice to listen to all that could be said against him; to profit by as much of it as was just, and expound to himself, and upon occasion to others, the fallacy of what was fallacious. Because he has felt, that the only way in which a human being can make some approach to knowing the whole of a subject, is by hearing what can be said about it by persons of every variety of opinion, and studying all modes in which it can be looked at by every character of mind. No wise man ever acquired his wisdom in any mode but this; nor is it in the nature of human intellect to become wise in any other manner. The steady habit of correcting and completing his own opinion by collating it with those of others, so far from causing doubt and hesitation in carrying it into practice, is the only stable foundation for a just reliance on it: for, being cognisant of all that can, at least obviously, be said against him, and having taken up his position against all gainsayers—knowing that he has sought for objections and difficulties, instead of avoiding them, and has shut out no light which can be thrown upon the subject from any quarter—he has a right to think his judgment better than that of any person, or any multitude, who have not gone through a similar process.

It is not too much to require that what the wisest of mankind, those who are best entitled to trust their own judgment, find necessary to warrant their relying on it, should be submitted to by that miscellaneous collection of a few wise and many foolish individuals, called the public. The most intolerant of churches, the Roman Catholic Church, even at the canonisation of a saint, admits, and listens patiently to, a "devil's advocate." The holiest of men, it appears, cannot be admitted to posthumous honours, until all that the devil could say against him is known and weighed. If even the Newtonian philosophy were not permitted to be questioned, mankind could not feel as complete assurance of its truth as they now do. The beliefs which we have most warrant for, have no safeguard to rest on, but a standing invitation to the whole world to prove them unfounded. If the challenge is not accepted, or is accepted and the attempt fails, we are far enough from certainty still; but we have done the best that the existing state of human reason admits of; we have neglected nothing that could give the truth a chance of reaching us: if the lists are kept open, we may hope that if there be a better truth, it will be found when the human mind is capable of receiving it; and in the meantime we may rely on having attained such approach to truth, as is possible in our own day. This is the amount of certainty attainable by a fallible being, and this the sole way of attaining it.

Strange it is, that men should admit the validity of the arguments for free discussion, but object to their being "pushed to an extreme;" not seeing that unless the reasons are good for an extreme case, they are not good for any case. Strange that they should imagine that they are not assuming infallibility, when they acknowledge that there should be free discussion on all subjects which can possibly be *doubtful*, but think that some particular principle or doctrine should be forbidden to be questioned because it is so *certain*, that is, because *they are certain* that it is certain. To call any proposition certain, while there is any one who would deny its certainty if permitted, but who is not permitted, is to assume that we ourselves, and those who agree with us, are the judges of certainty, and judges without hearing the other side.

In the present age—which has been described as "destitute of faith, but terrified at scepticism"—in which people feel sure, not so much that their opinions are true, as that they should not know what to do without them—the claims of an opinion to be protected from public attack are rested not so much on its truth, as on its importance to society. There are, it is alleged, certain beliefs, so useful, not to say

indispensable to well-being, that it is as much the duty of governments to uphold those beliefs, as to protect any other of the interests of society. In a case of such necessity, and so directly in the line of their duty, something less than infallibility may, it is maintained, warrant, and even bind, governments, to act on their own opinion, confirmed by the general opinion of mankind. It is also often argued, and still oftener thought, that none but bad men would desire to weaken these salutary beliefs; and there can be nothing wrong, it is thought, in restraining bad men, and prohibiting what only such men would wish to practise. This mode of thinking makes the justification of restraints on discussion not a question of the truth of doctrines, but of their usefulness; and flatters itself by that means to escape the responsibility of claiming to be an infallible judge of opinions. But those who thus satisfy themselves, do not perceive that the assumption of infallibility is merely shifted from one point to another. The usefulness of an opinion is itself matter of opinion: as disputable, as open to discussion, and requiring discussion as much, as the opinion itself. There is the same need of an infallible judge of opinions to decide an opinion to be noxious, as to decide it to be false, unless the opinion condemned has full opportunity of defending itself. And it will not do to say that the heretic may be allowed to maintain the utility or harmlessness of his opinion, though forbidden to maintain its truth. The truth of an opinion is part of its utility. If we would know whether or not it is desirable that a proposition should be believed, is it possible to exclude the consideration of whether or not it is true? In the opinion, not of bad men, but of the best men, no belief which is contrary to truth can be really useful: and can you prevent such men from urging that plea, when they are charged with culpability for denying some doctrine which they are told is useful, but which they believe to be false? Those who are on the side of received opinions, never fail to take all possible advantage of this plea; you do not find *them* handling the question of utility as if it could be completely abstracted from that of truth: on the contrary, it is, above all, because their doctrine is "the truth," that the knowledge or the belief of it is held to be so indispensable. There can be no fair discussion of the question of usefulness, when an argument so vital may be employed on one side, but not on the other. And in point of fact, when law or public feeling do not permit the truth of an opinion to be disputed, they are just as little tolerant of a denial of its usefulness. The utmost they allow is an extenuation of its absolute necessity, or of the positive guilt of rejecting it.

In order more fully to illustrate the mischief of denying a hearing to opinions because we, in our own judgment, have condemned them, it will be desirable to fix down the discussion to a concrete case; and I choose, by preference, the cases which are least favourable to me—in which the argument against freedom of opinion, both on the score of truth and on that of utility, is considered the strongest. Let the opinions impugned be the belief in a God and in a future state, or any of the commonly received doctrines of morality. To fight the battle on such ground, gives a great advantage to an unfair antagonist; since he will be sure to say (and many who have no desire to be unfair will say it internally), Are these the doctrines which you do not deem sufficiently certain to be taken under the protection of law? Is the belief in a God one of the opinions, to feel sure of which, you hold to be assuming infallibility? But I must be permitted to observe, that it is not the feeling sure of a doctrine (be it what it may) which I call an assumption of infallibility. It is the undertaking to decide that question *for others*, without allowing them to hear what can be said on the contrary side. And I denounce and reprobate this pretension not the less, if put forth on the side of my most solemn convictions. However positive any one's persuasion may be, not only of the falsity, but of the pernicious consequences—not only of the pernicious consequences, but (to adopt expressions which I altogether condemn) the immorality and impiety of an opinion; yet if, in pursuance of that private judgment, though backed by the public judgment of his country or his contemporaries, he prevents the opinion from being heard in its defence, he assumes infallibility. And so far from the assumption being less objectionable or less dangerous because the opinion is called

immoral or impious, this is the case of all others in which it is most fatal. These are exactly the occasions on which the men of one generation commit those dreadful mistakes, which excite the astonishment and horror of posterity. It is among such that we find the instances memorable in history, when the arm of the law has been employed to root out the best men and the noblest doctrines; with deplorable success as to the men, though some of the doctrines have survived to be (as if in mockery) invoked, in defence of similar conduct towards those who dissent from *them*, or from their received interpretation.

Mankind can hardly be too often reminded that there was once a man named Socrates, between whom and the legal authorities and public opinion of his time, there took place a memorable collision. Born in an age and country abounding in individual greatness, this man has been handed down to us by those who best knew both him and the age, as the most virtuous man in it; while we know him as the head and prototype of all subsequent teachers of virtue, the source equally of the lofty inspiration of Plato and the judicious utilitarianism of Aristotle, "*i maestri di color che sanno*," the two headsprings of ethical as of all other philosophy. This acknowledged master of all the eminent thinkers who have since lived—whose fame, still growing after more than two thousand years, all but outweighs the whole remainder of the names which make his native city illustrious—was put to death by his countrymen, after a judicial conviction, for impiety and immorality. Impiety, in denying the gods recognised by the State; indeed his accuser asserted (see the "Apologia") that he believed in no gods at all. Immorality, in being, by his doctrines and instructions, a "corruptor of youth." Of these charges the tribunal, there is every ground for believing, honestly found him guilty, and condemned the man who probably of all then born had deserved best of mankind, to be put to death as a criminal.

To pass from this to the only other instance of judicial iniquity, the mention of which, after the condemnation of Socrates, would not be an anticlimax: the event which took place on Calvary rather more than eighteen hundred years ago. The man who left on the memory of those who witnessed his life and conversation, such an impression of his moral grandeur, that eighteen subsequent centuries have done homage to him as the Almighty in person, was ignominiously put to death, as what? As a blasphemer. Men did not merely mistake their benefactor; they mistook him for the exact contrary of what he was, and treated him as that prodigy of impiety, which they themselves are now held to be, for their treatment of him. The feelings with which mankind now regard these lamentable transactions, especially the later of the two, render them extremely unjust in their judgment of the unhappy actors. These were, to all appearance, not bad men—not worse than men commonly are, but rather the contrary; men who possessed in a full, or somewhat more than a full measure, the religious, moral, and patriotic feelings of their time and people: the very kind of men who, in all times, our own included, have every chance of passing through life blameless and respected. The high-priest who rent his garments when the words were pronounced, which, according to all the ideas of his country, constituted the blackest guilt, was in all probability quite as sincere in his horror and indignation, as the generality of respectable and pious men now are in the religious and moral sentiments they profess; and most of those who now shudder at his conduct, if they had lived in his time, and been born Jews, would have acted precisely as he did. Orthodox Christians who are tempted to think that those who stoned to death the first martyrs must have been worse men than they themselves are, ought to remember that one of those persecutors was Saint Paul.

Let us add one more example, the most striking of all, if the impressiveness of an error is measured by the wisdom and virtue of him who falls into it. If ever any one, possessed of power, had grounds for

thinking himself the best and most enlightened among his cotemporaries, it was the Emperor Marcus Aurelius. Absolute monarch of the whole civilised world, he preserved through life not only the most unblemished justice, but what was less to be expected from his Stoical breeding, the tenderest heart. The few failings which are attributed to him, were all on the side of indulgence: while his writings, the highest ethical product of the ancient mind, differ scarcely perceptibly, if they differ at all, from the most characteristic teachings of Christ. This man, a better Christian in all but the dogmatic sense of the word, than almost any of the ostensibly Christian sovereigns who have since reigned, persecuted Christianity. Placed at the summit of all the previous attainments of humanity, with an open, unfettered intellect, and a character which led him of himself to embody in his moral writings the Christian ideal, he yet failed to see that Christianity was to be a good and not an evil to the world, with his duties to which he was so deeply penetrated. Existing society he knew to be in a deplorable state. But such as it was, he saw, or thought he saw, that it was held together, and prevented from being worse, by belief and reverence of the received divinities. As a ruler of mankind, he deemed it his duty not to suffer society to fall in pieces; and saw not how, if its existing ties were removed, any others could be formed which could again knit it together. The new religion openly aimed at dissolving these ties: unless, therefore, it was his duty to adopt that religion, it seemed to be his duty to put it down. Inasmuch then as the theology of Christianity did not appear to him true or of divine origin; inasmuch as this strange history of a crucified God was not credible to him, and a system which purported to rest entirely upon a foundation to him so wholly unbelievable, could not be foreseen by him to be that renovating agency which, after all abatements, it has in fact proved to be; the gentlest and most amiable of philosophers and rulers, under a solemn sense of duty, authorised the persecution of Christianity. To my mind this is one of the most tragical facts in all history. It is a bitter thought, how different a thing the Christianity of the world might have been, if the Christian faith had been adopted as the religion of the empire under the auspices of Marcus Aurelius instead of those of Constantine. But it would be equally unjust to him and false to truth, to deny, that no one plea which can be urged for punishing anti-Christian teaching, was wanting to Marcus Aurelius for punishing, as he did, the propagation of Christianity. No Christian more firmly believes that Atheism is false, and tends to the dissolution of society, than Marcus Aurelius believed the same things of Christianity; he who, of all men then living, might have been thought the most capable of appreciating it. Unless any one who approves of punishment for the promulgation of opinions, flatters himself that he is a wiser and better man than Marcus Aurelius—more deeply versed in the wisdom of his time, more elevated in his intellect above it—more earnest in his search for truth, or more single-minded in his devotion to it when found;—let him abstain from that assumption of the joint infallibility of himself and the multitude, which the great Antoninus made with so unfortunate a result.

Aware of the impossibility of defending the use of punishment for restraining irreligious opinions, by any argument which will not justify Marcus Antoninus, the enemies of religious freedom, when hard pressed, occasionally accept this consequence, and say, with Dr. Johnson, that the persecutors of Christianity were in the right; that persecution is an ordeal through which truth ought to pass, and always passes successfully, legal penalties being, in the end, powerless against truth, though sometimes beneficially effective against mischievous errors. This is a form of the argument for religious intolerance, sufficiently remarkable not to be passed without notice.

A theory which maintains that truth may justifiably be persecuted because persecution cannot possibly do it any harm, cannot be charged with being intentionally hostile to the reception of new truths; but we cannot commend the generosity of its dealing with the persons to whom mankind are indebted for them. To discover to the world something which deeply concerns it, and of which it was previously ignorant;

to prove to it that it had been mistaken on some vital point of temporal or spiritual interest, is as important a service as a human being can render to his fellow-creatures, and in certain cases, as in those of the early Christians and of the Reformers, those who think with Dr. Johnson believe it to have been the most precious gift which could be bestowed on mankind. That the authors of such splendid benefits should be requited by martyrdom; that their reward should be to be dealt with as the vilest of criminals, is not, upon this theory, a deplorable error and misfortune, for which humanity should mourn in sackcloth and ashes, but the normal and justifiable state of things. The propounder of a new truth, according to this doctrine, should stand, as stood, in the legislation of the Locrians, the proposer of a new law, with a halter round his neck, to be instantly tightened if the public assembly did not, on hearing his reasons, then and there adopt his proposition. People who defend this mode of treating benefactors, cannot be supposed to set much value on the benefit; and I believe this view of the subject is mostly confined to the sort of persons who think that new truths may have been desirable once, but that we have had enough of them now.

But, indeed, the dictum that truth always triumphs over persecution, is one of those pleasant falsehoods which men repeat after one another till they pass into commonplaces, but which all experience refutes. History teems with instances of truth put down by persecution. If not suppressed for ever, it may be thrown back for centuries. To speak only of religious opinions: the Reformation broke out at least twenty times before Luther, and was put down. Arnold of Brescia was put down. Fra Dolcino was put down. Savonarola was put down. The Albigeois were put down. The Vaudois were put down. The Lollards were put down. The Hussites were put down. Even after the era of Luther, wherever persecution was persisted in, it was successful. In Spain, Italy, Flanders, the Austrian empire, Protestantism was rooted out; and, most likely, would have been so in England, had Queen Mary lived, or Queen Elizabeth died. Persecution has always succeeded, save where the heretics were too strong a party to be effectually persecuted. No reasonable person can doubt that Christianity might have been extirpated in the Roman Empire. It spread, and became predominant, because the persecutions were only occasional, lasting but a short time, and separated by long intervals of almost undisturbed propagandism. It is a piece of idle sentimentality that truth, merely as truth, has any inherent power denied to error, of prevailing against the dungeon and the stake. Men are not more zealous for truth than they often are for error, and a sufficient application of legal or even of social penalties will generally succeed in stopping the propagation of either. The real advantage which truth has, consists in this, that when an opinion is true, it may be extinguished once, twice, or many times, but in the course of ages there will generally be found persons to rediscover it, until some one of its reappearances falls on a time when from favourable circumstances it escapes persecution until it has made such head as to withstand all subsequent attempts to suppress it.

It will be said, that we do not now put to death the introducers of new opinions: we are not like our fathers who slew the prophets, we even build sepulchres to them. It is true we no longer put heretics to death; and the amount of penal infliction which modern feeling would probably tolerate, even against the most obnoxious opinions, is not sufficient to extirpate them. But let us not flatter ourselves that we are yet free from the stain even of legal persecution. Penalties for opinion, or at least for its expression, still exist by law; and their enforcement is not, even in these times, so unexampled as to make it at all incredible that they may some day be revived in full force. In the year 1857, at the summer assizes of the county of Cornwall, an unfortunate man, said to be of unexceptionable conduct in all relations of life, was sentenced to twenty-one months' imprisonment, for uttering, and writing on a gate, some offensive words concerning Christianity. Within a month of the same time, at the Old Bailey, two persons, on two

separate occasions, were rejected as jurymen, and one of them grossly insulted by the judge and by one of the counsel, because they honestly declared that they had no theological belief; and a third, a foreigner, for the same reason, was denied justice against a thief. This refusal of redress took place in virtue of the legal doctrine, that no person can be allowed to give evidence in a court of justice, who does not profess belief in a God (any god is sufficient) and in a future state; which is equivalent to declaring such persons to be outlaws, excluded from the protection of the tribunals; who may not only be robbed or assaulted with impunity, if no one but themselves, or persons of similar opinions, be present, but any one else may be robbed or assaulted with impunity, if the proof of the fact depends on their evidence. The assumption on which this is grounded, is that the oath is worthless, of a person who does not believe in a future state; a proposition which betokens much ignorance of history in those who assent to it (since it is historically true that a large proportion of infidels in all ages have been persons of distinguished integrity and honour); and would be maintained by no one who had the smallest conception how many of the persons in greatest repute with the world, both for virtues and for attainments, are well known, at least to their intimates, to be unbelievers. The rule, besides, is suicidal, and cuts away its own foundation. Under pretence that atheists must be liars, it admits the testimony of all atheists who are willing to lie, and rejects only those who brave the obloquy of publicly confessing a detested creed rather than affirm a falsehood. A rule thus self-convicted of absurdity so far as regards its professed purpose, can be kept in force only as a badge of hatred, a relic of persecution; a persecution, too, having the peculiarity, that the qualification for undergoing it, is the being clearly proved not to deserve it. The rule, and the theory it implies, are hardly less insulting to believers than to infidels. For if he who does not believe in a future state, necessarily lies, it follows that they who do believe are only prevented from lying, if prevented they are, by the fear of hell. We will not do the authors and abettors of the rule the injury of supposing, that the conception which they have formed of Christian virtue is drawn from their own consciousness.

These, indeed, are but rags and remnants of persecution, and may be thought to be not so much an indication of the wish to persecute, as an example of that very frequent infirmity of English minds, which makes them take a preposterous pleasure in the assertion of a bad principle, when they are no longer bad enough to desire to carry it really into practice. But unhappily there is no security in the state of the public mind, that the suspension of worse forms of legal persecution, which has lasted for about the space of a generation, will continue. In this age the quiet surface of routine is as often ruffled by attempts to resuscitate past evils, as to introduce new benefits. What is boasted of at the present time as the revival of religion, is always, in narrow and uncultivated minds, at least as much the revival of bigotry; and where there is the strong permanent leaven of intolerance in the feelings of a people, which at all times abides in the middle classes of this country, it needs but little to provoke them into actively persecuting those whom they have never ceased to think proper objects of persecution. For it is this—it is the opinions men entertain, and the feelings they cherish, respecting those who disown the beliefs they deem important, which makes this country not a place of mental freedom. For a long time past, the chief mischief of the legal penalties is that they strengthen the social stigma. It is that stigma which is really effective, and so effective is it that the profession of opinions which are under the ban of society is much less common in England, than is, in many other countries, the avowal of those which incur risk of judicial punishment. In respect to all persons but those whose pecuniary circumstances make them independent of the good will of other people, opinion, on this subject, is as efficacious as law; men might as well be imprisoned, as excluded from the means of earning their bread. Those whose bread is already secured, and who desire no favours from men in power, or from bodies of men, or from the public, have nothing to fear from the open avowal of any opinions, but to be ill-thought of and ill-spoken

of, and this it ought not to require a very heroic mould to enable them to bear. There is no room for any appeal *ad misericordiam* in behalf of such persons. But though we do not now inflict so much evil on those who think differently from us, as it was formerly our custom to do, it may be that we do ourselves as much evil as ever by our treatment of them. Socrates was put to death, but the Socratic philosophy rose like the sun in heaven, and spread its illumination over the whole intellectual firmament. Christians were cast to the lions, but the Christian church grew up a stately and spreading tree, overtopping the older and less vigorous growths, and stifling them by its shade. Our merely social intolerance kills no one, roots out no opinions, but induces men to disguise them, or to abstain from any active effort for their diffusion. With us, heretical opinions do not perceptibly gain, or even lose, ground in each decade or generation; they never blaze out far and wide, but continue to smoulder in the narrow circles of thinking and studious persons among whom they originate, without ever lighting up the general affairs of mankind with either a true or a deceptive light. And thus is kept up a state of things very satisfactory to some minds, because, without the unpleasant process of fining or imprisoning anybody, it maintains all prevailing opinions outwardly undisturbed, while it does not absolutely interdict the exercise of reason by dissentients afflicted with the malady of thought. A convenient plan for having peace in the intellectual world, and keeping all things going on therein very much as they do already. But the price paid for this sort of intellectual pacification, is the sacrifice of the entire moral courage of the human mind. A state of things in which a large portion of the most active and inquiring intellects find it advisable to keep the genuine principles and grounds of their convictions within their own breasts, and attempt, in what they address to the public, to fit as much as they can of their own conclusions to premises which they have internally renounced, cannot send forth the open, fearless characters, and logical, consistent intellects who once adorned the thinking world. The sort of men who can be looked for under it, are either mere conformers to commonplace, or time-servers for truth, whose arguments on all great subjects are meant for their hearers, and are not those which have convinced themselves. Those who avoid this alternative, do so by narrowing their thoughts and interest to things which can be spoken of without venturing within the region of principles, that is, to small practical matters, which would come right of themselves, if but the minds of mankind were strengthened and enlarged, and which will never be made effectually right until then: while that which would strengthen and enlarge men's minds, free and daring speculation on the highest subjects, is abandoned.

Those in whose eyes this reticence on the part of heretics is no evil, should consider in the first place, that in consequence of it there is never any fair and thorough discussion of heretical opinions; and that such of them as could not stand such a discussion, though they may be prevented from spreading, do not disappear. But it is not the minds of heretics that are deteriorated most, by the ban placed on all inquiry which does not end in the orthodox conclusions. The greatest harm done is to those who are not heretics, and whose whole mental development is cramped, and their reason cowed, by the fear of heresy. Who can compute what the world loses in the multitude of promising intellects combined with timid characters, who dare not follow out any bold, vigorous, independent train of thought, lest it should land them in something which would admit of being considered irreligious or immoral? Among them we may occasionally see some man of deep conscientiousness, and subtle and refined understanding, who spends a life in sophisticating with an intellect which he cannot silence, and exhausts the resources of ingenuity in attempting to reconcile the promptings of his conscience and reason with orthodoxy, which yet he does not, perhaps, to the end succeed in doing. No one can be a great thinker who does not recognise, that as a thinker it is his first duty to follow his intellect to whatever conclusions it may lead. Truth gains more even by the errors of one who, with due study and preparation, thinks for himself, than by the true opinions of those who only hold them because they do not suffer themselves to think. Not that it is

solely, or chiefly, to form great thinkers, that freedom of thinking is required. On the contrary, it is as much, and even more indispensable, to enable average human beings to attain the mental stature which they are capable of. There have been, and may again be, great individual thinkers, in a general atmosphere of mental slavery. But there never has been, nor ever will be, in that atmosphere, an intellectually active people. Where any people has made a temporary approach to such a character, it has been because the dread of heterodox speculation was for a time suspended. Where there is a tacit convention that principles are not to be disputed; where the discussion of the greatest questions which can occupy humanity is considered to be closed, we cannot hope to find that generally high scale of mental activity which has made some periods of history so remarkable. Never when controversy avoided the subjects which are large and important enough to kindle enthusiasm, was the mind of a people stirred up from its foundations, and the impulse given which raised even persons of the most ordinary intellect to something of the dignity of thinking beings. Of such we have had an example in the condition of Europe during the times immediately following the Reformation; another, though limited to the Continent and to a more cultivated class, in the speculative movement of the latter half of the eighteenth century; and a third, of still briefer duration, in the intellectual fermentation of Germany during the Goethian and Fichtean period. These periods differed widely in the particular opinions which they developed; but were alike in this, that during all three the yoke of authority was broken. In each, an old mental despotism had been thrown off, and no new one had yet taken its place. The impulse given at these three periods has made Europe what it now is. Every single improvement which has taken place either in the human mind or in institutions, may be traced distinctly to one or other of them. Appearances have for some time indicated that all three impulses are well-nigh spent; and we can expect no fresh start, until we again assert our mental freedom.

Let us now pass to the second division of the argument, and dismissing the supposition that any of the received opinions may be false, let us assume them to be true, and examine into the worth of the manner in which they are likely to be held, when their truth is not freely and openly canvassed. However unwillingly a person who has a strong opinion may admit the possibility that his opinion may be false, he ought to be moved by the consideration that however true it may be, if it is not fully, frequently, and fearlessly discussed, it will be held as a dead dogma, not a living truth.

There is a class of persons (happily not quite so numerous as formerly) who think it enough if a person assents undoubtingly to what they think true, though he has no knowledge whatever of the grounds of the opinion, and could not make a tenable defence of it against the most superficial objections. Such persons, if they can once get their creed taught from authority, naturally think that no good, and some harm, comes of its being allowed to be questioned. Where their influence prevails, they make it nearly impossible for the received opinion to be rejected wisely and considerately, though it may still be rejected rashly and ignorantly; for to shut out discussion entirely is seldom possible, and when it once gets in, beliefs not grounded on conviction are apt to give way before the slightest semblance of an argument. Waiving, however, this possibility—assuming that the true opinion abides in the mind, but abides as a prejudice, a belief independent of, and proof against, argument—this is not the way in which truth ought to be held by a rational being. This is not knowing the truth. Truth, thus held, is but one superstition the more, accidentally clinging to the words which enunciate a truth.

If the intellect and judgment of mankind ought to be cultivated, a thing which Protestants at least do not deny, on what can these faculties be more appropriately exercised by any one, than on the things which concern him so much that it is considered necessary for him to hold opinions on them? If the cultivation

of the understanding consists in one thing more than in another, it is surely in learning the grounds of one's own opinions. Whatever people believe, on subjects on which it is of the first importance to believe rightly, they ought to be able to defend against at least the common objections. But, some one may say, "Let them be *taught* the grounds of their opinions. It does not follow that opinions must be merely parroted because they are never heard controverted. Persons who learn geometry do not simply commit the theorems to memory, but understand and learn likewise the demonstrations; and it would be absurd to say that they remain ignorant of the grounds of geometrical truths, because they never hear any one deny, and attempt to disprove them." Undoubtedly: and such teaching suffices on a subject like mathematics, where there is nothing at all to be said on the wrong side of the question. The peculiarity of the evidence of mathematical truths is, that all the argument is on one side. There are no objections, and no answers to objections. But on every subject on which difference of opinion is possible, the truth depends on a balance to be struck between two sets of conflicting reasons. Even in natural philosophy, there is always some other explanation possible of the same facts; some geocentric theory instead of heliocentric, some phlogiston instead of oxygen; and it has to be shown why that other theory cannot be the true one: and until this is shown, and until we know how it is shown, we do not understand the grounds of our opinion. But when we turn to subjects infinitely more complicated, to morals, religion, politics, social relations, and the business of life, three-fourths of the arguments for every disputed opinion consist in dispelling the appearances which favour some opinion different from it. The greatest orator, save one, of antiquity, has left it on record that he always studied his adversary's case with as great, if not with still greater, intensity than even his own. What Cicero practised as the means of forensic success, requires to be imitated by all who study any subject in order to arrive at the truth. He who knows only his own side of the case, knows little of that. His reasons may be good, and no one may have been able to refute them. But if he is equally unable to refute the reasons on the opposite side; if he does not so much as know what they are, he has no ground for preferring either opinion. The rational position for him would be suspension of judgment, and unless he contents himself with that, he is either led by authority, or adopts, like the generality of the world, the side to which he feels most inclination. Nor is it enough that he should hear the arguments of adversaries from his own teachers, presented as they state them, and accompanied by what they offer as refutations. That is not the way to do justice to the arguments, or bring them into real contact with his own mind. He must be able to hear them from persons who actually believe them; who defend them in earnest, and do their very utmost for them. He must know them in their most plausible and persuasive form; he must feel the whole force of the difficulty which the true view of the subject has to encounter and dispose of; else he will never really possess himself of the portion of truth which meets and removes that difficulty. Ninety-nine in a hundred of what are called educated men are in this condition; even of those who can argue fluently for their opinions. Their conclusion may be true, but it might be false for anything they know: they have never thrown themselves into the mental position of those who think differently from them, and considered what such persons may have to say; and consequently they do not, in any proper sense of the word, know the doctrine which they themselves profess. They do not know those parts of it which explain and justify the remainder; the considerations which show that a fact which seemingly conflicts with another is reconcilable with it, or that, of two apparently strong reasons, one and not the other ought to be preferred. All that part of the truth which turns the scale, and decides the judgment of a completely informed mind, they are strangers to; nor is it ever really known, but to those who have attended equally and impartially to both sides, and endeavoured to see the reasons of both in the strongest light. So essential is this discipline to a real understanding of moral and human subjects, that if opponents of all important truths do not exist, it is indispensable to imagine them, and supply them with the strongest arguments which the most skilful devil's advocate can conjure up.

To abate the force of these considerations, an enemy of free discussion may be supposed to say, that there is no necessity for mankind in general to know and understand all that can be said against or for their opinions by philosophers and theologians. That it is not needful for common men to be able to expose all the misstatements or fallacies of an ingenious opponent. That it is enough if there is always somebody capable of answering them, so that nothing likely to mislead uninstructed persons remains unrefuted. That simple minds, having been taught the obvious grounds of the truths inculcated on them, may trust to authority for the rest, and being aware that they have neither knowledge nor talent to resolve every difficulty which can be raised, may repose in the assurance that all those which have been raised have been or can be answered, by those who are specially trained to the task.

Conceding to this view of the subject the utmost that can be claimed for it by those most easily satisfied with the amount of understanding of truth which ought to accompany the belief of it; even so, the argument for free discussion is no way weakened. For even this doctrine acknowledges that mankind ought to have a rational assurance that all objections have been satisfactorily answered; and how are they to be answered if that which requires to be answered is not spoken? or how can the answer be known to be satisfactory, if the objectors have no opportunity of showing that it is unsatisfactory? If not the public, at least the philosophers and theologians who are to resolve the difficulties, must make themselves familiar with those difficulties in their most puzzling form; and this cannot be accomplished unless they are freely stated, and placed in the most advantageous light which they admit of. The Catholic Church has its own way of dealing with this embarrassing problem. It makes a broad separation between those who can be permitted to receive its doctrines on conviction, and those who must accept them on trust. Neither, indeed, are allowed any choice as to what they will accept; but the clergy, such at least as can be fully confided in, may admissibly and meritoriously make themselves acquainted with the arguments of opponents, in order to answer them, and may, therefore, read heretical books; the laity, not unless by special permission, hard to be obtained. This discipline recognises a knowledge of the enemy's case as beneficial to the teachers, but finds means, consistent with this, of denying it to the rest of the world: thus giving to the *élite* more mental culture, though not more mental freedom, than it allows to the mass. By this device it succeeds in obtaining the kind of mental superiority which its purposes require; for though culture without freedom never made a large and liberal mind, it can make a clever *nisi prius* advocate of a cause. But in countries professing Protestantism, this resource is denied; since Protestants hold, at least in theory, that the responsibility for the choice of a religion must be borne by each for himself, and cannot be thrown off upon teachers. Besides, in the present state of the world, it is practically impossible that writings which are read by the instructed can be kept from the uninstructed. If the teachers of mankind are to be cognisant of all that they ought to know, everything must be free to be written and published without restraint.

If, however, the mischievous operation of the absence of free discussion, when the received opinions are true, were confined to leaving men ignorant of the grounds of those opinions, it might be thought that this, if an intellectual, is no moral evil, and does not affect the worth of the opinions, regarded in their influence on the character. The fact, however, is, that not only the grounds of the opinion are forgotten in the absence of discussion, but too often the meaning of the opinion itself. The words which convey it, cease to suggest ideas, or suggest only a small portion of those they were originally employed to communicate. Instead of a vivid conception and a living belief, there remain only a few phrases retained by rote; or, if any part, the shell and husk only of the meaning is retained, the finer essence being lost. The great chapter in human history which this fact occupies and fills, cannot be too earnestly studied and meditated on.

It is illustrated in the experience of almost all ethical doctrines and religious creeds. They are all full of meaning and vitality to those who originate them, and to the direct disciples of the originators. Their meaning continues to be felt in undiminished strength, and is perhaps brought out into even fuller consciousness, so long as the struggle lasts to give the doctrine or creed an ascendancy over other creeds. At last it either prevails, and becomes the general opinion, or its progress stops; it keeps possession of the ground it has gained, but ceases to spread further. When either of these results has become apparent, controversy on the subject flags, and gradually dies away. The doctrine has taken its place, if not as a received opinion, as one of the admitted sects or divisions of opinion: those who hold it have generally inherited, not adopted it; and conversion from one of these doctrines to another, being now an exceptional fact, occupies little place in the thoughts of their professors. Instead of being, as at first, constantly on the alert either to defend themselves against the world, or to bring the world over to them, they have subsided into acquiescence, and neither listen, when they can help it, to arguments against their creed, nor trouble dissentients (if there be such) with arguments in its favour. From this time may usually be dated the decline in the living power of the doctrine. We often hear the teachers of all creeds lamenting the difficulty of keeping up in the minds of believers a lively apprehension of the truth which they nominally recognise, so that it may penetrate the feelings, and acquire a real mastery over the conduct. No such difficulty is complained of while the creed is still fighting for its existence: even the weaker combatants then know and feel what they are fighting for, and the difference between it and other doctrines; and in that period of every creed's existence, not a few persons may be found, who have realised its fundamental principles in all the forms of thought, have weighed and considered them in all their important bearings, and have experienced the full effect on the character, which belief in that creed ought to produce in a mind thoroughly imbued with it. But when it has come to be a hereditary creed, and to be received passively, not actively—when the mind is no longer compelled, in the same degree as at first, to exercise its vital powers on the questions which its belief presents to it, there is a progressive tendency to forget all of the belief except the formularies, or to give it a dull and torpid assent, as if accepting it on trust dispensed with the necessity of realising it in consciousness, or testing it by personal experience; until it almost ceases to connect itself at all with the inner life of the human being. Then are seen the cases, so frequent in this age of the world as almost to form the majority, in which the creed remains as it were outside the mind, encrusting and petrifying it against all other influences addressed to the higher parts of our nature; manifesting its power by not suffering any fresh and living conviction to get in, but itself doing nothing for the mind or heart, except standing sentinel over them to keep them vacant...

22 On Liberty, Part 2 (John Stuart Mill)

*On Liberty*¹

CHAPTER II. OF THE LIBERTY OF THOUGHT AND DISCUSSION.

...To what an extent doctrines intrinsically fitted to make the deepest impression upon the mind may remain in it as dead beliefs, without being ever realised in the imagination, the feelings, or the understanding, is exemplified by the manner in which the majority of believers hold the doctrines of Christianity. By Christianity I here mean what is accounted such by all churches and sects—the maxims and precepts contained in the New Testament. These are considered sacred, and accepted as laws, by all professing Christians. Yet it is scarcely too much to say that not one Christian in a thousand guides or tests his individual conduct by reference to those laws. The standard to which he does refer it, is the custom of his nation, his class, or his religious profession. He has thus, on the one hand, a collection of ethical maxims, which he believes to have been vouchsafed to him by infallible wisdom as rules for his government; and on the other, a set of every-day judgments and practices, which go a certain length with some of those maxims, not so great a length with others, stand in direct opposition to some, and are, on the whole, a compromise between the Christian creed and the interests and suggestions of worldly life. To the first of these standards he gives his homage; to the other his real allegiance. All Christians believe that the blessed are the poor and humble, and those who are ill-used by the world; that it is easier for a camel to pass through the eye of a needle than for a rich man to enter the kingdom of heaven; that they should judge not, lest they be judged; that they should swear not at all; that they should love their neighbour as themselves; that if one take their cloak, they should give him their coat also; that they should take no thought for the morrow; that if they would be perfect, they should sell all that they have and give it to the poor. They are not insincere when they say that they believe these things. They do believe them, as people believe what they have always heard lauded and never discussed. But in the sense of that living belief which regulates conduct, they believe these doctrines just up to the point to which it is usual to act upon them. The doctrines in their integrity are serviceable to pelt adversaries with; and it is understood that they are to be put forward (when possible) as the reasons for whatever people do that they think laudable. But any one who reminded them that the maxims require an infinity of things which they never even think of doing, would gain nothing but to be classed among those very unpopular characters who affect to be better than other people. The doctrines have no hold on ordinary believers—are not a power in their minds. They have a habitual respect for the sound of them, but no feeling which spreads from the words to the things signified, and forces the mind to take *them* in, and make them conform to the formula. Whenever conduct is concerned, they look round for Mr. A and B to direct them how far to go in obeying Christ.

Now we may be well assured that the case was not thus, but far otherwise, with the early Christians. Had it been thus, Christianity never would have expanded from an obscure sect of the despised Hebrews into the religion of the Roman empire. When their enemies said, "See how these Christians love one another"

¹ John Stuart Mill, 1859.

(a remark not likely to be made by anybody now), they assuredly had a much livelier feeling of the meaning of their creed than they have ever had since. And to this cause, probably, it is chiefly owing that Christianity now makes so little progress in extending its domain, and after eighteen centuries, is still nearly confined to Europeans and the descendants of Europeans. Even with the strictly religious, who are much in earnest about their doctrines, and attach a greater amount of meaning to many of them than people in general, it commonly happens that the part which is thus comparatively active in their minds is that which was made by Calvin, or Knox, or some such person much nearer in character to themselves. The sayings of Christ coexist passively in their minds, producing hardly any effect beyond what is caused by mere listening to words so amiable and bland. There are many reasons, doubtless, why doctrines which are the badge of a sect retain more of their vitality than those common to all recognised sects, and why more pains are taken by teachers to keep their meaning alive; but one reason certainly is, that the peculiar doctrines are more questioned, and have to be oftener defended against open gainsayers. Both teachers and learners go to sleep at their post, as soon as there is no enemy in the field.

The same thing holds true, generally speaking, of all traditional doctrines—those of prudence and knowledge of life, as well as of morals or religion. All languages and literatures are full of general observations on life, both as to what it is, and how to conduct oneself in it; observations which everybody knows, which everybody repeats, or hears with acquiescence, which are received as truisms, yet of which most people first truly learn the meaning, when experience, generally of a painful kind, has made it a reality to them. How often, when smarting under some unforeseen misfortune or disappointment, does a person call to mind some proverb or common saying, familiar to him all his life, the meaning of which, if he had ever before felt it as he does now, would have saved him from the calamity. There are indeed reasons for this, other than the absence of discussion: there are many truths of which the full meaning *cannot* be realised, until personal experience has brought it home. But much more of the meaning even of these would have been understood, and what was understood would have been far more deeply impressed on the mind, if the man had been accustomed to hear it argued *pro* and *con* by people who did understand it. The fatal tendency of mankind to leave off thinking about a thing when it is no longer doubtful, is the cause of half their errors. A contemporary author has well spoken of "the deep slumber of a decided opinion."

But what! (it may be asked) Is the absence of unanimity an indispensable condition of true knowledge? Is it necessary that some part of mankind should persist in error, to enable any to realise the truth? Does a belief cease to be real and vital as soon as it is generally received—and is a proposition never thoroughly understood and felt unless some doubt of it remains? As soon as mankind have unanimously accepted a truth, does the truth perish within them? The highest aim and best result of improved intelligence, it has hitherto been thought, is to unite mankind more and more in the acknowledgment of all important truths: and does the intelligence only last as long as it has not achieved its object? Do the fruits of conquest perish by the very completeness of the victory?

I affirm no such thing. As mankind improve, the number of doctrines which are no longer disputed or doubted will be constantly on the increase: and the well-being of mankind may almost be measured by the number and gravity of the truths which have reached the point of being uncontested. The cessation, on one question after another, of serious controversy, is one of the necessary incidents of the consolidation of opinion; a consolidation as salutary in the case of true opinions, as it is dangerous and noxious when the opinions are erroneous. But though this gradual narrowing of the bounds of diversity of opinion is necessary in both senses of the term, being at once inevitable and indispensable, we are not

therefore obliged to conclude that all its consequences must be beneficial. The loss of so important an aid to the intelligent and living apprehension of a truth, as is afforded by the necessity of explaining it to, or defending it against, opponents, though not sufficient to outweigh, is no trifling drawback from, the benefit of its universal recognition. Where this advantage can no longer be had, I confess I should like to see the teachers of mankind endeavouring to provide a substitute for it; some contrivance for making the difficulties of the question as present to the learner's consciousness, as if they were pressed upon him by a dissentient champion, eager for his conversion.

But instead of seeking contrivances for this purpose, they have lost those they formerly had. The Socratic dialectics, so magnificently exemplified in the dialogues of Plato, were a contrivance of this description. They were essentially a negative discussion of the great questions of philosophy and life, directed with consummate skill to the purpose of convincing any one who had merely adopted the commonplaces of received opinion, that he did not understand the subject—that he as yet attached no definite meaning to the doctrines he professed; in order that, becoming aware of his ignorance, he might be put in the way to attain a stable belief, resting on a clear apprehension both of the meaning of doctrines and of their evidence. The school disputations of the middle ages had a somewhat similar object. They were intended to make sure that the pupil understood his own opinion, and (by necessary correlation) the opinion opposed to it, and could enforce the grounds of the one and confute those of the other. These last-mentioned contests had indeed the incurable defect, that the premises appealed to were taken from authority, not from reason; and, as a discipline to the mind, they were in every respect inferior to the powerful dialectics which formed the intellects of the "Socratici viri": but the modern mind owes far more to both than it is generally willing to admit, and the present modes of education contain nothing which in the smallest degree supplies the place either of the one or of the other. A person who derives all his instruction from teachers or books, even if he escape the besetting temptation of contenting himself with cram, is under no compulsion to hear both sides; accordingly it is far from a frequent accomplishment, even among thinkers, to know both sides; and the weakest part of what everybody says in defence of his opinion, is what he intends as a reply to antagonists. It is the fashion of the present time to disparage negative logic—that which points out weaknesses in theory or errors in practice, without establishing positive truths. Such negative criticism would indeed be poor enough as an ultimate result; but as a means to attaining any positive knowledge or conviction worthy the name, it cannot be valued too highly; and until people are again systematically trained to it, there will be few great thinkers, and a low general average of intellect, in any but the mathematical and physical departments of speculation. On any other subject no one's opinions deserve the name of knowledge, except so far as he has either had forced upon him by others, or gone through of himself, the same mental process which would have been required of him in carrying on an active controversy with opponents. That, therefore, which when absent, it is so indispensable, but so difficult, to create, how worse than absurd is it to forego, when spontaneously offering itself! If there are any persons who contest a received opinion, or who will do so if law or opinion will let them, let us thank them for it, open our minds to listen to them, and rejoice that there is some one to do for us what we otherwise ought, if we have any regard for either the certainty or the vitality of our convictions, to do with much greater labour for ourselves.

It still remains to speak of one of the principal causes which make diversity of opinion advantageous, and will continue to do so until mankind shall have entered a stage of intellectual advancement which at present seems at an incalculable distance. We have hitherto considered only two possibilities: that the received opinion may be false, and some other opinion, consequently, true; or that, the received opinion

being true, a conflict with the opposite error is essential to a clear apprehension and deep feeling of its truth. But there is a commoner case than either of these; when the conflicting doctrines, instead of being one true and the other false, share the truth between them; and the nonconforming opinion is needed to supply the remainder of the truth, of which the received doctrine embodies only a part. Popular opinions, on subjects not palpable to sense, are often true, but seldom or never the whole truth. They are a part of the truth; sometimes a greater, sometimes a smaller part, but exaggerated, distorted, and disjoined from the truths by which they ought to be accompanied and limited. Heretical opinions, on the other hand, are generally some of these suppressed and neglected truths, bursting the bonds which kept them down, and either seeking reconciliation with the truth contained in the common opinion, or fronting it as enemies, and setting themselves up, with similar exclusiveness, as the whole truth. The latter case is hitherto the most frequent, as, in the human mind, one-sidedness has always been the rule, and many-sidedness the exception. Hence, even in revolutions of opinion, one part of the truth usually sets while another rises. Even progress, which ought to superadd, for the most part only substitutes one partial and incomplete truth for another; improvement consisting chiefly in this, that the new fragment of truth is more wanted, more adapted to the needs of the time, than that which it displaces. Such being the partial character of prevailing opinions, even when resting on a true foundation; every opinion which embodies somewhat of the portion of truth which the common opinion omits, ought to be considered precious, with whatever amount of error and confusion that truth may be blended. No sober judge of human affairs will feel bound to be indignant because those who force on our notice truths which we should otherwise have overlooked, overlook some of those which we see. Rather, he will think that so long as popular truth is one-sided, it is more desirable than otherwise that unpopular truth should have one-sided asserters too; such being usually the most energetic, and the most likely to compel reluctant attention to the fragment of wisdom which they proclaim as if it were the whole.

Thus, in the eighteenth century, when nearly all the instructed, and all those of the uninstructed who were led by them, were lost in admiration of what is called civilisation, and of the marvels of modern science, literature, and philosophy, and while greatly overrating the amount of unlikeness between the men of modern and those of ancient times, indulged the belief that the whole of the difference was in their own favour; with what a salutary shock did the paradoxes of Rousseau explode like bombshells in the midst, dislocating the compact mass of one-sided opinion, and forcing its elements to recombine in a better form and with additional ingredients. Not that the current opinions were on the whole farther from the truth than Rousseau's were; on the contrary, they were nearer to it; they contained more of positive truth, and very much less of error. Nevertheless there lay in Rousseau's doctrine, and has floated down the stream of opinion along with it, a considerable amount of exactly those truths which the popular opinion wanted; and these are the deposit which was left behind when the flood subsided. The superior worth of simplicity of life, the enervating and demoralising effect of the trammels and hypocrisies of artificial society, are ideas which have never been entirely absent from cultivated minds since Rousseau wrote; and they will in time produce their due effect, though at present needing to be asserted as much as ever, and to be asserted by deeds, for words, on this subject, have nearly exhausted their power.

In politics, again, it is almost a commonplace, that a party of order or stability, and a party of progress or reform, are both necessary elements of a healthy state of political life; until the one or the other shall have so enlarged its mental grasp as to be a party equally of order and of progress, knowing and distinguishing what is fit to be preserved from what ought to be swept away. Each of these modes of thinking derives its utility from the deficiencies of the other; but it is in a great measure the opposition of the other that keeps each within the limits of reason and sanity. Unless opinions favourable to

democracy and to aristocracy, to property and to equality, to co-operation and to competition, to luxury and to abstinence, to sociality and individuality, to liberty and discipline, and all the other standing antagonisms of practical life, are expressed with equal freedom, and enforced and defended with equal talent and energy, there is no chance of both elements obtaining their due; one scale is sure to go up and the other down. Truth, in the great practical concerns of life, is so much a question of the reconciling and combining of opposites, that very few have minds sufficiently capacious and impartial to make the adjustment with an approach to correctness, and it has to be made by the rough process of a struggle between combatants fighting under hostile banners. On any of the great open questions just enumerated, if either of the two opinions has a better claim than the other, not merely to be tolerated, but to be encouraged and countenanced, it is the one which happens at the particular time and place to be in a minority. That is the opinion which, for the time being, represents the neglected interests, the side of human well-being which is in danger of obtaining less than its share. I am aware that there is not, in this country, any intolerance of differences of opinion on most of these topics. They are adduced to show, by admitted and multiplied examples, the universality of the fact, that only through diversity of opinion is there, in the existing state of human intellect, a chance of fair-play to all sides of the truth. When there are persons to be found, who form an exception to the apparent unanimity of the world on any subject, even if the world is in the right, it is always probable that dissentients have something worth hearing to say for themselves, and that truth would lose something by their silence.

It may be objected, "But *some* received principles, especially on the highest and most vital subjects, are more than half-truths. The Christian morality, for instance, is the whole truth on that subject, and if any one teaches a morality which varies from it, he is wholly in error." As this is of all cases the most important in practice, none can be fitter to test the general maxim. But before pronouncing what Christian morality is or is not, it would be desirable to decide what is meant by Christian morality. If it means the morality of the New Testament, I wonder that any one who derives his knowledge of this from the book itself, can suppose that it was announced, or intended, as a complete doctrine of morals. The Gospel always refers to a pre-existing morality, and confines its precepts to the particulars in which that morality was to be corrected, or superseded by a wider and higher; expressing itself, moreover, in terms most general, often impossible to be interpreted literally, and possessing rather the impressiveness of poetry or eloquence than the precision of legislation. To extract from it a body of ethical doctrine, has ever been possible without eking it out from the Old Testament, that is, from a system elaborate indeed, but in many respects barbarous, and intended only for a barbarous people. St. Paul, a declared enemy to this Judaical mode of interpreting the doctrine and filling up the scheme of his Master, equally assumes a pre-existing morality, namely, that of the Greeks and Romans; and his advice to Christians is in a great measure a system of accommodation to that; even to the extent of giving an apparent sanction to slavery. What is called Christian, but should rather be termed theological, morality, was not the work of Christ or the Apostles, but is of much later origin, having been gradually built up by the Catholic church of the first five centuries, and though not implicitly adopted by moderns and Protestants, has been much less modified by them than might have been expected. For the most part, indeed, they have contented themselves with cutting off the additions which had been made to it in the middle ages, each sect supplying the place by fresh additions, adapted to its own character and tendencies. That mankind owe a great debt to this morality, and to its early teachers, I should be the last person to deny; but I do not scruple to say of it, that it is, in many important points, incomplete and one-sided, and that unless ideas and feelings, not sanctioned by it, had contributed to the formation of European life and character, human affairs would have been in a worse condition than they now are. Christian morality (so called) has all the characters of a reaction; it is, in great part, a protest against Paganism. Its ideal is negative

rather than positive; passive rather than active; Innocence rather than Nobleness; Abstinence from Evil, rather than energetic Pursuit of Good: in its precepts (as has been well said) "thou shalt not" predominates unduly over "thou shalt." In its horror of sensuality, it made an idol of asceticism, which has been gradually compromised away into one of legality. It holds out the hope of heaven and the threat of hell, as the appointed and appropriate motives to a virtuous life: in this falling far below the best of the ancients, and doing what lies in it to give to human morality an essentially selfish character, by disconnecting each man's feelings of duty from the interests of his fellow-creatures, except so far as a self-interested inducement is offered to him for consulting them. It is essentially a doctrine of passive obedience; it inculcates submission to all authorities found established; who indeed are not to be actively obeyed when they command what religion forbids, but who are not to be resisted, far less rebelled against, for any amount of wrong to ourselves. And while, in the morality of the best Pagan nations, duty to the State holds even a disproportionate place, infringing on the just liberty of the individual; in purely Christian ethics, that grand department of duty is scarcely noticed or acknowledged. It is in the Koran, not the New Testament, that we read the maxim—"A ruler who appoints any man to an office, when there is in his dominions another man better qualified for it, sins against God and against the State." What little recognition the idea of obligation to the public obtains in modern morality, is derived from Greek and Roman sources, not from Christian; as, even in the morality of private life, whatever exists of magnanimity, high-mindedness, personal dignity, even the sense of honour, is derived from the purely human, not the religious part of our education, and never could have grown out of a standard of ethics in which the only worth, professedly recognised, is that of obedience.

I am as far as any one from pretending that these defects are necessarily inherent in the Christian ethics, in every manner in which it can be conceived, or that the many requisites of a complete moral doctrine which it does not contain, do not admit of being reconciled with it. Far less would I insinuate this of the doctrines and precepts of Christ himself. I believe that the sayings of Christ are all, that I can see any evidence of their having been intended to be; that they are irreconcilable with nothing which a comprehensive morality requires; that everything which is excellent in ethics may be brought within them, with no greater violence to their language than has been done to it by all who have attempted to deduce from them any practical system of conduct whatever. But it is quite consistent with this, to believe that they contain, and were meant to contain, only a part of the truth; that many essential elements of the highest morality are among the things which are not provided for, nor intended to be provided for, in the recorded deliverances of the Founder of Christianity, and which have been entirely thrown aside in the system of ethics erected on the basis of those deliverances by the Christian Church. And this being so, I think it a great error to persist in attempting to find in the Christian doctrine that complete rule for our guidance, which its author intended it to sanction and enforce, but only partially to provide. I believe, too, that this narrow theory is becoming a grave practical evil, detracting greatly from the value of the moral training and instruction, which so many well-meaning persons are now at length exerting themselves to promote. I much fear that by attempting to form the mind and feelings on an exclusively religious type, and discarding those secular standards (as for want of a better name they may be called) which heretofore co-existed with and supplemented the Christian ethics, receiving some of its spirit, and infusing into it some of theirs, there will result, and is even now resulting, a low, abject, servile type of character, which, submit itself as it may to what it deems the Supreme Will, is incapable of rising to or sympathising in the conception of Supreme Goodness. I believe that other ethics than any which can be evolved from exclusively Christian sources, must exist side by side with Christian ethics to produce the moral regeneration of mankind; and that the Christian system is no exception to the rule, that in an imperfect state of the human mind, the interests of truth require a diversity of opinions. It is

not necessary that in ceasing to ignore the moral truths not contained in Christianity, men should ignore any of those which it does contain. Such prejudice, or oversight, when it occurs, is altogether an evil; but it is one from which we cannot hope to be always exempt, and must be regarded as the price paid for an inestimable good. The exclusive pretension made by a part of the truth to be the whole, must and ought to be protested against, and if a reactionary impulse should make the protestors unjust in their turn, this one-sidedness, like the other, may be lamented, but must be tolerated. If Christians would teach infidels to be just to Christianity, they should themselves be just to infidelity. It can do truth no service to blink the fact, known to all who have the most ordinary acquaintance with literary history, that a large portion of the noblest and most valuable moral teaching has been the work, not only of men who did not know, but of men who knew and rejected, the Christian faith.

I do not pretend that the most unlimited use of the freedom of enunciating all possible opinions would put an end to the evils of religious or philosophical sectarianism. Every truth which men of narrow capacity are in earnest about, is sure to be asserted, inculcated, and in many ways even acted on, as if no other truth existed in the world, or at all events none that could limit or qualify the first. I acknowledge that the tendency of all opinions to become sectarian is not cured by the freest discussion, but is often heightened and exacerbated thereby; the truth which ought to have been, but was not, seen, being rejected all the more violently because proclaimed by persons regarded as opponents. But it is not on the impassioned partisan, it is on the calmer and more disinterested bystander, that this collision of opinions works its salutary effect. Not the violent conflict between parts of the truth, but the quiet suppression of half of it, is the formidable evil: there is always hope when people are forced to listen to both sides; it is when they attend only to one that errors harden into prejudices, and truth itself ceases to have the effect of truth, by being exaggerated into falsehood. And since there are few mental attributes more rare than that judicial faculty which can sit in intelligent judgment between two sides of a question, of which only one is represented by an advocate before it, truth has no chance but in proportion as every side of it, every opinion which embodies any fraction of the truth, not only finds advocates, but is so advocated as to be listened to.

We have now recognised the necessity to the mental well-being of mankind (on which all their other well-being depends) of freedom of opinion, and freedom of the expression of opinion, on four distinct grounds; which we will now briefly recapitulate.

First, if any opinion is compelled to silence, that opinion may, for aught we can certainly know, be true. To deny this is to assume our own infallibility.

Secondly, though the silenced opinion be an error, it may, and very commonly does, contain a portion of truth; and since the general or prevailing opinion on any subject is rarely or never the whole truth, it is only by the collision of adverse opinions, that the remainder of the truth has any chance of being supplied.

Thirdly, even if the received opinion be not only true, but the whole truth; unless it is suffered to be, and actually is, vigorously and earnestly contested, it will, by most of those who receive it, be held in the manner of a prejudice, with little comprehension or feeling of its rational grounds. And not only this, but, fourthly, the meaning of the doctrine itself will be in danger of being lost, or enfeebled, and deprived of its vital effect on the character and conduct: the dogma becoming a mere formal profession,

inefficacious for good, but cumbering the ground, and preventing the growth of any real and heartfelt conviction, from reason or personal experience.

Before quitting the subject of freedom of opinion, it is fit to take some notice of those who say, that the free expression of all opinions should be permitted, on condition that the manner be temperate, and do not pass the bounds of fair discussion. Much might be said on the impossibility of fixing where these supposed bounds are to be placed; for if the test be offence to those whose opinion is attacked, I think experience testifies that this offence is given whenever the attack is telling and powerful, and that every opponent who pushes them hard, and whom they find it difficult to answer, appears to them, if he shows any strong feeling on the subject, an intemperate opponent. But this, though an important consideration in a practical point of view, merges in a more fundamental objection. Undoubtedly the manner of asserting an opinion, even though it be a true one, may be very objectionable, and may justly incur severe censure. But the principal offences of the kind are such as it is mostly impossible, unless by accidental self-betrayal, to bring home to conviction. The gravest of them is, to argue sophistically, to suppress facts or arguments, to misstate the elements of the case, or misrepresent the opposite opinion. But all this, even to the most aggravated degree, is so continually done in perfect good faith, by persons who are not considered, and in many other respects may not deserve to be considered, ignorant or incompetent, that it is rarely possible on adequate grounds conscientiously to stamp the misrepresentation as morally culpable; and still less could law presume to interfere with this kind of controversial misconduct. With regard to what is commonly meant by intemperate discussion, namely invective, sarcasm, personality, and the like, the denunciation of these weapons would deserve more sympathy if it were ever proposed to interdict them equally to both sides; but it is only desired to restrain the employment of them against the prevailing opinion: against the unprevailing they may not only be used without general disapproval, but will be likely to obtain for him who uses them the praise of honest zeal and righteous indignation. Yet whatever mischief arises from their use, is greatest when they are employed against the comparatively defenceless; and whatever unfair advantage can be derived by any opinion from this mode of asserting it, accrues almost exclusively to received opinions. The worst offence of this kind which can be committed by a polemic, is to stigmatise those who hold the contrary opinion as bad and immoral men. To calumny of this sort, those who hold any unpopular opinion are peculiarly exposed, because they are in general few and uninfluential, and nobody but themselves feel much interest in seeing justice done them; but this weapon is, from the nature of the case, denied to those who attack a prevailing opinion: they can neither use it with safety to themselves, nor, if they could, would it do anything but recoil on their own cause. In general, opinions contrary to those commonly received can only obtain a hearing by studied moderation of language, and the most cautious avoidance of unnecessary offence, from which they hardly ever deviate even in a slight degree without losing ground: while unmeasured vituperation employed on the side of the prevailing opinion, really does deter people from professing contrary opinions, and from listening to those who profess them. For the interest, therefore, of truth and justice, it is far more important to restrain this employment of vituperative language than the other; and, for example, if it were necessary to choose, there would be much more need to discourage offensive attacks on infidelity, than on religion. It is, however, obvious that law and authority have no business with restraining either, while opinion ought, in every instance, to determine its verdict by the circumstances of the individual case; condemning every one, on whichever side of the argument he places himself, in whose mode of advocacy either want of candour, or malignity, bigotry, or intolerance of feeling manifest themselves; but not inferring these vices from the side which a person takes, though it be the contrary side of the question to our own: and giving merited honour to every one, whatever opinion he may hold, who has calmness to see and honesty to state what his

opponents and their opinions really are, exaggerating nothing to their discredit, keeping nothing back which tells, or can be supposed to tell, in their favour. This is the real morality of public discussion; and if often violated, I am happy to think that there are many controversialists who to a great extent observe it, and a still greater number who conscientiously strive towards it.

. CHAPTER III. OF INDIVIDUALITY, AS ONE OF THE ELEMENTS OF WELL-BEING.

Such being the reasons which make it imperative that human beings should be free to form opinions, and to express their opinions without reserve; and such the baneful consequences to the intellectual, and through that to the moral nature of man, unless this liberty is either conceded, or asserted in spite of prohibition; let us next examine whether the same reasons do not require that men should be free to act upon their opinions—to carry these out in their lives, without hindrance, either physical or moral, from their fellow-men, so long as it is at their own risk and peril. This last proviso is of course indispensable. No one pretends that actions should be as free as opinions. On the contrary, even opinions lose their immunity, when the circumstances in which they are expressed are such as to constitute their expression a positive instigation to some mischievous act. An opinion that corn-dealers are starvers of the poor, or that private property is robbery, ought to be unmolested when simply circulated through the press, but may justly incur punishment when delivered orally to an excited mob assembled before the house of a corn-dealer, or when handed about among the same mob in the form of a placard. Acts, of whatever kind, which, without justifiable cause, do harm to others, may be, and in the more important cases absolutely require to be, controlled by the unfavourable sentiments, and, when needful, by the active interference of mankind. The liberty of the individual must be thus far limited; he must not make himself a nuisance to other people. But if he refrains from molesting others in what concerns them, and merely acts according to his own inclination and judgment in things which concern himself, the same reasons which show that opinion should be free, prove also that he should be allowed, without molestation, to carry his opinions into practice at his own cost. That mankind are not infallible; that their truths, for the most part, are only half-truths; that unity of opinion, unless resulting from the fullest and freest comparison of opposite opinions, is not desirable, and diversity not an evil, but a good, until mankind are much more capable than at present of recognising all sides of the truth, are principles applicable to men's modes of action, not less than to their opinions. As it is useful that while mankind are imperfect there should be different opinions, so is it that there should be different experiments of living; that free scope should be given to varieties of character, short of injury to others; and that the worth of different modes of life should be proved practically, when any one thinks fit to try them. It is desirable, in short, that in things which do not primarily concern others, individuality should assert itself. Where, not the person's own character, but the traditions or customs of other people are the rule of conduct, there is wanting one of the principal ingredients of human happiness, and quite the chief ingredient of individual and social progress.

In maintaining this principle, the greatest difficulty to be encountered does not lie in the appreciation of means towards an acknowledged end, but in the indifference of persons in general to the end itself. If it were felt that the free development of individuality is one of the leading essentials of well-being; that it is not only a co-ordinate element with all that is designated by the terms civilisation, instruction, education, culture, but is itself a necessary part and condition of all those things; there would be no danger that liberty should be under-valued, and the adjustment of the boundaries between it and social control would present no extraordinary difficulty. But the evil is, that individual spontaneity is hardly

recognised by the common modes of thinking, as having any intrinsic worth, or deserving any regard on its own account. The majority, being satisfied with the ways of mankind as they now are (for it is they who make them what they are), cannot comprehend why those ways should not be good enough for everybody; and what is more, spontaneity forms no part of the ideal of the majority of moral and social reformers, but is rather looked on with jealousy, as a troublesome and perhaps rebellious obstruction to the general acceptance of what these reformers, in their own judgment, think would be best for mankind. Few persons, out of Germany, even comprehend the meaning of the doctrine which Wilhelm von Humboldt, so eminent both as a *savant* and as a politician, made the text of a treatise—that "the end of man, or that which is prescribed by the eternal or immutable dictates of reason, and not suggested by vague and transient desires, is the highest and most harmonious development of his powers to a complete and consistent whole;" that, therefore, the object "towards which every human being must ceaselessly direct his efforts, and on which especially those who design to influence their fellow-men must ever keep their eyes, is the individuality of power and development;" that for this there are two requisites, "freedom, and a variety of situations;" and that from the union of these arise "individual vigour and manifold diversity," which combine themselves in "originality."...

He who lets the world, or his own portion of it, choose his plan of life for him, has no need of any other faculty than the ape-like one of imitation. He who chooses his plan for himself, employs all his faculties. He must use observation to see, reasoning and judgment to foresee, activity to gather materials for decision, discrimination to decide, and when he has decided, firmness and self-control to hold to his deliberate decision. And these qualities he requires and exercises exactly in proportion as the part of his conduct which he determines according to his own judgment and feelings is a large one. It is possible that he might be guided in some good path, and kept out of harm's way, without any of these things. But what will be his comparative worth as a human being? It really is of importance, not only what men do, but also what manner of men they are that do it. Among the works of man, which human life is rightly employed in perfecting and beautifying, the first in importance surely is man himself. Supposing it were possible to get houses built, corn grown, battles fought, causes tried, and even churches erected and prayers said, by machinery—by automatons in human form—it would be a considerable loss to exchange for these automatons even the men and women who at present inhabit the more civilised parts of the world, and who assuredly are but starved specimens of what nature can and will produce. Human nature is not a machine to be built after a model, and set to do exactly the work prescribed for it, but a tree, which requires to grow and develop itself on all sides, according to the tendency of the inward forces which make it a living thing...

But society has now fairly got the better of individuality; and the danger which threatens human nature is not the excess, but the deficiency, of personal impulses and preferences. Things are vastly changed, since the passions of those who were strong by station or by personal endowment[were in a state of habitual rebellion against laws and ordinances, and required to be rigorously chained up to enable the persons within their reach to enjoy any particle of security. In our times, from the highest class of society down to the lowest, every one lives as under the eye of a hostile and dreaded censorship. Not only in what concerns others, but in what concerns only themselves, the individual, or the family, do not ask themselves—what do I prefer? or, what would suit my character and disposition? or, what would allow the best and highest in me to have fair-play, and enable it to grow and thrive? They ask themselves, what is suitable to my position? what is usually done by persons of my station and pecuniary circumstances? or (worse still) what is usually done by persons of a station and circumstances superior to mine? I do not mean that they choose what is customary, in preference to what suits their

own inclination. It does not occur to them to have any inclination, except for what is customary. Thus the mind itself is bowed to the yoke: even in what people do for pleasure, conformity is the first thing thought of; they like in crowds; they exercise choice only among things commonly done: peculiarity of taste, eccentricity of conduct, are shunned equally with crimes: until by dint of not following their own nature, they have no nature to follow: their human capacities are withered and starved: they become incapable of any strong wishes or native pleasures, and are generally without either opinions or feelings of home growth, or properly their own. Now is this, or is it not, the desirable condition of human nature?...

CHAPTER IV. OF THE LIMITS TO THE AUTHORITY OF SOCIETY OVER THE INDIVIDUAL.

What, then, is the rightful limit to the sovereignty of the individual over himself? Where does the authority of society begin? How much of human life should be assigned to individuality, and how much to society?

Each will receive its proper share, if each has that which more particularly concerns it. To individuality should belong the part of life in which it is chiefly the individual that is interested; to society, the part which chiefly interests society.

Though society is not founded on a contract, and though no good purpose is answered by inventing a contract in order to deduce social obligations from it, every one who receives the protection of society owes a return for the benefit, and the fact of living in society renders it indispensable that each should be bound to observe a certain line of conduct towards the rest. This conduct consists, first, in not injuring the interests of one another; or rather certain interests which, either by express legal provision or by tacit understanding, ought to be considered as rights; and secondly, in each person's bearing his share (to be fixed on some equitable principle) of the labours and sacrifices incurred for defending the society or its members from injury and molestation. These conditions society is justified in enforcing, at all costs to those who endeavour to withhold fulfilment. Nor is this all that society may do. The acts of an individual may be hurtful to others, or wanting in due consideration for their welfare, without going the length of violating any of their constituted rights. The offender may then be justly punished by opinion though not by law. As soon as any part of a person's conduct affects prejudicially the interests of others, society has jurisdiction over it, and the question whether the general welfare will or will not be promoted by interfering with it, becomes open to discussion. But there is no room for entertaining any such question when a person's conduct affects the interests of no persons besides himself, or needs not affect them unless they like (all the persons concerned being of full age, and the ordinary amount of understanding). In all such cases there should be perfect freedom, legal and social, to do the action and stand the consequences.

It would be a great misunderstanding of this doctrine, to suppose that it is one of selfish indifference, which pretends that human beings have no business with each other's conduct in life, and that they should not concern themselves about the well-doing or well-being of one another, unless their own interest is involved. Instead of any diminution, there is need of a great increase of disinterested exertion to promote the good of others. But disinterested benevolence can find other instruments to persuade people to their good, than whips and scourges, either of the literal or the metaphorical sort. I am the last person to undervalue the self-regarding virtues; they are only second in importance, if even second, to the social. It is equally the business of education to cultivate both. But even education works by

conviction and persuasion as well as by compulsion, and it is by the former only that, when the period of education is past, the self-regarding virtues should be inculcated. Human beings owe to each other help to distinguish the better from the worse, and encouragement to choose the former and avoid the latter. They should be for ever stimulating each other to increased exercise of their higher faculties, and increased direction of their feelings and aims towards wise instead of foolish, elevating instead of degrading, objects and contemplations. But neither one person, nor any number of persons, is warranted in saying to another human creature of ripe years, that he shall not do with his life for his own benefit what he chooses to do with it. He is the person most interested in his own well-being: the interest which any other person, except in cases of strong personal attachment, can have in it, is trifling, compared with that which he himself has; the interest which society has in him individually (except as to his conduct to others) is fractional, and altogether indirect: while, with respect to his own feelings and circumstances, the most ordinary man or woman has means of knowledge immeasurably surpassing those that can be possessed by any one else. The interference of society to overrule his judgment and purposes in what only regards himself, must be grounded on general presumptions; which may be altogether wrong, and even if right, are as likely as not to be misapplied to individual cases, by persons no better acquainted with the circumstances of such cases than those are who look at them merely from without. In this department, therefore, of human affairs, Individuality has its proper field of action. In the conduct of human beings towards one another, it is necessary that general rules should for the most part be observed, in order that people may know what they have to expect; but in each person's own concerns, his individual spontaneity is entitled to free exercise. Considerations to aid his judgment, exhortations to strengthen his will, may be offered to him, even obtruded on him, by others; but he himself is the final judge. All errors which he is likely to commit against advice and warning, are far outweighed by the evil of allowing others to constrain him to what they deem his good.

I do not mean that the feelings with which a person is regarded by others, ought not to be in any way affected by his self-regarding qualities or deficiencies. This is neither possible nor desirable. If he is eminent in any of the qualities which conduce to his own good, he is, so far, a proper object of admiration. He is so much the nearer to the ideal perfection of human nature. If he is grossly deficient in those qualities, a sentiment the opposite of admiration will follow. There is a degree of folly, and a degree of what may be called (though the phrase is not unobjectionable) lowness or depravation of taste, which, though it cannot justify doing harm to the person who manifests it, renders him necessarily and properly a subject of distaste, or, in extreme cases, even of contempt: a person could not have the opposite qualities in due strength without entertaining these feelings. Though doing no wrong to any one, a person may so act as to compel us to judge him, and feel to him, as a fool, or as a being of an inferior order: and since this judgment and feeling are a fact which he would prefer to avoid, it is doing him a service to warn him of it beforehand, as of any other disagreeable consequence to which he exposes himself. It would be well, indeed, if this good office were much more freely rendered than the common notions of politeness at present permit, and if one person could honestly point out to another that he thinks him in fault, without being considered unmannerly or presuming. We have a right, also, in various ways, to act upon our unfavourable opinion of any one, not to the oppression of his individuality, but in the exercise of ours. We are not bound, for example, to seek his society; we have a right to avoid it (though not to parade the avoidance), for we have a right to choose the society most acceptable to us. We have a right, and it may be our duty, to caution others against him, if we think his example or conversation likely to have a pernicious effect on those with whom he associates. We may give others a preference over him in optional good offices, except those which tend to his improvement. In these various modes a person may suffer very severe penalties at the hands of others, for faults which

directly concern only himself; but he suffers these penalties only in so far as they are the natural, and, as it were, the spontaneous consequences of the faults themselves, not because they are purposely inflicted on him for the sake of punishment. A person who shows rashness, obstinacy, self-conceit—who cannot live within moderate means—who cannot restrain himself from hurtful indulgences—who pursues animal pleasures at the expense of those of feeling and intellect—must expect to be lowered in the opinion of others, and to have a less share of their favourable sentiments; but of this he has no right to complain, unless he has merited their favour by special excellence in his social relations, and has thus established a title to their good offices, which is not affected by his demerits towards himself.

What I contend for is, that the inconveniences which are strictly inseparable from the unfavourable judgment of others, are the only ones to which a person should ever be subjected for that portion of his conduct and character which concerns his own good, but which does not affect the interests of others in their relations with him. Acts injurious to others require a totally different treatment. Encroachment on their rights; infliction on them of any loss or damage not justified by his own rights; falsehood or duplicity in dealing with them; unfair or ungenerous use of advantages over them; even selfish abstinence from defending them against injury—these are fit objects of moral reprobation, and, in grave cases, of moral retribution and punishment. And not only these acts, but the dispositions which lead to them, are properly immoral, and fit subjects of disapprobation which may rise to abhorrence. Cruelty of disposition; malice and ill-nature; that most anti-social and odious of all passions, envy; dissimulation and insincerity; irascibility on insufficient cause, and resentment disproportioned to the provocation; the love of domineering over others; the desire to engross more than one's share of advantages (the *πλεονεξία* [Greek: *pleonexia*] of the Greeks); the pride which derives gratification from the abasement of others; the egotism which thinks self and its concerns more important than everything else, and decides all doubtful questions in its own favour;—these are moral vices, and constitute a bad and odious moral character: unlike the self-regarding faults previously mentioned, which are not properly immoralities, and to whatever pitch they may be carried, do not constitute wickedness. They may be proofs of any amount of folly, or want of personal dignity and self-respect; but they are only a subject of moral reprobation when they involve a breach of duty to others, for whose sake the individual is bound to have care for himself. What are called duties to ourselves are not socially obligatory, unless circumstances render them at the same time duties to others. The term duty to oneself, when it means anything more than prudence, means self-respect or self-development; and for none of these is any one accountable to his fellow-creatures, because for none of them is it for the good of mankind that he be held accountable to them...

The distinction here pointed out between the part of a person's life which concerns only himself, and that which concerns others, many persons will refuse to admit. How (it may be asked) can any part of the conduct of a member of society be a matter of indifference to the other members? No person is an entirely isolated being; it is impossible for a person to do anything seriously or permanently hurtful to himself, without mischief reaching at least to his near connections, and often far beyond them. If he injures his property, he does harm to those who directly or indirectly derived support from it, and usually diminishes, by a greater or less amount, the general resources of the community. If he deteriorates his bodily or mental faculties, he not only brings evil upon all who depended on him for any portion of their happiness, but disqualifies himself for rendering the services which he owes to his fellow-creatures generally; perhaps becomes a burthen on their affection or benevolence; and if such conduct were very frequent, hardly any offence that is committed would detract more from the general sum of good. Finally, if by his vices or follies a person does no direct harm to others, he is nevertheless

(it may be said) injurious by his example; and ought to be compelled to control himself, for the sake of those whom the sight or knowledge of his conduct might corrupt or mislead.

And even (it will be added) if the consequences of misconduct could be confined to the vicious or thoughtless individual, ought society to abandon to their own guidance those who are manifestly unfit for it? If protection against themselves is confessedly due to children and persons under age, is not society equally bound to afford it to persons of mature years who are equally incapable of self-government? If gambling, or drunkenness, or incontinence, or idleness, or uncleanness, are as injurious to happiness, and as great a hindrance to improvement, as many or most of the acts prohibited by law, why (it may be asked) should not law, so far as is consistent with practicability and social convenience, endeavour to repress these also? And as a supplement to the unavoidable imperfections of law, ought not opinion at least to organise a powerful police against these vices, and visit rigidly with social penalties those who are known to practise them? There is no question here (it may be said) about restricting individuality, or impeding the trial of new and original experiments in living. The only things it is sought to prevent are things which have been tried and condemned from the beginning of the world until now; things which experience has shown not to be useful or suitable to any person's individuality. There must be some length of time and amount of experience, after which a moral or prudential truth may be regarded as established: and it is merely desired to prevent generation after generation from falling over the same precipice which has been fatal to their predecessors.

I fully admit that the mischief which a person does to himself, may seriously affect, both through their sympathies and their interests, those nearly connected with him, and in a minor degree, society at large. When, by conduct of this sort, a person is led to violate a distinct and assignable obligation to any other person or persons, the case is taken out of the self-regarding class, and becomes amenable to moral disapprobation in the proper sense of the term. If, for example, a man, through intemperance or extravagance, becomes unable to pay his debts, or, having undertaken the moral responsibility of a family, becomes from the same cause incapable of supporting or educating them, he is deservedly reprobated, and might be justly punished; but it is for the breach of duty to his family or creditors, not for the extravagance. If the resources which ought to have been devoted to them, had been diverted from them for the most prudent investment, the moral culpability would have been the same. George Barnwell murdered his uncle to get money for his mistress, but if he had done it to set himself up in business, he would equally have been hanged. Again, in the frequent case of a man who causes grief to his family by addiction to bad habits, he deserves reproach for his unkindness or ingratitude; but so he may for cultivating habits not in themselves vicious, if they are painful to those with whom he passes his life, or who from personal ties are dependent on him for their comfort. Whoever fails in the consideration generally due to the interests and feelings of others, not being compelled by some more imperative duty, or justified by allowable self-preference, is a subject of moral disapprobation for that failure, but not for the cause of it, nor for the errors, merely personal to himself, which may have remotely led to it. In like manner, when a person disables himself, by conduct purely self-regarding, from the performance of some definite duty incumbent on him to the public, he is guilty of a social offence. No person ought to be punished simply for being drunk; but a soldier or a policeman should be punished for being drunk on duty. Whenever, in short, there is a definite damage, or a definite risk of damage, either to an individual or to the public, the case is taken out of the province of liberty, and placed in that of morality or law.

But with regard to the merely contingent, or, as it may be called, constructive injury which a person causes to society, by conduct which neither violates any specific duty to the public, nor occasions perceptible hurt to any assignable individual except himself; the inconvenience is one which society can afford to bear, for the sake of the greater good of human freedom. If grown persons are to be punished for not taking proper care of themselves, I would rather it were for their own sake, than under pretence of preventing them from impairing their capacity of rendering to society benefits which society does not pretend it has a right to exact...

CHAPTER V. APPLICATIONS.

...It was pointed out in an early part of this Essay, that the liberty of the individual, in things wherein the individual is alone concerned, implies a corresponding liberty in any number of individuals to regulate by mutual agreement such things as regard them jointly, and regard no persons but themselves. This question presents no difficulty, so long as the will of all the persons implicated remains unaltered; but since that will may change, it is often necessary, even in things in which they alone are concerned, that they should enter into engagements with one another; and when they do, it is fit, as a general rule, that those engagements should be kept. Yet in the laws, probably, of every country, this general rule has some exceptions. Not only persons are not held to engagements which violate the rights of third parties, but it is sometimes considered a sufficient reason for releasing them from an engagement, that it is injurious to themselves. In this and most other civilised countries, for example, an engagement by which a person should sell himself, or allow himself to be sold, as a slave, would be null and void; neither enforced by law nor by opinion. The ground for thus limiting his power of voluntarily disposing of his own lot in life, is apparent, and is very clearly seen in this extreme case. The reason for not interfering, unless for the sake of others, with a person's voluntary acts, is consideration for his liberty. His voluntary choice is evidence that what he so chooses is desirable, or at the least endurable, to him, and his good is on the whole best provided for by allowing him to take his own means of pursuing it. But by selling himself for a slave, he abdicates his liberty; he foregoes any future use of it, beyond that single act. He therefore defeats, in his own case, the very purpose which is the justification of allowing him to dispose of himself. He is no longer free; but is thenceforth in a position which has no longer the presumption in its favour, that would be afforded by his voluntarily remaining in it. The principle of freedom cannot require that he should be free not to be free. It is not freedom, to be allowed to alienate his freedom. These reasons, the force of which is so conspicuous in this peculiar case, are evidently of far wider application; yet a limit is everywhere set to them by the necessities of life, which continually require, not indeed that we should resign our freedom, but that we should consent to this and the other limitation of it. The principle, however, which demands uncontrolled freedom of action in all that concerns only the agents themselves, requires that those who have become bound to one another, in things which concern no third party, should be able to release one another from the engagement: and even without such voluntary release, there are perhaps no contracts or engagements, except those that relate to money or money's worth, of which one can venture to say that there ought to be no liberty whatever of retraction...

I have reserved for the last place a large class of questions respecting the limits of government interference, which, though closely connected with the subject of this Essay, do not, in strictness, belong to it. These are cases in which the reasons against interference do not turn upon the principle of liberty: the question is not about restraining the actions of individuals, but about helping them: it is asked

whether the government should do, or cause to be done, something for their benefit, instead of leaving it to be done by themselves, individually, or in voluntary combination.

The objections to government interference, when it is not such as to involve infringement of liberty, may be of three kinds.

The first is, when the thing to be done is likely to be better done by individuals than by the government. Speaking generally, there is no one so fit to conduct any business, or to determine how or by whom it shall be conducted, as those who are personally interested in it. This principle condemns the interferences, once so common, of the legislature, or the officers of government, with the ordinary processes of industry. But this part of the subject has been sufficiently enlarged upon by political economists, and is not particularly related to the principles of this Essay.

The second objection is more nearly allied to our subject. In many cases, though individuals may not do the particular thing so well, on the average, as the officers of government, it is nevertheless desirable that it should be done by them, rather than by the government, as a means to their own mental education—a mode of strengthening their active faculties, exercising their judgment, and giving them a familiar knowledge of the subjects with which they are thus left to deal. This is a principal, though not the sole, recommendation of jury trial (in cases not political); of free and popular local and municipal institutions; of the conduct of industrial and philanthropic enterprises by voluntary associations. These are not questions of liberty, and are connected with that subject only by remote tendencies; but they are questions of development. It belongs to a different occasion from the present to dwell on these things as parts of national education; as being, in truth, the peculiar training of a citizen, the practical part of the political education of a free people, taking them out of the narrow circle of personal and family selfishness, and accustoming them to the comprehension of joint interests, the management of joint concerns—habituating them to act from public or semi-public motives, and guide their conduct by aims which unite instead of isolating them from one another. Without these habits and powers, a free constitution can neither be worked nor preserved, as is exemplified by the too-often transitory nature of political freedom in countries where it does not rest upon a sufficient basis of local liberties. The management of purely local business by the localities, and of the great enterprises of industry by the union of those who voluntarily supply the pecuniary means, is further recommended by all the advantages which have been set forth in this Essay as belonging to individuality of development, and diversity of modes of action. Government operations tend to be everywhere alike. With individuals and voluntary associations, on the contrary, there are varied experiments, and endless diversity of experience. What the State can usefully do, is to make itself a central depository, and active circulator and diffuser, of the experience resulting from many trials. Its business is to enable each experimentalist to benefit by the experiments of others, instead of tolerating no experiments but its own.

The third, and most cogent reason for restricting the interference of government, is the great evil of adding unnecessarily to its power. Every function superadded to those already exercised by the government, causes its influence over hopes and fears to be more widely diffused, and converts, more and more, the active and ambitious part of the public into hangers-on of the government, or of some party which aims at becoming the government. If the roads, the railways, the banks, the insurance offices, the great joint-stock companies, the universities, and the public charities, were all of them branches of the government; if, in addition, the municipal corporations and local boards, with all that now devolves on them, became departments of the central administration; if the employés of all these

different enterprises were appointed and paid by the government, and looked to the government for every rise in life; not all the freedom of the press and popular constitution of the legislature would make this or any other country free otherwise than in name. And the evil would be greater, the more efficiently and scientifically the administrative machinery was constructed—the more skilful the arrangements for obtaining the best qualified hands and heads with which to work it...

To determine the point at which evils, so formidable to human freedom and advancement, begin, or rather at which they begin to predominate over the benefits attending the collective application of the force of society, under its recognised chiefs, for the removal of the obstacles which stand in the way of its well-being; to secure as much of the advantages of centralised power and intelligence, as can be had without turning into governmental channels too great a proportion of the general activity, is one of the most difficult and complicated questions in the art of government. It is, in a great measure, a question of detail, in which many and various considerations must be kept in view, and no absolute rule can be laid down. But I believe that the practical principle in which safety resides, the ideal to be kept in view, the standard by which to test all arrangements intended for overcoming the difficulty, may be conveyed in these words: the greatest dissemination of power consistent with efficiency; but the greatest possible centralisation of information, and diffusion of it from the centre. Thus, in municipal administration, there would be, as in the New England States, a very minute division among separate officers, chosen by the localities, of all business which is not better left to the persons directly interested; but besides this, there would be, in each department of local affairs, a central superintendence, forming a branch of the general government. The organ of this superintendence would concentrate, as in a focus, the variety of information and experience derived from the conduct of that branch of public business in all the localities, from everything analogous which is done in foreign countries, and from the general principles of political science. This central organ should have a right to know all that is done, and its special duty should be that of making the knowledge acquired in one place available for others. Emancipated from the petty prejudices and narrow views of a locality by its elevated position and comprehensive sphere of observation, its advice would naturally carry much authority; but its actual power, as a permanent institution, should, I conceive, be limited to compelling the local officers to obey the laws laid down for their guidance. In all things not provided for by general rules, those officers should be left to their own judgment, under responsibility to their constituents. For the violation of rules, they should be responsible to law, and the rules themselves should be laid down by the legislature; the central administrative authority only watching over their execution, and if they were not properly carried into effect, appealing, according to the nature of the case, to the tribunal to enforce the law, or to the constituencies to dismiss the functionaries who had not executed it according to its spirit. Such, in its general conception, is the central superintendence which the Poor Law Board is intended to exercise over the administrators of the Poor Rate throughout the country. Whatever powers the Board exercises beyond this limit, were right and necessary in that peculiar case, for the cure of rooted habits of maladministration in matters deeply affecting not the localities merely, but the whole community; since no locality has a moral right to make itself by mismanagement a nest of pauperism, necessarily overflowing into other localities, and impairing the moral and physical condition of the whole labouring community. The powers of administrative coercion and subordinate legislation possessed by the Poor Law Board (but which, owing to the state of opinion on the subject, are very scantily exercised by them), though perfectly justifiable in a case of first-rate national interest, would be wholly out of place in the superintendence of interests purely local. But a central organ of information and instruction for all the localities, would be equally valuable in all departments of administration. A government cannot have too much of the kind of activity which does not impede, but aids and stimulates, individual exertion and development. The

mischievous begins when, instead of calling forth the activity and powers of individuals and bodies, it substitutes its own activity for theirs; when, instead of informing, advising, and, upon occasion, denouncing, it makes them work in fetters, or bids them stand aside and does their work instead of them. The worth of a State, in the long run, is the worth of the individuals composing it; and a State which postpones the interests of *their* mental expansion and elevation, to a little more of administrative skill, or of that semblance of it which practice gives, in the details of business; a State which dwarfs its men, in order that they may be more docile instruments in its hands even for beneficial purposes, will find that with small men no great thing can really be accomplished; and that the perfection of machinery to which it has sacrificed everything, will in the end avail it nothing, for want of the vital power which, in order that the machine might work more smoothly, it has preferred to banish.

23 The Subjection of Women (John Stuart Mill)¹

CHAPTER I

The object of this Essay is to explain as clearly as I am able, the grounds of an opinion which I have held from the very earliest period when I had formed any opinions at all on social or political matters, and which, instead of being weakened or modified, has been constantly growing stronger by the progress of reflection and the experience of life: That the principle which regulates the existing social relations between the two sexes—the legal subordination of one sex to the other—is wrong in itself, and now one of the chief hindrances to human improvement; and that it ought to be replaced by a principle of perfect equality, admitting no power or privilege on the one side, nor disability on the other.

The very words necessary to express the task I have undertaken, show how arduous it is. But it would be a mistake to suppose that the difficulty of the case must lie in the insufficiency or obscurity of the grounds of reason on which my conviction rests. The difficulty is that which exists in all cases in which there is a mass of feeling to be contended against. So long as an opinion is strongly rooted in the feelings, it gains rather than loses in stability by having a preponderating weight of argument against it. For if it were accepted as a result of argument, the refutation of the argument might shake the solidity of the conviction; but when it rests solely on feeling, the worse it fares in argumentative contest, the more persuaded its adherents are that their feeling must have some deeper ground, which the arguments do not reach; and while the feeling remains, it is always throwing up fresh intrenchments of argument to repair any breach made in the old. And there are so many causes tending to make the feelings connected with this subject the most intense and most deeply-rooted of all those which gather round and protect old institutions and customs, that we need not wonder to find them as yet less undermined and loosened than any of the rest by the progress of the great modern spiritual and social transition; nor suppose that the barbarisms to which men cling longest must be less barbarisms than those which they earlier shake off.

In every respect the burthen is hard on those who attack an almost universal opinion. They must be very fortunate as well as unusually capable if they obtain a hearing at all. They have more difficulty in obtaining a trial, than any other litigants have in getting a verdict. If they do extort a hearing, they are subjected to a set of logical requirements totally different from those exacted from other people. In all other cases, the burthen of proof is supposed to lie with the affirmative. If a person is charged with a murder, it rests with those who accuse him to give proof of his guilt, not with himself to prove his innocence. If there is a difference of opinion about the reality of any alleged historical event, in which the feelings of men in general are not much interested, as the Siege of Troy for example, those who maintain that the event took place are expected to produce their proofs, before those who take the other side can be required to say anything; and at no time are these required to do more than show that the evidence produced by the others is of no value. Again, in practical matters, the burthen of proof is supposed to be with those who are against liberty; who contend for any restriction or prohibition; either any limitation of the general freedom of human action, or any disqualification or disparity of privilege affecting one person or kind of persons, as compared with others. The *à priori* presumption is in favour

¹ John Stuart Mill, 1869.

of freedom and impartiality. It is held that there should be no restraint not required by the general good, and that the law should be no respecter of persons, but should treat all alike, save where dissimilarity of treatment is required by positive reasons, either of justice or of policy. But of none of these rules of evidence will the benefit be allowed to those who maintain the opinion I profess. It is useless for me to say that those who maintain the doctrine that men have a right to command and women are under an obligation to obey, or that men are fit for government and women unfit, are on the affirmative side of the question, and that they are bound to show positive evidence for the assertions, or submit to their rejection. It is equally unavailing for me to say that those who deny to women any freedom or privilege rightly allowed to men, having the double presumption against them that they are opposing freedom and recommending partiality, must be held to the strictest proof of their case, and unless their success be such as to exclude all doubt, the judgment ought to go against them. These would be thought good pleas in any common case; but they will not be thought so in this instance. Before I could hope to make any impression, I should be expected not only to answer all that has ever been said by those who take the other side of the question, but to imagine all that could be said by them—to find them in reasons, as well as answer all I find: and besides refuting all arguments for the affirmative, I shall be called upon for invincible positive arguments to prove a negative. And even if I could do all this, and leave the opposite party with a host of unanswered arguments against them, and not a single unrefuted one on their side, I should be thought to have done little; for a cause supported on the one hand by universal usage, and on the other by so great a preponderance of popular sentiment, is supposed to have a presumption in its favour, superior to any conviction which an appeal to reason has power to produce in any intellects but those of a high class.

I do not mention these difficulties to complain of them; first, because it would be useless; they are inseparable from having to contend through people's understandings against the hostility of their feelings and practical tendencies: and truly the understandings of the majority of mankind would need to be much better cultivated than has ever yet been the case, before they can be asked to place such reliance in their own power of estimating arguments, as to give up practical principles in which they have been born and bred and which are the basis of much of the existing order of the world, at the first argumentative attack which they are not capable of logically resisting. I do not therefore quarrel with them for having too little faith in argument, but for having too much faith in custom and the general feeling. It is one of the characteristic prejudices of the reaction of the nineteenth century against the eighteenth, to accord to the unreasoning elements in human nature the infallibility which the eighteenth century is supposed to have ascribed to the reasoning elements. For the apotheosis of Reason we have substituted that of Instinct; and we call everything instinct which we find in ourselves and for which we cannot trace any rational foundation. This idolatry, infinitely more degrading than the other, and the most pernicious of the false worships of the present day, of all of which it is now the main support, will probably hold its ground until it gives way before a sound psychology, laying bare the real root of much that is bowed down to as the intention of Nature and the ordinance of God. As regards the present question, I am willing to accept the unfavourable conditions which the prejudice assigns to me. I consent that established custom, and the general feeling, should be deemed conclusive against me, unless that custom and feeling from age to age can be shown to have owed their existence to other causes than their soundness, and to have derived their power from the worse rather than the better parts of human nature. I am willing that judgment should go against me, unless I can show that my judge has been tampered with. The concession is not so great as it might appear; for to prove this, is by far the easiest portion of my task.

The generality of a practice is in some cases a strong presumption that it is, or at all events once was, conducive to laudable ends. This is the case, when the practice was first adopted, or afterwards kept up, as a means to such ends, and was grounded on experience of the mode in which they could be most effectually attained. If the authority of men over women, when first established, had been the result of a conscientious comparison between different modes of constituting the government of society; if, after trying various other modes of social organization—the government of women over men, equality between the two, and such mixed and divided modes of government as might be invented—it had been decided, on the testimony of experience, that the mode in which women are wholly under the rule of men, having no share at all in public concerns, and each in private being under the legal obligation of obedience to the man with whom she has associated her destiny, was the arrangement most conducive to the happiness and well being of both; its general adoption might then be fairly thought to be some evidence that, at the time when it was adopted, it was the best: though even then the considerations which recommended it may, like so many other primeval social facts of the greatest importance, have subsequently, in the course of ages, ceased to exist. But the state of the case is in every respect the reverse of this. In the first place, the opinion in favour of the present system, which entirely subordinates the weaker sex to the stronger, rests upon theory only; for there never has been trial made of any other: so that experience, in the sense in which it is vulgarly opposed to theory, cannot be pretended to have pronounced any verdict. And in the second place, the adoption of this system of inequality never was the result of deliberation, or forethought, or any social ideas, or any notion whatever of what conduced to the benefit of humanity or the good order of society. It arose simply from the fact that from the very earliest twilight of human society, every woman (owing to the value attached to her by men, combined with her inferiority in muscular strength) was found in a state of bondage to some man. Laws and systems of polity always begin by recognising the relations they find already existing between individuals. They convert what was a mere physical fact into a legal right, give it the sanction of society, and principally aim at the substitution of public and organized means of asserting and protecting these rights, instead of the irregular and lawless conflict of physical strength. Those who had already been compelled to obedience became in this manner legally bound to it. Slavery, from being a mere affair of force between the master and the slave, became regularized and a matter of compact among the masters, who, binding themselves to one another for common protection, guaranteed by their collective strength the private possessions of each, including his slaves. In early times, the great majority of the male sex were slaves, as well as the whole of the female. And many ages elapsed, some of them ages of high cultivation, before any thinker was bold enough to question the rightfulness, and the absolute social necessity, either of the one slavery or of the other. By degrees such thinkers did arise: and (the general progress of society assisting) the slavery of the male sex has, in all the countries of Christian Europe at least (though, in one of them, only within the last few years) been at length abolished, and that of the female sex has been gradually changed into a milder form of dependence. But this dependence, as it exists at present, is not an original institution, taking a fresh start from considerations of justice and social expediency—it is the primitive state of slavery lasting on, through successive mitigations and modifications occasioned by the same causes which have softened the general manners, and brought all human relations more under the control of justice and the influence of humanity. It has not lost the taint of its brutal origin. No presumption in its favour, therefore, can be drawn from the fact of its existence. The only such presumption which it could be supposed to have, must be grounded on its having lasted till now, when so many other things which came down from the same odious source have been done away with. And this, indeed, is what makes it strange to ordinary ears, to hear it asserted that the inequality of rights between men and women has no other source than the law of the strongest.

That this statement should have the effect of a paradox, is in some respects creditable to the progress of civilization, and the improvement of the moral sentiments of mankind. We now live—that is to say, one or two of the most advanced nations of the world now live—in a state in which the law of the strongest seems to be entirely abandoned as the regulating principle of the world's affairs: nobody professes it, and, as regards most of the relations between human beings, nobody is permitted to practise it. When any one succeeds in doing so, it is under cover of some pretext which gives him the semblance of having some general social interest on his side. This being the ostensible state of things, people flatter themselves that the rule of mere force is ended; that the law of the strongest cannot be the reason of existence of anything which has remained in full operation down to the present time. However any of our present institutions may have begun, it can only, they think, have been preserved to this period of advanced civilization by a well-grounded feeling of its adaptation to human nature, and conduciveness to the general good. They do not understand the great vitality and durability of institutions which place right on the side of might; how intensely they are clung to; how the good as well as the bad propensities and sentiments of those who have power in their hands, become identified with retaining it; how slowly these bad institutions give way, one at a time, the weakest first, beginning with those which are least interwoven with the daily habits of life; and how very rarely those who have obtained legal power because they first had physical, have ever lost their hold of it until the physical power had passed over to the other side. Such shifting of the physical force not having taken place in the case of women; this fact, combined with all the peculiar and characteristic features of the particular case, made it certain from the first that this branch of the system of right founded on might, though softened in its most atrocious features at an earlier period than several of the others, would be the very last to disappear. It was inevitable that this one case of a social relation grounded on force, would survive through generations of institutions grounded on equal justice, an almost solitary exception to the general character of their laws and customs; but which, so long as it does not proclaim its own origin, and as discussion has not brought out its true character, is not felt to jar with modern civilization, any more than domestic slavery among the Greeks jarred with their notion of themselves as a free people.

The truth is, that people of the present and the last two or three generations have lost all practical sense of the primitive condition of humanity; and only the few who have studied history accurately, or have much frequented the parts of the world occupied by the living representatives of ages long past, are able to form any mental picture of what society then was. People are not aware how entirely, in former ages, the law of superior strength was the rule of life; how publicly and openly it was avowed, I do not say cynically or shamelessly—for these words imply a feeling that there was something in it to be ashamed of, and no such notion could find a place in the faculties of any person in those ages, except a philosopher or a saint. History gives a cruel experience of human nature, in shewing how exactly the regard due to the life, possessions, and entire earthly happiness of any class of persons, was measured by what they had the power of enforcing; how all who made any resistance to authorities that had arms in their hands, however dreadful might be the provocation, had not only the law of force but all other laws, and all the notions of social obligation against them; and in the eyes of those whom they resisted, were not only guilty of crime, but of the worst of all crimes, deserving the most cruel chastisement which human beings could inflict. The first small vestige of a feeling of obligation in a superior to acknowledge any right in inferiors, began when he had been induced, for convenience, to make some promise to them. Though these promises, even when sanctioned by the most solemn oaths, were for many ages revoked or violated on the most trifling provocation or temptation, it is probable that this, except by persons of still worse than the average morality, was seldom done without some twinges of conscience. The ancient republics, being mostly grounded from the first upon some kind of mutual

compact, or at any rate formed by an union of persons not very unequal in strength, afforded, in consequence, the first instance of a portion of human relations fenced round, and placed under the dominion of another law than that of force. And though the original law of force remained in full operation between them and their slaves, and also (except so far as limited by express compact) between a commonwealth and its subjects, or other independent commonwealths; the banishment of that primitive law even from so narrow a field, commenced the regeneration of human nature, by giving birth to sentiments of which experience soon demonstrated the immense value even for material interests, and which thenceforward only required to be enlarged, not created. Though slaves were no part of the commonwealth, it was in the free states that slaves were first felt to have rights as human beings. The Stoics were, I believe, the first (except so far as the Jewish law constitutes an exception) who taught as a part of morality that men were bound by moral obligations to their slaves. No one, after Christianity became ascendant, could ever again have been a stranger to this belief, in theory; nor, after the rise of the Catholic Church, was it ever without persons to stand up for it. Yet to enforce it was the most arduous task which Christianity ever had to perform. For more than a thousand years the Church kept up the contest, with hardly any perceptible success. It was not for want of power over men's minds. Its power was prodigious. It could make kings and nobles resign their most valued possessions to enrich the Church. It could make thousands, in the prime of life and the height of worldly advantages, shut themselves up in convents to work out their salvation by poverty, fasting, and prayer. It could send hundreds of thousands across land and sea, Europe and Asia, to give their lives for the deliverance of the Holy Sepulchre. It could make kings relinquish wives who were the object of their passionate attachment, because the Church declared that they were within the seventh (by our calculation the fourteenth) degree of relationship. All this it did; but it could not make men fight less with one another, nor tyrannize less cruelly over the serfs, and when they were able, over burgesses. It could not make them renounce either of the applications of force; force militant, or force triumphant. This they could never be induced to do until they were themselves in their turn compelled by superior force. Only by the growing power of kings was an end put to fighting except between kings, or competitors for kingship; only by the growth of a wealthy and warlike bourgeoisie in the fortified towns, and of a plebeian infantry which proved more powerful in the field than the undisciplined chivalry, was the insolent tyranny of the nobles over the bourgeoisie and peasantry brought within some bounds. It was persisted in not only until, but long after, the oppressed had obtained a power enabling them often to take conspicuous vengeance; and on the Continent much of it continued to the time of the French Revolution, though in England the earlier and better organization of the democratic classes put an end to it sooner, by establishing equal laws and free national institutions.

If people are mostly so little aware how completely, during the greater part of the duration of our species, the law of force was the avowed rule of general conduct, any other being only a special and exceptional consequence of peculiar ties—and from how very recent a date it is that the affairs of society in general have been even pretended to be regulated according to any moral law; as little do people remember or consider, how institutions and customs which never had any ground but the law of force, last on into ages and states of general opinion which never would have permitted their first establishment. Less than forty years ago, Englishmen might still by law hold human beings in bondage as saleable property: within the present century they might kidnap them and carry them off, and work them literally to death. This absolutely extreme case of the law of force, condemned by those who can tolerate almost every other form of arbitrary power, and which, of all others, presents features the most revolting to the feelings of all who look at it from an impartial position, was the law of civilized and Christian England within the memory of persons now living: and in one half of Anglo-Saxon America

three or four years ago, not only did slavery exist, but the slave trade, and the breeding of slaves expressly for it, was a general practice between slave states. Yet not only was there a greater strength of sentiment against it, but, in England at least, a less amount either of feeling or of interest in favour of it, than of any other of the customary abuses of force: for its motive was the love of gain, unmixed and undisguised; and those who profited by it were a very small numerical fraction of the country, while the natural feeling of all who were not personally interested in it, was unmitigated abhorrence. So extreme an instance makes it almost superfluous to refer to any other: but consider the long duration of absolute monarchy. In England at present it is the almost universal conviction that military despotism is a case of the law of force, having no other origin or justification. Yet in all the great nations of Europe except England it either still exists, or has only just ceased to exist, and has even now a strong party favourable to it in all ranks of the people, especially among persons of station and consequence. Such is the power of an established system, even when far from universal; when not only in almost every period of history there have been great and well-known examples of the contrary system, but these have almost invariably been afforded by the most illustrious and most prosperous communities. In this case, too, the possessor of the undue power, the person directly interested in it, is only one person, while those who are subject to it and suffer from it are literally all the rest. The yoke is naturally and necessarily humiliating to all persons, except the one who is on the throne, together with, at most, the one who expects to succeed to it. How different are these cases from that of the power of men over women! I am not now prejudging the question of its justifiableness. I am showing how vastly more permanent it could not but be, even if not justifiable, than these other dominations which have nevertheless lasted down to our own time. Whatever gratification of pride there is in the possession of power, and whatever personal interest in its exercise, is in this case not confined to a limited class, but common to the whole male sex. Instead of being, to most of its supporters, a thing desirable chiefly in the abstract, or, like the political ends usually contended for by factious, of little private importance to any but the leaders; it comes home to the person and hearth of every male head of a family, and of every one who looks forward to being so. The clodhopper exercises, or is to exercise, his share of the power equally with the highest nobleman. And the case is that in which the desire of power is the strongest: for every one who desires power, desires it most over those who are nearest to him, with whom his life is passed, with whom he has most concerns in common, and in whom any independence of his authority is oftenest likely to interfere with his individual preferences. If, in the other cases specified, powers manifestly grounded only on force, and having so much less to support them, are so slowly and with so much difficulty got rid of, much more must it be so with this, even if it rests on no better foundation than those. We must consider, too, that the possessors of the power have facilities in this case, greater than in any other, to prevent any uprising against it. Every one of the subjects lives under the very eye, and almost, it may be said, in the hands, of one of the masters—in closer intimacy with him than with any of her fellow-subjects; with no means of combining against him, no power of even locally over-mastering him, and, on the other hand, with the strongest motives for seeking his favour and avoiding to give him offence. In struggles for political emancipation, everybody knows how often its champions are bought off by bribes, or daunted by terrors. In the case of women, each individual of the subject-class is in a chronic state of bribery and intimidation combined. In setting up the standard of resistance, a large number of the leaders, and still more of the followers, must make an almost complete sacrifice of the pleasures or the alleviations of their own individual lot. If ever any system of privilege and enforced subjection had its yoke tightly riveted on the necks of those who are kept down by it, this has. I have not yet shown that it is a wrong system: but every one who is capable of thinking on the subject must see that even if it is, it was certain to outlast all other forms of unjust authority. And when some of the grossest of the other forms still exist in many civilized countries, and have only recently been got rid of in others, it would be strange if that

which is so much the deepest-rooted had yet been perceptibly shaken anywhere. There is more reason to wonder that the protests and testimonies against it should have been so numerous and so weighty as they are.

Some will object, that a comparison cannot fairly be made between the government of the male sex and the forms of unjust power which I have adduced in illustration of it, since these are arbitrary, and the effect of mere usurpation, while it on the contrary is natural. But was there ever any domination which did not appear natural to those who possessed it? There was a time when the division of mankind into two classes, a small one of masters and a numerous one of slaves, appeared, even to the most cultivated minds, to be a natural, and the only natural, condition of the human race. No less an intellect, and one which contributed no less to the progress of human thought, than Aristotle, held this opinion without doubt or misgiving; and rested it on the same premises on which the same assertion in regard to the dominion of men over women is usually based, namely that there are different natures among mankind, free natures, and slave natures; that the Greeks were of a free nature, the barbarian races of Thracians and Asiatics of a slave nature. But why need I go back to Aristotle? Did not the slaveowners of the Southern United States maintain the same doctrine, with all the fanaticism with which men cling to the theories that justify their passions and legitimate their personal interests? Did they not call heaven and earth to witness that the dominion of the white man over the black is natural, that the black race is by nature incapable of freedom, and marked out for slavery? some even going so far as to say that the freedom of manual labourers is an unnatural order of things anywhere. Again, the theorists of absolute monarchy have always affirmed it to be the only natural form of government; issuing from the patriarchal, which was the primitive and spontaneous form of society, framed on the model of the paternal, which is anterior to society itself, and, as they contend, the most natural authority of all. Nay, for that matter, the law of force itself, to those who could not plead any other, has always seemed the most natural of all grounds for the exercise of authority. Conquering races hold it to be Nature's own dictate that the conquered should obey the conquerors, or, as they euphoniously paraphrase it, that the feebler and more unwarlike races should submit to the braver and manlier. The smallest acquaintance with human life in the middle ages, shows how supremely natural the dominion of the feudal nobility over men of low condition appeared to the nobility themselves, and how unnatural the conception seemed, of a person of the inferior class claiming equality with them, or exercising authority over them. It hardly seemed less so to the class held in subjection. The emancipated serfs and burgesses, even in their most vigorous struggles, never made any pretension to a share of authority; they only demanded more or less of limitation to the power of tyrannizing over them. So true is it that unnatural generally means only uncustomary, and that everything which is usual appears natural. The subjection of women to men being a universal custom, any departure from it quite naturally appears unnatural. But how entirely, even in this case, the feeling is dependent on custom, appears by ample experience. Nothing so much astonishes the people of distant parts of the world, when they first learn anything about England, as to be told that it is under a queen: the thing seems to them so unnatural as to be almost incredible. To Englishmen this does not seem in the least degree unnatural, because they are used to it; but they do feel it unnatural that women should be soldiers or members of parliament. In the feudal ages, on the contrary, war and politics were not thought unnatural to women, because not unusual; it seemed natural that women of the privileged classes should be of manly character, inferior in nothing but bodily strength to their husbands and fathers. The independence of women seemed rather less unnatural to the Greeks than to other ancients, on account of the fabulous Amazons (whom they believed to be historical), and the partial example afforded by the Spartan women; who, though no less subordinate by law than in other Greek states, were more free in fact, and being trained to bodily exercises in the same manner with men,

gave ample proof that they were not naturally disqualified for them. There can be little doubt that Spartan experience suggested to Plato, among many other of his doctrines, that of the social and political equality of the two sexes.

But, it will be said, the rule of men over women differs from all these others in not being a rule of force: it is accepted voluntarily; women make no complaint, and are consenting parties to it. In the first place, a great number of women do not accept it. Ever since there have been women able to make their sentiments known by their writings (the only mode of publicity which society permits to them), an increasing number of them have recorded protests against their present social condition: and recently many thousands of them, headed by the most eminent women known to the public, have petitioned Parliament for their admission to the Parliamentary Suffrage. The claim of women to be educated as solidly, and in the same branches of knowledge, as men, is urged with growing intensity, and with a great prospect of success; while the demand for their admission into professions and occupations hitherto closed against them, becomes every year more urgent. Though there are not in this country, as there are in the United States, periodical Conventions and an organized party to agitate for the Rights of Women, there is a numerous and active Society organized and managed by women, for the more limited object of obtaining the political franchise. Nor is it only in our own country and in America that women are beginning to protest, more or less collectively, against the disabilities under which they labour. France, and Italy, and Switzerland, and Russia now afford examples of the same thing. How many more women there are who silently cherish similar aspirations, no one can possibly know; but there are abundant tokens how many *would* cherish them, were they not so strenuously taught to repress them as contrary to the proprieties of their sex. It must be remembered, also, that no enslaved class ever asked for complete liberty at once. When Simon de Montfort called the deputies of the commons to sit for the first time in Parliament, did any of them dream of demanding that an assembly, elected by their constituents, should make and destroy ministries, and dictate to the king in affairs of state? No such thought entered into the imagination of the most ambitious of them. The nobility had already these pretensions; the commons pretended to nothing but to be exempt from arbitrary taxation, and from the gross individual oppression of the king's officers. It is a political law of nature that those who are under any power of ancient origin, never begin by complaining of the power itself, but only of its oppressive exercise. There is never any want of women who complain of ill usage by their husbands. There would be infinitely more, if complaint were not the greatest of all provocatives to a repetition and increase of the ill usage. It is this which frustrates all attempts to maintain the power but protect the woman against its abuses. In no other case (except that of a child) is the person who has been proved judicially to have suffered an injury, replaced under the physical power of the culprit who inflicted it. Accordingly wives, even in the most extreme and protracted cases of bodily ill usage, hardly ever dare avail themselves of the laws made for their protection: and if, in a moment of irrepressible indignation, or by the interference of neighbours, they are induced to do so, their whole effort afterwards is to disclose as little as they can, and to beg off their tyrant from his merited chastisement.

All causes, social and natural, combine to make it unlikely that women should be collectively rebellious to the power of men. They are so far in a position different from all other subject classes, that their masters require something more from them than actual service. Men do not want solely the obedience of women, they want their sentiments. All men, except the most brutish, desire to have, in the woman most nearly connected with them, not a forced slave but a willing one, not a slave merely, but a favourite. They have therefore put everything in practice to enslave their minds. The masters of all other slaves rely, for maintaining obedience, on fear; either fear of themselves, or religious fears. The masters of

women wanted more than simple obedience, and they turned the whole force of education to effect their purpose. All women are brought up from the very earliest years in the belief that their ideal of character is the very opposite to that of men; not self-will, and government by self-control, but submission, and yielding to the control of others. All the moralities tell them that it is the duty of women, and all the current sentimentalities that it is their nature, to live for others; to make complete abnegation of themselves, and to have no life but in their affections. And by their affections are meant the only ones they are allowed to have—those to the men with whom they are connected, or to the children who constitute an additional and indefeasible tie between them and a man. When we put together three things—first, the natural attraction between opposite sexes; secondly, the wife's entire dependence on the husband, every privilege or pleasure she has being either his gift, or depending entirely on his will; and lastly, that the principal object of human pursuit, consideration, and all objects of social ambition, can in general be sought or obtained by her only through him, it would be a miracle if the object of being attractive to men had not become the polar star of feminine education and formation of character. And, this great means of influence over the minds of women having been acquired, an instinct of selfishness made men avail themselves of it to the utmost as a means of holding women in subjection, by representing to them meekness, submissiveness, and resignation of all individual will into the hands of a man, as an essential part of sexual attractiveness. Can it be doubted that any of the other yokes which mankind have succeeded in breaking, would have subsisted till now if the same means had existed, and had been as sedulously used, to bow down their minds to it? If it had been made the object of the life of every young plebeian to find personal favour in the eyes of some patrician, of every young serf with some seigneur; if domestication with him, and a share of his personal affections, had been held out as the prize which they all should look out for, the most gifted and aspiring being able to reckon on the most desirable prizes; and if, when this prize had been obtained, they had been shut out by a wall of brass from all interests not centering in him, all feelings and desires but those which he shared or inculcated; would not serfs and seigneurs, plebeians and patricians, have been as broadly distinguished at this day as men and women are? and would not all but a thinker here and there, have believed the distinction to be a fundamental and unalterable fact in human nature?

The preceding considerations are amply sufficient to show that custom, however universal it may be, affords in this case no presumption, and ought not to create any prejudice, in favour of the arrangements which place women in social and political subjection to men. But I may go farther, and maintain that the course of history, and the tendencies of progressive human society, afford not only no presumption in favour of this system of inequality of rights, but a strong one against it; and that, so far as the whole course of human improvement up to this time, the whole stream of modern tendencies, warrants any inference on the subject, it is, that this relic of the past is discordant with the future, and must necessarily disappear.

For, what is the peculiar character of the modern world—the difference which chiefly distinguishes modern institutions, modern social ideas, modern life itself, from those of times long past? It is, that human beings are no longer born to their place in life, and chained down by an inexorable bond to the place they are born to, but are free to employ their faculties, and such favourable chances as offer, to achieve the lot which may appear to them most desirable. Human society of old was constituted on a very different principle. All were born to a fixed social position, and were mostly kept in it by law, or interdicted from any means by which they could emerge from it. As some men are born white and others black, so some were born slaves and others freemen and citizens; some were born patricians, others plebeians; some were born feudal nobles, others commoners and *roturiers*. A slave or serf could never

make himself free, nor, except by the will of his master, become so. In most European countries it was not till towards the close of the middle ages, and as a consequence of the growth of regal power, that commoners could be ennobled. Even among nobles, the eldest son was born the exclusive heir to the paternal possessions, and a long time elapsed before it was fully established that the father could disinherit him. Among the industrious classes, only those who were born members of a guild, or were admitted into it by its members, could lawfully practise their calling within its local limits; and nobody could practise any calling deemed important, in any but the legal manner—by processes authoritatively prescribed. Manufacturers have stood in the pillory for presuming to carry on their business by new and improved methods. In modern Europe, and most in those parts of it which have participated most largely in all other modern improvements, diametrically opposite doctrines now prevail. Law and government do not undertake to prescribe by whom any social or industrial operation shall or shall not be conducted, or what modes of conducting them shall be lawful. These things are left to the unfettered choice of individuals. Even the laws which required that workmen should serve an apprenticeship, have in this country been repealed: there being ample assurance that in all cases in which an apprenticeship is necessary, its necessity will suffice to enforce it. The old theory was, that the least possible should be left to the choice of the individual agent; that all he had to do should, as far as practicable, be laid down for him by superior wisdom. Left to himself he was sure to go wrong. The modern conviction, the fruit of a thousand years of experience, is, that things in which the individual is the person directly interested, never go right but as they are left to his own discretion; and that any regulation of them by authority, except to protect the rights of others, is sure to be mischievous. This conclusion, slowly arrived at, and not adopted until almost every possible application of the contrary theory had been made with disastrous result, now (in the industrial department) prevails universally in the most advanced countries, almost universally in all that have pretensions to any sort of advancement. It is not that all processes are supposed to be equally good, or all persons to be equally qualified for everything; but that freedom of individual choice is now known to be the only thing which procures the adoption of the best processes, and throws each operation into the hands of those who are best qualified for it. Nobody thinks it necessary to make a law that only a strong-armed man shall be a blacksmith. Freedom and competition suffice to make blacksmiths strong-armed men, because the weak-armed can earn more by engaging in occupations for which they are more fit. In consonance with this doctrine, it is felt to be an overstepping of the proper bounds of authority to fix beforehand, on some general presumption, that certain persons are not fit to do certain things. It is now thoroughly known and admitted that if some such presumptions exist, no such presumption is infallible. Even if it be well grounded in a majority of cases, which it is very likely not to be, there will be a minority of exceptional cases in which it does not hold: and in those it is both an injustice to the individuals, and a detriment to society, to place barriers in the way of their using their faculties for their own benefit and for that of others. In the cases, on the other hand, in which the unfitness is real, the ordinary motives of human conduct will on the whole suffice to prevent the incompetent person from making, or from persisting in, the attempt.

If this general principle of social and economical science is not true; if individuals, with such help as they can derive from the opinion of those who know them, are not better judges than the law and the government, of their own capacities and vocation; the world cannot too soon abandon this principle, and return to the old system of regulations and disabilities. But if the principle is true, we ought to act as if we believed it, and not to ordain that to be born a girl instead of a boy, any more than to be born black instead of white, or a commoner instead of a nobleman, shall decide the person's position through all life—shall interdict people from all the more elevated social positions, and from all, except a few, respectable occupations. Even were we to admit the utmost that is ever pretended as to the superior

fitness of men for all the functions now reserved to them, the same argument applies which forbids a legal qualification for members of Parliament. If only once in a dozen years the conditions of eligibility exclude a fit person, there is a real loss, while the exclusion of thousands of unfit persons is no gain; for if the constitution of the electoral body disposes them to choose unfit persons, there are always plenty of such persons to choose from. In all things of any difficulty and importance, those who can do them well are fewer than the need, even with the most unrestricted latitude of choice: and any limitation of the field of selection deprives society of some chances of being served by the competent, without ever saving it from the incompetent.

At present, in the more improved countries, the disabilities of women are the only case, save one, in which laws and institutions take persons at their birth, and ordain that they shall never in all their lives be allowed to compete for certain things. The one exception is that of royalty. Persons still are born to the throne; no one, not of the reigning family, can ever occupy it, and no one even of that family can, by any means but the course of hereditary succession, attain it. All other dignities and social advantages are open to the whole male sex: many indeed are only attainable by wealth, but wealth may be striven for by any one, and is actually obtained by many men of the very humblest origin. The difficulties, to the majority, are indeed insuperable without the aid of fortunate accidents; but no male human being is under any legal ban: neither law nor opinion superadd artificial obstacles to the natural ones. Royalty, as I have said, is excepted: but in this case every one feels it to be an exception—an anomaly in the modern world, in marked opposition to its customs and principles, and to be justified only by extraordinary special expedencies, which, though individuals and nations differ in estimating their weight, unquestionably do in fact exist. But in this exceptional case, in which a high social function is, for important reasons, bestowed on birth instead of being put up to competition, all free nations contrive to adhere in substance to the principle from which they nominally derogate; for they circumscribe this high function by conditions avowedly intended to prevent the person to whom it ostensibly belongs from really performing it; while the person by whom it is performed, the responsible minister, does obtain the post by a competition from which no full-grown citizen of the male sex is legally excluded. The disabilities, therefore, to which women are subject from the mere fact of their birth, are the solitary examples of the kind in modern legislation. In no instance except this, which comprehends half the human race, are the higher social functions closed against any one by a fatality of birth which no exertions, and no change of circumstances, can overcome; for even religious disabilities (besides that in England and in Europe they have practically almost ceased to exist) do not close any career to the disqualified person in case of conversion.

The social subordination of women thus stands out an isolated fact in modern social institutions; a solitary breach of what has become their fundamental law; a single relic of an old world of thought and practice exploded in everything else, but retained in the one thing of most universal interest; as if a gigantic dolmen, or a vast temple of Jupiter Olympius, occupied the site of St. Paul's and received daily worship, while the surrounding Christian churches were only resorted to on fasts and festivals. This entire discrepancy between one social fact and all those which accompany it, and the radical opposition between its nature and the progressive movement which is the boast of the modern world, and which has successively swept away everything else of an analogous character, surely affords, to a conscientious observer of human tendencies, serious matter for reflection. It raises a *primâ facie* presumption on the unfavourable side, far outweighing any which custom and usage could in such circumstances create on the favourable; and should at least suffice to make this, like the choice between republicanism and royalty, a balanced question.

The least that can be demanded is, that the question should not be considered as prejudged by existing fact and existing opinion, but open to discussion on its merits, as a question of justice and expediency: the decision on this, as on any of the other social arrangements of mankind, depending on what an enlightened estimate of tendencies and consequences may show to be most advantageous to humanity in general, without distinction of sex. And the discussion must be a real discussion, descending to foundations, and not resting satisfied with vague and general assertions. It will not do, for instance, to assert in general terms, that the experience of mankind has pronounced in favour of the existing system. Experience cannot possibly have decided between two courses, so long as there has only been experience of one. If it be said that the doctrine of the equality of the sexes rests only on theory, it must be remembered that the contrary doctrine also has only theory to rest upon. All that is proved in its favour by direct experience, is that mankind have been able to exist under it, and to attain the degree of improvement and prosperity which we now see; but whether that prosperity has been attained sooner, or is now greater, than it would have been under the other system, experience does not say. On the other hand, experience does say, that every step in improvement has been so invariably accompanied by a step made in raising the social position of women, that historians and philosophers have been led to adopt their elevation or debasement as on the whole the surest test and most correct measure of the civilization of a people or an age. Through all the progressive period of human history, the condition of women has been approaching nearer to equality with men. This does not of itself prove that the assimilation must go on to complete equality; but it assuredly affords some presumption that such is the case.

Neither does it avail anything to say that the *nature* of the two sexes adapts them to their present functions and position, and renders these appropriate to them. Standing on the ground of common sense and the constitution of the human mind, I deny that any one knows, or can know, the nature of the two sexes, as long as they have only been seen in their present relation to one another. If men had ever been found in society without women, or women without men, or if there had been a society of men and women in which the women were not under the control of the men, something might have been positively known about the mental and moral differences which may be inherent in the nature of each. What is now called the nature of women is an eminently artificial thing—the result of forced repression in some directions, unnatural stimulation in others. It may be asserted without scruple, that no other class of dependents have had their character so entirely distorted from its natural proportions by their relation with their masters; for, if conquered and slave races have been, in some respects, more forcibly repressed, whatever in them has not been crushed down by an iron heel has generally been let alone, and if left with any liberty of development, it has developed itself according to its own laws; but in the case of women, a hot-house and stove cultivation has always been carried on of some of the capabilities of their nature, for the benefit and pleasure of their masters. Then, because certain products of the general vital force sprout luxuriantly and reach a great development in this heated atmosphere and under this active nurture and watering, while other shoots from the same root, which are left outside in the wintry air, with ice purposely heaped all round them, have a stunted growth, and some are burnt off with fire and disappear; men, with that inability to recognise their own work which distinguishes the unanalytic mind, indolently believe that the tree grows of itself in the way they have made it grow, and that it would die if one half of it were not kept in a vapour bath and the other half in the snow.

Of all difficulties which impede the progress of thought, and the formation of well-grounded opinions on life and social arrangements, the greatest is now the unspeakable ignorance and inattention of mankind in respect to the influences which form human character. Whatever any portion of the human species now are, or seem to be, such, it is supposed, they have a natural tendency to be: even when the most

elementary knowledge of the circumstances in which they have been placed, clearly points out the causes that made them what they are. Because a cottier deeply in arrears to his landlord is not industrious, there are people who think that the Irish are naturally idle. Because constitutions can be overthrown when the authorities appointed to execute them turn their arms against them, there are people who think the French incapable of free government. Because the Greeks cheated the Turks, and the Turks only plundered the Greeks, there are persons who think that the Turks are naturally more sincere: and because women, as is often said, care nothing about politics except their personalities, it is supposed that the general good is naturally less interesting to women than to men. History, which is now so much better understood than formerly, teaches another lesson: if only by showing the extraordinary susceptibility of human nature to external influences, and the extreme variableness of those of its manifestations which are supposed to be most universal and uniform. But in history, as in travelling, men usually see only what they already had in their own minds; and few learn much from history, who do not bring much with them to its study.

Hence, in regard to that most difficult question, what are the natural differences between the two sexes—a subject on which it is impossible in the present state of society to obtain complete and correct knowledge—while almost everybody dogmatizes upon it, almost all neglect and make light of the only means by which any partial insight can be obtained into it. This is, an analytic study of the most important department of psychology, the laws of the influence of circumstances on character. For, however great and apparently ineradicable the moral and intellectual differences between men and women might be, the evidence of their being natural differences could only be negative. Those only could be inferred to be natural which could not possibly be artificial—the residuum, after deducting every characteristic of either sex which can admit of being explained from education or external circumstances. The profoundest knowledge of the laws of the formation of character is indispensable to entitle any one to affirm even that there is any difference, much more what the difference is, between the two sexes considered as moral and rational beings; and since no one, as yet, has that knowledge, (for there is hardly any subject which, in proportion to its importance, has been so little studied), no one is thus far entitled to any positive opinion on the subject. Conjectures are all that can at present be made; conjectures more or less probable, according as more or less authorized by such knowledge as we yet have of the laws of psychology, as applied to the formation of character.

Even the preliminary knowledge, what the differences between the sexes now are, apart from all question as to how they are made what they are, is still in the crudest and most incomplete state. Medical practitioners and physiologists have ascertained, to some extent, the differences in bodily constitution; and this is an important element to the psychologist: but hardly any medical practitioner is a psychologist. Respecting the mental characteristics of women; their observations are of no more worth than those of common men. It is a subject on which nothing final can be known, so long as those who alone can really know it, women themselves, have given but little testimony, and that little, mostly suborned. It is easy to know stupid women. Stupidity is much the same all the world over. A stupid person's notions and feelings may confidently be inferred from those which prevail in the circle by which the person is surrounded. Not so with those whose opinions and feelings are an emanation from their own nature and faculties. It is only a man here and there who has any tolerable knowledge of the character even of the women of his own family. I do not mean, of their capabilities; these nobody knows, not even themselves, because most of them have never been called out. I mean their actually existing thoughts and feelings. Many a man thinks he perfectly understands women, because he has had amatory relations with several, perhaps with many of them. If he is a good observer, and his experience

extends to quality as well as quantity, he may have learnt something of one narrow department of their nature—an important department, no doubt. But of all the rest of it, few persons are generally more ignorant, because there are few from whom it is so carefully hidden. The most favourable case which a man can generally have for studying the character of a woman, is that of his own wife: for the opportunities are greater, and the cases of complete sympathy not so unspeakably rare. And in fact, this is the source from which any knowledge worth having on the subject has, I believe, generally come. But most men have not had the opportunity of studying in this way more than a single case: accordingly one can, to an almost laughable degree, infer what a man's wife is like, from his opinions about women in general. To make even this one case yield any result, the woman must be worth knowing, and the man not only a competent judge, but of a character so sympathetic in itself, and so well adapted to hers, that he can either read her mind by sympathetic intuition, or has nothing in himself which makes her shy of disclosing it. Hardly anything, I believe, can be more rare than this conjunction. It often happens that there is the most complete unity of feeling and community of interests as to all external things, yet the one has as little admission into the internal life of the other as if they were common acquaintance. Even with true affection, authority on the one side and subordination on the other prevent perfect confidence. Though nothing may be intentionally withheld, much is not shown. In the analogous relation of parent and child, the corresponding phenomenon must have been in the observation of every one. As between father and son, how many are the cases in which the father, in spite of real affection on both sides, obviously to all the world does not know, nor suspect, parts of the son's character familiar to his companions and equals. The truth is, that the position of looking up to another is extremely unpropitious to complete sincerity and openness with him. The fear of losing ground in his opinion or in his feelings is so strong, that even in an upright character, there is an unconscious tendency to show only the best side, or the side which, though not the best, is that which he most likes to see: and it may be confidently said that thorough knowledge of one another hardly ever exists, but between persons who, besides being intimates, are equals. How much more true, then, must all this be, when the one is not only under the authority of the other, but has it inculcated on her as a duty to reckon everything else subordinate to his comfort and pleasure, and to let him neither see nor feel anything coming from her, except what is agreeable to him. All these difficulties stand in the way of a man's obtaining any thorough knowledge even of the one woman whom alone, in general, he has sufficient opportunity of studying. When we further consider that to understand one woman is not necessarily to understand any other woman; that even if he could study many women of one rank, or of one country, he would not thereby understand women of other ranks or countries; and even if he did, they are still only the women of a single period of history; we may safely assert that the knowledge which men can acquire of women, even as they have been and are, without reference to what they might be, is wretchedly imperfect and superficial, and always will be so, until women themselves have told all that they have to tell.

And this time has not come; nor will it come otherwise than gradually. It is but of yesterday that women have either been qualified by literary accomplishments, or permitted by society, to tell anything to the general public. As yet very few of them dare tell anything, which men, on whom their literary success depends, are unwilling to hear. Let us remember in what manner, up to a very recent time, the expression, even by a male author, of uncustomary opinions, or what are deemed eccentric feelings, usually was, and in some degree still is, received; and we may form some faint conception under what impediments a woman, who is brought up to think custom and opinion her sovereign rule, attempts to express in books anything drawn from the depths of her own nature. The greatest woman who has left writings behind her sufficient to give her an eminent rank in the literature of her country, thought it necessary to prefix as a motto to her boldest work, “Un homme peut braver l'opinion; une femme doit s'y

soumettre.”^[1] The greater part of what women write about women is mere sycophancy to men. In the case of unmarried women, much of it seems only intended to increase their chance of a husband. Many, both married and unmarried, overstep the mark, and inculcate a servility beyond what is desired or relished by any man, except the very vulgarest. But this is not so often the case as, even at a quite late period, it still was. Literary women are becoming more freespoken, and more willing to express their real sentiments. Unfortunately, in this country especially, they are themselves such artificial products, that their sentiments are compounded of a small element of individual observation and consciousness, and a very large one of acquired associations. This will be less and less the case, but it will remain true to a great extent, as long as social institutions do not admit the same free development of originality in women which is possible to men. When that time comes, and not before, we shall see, and not merely hear, as much as it is necessary to know of the nature of women, and the adaptation of other things to it.

I have dwelt so much on the difficulties which at present obstruct any real knowledge by men of the true nature of women, because in this as in so many other things “*opinio copiae inter maximas causas inopiae est;*” and there is little chance of reasonable thinking on the matter, while people flatter themselves that they perfectly understand a subject of which most men know absolutely nothing, and of which it is at present impossible that any man, or all men taken together, should have knowledge which can qualify them to lay down the law to women as to what is, or is not, their vocation. Happily, no such knowledge is necessary for any practical purpose connected with the position of women in relation to society and life. For, according to all the principles involved in modern society, the question rests with women themselves—to be decided by their own experience, and by the use of their own faculties. There are no means of finding what either one person or many can do, but by trying—and no means by which any one else can discover for them what it is for their happiness to do or leave undone.

One thing we may be certain of—that what is contrary to women's nature to do, they never will be made to do by simply giving their nature free play. The anxiety of mankind to interfere in behalf of nature, for fear lest nature should not succeed in effecting its purpose, is an altogether unnecessary solicitude. What women by nature cannot do, it is quite superfluous to forbid them from doing. What they can do, but not so well as the men who are their competitors, competition suffices to exclude them from; since nobody asks for protective duties and bounties in favour of women; it is only asked that the present bounties and protective duties in favour of men should be recalled. If women have a greater natural inclination for some things than for others, there is no need of laws or social inculcation to make the majority of them do the former in preference to the latter. Whatever women's services are most wanted for, the free play of competition will hold out the strongest inducements to them to undertake. And, as the words imply, they are most wanted for the things for which they are most fit; by the apportionment of which to them, the collective faculties of the two sexes can be applied on the whole with the greatest sum of valuable result.

The general opinion of men is supposed to be, that the natural vocation of a woman is that of a wife and mother. I say, is supposed to be, because, judging from acts—from the whole of the present constitution of society—one might infer that their opinion was the direct contrary. They might be supposed to think that the alleged natural vocation of women was of all things the most repugnant to their nature; insomuch that if they are free to do anything else—if any other means of living, or occupation of their time and faculties, is open, which has any chance of appearing desirable to them—there will not be enough of them who will be willing to accept the condition said to be natural to them. If this is the real opinion of men in general, it would be well that it should be spoken out. I should like to hear somebody

openly enunciating the doctrine (it is already implied in much that is written on the subject)—“It is necessary to society that women should marry and produce children. They will not do so unless they are compelled. Therefore it is necessary to compel them.” The merits of the case would then be clearly defined. It would be exactly that of the slaveholders of South Carolina and Louisiana. “It is necessary that cotton and sugar should be grown. White men cannot produce them. Negroes will not, for any wages which we choose to give. *Ergo* they must be compelled.” An illustration still closer to the point is that of impressment. Sailors must absolutely be had to defend the country. It often happens that they will not voluntarily enlist. Therefore there must be the power of forcing them. How often has this logic been used! and, but for one flaw in it, without doubt it would have been successful up to this day. But it is open to the retort—First pay the sailors the honest value of their labour. When you have made it as well worth their while to serve you, as to work for other employers, you will have no more difficulty than others have in obtaining their services. To this there is no logical answer except “I will not:” and as people are now not only ashamed, but are not desirous, to rob the labourer of his hire, impressment is no longer advocated. Those who attempt to force women into marriage by closing all other doors against them, lay themselves open to a similar retort. If they mean what they say, their opinion must evidently be, that men do not render the married condition so desirable to women, as to induce them to accept it for its own recommendations. It is not a sign of one's thinking the boon one offers very attractive, when one allows only Hobson's choice, “that or none.” And here, I believe, is the clue to the feelings of those men, who have a real antipathy to the equal freedom of women. I believe they are afraid, not lest women should be unwilling to marry, for I do not think that any one in reality has that apprehension; but lest they should insist that marriage should be on equal conditions; lest all women of spirit and capacity should prefer doing almost anything else, not in their own eyes degrading, rather than marry, when marrying is giving themselves a master, and a master too of all their earthly possessions. And truly, if this consequence were necessarily incident to marriage, I think that the apprehension would be very well founded. I agree in thinking it probable that few women, capable of anything else, would, unless under an irresistible *entrainement*, rendering them for the time insensible to anything but itself, choose such a lot, when any other means were open to them of filling a conventionally honourable place in life: and if men are determined that the law of marriage shall be a law of despotism, they are quite right, in point of mere policy, in leaving to women only Hobson's choice. But, in that case, all that has been done in the modern world to relax the chain on the minds of women, has been a mistake. They never should have been allowed to receive a literary education. Women who read, much more women who write, are, in the existing constitution of things, a contradiction and a disturbing element: and it was wrong to bring women up with any acquirements but those of an odalisque, or of a domestic servant...

24 John Rawls and the “Veil of Ignorance”¹

John Rawls’s Veil of Ignorance is probably one of the most influential philosophical ideas of the 20th century. The Veil of Ignorance is a way of working out the basic institutions and structures of a just society. According to Rawls,² working out what justice requires demands that we think as if we are building society from the ground up, in a way that everyone who is reasonable can accept. We therefore need to imagine ourselves in a situation *before* any particular society exists; Rawls calls this situation the Original Position. To be clear, Rawls does not think we can actually return to this original position, or even that it ever existed. It is a purely hypothetical idea: our job in thinking about justice is to imagine that we are designing a society from scratch. The idea is that social justice will be whatever reasonable people would agree to in such a situation. We can then start thinking about how to make our actual society look more like the ideal picture we have imagined.

Of course, if we were designing a society in the Original Position, people might try to ensure that it works in *their* favour. The process is thus vulnerable to biases, disagreements, and the potential for majority groups ganging up on minority groups. Rawls’s solution to this problem comes in two parts. Firstly, he makes some assumptions about the people designing their own society. People in the Original Position are assumed to be free and equal, and to have certain motivations: they want to do well for themselves, but they are prepared to adhere to reasonable terms of cooperation, so long as others do too. Rawls also simplifies his discussion by imagining that people in the Original Position do not have total freedom to design society as they see fit. Rather, they must choose from a menu of views taken from traditional Western philosophy on what justice involves.

The second part of the solution is the Veil of Ignorance. This involves a further leap of imagination. When we are thinking about justice, Rawls suggests that we imagine that we do not know many of the facts – both about ourselves and the society we currently live in – that typically influence our thinking in biased ways. By intentionally ignoring these facts, Rawls hoped that we would be able to avoid the biases that might otherwise come into a group decision. For instance, if I were helping to design a society, I might be tempted to try to make sure that society is set up to benefit philosophers, or men, or people who love science fiction novels. But if I don’t know any of those facts about myself, I can’t be tempted. The Veil is meant to ensure that people’s concern for their personal benefit could translate into a set of arrangements that were fair for everyone, assuming that they had to stick to those choices once the Veil of Ignorance ‘lifts’, and they are given full information again.

One set of facts hidden from you behind the Veil are what we might call ‘demographic’ facts. You do not know your gender, race, wealth, or facts about your personal strengths and weaknesses, such as their intelligence or physical prowess. Rawls thought these facts are morally arbitrary: individuals do not earn or deserve these features, but simply have them by luck. As such, they do not deserve any benefits or harms that come from them. By removing knowledge of the natural inequalities that give people unfair advantages, it becomes irrational to choose principles that discriminate against any particular group. The Veil also hides facts about society. You do not know anything other than general

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² John Rawls (1999) *A Theory of Justice: Revised Edition*, Cambridge, MA: Harvard University Press

facts about human life, and in particular you do not how their society is organised. Finally, the Veil hides facts about your “view of the good”: your values, preferences about how your own life should go, and specific moral and political beliefs. Rawls was a political liberal. That meant, among other things, that he thought the state should be neutral between different views about value. So, Rawls isn’t afraid to make several significant assumptions about the people involved in making decisions behind the Veil. Some of his assumptions aim to turn the conflicts that arise between self-interested people into a fair decision procedure. As we’ll see, however, others might be more fairly criticised as unreasonably narrowing the possible outcomes that people can reach behind the Veil.

I will outline Rawls’s justification for the Veil of Ignorance, raise some potential challenges for the conclusions he thinks people will reach from behind it, and lastly consider three criticisms of the Veil of Ignorance as a theoretical device. While these criticisms differ in their substance, they are united by a common feature: their scepticism of the way the Veil *abstracts* from real life in order to reach conclusions about justice. I’ll conclude that these criticisms have merit; the Veil of Ignorance, considered by itself, does lead us to ignore the real world too much. However, I’ll suggest that, at least in their strongest versions, these criticisms miss an important benefit of the Veil: quite simply, the fact that our own personal concerns and values can bias our thinking about justice, and that we can make important progress by considering things from different points of view.

Section 2: The principles of justice

Imagine that you find yourself behind the Veil of Ignorance. You might want to make sure that your life will go well. If you had to design a good life for yourself, you’d go for the specific things you care about. But behind the Veil you don’t know those specifics; you only know things that generally make people’s lives go well. Rawls calls these ‘Primary Goods’. They include things like money and other resources; basic rights and freedoms; and finally, the “social bases of self-respect”: the things you need to feel like an equal member of society.

In Rawls’s view, a central challenge behind the Veil is the lack of probabilities available. If you knew that your society was 90% Catholic, you could set things up so that the rewards associated with being Catholic were much higher. That would be personally rational, since you are very likely to end up in the better off group. The Veil prevents this type of reasoning because it hides the information. In the complete absence of probabilities, Rawls thinks you should play it safe and *maximise the minimum* you could get (a policy he calls Maximin). Translated into a society, that means that we should ensure that the worst-off people in society do as well as possible.

Rawls suggests two principles will emerge from discussion behind the Veil:

First Principle: Each person has the same inalienable claim to a fully adequate scheme of *equal basic liberties*, compatible with the same liberties for all;

Second Principle: Social and economic inequalities must be:

- a. Attached to offices and positions open to all under *fair equality of opportunity*;
- b. To the greatest benefit of the least-advantaged members of society (the *difference principle*).

Rawls opts for equality of basic liberties in the First Principle because he thinks this is essential for seeing yourself as a *moral* equal in society. For other Primary Goods, though, equality is less important. By allowing some inequality, we could make life better for everyone. If we attach higher

salaries to certain jobs, they may attract the hardest working people, producing greater economic benefits for everyone. The two parts of Rawls's second principle of justice set limits on when inequalities are allowed. Fair equality of opportunity says that positions which bring unequal payoffs must be open to people of equal talents and equal willingness to use them *on an equal basis*. If two people are just as capable of doing a job, and just as hardworking and willing to apply themselves, neither should have a greater chance of securing the position because they are wealthier, or because of their race or religion. Of course, we might wonder (and Rawls does not give a clear answer about this) when we are supposed to judge whether two people are equally hardworking and talented. The talents you choose to develop, and the amount of effort you put in, are heavily affected by education; so it might seem unfair to judge people if they have had very different educational experiences. Rawls's argument therefore seems to support ensuring broad equality of education, encouraging people to find and develop their talents to the fullest, even if this isn't a conclusion he explicitly draws.

Finally, the Difference Principle sets a further restriction on inequalities. Even if a particular inequality does not affect equality of opportunities, the Difference Principle tells us that it must be beneficial for the very worst off. For instance, it might be that by allowing inequalities, we motivate people to work harder, generating more Primary Goods overall. If these then benefit the worst off in society, making them better off than they would have been in a more equal distribution, the Difference Principle will allow that inequality.

Section 3: Criticisms

As with any influential philosopher, Rawls has been the subject of much criticism and disagreement. In this final section, we consider three objections to Rawls's reasoning around the Veil of Ignorance.

3.1 Ownership and rights

We have already noted that Rawls explicitly makes several assumptions that shape the nature of the discussion behind the Veil of Ignorance, and the outcomes that are likely to come out of it. However, one might challenge Rawls by disputing the fairness or intuitiveness of one or more of his assumptions.

Probably the most famous example of this comes from Robert Nozick.³ Recall that Rawls's principles establish rules to govern the institutions and principles that distribute goods. He thinks that if we work out what those institutions would look like in a perfectly just society, using the Veil of Ignorance, we can then start to move our current society in that direction. Nozick notes that in reality, most goods are already owned. Rawls's view establishes a pattern that looks fair; but Nozick argues that we also need to look at the history of how various goods came to be owned. In some cases, we find that the person who owns those goods worked for them. In other cases, the individual will have inherited those goods, but they will have come from an ancestor who worked for them. In both cases, we cannot simply redistribute these goods to fit our pattern, because people have rights.

In Nozick's view, once you have ownership *rights*, you can do pretty much what you want with it, so long as you do not violate anyone else's rights. The fact that taking money you earned would benefit someone else cannot be the basis for government forcibly taking your money. One possible basis for this is the idea of 'self-ownership'. Nozick thinks we will all agree that it would be wrong to force you to work if you didn't want to. The reason for this is that your body is owned by you and nobody else. That principle extends, Nozick says, to what you *do* with your body: your labour. If you make

³ Robert Nozick (1974) *Anarchy, State and Utopia* Blackwell Publishing (Oxford) pp.149-232

something, or work for money, that thing is yours and nobody else's. Just as the state has no right to force you to do things with your body that you don't want to do, it also has no right to force you to do things with your other property, like giving it away to the less fortunate. That might be a nice thing to do, but it isn't something others can force you to do.

One problem with this argument, to which Rawls might appeal, is that my *ability* to work (and therefore gain property) depends on many other things: my education, my health that was guaranteed by a public health system, a stable society that affords me opportunities for employment, or for employing others. So it's not quite true that everything I produce comes from me alone.

3.2 Identity and 'Neutrality'

A second criticism also concerns the fact that, behind the Veil, various facts are hidden from you. Rather than worrying about the substantive conclusions Rawls reaches, as Nozick does, this criticism worries about the very coherence of reasoned discussion behind the Veil of Ignorance.

Rawls's Veil of Ignorance is an example of a theory of justice that has *universal* aspirations. Since one of the facts that is hidden by the veil is the nature of the society you live in, we may assume that the resulting principles are supposed to be applicable in all societies, though this is a view that Rawls attempted to reject in later work. In addition, people behind the Veil are supposed to come up with a view of how society should be structured while knowing almost nothing about themselves, and their lives.

One broad group who criticise these ideas are the so-called 'communitarian' philosophers, which includes Charles Taylor,⁴ Michael Walzer⁵ and Alasdair MacIntyre.⁶ While their views differ, they tend to agree that what justice requires cannot be decided *abstractly*, but must instead be informed by local considerations and culture. Communitarians also suggest that Rawls's conception of the individuals behind the Veil of Ignorance is problematic because they have so few defining features. Even if Rawls is right that people behind the Veil would agree on his two principles, communitarians think that the hypothetical agreement ignores much that is important.

Individuals behind the Veil are assumed to be largely self-interested, and to have a strong interest in retaining the ability to abandon their current social roles and pursuits and take up new ones. According to the communitarians, however, we are born with existing social connections to particular people, cultures and social roles. Whereas Rawls emphasises our active engagement in shaping our own lives, communitarians want to remind us that our lives are unavoidably shaped by existing attachments that we do not choose. For instance, if you are born into a particular religious community, you can of course still renounce that religion. But your life will still be shaped by the fact that you are a member, or former member, of that community. It is worth noting, though, that this accusation is somewhat unfair on Rawls. While it is true that individuals behind the Veil do not know about their defining features, Rawls does not think that real people are like this. His interest is in trying to formulate a *neutral* way to decide between competing groups.

Certainly, it is a plausible worry that what justice requires may depend in part on the values of the society in question. As a liberal, Rawls is particularly worried about protecting individuals whose preferred lives go against the grain of the society in which they find themselves. Communitarians will object that the Veil of Ignorance goes beyond this protection, and rules out the possibility of different ideas of justice, informed by local values. Perhaps we should acknowledge that people behind the Veil

⁴ Charles Taylor (1989) *Sources of the Self: The Making of the Modern Identity* Cambridge: CUP

⁵ Michael Walzer (1983) *Spheres of Justice* Oxford: Blackwell

⁶ Alasdair MacIntyre (1988) *Whose Justice? Which Rationality?* Notre Dame: University of Notre Dame Press.

of Ignorance would recognise the possibility that their society will turn out to be strongly attached to a particular set of values. A rational person behind the Veil might want to try to find a way to give a special place to such values, while protecting dissenters.

3.3 Ideal justice?

Our final challenge also concerns the real-world applicability of Rawls's principles. In brief, the claim from scholars of race and of gender is that Rawls's abstract Veil of Ignorance ends up ignoring much that is relevant to justice.

The central criticism we consider here concerns the motivation of Rawls's overall project. Rawls's aim is to outline a theory of 'ideal' justice, or what a perfectly just society would look like. This ignores, purposefully, the many injustices that have happened and continue to happen, including the fact that most societies continue to exhibit racism, sexism and other forms of discrimination.⁷ As critics argue, we then get at best an incomplete theory, which does not tell us how to *fix* existing injustice or, as it is sometimes called, 'non-ideal' justice (an issue that Rawls himself describes as a "pressing and urgent matter"). For instance, people disagree about the idea of 'reparations' for racial slavery that shaped the United States. Yet because this is an issue of non-ideal justice (how should we respond to the fact that the United States and many of its citizens failed to comply with the basic requirements of justice?), the idealisation of the Veil of Ignorance seems to give us no way to determine this important question.

This maps onto a more general question in political philosophy: if a theory of justice does not tell us how to act in our *actual* societies, does it have any value? While some⁸ argue that Rawls's work can be used to draw concrete conclusions about issues such as racial profiling and affirmative action, critics who reject this view may also argue that a theory of justice that is concerned only with the ideal ignores the most pressing issues of the day. In Rawls's case, we may wonder whether we can accommodate such concerns by making small changes to his assumptions, or whether more radical changes (or even abandonment of the theory) are required.

Conclusion

The three criticisms outlined above all take issue, in different ways, with Rawls's *idealisation* away from the real world. Much of the value of Rawls's work will depend on whether it is useful to construct ideal views of justice before, or at the same time as, thinking about the messier real world. Even a pessimistic conclusion on this issue, though, should recognise the following insight from Rawls: that what seems just or fair or right to any person is influenced not just by our background but by our own selfish interests. Even if the details face problems, Rawls's Veil of Ignorance shows us that it can be valuable to imagine things from opposing points of view. While the criticisms from communitarians, scholars of race, and feminist scholars demonstrate the importance of considering the concrete features of our societies and lives, the basic idea of abstracting away from potential biases is an important one.

Nonetheless, this conclusion is consistent with recognising two mistakes in making use of the Veil of Ignorance. Firstly, recognising the importance of abstraction should not come at the cost of considering the real, concrete impact of policies we adopt, or of the social and historical context they are part of. Much political philosophy, at least in the USA and UK, can be criticised for neglecting these latter issues. Secondly, acknowledging the importance of the Veil of Ignorance does not mean that Rawls, and later philosophers, are right to have established an *order of priority*, where we first abstractly

⁷ Carol Pateman and Charles Mills (2007) *Contract and Domination* Cambridge: Polity Press

⁸ Tommie Shelby (2004) 'Race and Social Justice: Rawlsian Considerations' *Fordham Law Review* 72: pp.1697-1714.

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establish a view of ideal justice, and only then move on to non-ideal justice. It may be more productive to consider issues of justice from both the kind of abstracted view represented by the Veil of Ignorance, and from the more concrete view advocated by its critics.

UNIT FIVE: RULING THE STATE: AUTHORITY, POWER, AND EQUALITY

Political Authority¹ describes any of the moral principles legitimizing differences between individuals' rights and duties by virtue of their relationship with the state. Political authority grants members of a government the right to rule over citizens using coercion if necessary (i.e., political legitimacy), while imposing an obligation for the citizens to obey government orders (i.e., political obligation).

A central question in political philosophy is "To what extent is political authority legitimate?" Views range from political authority having no legitimacy (philosophical anarchism) to political authority being virtually unlimited in scope (totalitarianism).

Political (or Social) Equality² is a state of affairs in which all people within a specific society or isolated group have the same status in certain respects, including civil rights, freedom of speech, property rights and equal access to certain social goods and services. However, it also includes concepts of health equity, economic equality and other social securities. It also includes equal opportunities and obligations, and so involves the whole of society. Social equality requires the absence of legally enforced social class or caste boundaries and the absence of discrimination motivated by an inalienable part of a person's identity. For example, sex, gender, race, age, sexual orientation, origin, caste or class, income or property, language, religion, convictions, opinions, health or disability must not result in unequal treatment under the law and should not reduce opportunities unjustifiably.

"Equal opportunities" is interpreted as being judged by ability, which is compatible with a free-market economy. Relevant problems are horizontal inequality – the inequality of two persons of *same* origin and ability and differing opportunities given to individuals – such as in education or by inherited capital.

Conceivements of social equality may vary per philosophy and individual and other than egalitarianism it does not necessarily require all social inequalities to be eliminated by artificial means but instead often recognizes and respects natural differences between people.

Ontological

The standard of equality that states everyone is created equal at birth is called **ontological equality**. This type of equality can be seen in many different places like the Declaration of Independence. This early document, which states many of the values of the United States of America, has this idea of equality embedded in it. It clearly states that "all men are created equal, that they are endowed by their Creator with certain unalienable Rights". The statement reflects the philosophy of John Locke and his idea that

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Political authority. (2017, July 13). In Wikipedia, The Free Encyclopedia. Retrieved 18:15, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Political_authority&oldid=790460897

² This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Social equality. (2017, August 10). In Wikipedia, The Free Encyclopedia. Retrieved 18:16, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Social_equality&oldid=794813794

we are all equal in certain natural rights. Although this standard of equality is seen in documents as important as the Declaration of Independence, it is "one not often invoked in policy debates these days". However this notion of equality is often used to justify inequalities such as material inequality. Dalton Conley claims that ontological equality is used to justify material inequality by putting a spotlight on the fact, legitimated by theology, that "the distribution of power and resources here on earth does not matter, because all of us are equally children of God and will have to face our maker upon dying". Dalton Conley, the author of *You May Ask Yourself*, claims that ontological equality can also be used to put forth the notion that poverty is virtue. Luciano Floridi, author of a book about information, wrote about what he calls the ontological equality principle. His work on information ethics raises the importance of equality when presenting information. Here is a short sample of his work:

Information ethics is impartial and universal because it brings to ultimate completion the process of enlargement of the concept of what may count as a centre of a (no matter how minimal) moral claim, which now includes every instance of being understood informationally, no matter whether physically implemented or not. In this respect information ethics holds that every entity as an expression of being, has a dignity constituted by its mode of existence and essence (the collection of all the elementary properties that constitute it for what it is), which deserve to be respected (at least in a minimal and overridable sense), and hence place moral claims on the interacting agent and ought to contribute to the constraint and guidance of his ethical decisions and behaviour.

Floridi goes on to claim that this "ontological equality principle means that any form of reality (any instance of information/being), simply for the fact of being what it is, enjoys a minimal, initial, overridable, equal right to exist and develop in a way which is appropriate to its nature." Values in his claims correlate to those shown in the sociological textbook *You May Ask Yourself* by Dalton Conley. The notion of "ontological equality" describes equality by saying everything is equal by nature. Everyone is created equal at birth. Everything has equal right to exist and develop by its nature.

Opportunity

Another standard of equality is equality of opportunity, "the idea that everyone has an equal chance to achieve wealth, social prestige, and power because the rules of the game, so to speak, are the same for everyone". This concept can be applied to society by saying that no one has a head start. This means that, for any social equality issue dealing with wealth, social prestige, power, or any of that sort, the equality of opportunity standard can defend the idea that everyone had the same start. This views society almost as a game and any of the differences in equality are due to luck and playing the "game" to one's best ability. Conley gives an example of this standard of equality by using a game of Monopoly to describe society. He claims that "Monopoly follows the rules of equality of opportunity" by explaining that everyone had an equal chance when starting the game and any differences were a result of the luck of the dice roll and the skill of the player to make choices to benefit their wealth. Comparing this example to society, the standard of equality of opportunity eliminates inequality because the rules of the games in society are still fair and the same for all; therefore making any existing inequalities in society fair. Lesley A. Jacobs, the author of *Pursuing Equal Opportunities: The Theory and Practice of Egalitarian Justice*, talks about equality of opportunity and its importance relating to egalitarian justice. Jacobs states that

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at the core of equality of opportunity... is the concept that in competitive procedures designed for the allocation of scarce resources and the distribution of the benefits and burdens of social life, those procedures should be governed by criteria that are relevant to the particular goods at stake in the competition and not by irrelevant considerations such as race, religion, class, gender, disability, sexual orientation, ethnicity, or other factors that may hinder some of the competitors' opportunities at success. (Jacobs, 10).

This concept points out factors like race, gender, class etc. that should not be considered when talking about equality through this notion. Conley also mentions that this standard of equality is at the heart of a bourgeois society, such as a modern capitalist society, or "a society of commerce in which the maximization of profit is the primary business incentive". It was the equal opportunity ideology that civil rights activists adopted in the era of the Civil Rights Movement in the 1960s. This ideology was used by them to argue that Jim Crow laws were incompatible with the standard of equality of opportunity.

Condition

Another notion of equality introduced by Conley is equality of condition. Through this framework is the idea that everyone should have an equal starting point. Conley goes back to his example of a game of Monopoly to explain this standard. If the game of four started off with two players both having an advantage of \$5,000 dollars to start off with and both already owning hotels and other property while the other two players both did not own any property and both started off with a \$5,000 dollar deficit, then from a perspective of the standard of equality of condition, one can argue that the rules of the game "need to be altered in order to compensate for inequalities in the relative starting positions". From this we form policies in order to even equality which in result bring an efficient way to create fairer competition in society. Here is where social engineering comes into play where we change society in order to give an equality of condition to everyone based on race, gender, class, religion etc. when it is made justifiable that the proponents of the society makes it unfair for them.

Sharon E. Kahn, author of *Academic Freedom and the Inclusive University*, talks about equality of condition in their work as well and how it correlates to freedom of individuals. They claim that in order to have individual freedom there needs to be equality of condition "which requires much more than the elimination of legal barriers: it requires the creation of a level playing field that eliminates structural barriers to opportunity". Her work talks about the academic structure and its problem with equalities and claims that to "ensure equity...we need to recognize that the university structure and its organizational culture have traditionally privileged some and marginalized other; we need to go beyond theoretical concepts of equality by eliminating systemic barriers that hinder the equal participation of members of all groups; we need to create an equality of condition, not merely an equality of opportunity". "Notions of equity, diversity, and inclusiveness begin with a set of premises about individualism, freedom and rights that take as given the existence of deeply rooted inequalities in social structure," therefore in order to have a culture of the inclusive university, it would have to "be based on values of equity; that is, equality of condition" eliminating all systemic barriers that go against equality.

Outcome

A fourth standard of equality is equality of outcome, which is "a position that argues each player must end up with the same amount regardless of the fairness". This ideology is predominately a Marxist philosophy that is concerned with equal distribution of power and resources rather than the rules of society. In this standard of equality the idea is that "everyone contributes to society and to the economy according to what they do best.". Under this notion of equality, Conley states that "nobody will earn more power, prestige, and wealth by working harder".

When defining equality of outcome in education, "the goals should not be the liberal one of equality of access but equality of outcome for the median number of each identifiable non-educationally defined group, i.e. the average women, negro, or proletarian or rural dweller should have the same level of educational attainment as the average male, white, suburbanite". The outcome and the benefits from equality from education from this notion of equality promotes that all should have the same outcomes and benefits regardless of race, gender, religion etc. The equality of outcome in Hewitt's point of view is supposed to result in "a comparable range of achievements between a specific disadvantaged group – such as an ethnic minority, women, lone parents and the disabled – and society as a whole".

25 Anarchy, State, and Utopia (Robert Nozick)

Robert Nozick¹ (/ˈnoʊzɪk/; November 16, 1938 – January 23, 2002) was an American philosopher. He held the Joseph Pellegrino University Professorship at Harvard University, and was president of the American Philosophical Association. He is best known for his books *Philosophical Explanations* (1981), which included his counterfactual theory of knowledge, and *Anarchy, State, and Utopia* (1974), a libertarian answer to John Rawls' *A Theory of Justice* (1971). They were colleagues at Harvard, and Nozick took up the naturally opposing side Rawls: a state that infringes on too many liberties is unjustified, so getting as close to anarchy (in the sense of “no government”) is the only justifiable state.

For *Anarchy, State, and Utopia* (1974) Nozick received a National Book Award in category Philosophy and Religion. There, Nozick argues that only a minimal state "limited to the narrow functions of protection against force, theft, fraud, enforcement of contracts, and so on" could be justified without violating people's rights. For Nozick, a distribution of goods is just if brought about by free exchange among consenting adults from a *just* starting position, even if large inequalities subsequently emerge from the process. Nozick appealed to the Kantian idea that people should be treated as ends (what he termed 'separateness of persons'), not merely as a means to some other end.

Nozick challenged the partial conclusion of John Rawls' Second Principle of Justice of his *A Theory of Justice*, that "social and economic inequalities are to be arranged so that they are to be of greatest benefit to the least-advantaged members of society." *Anarchy, State, and Utopia* claims a heritage from John Locke's *Second Treatise on Government* and seeks to ground itself upon a natural law doctrine, but reaches some importantly different conclusions from Locke himself in several ways.

Most controversially, Nozick argued that a consistent upholding of the non-aggression principle would allow and regard as valid consensual or non-coercive enslavement contracts between adults. He rejected the notion of inalienable rights advanced by Locke and most contemporary capitalist-oriented libertarian academics, writing in *Anarchy, State, and Utopia* that the typical notion of a "free system" would allow adults to voluntarily enter into non-coercive slave contracts.

*Anarchy, State, and Utopia*²

Anarchy, State, and Utopia is a 1974 book by the American political philosopher Robert Nozick. It won the 1975 U.S. National Book Award in category Philosophy and Religion, has been translated into 11 languages, and was named one of the "100 most influential books since the war" (1945–1995) by the U.K. *Times Literary Supplement*.

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In opposition to *A Theory of Justice* (1971) by John Rawls, and in debate with Michael Walzer, Nozick argues in favor of a minimal state, "limited to the narrow functions of protection against force, theft, fraud, enforcement of contracts, and so on." When a state takes on more responsibilities than these, Nozick argues, rights will be violated. To support the idea of the minimal state, Nozick presents an argument that illustrates how the minimalist state arises naturally from anarchy and how any expansion of state power past this minimalist threshold is unjustified.

Summary

Nozick's entitlement theory, which sees humans as ends in themselves and justifies redistribution of goods only on condition of consent, is a key aspect of *Anarchy, State, and Utopia*. It is influenced by John Locke, Immanuel Kant, and Friedrich Hayek.

The book also contains a vigorous defense of minarchist libertarianism against more extreme views, such as anarcho-capitalism (in which there is *no* state and individuals must contract with private companies for *all* social services). Nozick argues that anarcho-capitalism would inevitably transform into a minarchist state, even without violating any of its own non-aggression principles, through the eventual emergence of a single locally dominant private defense and judicial agency that it is in everyone's interests to align with, because other agencies are unable to effectively compete against the advantages of the agency with majority coverage. Therefore, he felt that, even to the extent that the anarcho-capitalist theory is correct, it results in a single, private, protective agency which is itself a de facto "state". Thus anarcho-capitalism may only exist for a limited period before a minimalist state emerges.

Philosophical activity

The preface of *Anarchy, State, and Utopia* (ASU) contains a passage about "the usual manner of presenting philosophical work"—i.e., its presentation as though it were the absolutely final word on its subject. Nozick believes that philosophers are really more modest than that and aware of their works' weaknesses. Yet a form of philosophical activity persists which "feels like pushing and shoving things to fit into some fixed perimeter of specified shape." The bulges are masked or the cause of the bulge is thrown *far* away so that no one will notice. Then "*Quickly*, you find an angle from which everything appears to fit perfectly and take a snapshot, at a fast shutter speed before something else bulges out too noticeably." After a trip to the darkroom for touching up, "[a]ll that remains is to publish the photograph as a representation of exactly how things are, and to note how nothing fits properly into any other shape." So how does Nozick's work differ from this form of activity? He believed that what he said was correct, but he doesn't mask the bulges: "the doubts and worries and uncertainties as well as the beliefs, convictions, and arguments."

Why state-of-nature theory?

In this chapter Nozick tries to explain why investigating a Lockean state of nature is useful to understand if there should be a state in the first place. If one can show that an anarchic society is worse than one that has a state we should choose it whenever possible. To convincingly compare the two, he argues, one should focus not on an extremely pessimistic nor on an extremely optimistic view of that society. Instead, one should:

[...] focus upon a nonstate situation in which people generally satisfy moral constraints and generally act as they ought [...] this state-of-nature situation is the best anarchic situation one reasonably could hope for. Hence investigating its nature and defects is of crucial importance to deciding whether there should be a state rather than anarchy.

—Robert Nozick, *Anarchy, State and Utopia*, Reprint Edition 2013, p.5

Nozick's plan is to first describe the morally permissible and impermissible actions in such a non-political society and how violations of those constraints by some individuals would lead to the emergence of a state. If that would happen, it would explain the appearance even if no state actually developed in that particular way.

He gestures towards perhaps the biggest bulge when he notes (in Chapter 1, "Why State-of-Nature Theory?") the shallowness of his "invisible hand" explanation of the minimal state, deriving it from a Lockean state of nature, in which there are individual rights but no state to enforce and adjudicate them. Although this counts for him as a "fundamental explanation" of the political realm because the political is explained in terms of the nonpolitical, it is shallow relative to his later "genealogical" ambition (in *The Nature of Rationality* and especially in *Invariances*) to explain both the political and the moral by reference to beneficial cooperative practices that can be traced back to our hunter-gatherer ancestors and beyond. The genealogy will give Nozick an explanation of what is only assumed in ASU: the fundamental status of individual rights. Creativity was not a factor in his interpretation.

The state of nature

Nozick starts this chapter by summarizing some of the features of the Lockean state of nature. An important one is that every individual has a right to exact compensation by himself whenever another individual violates his rights. Punishing the offender is also acceptable, but only inasmuch as he (or others) will be prevented from doing that again. As Locke himself acknowledges, this raises several problems, and Nozick is going to try to see to what extent can they be solved by voluntary arrangements. A rational response to the "troubles" of a Lockean state of nature is the establishment of mutual-protection associations, in which all will answer the call of any member. It is inconvenient that everyone is always on call, and that the associates can be called out by members who may be "cantankerous or paranoid". Another important inconvenience takes place when two members of the same association have a dispute. Although there are simple rules that could solve this problem (for instance, a policy of non intervention) most people will prefer associations that try to build systems to decide whose claims are correct.

In any case, the problem of everybody being on call dictates that some entrepreneurs will go into the business of selling protective services (division of labor). This will lead ("through market pressures, economies of scale, and rational self interest") to either people joining the strongest association in a given area or that some associations will have similar power and hence will avoid the costs of fighting by agreeing to a third party that would act as a judge or court to solve the disputes. But for all practical purposes, this second case is equivalent to having just one protective association. And this is something "very much resembling a minimal state". Nozick judges that Locke was wrong to imagine a social contract as necessary to establish civil society and money. He prefers invisible-hand explanations, that is to say, that voluntary agreements between individuals create far reaching patterns that *look like they*

were designed when in fact nobody did. This explanations are useful in the sense that they "minimize the use of notions constituting the phenomena to be explained". So far he has shown that such "invisible hand" would lead to a dominant association, but individuals may still justly enforce their own rights. But this protective agency isn't yet a state. At the end of the chapter Nozick points out some of the problems of defining what a state is, but he says:

We may proceed, for our purposes, by saying that a necessary condition for the existence of a state is that it (some person or organization) announce that, to the best of its ability [...] it will punish everyone whom it discovers to have used force without its express permission.

—Robert Nozick, *Anarchy, State and Utopia*, Reprint Edition, 2013, p. 24

The protective agencies so far don't make any such announcement. Furthermore, it doesn't offer the same degree of protection to all its clients (who may purchase different degrees of coverage) and the individuals who don't purchase the service (the "independents") don't get any protection at all (spillover effects aside). This goes against our experience with states, where even tourists typically receive protection. Therefore, the dominant protective agency lacks the monopoly on the use of force and fails to protect all people inside its territory.

Moral constraints and the state

Nozick arrives at the night-watchman state of classical liberalism theory by showing that there are non-redistributive reasons for the apparently redistributive procedure of making its clients pay for the protection of others. He defines what he calls an ultraminimal state, which would not have this seemingly redistributive feature but would be the only one allowed to enforce rights. Proponents of this ultraminimal state don't defend it on the grounds of trying to minimize the total of (weighted) violations of rights (what he calls utilitarianism of rights). That idea would mean, for example, that someone could punish another person he or she knows to be innocent in order to calm down a mob that would otherwise violate even more rights. This is not the philosophy behind the ultraminimal state. Instead, its proponents hold its members' rights are a side-constraint on what can be done to them. This side-constraint view reflects the underlying Kantian principle that individuals are ends and not merely means, so the rights of *one* individual cannot be violated to avoid violations of the rights of *other* people. Which principle should we choose, then? Nozick won't try to prove which one is better. Instead, he gives some reasons to prefer the kantian view and later points to problems with classic utilitarianism.

The first reason he gives in favor of the kantian principle is that the analogy between the individual case (in which we choose to sacrifice now for a greater benefit later) and the social case (in which we sacrifice the interests of one individual for the greater social good) is incorrect:

There are only individual people, different individual people with their own individual lives. Using one of these people for the benefit of others, uses him and benefits the others. Nothing more. [...] Talk of an overall social good covers this up. (Intentionally?). To use a person in this way does not sufficiently respect and take account of the fact that he is a separate person, that his is the only life he has. He does not get some overbalancing good from his sacrifice [...].

—Robert Nozick, *Anarchy, State and Utopia*, Reprint Edition, 2013, p. 33

A second reason focuses on the non-aggression principle. Are we prepared to dismiss this principle? That is, can we accept that some individuals may harm some innocent in certain cases? (This non-aggression principle does not include, of course, self-defense and perhaps some other special cases he points out).

He then goes on to expose some problems with utilitarianism by discussing whether animals should be taken into account in the utilitarian calculation of happiness, if that depends on the kind of animal, if killing them painlessly would be acceptable, and so on. He believes that utilitarianism is not appropriate even with animals.

But Nozick's most famous argument for the side-constraint view against classical utilitarianism and the idea that only felt experience matters is his Experience Machine thought experiment. It induces whatever illusory experience one might wish, but it prevents the subject from doing anything or making contact with anything. There is only pre-programmed neural stimulation sufficient for the illusion. Nozick pumps the intuition that each of us has a reason to avoid plugging into the Experience Machine forever. This is not to say that "plugging in" might not be the best all-things-considered choice for some who are terminally ill and in great pain. The point of the thought experiment is to articulate a weighty reason not to plug in, a reason that should not be there if all that matters is felt experience.

Prohibition, compensation, and risk

The procedure that leads to a night-watchman state involves compensation to non-members who are prevented from enforcing their rights, an enforcement mechanism that it deems risky by comparison with its own. Compensation addresses any disadvantages non-members suffer as a result of being unable to enforce their rights. Assuming that non-members take reasonable precautions and adjusting activities to the association's prohibition of their enforcing their own rights, the association is required to raise the non-member above his actual position by an amount equal to the difference between his position on an indifference curve he would occupy were it not for the prohibition, and his original position.

The purpose of this comparatively dense chapter is to deduce what Nozick calls the Compensation Principle. That idea is going to be key for the next chapter, where he shows how (without any violation of rights) an ultraminimal state (one that has a monopoly of enforcement of rights) can become a *minimal* state (which also provides protection to all individuals). Since this would involve some people paying for the protection of others, or some people being forced to pay for protection, the main element of the discussion is whether these kinds of actions can be justified from a natural rights perspective. Hence the development of a theory of compensation in this chapter.

He starts by asking broadly what if someone "crosses a boundary" (for instance, physical harm). If this is done with the consent of the individual concerned, no problem arises. Unlike Locke, Nozick doesn't have a "paternalistic" view of the matter. He believes anyone can do *anything* to himself, or allow others to do the same things to him.

But what if B crosses A's boundaries without consent? Is that okay if A is compensated?

What Nozick understands by compensation is anything that makes A indifferent (that is, A has to be just as good in his own judgement *before* the transgression and *after* the compensation) provided that A has

taken reasonable precautions to avoid the situation. He argues that compensation isn't enough, because *some* people will violate these boundaries, for example, without revealing his identity. Therefore, some extra cost has to be imposed on those who violate someone else's rights. (For the sake of simplicity this discussion on deterrence is summarized in another section of this article).

After discussing the issue of punishment and concluding that not all violations of rights will be deterred under a retributive theory of justice (which he favors) Nozicks returns to compensation. Again, why don't we allow anyone to do anything provided he or she gives full compensation afterwards? There are several problems with that view.

Firstly, if some person gets a big gain by violating another's rights and he then compensates the victim up to the point where he or she is indifferent, the infractor is getting all the benefits that this provides. But one could argue that it would be fair for the felon to give some compensation beyond that, just like in the marketplace, where the buyer doesn't necessarily just pay up to the point where the seller is indifferent from selling or not selling. There is usually room for negotiation, which raises the question of fairness. Every attempt to make a theory of a fair price in the marketplace has failed, and Nozick prefers not to try to solve the issue. Instead, he says that, whenever possible, those negotiations should take place, so that the compensation is decided by the people involved. But when one cannot negotiate, it is unclear whether *all* acts should be accepted if compensation is paid.

Secondly, allowing anything if compensation is paid makes *all* people fearful. Imagine that someone could break your arm at any point and then pay you a compensation. The other people would fear the same happening to them. This raises important problems:

- Making the assaulters pay not only for the damage but also for the fear that the assaulted had before that won't do, as the assaulter is not the only responsible of that fear.
- If that was the way to compensate, non assaulted people would be left uncompensated for the fear they have.
- One cannot compensate anyone for fear after the fact because we remember the fear we had as less important than it actually was. Because of that, what should be calculated instead is what Nozick calls "Market Compensation", which is the compensation that would be agreed upon if the negotiations took place before the fact. But this is impossible, according to Nozick.

The conclusion of these difficulties, particularly the last one, is that anything that produces *general* fear may be prohibited. Another reason to prohibit is that it would imply using people as a means, which violates the kantian principle that he defended earlier.

But if so, what about prohibiting all boundary crossing *that isn't consented in advance*? That would solve the fear problem, but it would be way too restrictive, since people may cross some boundaries by accident, unintentional acts, etc.) and the costs of getting that consent may be too high (for instance if the known victim is on a trip in the jungle). What then? "The most efficient policy forgoes the fewest net beneficial acts; it allows anyone to perform an unfeared action without prior agreement, provided the transaction costs of reaching a prior agreement are greater, even by a bit, than the costs of the posterior compensation process."

Note that a particular action may not cause fear if it has a low probability of causing harm. But when all the risky activities are added up, the probability of being harmed may be high. This poses the problem that prohibiting all such activities (which may be very varied) is too restrictive. The obvious response,

that is, establishing a threshold value V such that there is a violation of rights if $p \cdot H > V$ (where p is the probability of harming and H is the amount of harm that could be done) won't fit a natural-rights position. In his own words:

This construal of the problem cannot be utilized by a tradition which holds that stealing a penny or a pin or anything from someone violates his rights. That tradition does not select a threshold measure of harm as a lower limit, in the case of harms certain to occur

—Robert Nozick, *Anarchy, State and Utopia*, Reprint Edition, 2013, p.75

Granted, some insurance solutions will work in these cases and he discusses some. But what do you do with people who don't have the means to buy insurance or compensate other people for the risks of his actions? Do you forbid them to do it?

Since an enormous number of actions do increase risk to others, a society which prohibited such uncovered actions would ill fit a picture of a free society as one embodying a presumption in favor of liberty, under which people permissibly could perform actions so long as they didn't harm others in specified ways. [...] to prohibit risky acts (because they are financially uncovered or because they are too risky) limits individual's freedom to act, even though the actions actually might involve no cost at all to anyone else.

—Robert Nozick, *Anarchy, State and Utopia*, Reprint Edition, 2013, p. 78

(This is going to have important consequences in the next chapter).

So Nozick's conclusion is to prohibit specially dangerous actions that are generally done *and* compensating the specially disadvantaged individual from the prohibition. This is what he calls the Principle of Compensation. For example, it is allowed to forbid epileptics from driving, but only if they are compensated exactly for the costs that the disadvantaged has to assume (chauffeurs, taxis). This would only take place if the benefit from the increased security outweighs these costs. But this is not a negotiation. The analogy he gives is blackmail: it isn't right to pay a person or group to prevent him from doing something that otherwise would give him no benefit whatsoever. Nozick considers such transactions as "unproductive activities". Similarly, (it should be deduced) it is not right for the epileptic to negotiate a payment for not doing something risky to other people.

However, Nozick does point to some problems with this principle. Firstly, he says that the action has to be "generally done". The intention behind that qualification is that eccentric and dangerous activities shouldn't be compensated. His extreme example is someone who has fun playing Russian roulette with the head of others without asking them. Such action must be prohibited, with no qualifications. But one can define anything as a "generally done" action. The Russian roulette could be considered "having fun" and hence be compensated. Secondly, if the special and dangerous action is the only way a person can do something important to him (for instance, if it is the *only* way one can have fun or support himself)

then perhaps it should be compensated. Thirdly, more generally, he recognizes he doesn't have a theory of disadvantage, so it is unclear what counts as a "special disadvantage".

This has to be further developed, because in the state of nature there is no authority to decide how to define these terms (see the discussion of a similar issue in p. 89).

[...] nor need we state the principle exactly. We need only claim the correctness of some principles, such as the principle of compensation, requiring those imposing a prohibition on risky activities prohibited to them. I am not completely comfortable presenting and later using a principle whose details have not been worked out fully [...]. I could claim that it is all right as a beginning to leave a principle in a somewhat fuzzy state; the primary question is whether something like it will do.

—Robert Nozick, *Anarchy, State and Utopia*, Reprint Edition, 2013, p. 87

The state

Non-member independents might group together and agree to a procedure for private enforcement of rights, so as to reduce the total danger to a point below the threshold at which the association would be justified in prohibiting it. This procedure fails because of the rationality of being a free rider on such grouping, taking advantage of everyone else's restraint and going ahead with one's own risky activities. In a famous discussion he rejects H. L. A. Hart's "principle of fairness" for dealing with free riders, which would morally bind them to cooperative practices from which they benefit. You may not charge and collect for benefits you bestow without prior agreement.

"As the most powerful applier of principles which it grants everyone the right to apply *correctly*," Nozick concludes, the dominant protection agency "enforces its will, which, from the inside, it thinks is correct." Its strength makes it the only enforcer and judge of its clients. "Claiming only the universal right to act correctly," it acts correctly according to its own lights, which happen to be the only lights with the strength so to act. It provides independents with protective services against its clients. It provides this compensation only to those who would be disadvantaged by purchasing protection for themselves, and only against its own paying clients on whom the independents are forbidden from self-help enforcement. This is a disincentive to free riding. "The more free riders there are, the more desirable it is to be a client always protected by the agency." The equilibrium is moved towards almost universal participation in the agency's protective scheme.

Further considerations on the argument for the state

A discussion of pre-emptive attack leads Nozick to a principle that excludes prohibiting actions not wrong in themselves, even if those actions make more likely the commission of wrongs later on. This provides him with a significant difference between a protection agency's prohibitions against procedures it deems unreliable or unfair, and other prohibitions that might seem to go too far, such as forbidding others to join another protective agency. Nozick's principle does not disallow others from doing so.

Distributive justice

Nozick's discussion of Rawls's theory of justice raised a prominent dialogue between libertarianism and liberalism. He sketches an entitlement theory, which states, "From each as they choose, to each as they are chosen". It comprises a theory of (1) justice in acquisition; (2) justice in rectification if (1) is violated (rectification which might require apparently redistributive measures); (3) justice in holdings, and (4) justice in transfer. Assuming justice in acquisition, entitlement to holdings is a function of repeated applications of (3) and (4). Nozick's entitlement theory is a non-patterned historical principle. Almost all other principles of distributive justice (egalitarianism, utilitarianism) are patterned principles of justice. Such principles follow the form, "to each according to..."

Nozick's famous Wilt Chamberlain argument is an attempt to show that patterned principles of just distribution are incompatible with liberty. He asks us to assume that the original distribution in society, D1, is ordered by our choice of patterned principle, for instance Rawls's Difference Principle. Wilt Chamberlain is an extremely popular basketball player in this society, and Nozick further assumes 1 million people are willing to freely give Chamberlain 25 cents each to watch him play basketball over the course of a season (we assume no other transactions occur). Chamberlain now has \$250,000, a much larger sum than any of the other people in the society. This new distribution in society, call it D2, obviously is no longer ordered by our favored pattern that ordered D1. However Nozick argues that D2 is just. For if each agent freely exchanges some of his D1 share with the basketball player and D1 was a just distribution (we know D1 was just, because it was ordered according to your favorite patterned principle of distribution), how can D2 fail to be a just distribution? Thus Nozick argues that what the Wilt Chamberlain example shows is that no patterned principle of just distribution will be compatible with liberty. In order to preserve the pattern, which arranged D1, the state will have to continually interfere with people's ability to freely exchange their D1 shares, for any exchange of D1 shares explicitly involves violating the pattern that originally ordered it.

Nozick analogizes taxation with forced labor, asking the reader to imagine a man who works longer to gain income to buy a movie ticket and a man who spends his extra time on leisure (for instance, watching the sunset). What, Nozick asks, is the difference between seizing the second man's leisure (which would be forced labor) and seizing the first man's goods? "Perhaps there is no difference in principle," Nozick concludes, and notes that the argument could be extended to taxation on other sources besides labor. "End-state and most patterned principles of distributive justice institute (partial) ownership by others of people and their actions and labor. These principles involve a shift from the classical liberals' notion of self ownership to a notion of (partial) property rights in *other* people."

Nozick then briefly considers Locke's theory of acquisition. After considering some preliminary objections, he "adds an additional bit of complexity" to the structure of the entitlement theory by refining Locke's proviso that "enough and as good" must be left in common for others by one's taking property in an unowned object. Nozick favors a "Lockean" proviso that forbids appropriation when the position of others is thereby worsened. For instance, appropriating the only water hole in a desert and charging monopoly prices would not be legitimate. But in line with his endorsement of the historical principle, this argument does not apply to the medical researcher who discovers a cure for a disease and sells for whatever price he will. Nor does Nozick provide any means or theory whereby abuses of appropriation—acquisition of property when there is *not* enough and as good in common for others—should be corrected.

The Difference Principle

Nozick attacks John Rawls's *Difference Principle* on the ground that the well-off could threaten a lack of social cooperation to the worse-off, just as Rawls implies that the worse-off will be assisted by the well-off for the sake of social cooperation. Nozick asks why the well-off would be obliged, due to their inequality and for the sake of social cooperation, to assist the worse-off and not have the worse-off accept the inequality and benefit the well-off. Furthermore, Rawls's idea regarding morally arbitrary natural endowments comes under fire; Nozick argues that natural advantages that the well-off enjoy do not violate anyone's rights and therefore have a right to them, on top of his statement of Rawls's own proposal that inequalities be geared toward assisting the worse-off being morally arbitrary in itself.

Original position

Nozick's opinions on *historical entitlement* ensures that he naturally rejects the *Original Position* since he argues that in the *Original Position* individuals will use an *end-state* principle to determine the outcome, whilst he explicitly states the importance of the historicity of any such decisions (for example punishments and penalties will require historical information).

Equality, envy, and exploitation

Nozick presses "the major objection" to theories that bestow and enforce positive rights to various things such as equality of opportunity, life, and so on. "These 'rights' require a substructure of things and materials and actions," he writes, "and 'other' people may have rights and entitlements over these."

Nozick concludes that "Marxian exploitation is the exploitation of people's lack of understanding of economics."

Demoktesis

Demoktesis is a thought-experiment designed to show the incompatibility of democracy with libertarianism in general and the entitlement theory specifically. People desirous of more money might "hit upon the idea of incorporating themselves, raising money by selling shares in themselves." They would partition such rights as which occupation one would have. Though perhaps no one sells himself into utter slavery, there arises through voluntary exchanges a "very extensive domination" of some person by others. This intolerable situation is avoided by writing new terms of incorporation that for any stock no one already owning more than a certain number of shares may purchase it. As the process goes on, everyone sells off rights in themselves, "keeping one share in each right as their own, so they can attend stockholders' meetings if they wish." The inconvenience of attending such meetings leads to a special occupation of stockholders' representative. There is a great dispersal of shares such that almost everybody is deciding about everybody else. The system is still unwieldy, so a "great consolidational convention" is convened for buying and selling shares, and after a "hectic three days (lo and behold!)" each person owns exactly one share in each right over every other person, including himself. So now there can be just one meeting in which everything is decided for everybody. Attendance is too great and it's boring, so it is decided that only those entitled to cast at least 100,000 votes may attend the grand stockholders' meeting. And so on. Their social theorists call the system *demoktesis* (from Greek δῆμος *demos*, "people" and κτήσις *ktesis*, "ownership"), "ownership of the people, by the people, and for the people," and declare it the highest form of social life, one that must not be allowed to perish from the earth. With this "eldritch tale" we have in fact arrived at a modern democratic state.

A framework for Utopia

The utopia mentioned in the title of Nozick's first book is a meta-utopia, a framework for voluntary migration between utopias tending towards worlds in which everybody benefits from everybody else's presence. This is meant to be the Lockean "night-watchman state" writ large. The state protects individual rights and makes sure that contracts and other market transactions are voluntary. The meta-utopian framework reveals what is inspiring and noble in this night-watchman function. They both contain the only form of social union that is possible for the atomistic rational agents of *Anarchy, State, and Utopia*, fully voluntary associations of mutual benefit. The influence of this idea on Nozick's thinking is profound. Even in his last book, *Invariances*, he is still concerned to give priority to the mutual-benefit aspect of ethics. This coercively enforceable aspect ideally has an *empty core* in the game theorists' sense: the core of a game is all of those payoff vectors to the group wherein no subgroup can do better for itself acting on its own, without cooperating with others not in the subgroup. The worlds in Nozick's meta-utopia have empty cores. No subgroup of a utopian world is better off to emigrate to its own smaller world. The function of ethics is fundamentally to create and stabilize such empty cores of mutually beneficial cooperation. His view is that we are fortunate to live under conditions that favor "more-extensive cores", and less conquest, slavery, and pillaging, "less imposition of noncore vectors upon subgroups." Higher moral goals are real enough, but they are parasitic (as described in *The Examined Life*, the chapter "Darkness and Light") upon mutually beneficial cooperation.

In Nozick's utopia if people are not happy with the society they are in they can leave and start their own community, but he fails to consider that there might be things that prevent a person from leaving or moving about freely. Thomas Pogge states that items that are not socially induced can restrict people's options. Nozick states that for the healthy to have to support the handicapped imposes on their freedom, but Pogge argues that it introduces an inequality. This inequality restricts movement based on the ground rules Nozick has implemented, which could lead to feudalism and slavery, a society which Nozick himself would reject. David Schaefer notes that Nozick himself claims that a person could sell himself into slavery, which would break the very ground rule that was created, restricting the movement and choices that a person could make.

Reception

Anarchy, State, and Utopia came out of a semester-long course that Nozick taught with Michael Walzer at Harvard in 1971, called *Capitalism and Socialism*. The course was a debate between the two; Nozick's side is in *Anarchy, State, and Utopia*, and Walzer's side is in his *Spheres of Justice* (1983), in which he argues for "complex equality".

Murray Rothbard, an anarcho-capitalist, criticizes *Anarchy, State, and Utopia* in his essay "Robert Nozick and the Immaculate Conception of the State" on the basis that:

1. No existing State has been "immaculately conceived" in the way envisaged by Nozick;
2. On Nozick's account the only minimal State that could possibly be justified is one that would emerge after a free-market anarchist world had been established;
3. Therefore, Nozick, on his own grounds, should become an anarchist and then wait for the Nozickian invisible hand to operate afterward; and

4. Even if any State had been founded immaculately, the fallacies of social contract theory would mean that no present State, even a minimal one, would be justified.
5. His claim that "liberty upsets patterns" is inconsistent with his own view of liberty. Nozick holds a "Lockean" conception of liberty, where liberty is simply "the right to do, that which you have a right to do". Thus a restriction only infringes upon liberty if it infringes upon rights. Thus to examine whether enforcing a pattern violates liberty we must examine whether the pattern includes the right freely to transfer goods in whatever way the holder wishes. But there is no reason to suppose that all patterns include this right. Thus enforcing a pattern need not restrict liberty at all.

The American legal scholar Arthur Allen Leff criticized Nozick in his 1979 article "Unspeakable Ethics, Unnatural Law". Leff stated that Nozick built his entire book on the bald assertion that "individuals have rights which may not be violated by other individuals", for which no justification is offered. According to Leff, no such justification is possible either. Any desired ethical statement, including a negation of Nozick's position, can easily be "proved" with apparent rigor as long as one takes the licence to simply establish a grounding principle by assertion. Leff further calls "ostentatiously unconvincing" Nozick's proposal that differences among individuals will not be a problem if like-minded people form geographically isolated communities.

Philosopher Jan Narveson described Nozick's book as "brilliant".

Cato Institute fellow Tom G. Palmer writes that *Anarchy, State, and Utopia* is "witty and dazzling", and offers a strong criticism of John Rawls's *A Theory of Justice*. Palmer adds that, "Largely because of his remarks on Rawls and the extraordinary power of his intellect, Nozick's book was taken quite seriously by academic philosophers and political theorists, many of whom had not read contemporary libertarian (or classical liberal) material and considered this to be the only articulation of libertarianism available. Since Nozick was writing to defend the limited state and did not justify his starting assumption that individuals have rights, this led some academics to dismiss libertarianism as 'without foundations,' in the words of the philosopher Thomas Nagel. When read in light of the explicit statement of the book's purpose, however, this criticism is misdirected".

Libertarian author David Boaz writes that *Anarchy, State, and Utopia*, together with Rothbard's *For a New Liberty* (1973) and Ayn Rand's essays on political philosophy, "defined the 'hard-core' version of modern libertarianism, which essentially restated Spencer's law of equal freedom: Individuals have the right to do whatever they want to do, so long as they respect the equal rights of others."

In the article "Social Unity and Primary Goods", republished in his *Collected Papers* (1999), Rawls notes that Nozick handles Sen's Liberal Paradox in a manner that is similar to his own. However, the rights that Nozick takes to be fundamental and the basis for regarding them to be such are different from the equal basic liberties included in justice as fairness and Rawls conjectures that they are thus not inalienable.

In *Lectures on the History of Political Philosophy* (2007), Rawls notes that Nozick assumes that just transactions are "justice preserving" in much the same way that logical operations are "truth preserving". Thus, as explained in Distributive justice above, Nozick holds that repetitive applications of "justice in holdings" and "justice in transfer" preserve an initial state of justice obtained through "justice in

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acquisition or rectification". Rawls points out that this is simply an assumption or presupposition, and requires substantiation. In reality, he maintains, small inequalities established by just transactions accumulate over time and eventually result in large inequalities and an unjust situation.

26 The Constitution of the United States of America

Preamble

We the People of the United States, in Order to form a more perfect Union, establish Justice, insure domestic Tranquility, provide for the common defence, promote the general Welfare, and secure the Blessings of Liberty to ourselves and our Posterity, do ordain and establish this Constitution for the United States of America.

Article I - The Legislative Branch

Section 1 - The Legislature

All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

Section 2 - The House

The House of Representatives shall be composed of Members chosen every second Year by the People of the several States, and the Electors in each State shall have the Qualifications requisite for Electors of the most numerous Branch of the State Legislature.

No Person shall be a Representative who shall not have attained to the Age of twenty five Years, and been seven Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State in which he shall be chosen.

(Representatives and direct Taxes shall be apportioned among the several States which may be included within this Union, according to their respective Numbers, which shall be determined by adding to the whole Number of free Persons, including those bound to Service for a Term of Years, and excluding Indians not taxed, three fifths of all other Persons.) **(The previous sentence in parentheses was modified by the 14th Amendment, section 2.)** The actual Enumeration shall be made within three Years after the first Meeting of the Congress of the United States, and within every subsequent Term of ten Years, in such Manner as they shall by Law direct. The Number of Representatives shall not exceed one for every thirty Thousand, but each State shall have at Least one Representative; and until such enumeration shall be made, the State of New Hampshire shall be entitled to chuse three, Massachusetts eight, Rhode Island and Providence Plantations one, Connecticut five, New York six, New Jersey four, Pennsylvania eight, Delaware one, Maryland six, Virginia ten, North Carolina five, South Carolina five and Georgia three.

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When vacancies happen in the Representation from any State, the Executive Authority thereof shall issue Writs of Election to fill such Vacancies.

The House of Representatives shall chuse their Speaker and other Officers; and shall have the sole Power of Impeachment.

Section 3 - The Senate

The Senate of the United States shall be composed of two Senators from each State, *(chosen by the Legislature thereof,)* **(The preceding words in parentheses superseded by 17th Amendment, section 1.)** for six Years; and each Senator shall have one Vote.

Immediately after they shall be assembled in Consequence of the first Election, they shall be divided as equally as may be into three Classes. The Seats of the Senators of the first Class shall be vacated at the Expiration of the second Year, of the second Class at the Expiration of the fourth Year, and of the third Class at the Expiration of the sixth Year, so that one third may be chosen every second Year; *(and if Vacancies happen by Resignation, or otherwise, during the Recess of the Legislature of any State, the Executive thereof may make temporary Appointments until the next Meeting of the Legislature, which shall then fill such Vacancies.)* **(The preceding words in parentheses were superseded by the 17th Amendment, section 2.)**

No person shall be a Senator who shall not have attained to the Age of thirty Years, and been nine Years a Citizen of the United States, and who shall not, when elected, be an Inhabitant of that State for which he shall be chosen.

The Vice President of the United States shall be President of the Senate, but shall have no Vote, unless they be equally divided.

The Senate shall chuse their other Officers, and also a President pro tempore, in the absence of the Vice President, or when he shall exercise the Office of President of the United States.

The Senate shall have the sole Power to try all Impeachments. When sitting for that Purpose, they shall be on Oath or Affirmation. When the President of the United States is tried, the Chief Justice shall preside: And no Person shall be convicted without the Concurrence of two thirds of the Members present.

Judgment in Cases of Impeachment shall not extend further than to removal from Office, and disqualification to hold and enjoy any Office of honor, Trust or Profit under the United States: but the Party convicted shall nevertheless be liable and subject to Indictment, Trial, Judgment and Punishment, according to Law.

Section 4 - Elections, Meetings

The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Place of Chusing Senators.

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The Congress shall assemble at least once in every Year, and such Meeting shall *(be on the first Monday in December,)* **(The preceding words in parentheses were superseded by the 20th Amendment, section 2.)** unless they shall by Law appoint a different Day.

Section 5 - Membership, Rules, Journals, Adjournment

Each House shall be the Judge of the Elections, Returns and Qualifications of its own Members, and a Majority of each shall constitute a Quorum to do Business; but a smaller number may adjourn from day to day, and may be authorized to compel the Attendance of absent Members, in such Manner, and under such Penalties as each House may provide.

Each House may determine the Rules of its Proceedings, punish its Members for disorderly Behavior, and, with the Concurrence of two-thirds, expel a Member.

Each House shall keep a Journal of its Proceedings, and from time to time publish the same, excepting such Parts as may in their Judgment require Secrecy; and the Yeas and Nays of the Members of either House on any question shall, at the Desire of one fifth of those Present, be entered on the Journal.

Neither House, during the Session of Congress, shall, without the Consent of the other, adjourn for more than three days, nor to any other Place than that in which the two Houses shall be sitting.

Section 6 - Compensation

(The Senators and Representatives shall receive a Compensation for their Services, to be ascertained by Law, and paid out of the Treasury of the United States.) **(The preceding words in parentheses were modified by the 27th Amendment.)** They shall in all Cases, except Treason, Felony and Breach of the Peace, be privileged from Arrest during their Attendance at the Session of their respective Houses, and in going to and returning from the same; and for any Speech or Debate in either House, they shall not be questioned in any other Place.

No Senator or Representative shall, during the Time for which he was elected, be appointed to any civil Office under the Authority of the United States which shall have been created, or the Emoluments whereof shall have been increased during such time; and no Person holding any Office under the United States, shall be a Member of either House during his Continuance in Office.

Section 7 - Revenue Bills, Legislative Process, Presidential Veto

All bills for raising Revenue shall originate in the House of Representatives; but the Senate may propose or concur with Amendments as on other Bills.

Every Bill which shall have passed the House of Representatives and the Senate, shall, before it become a Law, be presented to the President of the United States; If he approve he shall sign it, but if not he shall return it, with his Objections to that House in which it shall have originated, who shall enter the Objections at large on their Journal, and proceed to reconsider it. If after such Reconsideration two thirds of that House shall agree to pass the Bill, it shall be sent, together with the Objections, to the other House, by which it shall likewise be reconsidered, and if approved by two thirds of that House, it shall

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become a Law. But in all such Cases the Votes of both Houses shall be determined by Yeas and Nays, and the Names of the Persons voting for and against the Bill shall be entered on the Journal of each House respectively. If any Bill shall not be returned by the President within ten Days (Sundays excepted) after it shall have been presented to him, the Same shall be a Law, in like Manner as if he had signed it, unless the Congress by their Adjournment prevent its Return, in which Case it shall not be a Law.

Every Order, Resolution, or Vote to which the Concurrence of the Senate and House of Representatives may be necessary (except on a question of Adjournment) shall be presented to the President of the United States; and before the Same shall take Effect, shall be approved by him, or being disapproved by him, shall be repassed by two thirds of the Senate and House of Representatives, according to the Rules and Limitations prescribed in the Case of a Bill.

Section 8 - Powers of Congress

The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

To borrow money on the credit of the United States;

To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

To establish an uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies throughout the United States;

To coin Money, regulate the Value thereof, and of foreign Coin, and fix the Standard of Weights and Measures;

To provide for the Punishment of counterfeiting the Securities and current Coin of the United States;

To establish Post Offices and Post Roads;

To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries;

To constitute Tribunals inferior to the supreme Court;

To define and punish Piracies and Felonies committed on the high Seas, and Offenses against the Law of Nations;

To declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water;

To raise and support Armies, but no Appropriation of Money to that Use shall be for a longer Term than two Years;

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To provide and maintain a Navy;

To make Rules for the Government and Regulation of the land and naval Forces;

To provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions;

To provide for organizing, arming, and disciplining, the Militia, and for governing such Part of them as may be employed in the Service of the United States, reserving to the States respectively, the Appointment of the Officers, and the Authority of training the Militia according to the discipline prescribed by Congress;

To exercise exclusive Legislation in all Cases whatsoever, over such District (not exceeding ten Miles square) as may, by Cession of particular States, and the acceptance of Congress, become the Seat of the Government of the United States, and to exercise like Authority over all Places purchased by the Consent of the Legislature of the State in which the Same shall be, for the Erection of Forts, Magazines, Arsenals, dock-Yards, and other needful Buildings; And

To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

Section 9 - Limits on Congress

The Migration or Importation of such Persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the Year one thousand eight hundred and eight, but a tax or duty may be imposed on such Importation, not exceeding ten dollars for each Person.

The privilege of the Writ of Habeas Corpus shall not be suspended, unless when in Cases of Rebellion or Invasion the public Safety may require it.

No Bill of Attainder or ex post facto Law shall be passed.

(No capitation, or other direct, Tax shall be laid, unless in Proportion to the Census or Enumeration herein before directed to be taken.) (Section in parentheses clarified by the 16th Amendment.)

No Tax or Duty shall be laid on Articles exported from any State.

No Preference shall be given by any Regulation of Commerce or Revenue to the Ports of one State over those of another: nor shall Vessels bound to, or from, one State, be obliged to enter, clear, or pay Duties in another.

No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.

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No Title of Nobility shall be granted by the United States: And no Person holding any Office of Profit or Trust under them, shall, without the Consent of the Congress, accept of any present, Emolument, Office, or Title, of any kind whatever, from any King, Prince or foreign State.

Section 10 - Powers prohibited of States

No State shall enter into any Treaty, Alliance, or Confederation; grant Letters of Marque and Reprisal; coin Money; emit Bills of Credit; make any Thing but gold and silver Coin a Tender in Payment of Debts; pass any Bill of Attainder, ex post facto Law, or Law impairing the Obligation of Contracts, or grant any Title of Nobility.

No State shall, without the Consent of the Congress, lay any Imposts or Duties on Imports or Exports, except what may be absolutely necessary for executing it's inspection Laws: and the net Produce of all Duties and Imposts, laid by any State on Imports or Exports, shall be for the Use of the Treasury of the United States; and all such Laws shall be subject to the Revision and Controul of the Congress.

No State shall, without the Consent of Congress, lay any duty of Tonnage, keep Troops, or Ships of War in time of Peace, enter into any Agreement or Compact with another State, or with a foreign Power, or engage in War, unless actually invaded, or in such imminent Danger as will not admit of delay.

Article II - The Executive Branch

Section 1 - The President

The executive Power shall be vested in a President of the United States of America. He shall hold his Office during the Term of four Years, and, together with the Vice-President chosen for the same Term, be elected, as follows:

Each State shall appoint, in such Manner as the Legislature thereof may direct, a Number of Electors, equal to the whole Number of Senators and Representatives to which the State may be entitled in the Congress: but no Senator or Representative, or Person holding an Office of Trust or Profit under the United States, shall be appointed an Elector.

(The Electors shall meet in their respective States, and vote by Ballot for two persons, of whom one at least shall not lie an Inhabitant of the same State with themselves. And they shall make a List of all the Persons voted for, and of the Number of Votes for each; which List they shall sign and certify, and transmit sealed to the Seat of the Government of the United States, directed to the President of the Senate. The President of the Senate shall, in the Presence of the Senate and House of Representatives, open all the Certificates, and the Votes shall then be counted. The Person having the greatest Number of Votes shall be the President, if such Number be a Majority of the whole Number of Electors appointed; and if there be more than one who have such Majority, and have an equal Number of Votes, then the House of Representatives shall immediately chuse by Ballot one of them for President; and if no Person have a Majority, then from the five highest on the List the said House shall in like Manner chuse the President. But in chusing the President, the Votes shall be taken by States, the Representation from each State having one Vote; a quorum for this Purpose shall consist of a Member or Members from two-

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thirds of the States, and a Majority of all the States shall be necessary to a Choice. In every Case, after the Choice of the President, the Person having the greatest Number of Votes of the Electors shall be the Vice President. But if there should remain two or more who have equal Votes, the Senate shall chuse from them by Ballot the Vice-President.) (This clause in parentheses was superseded by the 12th Amendment.)

The Congress may determine the Time of chusing the Electors, and the Day on which they shall give their Votes; which Day shall be the same throughout the United States.

No person except a natural born Citizen, or a Citizen of the United States, at the time of the Adoption of this Constitution, shall be eligible to the Office of President; neither shall any Person be eligible to that Office who shall not have attained to the Age of thirty-five Years, and been fourteen Years a Resident within the United States.

(In Case of the Removal of the President from Office, or of his Death, Resignation, or Inability to discharge the Powers and Duties of the said Office, the same shall devolve on the Vice President, and the Congress may by Law provide for the Case of Removal, Death, Resignation or Inability, both of the President and Vice President, declaring what Officer shall then act as President, and such Officer shall act accordingly, until the Disability be removed, or a President shall be elected.) (This clause in parentheses has been modified by the 20th and 25th Amendments.)

The President shall, at stated Times, receive for his Services, a Compensation, which shall neither be increased nor diminished during the Period for which he shall have been elected, and he shall not receive within that Period any other Emolument from the United States, or any of them.

Before he enter on the Execution of his Office, he shall take the following Oath or Affirmation:

"I do solemnly swear (or affirm) that I will faithfully execute the Office of President of the United States, and will to the best of my Ability, preserve, protect and defend the Constitution of the United States."

Section 2 - Civilian Power over Military, Cabinet, Pardon Power, Appointments

The President shall be Commander in Chief of the Army and Navy of the United States, and of the Militia of the several States, when called into the actual Service of the United States; he may require the Opinion, in writing, of the principal Officer in each of the executive Departments, upon any subject relating to the Duties of their respective Offices, and he shall have Power to Grant Reprieves and Pardons for Offenses against the United States, except in Cases of Impeachment.

He shall have Power, by and with the Advice and Consent of the Senate, to make Treaties, provided two thirds of the Senators present concur; and he shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, Judges of the supreme Court, and all other Officers of the United States, whose Appointments are not herein otherwise provided for, and which shall be established by Law: but the Congress may by Law vest the Appointment of such inferior Officers, as they think proper, in the President alone, in the Courts of Law, or in the Heads of Departments.

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The President shall have Power to fill up all Vacancies that may happen during the Recess of the Senate, by granting Commissions which shall expire at the End of their next Session.

Section 3 - State of the Union, Convening Congress

He shall from time to time give to the Congress Information of the State of the Union, and recommend to their Consideration such Measures as he shall judge necessary and expedient; he may, on extraordinary Occasions, convene both Houses, or either of them, and in Case of Disagreement between them, with Respect to the Time of Adjournment, he may adjourn them to such Time as he shall think proper; he shall receive Ambassadors and other public Ministers; he shall take Care that the Laws be faithfully executed, and shall Commission all the Officers of the United States.

Section 4 - Disqualification

The President, Vice President and all civil Officers of the United States, shall be removed from Office on Impeachment for, and Conviction of, Treason, Bribery, or other high Crimes and Misdemeanors.

Article III - The Judicial Branch

Section 1 - Judicial powers

The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish. The Judges, both of the supreme and inferior Courts, shall hold their Offices during good Behavior, and shall, at stated Times, receive for their Services a Compensation which shall not be diminished during their Continuance in Office.

Section 2 - Trial by Jury, Original Jurisdiction, Jury Trials

(The judicial Power shall extend to all Cases, in Law and Equity, arising under this Constitution, the Laws of the United States, and Treaties made, or which shall be made, under their Authority; to all Cases affecting Ambassadors, other public Ministers and Consuls; to all Cases of admiralty and maritime Jurisdiction; to Controversies to which the United States shall be a Party; to Controversies between two or more States; between a State and Citizens of another State; between Citizens of different States; between Citizens of the same State claiming Lands under Grants of different States, and between a State, or the Citizens thereof, and foreign States, Citizens or Subjects.) (This section in parentheses is modified by the 11th Amendment.)

In all Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party, the supreme Court shall have original Jurisdiction. In all the other Cases before mentioned, the supreme Court shall have appellate Jurisdiction, both as to Law and Fact, with such Exceptions, and under such Regulations as the Congress shall make.

The Trial of all Crimes, except in Cases of Impeachment, shall be by Jury; and such Trial shall be held in the State where the said Crimes shall have been committed; but when not committed within any State, the Trial shall be at such Place or Places as the Congress may by Law have directed.

Section 3 - Treason

Treason against the United States, shall consist only in levying War against them, or in adhering to their Enemies, giving them Aid and Comfort. No Person shall be convicted of Treason unless on the Testimony of two Witnesses to the same overt Act, or on Confession in open Court.

The Congress shall have power to declare the Punishment of Treason, but no Attainder of Treason shall work Corruption of Blood, or Forfeiture except during the Life of the Person attainted.

Article IV - The States

Section 1 - Each State to Honor all others

Full Faith and Credit shall be given in each State to the public Acts, Records, and judicial Proceedings of every other State. And the Congress may by general Laws prescribe the Manner in which such Acts, Records and Proceedings shall be proved, and the Effect thereof.

Section 2 - State citizens, Extradition

The Citizens of each State shall be entitled to all Privileges and Immunities of Citizens in the several States.

A Person charged in any State with Treason, Felony, or other Crime, who shall flee from Justice, and be found in another State, shall on demand of the executive Authority of the State from which he fled, be delivered up, to be removed to the State having Jurisdiction of the Crime.

(No Person held to Service or Labour in one State, under the Laws thereof, escaping into another, shall, in Consequence of any Law or Regulation therein, be discharged from such Service or Labour, But shall be delivered up on Claim of the Party to whom such Service or Labour may be due.) (This clause in parentheses is superseded by the 13th Amendment.)

Section 3 - New States

New States may be admitted by the Congress into this Union; but no new States shall be formed or erected within the Jurisdiction of any other State; nor any State be formed by the Junction of two or more States, or parts of States, without the Consent of the Legislatures of the States concerned as well as of the Congress.

The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States; and nothing in this Constitution shall be so construed as to Prejudice any Claims of the United States, or of any particular State.

Section 4 - Republican government

The United States shall guarantee to every State in this Union a Republican Form of Government, and

shall protect each of them against Invasion; and on Application of the Legislature, or of the Executive (when the Legislature cannot be convened) against domestic Violence.

Article V - Amendment

The Congress, whenever two thirds of both Houses shall deem it necessary, shall propose Amendments to this Constitution, or, on the Application of the Legislatures of two thirds of the several States, shall call a Convention for proposing Amendments, which, in either Case, shall be valid to all Intents and Purposes, as part of this Constitution, when ratified by the Legislatures of three fourths of the several States, or by Conventions in three fourths thereof, as the one or the other Mode of Ratification may be proposed by the Congress; Provided that no Amendment which may be made prior to the Year One thousand eight hundred and eight shall in any Manner affect the first and fourth Clauses in the Ninth Section of the first Article; and that no State, without its Consent, shall be deprived of its equal Suffrage in the Senate.

Article VI - Debts, Supremacy, Oaths

All Debts contracted and Engagements entered into, before the Adoption of this Constitution, shall be as valid against the United States under this Constitution, as under the Confederation.

This Constitution, and the Laws of the United States which shall be made in Pursuance thereof; and all Treaties made, or which shall be made, under the Authority of the United States, shall be the supreme Law of the Land; and the Judges in every State shall be bound thereby, any Thing in the Constitution or Laws of any State to the Contrary notwithstanding.

The Senators and Representatives before mentioned, and the Members of the several State Legislatures, and all executive and judicial Officers, both of the United States and of the several States, shall be bound by Oath or Affirmation, to support this Constitution; but no religious Test shall ever be required as a Qualification to any Office or public Trust under the United States.

Article VII - Ratification Documents

The Ratification of the Conventions of nine States, shall be sufficient for the Establishment of this Constitution between the States so ratifying the Same.

Done in Convention by the Unanimous Consent of the States present the Seventeenth Day of September in the Year of our Lord one thousand seven hundred and Eighty seven and of the Independence of the United States of America the Twelfth. In Witness whereof We have hereunto subscribed our Names.

Go Washington - President and deputy from Virginia

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New Hampshire - John Langdon, Nicholas Gilman

Massachusetts - Nathaniel Gorham, Rufus King

Connecticut - Wm Saml Johnson, Roger Sherman

New York - Alexander Hamilton

New Jersey - Wil Livingston, David Brearley, Wm Paterson, Jona. Dayton

Pensylvania - B Franklin, Thomas Mifflin, Robt Morris, Geo. Clymer, Thos FitzSimons, Jared Ingersoll, James Wilson, Gouv Morris

Delaware - Geo. Read, Gunning Bedford jun, John Dickinson, Richard Bassett, Jaco. Broom

Maryland - James McHenry, Dan of St Tho Jenifer, Danl Carroll

Virginia - John Blair, James Madison Jr.

North Carolina - Wm Blount, Richd Dobbs Spaight, Hu Williamson

South Carolina - J. Rutledge, Charles Cotesworth Pinckney, Charles Pinckney, Pierce Butler

Georgia - William Few, Abr Baldwin

Attest: William Jackson, Secretary

The Amendments

The following are the Amendments to the Constitution. The first ten Amendments collectively are commonly known as the Bill of Rights.

Amendment 1 - Freedom of Religion, Press, Expression. Ratified 12/15/1791.

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

Amendment 2 - Right to Bear Arms. Ratified 12/15/1791.

A well regulated Militia, being necessary to the security of a free State, the right of the people to keep

and bear Arms, shall not be infringed.

Amendment 3 - Quartering of Soldiers. Ratified 12/15/1791.

No Soldier shall, in time of peace be quartered in any house, without the consent of the Owner, nor in time of war, but in a manner to be prescribed by law.

Amendment 4 - Search and Seizure. Ratified 12/15/1791.

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

Amendment 5 - Trial and Punishment, Compensation for Takings. Ratified 12/15/1791.

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the Militia, when in actual service in time of War or public danger; nor shall any person be subject for the same offense to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

Amendment 6 - Right to Speedy Trial, Confrontation of Witnesses. Ratified 12/15/1791.

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the Assistance of Counsel for his defence.

Amendment 7 - Trial by Jury in Civil Cases. Ratified 12/15/1791.

In Suits at common law, where the value in controversy shall exceed twenty dollars, the right of trial by jury shall be preserved, and no fact tried by a jury, shall be otherwise re-examined in any Court of the United States, than according to the rules of the common law.

Amendment 8 - Cruel and Unusual Punishment. Ratified 12/15/1791.

Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

Amendment 9 - Construction of Constitution. Ratified 12/15/1791.

The enumeration in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people.

Amendment 10 - Powers of the States and People. Ratified 12/15/1791.

The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

Amendment 11 - Judicial Limits. Ratified 2/7/1795.

The Judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by Citizens of another State, or by Citizens or Subjects of any Foreign State.

Amendment 12 - Choosing the President, Vice-President. Ratified 6/15/1804.

The Electors shall meet in their respective states, and vote by ballot for President and Vice-President, one of whom, at least, shall not be an inhabitant of the same state with themselves; they shall name in their ballots the person voted for as President, and in distinct ballots the person voted for as Vice-President, and they shall make distinct lists of all persons voted for as President, and of all persons voted for as Vice-President and of the number of votes for each, which lists they shall sign and certify, and transmit sealed to the seat of the government of the United States, directed to the President of the Senate;

The President of the Senate shall, in the presence of the Senate and House of Representatives, open all the certificates and the votes shall then be counted;

The person having the greatest Number of votes for President, shall be the President, if such number be a majority of the whole number of Electors appointed; and if no person have such majority, then from

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the persons having the highest numbers not exceeding three on the list of those voted for as President, the House of Representatives shall choose immediately, by ballot, the President. But in choosing the President, the votes shall be taken by states, the representation from each state having one vote; a quorum for this purpose shall consist of a member or members from two-thirds of the states, and a majority of all the states shall be necessary to a choice. And if the House of Representatives shall not choose a President whenever the right of choice shall devolve upon them, before the fourth day of March next following, then the Vice-President shall act as President, as in the case of the death or other constitutional disability of the President.

The person having the greatest number of votes as Vice-President, shall be the Vice-President, if such number be a majority of the whole number of Electors appointed, and if no person have a majority, then from the two highest numbers on the list, the Senate shall choose the Vice-President; a quorum for the purpose shall consist of two-thirds of the whole number of Senators, and a majority of the whole number shall be necessary to a choice. But no person constitutionally ineligible to the office of President shall be eligible to that of Vice-President of the United States.

Amendment 13 - Slavery Abolished. Ratified 12/6/1865.

1. Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted, shall exist within the United States, or any place subject to their jurisdiction.
2. Congress shall have power to enforce this article by appropriate legislation.

Amendment 14 - Citizenship Rights. Ratified 7/9/1868.

1. All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.
2. Representatives shall be apportioned among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed. But when the right to vote at any election for the choice of electors for President and Vice-President of the United States, Representatives in Congress, the Executive and Judicial officers of a State, or the members of the Legislature thereof, is denied to any of the male inhabitants of such State, being twenty-one years of age, and citizens of the United States, or in any way abridged, except for participation in rebellion, or other crime, the basis of representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State.
3. No person shall be a Senator or Representative in Congress, or elector of President and Vice-President, or hold any office, civil or military, under the United States, or under any State, who, having

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previously taken an oath, as a member of Congress, or as an officer of the United States, or as a member of any State legislature, or as an executive or judicial officer of any State, to support the Constitution of the United States, shall have engaged in insurrection or rebellion against the same, or given aid or comfort to the enemies thereof. But Congress may by a vote of two-thirds of each House, remove such disability.

4. The validity of the public debt of the United States, authorized by law, including debts incurred for payment of pensions and bounties for services in suppressing insurrection or rebellion, shall not be questioned. But neither the United States nor any State shall assume or pay any debt or obligation incurred in aid of insurrection or rebellion against the United States, or any claim for the loss or emancipation of any slave; but all such debts, obligations and claims shall be held illegal and void.

5. The Congress shall have power to enforce, by appropriate legislation, the provisions of this article.

Amendment 15 - Race No Bar to Vote. Ratified 2/3/1870.

1. The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of race, color, or previous condition of servitude.

2. The Congress shall have power to enforce this article by appropriate legislation.

Amendment 16 - Status of Income Tax Clarified. Ratified 2/3/1913.

The Congress shall have power to lay and collect taxes on incomes, from whatever source derived, without apportionment among the several States, and without regard to any census or enumeration.

Amendment 17 - Senators Elected by Popular Vote. Ratified 4/8/1913.

The Senate of the United States shall be composed of two Senators from each State, elected by the people thereof, for six years; and each Senator shall have one vote. The electors in each State shall have the qualifications requisite for electors of the most numerous branch of the State legislatures.

When vacancies happen in the representation of any State in the Senate, the executive authority of such State shall issue writs of election to fill such vacancies: Provided, That the legislature of any State may empower the executive thereof to make temporary appointments until the people fill the vacancies by election as the legislature may direct.

This amendment shall not be so construed as to affect the election or term of any Senator chosen before it becomes valid as part of the Constitution.

Amendment 18 - Liquor Abolished. Ratified 1/16/1919. Repealed by Amendment 21, 12/5/1933.

1. After one year from the ratification of this article the manufacture, sale, or transportation of intoxicating liquors within, the importation thereof into, or the exportation thereof from the United States and all territory subject to the jurisdiction thereof for beverage purposes is hereby prohibited.
 2. The Congress and the several States shall have concurrent power to enforce this article by appropriate legislation.
 3. This article shall be inoperative unless it shall have been ratified as an amendment to the Constitution by the legislatures of the several States, as provided in the Constitution, within seven years from the date of the submission hereof to the States by the Congress.
-

Amendment 19 - Women's Suffrage. Ratified 8/18/1920.

The right of citizens of the United States to vote shall not be denied or abridged by the United States or by any State on account of sex.

Congress shall have power to enforce this article by appropriate legislation.

Amendment 20 - Presidential, Congressional Terms. Ratified 1/23/1933.

1. The terms of the President and Vice President shall end at noon on the 20th day of January, and the terms of Senators and Representatives at noon on the 3d day of January, of the years in which such terms would have ended if this article had not been ratified; and the terms of their successors shall then begin.
2. The Congress shall assemble at least once in every year, and such meeting shall begin at noon on the 3d day of January, unless they shall by law appoint a different day.
3. If, at the time fixed for the beginning of the term of the President, the President elect shall have died, the Vice President elect shall become President. If a President shall not have been chosen before the time fixed for the beginning of his term, or if the President elect shall have failed to qualify, then the Vice President elect shall act as President until a President shall have qualified; and the Congress may by law provide for the case wherein neither a President elect nor a Vice President elect shall have qualified, declaring who shall then act as President, or the manner in which one who is to act shall be selected, and such person shall act accordingly until a President or Vice President shall have qualified.
4. The Congress may by law provide for the case of the death of any of the persons from whom the House of Representatives may choose a President whenever the right of choice shall have devolved

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upon them, and for the case of the death of any of the persons from whom the Senate may choose a Vice President whenever the right of choice shall have devolved upon them.

5. Sections 1 and 2 shall take effect on the 15th day of October following the ratification of this article.

6. This article shall be inoperative unless it shall have been ratified as an amendment to the Constitution by the legislatures of three-fourths of the several States within seven years from the date of its submission.

Amendment 21 - Amendment 18 Repealed. Ratified 12/5/1933.

1. The eighteenth article of amendment to the Constitution of the United States is hereby repealed.

2. The transportation or importation into any State, Territory, or possession of the United States for delivery or use therein of intoxicating liquors, in violation of the laws thereof, is hereby prohibited.

3. The article shall be inoperative unless it shall have been ratified as an amendment to the Constitution by conventions in the several States, as provided in the Constitution, within seven years from the date of the submission hereof to the States by the Congress.

Amendment 22 - Presidential Term Limits. Ratified 2/27/1951.

1. No person shall be elected to the office of the President more than twice, and no person who has held the office of President, or acted as President, for more than two years of a term to which some other person was elected President shall be elected to the office of the President more than once. But this Article shall not apply to any person holding the office of President, when this Article was proposed by the Congress, and shall not prevent any person who may be holding the office of President, or acting as President, during the term within which this Article becomes operative from holding the office of President or acting as President during the remainder of such term.

2. This article shall be inoperative unless it shall have been ratified as an amendment to the Constitution by the legislatures of three-fourths of the several States within seven years from the date of its submission to the States by the Congress.

Amendment 23 - Presidential Vote for District of Columbia. Ratified 3/29/1961.

1. The District constituting the seat of Government of the United States shall appoint in such manner as the Congress may direct: A number of electors of President and Vice President equal to the whole number of Senators and Representatives in Congress to which the District would be entitled if it were a State, but in no event more than the least populous State; they shall be in addition to those appointed by

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the States, but they shall be considered, for the purposes of the election of President and Vice President, to be electors appointed by a State; and they shall meet in the District and perform such duties as provided by the twelfth article of amendment.

2. The Congress shall have power to enforce this article by appropriate legislation.

Amendment 24 - Poll Tax Barred. Ratified 1/23/1964.

1. The right of citizens of the United States to vote in any primary or other election for President or Vice President, for electors for President or Vice President, or for Senator or Representative in Congress, shall not be denied or abridged by the United States or any State by reason of failure to pay any poll tax or other tax.

2. The Congress shall have power to enforce this article by appropriate legislation.

Amendment 25 - Presidential Disability and Succession. Ratified 2/10/1967.

1. In case of the removal of the President from office or of his death or resignation, the Vice President shall become President.

2. Whenever there is a vacancy in the office of the Vice President, the President shall nominate a Vice President who shall take office upon confirmation by a majority vote of both Houses of Congress.

3. Whenever the President transmits to the President pro tempore of the Senate and the Speaker of the House of Representatives his written declaration that he is unable to discharge the powers and duties of his office, and until he transmits to them a written declaration to the contrary, such powers and duties shall be discharged by the Vice President as Acting President.

4. Whenever the Vice President and a majority of either the principal officers of the executive departments or of such other body as Congress may by law provide, transmit to the President pro tempore of the Senate and the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Vice President shall immediately assume the powers and duties of the office as Acting President.

Thereafter, when the President transmits to the President pro tempore of the Senate and the Speaker of the House of Representatives his written declaration that no inability exists, he shall resume the powers and duties of his office unless the Vice President and a majority of either the principal officers of the executive department or of such other body as Congress may by law provide, transmit within four days to the President pro tempore of the Senate and the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office. Thereupon Congress shall decide the issue, assembling within forty eight hours for that purpose if not in session. If the Congress, within twenty one days after receipt of the latter written declaration, or, if Congress is not

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in session, within twenty one days after Congress is required to assemble, determines by two thirds vote of both Houses that the President is unable to discharge the powers and duties of his office, the Vice President shall continue to discharge the same as Acting President; otherwise, the President shall resume the powers and duties of his office.

Amendment 26 - Voting Age Set to 18 Years. Ratified 7/1/1971.

1. The right of citizens of the United States, who are eighteen years of age or older, to vote shall not be denied or abridged by the United States or by any State on account of age.
 2. The Congress shall have power to enforce this article by appropriate legislation.
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Amendment 27 - Limiting Changes to Congressional Pay. Ratified 5/7/1992.

No law, varying the compensation for the services of the Senators and Representatives, shall take effect, until an election of Representatives shall have intervened.

27 The Federalist Papers, Part 1 (Alexander Hamilton and James Madison)

The Federalist Papers¹ is a collection of 85 articles and essays written (under the pseudonym Publius) by Alexander Hamilton, James Madison, and John Jay promoting the ratification of the United States Constitution. Seventy-seven were published serially in the *Independent Journal* and the *New York Packet* between October 1787 and August 1788. A compilation of these and eight others, called ***The Federalist: A Collection of Essays, Written in Favour of the New Constitution, as Agreed upon by the Federal Convention, September 17, 1787***, was published in two volumes in 1788 by J. and A. McLean. The collection's original title was *The Federalist*; the title *The Federalist Papers* did not emerge until the 20th century.

Though the authors of *The Federalist* foremost wished to influence the vote in favor of ratifying the Constitution, in "Federalist No. 1", they explicitly set that debate in broader political terms:

It has been frequently remarked, that it seems to have been reserved to the people of this country, by their conduct and example, to decide the important question, whether societies of men are really capable or not, of establishing good government from reflection and choice, or whether they are forever destined to depend, for their political constitutions, on accident and force.

"Federalist No. 10", in which Madison discusses the means of preventing rule by majority faction and advocates a large, commercial republic, is generally regarded as the most important of the 85 articles from a philosophical perspective; it is complemented by "Federalist No. 14", in which Madison takes the measure of the United States, declares it appropriate for an extended republic, and concludes with a memorable defense of the constitutional and political creativity of the Federal Convention. In "Federalist No. 84", Hamilton makes the case that there is no need to amend the Constitution by adding a Bill of Rights, insisting that the various provisions in the proposed Constitution protecting liberty amount to a "bill of rights". "Federalist No. 78", also written by Hamilton, lays the groundwork for the doctrine of judicial review by federal courts of federal legislation or executive acts. "Federalist No. 70" presents Hamilton's case for a one-man chief executive. In "Federalist No. 39", Madison presents the clearest exposition of what has come to be called "Federalism". In "Federalist No. 51", Madison distills arguments for checks and balances in an essay often quoted for its justification of government as "the greatest of all reflections on human nature."

According to historian Richard B. Morris, they are an "incomparable exposition of the Constitution, a classic in political science unsurpassed in both breadth and depth by the product of any later American writer."

¹ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: The Federalist Papers. (2017, August 18). In Wikipedia, The Free Encyclopedia. Retrieved 18:28, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=The_Federalist_Papers&oldid=796127321

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The Federal Convention sent the proposed Constitution to the Confederation Congress, which in turn submitted it to the states for ratification at the end of September 1787. On September 27, 1787, "Cato" first appeared in the New York press criticising the proposition; "Brutus" followed on October 18, 1787. These and other articles and public letters critical of the new Constitution would eventually become known as the "Anti-Federalist Papers". In response, Hamilton decided to launch a measured defense and extensive explanation of the proposed Constitution to the people of the state of New York. He wrote in Federalist No. 1 that the series would "endeavor to give a satisfactory answer to all the objections which shall have made their appearance, that may seem to have any claim to your attention."

Hamilton recruited collaborators for the project. He enlisted John Jay, who after four strong essays (Federalist Nos. 2, 3, 4, and 5), fell ill and contributed only one more essay, Federalist No. 64, to the series. He also distilled his case into a pamphlet in the spring of 1788, *An Address to the People of the State of New-York*; Hamilton cited it approvingly in Federalist No. 85. James Madison, present in New York as a Virginia delegate to the Confederation Congress, was recruited by Hamilton and Jay, and became Hamilton's major collaborator. Gouverneur Morris and William Duer were also apparently considered; Morris turned down the invitation, and Hamilton rejected three essays written by Duer. Duer later wrote in support of the three Federalist authors under the name "Philo-Publius", or "Friend of Publius".

Hamilton chose "Publius" as the pseudonym under which the series would be written. While many other pieces representing both sides of the constitutional debate were written under Roman names, Albert Furtwangler contends that "'Publius' was a cut above 'Caesar' or 'Brutus' or even 'Cato.' Publius Valerius was not a late defender of the republic but one of its founders. His more famous name, Publicola, meant 'friend of the people.'" It was not the first time Hamilton had used this pseudonym: in 1778, he had applied it to three letters attacking fellow Federalist Samuel Chase. Chase's patriotism was questioned when Hamilton revealed that Chase had taken advantage of knowledge gained in Congress to try to dominate the flour market.

At the time of publication the authorship of the articles was a closely guarded secret, though astute observers discerned the identities of Hamilton, Madison, and Jay. Following Hamilton's death in 1804, a list that he had drafted claiming fully two-thirds of the papers for himself became public, including some that seemed more likely the work of Madison (No. 49–58 and 62–63). The scholarly detective work of Douglass Adair in 1944 postulated the following assignments of authorship, corroborated in 1964 by a computer analysis of the text:

- Alexander Hamilton (51 articles: No. 1, 6–9, 11–13, 15–17, 21–36, 59–61, and 65–85)
- James Madison (29 articles: No. 10, 14, 18–20, 37–58 and 62–63)
- John Jay (5 articles: No. 2–5 and 64).

A total of 85 articles were written by the three men in a span of ten months under the pseudonym "Publius", in honor of Roman consul Publius Valerius Publicola. Madison is now acknowledged as the father of the Constitution—despite his repeated rejection of this honor during his lifetime. Madison became a leading member of the U.S. House of Representatives from Virginia (1789–1797), Secretary of State (1801–1809), and ultimately the fourth President of the United States. Hamilton, who had been a leading advocate of national constitutional reform throughout the 1780s and represented New York at the Constitutional Convention, in 1789 became the first Secretary of the Treasury, a post he held until

his resignation in 1795. John Jay, who had been secretary for foreign affairs under the Articles of Confederation from 1784 through their expiration in 1789, became the first Chief Justice of the United States in 1789, stepping down in 1795 to accept election as governor of New York, a post he held for two terms, retiring in 1801.

Alexander Hamilton² (January 11, 1755 or 1757 – July 12, 1804) was an American statesman and one of the Founding Fathers of the United States. He was an influential interpreter and promoter of the U.S. Constitution, as well as the founder of the nation's financial system, the Federalist Party, the United States Coast Guard, and *The New York Post* newspaper. As the first Secretary of the Treasury, Hamilton was the main author of the economic policies of the George Washington administration. He took the lead in the funding of the states' debts by the Federal government, as well as the establishment of a national bank, a system of tariffs, and friendly trade relations with Britain. His vision included a strong central government led by a vigorous executive branch,³⁻⁴ a strong commercial economy, with a national bank and support for manufacturing, plus a strong military. This was challenged by Virginia agrarians Thomas Jefferson and James Madison, who formed a rival party, the Democratic-Republican Party. They favored strong states based in rural America and protected by state militias as opposed to a strong national army and navy. They denounced Hamilton as too friendly toward Britain and toward monarchy in general, and too oriented toward cities, business and banking.

Hamilton was born out of wedlock in Charlestown, Nevis. His Scottish-born father, James A. Hamilton, was the fourth son of Alexander Hamilton, laird of Grange, Ayrshire. His mother, born Rachel Faucette, was half-British and half-French Huguenot.⁸ Orphaned as a child by his mother's death and his father's abandonment, Hamilton was taken in by an older cousin and later by a prosperous merchant family. He was recognized for his intelligence and talent, and sponsored by a group of wealthy local men to travel to New York City to pursue his education. Hamilton attended King's College (now Columbia University), choosing to stay in the Thirteen Colonies to seek his fortune.

Discontinuing his studies before graduating when the college closed its doors during British occupation of the city, Hamilton played a major role in the American Revolutionary War. At the start of the war in 1775, he joined a militia company. In early 1776, he raised a provincial artillery company, to which he was appointed captain. He soon became the senior aide to General Washington, the American forces' commander-in-chief. Hamilton was dispatched by Washington on numerous missions to convey plans to his generals. After the war, Hamilton was elected as a representative to the Congress of the Confederation from New York. He resigned to practice law, and founded the Bank of New York.

Hamilton was among those dissatisfied with the weak national government. He led the Annapolis Convention, which successfully influenced Congress to issue a call for the Philadelphia Convention in order to create a new constitution. He was an active participant at Philadelphia, and he helped achieve ratification by writing 51 of the 85 installments of *The Federalist Papers* which, to this day, are the single most important reference for Constitutional interpretation.

² This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: Alexander Hamilton. (2017, August 13). In Wikipedia, The Free Encyclopedia. Retrieved 18:29, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=Alexander_Hamilton&oldid=795274602

Hamilton became the leading cabinet member in the new government under President Washington. He was a nationalist who emphasized strong central government and successfully argued that the implied powers of the Constitution provided the legal authority to fund the national debt, assume states' debts, and create the government-backed Bank of the United States. These programs were funded primarily by a tariff on imports, and later also by a highly controversial tax on whiskey. To overcome localism, Hamilton mobilized a nationwide network of friends of the government, especially bankers and businessmen, which became the Federalist Party. A major issue in the emergence of the American two-party system was the Jay Treaty, largely designed by Hamilton in 1794. It established friendly trade relations with Britain, to the chagrin of France and the supporters of the French Revolution. Hamilton played a central role in the Federalist party, which dominated national and state politics until it lost the election of 1800 to Jefferson's Democratic-Republican Party.

In 1795, he returned to the practice of law in New York. He tried to control the policies of President Adams (1797–1801). In 1798–99, Hamilton called for mobilization against France after the XYZ Affair and became commander of a new army, which he readied for war. However, the Quasi-War was never officially declared and did not involve army action, though it was hard-fought at sea. In the end, President Adams found a diplomatic solution that avoided a war with France. Hamilton's opposition to Adams' re-election helped cause his defeat in the 1800 election. Jefferson and Aaron Burr tied for the presidency in the electoral college in 1801, and Hamilton helped to defeat Burr, whom he found unprincipled, and to elect Jefferson despite philosophical differences.

Hamilton continued his legal and business activities in New York City, and was active in ending the legality of the international slave trade. Vice President Burr ran for governor of New York State in 1804, and Hamilton crusaded against him as unworthy. Burr took offense and challenged him to a duel. Burr mortally wounded Hamilton, who died the next day.

James Madison Jr³ (March 16 [O.S. March 5], 1751 – June 28, 1836) was an American statesman and Founding Father who served as the fourth President of the United States from 1809 to 1817. He is hailed as the "Father of the Constitution" for his pivotal role in drafting and promoting the United States Constitution and the Bill of Rights.

Madison inherited his plantation Montpelier in Virginia and therewith owned hundreds of slaves during his lifetime. He served as both a member of the Virginia House of Delegates and as a member of the Continental Congress prior to the Constitutional Convention. After the Convention, he became one of the leaders in the movement to ratify the Constitution, both in Virginia and nationally. His collaboration with Alexander Hamilton and John Jay produced *The Federalist Papers*, among the most important treatises in support of the Constitution. Madison's political views changed throughout his life. During deliberations on the Constitution, he favored a strong national government, but later preferred stronger state governments, before settling between the two extremes later in his life.

In 1789, Madison became a leader in the new House of Representatives, drafting many general laws. He is noted for drafting the first ten amendments to the Constitution, and thus is known also as the "Father

³ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: James Madison. (2017, August 18). In Wikipedia, The Free Encyclopedia. Retrieved 18:29, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=James_Madison&oldid=796129011

of the Bill of Rights." He worked closely with President George Washington to organize the new federal government. Breaking with Hamilton and the Federalist Party in 1791, he and Thomas Jefferson organized the Democratic-Republican Party. In response to the Alien and Sedition Acts, Jefferson and Madison drafted the Kentucky and Virginia Resolutions, arguing that states can nullify unconstitutional laws.

As Jefferson's Secretary of State (1801–1809), Madison supervised the Louisiana Purchase, which doubled the nation's size. Madison succeeded Jefferson as president in 1809, was re-elected in 1812, and presided over renewed prosperity for several years. After the failure of diplomatic protests and a trade embargo against the United Kingdom, he led the U.S. into the War of 1812. The war was an administrative morass, as the United States had neither a strong army nor financial system. As a result, Madison afterward supported a stronger national government and military, as well as the national bank, which he had long opposed. Madison has been ranked in the aggregate by historians as the ninth most successful president.

John Jay⁴ (December 23 [O.S. December 12] 1745 – May 17, 1829) was an American statesman, Patriot, diplomat, one of the Founding Fathers of the United States, signatory of the Treaty of Paris of 1783, second Governor of New York, and the first Chief Justice of the United States (1789–1795). He directed U.S. foreign policy for much of the 1780s and was an important leader of the Federalist Party after the ratification of the United States Constitution in 1788.

Jay was born into a wealthy family of merchants and government officials in New York City. He became a lawyer and joined the New York Committee of Correspondence, organizing opposition to British policies in the time preceding the American Revolution. Jay was elected to the Second Continental Congress, and he served as the President of the Second Continental Congress. From 1779 to 1782, Jay served as the ambassador to Spain, and he convinced Spain to provide financial aid to the fledgling United States. He also served as a negotiator of the Treaty of Paris, in which Britain recognized American independence. Following the end of the war, Jay served as Secretary of Foreign Affairs, directing United States foreign policy under the Articles of Confederation government. He would also serve as the first Secretary of State on an interim basis.

A proponent of strong, centralized government, Jay worked to ratify the United States Constitution in New York in 1788 by pseudonymously writing five of the several *The Federalist* Papers, along with the main authors Alexander Hamilton and James Madison. After the establishment of the new federal government, Jay was appointed by President George Washington to become the first Chief Justice of the United States, serving from 1789 to 1795. The Jay Court experienced a light workload, deciding just four cases over six years. In 1794, while serving as Chief Justice, Jay negotiated the highly controversial Jay Treaty with Britain. Jay received a handful of electoral votes in three of the first four presidential elections, but never undertook a serious bid for the presidency.

Jay served as the Governor of New York from 1795 to 1801. Long an opponent of slavery, he helped enact a law that provided for the gradual emancipation of slaves, and the institution of slavery was

⁴ This section reprinted from Wikipedia under the CC-BY-SA 3.0 license. Citation: John Jay. (2017, August 17). In Wikipedia, The Free Encyclopedia. Retrieved 18:29, August 18, 2017, from https://en.wikipedia.org/w/index.php?title=John_Jay&oldid=795966417

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abolished in New York in Jay's lifetime. In the waning days of President John Adams's administration, Jay was confirmed by the Senate for another term as Chief Justice, but he declined the position and retired to his farm in Westchester County, New York.

FEDERALIST No. 10
(The Union as a Safeguard Against Domestic Faction and Insurrection)
From the New York Packet.
Friday, November 23, 1787.
MADISON

To the People of the State of New York:

AMONG the numerous advantages promised by a wellconstructed Union, none deserves to be more accurately developed than its tendency to break and control the violence of faction. The friend of popular governments never finds himself so much alarmed for their character and fate, as when he contemplates their propensity to this dangerous vice. He will not fail, therefore, to set a due value on any plan which, without violating the principles to which he is attached, provides a proper cure for it. The instability, injustice, and confusion introduced into the public councils, have, in truth, been the mortal diseases under which popular governments have everywhere perished; as they continue to be the favorite and fruitful topics from which the adversaries to liberty derive their most specious declamations. The valuable improvements made by the American constitutions on the popular models, both ancient and modern, cannot certainly be too much admired; but it would be an unwarrantable partiality, to contend that they have as effectually obviated the danger on this side, as was wished and expected. Complaints are everywhere heard from our most considerate and virtuous citizens, equally the friends of public and private faith, and of public and personal liberty, that our governments are too unstable, that the public good is disregarded in the conflicts of rival parties, and that measures are too often decided, not according to the rules of justice and the rights of the minor party, but by the superior force of an interested and overbearing majority. However anxiously we may wish that these complaints had no foundation, the evidence, of known facts will not permit us to deny that they are in some degree true. It will be found, indeed, on a candid review of our situation, that some of the distresses under which we labor have been erroneously charged on the operation of our governments; but it will be found, at the same time, that other causes will not alone account for many of our heaviest misfortunes; and, particularly, for that prevailing and increasing distrust of public engagements, and alarm for private rights, which are echoed from one end of the continent to the other. These must be chiefly, if not wholly, effects of the unsteadiness and injustice with which a factious spirit has tainted our public administrations.

By a faction, I understand a number of citizens, whether amounting to a majority or a minority of the whole, who are united and actuated by some common impulse of passion, or of interest, adversed to the rights of other citizens, or to the permanent and aggregate interests of the community.

There are two methods of curing the mischiefs of faction: the one, by removing its causes; the other, by controlling its effects.

There are again two methods of removing the causes of faction: the one, by destroying the liberty which is essential to its existence; the other, by giving to every citizen the same opinions, the same passions, and the same interests.

It could never be more truly said than of the first remedy, that it was worse than the disease. Liberty is to faction what air is to fire, an aliment without which it instantly expires. But it could not be less folly to abolish liberty, which is essential to political life, because it nourishes faction, than it would be to wish the annihilation of air, which is essential to animal life, because it imparts to fire its destructive agency.

The second expedient is as impracticable as the first would be unwise. As long as the reason of man continues fallible, and he is at liberty to exercise it, different opinions will be formed. As long as the connection subsists between his reason and his self-love, his opinions and his passions will have a reciprocal influence on each other; and the former will be objects to which the latter will attach themselves. The diversity in the faculties of men, from which the rights of property originate, is not less an insuperable obstacle to a uniformity of interests. The protection of these faculties is the first object of government. From the protection of different and unequal faculties of acquiring property, the possession of different degrees and kinds of property immediately results; and from the influence of these on the sentiments and views of the respective proprietors, ensues a division of the society into different interests and parties.

The latent causes of faction are thus sown in the nature of man; and we see them everywhere brought into different degrees of activity, according to the different circumstances of civil society. A zeal for different opinions concerning religion, concerning government, and many other points, as well of speculation as of practice; an attachment to different leaders ambitiously contending for pre-eminence and power; or to persons of other descriptions whose fortunes have been interesting to the human passions, have, in turn, divided mankind into parties, inflamed them with mutual animosity, and rendered them much more disposed to vex and oppress each other than to co-operate for their common good. So strong is this propensity of mankind to fall into mutual animosities, that where no substantial occasion presents itself, the most frivolous and fanciful distinctions have been sufficient to kindle their unfriendly passions and excite their most violent conflicts. But the most common and durable source of factions has been the various and unequal distribution of property. Those who hold and those who are without property have ever formed distinct interests in society. Those who are creditors, and those who are debtors, fall under a like discrimination. A landed interest, a manufacturing interest, a mercantile interest, a moneyed interest, with many lesser interests, grow up of necessity in civilized nations, and divide them into different classes, actuated by different sentiments and views. The regulation of these various and interfering interests forms the principal task of modern legislation, and involves the spirit of party and faction in the necessary and ordinary operations of the government.

No man is allowed to be a judge in his own cause, because his interest would certainly bias his judgment, and, not improbably, corrupt his integrity. With equal, nay with greater reason, a body of men are unfit to be both judges and parties at the same time; yet what are many of the most important acts of legislation, but so many judicial determinations, not indeed concerning the rights of single persons, but concerning the rights of large bodies of citizens? And what are the different classes of legislators but advocates and parties to the causes which they determine? Is a law proposed concerning private debts? It is a question to which the creditors are parties on one side and the debtors on the other. Justice ought to hold the balance between them. Yet the parties are, and must be, themselves the judges; and the most

numerous party, or, in other words, the most powerful faction must be expected to prevail. Shall domestic manufactures be encouraged, and in what degree, by restrictions on foreign manufactures? are questions which would be differently decided by the landed and the manufacturing classes, and probably by neither with a sole regard to justice and the public good. The apportionment of taxes on the various descriptions of property is an act which seems to require the most exact impartiality; yet there is, perhaps, no legislative act in which greater opportunity and temptation are given to a predominant party to trample on the rules of justice. Every shilling with which they overburden the inferior number, is a shilling saved to their own pockets.

It is in vain to say that enlightened statesmen will be able to adjust these clashing interests, and render them all subservient to the public good. Enlightened statesmen will not always be at the helm. Nor, in many cases, can such an adjustment be made at all without taking into view indirect and remote considerations, which will rarely prevail over the immediate interest which one party may find in disregarding the rights of another or the good of the whole.

The inference to which we are brought is, that the CAUSES of faction cannot be removed, and that relief is only to be sought in the means of controlling its EFFECTS.

If a faction consists of less than a majority, relief is supplied by the republican principle, which enables the majority to defeat its sinister views by regular vote. It may clog the administration, it may convulse the society; but it will be unable to execute and mask its violence under the forms of the Constitution. When a majority is included in a faction, the form of popular government, on the other hand, enables it to sacrifice to its ruling passion or interest both the public good and the rights of other citizens. To secure the public good and private rights against the danger of such a faction, and at the same time to preserve the spirit and the form of popular government, is then the great object to which our inquiries are directed. Let me add that it is the great desideratum by which this form of government can be rescued from the opprobrium under which it has so long labored, and be recommended to the esteem and adoption of mankind.

By what means is this object attainable? Evidently by one of two only. Either the existence of the same passion or interest in a majority at the same time must be prevented, or the majority, having such coexistent passion or interest, must be rendered, by their number and local situation, unable to concert and carry into effect schemes of oppression. If the impulse and the opportunity be suffered to coincide, we well know that neither moral nor religious motives can be relied on as an adequate control. They are not found to be such on the injustice and violence of individuals, and lose their efficacy in proportion to the number combined together, that is, in proportion as their efficacy becomes needful.

From this view of the subject it may be concluded that a pure democracy, by which I mean a society consisting of a small number of citizens, who assemble and administer the government in person, can admit of no cure for the mischiefs of faction. A common passion or interest will, in almost every case, be felt by a majority of the whole; a communication and concert result from the form of government itself; and there is nothing to check the inducements to sacrifice the weaker party or an obnoxious individual. Hence it is that such democracies have ever been spectacles of turbulence and contention; have ever been found incompatible with personal security or the rights of property; and have in general been as short in their lives as they have been violent in their deaths. Theoretic politicians, who have patronized this species of government, have erroneously supposed that by reducing mankind to a perfect

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equality in their political rights, they would, at the same time, be perfectly equalized and assimilated in their possessions, their opinions, and their passions.

A republic, by which I mean a government in which the scheme of representation takes place, opens a different prospect, and promises the cure for which we are seeking. Let us examine the points in which it varies from pure democracy, and we shall comprehend both the nature of the cure and the efficacy which it must derive from the Union.

The two great points of difference between a democracy and a republic are: first, the delegation of the government, in the latter, to a small number of citizens elected by the rest; secondly, the greater number of citizens, and greater sphere of country, over which the latter may be extended.

The effect of the first difference is, on the one hand, to refine and enlarge the public views, by passing them through the medium of a chosen body of citizens, whose wisdom may best discern the true interest of their country, and whose patriotism and love of justice will be least likely to sacrifice it to temporary or partial considerations. Under such a regulation, it may well happen that the public voice, pronounced by the representatives of the people, will be more consonant to the public good than if pronounced by the people themselves, convened for the purpose. On the other hand, the effect may be inverted. Men of factious tempers, of local prejudices, or of sinister designs, may, by intrigue, by corruption, or by other means, first obtain the suffrages, and then betray the interests, of the people. The question resulting is, whether small or extensive republics are more favorable to the election of proper guardians of the public weal; and it is clearly decided in favor of the latter by two obvious considerations:

In the first place, it is to be remarked that, however small the republic may be, the representatives must be raised to a certain number, in order to guard against the cabals of a few; and that, however large it may be, they must be limited to a certain number, in order to guard against the confusion of a multitude. Hence, the number of representatives in the two cases not being in proportion to that of the two constituents, and being proportionally greater in the small republic, it follows that, if the proportion of fit characters be not less in the large than in the small republic, the former will present a greater option, and consequently a greater probability of a fit choice.

In the next place, as each representative will be chosen by a greater number of citizens in the large than in the small republic, it will be more difficult for unworthy candidates to practice with success the vicious arts by which elections are too often carried; and the suffrages of the people being more free, will be more likely to centre in men who possess the most attractive merit and the most diffusive and established characters.

It must be confessed that in this, as in most other cases, there is a mean, on both sides of which inconveniences will be found to lie. By enlarging too much the number of electors, you render the representatives too little acquainted with all their local circumstances and lesser interests; as by reducing it too much, you render him unduly attached to these, and too little fit to comprehend and pursue great and national objects. The federal Constitution forms a happy combination in this respect; the great and aggregate interests being referred to the national, the local and particular to the State legislatures.

The other point of difference is, the greater number of citizens and extent of territory which may be brought within the compass of republican than of democratic government; and it is this circumstance

principally which renders factious combinations less to be dreaded in the former than in the latter. The smaller the society, the fewer probably will be the distinct parties and interests composing it; the fewer the distinct parties and interests, the more frequently will a majority be found of the same party; and the smaller the number of individuals composing a majority, and the smaller the compass within which they are placed, the more easily will they concert and execute their plans of oppression. Extend the sphere, and you take in a greater variety of parties and interests; you make it less probable that a majority of the whole will have a common motive to invade the rights of other citizens; or if such a common motive exists, it will be more difficult for all who feel it to discover their own strength, and to act in unison with each other. Besides other impediments, it may be remarked that, where there is a consciousness of unjust or dishonorable purposes, communication is always checked by distrust in proportion to the number whose concurrence is necessary.

Hence, it clearly appears, that the same advantage which a republic has over a democracy, in controlling the effects of faction, is enjoyed by a large over a small republic,—is enjoyed by the Union over the States composing it. Does the advantage consist in the substitution of representatives whose enlightened views and virtuous sentiments render them superior to local prejudices and schemes of injustice? It will not be denied that the representation of the Union will be most likely to possess these requisite endowments. Does it consist in the greater security afforded by a greater variety of parties, against the event of any one party being able to outnumber and oppress the rest? In an equal degree does the increased variety of parties comprised within the Union, increase this security. Does it, in fine, consist in the greater obstacles opposed to the concert and accomplishment of the secret wishes of an unjust and interested majority? Here, again, the extent of the Union gives it the most palpable advantage.

The influence of factious leaders may kindle a flame within their particular States, but will be unable to spread a general conflagration through the other States. A religious sect may degenerate into a political faction in a part of the Confederacy; but the variety of sects dispersed over the entire face of it must secure the national councils against any danger from that source. A rage for paper money, for an abolition of debts, for an equal division of property, or for any other improper or wicked project, will be less apt to pervade the whole body of the Union than a particular member of it; in the same proportion as such a malady is more likely to taint a particular county or district, than an entire State.

In the extent and proper structure of the Union, therefore, we behold a republican remedy for the diseases most incident to republican government. And according to the degree of pleasure and pride we feel in being republicans, ought to be our zeal in cherishing the spirit and supporting the character of Federalists.

PUBLIUS.

FEDERALIST No. 15
The Insufficiency of the Present Confederation to Preserve the Union
For the Independent Journal. (1788)
HAMILTON

To the People of the State of New York.

IN THE course of the preceding papers, I have endeavored, my fellow-citizens, to place before you, in a clear and convincing light, the importance of Union to your political safety and happiness. I have unfolded to you a complication of dangers to which you would be exposed, should you permit that sacred knot which binds the people of America together be severed or dissolved by ambition or by avarice, by jealousy or by misrepresentation. In the sequel of the inquiry through which I propose to accompany you, the truths intended to be inculcated will receive further confirmation from facts and arguments hitherto unnoticed. If the road over which you will still have to pass should in some places appear to you tedious or irksome, you will recollect that you are in quest of information on a subject the most momentous which can engage the attention of a free people, that the field through which you have to travel is in itself spacious, and that the difficulties of the journey have been unnecessarily increased by the mazes with which sophistry has beset the way. It will be my aim to remove the obstacles from your progress in as compendious a manner as it can be done, without sacrificing utility to despatch.

In pursuance of the plan which I have laid down for the discussion of the subject, the point next in order to be examined is the "insufficiency of the present Confederation to the preservation of the Union." It may perhaps be asked what need there is of reasoning or proof to illustrate a position which is not either controverted or doubted, to which the understandings and feelings of all classes of men assent, and which in substance is admitted by the opponents as well as by the friends of the new Constitution. It must in truth be acknowledged that, however these may differ in other respects, they in general appear to harmonize in this sentiment, at least, that there are material imperfections in our national system, and that something is necessary to be done to rescue us from impending anarchy. The facts that support this opinion are no longer objects of speculation. They have forced themselves upon the sensibility of the people at large, and have at length extorted from those, whose mistaken policy has had the principal share in precipitating the extremity at which we are arrived, a reluctant confession of the reality of those defects in the scheme of our federal government, which have been long pointed out and regretted by the intelligent friends of the Union.

We may indeed with propriety be said to have reached almost the last stage of national humiliation. There is scarcely anything that can wound the pride or degrade the character of an independent nation which we do not experience. Are there engagements to the performance of which we are held by every tie respectable among men? These are the subjects of constant and unblushing violation. Do we owe debts to foreigners and to our own citizens contracted in a time of imminent peril for the preservation of our political existence? These remain without any proper or satisfactory provision for their discharge. Have we valuable territories and important posts in the possession of a foreign power which, by express stipulations, ought long since to have been surrendered? These are still retained, to the prejudice of our interests, not less than of our rights. Are we in a condition to resent or to repel the aggression? We have neither troops, nor treasury, nor government.¹ Are we even in a condition to remonstrate with dignity? The just imputations on our own faith, in respect to the same treaty, ought first to be removed. Are we entitled by nature and compact to a free participation in the navigation of the Mississippi? Spain

excludes us from it. Is public credit an indispensable resource in time of public danger? We seem to have abandoned its cause as desperate and irretrievable. Is commerce of importance to national wealth? Ours is at the lowest point of declension. Is respectability in the eyes of foreign powers a safeguard against foreign encroachments? The imbecility of our government even forbids them to treat with us. Our ambassadors abroad are the mere pageants of mimic sovereignty. Is a violent and unnatural decrease in the value of land a symptom of national distress? The price of improved land in most parts of the country is much lower than can be accounted for by the quantity of waste land at market, and can only be fully explained by that want of private and public confidence, which are so alarmingly prevalent among all ranks, and which have a direct tendency to depreciate property of every kind. Is private credit the friend and patron of industry? That most useful kind which relates to borrowing and lending is reduced within the narrowest limits, and this still more from an opinion of insecurity than from the scarcity of money. To shorten an enumeration of particulars which can afford neither pleasure nor instruction, it may in general be demanded, what indication is there of national disorder, poverty, and insignificance that could befall a community so peculiarly blessed with natural advantages as we are, which does not form a part of the dark catalogue of our public misfortunes?

This is the melancholy situation to which we have been brought by those very maxims and councils which would now deter us from adopting the proposed Constitution; and which, not content with having conducted us to the brink of a precipice, seem resolved to plunge us into the abyss that awaits us below. Here, my countrymen, impelled by every motive that ought to influence an enlightened people, let us make a firm stand for our safety, our tranquillity, our dignity, our reputation. Let us at last break the fatal charm which has too long seduced us from the paths of felicity and prosperity.

It is true, as has been before observed that facts, too stubborn to be resisted, have produced a species of general assent to the abstract proposition that there exist material defects in our national system; but the usefulness of the concession, on the part of the old adversaries of federal measures, is destroyed by a strenuous opposition to a remedy, upon the only principles that can give it a chance of success. While they admit that the government of the United States is destitute of energy, they contend against conferring upon it those powers which are requisite to supply that energy. They seem still to aim at things repugnant and irreconcilable; at an augmentation of federal authority, without a diminution of State authority; at sovereignty in the Union, and complete independence in the members. They still, in fine, seem to cherish with blind devotion the political monster of an imperium in imperio. This renders a full display of the principal defects of the Confederation necessary, in order to show that the evils we experience do not proceed from minute or partial imperfections, but from fundamental errors in the structure of the building, which cannot be amended otherwise than by an alteration in the first principles and main pillars of the fabric.

The great and radical vice in the construction of the existing Confederation is in the principle of LEGISLATION for STATES or GOVERNMENTS, in their CORPORATE or COLLECTIVE CAPACITIES, and as contradistinguished from the INDIVIDUALS of which they consist. Though this principle does not run through all the powers delegated to the Union, yet it pervades and governs those on which the efficacy of the rest depends. Except as to the rule of appointment, the United States has an indefinite discretion to make requisitions for men and money; but they have no authority to raise either, by regulations extending to the individual citizens of America. The consequence of this is, that though in theory their resolutions concerning those objects are laws, constitutionally binding on the members of

the Union, yet in practice they are mere recommendations which the States observe or disregard at their option.

It is a singular instance of the capriciousness of the human mind, that after all the admonitions we have had from experience on this head, there should still be found men who object to the new Constitution, for deviating from a principle which has been found the bane of the old, and which is in itself evidently incompatible with the idea of GOVERNMENT; a principle, in short, which, if it is to be executed at all, must substitute the violent and sanguinary agency of the sword to the mild influence of the magistracy.

There is nothing absurd or impracticable in the idea of a league or alliance between independent nations for certain defined purposes precisely stated in a treaty regulating all the details of time, place, circumstance, and quantity; leaving nothing to future discretion; and depending for its execution on the good faith of the parties. Compacts of this kind exist among all civilized nations, subject to the usual vicissitudes of peace and war, of observance and non-observance, as the interests or passions of the contracting powers dictate. In the early part of the present century there was an epidemical rage in Europe for this species of compacts, from which the politicians of the times fondly hoped for benefits which were never realized. With a view to establishing the equilibrium of power and the peace of that part of the world, all the resources of negotiation were exhausted, and triple and quadruple alliances were formed; but they were scarcely formed before they were broken, giving an instructive but afflicting lesson to mankind, how little dependence is to be placed on treaties which have no other sanction than the obligations of good faith, and which oppose general considerations of peace and justice to the impulse of any immediate interest or passion.

If the particular States in this country are disposed to stand in a similar relation to each other, and to drop the project of a general DISCRETIONARY SUPERINTENDENCE, the scheme would indeed be pernicious, and would entail upon us all the mischiefs which have been enumerated under the first head; but it would have the merit of being, at least, consistent and practicable. Abandoning all views towards a confederate government, this would bring us to a simple alliance offensive and defensive; and would place us in a situation to be alternate friends and enemies of each other, as our mutual jealousies and rivalships, nourished by the intrigues of foreign nations, should prescribe to us.

But if we are unwilling to be placed in this perilous situation; if we still will adhere to the design of a national government, or, which is the same thing, of a superintending power, under the direction of a common council, we must resolve to incorporate into our plan those ingredients which may be considered as forming the characteristic difference between a league and a government; we must extend the authority of the Union to the persons of the citizens, —the only proper objects of government.

Government implies the power of making laws. It is essential to the idea of a law, that it be attended with a sanction; or, in other words, a penalty or punishment for disobedience. If there be no penalty annexed to disobedience, the resolutions or commands which pretend to be laws will, in fact, amount to nothing more than advice or recommendation. This penalty, whatever it may be, can only be inflicted in two ways: by the agency of the courts and ministers of justice, or by military force; by the COERCION of the magistracy, or by the COERCION of arms. The first kind can evidently apply only to men; the last kind must of necessity, be employed against bodies politic, or communities, or States. It is evident that there is no process of a court by which the observance of the laws can, in the last resort, be enforced. Sentences may be denounced against them for violations of their duty; but these sentences can

only be carried into execution by the sword. In an association where the general authority is confined to the collective bodies of the communities, that compose it, every breach of the laws must involve a state of war; and military execution must become the only instrument of civil obedience. Such a state of things can certainly not deserve the name of government, nor would any prudent man choose to commit his happiness to it.

There was a time when we were told that breaches, by the States, of the regulations of the federal authority were not to be expected; that a sense of common interest would preside over the conduct of the respective members, and would beget a full compliance with all the constitutional requisitions of the Union. This language, at the present day, would appear as wild as a great part of what we now hear from the same quarter will be thought, when we shall have received further lessons from that best oracle of wisdom, experience. It at all times betrayed an ignorance of the true springs by which human conduct is actuated, and belied the original inducements to the establishment of civil power. Why has government been instituted at all? Because the passions of men will not conform to the dictates of reason and justice, without constraint. Has it been found that bodies of men act with more rectitude or greater disinterestedness than individuals? The contrary of this has been inferred by all accurate observers of the conduct of mankind; and the inference is founded upon obvious reasons. Regard to reputation has a less active influence, when the infamy of a bad action is to be divided among a number than when it is to fall singly upon one. A spirit of faction, which is apt to mingle its poison in the deliberations of all bodies of men, will often hurry the persons of whom they are composed into improprieties and excesses, for which they would blush in a private capacity.

In addition to all this, there is, in the nature of sovereign power, an impatience of control, that disposes those who are invested with the exercise of it, to look with an evil eye upon all external attempts to restrain or direct its operations. From this spirit it happens, that in every political association which is formed upon the principle of uniting in a common interest a number of lesser sovereignties, there will be found a kind of eccentric tendency in the subordinate or inferior orbs, by the operation of which there will be a perpetual effort in each to fly off from the common centre. This tendency is not difficult to be accounted for. It has its origin in the love of power. Power controlled or abridged is almost always the rival and enemy of that power by which it is controlled or abridged. This simple proposition will teach us how little reason there is to expect, that the persons intrusted with the administration of the affairs of the particular members of a confederacy will at all times be ready, with perfect good-humor, and an unbiased regard to the public weal, to execute the resolutions or decrees of the general authority. The reverse of this results from the constitution of human nature.

If, therefore, the measures of the Confederacy cannot be executed without the intervention of the particular administrations, there will be little prospect of their being executed at all. The rulers of the respective members, whether they have a constitutional right to do it or not, will undertake to judge of the propriety of the measures themselves. They will consider the conformity of the thing proposed or required to their immediate interests or aims; the momentary conveniences or inconveniences that would attend its adoption. All this will be done; and in a spirit of interested and suspicious scrutiny, without that knowledge of national circumstances and reasons of state, which is essential to a right judgment, and with that strong predilection in favor of local objects, which can hardly fail to mislead the decision. The same process must be repeated in every member of which the body is constituted; and the execution of the plans, framed by the councils of the whole, will always fluctuate on the discretion of the ill-informed and prejudiced opinion of every part. Those who have been conversant in the proceedings of

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popular assemblies; who have seen how difficult it often is, where there is no exterior pressure of circumstances, to bring them to harmonious resolutions on important points, will readily conceive how impossible it must be to induce a number of such assemblies, deliberating at a distance from each other, at different times, and under different impressions, long to co-operate in the same views and pursuits.

In our case, the concurrence of thirteen distinct sovereign wills is requisite, under the Confederation, to the complete execution of every important measure that proceeds from the Union. It has happened as was to have been foreseen. The measures of the Union have not been executed; the delinquencies of the States have, step by step, matured themselves to an extreme, which has, at length, arrested all the wheels of the national government, and brought them to an awful stand. Congress at this time scarcely possess the means of keeping up the forms of administration, till the States can have time to agree upon a more substantial substitute for the present shadow of a federal government. Things did not come to this desperate extremity at once. The causes which have been specified produced at first only unequal and disproportionate degrees of compliance with the requisitions of the Union. The greater deficiencies of some States furnished the pretext of example and the temptation of interest to the complying, or to the least delinquent States. Why should we do more in proportion than those who are embarked with us in the same political voyage? Why should we consent to bear more than our proper share of the common burden? These were suggestions which human selfishness could not withstand, and which even speculative men, who looked forward to remote consequences, could not, without hesitation, combat. Each State, yielding to the persuasive voice of immediate interest or convenience, has successively withdrawn its support, till the frail and tottering edifice seems ready to fall upon our heads, and to crush us beneath its ruins.

PUBLIUS.

1 "I mean for the Union."

FEDERALIST No. 39 The Conformity of the Plan to Republican Principles For the Independent Journal. (1788) MADISON

To the People of the State of New York:

THE last paper having concluded the observations which were meant to introduce a candid survey of the plan of government reported by the convention, we now proceed to the execution of that part of our undertaking.

The first question that offers itself is, whether the general form and aspect of the government be strictly republican. It is evident that no other form would be reconcilable with the genius of the people of America; with the fundamental principles of the Revolution; or with that honorable determination which animates every votary of freedom, to rest all our political experiments on the capacity of mankind for self-government. If the plan of the convention, therefore, be found to depart from the republican character, its advocates must abandon it as no longer defensible.

What, then, are the distinctive characters of the republican form? Were an answer to this question to be sought, not by recurring to principles, but in the application of the term by political writers, to the constitution of different States, no satisfactory one would ever be found. Holland, in which no particle of the supreme authority is derived from the people, has passed almost universally under the denomination of a republic. The same title has been bestowed on Venice, where absolute power over the great body of the people is exercised, in the most absolute manner, by a small body of hereditary nobles. Poland, which is a mixture of aristocracy and of monarchy in their worst forms, has been dignified with the same appellation. The government of England, which has one republican branch only, combined with an hereditary aristocracy and monarchy, has, with equal impropriety, been frequently placed on the list of republics. These examples, which are nearly as dissimilar to each other as to a genuine republic, show the extreme inaccuracy with which the term has been used in political disquisitions.

If we resort for a criterion to the different principles on which different forms of government are established, we may define a republic to be, or at least may bestow that name on, a government which derives all its powers directly or indirectly from the great body of the people, and is administered by persons holding their offices during pleasure, for a limited period, or during good behavior. It is ESSENTIAL to such a government that it be derived from the great body of the society, not from an inconsiderable proportion, or a favored class of it; otherwise a handful of tyrannical nobles, exercising their oppressions by a delegation of their powers, might aspire to the rank of republicans, and claim for their government the honorable title of republic. It is SUFFICIENT for such a government that the persons administering it be appointed, either directly or indirectly, by the people; and that they hold their appointments by either of the tenures just specified; otherwise every government in the United States, as well as every other popular government that has been or can be well organized or well executed, would be degraded from the republican character. According to the constitution of every State in the Union, some or other of the officers of government are appointed indirectly only by the people. According to most of them, the chief magistrate himself is so appointed. And according to one, this mode of appointment is extended to one of the co-ordinate branches of the legislature. According to all the constitutions, also, the tenure of the highest offices is extended to a definite period, and in many instances, both within the legislative and executive departments, to a period of years. According to the provisions of most of the constitutions, again, as well as according to the most respectable and received opinions on the subject, the members of the judiciary department are to retain their offices by the firm tenure of good behavior.

On comparing the Constitution planned by the convention with the standard here fixed, we perceive at once that it is, in the most rigid sense, conformable to it. The House of Representatives, like that of one branch at least of all the State legislatures, is elected immediately by the great body of the people. The Senate, like the present Congress, and the Senate of Maryland, derives its appointment indirectly from the people. The President is indirectly derived from the choice of the people, according to the example in most of the States. Even the judges, with all other officers of the Union, will, as in the several States, be the choice, though a remote choice, of the people themselves, the duration of the appointments is equally conformable to the republican standard, and to the model of State constitutions. The House of Representatives is periodically elective, as in all the States; and for the period of two years, as in the State of South Carolina. The Senate is elective, for the period of six years; which is but one year more than the period of the Senate of Maryland, and but two more than that of the Senates of New York and Virginia. The President is to continue in office for the period of four years; as in New York and Delaware, the chief magistrate is elected for three years, and in South Carolina for two years. In the

other States the election is annual. In several of the States, however, no constitutional provision is made for the impeachment of the chief magistrate. And in Delaware and Virginia he is not impeachable till out of office. The President of the United States is impeachable at any time during his continuance in office. The tenure by which the judges are to hold their places, is, as it unquestionably ought to be, that of good behavior. The tenure of the ministerial offices generally, will be a subject of legal regulation, conformably to the reason of the case and the example of the State constitutions.

Could any further proof be required of the republican complexion of this system, the most decisive one might be found in its absolute prohibition of titles of nobility, both under the federal and the State governments; and in its express guaranty of the republican form to each of the latter.

"But it was not sufficient," say the adversaries of the proposed Constitution, "for the convention to adhere to the republican form. They ought, with equal care, to have preserved the FEDERAL form, which regards the Union as a CONFEDERACY of sovereign states; instead of which, they have framed a NATIONAL government, which regards the Union as a CONSOLIDATION of the States." And it is asked by what authority this bold and radical innovation was undertaken? The handle which has been made of this objection requires that it should be examined with some precision.

Without inquiring into the accuracy of the distinction on which the objection is founded, it will be necessary to a just estimate of its force, first, to ascertain the real character of the government in question; secondly, to inquire how far the convention were authorized to propose such a government; and thirdly, how far the duty they owed to their country could supply any defect of regular authority.

First. In order to ascertain the real character of the government, it may be considered in relation to the foundation on which it is to be established; to the sources from which its ordinary powers are to be drawn; to the operation of those powers; to the extent of them; and to the authority by which future changes in the government are to be introduced.

On examining the first relation, it appears, on one hand, that the Constitution is to be founded on the assent and ratification of the people of America, given by deputies elected for the special purpose; but, on the other, that this assent and ratification is to be given by the people, not as individuals composing one entire nation, but as composing the distinct and independent States to which they respectively belong. It is to be the assent and ratification of the several States, derived from the supreme authority in each State, the authority of the people themselves. The act, therefore, establishing the Constitution, will not be a NATIONAL, but a FEDERAL act.

That it will be a federal and not a national act, as these terms are understood by the objectors; the act of the people, as forming so many independent States, not as forming one aggregate nation, is obvious from this single consideration, that it is to result neither from the decision of a MAJORITY of the people of the Union, nor from that of a MAJORITY of the States. It must result from the UNANIMOUS assent of the several States that are parties to it, differing no otherwise from their ordinary assent than in its being expressed, not by the legislative authority, but by that of the people themselves. Were the people regarded in this transaction as forming one nation, the will of the majority of the whole people of the United States would bind the minority, in the same manner as the majority in each State must bind the minority; and the will of the majority must be determined either by a comparison of the individual votes, or by considering the will of the majority of the States as evidence of the will of a majority of the people

of the United States. Neither of these rules have been adopted. Each State, in ratifying the Constitution, is considered as a sovereign body, independent of all others, and only to be bound by its own voluntary act. In this relation, then, the new Constitution will, if established, be a FEDERAL, and not a NATIONAL constitution.

The next relation is, to the sources from which the ordinary powers of government are to be derived. The House of Representatives will derive its powers from the people of America; and the people will be represented in the same proportion, and on the same principle, as they are in the legislature of a particular State. So far the government is NATIONAL, not FEDERAL. The Senate, on the other hand, will derive its powers from the States, as political and coequal societies; and these will be represented on the principle of equality in the Senate, as they now are in the existing Congress. So far the government is FEDERAL, not NATIONAL. The executive power will be derived from a very compound source. The immediate election of the President is to be made by the States in their political characters. The votes allotted to them are in a compound ratio, which considers them partly as distinct and coequal societies, partly as unequal members of the same society. The eventual election, again, is to be made by that branch of the legislature which consists of the national representatives; but in this particular act they are to be thrown into the form of individual delegations, from so many distinct and coequal bodies politic. From this aspect of the government it appears to be of a mixed character, presenting at least as many FEDERAL as NATIONAL features.

The difference between a federal and national government, as it relates to the OPERATION OF THE GOVERNMENT, is supposed to consist in this, that in the former the powers operate on the political bodies composing the Confederacy, in their political capacities; in the latter, on the individual citizens composing the nation, in their individual capacities. On trying the Constitution by this criterion, it falls under the NATIONAL, not the FEDERAL character; though perhaps not so completely as has been understood. In several cases, and particularly in the trial of controversies to which States may be parties, they must be viewed and proceeded against in their collective and political capacities only. So far the national countenance of the government on this side seems to be disfigured by a few federal features. But this blemish is perhaps unavoidable in any plan; and the operation of the government on the people, in their individual capacities, in its ordinary and most essential proceedings, may, on the whole, designate it, in this relation, a NATIONAL government.

But if the government be national with regard to the OPERATION of its powers, it changes its aspect again when we contemplate it in relation to the EXTENT of its powers. The idea of a national government involves in it, not only an authority over the individual citizens, but an indefinite supremacy over all persons and things, so far as they are objects of lawful government. Among a people consolidated into one nation, this supremacy is completely vested in the national legislature. Among communities united for particular purposes, it is vested partly in the general and partly in the municipal legislatures. In the former case, all local authorities are subordinate to the supreme; and may be controlled, directed, or abolished by it at pleasure. In the latter, the local or municipal authorities form distinct and independent portions of the supremacy, no more subject, within their respective spheres, to the general authority, than the general authority is subject to them, within its own sphere. In this relation, then, the proposed government cannot be deemed a NATIONAL one; since its jurisdiction extends to certain enumerated objects only, and leaves to the several States a residuary and inviolable sovereignty over all other objects. It is true that in controversies relating to the boundary between the two jurisdictions, the tribunal which is ultimately to decide, is to be established under the general

government. But this does not change the principle of the case. The decision is to be impartially made, according to the rules of the Constitution; and all the usual and most effectual precautions are taken to secure this impartiality. Some such tribunal is clearly essential to prevent an appeal to the sword and a dissolution of the compact; and that it ought to be established under the general rather than under the local governments, or, to speak more properly, that it could be safely established under the first alone, is a position not likely to be combated.

If we try the Constitution by its last relation to the authority by which amendments are to be made, we find it neither wholly NATIONAL nor wholly FEDERAL. Were it wholly national, the supreme and ultimate authority would reside in the MAJORITY of the people of the Union; and this authority would be competent at all times, like that of a majority of every national society, to alter or abolish its established government. Were it wholly federal, on the other hand, the concurrence of each State in the Union would be essential to every alteration that would be binding on all. The mode provided by the plan of the convention is not founded on either of these principles. In requiring more than a majority, and principles. In requiring more than a majority, and particularly in computing the proportion by STATES, not by CITIZENS, it departs from the NATIONAL and advances towards the FEDERAL character; in rendering the concurrence of less than the whole number of States sufficient, it loses again the FEDERAL and partakes of the NATIONAL character.

The proposed Constitution, therefore, is, in strictness, neither a national nor a federal Constitution, but a composition of both. In its foundation it is federal, not national; in the sources from which the ordinary powers of the government are drawn, it is partly federal and partly national; in the operation of these powers, it is national, not federal; in the extent of them, again, it is federal, not national; and, finally, in the authoritative mode of introducing amendments, it is neither wholly federal nor wholly national.

PUBLIUS.

28 The Federalist Papers, Part 2 (Alexander Hamilton and James Madison)

FEDERALIST No. 51

The Structure of the Government Must Furnish the Proper Checks and Balances Between the Different Departments

From the New York Packet. Friday, February 8, 1788.

HAMILTON OR MADISON

To the People of the State of New York:

TO WHAT expedient, then, shall we finally resort, for maintaining in practice the necessary partition of power among the several departments, as laid down in the Constitution? The only answer that can be given is, that as all these exterior provisions are found to be inadequate, the defect must be supplied, by so contriving the interior structure of the government as that its several constituent parts may, by their mutual relations, be the means of keeping each other in their proper places. Without presuming to undertake a full development of this important idea, I will hazard a few general observations, which may perhaps place it in a clearer light, and enable us to form a more correct judgment of the principles and structure of the government planned by the convention.

In order to lay a due foundation for that separate and distinct exercise of the different powers of government, which to a certain extent is admitted on all hands to be essential to the preservation of liberty, it is evident that each department should have a will of its own; and consequently should be so constituted that the members of each should have as little agency as possible in the appointment of the members of the others. Were this principle rigorously adhered to, it would require that all the appointments for the supreme executive, legislative, and judiciary magistracies should be drawn from the same fountain of authority, the people, through channels having no communication whatever with one another. Perhaps such a plan of constructing the several departments would be less difficult in practice than it may in contemplation appear. Some difficulties, however, and some additional expense would attend the execution of it. Some deviations, therefore, from the principle must be admitted. In the constitution of the judiciary department in particular, it might be inexpedient to insist rigorously on the principle: first, because peculiar qualifications being essential in the members, the primary consideration ought to be to select that mode of choice which best secures these qualifications; secondly, because the permanent tenure by which the appointments are held in that department, must soon destroy all sense of dependence on the authority conferring them.

It is equally evident, that the members of each department should be as little dependent as possible on those of the others, for the emoluments annexed to their offices. Were the executive magistrate, or the judges, not independent of the legislature in this particular, their independence in every other would be merely nominal.

But the great security against a gradual concentration of the several powers in the same department, consists in giving to those who administer each department the necessary constitutional means and personal motives to resist encroachments of the others. The provision for defense must in this, as in all other cases, be made commensurate to the danger of attack. Ambition must be made to counteract ambition. The interest of the man must be connected with the constitutional rights of the place. It may be a reflection on human nature, that such devices should be necessary to control the abuses of government. But what is government itself, but the greatest of all reflections on human nature? If men were angels, no government would be necessary. If angels were to govern men, neither external nor internal controls on government would be necessary. In framing a government which is to be administered by men over men, the great difficulty lies in this: you must first enable the government to control the governed; and in the next place oblige it to control itself. A dependence on the people is, no doubt, the primary control on the government; but experience has taught mankind the necessity of auxiliary precautions.

This policy of supplying, by opposite and rival interests, the defect of better motives, might be traced through the whole system of human affairs, private as well as public. We see it particularly displayed in all the subordinate distributions of power, where the constant aim is to divide and arrange the several offices in such a manner as that each may be a check on the other that the private interest of every individual may be a sentinel over the public rights. These inventions of prudence cannot be less requisite in the distribution of the supreme powers of the State.

But it is not possible to give to each department an equal power of self-defense. In republican government, the legislative authority necessarily predominates. The remedy for this inconveniency is to divide the legislature into different branches; and to render them, by different modes of election and different principles of action, as little connected with each other as the nature of their common functions and their common dependence on the society will admit. It may even be necessary to guard against dangerous encroachments by still further precautions. As the weight of the legislative authority requires that it should be thus divided, the weakness of the executive may require, on the other hand, that it should be fortified. An absolute negative on the legislature appears, at first view, to be the natural defense with which the executive magistrate should be armed. But perhaps it would be neither altogether safe nor alone sufficient. On ordinary occasions it might not be exerted with the requisite firmness, and on extraordinary occasions it might be perfidiously abused. May not this defect of an absolute negative be supplied by some qualified connection between this weaker department and the weaker branch of the stronger department, by which the latter may be led to support the constitutional rights of the former, without being too much detached from the rights of its own department?

If the principles on which these observations are founded be just, as I persuade myself they are, and they be applied as a criterion to the several State constitutions, and to the federal Constitution it will be found that if the latter does not perfectly correspond with them, the former are infinitely less able to bear such a test.

There are, moreover, two considerations particularly applicable to the federal system of America, which place that system in a very interesting point of view.

First. In a single republic, all the power surrendered by the people is submitted to the administration of a single government; and the usurpations are guarded against by a division of the government into distinct and separate departments. In the compound republic of America, the power surrendered by the people is first divided between two distinct governments, and then the portion allotted to each subdivided among

distinct and separate departments. Hence a double security arises to the rights of the people. The different governments will control each other, at the same time that each will be controlled by itself.

Second. It is of great importance in a republic not only to guard the society against the oppression of its rulers, but to guard one part of the society against the injustice of the other part. Different interests necessarily exist in different classes of citizens. If a majority be united by a common interest, the rights of the minority will be insecure. There are but two methods of providing against this evil: the one by creating a will in the community independent of the majority that is, of the society itself; the other, by comprehending in the society so many separate descriptions of citizens as will render an unjust combination of a majority of the whole very improbable, if not impracticable. The first method prevails in all governments possessing an hereditary or self-appointed authority. This, at best, is but a precarious security; because a power independent of the society may as well espouse the unjust views of the major, as the rightful interests of the minor party, and may possibly be turned against both parties. The second method will be exemplified in the federal republic of the United States. Whilst all authority in it will be derived from and dependent on the society, the society itself will be broken into so many parts, interests, and classes of citizens, that the rights of individuals, or of the minority, will be in little danger from interested combinations of the majority. In a free government the security for civil rights must be the same as that for religious rights. It consists in the one case in the multiplicity of interests, and in the other in the multiplicity of sects. The degree of security in both cases will depend on the number of interests and sects; and this may be presumed to depend on the extent of country and number of people comprehended under the same government. This view of the subject must particularly recommend a proper federal system to all the sincere and considerate friends of republican government, since it shows that in exact proportion as the territory of the Union may be formed into more circumscribed Confederacies, or States oppressive combinations of a majority will be facilitated: the best security, under the republican forms, for the rights of every class of citizens, will be diminished: and consequently the stability and independence of some member of the government, the only other security, must be proportionately increased. Justice is the end of government. It is the end of civil society. It ever has been and ever will be pursued until it be obtained, or until liberty be lost in the pursuit. In a society under the forms of which the stronger faction can readily unite and oppress the weaker, anarchy may as truly be said to reign as in a state of nature, where the weaker individual is not secured against the violence of the stronger; and as, in the latter state, even the stronger individuals are prompted, by the uncertainty of their condition, to submit to a government which may protect the weak as well as themselves; so, in the former state, will the more powerful factions or parties be gradually induced, by a like motive, to wish for a government which will protect all parties, the weaker as well as the more powerful. It can be little doubted that if the State of Rhode Island was separated from the Confederacy and left to itself, the insecurity of rights under the popular form of government within such narrow limits would be displayed by such reiterated oppressions of factious majorities that some power altogether independent of the people would soon be called for by the voice of the very factions whose misrule had proved the necessity of it. In the extended republic of the United States, and among the great variety of interests, parties, and sects which it embraces, a coalition of a majority of the whole society could seldom take place on any other principles than those of justice and the general good; whilst there being thus less danger to a minor from the will of a major party, there must be less pretext, also, to provide for the security of the former, by introducing into the government a will not dependent on the latter, or, in other words, a will independent of the society itself. It is no less certain than it is important, notwithstanding the contrary opinions which have been entertained, that the larger the society, provided it lie within a practical sphere, the more duly capable it will be of self-government. And happily for the

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REPUBLICAN CAUSE, the practicable sphere may be carried to a very great extent, by a judicious modification and mixture of the FEDERAL PRINCIPLE.

PUBLIUS.

FEDERALIST No. 68
The Mode of Electing the President
From the New York Packet.
Friday, March 14, 1788.
HAMILTON

To the People of the State of New York:

THE mode of appointment of the Chief Magistrate of the United States is almost the only part of the system, of any consequence, which has escaped without severe censure, or which has received the slightest mark of approbation from its opponents. The most plausible of these, who has appeared in print, has even deigned to admit that the election of the President is pretty well guarded.¹ I venture somewhat further, and hesitate not to affirm, that if the manner of it be not perfect, it is at least excellent. It unites in an eminent degree all the advantages, the union of which was to be wished for.

It was desirable that the sense of the people should operate in the choice of the person to whom so important a trust was to be confided. This end will be answered by committing the right of making it, not to any preestablished body, but to men chosen by the people for the special purpose, and at the particular conjuncture.

It was equally desirable, that the immediate election should be made by men most capable of analyzing the qualities adapted to the station, and acting under circumstances favorable to deliberation, and to a judicious combination of all the reasons and inducements which were proper to govern their choice. A small number of persons, selected by their fellow-citizens from the general mass, will be most likely to possess the information and discernment requisite to such complicated investigations.

It was also peculiarly desirable to afford as little opportunity as possible to tumult and disorder. This evil was not least to be dreaded in the election of a magistrate, who was to have so important an agency in the administration of the government as the President of the United States. But the precautions which have been so happily concerted in the system under consideration, promise an effectual security against this mischief. The choice of SEVERAL, to form an intermediate body of electors, will be much less apt to convulse the community with any extraordinary or violent movements, than the choice of ONE who was himself to be the final object of the public wishes. And as the electors, chosen in each State, are to assemble and vote in the State in which they are chosen, this detached and divided situation will expose them much less to heats and ferments, which might be communicated from them to the people, than if they were all to be convened at one time, in one place.

Nothing was more to be desired than that every practicable obstacle should be opposed to cabal, intrigue, and corruption. These most deadly adversaries of republican government might naturally have been expected to make their approaches from more than one quarter, but chiefly from the desire in

foreign powers to gain an improper ascendant in our councils. How could they better gratify this, than by raising a creature of their own to the chief magistracy of the Union? But the convention have guarded against all danger of this sort, with the most provident and judicious attention. They have not made the appointment of the President to depend on any preexisting bodies of men, who might be tampered with beforehand to prostitute their votes; but they have referred it in the first instance to an immediate act of the people of America, to be exerted in the choice of persons for the temporary and sole purpose of making the appointment. And they have excluded from eligibility to this trust, all those who from situation might be suspected of too great devotion to the President in office. No senator, representative, or other person holding a place of trust or profit under the United States, can be of the numbers of the electors. Thus without corrupting the body of the people, the immediate agents in the election will at least enter upon the task free from any sinister bias. Their transient existence, and their detached situation, already taken notice of, afford a satisfactory prospect of their continuing so, to the conclusion of it. The business of corruption, when it is to embrace so considerable a number of men, requires time as well as means. Nor would it be found easy suddenly to embark them, dispersed as they would be over thirteen States, in any combinations founded upon motives, which though they could not properly be denominated corrupt, might yet be of a nature to mislead them from their duty.

Another and no less important desideratum was, that the Executive should be independent for his continuance in office on all but the people themselves. He might otherwise be tempted to sacrifice his duty to his complaisance for those whose favor was necessary to the duration of his official consequence. This advantage will also be secured, by making his re-election to depend on a special body of representatives, deputed by the society for the single purpose of making the important choice.

All these advantages will happily combine in the plan devised by the convention; which is, that the people of each State shall choose a number of persons as electors, equal to the number of senators and representatives of such State in the national government, who shall assemble within the State, and vote for some fit person as President. Their votes, thus given, are to be transmitted to the seat of the national government, and the person who may happen to have a majority of the whole number of votes will be the President. But as a majority of the votes might not always happen to centre in one man, and as it might be unsafe to permit less than a majority to be conclusive, it is provided that, in such a contingency, the House of Representatives shall select out of the candidates who shall have the five highest number of votes, the man who in their opinion may be best qualified for the office.

The process of election affords a moral certainty, that the office of President will never fall to the lot of any man who is not in an eminent degree endowed with the requisite qualifications. Talents for low intrigue, and the little arts of popularity, may alone suffice to elevate a man to the first honors in a single State; but it will require other talents, and a different kind of merit, to establish him in the esteem and confidence of the whole Union, or of so considerable a portion of it as would be necessary to make him a successful candidate for the distinguished office of President of the United States. It will not be too strong to say, that there will be a constant probability of seeing the station filled by characters pre-eminent for ability and virtue. And this will be thought no inconsiderable recommendation of the Constitution, by those who are able to estimate the share which the executive in every government must necessarily have in its good or ill administration. Though we cannot acquiesce in the political heresy of the poet who says: "For forms of government let fools contest That which is best administered is best," yet we may safely pronounce, that the true test of a good government is its aptitude and tendency to produce a good administration.

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The Vice-President is to be chosen in the same manner with the President; with this difference, that the Senate is to do, in respect to the former, what is to be done by the House of Representatives, in respect to the latter.

The appointment of an extraordinary person, as Vice-President, has been objected to as superfluous, if not mischievous. It has been alleged, that it would have been preferable to have authorized the Senate to elect out of their own body an officer answering that description. But two considerations seem to justify the ideas of the convention in this respect. One is, that to secure at all times the possibility of a definite resolution of the body, it is necessary that the President should have only a casting vote. And to take the senator of any State from his seat as senator, to place him in that of President of the Senate, would be to exchange, in regard to the State from which he came, a constant for a contingent vote. The other consideration is, that as the Vice-President may occasionally become a substitute for the President, in the supreme executive magistracy, all the reasons which recommend the mode of election prescribed for the one, apply with great if not with equal force to the manner of appointing the other. It is remarkable that in this, as in most other instances, the objection which is made would lie against the constitution of this State. We have a Lieutenant-Governor, chosen by the people at large, who presides in the Senate, and is the constitutional substitute for the Governor, in casualties similar to those which would authorize the Vice-President to exercise the authorities and discharge the duties of the President.

PUBLIUS.

¹Vide FEDERAL FARMER.

FEDERALIST No. 70
The Executive Department Further Considered
From the New York Packet.
Tuesday, March 18, 1788.
HAMILTON

To the People of the State of New York:

THERE is an idea, which is not without its advocates, that a vigorous Executive is inconsistent with the genius of republican government. The enlightened well-wishers to this species of government must at least hope that the supposition is destitute of foundation; since they can never admit its truth, without at the same time admitting the condemnation of their own principles. Energy in the Executive is a leading character in the definition of good government. It is essential to the protection of the community against foreign attacks; it is not less essential to the steady administration of the laws; to the protection of property against those irregular and high-handed combinations which sometimes interrupt the ordinary course of justice; to the security of liberty against the enterprises and assaults of ambition, of faction, and of anarchy. Every man the least conversant in Roman story, knows how often that republic was obliged to take refuge in the absolute power of a single man, under the formidable title of Dictator, as well against the intrigues of ambitious individuals who aspired to the tyranny, and the seditions of whole classes of the community whose conduct threatened the existence of all government, as against the invasions of external enemies who menaced the conquest and destruction of Rome.

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There can be no need, however, to multiply arguments or examples on this head. A feeble Executive implies a feeble execution of the government. A feeble execution is but another phrase for a bad execution; and a government ill executed, whatever it may be in theory, must be, in practice, a bad government.

Taking it for granted, therefore, that all men of sense will agree in the necessity of an energetic Executive, it will only remain to inquire, what are the ingredients which constitute this energy? How far can they be combined with those other ingredients which constitute safety in the republican sense? And how far does this combination characterize the plan which has been reported by the convention?

The ingredients which constitute energy in the Executive are, first, unity; secondly, duration; thirdly, an adequate provision for its support; fourthly, competent powers.

The ingredients which constitute safety in the republican sense are, first, a due dependence on the people, secondly, a due responsibility.

Those politicians and statesmen who have been the most celebrated for the soundness of their principles and for the justice of their views, have declared in favor of a single Executive and a numerous legislature. They have with great propriety, considered energy as the most necessary qualification of the former, and have regarded this as most applicable to power in a single hand, while they have, with equal propriety, considered the latter as best adapted to deliberation and wisdom, and best calculated to conciliate the confidence of the people and to secure their privileges and interests.

That unity is conducive to energy will not be disputed. Decision, activity, secrecy, and despatch will generally characterize the proceedings of one man in a much more eminent degree than the proceedings of any greater number; and in proportion as the number is increased, these qualities will be diminished.

This unity may be destroyed in two ways: either by vesting the power in two or more magistrates of equal dignity and authority; or by vesting it ostensibly in one man, subject, in whole or in part, to the control and co-operation of others, in the capacity of counsellors to him. Of the first, the two Consuls of Rome may serve as an example; of the last, we shall find examples in the constitutions of several of the States. New York and New Jersey, if I recollect right, are the only States which have intrusted the executive authority wholly to single men. [1] Both these methods of destroying the unity of the Executive have their partisans; but the votaries of an executive council are the most numerous. They are both liable, if not to equal, to similar objections, and may in most lights be examined in conjunction.

The experience of other nations will afford little instruction on this head. As far, however, as it teaches any thing, it teaches us not to be enamoured of plurality in the Executive. We have seen that the Achaeans, on an experiment of two Praetors, were induced to abolish one. The Roman history records many instances of mischiefs to the republic from the dissensions between the Consuls, and between the military Tribunes, who were at times substituted for the Consuls. But it gives us no specimens of any peculiar advantages derived to the state from the circumstance of the plurality of those magistrates. That the dissensions between them were not more frequent or more fatal, is a matter of astonishment, until we advert to the singular position in which the republic was almost continually placed, and to the prudent policy pointed out by the circumstances of the state, and pursued by the Consuls, of making a division of the government between them. The patricians engaged in a perpetual struggle with the plebeians for the

preservation of their ancient authorities and dignities; the Consuls, who were generally chosen out of the former body, were commonly united by the personal interest they had in the defense of the privileges of their order. In addition to this motive of union, after the arms of the republic had considerably expanded the bounds of its empire, it became an established custom with the Consuls to divide the administration between themselves by lot one of them remaining at Rome to govern the city and its environs, the other taking the command in the more distant provinces. This expedient must, no doubt, have had great influence in preventing those collisions and rivalships which might otherwise have embroiled the peace of the republic.

But quitting the dim light of historical research, attaching ourselves purely to the dictates of reason and good sense, we shall discover much greater cause to reject than to approve the idea of plurality in the Executive, under any modification whatever.

Wherever two or more persons are engaged in any common enterprise or pursuit, there is always danger of difference of opinion. If it be a public trust or office, in which they are clothed with equal dignity and authority, there is peculiar danger of personal emulation and even animosity. From either, and especially from all these causes, the most bitter dissensions are apt to spring. Whenever these happen, they lessen the respectability, weaken the authority, and distract the plans and operation of those whom they divide. If they should unfortunately assail the supreme executive magistracy of a country, consisting of a plurality of persons, they might impede or frustrate the most important measures of the government, in the most critical emergencies of the state. And what is still worse, they might split the community into the most violent and irreconcilable factions, adhering differently to the different individuals who composed the magistracy.

Men often oppose a thing, merely because they have had no agency in planning it, or because it may have been planned by those whom they dislike. But if they have been consulted, and have happened to disapprove, opposition then becomes, in their estimation, an indispensable duty of self-love. They seem to think themselves bound in honor, and by all the motives of personal infallibility, to defeat the success of what has been resolved upon contrary to their sentiments. Men of upright, benevolent tempers have too many opportunities of remarking, with horror, to what desperate lengths this disposition is sometimes carried, and how often the great interests of society are sacrificed to the vanity, to the conceit, and to the obstinacy of individuals, who have credit enough to make their passions and their caprices interesting to mankind. Perhaps the question now before the public may, in its consequences, afford melancholy proofs of the effects of this despicable frailty, or rather detestable vice, in the human character.

Upon the principles of a free government, inconveniences from the source just mentioned must necessarily be submitted to in the formation of the legislature; but it is unnecessary, and therefore unwise, to introduce them into the constitution of the Executive. It is here too that they may be most pernicious. In the legislature, promptitude of decision is oftener an evil than a benefit. The differences of opinion, and the jarrings of parties in that department of the government, though they may sometimes obstruct salutary plans, yet often promote deliberation and circumspection, and serve to check excesses in the majority. When a resolution too is once taken, the opposition must be at an end. That resolution is a law, and resistance to it punishable. But no favorable circumstances palliate or atone for the disadvantages of dissension in the executive department. Here, they are pure and unmixed. There is no point at which they cease to operate. They serve to embarrass and weaken the execution of the plan or

measure to which they relate, from the first step to the final conclusion of it. They constantly counteract those qualities in the Executive which are the most necessary ingredients in its composition, vigor and expedition, and this without any counterbalancing good. In the conduct of war, in which the energy of the Executive is the bulwark of the national security, every thing would be to be apprehended from its plurality.

It must be confessed that these observations apply with principal weight to the first case supposed that is, to a plurality of magistrates of equal dignity and authority a scheme, the advocates for which are not likely to form a numerous sect; but they apply, though not with equal, yet with considerable weight to the project of a council, whose concurrence is made constitutionally necessary to the operations of the ostensible Executive. An artful cabal in that council would be able to distract and to enervate the whole system of administration. If no such cabal should exist, the mere diversity of views and opinions would alone be sufficient to tincture the exercise of the executive authority with a spirit of habitual feebleness and dilatoriness.

But one of the weightiest objections to a plurality in the Executive, and which lies as much against the last as the first plan, is, that it tends to conceal faults and destroy responsibility.

Responsibility is of two kinds to censure and to punishment. The first is the more important of the two, especially in an elective office. Man, in public trust, will much oftener act in such a manner as to render him unworthy of being any longer trusted, than in such a manner as to make him obnoxious to legal punishment. But the multiplication of the Executive adds to the difficulty of detection in either case. It often becomes impossible, amidst mutual accusations, to determine on whom the blame or the punishment of a pernicious measure, or series of pernicious measures, ought really to fall. It is shifted from one to another with so much dexterity, and under such plausible appearances, that the public opinion is left in suspense about the real author. The circumstances which may have led to any national miscarriage or misfortune are sometimes so complicated that, where there are a number of actors who may have had different degrees and kinds of agency, though we may clearly see upon the whole that there has been mismanagement, yet it may be impracticable to pronounce to whose account the evil which may have been incurred is truly chargeable.

“I was overruled by my council. The council were so divided in their opinions that it was impossible to obtain any better resolution on the point.” These and similar pretexts are constantly at hand, whether true or false. And who is there that will either take the trouble or incur the odium, of a strict scrutiny into the secret springs of the transaction? Should there be found a citizen zealous enough to undertake the unpromising task, if there happen to be collusion between the parties concerned, how easy it is to clothe the circumstances with so much ambiguity, as to render it uncertain what was the precise conduct of any of those parties?

In the single instance in which the governor of this State is coupled with a council that is, in the appointment to offices, we have seen the mischiefs of it in the view now under consideration. Scandalous appointments to important offices have been made. Some cases, indeed, have been so flagrant that ALL PARTIES have agreed in the impropriety of the thing. When inquiry has been made, the blame has been laid by the governor on the members of the council, who, on their part, have charged it upon his nomination; while the people remain altogether at a loss to determine, by whose influence their interests have been committed to hands so unqualified and so manifestly improper. In tenderness to

individuals, I forbear to descend to particulars.

It is evident from these considerations, that the plurality of the Executive tends to deprive the people of the two greatest securities they can have for the faithful exercise of any delegated power, first, the restraints of public opinion, which lose their efficacy, as well on account of the division of the censure attendant on bad measures among a number, as on account of the uncertainty on whom it ought to fall; and, secondly, the opportunity of discovering with facility and clearness the misconduct of the persons they trust, in order either to their removal from office or to their actual punishment in cases which admit of it.

In England, the king is a perpetual magistrate; and it is a maxim which has obtained for the sake of the public peace, that he is unaccountable for his administration, and his person sacred. Nothing, therefore, can be wiser in that kingdom, than to annex to the king a constitutional council, who may be responsible to the nation for the advice they give. Without this, there would be no responsibility whatever in the executive department an idea inadmissible in a free government. But even there the king is not bound by the resolutions of his council, though they are answerable for the advice they give. He is the absolute master of his own conduct in the exercise of his office, and may observe or disregard the counsel given to him at his sole discretion.

But in a republic, where every magistrate ought to be personally responsible for his behavior in office the reason which in the British Constitution dictates the propriety of a council, not only ceases to apply, but turns against the institution. In the monarchy of Great Britain, it furnishes a substitute for the prohibited responsibility of the chief magistrate, which serves in some degree as a hostage to the national justice for his good behavior. In the American republic, it would serve to destroy, or would greatly diminish, the intended and necessary responsibility of the Chief Magistrate himself.

The idea of a council to the Executive, which has so generally obtained in the State constitutions, has been derived from that maxim of republican jealousy which considers power as safer in the hands of a number of men than of a single man. If the maxim should be admitted to be applicable to the case, I should contend that the advantage on that side would not counterbalance the numerous disadvantages on the opposite side. But I do not think the rule at all applicable to the executive power. I clearly concur in opinion, in this particular, with a writer whom the celebrated Junius pronounces to be "deep, solid, and ingenious," that "the executive power is more easily confined when it is ONE" [2]; that it is far more safe there should be a single object for the jealousy and watchfulness of the people; and, in a word, that all multiplication of the Executive is rather dangerous than friendly to liberty.

A little consideration will satisfy us, that the species of security sought for in the multiplication of the Executive, is attainable. Numbers must be so great as to render combination difficult, or they are rather a source of danger than of security. The united credit and influence of several individuals must be more formidable to liberty, than the credit and influence of either of them separately. When power, therefore, is placed in the hands of so small a number of men, as to admit of their interests and views being easily combined in a common enterprise, by an artful leader, it becomes more liable to abuse, and more dangerous when abused, than if it be lodged in the hands of one man; who, from the very circumstance of his being alone, will be more narrowly watched and more readily suspected, and who cannot unite so great a mass of influence as when he is associated with others. The Decemvirs of Rome, whose name denotes their number [3], were more to be dreaded in their usurpation than any ONE of them would

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have been. No person would think of proposing an Executive much more numerous than that body; from six to a dozen have been suggested for the number of the council. The extreme of these numbers, is not too great for an easy combination; and from such a combination America would have more to fear, than from the ambition of any single individual. A council to a magistrate, who is himself responsible for what he does, are generally nothing better than a clog upon his good intentions, are often the instruments and accomplices of his bad and are almost always a cloak to his faults.

I forbear to dwell upon the subject of expense; though it be evident that if the council should be numerous enough to answer the principal end aimed at by the institution, the salaries of the members, who must be drawn from their homes to reside at the seat of government, would form an item in the catalogue of public expenditures too serious to be incurred for an object of equivocal utility. I will only add that, prior to the appearance of the Constitution, I rarely met with an intelligent man from any of the States, who did not admit, as the result of experience, that the UNITY of the executive of this State was one of the best of the distinguishing features of our constitution.

PUBLIUS.

1. New York has no council except for the single purpose of appointing to offices; New Jersey has a council whom the governor may consult. But I think, from the terms of the constitution, their resolutions do not bind him.

2. De Lolme.

3. Ten.

FEDERALIST No. 78
The Judiciary Department
From McLEAN'S Edition, New York. (1788)
HAMILTON

To the People of the State of New York:

WE PROCEED now to an examination of the judiciary department of the proposed government.

In unfolding the defects of the existing Confederation, the utility and necessity of a federal judicature have been clearly pointed out. It is the less necessary to recapitulate the considerations there urged, as the propriety of the institution in the abstract is not disputed; the only questions which have been raised being relative to the manner of constituting it, and to its extent. To these points, therefore, our observations shall be confined.

The manner of constituting it seems to embrace these several objects: 1st. The mode of appointing the judges. 2d. The tenure by which they are to hold their places. 3d. The partition of the judiciary authority between different courts, and their relations to each other.

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First. As to the mode of appointing the judges; this is the same with that of appointing the officers of the Union in general, and has been so fully discussed in the two last numbers, that nothing can be said here which would not be useless repetition.

Second. As to the tenure by which the judges are to hold their places; this chiefly concerns their duration in office; the provisions for their support; the precautions for their responsibility.

According to the plan of the convention, all judges who may be appointed by the United States are to hold their offices DURING GOOD BEHAVIOR; which is conformable to the most approved of the State constitutions and among the rest, to that of this State. Its propriety having been drawn into question by the adversaries of that plan, is no light symptom of the rage for objection, which disorders their imaginations and judgments. The standard of good behavior for the continuance in office of the judicial magistracy, is certainly one of the most valuable of the modern improvements in the practice of government. In a monarchy it is an excellent barrier to the despotism of the prince; in a republic it is a no less excellent barrier to the encroachments and oppressions of the representative body. And it is the best expedient which can be devised in any government, to secure a steady, upright, and impartial administration of the laws.

Whoever attentively considers the different departments of power must perceive, that, in a government in which they are separated from each other, the judiciary, from the nature of its functions, will always be the least dangerous to the political rights of the Constitution; because it will be least in a capacity to annoy or injure them. The Executive not only dispenses the honors, but holds the sword of the community. The legislature not only commands the purse, but prescribes the rules by which the duties and rights of every citizen are to be regulated. The judiciary, on the contrary, has no influence over either the sword or the purse; no direction either of the strength or of the wealth of the society; and can take no active resolution whatever. It may truly be said to have neither FORCE nor WILL, but merely judgment; and must ultimately depend upon the aid of the executive arm even for the efficacy of its judgments.

This simple view of the matter suggests several important consequences. It proves incontestably, that the judiciary is beyond comparison the weakest of the three departments of power¹; that it can never attack with success either of the other two; and that all possible care is requisite to enable it to defend itself against their attacks. It equally proves, that though individual oppression may now and then proceed from the courts of justice, the general liberty of the people can never be endangered from that quarter; I mean so long as the judiciary remains truly distinct from both the legislature and the Executive. For I agree, that "there is no liberty, if the power of judging be not separated from the legislative and executive powers."² And it proves, in the last place, that as liberty can have nothing to fear from the judiciary alone, but would have every thing to fear from its union with either of the other departments; that as all the effects of such a union must ensue from a dependence of the former on the latter, notwithstanding a nominal and apparent separation; that as, from the natural feebleness of the judiciary, it is in continual jeopardy of being overpowered, awed, or influenced by its co-ordinate branches; and that as nothing can contribute so much to its firmness and independence as permanency in office, this quality may therefore be justly regarded as an indispensable ingredient in its constitution, and, in a great measure, as the citadel of the public justice and the public security.

The complete independence of the courts of justice is peculiarly essential in a limited Constitution. By a limited Constitution, I understand one which contains certain specified exceptions to the legislative authority; such, for instance, as that it shall pass no bills of attainder, no ex-post-facto laws, and the like. Limitations of this kind can be preserved in practice no other way than through the medium of courts of justice, whose duty it must be to declare all acts contrary to the manifest tenor of the Constitution void. Without this, all the reservations of particular rights or privileges would amount to nothing.

Some perplexity respecting the rights of the courts to pronounce legislative acts void, because contrary to the Constitution, has arisen from an imagination that the doctrine would imply a superiority of the judiciary to the legislative power. It is urged that the authority which can declare the acts of another void, must necessarily be superior to the one whose acts may be declared void. As this doctrine is of great importance in all the American constitutions, a brief discussion of the ground on which it rests cannot be unacceptable.

There is no position which depends on clearer principles, than that every act of a delegated authority, contrary to the tenor of the commission under which it is exercised, is void. No legislative act, therefore, contrary to the Constitution, can be valid. To deny this, would be to affirm, that the deputy is greater than his principal; that the servant is above his master; that the representatives of the people are superior to the people themselves; that men acting by virtue of powers, may do not only what their powers do not authorize, but what they forbid.

If it be said that the legislative body are themselves the constitutional judges of their own powers, and that the construction they put upon them is conclusive upon the other departments, it may be answered, that this cannot be the natural presumption, where it is not to be collected from any particular provisions in the Constitution. It is not otherwise to be supposed, that the Constitution could intend to enable the representatives of the people to substitute their WILL to that of their constituents. It is far more rational to suppose, that the courts were designed to be an intermediate body between the people and the legislature, in order, among other things, to keep the latter within the limits assigned to their authority. The interpretation of the laws is the proper and peculiar province of the courts. A constitution is, in fact, and must be regarded by the judges, as a fundamental law. It therefore belongs to them to ascertain its meaning, as well as the meaning of any particular act proceeding from the legislative body. If there should happen to be an irreconcilable variance between the two, that which has the superior obligation and validity ought, of course, to be preferred; or, in other words, the Constitution ought to be preferred to the statute, the intention of the people to the intention of their agents.

Nor does this conclusion by any means suppose a superiority of the judicial to the legislative power. It only supposes that the power of the people is superior to both; and that where the will of the legislature, declared in its statutes, stands in opposition to that of the people, declared in the Constitution, the judges ought to be governed by the latter rather than the former. They ought to regulate their decisions by the fundamental laws, rather than by those which are not fundamental.

This exercise of judicial discretion, in determining between two contradictory laws, is exemplified in a familiar instance. It not uncommonly happens, that there are two statutes existing at one time, clashing in whole or in part with each other, and neither of them containing any repealing clause or expression. In such a case, it is the province of the courts to liquidate and fix their meaning and operation. So far as they can, by any fair construction, be reconciled to each other, reason and law conspire to dictate that

this should be done; where this is impracticable, it becomes a matter of necessity to give effect to one, in exclusion of the other. The rule which has obtained in the courts for determining their relative validity is, that the last in order of time shall be preferred to the first. But this is a mere rule of construction, not derived from any positive law, but from the nature and reason of the thing. It is a rule not enjoined upon the courts by legislative provision, but adopted by themselves, as consonant to truth and propriety, for the direction of their conduct as interpreters of the law. They thought it reasonable, that between the interfering acts of an EQUAL authority, that which was the last indication of its will should have the preference.

But in regard to the interfering acts of a superior and subordinate authority, of an original and derivative power, the nature and reason of the thing indicate the converse of that rule as proper to be followed. They teach us that the prior act of a superior ought to be preferred to the subsequent act of an inferior and subordinate authority; and that accordingly, whenever a particular statute contravenes the Constitution, it will be the duty of the judicial tribunals to adhere to the latter and disregard the former.

It can be of no weight to say that the courts, on the pretense of a repugnancy, may substitute their own pleasure to the constitutional intentions of the legislature. This might as well happen in the case of two contradictory statutes; or it might as well happen in every adjudication upon any single statute. The courts must declare the sense of the law; and if they should be disposed to exercise WILL instead of JUDGMENT, the consequence would equally be the substitution of their pleasure to that of the legislative body. The observation, if it prove any thing, would prove that there ought to be no judges distinct from that body.

If, then, the courts of justice are to be considered as the bulwarks of a limited Constitution against legislative encroachments, this consideration will afford a strong argument for the permanent tenure of judicial offices, since nothing will contribute so much as this to that independent spirit in the judges which must be essential to the faithful performance of so arduous a duty.

This independence of the judges is equally requisite to guard the Constitution and the rights of individuals from the effects of those ill humors, which the arts of designing men, or the influence of particular conjunctures, sometimes disseminate among the people themselves, and which, though they speedily give place to better information, and more deliberate reflection, have a tendency, in the meantime, to occasion dangerous innovations in the government, and serious oppressions of the minor party in the community. Though I trust the friends of the proposed Constitution will never concur with its enemies,³ in questioning that fundamental principle of republican government, which admits the right of the people to alter or abolish the established Constitution, whenever they find it inconsistent with their happiness, yet it is not to be inferred from this principle, that the representatives of the people, whenever a momentary inclination happens to lay hold of a majority of their constituents, incompatible with the provisions in the existing Constitution, would, on that account, be justifiable in a violation of those provisions; or that the courts would be under a greater obligation to connive at infractions in this shape, than when they had proceeded wholly from the cabals of the representative body. Until the people have, by some solemn and authoritative act, annulled or changed the established form, it is binding upon themselves collectively, as well as individually; and no presumption, or even knowledge, of their sentiments, can warrant their representatives in a departure from it, prior to such an act. But it is easy to see, that it would require an uncommon portion of fortitude in the judges to do their duty as faithful

guardians of the Constitution, where legislative invasions of it had been instigated by the major voice of the community.

But it is not with a view to infractions of the Constitution only, that the independence of the judges may be an essential safeguard against the effects of occasional ill humors in the society. These sometimes extend no farther than to the injury of the private rights of particular classes of citizens, by unjust and partial laws. Here also the firmness of the judicial magistracy is of vast importance in mitigating the severity and confining the operation of such laws. It not only serves to moderate the immediate mischiefs of those which may have been passed, but it operates as a check upon the legislative body in passing them; who, perceiving that obstacles to the success of iniquitous intention are to be expected from the scruples of the courts, are in a manner compelled, by the very motives of the injustice they meditate, to qualify their attempts. This is a circumstance calculated to have more influence upon the character of our governments, than but few may be aware of. The benefits of the integrity and moderation of the judiciary have already been felt in more States than one; and though they may have displeased those whose sinister expectations they may have disappointed, they must have commanded the esteem and applause of all the virtuous and disinterested. Considerate men, of every description, ought to prize whatever will tend to beget or fortify that temper in the courts: as no man can be sure that he may not be to-morrow the victim of a spirit of injustice, by which he may be a gainer to-day. And every man must now feel, that the inevitable tendency of such a spirit is to sap the foundations of public and private confidence, and to introduce in its stead universal distrust and distress.

That inflexible and uniform adherence to the rights of the Constitution, and of individuals, which we perceive to be indispensable in the courts of justice, can certainly not be expected from judges who hold their offices by a temporary commission. Periodical appointments, however regulated, or by whomsoever made, would, in some way or other, be fatal to their necessary independence. If the power of making them was committed either to the Executive or legislature, there would be danger of an improper complaisance to the branch which possessed it; if to both, there would be an unwillingness to hazard the displeasure of either; if to the people, or to persons chosen by them for the special purpose, there would be too great a disposition to consult popularity, to justify a reliance that nothing would be consulted but the Constitution and the laws.

There is yet a further and a weightier reason for the permanency of the judicial offices, which is deducible from the nature of the qualifications they require. It has been frequently remarked, with great propriety, that a voluminous code of laws is one of the inconveniences necessarily connected with the advantages of a free government. To avoid an arbitrary discretion in the courts, it is indispensable that they should be bound down by strict rules and precedents, which serve to define and point out their duty in every particular case that comes before them; and it will readily be conceived from the variety of controversies which grow out of the folly and wickedness of mankind, that the records of those precedents must unavoidably swell to a very considerable bulk, and must demand long and laborious study to acquire a competent knowledge of them. Hence it is, that there can be but few men in the society who will have sufficient skill in the laws to qualify them for the stations of judges. And making the proper deductions for the ordinary depravity of human nature, the number must be still smaller of those who unite the requisite integrity with the requisite knowledge. These considerations apprise us, that the government can have no great option between fit character; and that a temporary duration in office, which would naturally discourage such characters from quitting a lucrative line of practice to accept a seat on the bench, would have a tendency to throw the administration of justice into hands less

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able, and less well qualified, to conduct it with utility and dignity. In the present circumstances of this country, and in those in which it is likely to be for a long time to come, the disadvantages on this score would be greater than they may at first sight appear; but it must be confessed, that they are far inferior to those which present themselves under the other aspects of the subject.

Upon the whole, there can be no room to doubt that the convention acted wisely in copying from the models of those constitutions which have established GOOD BEHAVIOR as the tenure of their judicial offices, in point of duration; and that so far from being blamable on this account, their plan would have been inexcusably defective, if it had wanted this important feature of good government. The experience of Great Britain affords an illustrious comment on the excellence of the institution.

PUBLIUS.

1 The celebrated Montesquieu, speaking of them, says: "Of the three powers above mentioned, the judiciary is next to nothing." "Spirit of Laws." vol. i., page 186.

2 Idem, page 181.

3 Vide "Protest of the Minority of the Convention of Pennsylvania," Martin's Speech, etc.

29 The Origins of Totalitarianism (Hannah Arendt)

Hannah Arendt¹ (1906-1975) viewed politics very differently than most other Political theorists out there: she was heavily influenced by the events of WWII and became very wary of governmental states that allowed for the abuses of power, however they came about. One point she wants to be sure to emphasize is that we have to be sure to remember that the states and governments are there to help us flourish, or achieve Eudaimonia, and we can never forget that.

The Origins of Totalitarianism

While it is available freely on the Internet but cannot be reprinted here due to copyright reasons, ***Totalitarianism: The Inversion of Politics*** (Jerome Kohn, Director, Hannah Arendt Center, New School University), contains a wonderful discussion of ***The Origins of Totalitarianism***, Arendt's most influential piece, as well as her life, views, and other writings. Please read it here: <https://memory.loc.gov/ammem/arendhtml/essayb1.html> .

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